

GUARANTEED SENIOR SECURED NOTES PROGRAMME

issued by

GOLDMAN SACHS INTERNATIONAL

incorporated with unlimited liability in England,

and guaranteed by

THE GOLDMAN SACHS GROUP, INC.

a corporation organised under the laws of the State of Delaware, United States of America.

Goldman Sachs International ("**GSI**" or the "**Issuer**"), subject to compliance with all relevant laws, regulations and directives, may from time to time issue notes (the "**Notes**") under the programme (the "**Programme**") as described in this base prospectus (the "**Base Prospectus**") as may be supplemented or replaced from time to time under the terms and conditions of the Notes, as completed in the case of any series of Notes (each a "**Series**") by final terms (the "**Final Terms**") to this Base Prospectus. This Base Prospectus is valid for 12 months after its approval and may be supplemented from time to time to reflect any significant new factor, material mistake or inaccuracy relating to the information included in it. The obligation to supplement this Base Prospectus in the event of any significant new factor, material mistake or material inaccuracy relating to the information included in it does not apply when such Base Prospectus is no longer valid.

Notes of a Series will give the holder of the relevant Notes (each a "**Noteholder**") certain rights against the Issuer as described in this Base Prospectus and in the relevant Final Terms. These rights may include the right to receive a cash amount from the Issuer at maturity (which can include an amount equal to the principal amount of such Notes or an amount otherwise calculated in accordance with the relevant Final Terms), the right to receive interest based on the principal amount of such Notes or otherwise or the right to receive delivery of a specified asset or assets against payment of a specified sum. These rights will be set forth in the terms and conditions (the "**Terms and Conditions**" or the "**Conditions**") of the Notes, which shall comprise:

- the "*General Conditions*" commencing on page 117 of this Base Prospectus;
- the "*Definitions Conditions*" commencing on page 148 of this Base Prospectus;
- where the Notes are linked to one or more Underlying Assets (as defined below), the terms and conditions relating to such Underlying Asset(s) set out in the "*Underlying Asset Conditions*", commencing on page 118 of this Base Prospectus that are specified to be applicable in the relevant Final Terms;
- the "payout" terms of the Notes set out in the "*Payout Conditions*", commencing on page 180 of this Base Prospectus, that are specified to be applicable in the relevant Final Terms; and
- the issue specific details of the particular Series of Notes as set out in the Final Terms.

The Final Terms, in addition to specifying which of the Payout Conditions and Underlying Asset Conditions (if any) apply to the Notes, will include other important information in relation to the particular Series of Notes such as, for example, payment and maturity dates, amounts, rates and (if applicable) the Underlying Asset(s) on which the return on the Notes will be dependent.

The amount payable or deliverable under some, but not all, of the Notes issued under this Base Prospectus may depend on the performance (which can be measured in different ways) of one or more underlying reference assets ("**Underlying Assets**"), including:

- a share (including a depositary receipt and an exchange traded fund);
- an equity index or futures, options or other derivatives contracts on an equities index; and
- a basket of the above.

Notes will not be linked to shares in the Issuer or any legal entity belonging to the same group.

The Notes will be issued in such denominations as specified in the applicable Final Terms, save that the minimum denomination of each Note will be such amount as may be allowed or required from time to time by the relevant central bank (or equivalent body) or any laws or regulations applicable to the relevant currency specified in the Final Terms relating to the Notes of a Series and save that the minimum denomination of each Note admitted to trading on a regulated market situated or operating within the European Economic Area (the "**EEA**") and/or offered to the public in an EEA state in circumstances that require the publication of a prospectus under Regulation (EU) 2017/1129 (the "**EU Prospectus Regulation**") will be €100,000 (or, if the Notes are denominated in a currency other than euro, the equivalent amount in such currency).

The payment obligations of the Issuer in respect of any Series of Notes are secured on certain specified assets (the "**Collateral**"), such Collateral being the subject of a first priority security interest to The Bank of New York Mellon, acting through its London Branch, as trustee (the "**Trustee**") for the benefit and security of the Noteholders of a particular Series (other than, in respect of certain Series, where such Noteholder is the Issuer), pursuant to and granted by a trust deed dated 23 September 2016 (as amended and restated, supplemented or otherwise modified from time to time including on or around the date of this Base Prospectus, the "**Principal Trust Deed**"), and each Series of Notes will be issued pursuant to a deed between, among others, the Issuer and the Trustee which supplements that Principal Trust Deed (each, a "**Supplemental Trust Deed**" and, together with the Principal Trust Deed, the "**Trust Deed**"). The payment of all obligations of the Issuer arising out of or under any Series of Notes is guaranteed by The Goldman Sachs Group, Inc. ("**GS Group**" or the "**Guarantor**") in respect of all Series of Notes pursuant to a guaranty dated 23 September 2016 (as amended and restated, supplemented or otherwise modified from time to time, the "**Guaranty**"). The Guaranty is a direct senior unsecured obligation of the Guarantor and will rank *pari passu* with the obligations of the Guarantor under its unsubordinated and unsecured obligations.

This Base Prospectus has been approved by the Central Bank of Ireland (the "**Central Bank**") as competent authority under the EU Prospectus Regulation. The Central Bank only approves this Base Prospectus as meeting the standards of completeness, comprehensibility and consistency imposed by the EU Prospectus Regulation. Such approval should not be considered as an endorsement of the Issuer or the securities that are the subject of this Base Prospectus. Investors should make their own assessment as to the suitability of investing in the Notes. Such approval has been sought for the purpose of giving information with regard to the issue of certain Notes under the Programme on and during the period of 12 months after the date hereof. Such approval relates only to Notes which are to be admitted to trading on the regulated market of The Irish Stock Exchange plc, trading as Euronext Dublin ("**Euronext Dublin**") or other regulated markets for the purposes of Directive 2014/65/EU (as amended, "**MiFID II**") or which are to be offered to the public in any member state (each a "**Member State**") of the EEA. Application will be made to Euronext Dublin for certain Notes issued under the Programme to be admitted to the official list (the "**Official List**") and admitted to trading on its regulated market. Application will be made to Euronext Dublin to approve these Base Listing Particulars and to admit certain Notes to listing on the Official List of Euronext Dublin and to trading on the Global Exchange Market of Euronext Dublin. However, unlisted Notes may be issued pursuant to the Programme. The relevant Final Terms, in the respect of any Series will specify whether or not the relevant Notes will be listed on Euronext Dublin. The Programme provides that the Notes may be listed or admitted to trading, as the case may be, on such other or further stock exchange(s) or markets as disclosed in a supplement to the Base Prospectus.

This document constitutes Base Listing Particulars (the "**Base Listing Particulars**") for the purposes of listing on the Official List and trading on the Global Exchange Market of the Euronext Dublin. Where Notes are to be listed or admitted to trading on the Global Exchange Market of Euronext Dublin (the "**GEM**"), or where unlisted Notes are issued, references to "Base Prospectus" shall be read as references to "Base Listing Particulars" and references to "Final Terms" shall be read as references to "Pricing Supplement".

AN INVESTMENT IN THE NOTES MAY INVOLVE A HIGH DEGREE OF RISK, WHICH INVESTORS SHOULD ENSURE THEY FULLY UNDERSTAND. SEE "RISK FACTORS" ON PAGES 25 TO 87 OF THIS BASE PROSPECTUS.

Important – EEA Retail Investors: Unless the Final Terms in respect of the Notes specify "Prohibition of Sales to EEA Retail Investors" as "Not Applicable", the Notes are not intended to be offered, sold or otherwise made available to, and should not be offered, sold or otherwise made available to, any retail investor in the EEA. For these purposes, a retail investor means a person who is: (a) a retail client as defined in point (11) of Article 4(1) of MiFID II; (b) a customer within the meaning of Directive (EU) 2016/97, as amended, where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II; or (c) not a qualified investor as defined in Article 2 of the EU Prospectus Regulation. Consequently, no key information document required by Regulation (EU) No 1286/2014 (as amended, the "**EU PRIIPs Regulation**") for offering or selling the Notes or otherwise making them available to retail investors in the EEA has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the EEA may be unlawful under the EU PRIIPs Regulation.

Important – UK Retail Investors: Unless the Final Terms in respect of the Notes specify "Prohibition of Sales to UK Retail Investors" as "Not Applicable", the Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the United Kingdom. For these purposes, a retail investor means a person who is: (a) a retail client, as defined in point (8) of Article 2 of Regulation (EU) No 2017/565 as it forms part of domestic law by virtue of the European Union (Withdrawal) Act 2018 (as amended, the "**EUWA**"); (b) a customer within the meaning of the provisions of the Financial Services and Markets Act 2000 (as amended, "**FSMA**") and any rules or regulations made under FSMA to implement Directive (EU) 2016/97, where that customer would not qualify as a professional client, as defined in point (8) of Article 2(1) of Regulation (EU) No 600/2014 as it forms part of domestic law by virtue of the EUWA; or (c) not a qualified investor as defined in Article 2 of the EU Prospectus Regulation as it forms part of domestic law by virtue of the EUWA and regulations made thereunder. Consequently, no key information document required by Regulation (EU) No 1286/2014 as it forms part of domestic law by virtue of the EUWA (as amended, the "**UK PRIIPs Regulation**") for offering or selling the Notes or otherwise making them available to retail investors in the United Kingdom has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the United Kingdom may be unlawful under the UK PRIIPs Regulation.

EU Benchmarks Regulation: Amounts payable under the Notes may be calculated or otherwise determined by reference to a reference rate, an index or a price source. Any such reference rate, index or price source may constitute a benchmark for the purposes of Regulation (EU) 2016/1011 (as amended, the "**EU Benchmarks Regulation**"). If any such reference rate, index or price source does constitute such a benchmark then (as applicable) (a) the Final Terms will, or (b) the Pricing Supplement may, indicate whether or not the benchmark is provided by an administrator included in the register of administrators and benchmarks (the "**ESMA Register**") established and maintained by the European Securities and Markets Authority ("**ESMA**"). Not every reference rate, an index or a price source will fall within the scope of the EU Benchmarks Regulation. Furthermore, transitional provisions in the EU Benchmarks Regulation may have the result that the administrator of a particular benchmark is not required to appear in the relevant register of administrators and benchmarks at the date of the Final Terms. As at the date of this Base Prospectus, European Money Markets Institute (the administrator of EURIBOR) is included in the ESMA Register. Also, none of the Federal Reserve Bank of New York (the

administrator of SOFR), the Bank of England (the administrator of SONIA), the European Central Bank (the administrator of €STR) or the Bank of Japan (the administrator of TONA) is included in the ESMA Register, but the EU Benchmarks Regulation does not apply to central banks or to public authorities providing benchmarks for public policy purposes. The registration status of any administrator under the EU Benchmarks Regulation is a matter of public record and, save where required by applicable law, the relevant Issuer does not intend to update the relevant Issue Terms to reflect any change in the registration status of the administrator.

UK Benchmarks Regulation: Amounts payable under the Notes may be calculated or otherwise determined by reference to a reference rate, an index or a price source. Any such reference rate, index or price source may constitute a benchmark for the purposes of Regulation (EU) 2016/1011 as it forms part of domestic law by virtue of the EUWA (as amended, the "**UK Benchmarks Regulation**", and together with the EU Benchmarks Regulation, the "**Benchmarks Regulations**"). If any such reference rate, index or price source does constitute such a benchmark then the Final Terms may indicate whether or not the benchmark is provided by an administrator included in the register of administrators and benchmarks (the "**UK Benchmarks Register**") established and maintained by the Financial Conduct Authority ("**FCA**"). Not every reference rate, an index or a price source will fall within the scope of the UK Benchmarks Regulation. Furthermore, transitional provisions in the UK Benchmarks Regulation may have the result that the administrator of a particular benchmark is not required to appear in the relevant register of administrators and benchmarks at the date of Final Terms. The registration status of any administrator under the UK Benchmarks Regulation is a matter of public record and, save where required by applicable law, the Issuer does not intend to update the relevant Final Terms to reflect any change in the registration status of any such administrator.

This Base Prospectus is being submitted on a confidential basis in the United States to a limited number of "Qualified Institutional Buyers" (as defined below) for informational use solely in connection with the consideration of the purchase of the Notes being offered hereby. Its use for any other purpose in the United States is not authorised. It may not be copied or reproduced in whole or in part nor may it be distributed or any of its contents disclosed to anyone other than the prospective investors to whom it is originally submitted. For the avoidance of doubt, references herein to the Notes include the Guaranty, where applicable.

THE NOTES HAVE NOT BEEN, AND WILL NOT BE, REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE "**SECURITIES ACT**"), OR ANY SECURITIES REGULATORY AUTHORITY OF ANY STATE OR OTHER JURISDICTION OF THE UNITED STATES.

The Notes may be offered or sold outside the United States in reliance on the exemption from registration provided by Regulation S under the Securities Act ("**Regulation S**"). The Notes may be offered or sold exclusively to qualified institutional buyers ("**QIBs**"), as defined in Rule 144A under the Securities Act ("**Rule 144A**"), within the United States in reliance on an exemption from the registration requirements of the Securities Act for transactions not involving any public offering (the "**Private Placement Exemption**"). Each purchaser of the Notes within the United States is hereby notified that the offer and sale of any Notes to it may be made in reliance upon the exemption from the registration requirements of the Securities Act provided by the Private Placement Exemption. Each purchaser of the Notes outside of the United States is hereby notified that the offer and sale of any Notes to it may be made in reliance upon the exemption from the registration requirements of the Securities Act provided by Regulation S.

Each purchaser or holder of the Notes purchased in accordance with the Private Placement Exemption or Regulation S or any Notes issued in registered form in exchange or substitution therefor will be deemed, by its acceptance or purchase of any such Notes, to have made certain representations and agreements intended to restrict the resale or other transfer of such Notes as set out in "*Selling Restrictions*".

EACH PURCHASER OF THE NOTES IN RELIANCE ON AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT UNDER REGULATION S WILL BE REQUIRED TO

PROVIDE A REPRESENTATION LETTER TO THE ISSUER STATING THAT IT IS A NON-U.S. PERSON WITHIN THE MEANING OF REGULATION S AND THAT IT IS PURCHASING ITS NOTES IN AN OFFSHORE TRANSACTION AS DEFINED IN REGULATION S.

EACH PURCHASER OF THE NOTES IN RELIANCE ON THE PRIVATE PLACEMENT EXEMPTION WILL BE REQUIRED TO PROVIDE A REPRESENTATION LETTER TO THE ISSUER THAT IT IS A QIB AND THAT IT IS PURCHASING ITS NOTES IN RELIANCE ON THE PRIVATE PLACEMENT EXEMPTION.

THE CREDIT RATINGS INCLUDED OR REFERRED TO IN THIS BASE PROSPECTUS HAVE BEEN ISSUED BY MOODY'S RATINGS ("**MOODY'S**"), FITCH RATINGS, INC. ("**FITCH**") AND S&P GLOBAL RATINGS, A DIVISION OF THE MCGRAW-HILL COMPANIES ("**S&P**"). NONE OF MOODY'S, FITCH OR S&P IS ESTABLISHED IN THE UNITED KINGDOM BUT EACH IS PART OF A GROUP IN RESPECT OF WHICH ONE OF ITS UNDERTAKINGS IS (I) ESTABLISHED IN THE UNITED KINGDOM, AND (II) IS REGISTERED IN ACCORDANCE WITH REGULATION (EC) NO 1060/2009 AS IT FORMS PART OF DOMESTIC LAW BY VIRTUE OF EUWA (AS AMENDED, THE "**UK CRA REGULATION**"). ACCORDINGLY, THE CREDIT RATINGS REFERRED TO IN THIS BASE PROSPECTUS HAVE BEEN ENDORSED BY FITCH RATINGS LIMITED, MOODY'S INVESTORS SERVICE LIMITED AND S&P GLOBAL RATINGS UK LIMITED IN ACCORDANCE WITH THE UK CRA REGULATION AND HAVE NOT BEEN WITHDRAWN. AS SUCH, THE RATINGS ISSUED BY FITCH, MOODY'S AND S&P MAY BE USED FOR REGULATORY PURPOSES IN THE UNITED KINGDOM IN ACCORDANCE WITH THE UK CRA REGULATION. A RATING IS NOT A RECOMMENDATION TO BUY, SELL OR HOLD SECURITIES AND MAY BE SUBJECT TO SUSPENSION, CHANGE OR WITHDRAWAL AT ANY TIME BY THE ASSIGNING RATING AGENCY WITHOUT NOTICE.

SUBJECT TO THE FULFILMENT OF THE CONDITIONS SET OUT IN ARTICLE 4(3) OF THE UK CRA REGULATION, A CREDIT RATING AGENCY ESTABLISHED IN THE UNITED KINGDOM AND REGISTERED IN ACCORDANCE WITH THE UK CRA REGULATION (A "**UK CRA**") MAY ENDORSE (FOR REGULATORY PURPOSES IN THE UNITED KINGDOM) CREDIT RATINGS ISSUED OUTSIDE THE UNITED KINGDOM WHERE (I) THE CREDIT RATING ACTIVITIES RESULTING IN THE ISSUING OF THE CREDIT RATING ARE UNDERTAKEN IN WHOLE OR IN PART BY A CREDIT RATING AGENCY OR CREDIT RATING AGENCIES BELONGING TO THE SAME GROUP (A "**NON-UK CRA**"); AND (II) THE UK CRA HAS VERIFIED AND IS ABLE TO DEMONSTRATE ON AN ONGOING BASIS TO THE FCA THAT THE CONDUCT OF THE CREDIT RATING ACTIVITIES BY THE NON-UK CRA RESULTING IN THE ISSUING OF THE CREDIT RATING TO BE ENDORSED FULFILLS REQUIREMENTS WHICH ARE "AT LEAST AS STRINGENT AS" THE REQUIREMENTS OF THE UK CRA REGULATION.

SUBJECT TO THE FULFILLMENT OF THE CONDITIONS SET OUT IN ARTICLE 4(3) OF THE UK CRA REGULATION, THE CREDIT RATINGS ISSUED BY MOODY'S, S&P AND FITCH MAY BE ENDORSED FOR REGULATORY PURPOSES IN THE UNITED KINGDOM BY A UK CRA BELONGING TO THE SAME GROUP. THERE CAN BE NO ASSURANCE THAT SUCH ENDORSEMENTS OF THE CREDIT RATINGS ISSUED BY MOODY'S, FITCH AND S&P WILL BE MADE. IN GENERAL, AND SUBJECT TO CERTAIN EXCEPTIONS, UK INVESTORS ARE RESTRICTED FROM USING A CREDIT RATING FOR REGULATORY PURPOSES IF SUCH A CREDIT RATING IS NOT ISSUED BY A UK CRA.

The date of this Base Prospectus is 29 September 2025

IMPORTANT INFORMATION

THE ISSUER ACCEPTS RESPONSIBILITY FOR THE INFORMATION CONTAINED IN THIS BASE PROSPECTUS AND, NOTWITHSTANDING THE FOREGOING, THE GUARANTOR ACCEPTS RESPONSIBILITY FOR THE INFORMATION RELATING TO ITSELF AND THE INFORMATION RELATING TO THE GUARANTY. TO THE BEST OF THE KNOWLEDGE OF THE ISSUER AND THE GUARANTOR, THE INFORMATION CONTAINED IN THIS BASE PROSPECTUS IS IN ACCORDANCE WITH THE FACTS AND DOES NOT OMIT ANYTHING LIKELY TO AFFECT THE IMPORT OF SUCH INFORMATION.

THIS BASE PROSPECTUS SHOULD BE READ AND CONSTRUED TOGETHER WITH ANY SUPPLEMENTS HERETO AND WITH ANY OTHER DOCUMENTS INCORPORATED BY REFERENCE HEREIN AND THE RELEVANT FINAL TERMS. THIS BASE PROSPECTUS MAY ONLY BE USED FOR THE PURPOSES FOR WHICH IT HAS BEEN PUBLISHED. NEITHER THE ISSUER NOR THE GUARANTOR INTENDS TO PROVIDE ANY POST-ISSUANCE INFORMATION OR HAS AUTHORISED THE MAKING OR PROVISION OF ANY REPRESENTATION OR INFORMATION REGARDING THE ISSUER, THE GUARANTOR OR THE NOTES, OTHER THAN AS CONTAINED OR INCORPORATED BY REFERENCE IN THIS BASE PROSPECTUS, IN ANY OTHER DOCUMENT PREPARED IN CONNECTION WITH THE PROGRAMME OR ANY FINAL TERMS OR AS EXPRESSLY APPROVED FOR SUCH PURPOSE BY THE ISSUER OR THE GUARANTOR. ANY SUCH REPRESENTATION OR INFORMATION SHOULD NOT BE RELIED UPON AS HAVING BEEN AUTHORISED BY THE ISSUER OR THE GUARANTOR.

NEITHER THIS BASE PROSPECTUS NOR ANY FINAL TERMS CONSTITUTES AN OFFER TO SELL, OR A SOLICITATION OF AN OFFER TO BUY, ANY NOTES OFFERED HEREBY BY ANY PERSON IN ANY JURISDICTION IN WHICH IT IS UNLAWFUL FOR SUCH PERSON TO MAKE SUCH AN OFFER OR SOLICITATION. NEITHER THE DELIVERY OF THIS BASE PROSPECTUS NOR THE DELIVERY OF ANY FINAL TERMS NOR ANY SALE MADE HEREUNDER SHALL UNDER ANY CIRCUMSTANCES IMPLY THAT THERE HAS BEEN NO ADVERSE CHANGE IN THE FINANCIAL SITUATION OF THE ISSUER OR THE GUARANTOR SINCE THE DATE HEREOF OR, AS THE CASE MAY BE, THE DATE UPON WHICH THIS BASE PROSPECTUS HAS BEEN MOST RECENTLY SUPPLEMENTED.

THE DISTRIBUTION OF THIS BASE PROSPECTUS AND ANY FINAL TERMS AND THE OFFERING, SALE AND DELIVERY OF THE NOTES IN CERTAIN JURISDICTIONS MAY BE RESTRICTED BY LAW. PERSONS INTO WHOSE POSSESSION THIS BASE PROSPECTUS OR ANY FINAL TERMS COMES ARE REQUIRED BY THE ISSUER AND THE GUARANTOR TO INFORM THEMSELVES ABOUT AND TO OBSERVE ANY SUCH RESTRICTIONS. FOR A DESCRIPTION OF CERTAIN RESTRICTIONS ON OFFERS, SALES AND DELIVERIES OF NOTES AND THE DISTRIBUTION OF THIS BASE PROSPECTUS, ANY FINAL TERMS AND OTHER OFFERING MATERIAL RELATING TO THE NOTES SEE "*SELLING RESTRICTIONS*" BELOW. NEITHER THIS BASE PROSPECTUS NOR ANY FINAL TERMS MAY BE USED FOR THE PURPOSE OF AN OFFER OR SOLICITATION BY ANYONE IN ANY JURISDICTION IN WHICH SUCH OFFER OR SOLICITATION IS NOT AUTHORISED OR TO ANY PERSON TO WHOM IT IS UNLAWFUL TO MAKE SUCH OFFER OR SOLICITATION, AND NO ACTION HAS BEEN TAKEN OR WILL BE TAKEN TO PERMIT AN OFFERING OF THE NOTES OR THE DISTRIBUTION OF THIS BASE PROSPECTUS IN ANY JURISDICTION WHERE ANY SUCH ACTION IS REQUIRED.

A PERSON (AN "**INVESTOR**") INTENDING TO ACQUIRE OR ACQUIRING ANY NOTES FROM ANY PERSON (AN "**OFFEROR**") WILL DO SO, AND OFFERS AND SALES OF THE NOTES TO AN INVESTOR BY AN OFFEROR WILL BE MADE, IN ACCORDANCE WITH ANY TERMS AND OTHER ARRANGEMENTS IN PLACE BETWEEN SUCH OFFEROR AND SUCH INVESTOR INCLUDING AS TO PRICE, ALLOCATIONS AND SETTLEMENT ARRANGEMENTS. THE ISSUER WILL NOT BE A PARTY TO ANY SUCH ARRANGEMENTS WITH INVESTORS IN CONNECTION WITH THE OFFER OR SALE OF THE NOTES AND, ACCORDINGLY, THIS BASE PROSPECTUS AND ANY FINAL TERMS WILL NOT CONTAIN SUCH INFORMATION AND AN INVESTOR MUST OBTAIN SUCH

INFORMATION FROM THE OFFEROR. AN INVESTOR SHOULD CONDUCT SUCH INDEPENDENT INVESTIGATION AND ANALYSIS REGARDING THE ISSUER, THE GUARANTOR AND THE NOTES AS THEY DEEM APPROPRIATE TO EVALUATE THE MERITS AND RISKS OF AN INVESTMENT IN THE NOTES. INVESTORS SHOULD HAVE REGARD TO THE FACTORS DESCRIBED UNDER THE SECTION HEADED "RISK FACTORS" IN THIS BASE PROSPECTUS.

THE NOTES HAVE NOT BEEN APPROVED OR DISAPPROVED BY THE UNITED STATES SECURITIES AND EXCHANGE COMMISSION (THE "**SEC**") OR ANY STATE SECURITIES COMMISSION IN THE UNITED STATES OR REGULATORY AUTHORITY, NOR HAS THE SEC OR ANY STATE SECURITIES COMMISSION OR ANY REGULATORY AUTHORITY PASSED UPON THE ACCURACY OR THE ADEQUACY OF THIS BASE PROSPECTUS. ANY REPRESENTATION TO THE CONTRARY IS A CRIMINAL OFFENCE. THE ISSUER HAS NOT REGISTERED, AND DOES NOT INTEND TO REGISTER, AS AN "INVESTMENT COMPANY" UNDER THE U.S. INVESTMENT COMPANY ACT OF 1940, AS AMENDED (THE "**INVESTMENT COMPANY ACT**").

THE NOTES MAY NOT BE OFFERED OR SOLD WITHIN THE UNITED STATES OR TO "U.S. PERSONS" (AS DEFINED IN REGULATION S), OTHER THAN IN RELIANCE ON THE PRIVATE PLACEMENT EXEMPTION. THE NOTES MAY BE OFFERED AND SOLD WITHIN THE UNITED STATES EXCLUSIVELY TO "QUALIFIED INSTITUTIONAL BUYERS" IN RELIANCE ON THE PRIVATE PLACEMENT EXEMPTION. THE NOTES MAY BE OFFERED AND SOLD TO CERTAIN NON-U.S. PERSONS IN OFFSHORE TRANSACTIONS IN RELIANCE ON REGULATION S. EACH PURCHASER OF THE NOTES WITHIN THE UNITED STATES, AND EACH PURCHASER OF THE NOTES IN AN OFFSHORE TRANSACTION PERMITTED UNDER REGULATION S, IS HEREBY NOTIFIED THAT THE OFFER AND SALE OF SUCH NOTES TO IT IS MADE UPON THE PRIVATE PLACEMENT EXEMPTION OR IN RELIANCE ON REGULATION S, RESPECTIVELY, AND SUCH NOTES ARE NOT TRANSFERABLE EXCEPT AS PROVIDED UNDER "SELLING RESTRICTIONS" BELOW.

THE NOTES ARE NOT BANK DEPOSITS AND ARE NOT INSURED OR GUARANTEED BY THE UNITED STATES FEDERAL DEPOSIT INSURANCE CORPORATION, THE DEPOSIT INSURANCE FUND OR ANY OTHER GOVERNMENTAL AGENCY. THE NOTES ARE GUARANTEED BY THE GOLDMAN SACHS GROUP, INC. AND THE GUARANTY WILL RANK PARI PASSU WITH ALL OTHER UNSECURED AND UNSUBORDINATED INDEBTEDNESS OF THE GUARANTOR.

THIS BASE PROSPECTUS IS ONLY BEING DISTRIBUTED TO AND IS ONLY DIRECTED AT (I) PERSONS WHO ARE OUTSIDE THE UNITED KINGDOM OR (II) INVESTMENT PROFESSIONALS FALLING WITHIN ARTICLE 19(5) OF THE FINANCIAL SERVICES AND MARKETS ACT 2000 (FINANCIAL PROMOTION) ORDER 2005 (THE "**ORDER**") OR (III) HIGH NET WORTH ENTITIES, AND OTHER PERSONS TO WHOM IT MAY LAWFULLY BE COMMUNICATED, FALLING WITHIN ARTICLE 49(2)(A) TO (D) OF THE ORDER (ALL SUCH PERSONS TOGETHER BEING REFERRED TO AS "**RELEVANT PERSONS**"). ANY NOTES WILL ONLY BE AVAILABLE TO, AND ANY INVITATION, OFFER OR AGREEMENT TO SUBSCRIBE, PURCHASE OR OTHERWISE ACQUIRE SUCH NOTES WILL BE ENGAGED IN ONLY WITH, RELEVANT PERSONS. ANY PERSON WHO IS NOT A RELEVANT PERSON SHOULD NOT ACT OR RELY ON THIS BASE PROSPECTUS OR ANY OF ITS CONTENTS.

THE TRUSTEE (AS DEFINED HEREIN), THE REGISTRAR (AS DEFINED HEREIN) AND THE PRINCIPAL PAYING AGENT (AS DEFINED HEREIN) (TOGETHER, THE "**AGENTS**") MAKE NO REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, AS TO, AND ASSUME NO RESPONSIBILITY FOR, THE ACCURACY OR COMPLETENESS OF THE INFORMATION CONTAINED IN THIS BASE PROSPECTUS. NOTHING CONTAINED IN THIS BASE PROSPECTUS IS, OR SHALL BE RELIED UPON AS, A PROMISE OR REPRESENTATION BY THE TRUSTEE OR THE AGENTS AS TO THE PAST OR THE FUTURE. THE ISSUER AND THE GUARANTORS HAVE FURNISHED THE INFORMATION CONTAINED IN THIS BASE PROSPECTUS.

UNLESS OTHERWISE DEFINED HEREIN, CAPITALISED TERMS USED IN THIS BASE PROSPECTUS HAVE THE MEANINGS SET OUT IN THE TRUST DEED.

CONTENTS

CLAUSE	PAGE
IMPORTANT INFORMATION	6
OVERVIEW OF THE PROGRAMME	10
RISK FACTORS	25
KEY FACTS AND Q&A	88
USE OF PROCEEDS	99
THE ISSUER	100
THE GUARANTOR	106
DOCUMENTS INCORPORATED BY REFERENCE	113
TERMS AND CONDITIONS OF THE NOTES – GENERAL CONDITIONS	117
TERMS AND CONDITIONS OF THE NOTES – DEFINITIONS	148
TERMS AND CONDITIONS OF THE NOTES – PAYOUT CONDITIONS	180
TERMS AND CONDITIONS OF THE NOTES – SHARE LINKED CONDITIONS	199
TERMS AND CONDITIONS OF THE NOTES – INDEX LINKED CONDITIONS	230
TERMS AND CONDITIONS OF THE NOTES – MULTI-ASSET BASKET LINKED CONDITIONS	265
FORM OF FINAL TERMS / PRICING SUPPLEMENT	276
TAXATION	308
SELLING RESTRICTIONS	326
BOOK-ENTRY CLEARING SYSTEMS	332
GENERAL INFORMATION	334

OVERVIEW OF THE PROGRAMME

*The following overview (the "**Overview**") should be read as an introduction to the Base Prospectus and is qualified in its entirety by the more detailed information appearing elsewhere in the Base Prospectus. Any decision to invest in the Notes should be based on consideration of the Base Prospectus as a whole by the Investor, including the documents incorporated by reference. Where a claim relating to the information contained in the Base Prospectus is brought before a court in an EEA Member State, the plaintiff Investor might, under the national legislation of the relevant EEA Member State, have to bear the costs of translating the Base Prospectus before the legal proceedings are initiated. Civil liability attaches to the persons who are responsible for the Overview but only if the Overview is misleading, inaccurate or inconsistent when read together with the other parts of the Base Prospectus. Terms used in this Overview but not defined have the meanings given to them elsewhere in the Base Prospectus, and unless otherwise defined in the Base Prospectus, capitalised terms used in the Base Prospectus shall have the meanings set out in the Trust Deed.*

Description of Programme Under the Programme, subject to compliance with all relevant laws, regulations and directives, the Issuer may from time to time issue senior secured notes, guaranteed by the Guarantor, including fixed rate notes, floating rate notes, share linked notes, index linked notes, multi-asset basket linked notes or a combination of any of the foregoing.

PARTIES TO THE PROGRAMME

Issuer	Goldman Sachs International is a private company with unlimited liability under the laws of England and Wales, with company registration number 02263951, and registered address Plumtree Court, 25 Shoe Lane, London EC4A 4AU. The Issuer is a leading global investment banking, securities and investment management firm that provides a wide range of financial services to a substantial and diversified client base that includes corporations, financial institutions, governments and high-net-worth individuals.
Guarantor	The Goldman Sachs Group, Inc. is a Delaware corporation with registration number 2923466 and business address, 200 West Street, New York, New York 10282. The Guarantor is a leading global investment banking, securities and investment management firm that provides a wide range of financial services to a substantial and diversified client base that includes corporations, financial institutions, governments and high-net-worth individuals.
Trustee	The Bank of New York Mellon, acting through its London Branch is a New York banking corporation and its corporate trust office in the United Kingdom is located at 160 Queen Victoria Street, London EC4V 4LA. Pursuant to the Trust Deed, a first priority security interest in all of the Issuer's right, title and interest in collateral securing the Issuer's obligations under the Notes will be granted to the Trustee (or its duly appointed agent), on behalf of the Noteholders.
Registrar	The Bank of New York Mellon SA/NV, Luxembourg Branch will be appointed as the Issuer's registrar.
Principal Paying Agent	The Bank of New York Mellon, acting through its London Branch will be appointed as the Issuer's principal paying agent pursuant to an agency agreement between, among others, the Issuer and the Trustee (the " Agency Agreement ") with respect to the payments of the interest payable on the Notes, provided that if specified in the relevant Final

Terms, the Issuer may appoint a different principal paying agent or paying agents.

Collateral Administrator	The Bank of New York Mellon, acting through its London Branch will be appointed as the administrator in respect of the Collateral pursuant to the Agency Agreement.
Calculation Agent	With respect to each Series of Structured Notes (as defined below), GSI (or, if specified in the relevant Final Terms for that Series, an affiliate of GSI) will be appointed pursuant to the Agency Agreement as the Issuer's calculation agent for that Series, and shall be responsible for (a) making calculations, (b) determining whether certain specified events and/or matters have occurred and (c) determining the consequence of any such events or matters, including potentially, revised calculations, adjustments, postponements or early redemption, in each case as specified in the Conditions of the Notes applicable to such Series.
Agent Bank	With respect to each Series of Standard Notes (as defined below), GSI (or, if specified in the relevant Final Terms for that Series of Notes, an affiliate of GSI) will be appointed as the Issuer's agent bank with respect to the determination of the interest rate applicable to the Notes of that Series.
Liquidation Agent	If specified in the Final Terms for a Series of Notes that are Exempt Notes, a liquidation agent may be appointed in respect of any Collateral securing the relevant Series.
KEY TERMS OF THE NOTES	
Notes	The Notes of each Series are senior secured direct obligations of the Issuer, ranking <i>pari passu</i> between themselves, and issued pursuant to the Trust Deed. The principal amount of Notes and number of Series of Notes that may be issued under the Trust Deed are not limited by the Trust Deed. Each series of Notes will be classified as being either Structured Notes or Standard Notes. "Structured Notes" refers to any series of Notes that are Redemption Linked Notes, while "Standard Notes" refers to any series of Notes that are not Structured Notes.
Guaranty	The payment obligations of the Issuer arising out of or under all Series of Notes will be unconditionally and irrevocably guaranteed by GS Group under the Guaranty in favour of the Trustee for the benefit of itself and the Noteholders of any Series, the form of which is set out herein. The Guaranty is a direct senior unsecured obligation of GS Group and will rank <i>pari passu</i> with the obligations of the Guarantor under its unsubordinated and unsecured obligations.
Method of Issue	The Notes will be issued in Series, having one or more issue dates and on terms otherwise identical (or identical other than in respect of the first payment of interest), the Notes of each Series being intended to be interchangeable with all other Notes of that Series. The specific terms of each Series will be set out in the Final Terms for such Series, which shall complete the Terms and Conditions of the Notes as set out herein.
Note Currency	Subject to compliance with all relevant laws, regulations and directives, Notes may be issued in any currency, as specified in the relevant Final Terms.

Maturity Date	Subject to compliance with all relevant laws, regulations and directives, Notes may be issued with any maturity, as specified in the relevant Final Terms.
Call Option	If specified in the Final Terms, the Notes may be callable in whole, or from time to time, in part, at any time within the period of 35 days preceding its stated maturity, at a call price equal to the sum of (a) 100 per cent. of the aggregate principal amount of the Outstanding Notes and (b) any accrued and unpaid interest on the aggregate principal amount of the Outstanding Notes to but excluding the relevant call date. The Final Terms may specify one or more additional or alternative call commencement dates on or after which the Notes may be called before their stated maturity.
Put Option	If specified in the Final Terms, the Notes may provide each Noteholder with the right to require the Issuer to redeem such Noteholder's Notes, in whole but not in part, by written notice to the Issuer prior to a nominated Interest Payment Date. Upon the Noteholder exercising such right, the Issuer will be required to redeem the Notes on the following Interest Payment Date at par plus accrued and unpaid interest thereon. Unless the Final Terms specifies one or more nominated Interest Payment Dates, the Noteholder will not be entitled to require the Issuer to redeem the Notes before their stated maturity.
Retained Notes	If specified in the Final Terms that "GS Retained Notes" is applicable, for so long as any Notes of that Series are held by the Issuer, the required collateral amount for that Series will be reduced proportionally by the amount of the Notes held by the Issuer, such Issuer-held Notes will not benefit from the security granted by the Issuer over the Collateral, and the Issuer waives its right to payment from the proceeds of enforcement against the Collateral. Additionally, the aggregate principal amount of the Notes that are held by the Issuer will not be considered when determining whether any voting or quorum thresholds are met in respect of the approval of any resolution at a meeting of the Noteholders, or for the approval of a written resolution.
Redemption Linked Notes	Redemption Linked Notes are Notes for which the final (or other) redemption amount is calculated by reference to the performance of one or more underlying assets, including shares or equity indices. Holders of Redemption Linked Notes should be aware that the performance of such underlying assets during the terms of their Notes may vary significantly from past performance, and any such variation will affect the return on their Notes. Additionally, holders of Redemption Linked Notes should understand that their holding of the Notes will not confer any rights of ownership in the underlying assets, including any voting rights or rights to receive dividends or other distributions.
Share Linked Notes	If specified in the relevant Final Terms, the payment of the final redemption amount (including, if applicable, any interest accrued or any additional amount) in respect of a Series of Structured Notes will be calculated by reference to the performance of a share or a basket of shares. The shares of companies that are referenced by such Notes will be traded on a stock exchange and the prices of such shares will be published on recognised information services, for example, Bloomberg or Reuters screens.

If specified in the relevant Final Terms, the payment of the final redemption amount in respect of a Series of Structured Notes will be calculated by reference to the performance of an exchange traded fund. The prices of the shares of such exchange traded funds will be published on recognised information services, for example, Bloomberg or Reuters screens.

However, holders of Share Linked Notes should be aware that the return on the Notes will not be linked to dividends or any other distributions paid on the shares or exchange traded funds.

Index Linked Notes

If specified in the relevant Final Terms, the payment of the final redemption amount (including, if applicable, any interest accrued or any additional amount) in respect of a Series of Structured Notes will be calculated by reference to the performance of an equity index that references a synthetic portfolio of shares representing a particular market or portion of it or a basket of indices.

Equity indices that are referenced by the Notes will be either: (i) a unitary index, where the underlying shares are deemed to trade on a single stock exchange; or (ii) a multi-exchange index, where the underlying shares are deemed to trade on more than one stock exchange. In each case, the level of such an equity index will be published on a recognised information service.

If specified in the relevant Final Terms, the payment of the final redemption amount in respect of a Series of Structured Notes will be calculated by reference to the performance of futures, options or other derivatives contract relating to an equity index. The prices of such futures, options or other derivatives contracts will be published on a recognised information service.

Extension Option

In respect of any Series of Extendible Notes, and if specified in the Final Terms, the Issuer may elect to extend the Maturity Date of the Notes to one of the dates specified in the Final Terms as Extended Maturity Dates (each an "**Extended Maturity Date**") by delivery of a notice (the "**Extension Notice**") to the relevant Clearing System (through the Principal Paying Agent) on the date specified in the Final Terms for the relevant Extended Maturity Date (each, an "**Extension Notice Date**") by no later than 12:00 p.m. (London time) on such date. The Principal Paying Agent shall deliver any Extension Notice received from the Issuer to the relevant Clearing System no later than 5:00 p.m. (London time) on the same Business Day on which the Extension Notice is received by the Principal Paying Agent.

The Extension Notice shall state:

- that the Issuer is electing to extend the Maturity Date;
- the Series of Extendible Notes being extended;
- the Extended Maturity Date;
- the applicable Exercise Deadline (as defined below);
- the relevant Extension Effective Time (as defined below);
- the relevant Extension Implementation Date, which will be five Business Days after the Exercise Deadline or such other date

specified in the Final Terms (the "**Extension Implementation Date**");

- the Extended Interest Rate (as defined below); and
- the form of Non-Extension Notice (as defined below).

The Noteholders have the option to block the extension of the Maturity Date in respect of all or a portion of the Notes of the relevant Series (the "**Non-Extension Option**"), provided that the Noteholders deliver a duly completed notice (a "**Non-Extension Notice**"), in the form annexed to the applicable Extension Notice, to the relevant Clearing System for communication by the relevant Clearing System through the Principal Paying Agent to the Issuer, which such Non-Extension Notice must be delivered to the office of the relevant Clearing System during its usual business hours and on or before 5:00 pm London time (or such other time, if any, specified in the Extension Notice) by the cut-off date specified in the Extension Notice (the "**Exercise Deadline**"). There will be a minimum of 10 Business Days between any Extension Notice Date and the date of the applicable Exercise Deadline (the "**Non-Extension Exercise Period**") for the corresponding Non-Extension Notice, unless otherwise permitted by the relevant Clearing System. In respect of any Notes for which no Non-Extension Notice has been served (or for which any such notice has been revoked) within the Non-Extension Exercise Period, the Extended Maturity Date will be effective and apply to the relevant Notes from the closure of the Non-Extension Exercise Period on the Exercise Deadline (or on such date and at such time as otherwise specified in the Final Terms) (the "**Extension Effective Time**"). The Noteholders may exercise their Non-Extension Option in respect of all or any portion of the Notes for which an Extension Notice has been validly delivered provided that any portion of the Notes of such Series in respect of which the Non-Extension Option is not being exercised shall have an aggregate principal amount which is not less than, and is a multiple of, the Minimum Denomination for such Series.

Upon delivery to the relevant Clearing System, a Non-Extension Notice shall be revocable until the applicable Exercise Deadline, at which time such notice will become irrevocable and binding upon the beneficial owners of interests in the relevant Notes or any transferee of such Notes to which the Non-Extension Notice applies.

The Issuer may not extend the Maturity Date of a Series of Extendible Notes beyond the Final Maturity Date specified in the Final Terms for that Series.

In the event that Noteholders exercise the Non-Extension Option in respect of all of the Notes of the relevant Series, all such Notes of that Series will be redeemed on the then-current Maturity Date. In the event that Noteholders exercise the Non-Extension Option in respect of a portion of the Notes of the relevant Series, the Notes in respect of which the Non-Extension Option has been exercised will be redeemed on the then-current Maturity Date.

Upon the exercise of a Non-Extension Option in relation to a portion of the Notes of the relevant Series, and at the expense of the Issuer, the Issuer shall execute a new Global Registered Note in exchange for the Notes in respect of which the Non-Extension Option has been exercised, and the Registrar shall authenticate such new Global Registered Note and make it available for delivery to the relevant Clearing Systems on

behalf of the relevant beneficial owners of the Notes in respect of which the Non-Extension Option has been exercised, where such new Global Registered Note will be on the same terms, but with an aggregate principal amount (the "**Non-Extended Principal Amount**") equal to the Notes in respect of which the Non-Extension Option has been exercised. Each such new Global Registered Note must have an aggregate principal amount equal to the applicable Minimum Denomination or an integral multiple thereof; and with respect to any new Global Registered Notes issued under the NSS, the Registrar through the Common Service Provider shall instruct the Common Safekeeper to, and the Common Safekeeper shall, effectuate such Global Registered Note. The Notes represented by such new Global Registered Note will specify that "Extension Option" is not applicable, will have a separate ISIN and a separate Common Code from the Notes of the same Series for which the Non-Extension Option was not exercised and their maturity date will be the then-current Maturity Date.

Where Noteholders have exercised the Non-Extension Option in relation to some but not all of the Notes of a Series that are admitted to trading on the regulated market or the Global Exchange Market of Euronext Dublin, the Notes for which the Non-Extension Option has been exercised will cease to be admitted to trading from the relevant Extension Effective Time, and such Notes would only be re-admitted to trading on such market upon the Issuer making a new application to have such Notes admitted to trading, which is unlikely to occur in many cases.

If Issuer fails to deliver an Extension Notice on an Extension Notice Date to the relevant Clearing System, the then-current Maturity Date shall not be extended for any Notes of the relevant Series and such Notes will be redeemed on the then-current Maturity Date.

If Noteholders do not deliver or revoke, as applicable, a Non-Extension Notice prior to the applicable Exercise Deadline, the Extension Notice for the relevant Extended Maturity Date will be effective legally from the Exercise Deadline and the Maturity Date for the relevant Notes shall be extended automatically to the relevant Extended Maturity Date, interest (where applicable) will continue to accrue on the Notes at the Extended Interest Rate and shall be payable on each Interest Payment Date as specified in the Final Terms until the applicable Extended Maturity Date.

If the Issuer exercises an Extension Option and the Noteholders exercise their Non-Extension Option in respect of any Notes in that Series, such unextended Notes will be non-transferable in the period between the relevant Exercise Deadline and the relevant Extension Implementation Date. This transfer restriction will not apply to Notes of the same Series in respect of which the Noteholders have not exercised their Non-Extension Option.

In respect of a Series of Extendible Notes, neither an election by the Issuer to extend the maturity of such Notes, nor any election by beneficial owners of interests in such Notes not to exercise their Non-Extension Option, shall be deemed a modification, amendment or supplement of the Notes for the purposes of the Trust Deed.

Issue Price

The Notes will be sold at the price specified in the Final Terms.

Interest

The Notes may be issued on a fixed rate or a floating rate basis, or without accrual of any interest, as specified in the relevant Final Terms.

COLLATERAL

Collateral securing the Notes and the various types of Collateral

The Notes of each Series are secured by the Collateral. The Collateral may be divided into two broad categories: (a) "Trust Deed Collateral", i.e., the collateral granted pursuant to the Trust Deed, and (b) "Additional Collateral", i.e., the collateral granted pursuant to any Additional Security Agreement.

Trust Deed Collateral

Each Series will be separately secured by the Issuer's grant to the Trustee, pursuant to the Trust Deed, for the benefit of the Noteholders of such Series (other than the Issuer or any of its affiliates where the Issuer or such affiliates are Noteholders) of a first priority security interest in the Issuer's rights in certain assets and/or eligible transactions (which will be entered into using the proceeds from the issuance of each Series) and the assets acquired and/or subject to a security interest granted thereon to the Issuer. Those assets may include each of the categories set out below.

- (a) Any Eligible Securities of the Issuer held in a Securities Account opened solely with respect to such Series, held with The Bank of New York Mellon, London Branch, in its capacity as custodian pursuant to the GSI Securities Agreement, or with any other eligible custodian, and any payments related thereto. By instruction to the custodian (and provided the Trustee has not asserted exclusive control of the relevant Securities Account), the Issuer may substitute any existing Eligible Securities for any Series of Notes with other Eligible Securities from time to time, so long as the custodian determines that the aggregate value of the substitute Eligible Securities is not less than the aggregate value of the Eligible Securities being substituted. In addition, if, as of the end of any business day, the custodian determines that the adjusted value of the Eligible Securities plus any cash is greater than the required collateral amount, the Issuer will be entitled to instruct the custodian (including by use of a standing instruction) to return the excess Eligible Securities or cash to the Issuer, and the security interest in such Eligible Securities or cash will be released.

"Eligible Securities" means debt and equity securities and other instruments and intangible assets (including instruments representing the right to receive, purchase or subscribe to the foregoing or representing other rights or interests in the foregoing) held by the Issuer, as may be agreed from time to time by the Trustee, and which shall be from time to time delivered to or received by The Bank of New York Mellon, London Branch, in its capacity as custodian pursuant to the GSI Securities Agreement, or with any other eligible custodian, for deposit in the relevant Securities Account established in respect of a specified Series of Notes.

- (b) The assets purchased by, and subject to a security arrangement in favour of, the Issuer in transactions under any master repurchase agreement between the Issuer and an Eligible GS Entity entered into solely with respect to such Series and the Issuer's rights under such agreement (each a **"Repo"**).
- (i) Participation Interests in Bank Loans purchased or cash subject to a security arrangement or sold under a master

repurchase agreement entered into between the Issuer and an Eligible GS Entity solely with respect to such Series.

- (ii) Mortgage Loans purchased or cash subject to a security arrangement under a master repurchase agreement, entered into between the Issuer and an Eligible GS Entity solely with respect to such Series.
- (iii) Purchased Securities may include any fixed-income or equity security other than "margin stock" as defined under Regulation U promulgated by the Board of Governors of the U.S. Federal Reserve System, unless otherwise stated in the Final Terms.
- (c) The assets subject to a security arrangement in favour of the Issuer as collateral for any secured loan made by the Issuer to an Eligible GS Entity solely with respect to such Series and the Issuer's rights under such loan (each an "**Eligible Loan**"). One or more loans (each, a "**Loan Secured by Bank Loans**") made by the Issuer to an Eligible GS Entity (the "**Bank Loan Borrower**") that are secured by a first priority security interest in all of such borrower's rights in (i) a specified principal amount of each Pledged Bank Loan identified by such borrower from time to time, (ii) any proceeds of the foregoing, (iii) any allocated cash subject to a security arrangement to secure such loan, (iv) the Issuer's pro rata undivided interest in any Supplemental Assets of such borrower, and (v) any other securities or assets as may be identified by such borrower from time to time.
- (d) Any Eligible Investments purchased solely with respect to such Series.

"**Eligible Investments**" means certain specified investments as defined in the Trust Deed or Final Terms, including one or more of the following obligations or securities (a) Cash, (b) U.S. Government Obligations and (c) Qualified Foreign Government Obligations, and if issued by an affiliate of the Issuer, representing an obligation of an Eligible GS Entity, provided that no amount earned by the Issuer with respect to such investment may be subject to withholding tax, whereby the proceeds received from repurchases of assets under a repo or payments received under a secured loan, any currency swap transactions, any eligible securities, or any specified investments as set forth in the Trust Deed or Final Terms securing a Series are used to (a) purchase additional assets pursuant to a new or existing master repurchase agreement, (b) lend to an Eligible GS Entity under a new or existing secured loan (c) pending reinvestment in repos or secured loans, purchase any of the obligations, loans or other Eligible Investments (d) purchase Eligible Securities, which form security for a Series of Notes.

- (e) Any master agreements or stand-alone agreements, between the Issuer and a derivatives counterparty, relating to derivative transactions, regardless of governing law ("**Eligible Derivatives Agreements**"), including without limitation (a) any ISDA Master Agreement, (b) any Rahmenvertrag für Finanztermingeschäfte or Lander-Rahmenvertrag master agreement, and (c) any stand-alone or long-form confirmations of derivative transactions whether or not governed by an ISDA Master Agreement, in each case

including any amendments, annexes, schedules, credit support documents and confirmations relating to any of the foregoing pursuant to the GSI Derivatives Security Agreement.

- (f) Any Currency Swap Transaction entered into solely with respect to such Series and the Issuer's rights in any collateral which is the subject of a security arrangement to secure the obligations of the Swap Counterparty (as defined in the Conditions below).

Additional Collateral

In addition, any Series may be separately or additionally secured by the Issuer's grant to the Trustee, pursuant to any Additional Security Agreement, for the benefit of the Noteholders of such Series (other than the Issuer or any of its affiliates where the Issuer or such affiliates are Noteholders) of a first priority security interest in the Issuer's rights in certain other assets held by the Issuer. Those assets may include certain agreements relating to derivative transactions between the Issuer and a derivatives counterparty.

Eligible Custodian

In respect of any assets that constitute Collateral, the Issuer may enter into an Eligible Custody Agreement with an Eligible Custodian pursuant to which such assets may be held on behalf of the Issuer.

Currency Hedging Requirements

At the time of issuance of any Series of Notes, the Issuer may, in its sole discretion:

- (a) enter into a Currency Swap Agreement (as defined in the Conditions below), pursuant to which amounts of Note Currency and USD are exchanged, and apply the USD proceeds thereof to acquire the USD Collateral, or
- (b) apply an amount equal to the proceeds from the issuance of such Notes to acquire the Note Currency Assets (as defined in the Conditions below), under which the payment obligations owing to the Issuer are denominated and payable in the Note Currency to secure such Series of Notes.

The Issuer may subsequently terminate a Currency Swap Agreement entered into at issuance, in which case it will use all proceeds from the termination of such Currency Swap Agreement to acquire Note Currency Assets.

Financial Collateral Arrangement

If the collateral is financial collateral for the purposes of the Financial Collateral Arrangements (No 2) Regulations 2003, as amended (the "**FCARs**"), it is intended that the security arrangement in respect of the Notes will constitute a "financial collateral arrangement" under the FCARs. If the security arrangement does constitute a "financial collateral arrangement", certain statutory formalities will not apply to the arrangement and the relevant collateral taker will enjoy a number of benefits in an insolvency situation.

STRUCTURE OF THE PROGRAMME

Global Registered Note Provisions

Each Global Registered Note may be (a) issued under the Classic Safekeeping Structure ("**CSS**"), (b) issued under the NSS or (c) only in the case of a Note issued in reliance on the Private Placement Exemption, be deposited with a custodian for, and registered in the name of a nominee of, the Depository Trust Company ("**DTC**").

Global Registered Notes issued under the CSS shall be registered in the name of a common depositary (the "**Common Depositary**") for

Euroclear Bank SA/NV ("**Euroclear**") and Clearstream Banking, société anonyme ("**Clearstream**"), or a nominee of the Common Depositary and be delivered to the Common Depositary.

Global Registered Notes issued under the NSS will be registered in the name of a nominee of a common safekeeper (the "**Common Safekeeper**") for Euroclear or Clearstream. Notes issued under the NSS are intended upon issue to be deposited with the Common Safekeeper and registered in the name of a nominee of the Common Safekeeper, and thereby satisfy certain of the formal requirements for collateral to be recognised as Eurosystem eligible collateral. However, this does not necessarily mean that the Notes will be recognised as eligible collateral for Eurosystem monetary policy and intra-day credit operations by the Eurosystem, either upon issue or at any or all times during their life. Such recognition will depend upon the European Central Bank being satisfied that all Eurosystem eligibility criteria (including the formal requirements) have been met. Each Global Registered Note shall bear the appropriate legend, as set forth in the Trust Deed.

Transfer and Exchange of Notes

Global Registered Notes: The Global Registered Notes can be transferred in whole, but not partially. Such transfers are limited to a nominee of the Common Depositary or Common Safekeeper (in the case of Notes issued under the CSS or NSS, respectively) or to a successor of the Common Depositary or Common Safekeeper, as applicable, or such successor's nominee, or, only in the case of Notes issued in reliance on the Private Placement Exemption, a nominee of DTC. An owner of the beneficial interest in a Global Registered Note may, subject to the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, transfer all or part of such interest provided that (a) such transfer is not made to a U.S. person (as defined in Regulation S) or for the account or benefit of a U.S. person (as defined in Regulation S) and is effected through Euroclear or Clearstream in an offshore transaction (as defined in Regulation S), unless made within the U.S. to QIBs in reliance on the Private Placement Exemption through Euroclear, Clearstream or DTC and (b) such transferee shall be deemed to have made the applicable certifications set forth in the Trust Deed.

Beneficial interests in one Global Registered Note sold to QIBs in reliance on the Private Placement Exemption may generally be exchanged for interests in another Global Registered Note sold in offshore transactions to non-U.S. persons in reliance on Regulation S, and vice versa. Depending on the Global Registered Note to which the beneficial interests are being transferred, the Issuer or Trustee may require the seller to provide certain written certifications in the form provided in the Trust Deed. A beneficial interest in a Global Registered Note that is transferred to a person who takes delivery through another Global Registered Note will, upon transfer, become subject to any transfer restrictions and other procedures applicable to beneficial interests in the transferee Global Registered Note. Beneficial Interests in the Global Registered Notes may be exchanged for Definitive Registered Notes only under the limited circumstances described in the Trust Deed.

Minimum Denomination

The Minimum Denomination of each Note will be such amount as may be specified in the Final Terms relating to the Notes of a particular Series, save that the Minimum Denomination of each Note admitted to trading on a regulated market situated or operating within the EEA and/or offered to the public in an EEA state in circumstances which require the publication of a prospectus under the EU Prospectus Regulation will be

at least €100,000 (or, if the Notes are denominated in a currency other than euro, the equivalent amount in such currency).

Subscription and Sale

No registration or other action will be taken by the Issuer to permit any offering or sale of the Notes to any person in any jurisdiction where such action is required. Purchasers of the Notes will be required to give suitable representations to satisfy the Issuer that the sale of Notes to them will be lawful.

Rating

On or about the Issue Date, the Notes of a Series may be rated by one or more of Fitch, Moody's and S&P. Any change in a rating assigned by Fitch, Moody's or S&P to the senior unsecured debt securities of the Guarantor and/or the Issuer (where it is lower) is likely to result in a similar change in the rating (if any) assigned by such rating agency to the Notes. A security rating is not a recommendation to buy, sell or hold securities and may be subject to revision at any time.

Please refer to the disclosure on page 103 of this Base Prospectus for further details.

Listing

Where specified in the relevant Final Terms, application will be made either for: (a) a Series of Notes to be admitted to the Official List of the Euronext Dublin and traded on its regulated market; or (b) a Series of Notes to be admitted to the Official List of Euronext Dublin and traded on the Global Exchange Market of Euronext Dublin. Otherwise such Series of Notes shall be unlisted.

The Offering

The Notes will not be registered under the Securities Act. The Notes are being offered for sale to certain non-U.S. persons in offshore transactions in reliance on Regulation S or, within the U.S., to QIBs in reliance on the Private Placement Exemption.

Each purchaser of the Notes in reliance on Regulation S will be required to provide a representation letter to the Issuer that it is a non-U.S. person within the meaning of Regulation S and that it is purchasing its Notes in an offshore transaction as defined in Regulation S. Each purchaser of the Notes in reliance on the Private Placement Exemption will be required to provide a representation letter to the Issuer that it is a QIB and that it is purchasing its Notes in reliance on the Private Placement Exemption.

The Issuer may distribute the Notes from time to time in one or more transactions: (a) at a fixed price or prices, which may be changed from time to time; (b) at market prices prevailing at the time of sale; (c) at prices related to the prevailing market prices; or (d) at negotiated prices.

Clearing Systems

Unless otherwise specified in the Final Terms, the Notes shall be cleared through Euroclear and Clearstream, or through DTC (in respect of the latter, only in the case of Notes issued pursuant to the Private Placement Exemption).

Turkish Secured Notes

The Issuer may, from time to time, issue one or more Series of Notes ("**Turkish Secured Notes**"), the collateral in respect of which may consist in part of Eligible Securities held in securities accounts opened and maintained in Turkey (the "**Turkish Collateral**").

The Noteholders or the Trustee may, in accordance with the Trust Deed, appoint an agent or other representative (the "**Bondholder Representative**"), to, *inter alia*, administer the Turkish Collateral pursuant to the terms of an agency agreement (the "**Turkish Agency**").

Agreement"). The Turkish Collateral in respect of each Series of Turkish Secured Notes shall be pledged by the Issuer pursuant to a Turkish law-governed pledge agreement between the Issuer and the Bondholder Representative (the "**Turkish Pledge Agreement**").

If there is a default in respect of a Series of Turkish Secured Notes, the process of enforcement of the security interest in the collateral will vary depending on whether it is Turkish Collateral or collateral held in another Securities Account.

China Connect Secured Notes

The Issuer may, from time to time, issue Series of Notes, the collateral in respect of which may consist in part of any securities listed and traded on a China Connect Market, which may be traded by Hong Kong and international investors under China Connect (collectively "**China Connect Securities**").

In the case of the sale of the interests of the Issuer in any China Connect Securities any such sale will be limited by the restrictions affecting China Connect Securities at such time, which currently do not permit the transfer of any such China Connect Securities directly to the Trustee or any Noteholder. The Issuer has undertaken to maintain the appointment of a broker and ensure it has at all times irrevocable instructions to sell the China Connect Securities if the Trustee is enforcing the security created by the Supplemental Trust Deed. Only the proceeds of sale, after deduction of broker's fees and expenses, will be available for distribution to the Trustee on behalf of the Noteholders.

If there is a default in respect of a Series of Notes, the collateral for which includes China Connect Securities, the process of enforcement of the security interest in the collateral will be set out in the Supplemental Trust Deed.

Unless the context otherwise requires, the following defined terms shall have the meanings set out below:

"China Connect" means the securities trading and clearing links programme developed by The Stock Exchange of Hong Kong Limited, the Shanghai Stock Exchange, the Hong Kong Securities Clearing Company Limited and China Securities Depository and Clearing Corporation Limited for the establishment of mutual market access between the Stock Exchange of Hong Kong Limited and Shanghai Stock exchange and/or the securities trading and clearing links programme developed by The Stock Exchange of Hong Kong Limited, the Shenzhen Stock Exchange, the Hong Kong Securities Clearing Company Limited and China Securities Depository and Clearing Corporation Limited for the establishment of mutual market access between The Stock Exchange of Hong Kong Limited and Shenzhen Stock Exchange (as the case may be).

"China Connect Market" means the Shanghai Stock Exchange and/or the Shenzhen Stock Exchange (as the case may be).

OTHER CONSIDERATIONS

Events of Default

Each of the following will constitute an **"Event of Default"** for a Series:

- (a) Failure by the Issuer to pay interest on any Note of such Series when due and payable, which failure continues for 30 days, unless

the Guarantor has made a payment under the Guaranty applicable to such Series in the amount of such defaulted payment on or prior to such 30th day.

- (b) Failure by the Issuer to pay any applicable Redemption Amount of any outstanding Note of such Series when due and payable, and continuance of such failure for a period of five Business Days, unless the Guarantor shall have made a payment under the Guaranty applicable to such Series in the amount of such defaulted payment on or prior to the relevant payment date.
- (c) Failure by the Guarantor in making (i) any payment due under the Guaranty applicable to such Series in respect of a Redemption Amount of any Note of such Series, when and as the same shall become due and payable, or (ii) any payment due under the Guaranty in respect of interest on any outstanding Note of such Series, when and as the same shall become due and payable, and such default shall have continued for 30 days.
- (d) As of any date of determination, the aggregate value of the collateral securing such Series is less than the required value of collateral with respect to such Series, and such default continues for a period of four consecutive Collateral Business Days (as defined in the Conditions below) from and including the Collateral Business Day on which notice of such deficiency is provided to the Issuer by the Collateral Administrator in accordance with the Agency Agreement, unless such deficiency has been cured prior to the close of business on such fourth Collateral Business Day.
- (e) Solely in respect of Structured Notes for which the required amount of collateral is not equal to (i) the principal amount of such Notes, (ii) a specified percentage of the principal amount of such Notes or (iii) the principal amount of such Notes plus accrued interest, the failure of the Calculation Agent to deliver required instructions to the Collateral Administrator on any Collateral Business Day, and such failure continues for a period of four consecutive Collateral Business Days after notice of such failure has been given by the Trustee to the Calculation Agent.
- (f) Certain events of insolvency or bankruptcy, whether voluntary or not, with respect to the Issuer.

If an Event of Default (other than an Event of Default described in clause (f) above) has occurred and is continuing, the Trustee may declare, and, at the written direction of the holders of more than 50% of the outstanding principal amount of the Notes of the Series affected, shall declare, the Notes of such Series to be due and payable.

For Series with an Extension Option, if an Event of Default described in clause (a) or (b) above occurs the Trustee may declare, and at the written direction of the holders of more than 50% of the outstanding principal amount of the Notes affected by such Event of Default, shall declare, the Notes of such Series to be due and payable. The Notes affected by such Event of Default could be fewer than all the Notes of such Series where the Extension Option has been exercised in respect of some (but not all) of the Notes of such Series, with the result that a payment default by the Issuer affects only the unextended Notes of such Series. Accordingly, the holders of such extended Notes that are not affected by such Event of

Default would not be involved in any such direction to the Trustee to declare the Notes of such Series to be due and payable.

If an Event of Default described in clause (f) above occurs, all outstanding Notes of all Series under the Trust Deed shall automatically become due and payable.

If there is an acceleration following an Event of Default, as described above, whereby the Notes of a Series (or of all Series) become due and payable, the Trustee will have the right to demand that the Issuer transfer to the Trustee any Collateral in respect of the affected Series that is not in the possession of the Trustee and sell or cause the sale of such Collateral received from the Issuer and all other collateral in its possession at public or private sales.

Redemption of Affiliate Notes If any Notes of a Series for which "Extension Option" is specified as applicable in the relevant Final Terms are held or beneficially owned by an affiliate of the Issuer, the Issuer will have the right pursuant to the Trust Deed to redeem such Notes without offering to redeem, or prior to redeeming, Notes held or beneficially owned by any other holders. Notes of a Series held by an affiliate of the Issuer will not be considered "outstanding" for purposes of any request, demand, authorisation, direction, notice, consent or waiver under the Trust Deed, as more fully set forth therein.

Certain Tax Considerations Payments of principal and interest in respect of the Notes will be made free of United Kingdom withholding taxes and United States withholding taxes, unless such deductions are required by law. In the event such withholding tax applies, the Issuer will not gross up or otherwise pay additional amounts. For a summary of the United Kingdom and United States tax analysis, among others, see "Taxation" on pages 308 – 325 of this Base Prospectus.

ERISA Considerations Placement of the Notes will be restricted to persons that are not acting on behalf of (and for so long as it holds any Note or any interest therein will not be acting on behalf of) (1) an "employee benefit plan" (as defined in Section 3(3) of the U.S. Employee Retirement Income Security Act of 1974, as amended ("**ERISA**") that is subject to Title I of ERISA, (2) a "plan" (as defined in Section 4975(e)(1) of the U.S. Internal Revenue Code 1986 (the "**Internal Revenue Code**") to which Section 4975 of the Internal Revenue Code applies, (3) an entity whose underlying assets include the assets of such an "employee benefit plan" or "plan", or (4) a non-U.S., governmental or church plan that is subject to any non-U.S., federal, state or local law that is similar to the applicable provisions of ERISA or the Internal Revenue Code with respect to the treatment of plan assets or prohibited transactions.

Governing Law The Trust Deed, the Agency Agreement and the Notes will be governed by and construed in accordance with the laws of England and Wales. The Guaranty will be governed by the laws of the State of New York.

Certain Risk Factors Investment in the Notes of a Series may involve a certain degree of risk. See "*Risk Factors*" on pages 25 - 87 of this Base Prospectus. The Issuer is part of the group of companies ("**Goldman Sachs**") comprising GS Group and its consolidated subsidiaries, and may be affected by uncertain or unfavourable economic, market, legal and other conditions that are likely to affect Goldman Sachs as a whole, including GS Group's ability to perform its payment obligations as a Guarantor. A description of certain risks relating to GS Group can be found in GS Group's 2023 Form

10-K, Part I, Item 1A in the section titled "Risk Factors" on pages 31-59, both of which are incorporated by reference herein. These risks remain subject to any update or modification to risks referenced in Guarantor filings made with the United States Securities and Exchange Commission (the "**SEC**") subsequent to the date of this Base Prospectus.

Additional Notes

The Trust Deed permits the Issuer to issue additional Notes of a Series at any time, provided that such Notes rank *pari passu* with outstanding Notes of the same Series.

Benchmarks

Amounts payable under the Notes may be calculated or otherwise determined by reference to a reference rate, an index or a price source.

If any such reference rate, index or price source constitutes a benchmark as defined under the EU Benchmarks Regulation then (as applicable) (a) the Final Terms will, or (b) the Pricing Supplement may, indicate whether or not the benchmark is provided by an administrator included in the ESMA Register.

If any such reference rate, index or price source constitutes a benchmark as defined under the UK Benchmarks Regulation then the Final Terms may indicate whether or not the benchmark is provided by an administrator included in the UK Benchmarks Register.

Not every reference rate, index or price source will fall within the scope of the Benchmarks Regulations. The European Money Markets Institute (the administrator of EURIBOR) is included in the UK Benchmarks Register as well as the ESMA Register. The registration status of any administrator under the Benchmarks Regulations is a matter of public record and, save where required by applicable law, the Issuer does not intend to update the relevant Final Terms to reflect any change in the registration status of any such administrator.

RISK FACTORS

This Base Prospectus does not describe all of the risks of an investment in the Notes and such risks may change from time to time. Neither the Issuer nor the Guarantor makes any representations as to (i) the suitability of any Notes for any particular Investor, (ii) the appropriate accounting treatment or possible tax consequences of an investment in any Notes or (iii) the expected performance of any Notes, either in absolute terms or relative to competing investments. Prospective Noteholders should obtain their own independent accounting, tax and legal advice and should consult their own professional investment advisor to ascertain the suitability of the Notes as an investment and should conduct such independent investigation and analysis regarding the risks and cash-flows associated with the Notes as they deem appropriate to evaluate the merits and risks of an investment in the Notes.

In particular, prospective Noteholders should note that an investment in the Notes is only suitable for persons who (i) have the knowledge and experience in financial and business matters necessary to enable them to evaluate the information contained in the Base Prospectus and Final Terms and the risks of the Notes in the context of their own financial, tax and regulatory circumstances and investment objectives; (ii) are able to bear the economic risk of an investment in the Notes for an indefinite period of time; (iii) are acquiring the Notes for their own account for investment, not with a view to resale and (iv) recognise it may not be possible to transfer the Notes for a substantial period of time, if at all. For the avoidance of doubt, nothing in this paragraph shall be deemed to limit the Issuer's obligations to supplement this Base Prospectus in accordance with Article 23(1) of the EU Prospectus Regulation.

1. RISKS RELATED TO THE ISSUER

GSI faces a variety of risks that are substantial and inherent in its businesses. The principal risks and uncertainties that GSI faces are: market risk, liquidity risk, credit risk, operational risk, legal and regulatory risk, competition risk, and market developments and general business environment risk.

1.1 Liquidity Risks

(a) ***GSI's liquidity, profitability and businesses may be adversely affected by an inability to access the debt capital markets or to sell assets***

Liquidity is essential to GSI's businesses. It is of critical importance to GSI, as most of the failures of financial institutions have occurred in large part due to insufficient liquidity. GSI's liquidity may be impaired by an inability to access secured and/or unsecured debt markets, an inability to access funds from GS Group or other GS Group affiliates, an inability to sell assets or redeem investments, lack of timely settlement of transactions, or other unforeseen outflows of cash or collateral. This situation may arise due to circumstances that GSI may be unable to control, such as a general market or economic disruption or an operational problem that affects third parties or GSI or its affiliates or even by the perception among market participants that GSI, or other market participants, are experiencing greater liquidity risk.

GSI employs structured products to benefit its clients and hedge its own risks. The financial instruments that GSI holds and the contracts to which it is a party are often complex, and these complex structured products often do not have readily available markets to access in times of liquidity stress. GSI's investing and financing activities may lead to situations where the holdings from these activities represent a significant portion of specific markets, which could restrict liquidity for GSI's positions.

Further, GSI's ability to sell assets may be impaired if there is not generally a liquid market for such assets, as well as in circumstances where other market participants are seeking to sell similar otherwise generally liquid assets at the same time, as is likely to occur in a liquidity or other market crisis or in response to changes to rules or regulations. For example, in 2021, an investment

management firm with large positions with several financial institutions defaulted, resulting in rapidly declining prices in the securities underlying those positions. In addition, clearing houses, exchanges and other financial institutions with which GSI interacts may exercise set-off rights or the right to require additional collateral, including in difficult market conditions, which could further impair GSI's liquidity.

Numerous regulations impose stringent liquidity requirements on large financial institutions, including GSI. These regulations require GSI to hold large amounts of highly liquid assets and reduce GSI's flexibility to source and deploy funding.

- (b) ***GSI's businesses have been and may in the future be adversely affected by disruptions or lack of liquidity in the credit markets, including reduced access to credit and higher costs of obtaining credit***

Widening credit spreads for GSI or GS Group, as well as significant declines in the availability of credit, have in the past adversely affected GSI's ability to borrow on a secured and unsecured basis and may do so in the future. GSI obtains the majority of its unsecured funding indirectly from GS Group, which funds itself on an unsecured basis by primarily issuing long-term debt, by raising deposits at its bank subsidiaries and by issuing hybrid financial instruments. GSI seeks to finance many of its assets on a secured basis. Any disruptions in the credit markets may make it harder and more expensive to obtain funding for businesses. If GSI's available funding is limited or GSI is forced to fund operations at a higher cost, these conditions may require curtailment of business activities and increase the cost of funding, both of which could reduce profitability, particularly in businesses that involve investing and market making.

GSI's clients engaging in mergers, acquisitions and other types of strategic transactions often rely on access to the secured and unsecured credit markets to finance their transactions. A lack of available credit or an increased cost of credit can adversely affect the size, volume and timing of clients' mergers and acquisitions transactions, particularly large transactions, and adversely affect GSI's advisory and underwriting businesses.

GSI's credit businesses have been and may in the future be negatively affected by a lack of liquidity in credit markets. A lack of liquidity reduces price transparency, increases price volatility and decreases transaction volumes and size, all of which can increase transaction risk or decrease the profitability of these businesses.

- (c) ***Reductions in GSI's and/or GS Group's credit ratings or an increase in its credit spreads may adversely affect its liquidity and cost of funding***

GSI is an indirect, wholly-owned operating subsidiary of GS Group and depends on GS Group for capital and funding. The credit ratings of GSI and those of GS Group are important to GSI's liquidity. A reduction in GSI's and/or GS Group's credit ratings could adversely affect GSI's liquidity and competitive position, increase borrowing costs, limit access to the capital markets or funding from GS Group or trigger obligations under certain provisions in some trading and collateralised financing contracts. Under these provisions, counterparties could be permitted to terminate contracts with GSI or GS Group or require additional collateral. Termination of trading and collateralised financing contracts could cause losses and impair liquidity by requiring GS Group or GSI to find other sources of financing or to make significant cash payments or securities movements.

GSI's cost of obtaining long-term unsecured funding is directly related to both the credit spreads (the amount in excess of the interest rate of benchmark securities that GSI or GS Group (as applicable) need to pay) of GSI and GS Group increases in the credit spreads of GSI and/or GS Group can significantly increase the cost of this funding. Changes in credit spreads are continuous, market-driven, and subject at times to unpredictable and highly volatile movements. The credit spreads of GSI and/or GS Group are also influenced by market perceptions of GSI's and/or GS Group's creditworthiness and movements in the costs to purchasers of credit default swaps

referenced to GS Group's long-term debt. The market for credit default swaps has proven to be extremely volatile and at times has lacked a high degree of transparency or liquidity.

1.2 Market Risks

(a) ***GSI's businesses have been and may in the future be adversely affected by conditions in the global financial markets and broader economic conditions***

GSI's businesses, by their nature, do not produce predictable earnings and are materially affected by conditions in the global financial markets and economic conditions generally, both directly and through their impact on client activity levels and creditworthiness. These conditions can change suddenly and negatively.

GSI's financial performance is highly dependent on the environment in which its businesses operate. A favourable business environment is generally characterised by, among other factors, high global gross domestic product growth, regulatory and market conditions that result in transparent, liquid and efficient capital markets, low inflation, business, consumer and investor confidence, stable geopolitical conditions and strong business earnings.

Unfavourable or uncertain economic and market conditions can be caused by: low levels of or declines in economic growth, business activity or investor, business or consumer confidence; concerns over a potential recession; changes in consumer spending or borrowing patterns; pandemics; limitations on the availability or increases in the cost of credit and capital; illiquid markets; increases in inflation, interest rates, exchange rate or basic commodity price volatility or default rates; high levels of inflation or stagflation; concerns about U.S. and other sovereign defaults; uncertainty concerning fiscal or monetary policy, government shutdowns, debt ceilings or funding; the extent of and uncertainty about potential changes in tax rates and regulatory changes; limitations on international trade and travel; changes in immigration policies; laws and regulations that limit trading in, or the issuance of, securities of issuers outside their domestic markets; outbreaks or worsening of domestic or international tensions or hostilities, terrorism, nuclear proliferation, cybersecurity threats or attacks and other forms of disruption to or curtailment of global communication, energy transmission or transportation networks or other geopolitical instability or uncertainty; corporate, political or other scandals that reduce investor confidence in capital markets; extreme weather events or other natural disasters; or a combination of these or other factors.

The financial services industry and the securities and other financial markets have been materially and adversely affected in the past by significant declines in the values of nearly all asset classes, by a severe lack of liquidity and by high levels of borrower defaults. In addition, concerns about actual or potential increases in interest rates, inflation and other borrowing costs, a public health emergency, sovereign debt risk and its impact on the relevant sovereign banking system, and limitations on international trade, have, at times, negatively impacted the levels of client activity.

General uncertainty about economic, political and market activities, and the scope, timing and impact of regulatory reform, as well as weak consumer, investor and chief executive officer confidence resulting in large part from such uncertainty, has in the past negatively impacted client activity, which has in the past adversely affected and could in the future adversely affect many of GSI's businesses. Periods of low volatility and periods of high volatility combined with a lack of liquidity, have at times had an unfavourable impact on GSI's market-making businesses.

Changes, or proposed changes, to U.S. international trade and investment policies, particularly with important trading partners, have in recent years negatively impacted financial markets. Continued or escalating tensions may result in further actions taken by the U.S. or other countries that could disrupt international trade and investment and adversely affect financial markets. Those actions could include, among others, the implementation of or increase in sanctions, tariffs or foreign exchange measures, the large-scale sale of U.S. Treasury securities or other restrictions on cross-border trade, investment, or transfer of information or technology. Such developments have in the past affected and could in the future adversely affect GSI or GSI's clients' businesses.

Financial institution returns may be negatively impacted by increased funding costs due in part to the lack of perceived government support of such institutions in the event of future financial crises relative to financial institutions in countries in which governmental support is maintained. In addition, liquidity in the financial markets has in the past been, and could in the future be negatively impacted as market participants and market practices and structures adjust to evolving regulatory frameworks.

In 2023, the U.S. federal government suspended the federal debt limit. In January 2025, the federal debt limit was reinstated. A default by the U.S. could result in unprecedented market volatility and illiquidity, heightened operational risks relating to the clearance and settlement of transactions, margin and other disputes with clients and counterparties, an adverse impact to investors including money market funds that invest in U.S. Treasuries, downgrades in the U.S. credit rating, further increases in interest rates and borrowing costs and a recession in the U.S. or other economies. Continued uncertainty relating to the debt ceiling could result in downgrades of the U.S. credit rating, which could adversely affect market conditions, lead to margin disputes, increases in interest rates and borrowing costs and necessitate significant operational changes among market participants, including us. A downgrade of the U.S. federal government's credit rating could also materially and adversely affect the market for repurchase agreements, securities borrowing and lending, and other financings typically collateralised by U.S. Treasury or agency obligations. Further, the fair value, liquidity and credit ratings of securities issued by, or other obligations of, agencies of the U.S. government or related to the U.S. government or its agencies, as well as municipal bonds could be similarly adversely affected. An increasing frequency of government shutdowns, or near shutdowns, in the U.S. could also lead to uncertainty as to the continued funding of the U.S. government, which could, in turn, adversely affect the credit ratings of the U.S. and the market for U.S. Treasury or agency obligations.

Election outcomes such as the 2024 U.S. presidential election could also have adverse effects on GSI or the business environment in which GSI operates more generally. For example, the current U.S. presidential administration has imposed or increased tariffs, including on imports from China, and proposed imposing or increasing tariffs on U.S. trading partners, which could adversely affect markets, the business environment and some of GSI's businesses.

- (b) ***GSI's businesses have been and may in the future be adversely affected by declining asset values, particularly where GSI has net "long" positions, receives fees based on the value of assets managed, or receives or posts collateral***

Many of GSI's businesses have net "long" positions in debt securities, loans, derivatives, mortgages, equities (including private equity) and most other asset classes. These include positions taken when GSI acts as a principal to facilitate clients' activities, including exchange-based market-making activities, or commits large amounts of capital to maintain positions in interest rate and credit products, as well as through currencies, commodities, equities and mortgage-related activities. In addition, GSI invests in similar asset classes. Substantially all of GSI's investing and market-making positions are marked-to-market on a daily basis and declines in asset values directly and immediately impact earnings, unless GSI has effectively "hedged" its exposures to those declines.

In certain circumstances, it may not be possible or economic for GSI to hedge its exposures and, to the extent that this is done, the hedge may be ineffective or may greatly reduce GSI's ability to profit from increases in the values of the assets. This is particularly the case for credit products, private equities or other securities that are not freely tradable or lack established and liquid trading markets. Sudden declines and significant volatility in the prices of assets have in the past substantially curtailed or eliminated, and may in the future substantially curtail or eliminate, the trading markets for certain assets, which may make it difficult to sell, hedge or value such assets. GSI may incur losses from time to time as trading markets deteriorate or cease to function, including with respect to securities offerings GSI has underwritten. The inability to sell or effectively hedge

assets reduces GSI's ability to limit losses in such positions and the difficulty in valuing assets has in the past negatively affected, and may in the future negatively affect, GSI's capital, liquidity or leverage ratios, its funding costs and its ability to deploy capital.

In GSI's exchange-based market-making activities, GSI is obligated by stock exchange rules to maintain an orderly market, including by purchasing securities in a declining market. In markets where asset values are declining and in volatile markets, this results in losses and an increased need for liquidity.

GSI posts collateral to support its obligations and receives collateral that supports the obligations of clients and counterparties. When the value of the assets posted as collateral or the credit ratings of the party posting collateral decline, the party posting the collateral may need to provide additional collateral or, if possible, reduce its trading position. An example of such a situation is a "margin call" in connection with a brokerage account. Therefore, declines in the value of asset classes used as collateral mean that either the cost of funding positions is increased or the size of positions is decreased. If GSI is the party providing collateral, this can increase costs and reduce profitability and if GSI is the party receiving collateral, this can also reduce profitability by reducing the level of business done with clients and counterparties.

In addition, volatile or less liquid markets increase the difficulty of valuing assets, which can lead to costly and time-consuming disputes over asset values and the level of required collateral, as well as increased credit risk to the recipient of the collateral due to delays in receiving adequate collateral. In cases where GSI forecloses on collateral, sudden declines in the value or liquidity of the collateral have in the past resulted in and, may in the future result in, significant losses to GSI, especially where there is a single type of collateral supporting the obligation. In addition, GSI may be subject to claims that the foreclosure was not permitted under the legal documents, was conducted in an improper manner, including in violation of law, or caused a client or counterparty to incur significant losses or go out of business.

(c) ***GSI's market-making activities have been and may in the future be affected by changes in the levels of market volatility***

Certain of GSI's market-making activities depend on market volatility to provide trading and arbitrage opportunities to its clients, and decreases in volatility have reduced and may in the future reduce these opportunities and the level of client activity associated with them and have adversely affected and may in the future adversely affect the results of these activities. While increased volatility can increase trading volumes and spreads, it also increases risk as measured by Value-at-Risk (VaR) and increases risks in connection with GSI's market-making activities and can cause GSI to reduce its inventory. Limiting the size of GSI's market-making positions can adversely affect GSI's profitability. In periods when volatility is increasing, but asset values are declining significantly, it may not be possible to sell assets at all or it may only be possible to do so at steep discounts. In those circumstances, GSI has been and may in the future be forced to either take on additional risk or to realize losses in order to decrease its VaR. In addition, increases in volatility increase the level of GSI's RWAs, which increases the amount of capital that GSI is required to hold, and this can reduce GSI's profitability and reduce its ability to distribute capital to its shareholders.

(d) ***GSI's investment banking and client intermediation businesses have been adversely affected and may in the future be adversely affected by market uncertainty or lack of confidence among investors and chief executive officers due to declines in economic activity and other unfavourable economic, geopolitical or market conditions***

GSI's investment banking business has been and may in the future be adversely affected by market conditions. Poor economic conditions and other uncertain geopolitical conditions may adversely affect and have in the past adversely affected investor and CEO confidence, resulting in significant industry-wide declines in the size and number of underwritings and of advisory transactions, which

would likely have, and have in the past, had an adverse effect on GSI's revenues and profit margins. In particular, because a significant portion of GSI's investment banking revenues is derived from GSI's participation in large transactions, a decline in the number of large transactions has in the past and would in the future adversely affect GSI's investment banking business. Similarly, in recent years, cross-border initial public offerings and other securities offerings have accounted for a significant proportion of new issuance activity. Legislative, regulatory or other changes that limit trading in, or the issuance of, securities outside the issuers' domestic markets, that result in or could result in the delisting or removal of securities from exchanges or indices, have in the past adversely affected and would in the future adversely affect GSI's underwriting and client intermediation businesses. Furthermore, changes, or proposed changes, to international trade and investment policies of the U.S. and other countries could negatively affect market activity levels and GSI's revenues.

In certain circumstances, market uncertainty or general declines in market or economic activity may adversely affect GSI's client intermediation businesses by decreasing levels of overall activity or by decreasing volatility.

(e) ***Inflation has had, and could continue to have, a negative effect on GSI's business, results of operations and financial condition***

Inflationary pressures in recent years have affected economies, financial markets and market participants worldwide. Inflationary pressures in recent years have increased certain of GSI's operating expenses, and have adversely affected consumer sentiment and CEO confidence. Central bank responses to inflationary pressures in recent years have also resulted in higher market interest rates, which, in turn, have contributed to lower activity levels across financial markets, in particular for debt underwriting transactions and mortgage originations, and resulted in lower values for certain financial assets which have adversely affected GSI's equity and debt investments. Higher interest rates increase GSI's borrowing costs. If inflationary pressures increase, GSI's expenses may increase; activity levels for certain of GSI's businesses, in particular debt underwriting, may decline; GSI's interest expense could increase faster than GSI's interest income, reducing GSI's net interest income and net interest margin; certain of GSI's investments could incur losses or generally low levels of returns; assets under supervision could decline, reducing management and other fees; economies worldwide could experience recessions; and GSI could continue to operate in a generally unfavourable economic and market environment.

1.3 Credit Risks

(a) ***GSI's businesses, profitability and liquidity may be adversely affected by deterioration in the credit quality of or defaults by third parties***

GSI is exposed to the risk that third parties who owe money, securities or other assets will not perform their obligations. These parties may default on their obligations to GSI due to bankruptcy, lack of liquidity, operational failure or other reasons. A failure of a significant market participant, or even concerns about a default by such an institution, has in the past and could in the future lead to significant liquidity problems, losses or defaults by other institutions, which in turn could adversely affect GSI.

GSI is also subject to the risk that its rights against third parties may not be enforceable in all circumstances. In addition, deterioration in the credit quality of third parties whose securities or obligations are held by GSI, including a deterioration in the value of collateral posted by third parties to secure their obligations to GSI, including under derivative contracts and loan agreements, could result in losses and/or adversely affect GSI's ability to rehypothecate or otherwise use those securities or obligations for liquidity purposes.

A significant downgrade in the credit ratings of GSI's counterparties could also have a negative impact on GSI's results. While in many cases GSI is permitted to require additional collateral from

counterparties that experience financial difficulty, disputes may arise as to the amount of collateral GSI is entitled to receive and the value of pledged assets. The termination of contracts and the foreclosure on collateral may subject GSI to claims for the improper exercise of its rights. Default rates, downgrades and disputes with counterparties as to the valuation of collateral typically increase significantly in times of market stress, increased volatility and illiquidity.

As part of GSI's clearing and prime financing activities, GSI finances its clients' positions, and GSI could be held responsible for the defaults or misconduct of GS's clients. Default risk may arise from events or circumstances that are difficult to detect or foresee.

(b) ***Concentration of risk increases the potential for significant losses in GSI's market-making, underwriting, investing and financing activities***

Concentration of risk increases the potential for significant losses in market-making, underwriting, investing and financing activities. The number and size of these transactions has affected and may in the future affect GSI's results of operations in a given period. Moreover, because of concentrated risk, GSI may suffer losses even when economic and market conditions are generally favourable for its competitors. Disruptions in the credit markets can make it difficult to hedge these credit exposures effectively or economically.

In the ordinary course of business, GSI is at times subject to a concentration of credit risk to a particular counterparty, borrower, issuer (including sovereign issuers) or geographic area or group of related countries, such as the E.U., and a failure or downgrade of, or default by, such entity could negatively impact GSI's businesses, perhaps materially, and the systems by which GSI sets limits and monitors the level of its credit exposure to individual entities, industries, countries and regions may not function as anticipated. Regulatory reforms, including the European Market Infrastructure Regulation and the Dodd-Frank Wall Street Reform and Consumer Protection Act (the "**Dodd-Frank Act**") have led to increased centralisation of trading activity through particular clearing houses, agent banks or exchanges, which has significantly increased GSI's concentration of risk with respect to these entities. While GSI's activities expose it to many different industries, counterparties and countries, GSI routinely executes a high volume of transactions with counterparties engaged in financial services activities, including brokers and dealers, commercial banks, clearing houses, exchanges and investment funds. This has resulted in significant credit concentration with respect to these counterparties.

(c) ***Derivative transactions and delayed documentation or settlements expose GSI to credit risk, unexpected risks and potential losses***

GSI is party to a large number of derivative transactions, including credit derivatives. Many of these derivative instruments are individually negotiated and non-standardised, which can make exiting, transferring or settling positions difficult. Many credit derivatives require that GSI deliver to the counterparty the underlying security, loan or other obligation in order to receive payment. In a number of cases, GSI does not hold the underlying security, loan or other obligation and may not be able to obtain the underlying security, loan or other obligation. This could cause GSI to forfeit the payments due under these contracts or result in settlement delays with the attendant credit and operational risk, as well as increased costs to GSI.

Derivative transactions also involve the risk that documentation has not been properly executed, that executed agreements may not be enforceable against the counterparty, or that obligations under such agreements may not be able to be "netted" against other obligations with such counterparty. In addition, counterparties may claim that such transactions were not appropriate or authorized.

As a signatory to the International Swaps and Derivatives Association Universal Resolution Stay Protocol (the "**ISDA Universal Protocol**") and the International Swaps and Derivatives Association 2018 U.S. Resolution Stay Protocol (collectively, the "**ISDA Protocols**"), GSI may not be able to exercise termination rights and other remedies against counterparties and, as this regime has not

yet been tested, GSI may suffer risks or losses that it would not have expected to suffer if it could immediately close out transactions upon a termination event. The ISDA Protocols and these rules and regulations extend to repurchase agreements and other instruments that are not derivative contracts.

Derivative contracts and other transactions entered into with third parties are not always confirmed by the counterparties or settled on a timely basis. While the transaction remains unconfirmed or during any delay in settlement, GSI is subject to heightened credit and operational risk and in the event of a default may find it more difficult to enforce its rights.

In addition, as new complex derivative products are created, covering a wider array of underlying credit and other instruments, disputes about the terms of the underlying contracts could arise, which could impair GSI's ability to effectively manage its risk exposures from these products and subject it to increased costs. The provisions of legislation requiring central clearing of credit derivatives and other over-the-counter derivatives, or a market shift toward standardised derivatives, could reduce the risk associated with these transactions, but under certain circumstances could also limit GSI's ability to develop derivatives that best suit the needs of clients and to hedge its own risks, and could adversely affect GSI's profitability. In addition, these provisions have increased credit exposure to central clearing platforms.

1.4 Operational Risks

- (a) ***A failure in GSI's or third-party operational systems or human error, malfeasance or other misconduct, could impair its liquidity, disrupt its businesses, result in the disclosure of confidential information, damage its reputation and cause losses***

GSI's businesses are highly dependent on its ability to process and monitor, on a daily basis, a very large number of transactions, many of which are highly complex, and occur at high volumes and frequencies, across numerous and diverse markets in many currencies. These transactions, as well as the information technology services provided to clients, often must adhere to client-specific guidelines, as well as legal and regulatory standards.

Many rules and regulations worldwide govern GSI's obligations to execute transactions and report transactions and other information to regulators, exchanges and investors. Compliance with these legal and reporting requirements can be challenging, and GSI has been, and may in the future be, subject to regulatory fines and penalties for failing to follow these rules or to report timely, accurate and complete information in accordance with these rules.

As the volume, speed, frequency and complexity of transactions, especially electronic transactions (as well as the requirements to report such transactions on a real-time basis to clients, regulators and exchanges) increase, developing and maintaining GSI's operational systems and infrastructure has become more challenging, and the risk of systems or human error by GSI or GSI's third-party service providers in connection with such transactions has increased, as have the potential consequences of errors due to the speed and volume of transactions involved and the potential difficulty associated with discovering errors quickly enough to limit the resulting consequences. These risks are exacerbated in times of increased volatility.

GSI's financial, accounting, data processing or other operational systems and facilities have in the past not operated properly in certain respects and may in the future not operate properly or become disabled as a result of events that are wholly or partially beyond GSI's control, such as a spike in transaction volume or an operational disruption at a third-party service provider, adversely affecting GSI's ability to process these transactions or provide these services. GSI must continuously update GSI's systems to support its operations and growth and to respond to changes in regulations and markets, and invest heavily in systemic controls and training to pursue GSI's objective of ensuring that such transactions do not violate applicable rules and regulations or, due to errors in processing

such transactions, adversely affect markets, GSI's clients and counterparties or GSI. Enhancements and updates to systems, as well as the requisite training, including in connection with the integration of new businesses, entail significant costs and create risks associated with implementing new systems and integrating them with existing ones.

The use of computing devices, phones and other mobile devices is critical to the work done by GSI's employees and the operation of GSI's systems and businesses and those of its clients and third-party service providers and vendors. Their importance has continued to increase, for both GSI's regular operations and business continuity plans. Computers and computer networks are subject to various risks, including, among others, cyber attacks, inherent technological defects, system disruptions and failures and human error. For example, fundamental security flaws in computer chips found in many types of these computing devices and phones have been reported in the past and may occur in the future, and in July 2024 there was a widely publicised information technology outage as a result of a faulty update to a cybersecurity software product that affected many businesses worldwide. The use of personal devices by GSI's employees or by GSI's vendors for work-related activities also presents risks related to potential violations of record retention and other requirements. Cloud technologies are also critical to the operation of GSI's systems and platforms and GSI's reliance on cloud technologies is growing. Service disruptions have resulted, and may result in the future, in delays in accessing, or the loss of, data that is important to GSI's businesses and may hinder GSI's clients' access to GSI's platforms. There have been a number of widely publicised cases of outages in connection with access to cloud computing providers. Addressing these and similar issues could be costly and affect the performance of these businesses and systems. Applying fixes can introduce operational risks, and, despite the fixes, there may still be residual security risks.

Notwithstanding the proliferation of technology and technology-based risk and control systems, GSI's businesses ultimately rely on people as its greatest resource, and, from time to time, they have in the past and may in the future make mistakes or engage in violations of applicable policies, laws, rules or procedures that are not always caught immediately by GSI's technological processes or by GSI's controls and other procedures, which are intended to prevent and detect such errors or violations. These have in the past and may in the future include calculation errors, mistakes in addressing emails, errors in software or model development or implementation, or simple errors in judgment, as well as intentional efforts to ignore or circumvent applicable policies, laws, rules or procedures. Human errors, malfeasance and other misconduct, including the intentional misuse of client information in connection with insider trading or for other purposes, even if promptly discovered and remediated, has in the past resulted and may in the future result in reputational damage and losses and liabilities for GSI.

The majority of GSI's employees are based in London and work in close proximity to one another. They are subject to potential catastrophic events, including, but not limited to, terrorist attacks, extreme weather, or other hostile events that could negatively affect GSI's business. Notwithstanding GSI's efforts to maintain business continuity, business disruptions impacting GSI's offices and employees could lead to GSI's employees' inability to occupy the offices, communicate with or travel to other office locations or work remotely. As a result, GSI's ability to service and interact with clients may be adversely impacted, due to GSI's failure or inability to successfully implement business contingency plans.

- (b) ***A failure or disruption in GSI's infrastructure, or in the operational systems or infrastructure of third parties, could impair GSI's liquidity, disrupt GSI's businesses, damage GSI's reputation and cause losses***

GSI faces the risk of operational failure or significant operational delay, termination or capacity constraints of any of the clearing agents, exchanges, clearing houses or other financial intermediaries that it uses to facilitate securities and derivatives transactions, and as

interconnectivity with clients grows, GSI will increasingly face the risk of operational failure or significant operational delay with respect to clients' systems.

There has been significant consolidation among clearing agents, exchanges and clearing houses and an increasing number of derivative transactions are cleared on exchanges, which has increased GSI's exposure to operational failure or significant operational delay, termination or capacity constraints of the particular financial intermediaries that GSI uses and could affect GSI's ability to find adequate and cost-effective alternatives in the event of any such failure, delay, termination or constraint. Industry consolidation, whether among market participants or financial intermediaries, increases the risk of operational failure or significant operational delay as disparate complex systems need to be integrated, often on an accelerated basis.

The interconnectivity of multiple financial institutions with agent banks, exchanges and clearing houses, and the increased centrality of these entities, increases the risk that an operational failure at one institution or entity may cause an industry-wide operational failure that could materially impact GSI's ability to conduct business. Interconnectivity of financial institutions with other companies through, among other things, application programming interfaces or APIs presents similar risks. Any such failure, termination or constraint could adversely affect GSI's ability to effect transactions, service GSI's clients, manage GSI's exposure to risk or expand GSI's businesses or result in financial loss or liability to GSI's clients, impairment of GSI's liquidity, disruption of GSI's businesses, regulatory intervention or reputational damage.

Despite GSI's resiliency plans and facilities, its ability to conduct business may be adversely impacted by a disruption in the infrastructure that supports its businesses and the communities where GSI is located. This may include a disruption involving electrical, satellite, undersea cable or other communications, internet, transportation or other facilities used by GSI, its employees or third parties with which GSI conducts business, including cloud service providers. These disruptions may occur as a result of events that affect only GSI's buildings or systems or those of such third parties, or as a result of events with a broader impact globally, regionally or in the cities where those buildings or systems are located, including, but not limited to, natural disasters, war, civil unrest, terrorism, economic or political developments, pandemics and weather events.

In addition, although GSI seeks to diversify its third-party vendors to increase its resiliency, GSI is also exposed to the risk that a disruption or other information technology event at a common service provider to GSI's vendors could impede their ability to provide products or services to GSI, including in connection with GSI's new business initiatives. GSI may not be able to effectively monitor or mitigate operational risks relating to its vendors' use of common service providers.

Additionally, although the prevalence and scope of applications of distributed ledger technology, cryptocurrency and similar technologies is growing, the technology is nascent and may be vulnerable to cyber attacks or have other inherent weaknesses. GSI is exposed to risks, and may become exposed to additional risks, related to distributed ledger technology, including through GSI's facilitation of clients' activities involving financial products that use distributed ledger technology, such as blockchain, or other digital assets, GSI's investments in companies that seek to develop platforms based on distributed ledger technology, the use of distributed ledger technology by third-party vendors, clients, counterparties, clearing houses and other financial intermediaries, and the receipt of digital assets as collateral.

Market volatility of financial products using distributed ledger technology may increase these risks.

(c) ***The development and use of artificial intelligence (AI) present risks and challenges that may adversely impact GSI's business***

GSI or GSI's third-party vendors, clients or counterparties have in the past developed or incorporated, and may in the future develop or incorporate, AI technology in certain business processes, services or products. The development and use of AI present a number of risks and challenges to GSI's business. The legal and regulatory environment relating to AI is uncertain and

rapidly evolving, and includes regulation targeted specifically at AI as well as provisions in intellectual property, privacy, consumer protection, employment and other laws applicable to the use of AI. These evolving laws and regulations could require changes in GSI's implementation of AI technology and increase GSI's compliance costs and the risk of non-compliance. AI models, particularly generative AI models, may produce output or take action that is incorrect, that result in the release of private, confidential or proprietary information, that reflect biases included in the data on which they are trained, infringe on the intellectual property rights of others, or that is otherwise harmful. In addition, the complexity of many AI models makes it challenging to understand why they are generating particular outputs. This limited transparency increases the challenges associated with assessing the proper operation of AI models, understanding and monitoring the capabilities of the AI models, reducing erroneous output, eliminating bias and complying with regulations that require documentation or explanation of the basis on which decisions are made. Further, GSI may rely on AI models developed by third parties, and, to that extent, would be dependent in part on the manner in which those third parties develop and train their models, including risks arising from the inclusion of any unauthorized material in the training data for their models, and the effectiveness of the steps these third parties have taken to limit the risks associated with the output of their models, matters over which GSI may have limited visibility. Additionally, GSI is exposed to risks related to the use of AI technologies by third-party vendors, clients, counterparties, clearing houses and other financial intermediaries. Any of these risks could expose GSI to liability or adverse legal or regulatory consequences and harm GSI's reputation and the public perception of GSI's business or the effectiveness of GSI's security measures.

In addition to GSI's use of AI technologies, GSI is exposed to risks arising from the use of AI technologies by bad actors to commit fraud and misappropriate funds and to facilitate cyberattacks. Generative AI, if used to perpetrate fraud or launch cyberattacks, could result in losses, liquidity outflows or other adverse effects at a particular financial institution or exchange.

- (d) ***A failure to protect GSI's computer systems, networks and information, and its clients' information, against cyber attacks and similar threats could impair its ability to conduct its businesses, result in the disclosure, theft or destruction of confidential information, damage its reputation and cause losses***

GSI's operations rely on the secure processing, storage and transmission of confidential and other information in GSI's computer systems and networks and those of GSI's vendors. There have been a number of highly publicised cases involving financial services companies, consumer-based companies, software and information technology service providers, governmental agencies and other organisations reporting the unauthorized access or disclosure of client, customer or other confidential information in recent years, as well as cyber attacks involving the dissemination, theft and destruction of corporate information or other assets, as a result of inadequate procedures or the failure to follow procedures by employees or contractors or as a result of actions by third parties, including actions by foreign governments. There have also been a number of highly publicised cases where hackers have requested "ransom" payments in exchange for not disclosing customer information or for restoring access to information or systems.

GSI is regularly the target of attempted cyber attacks, including denial-of-service attacks, and must continuously monitor and develop its systems to protect the integrity and functionality of its technology infrastructure and access to and the security of its data. Further, the use of AI by cybercriminals may increase the frequency and severity of cybersecurity attacks against GSI or GSI's third-party vendors and clients. The use of employee-owned devices presents additional risks of cyber attacks, as do hybrid work arrangements. In addition, due to the interconnectivity with third-party vendors (and their respective service providers), agent banks, exchanges, clearing houses and other financial institutions, GSI could be adversely impacted if any of them is subject to a successful cyber attack or other information security event. These impacts could include the loss of access to information or services from the third party subject to the cyber attack or other

information security event or could result in unauthorised access to or disclosure of client, customer or other confidential information, which could, in turn, interrupt certain of GSI's businesses.

Despite GSI's efforts to ensure the integrity of its systems and information, it may not be able to anticipate, detect or implement effective preventive measures against all cyber threats, including because the techniques used are increasingly sophisticated, change frequently and are often not recognised until launched. Cyber attacks can originate from a variety of sources, including third parties who are affiliated with or sponsored by foreign governments or are involved with organised crime or terrorist organisations. Third parties may also attempt to place individuals in GSI's office or induce employees, clients or other users of GSI's systems to disclose sensitive information or provide access to GSI's data or that of its clients, and these types of risks may be difficult to detect or prevent.

Although GSI takes protective measures proactively and endeavours to modify them as circumstances warrant, its computer systems, software and networks may be vulnerable to unauthorised access, misuse, computer viruses or other malicious code, cyber attacks on GSI's vendors and other events that could have a security impact. Risks relating to cyber attacks on GSI's vendors have been increasing given the greater frequency and severity in recent years of supply chain attacks affecting software and information technology service providers. Due to the complexity and interconnectedness of GSI's systems, the process of enhancing protective measures can itself create a risk of systems disruptions and security issues. In addition, protective measures that GSI employs to compartmentalise its data may reduce its visibility into, and adversely affect its ability to respond to, cyber threats and issues within its systems.

If one or more of these types of events occur, it potentially could jeopardise GSI or its clients' or counterparties' or third parties' confidential and other information processed, stored in or transmitted through GSI's computer systems and networks, or otherwise cause interruptions or malfunctions in GSI's operations or those of its clients, its counterparties or third parties, which could impact their ability to transact with GSI or otherwise result in legal or regulatory action, significant losses or reputational damage. In addition, such an event could persist for an extended period of time before being properly detected or escalated, and, following detection or escalation, it could take considerable time for GSI to obtain full and reliable information about the extent, amount and type of information compromised. During the course of an investigation, GSI may not know the full impact of the event and how to remediate it, and actions, decisions and mistakes that are taken or made may further increase the negative effects of the event on GSI's business, results of operations and reputation. Moreover, regulations require GS Group to disclose information on a timely basis about material cybersecurity incidents, including those that may not have been resolved or fully investigated at the time of disclosure.

GSI has expended, and expects to continue to expend, significant resources on an ongoing basis to modify its protective measures and to investigate and remediate vulnerabilities or other exposures, but these measures may be ineffective and GSI may be subject to legal or regulatory action, as well as financial losses that are either not insured against or not fully covered through any insurance it maintains. Regulatory agencies have become increasingly focused on cybersecurity incidents.

GSI's confidential information may also be at risk from the compromise of clients' accounts, including as a result of a data security breach at an unrelated company. Losses due to unauthorised account activity could harm GSI's reputation and may have adverse effects on its business, financial condition and results of operations.

The increased use of mobile and cloud technologies heightens these and other operational risks, as can hybrid work arrangements. Certain aspects of the security of these technologies are unpredictable or beyond GSI's control, and the failure by mobile technology and cloud service providers to adequately safeguard their systems and prevent cyber attacks could disrupt GSI's operations and result in misappropriation, corruption or loss of confidential and other information.

In addition, there is a risk that encryption and other protective measures, despite their sophistication, may be defeated, particularly to the extent that new computing technologies, such as quantum computing, vastly increase the speed and computing power available.

GSI routinely transmits and receives personal, confidential and proprietary information by email and other electronic means. GSI has discussed and worked with clients, vendors, service providers, counterparties and other third parties to develop secure transmission capabilities and protect against cyber attacks, but does not have, and may be unable to put in place, secure capabilities with all of its clients, vendors, service providers, counterparties and other third parties and it may not be able to ensure that these third parties have appropriate controls in place to protect the confidentiality of the information. An interception, misuse or mishandling of personal, confidential or proprietary information being sent to or received from a client, vendor, service provider, counterparty or other third party could result in legal liability, regulatory action and reputational harm.

(e) ***GSI has incurred and may in the future incur losses as a result of ineffective risk management processes and strategies***

GSI seeks to monitor and control its risk exposure through a risk and control framework encompassing a variety of separate, but complementary financial, credit, operational, compliance and legal systems, internal controls, management review processes and other mechanisms. GSI's risk management process seeks to balance its ability to profit from market-making positions and underwriting activities with its exposure to potential losses. Whilst GSI employs a broad and diversified set of risk monitoring and risk mitigation techniques, those techniques and the judgements that accompany their application cannot anticipate every economic and financial outcome or the specifics and timing of such outcomes. Thus, in the course of its activities, GSI has incurred and may in the future incur losses. Market conditions in recent years have involved unprecedented dislocations and highlight the limitations inherent in using historical data to manage risk.

The models that GSI uses to assess and control its risk exposures reflect assumptions about the degrees of correlation or lack thereof among prices of various asset classes or other market indicators. In times of market stress or other unforeseen circumstances, previously uncorrelated indicators may become correlated, or conversely previously correlated indicators may move in different directions. These types of market movements have at times limited the effectiveness of GSI's hedging strategies and have caused it to incur significant losses, and they may do so in the future. These changes in correlation have been and may in the future be exacerbated where other market participants are using risk or trading models with assumptions or algorithms that are similar to GSI's. In these and other cases, it may be difficult to reduce GSI's risk positions due to the activity of other market participants or widespread market dislocations, including circumstances where asset values are declining significantly or no market exists for certain assets.

In addition, the use of models in connection with risk management and numerous other critical activities presents risks that the models may be ineffective, either because of poor design, ineffective testing or improper or flawed inputs, as well as unpermitted access to the models resulting in unapproved or malicious changes to the model or its inputs.

To the extent that GSI has positions through its market-making or origination activities or it makes investments directly through its investing activities, including private equity or private credit, that do not have an established liquid trading market or are otherwise subject to restrictions on sale or hedging, GSI may not be able to reduce its positions and therefore reduce its risk associated with those positions.

Prudent risk management, as well as regulatory restrictions, may cause GSI to limit its exposure to counterparties, geographic areas or markets, which may limit its business opportunities and increase the cost of its funding or hedging activities.

(f) ***GSI is reliant on GS Group and other GS Group affiliates for client business, various services and capital***

GSI is a wholly-owned subsidiary of GS Group. As a wholly-owned subsidiary, GSI relies on various business relationships of GS Group and other GS Group affiliates generally, including the ability to receive various services, as well as, in part, the capital and liquidity of GSI's ultimate parent, GS Group, as well as the liquidity of Goldman Sachs Funding LLC ("Funding IHC"), a wholly-owned, direct subsidiary of GS Group that facilitates the execution of GS Group's preferred resolution strategy. Although GSI has taken steps to reduce its reliance on other GS Group affiliates, it remains an operating subsidiary of a larger organisation and therefore its interconnectedness within the organisation will continue. Because GSI's business relies upon GS Group and other GS Group affiliates to a significant extent, risks that could affect these entities could also have a significant impact on GSI.

Clients of our affiliates, as well as the affiliates themselves, often serve as our counterparties to derivative transactions. Furthermore, GSI relies upon certain GS Group affiliates for various support services, including, but not limited to, trade execution, relationship management, settlement and clearing, risk management and other technical, operational and administrative services. Such services are provided to GSI pursuant to the intercompany services agreement, which is generally terminable upon mutual agreement of GS Group and its subsidiaries, subject to certain exceptions, including material breach of the agreement.

As a consequence of the foregoing, in the event GSI's relationships with other GS Group affiliates are not maintained, for any reason, including as a result of possible strategic decisions that GS Group may make from time-to-time or as a result of material adverse changes in GS Group's performance, GSI's net revenues may decline, the cost of operating and funding its business may increase and GSI's business, financial condition and profitability may be materially and adversely affected.

Furthermore, GSI receives a portion of its funding in the form of unsecured funding indirectly from GS Group and from Funding IHC, and collateralised financings from other GS Group affiliates. To the extent such funding is not available to GSI, its growth could be constrained and/or its cost of funding could increase.

1.5 Legal and Regulatory Risks

(a) ***GSI's businesses and those of its clients are subject to extensive and pervasive regulation around the world***

As a participant in the financial services industry and a subsidiary of a systemically important financial institution, GSI is subject to extensive regulation, principally in the U.K., and the E.U. more generally, but also in the U.S. as a subsidiary of GS Group and in certain other jurisdictions. GSI faces the risk of significant intervention by law enforcement, regulatory and tax authorities, as well as private litigation, in all jurisdictions in which it conducts its businesses. In many cases, GSI's activities have been and may continue to be subject to overlapping and divergent regulation in different jurisdictions. Among other things, as a result of law enforcement authorities, regulators or private parties challenging GSI's compliance with laws and regulations, GSI or its employees have been, and could be, fined, criminally charged or sanctioned; prohibited from engaging in certain business activities; subjected to limitations or conditions on its business activities including higher capital requirements; or subjected to new or substantially higher taxes or other governmental charges in connection with the conduct of its businesses or with respect to its employees. These limitations or conditions may limit business activities and negatively impact GSI's profitability.

In addition to the impact on the scope and profitability of GSI's business activities, day-to-day compliance with existing laws and regulations has involved and will continue to involve significant amounts of time, including that of GSI's senior leaders and that of a large number of dedicated

compliance and other reporting and operational personnel, in connection with which GSI expects to continue to add personnel, all of which may negatively impact GSI's profitability.

GSI's revenues and profitability and those of its competitors have been and will continue to be impacted by requirements relating to capital, leverage, liquidity and long-term funding levels, requirements related to resolution and recovery planning, derivatives clearing and margin rules and levels of regulatory oversight, as well as limitations on which and, if permitted, how certain business activities may be carried out by financial institutions. The laws, regulations and accounting standards that apply to GSI's businesses are often complex and, in many cases, GSI must make interpretive decisions regarding the application of those laws, regulations and accounting standards to its business activities. Changes in interpretations, whether in response to regulatory guidance, industry conventions, GSI's own reassessments or otherwise, could adversely affect its businesses, results of operations or ability to satisfy applicable regulatory requirements, such as capital or liquidity requirements.

If there are new laws or regulations or changes in the interpretation or enforcement of existing laws or regulations applicable to GSI, GSI's businesses or those of GSI's clients, including changes to the U.K. capital framework under the Basel Committee on Banking Supervision's ("**Basel Committee**") revised capital framework for strengthening internal capital standards ("**Basel III**"), including changes to minimum capital requirements, liquidity, leverage, long-term debt, margin requirements, restrictions on other business practices, reporting requirements, the application of regulatory strategies and requirements to facilitate the orderly resolution of large financial institutions, tax burdens and compensation restrictions, that are imposed on a limited subset of financial institutions (whether based on size, method of funding, activities, geography or other criteria) which may include GSI or GS Group, compliance with these new laws and regulations, or changes in the enforcement of existing laws or regulations, could adversely affect GSI's ability to compete effectively with other institutions that are not affected in the same way. In addition, regulation imposed on financial institutions or market participants generally, such as taxes on stock transfers, share repurchases and other financial transactions, could adversely impact levels of market activity more broadly, and thus impact GSI's businesses. Changes to laws and regulations, such as tax laws, could also have a disproportionate impact on GSI, based on the way those laws or regulations are applied to financial services and financial firms or due to its corporate structure or how GSI provides these services. Recent political developments have added additional uncertainty with respect to new laws and regulations or changes in the interpretations or enforcement of existing laws and regulations.

These developments could impact GSI's profitability in the affected jurisdictions, or even make it uneconomic to continue to conduct all or certain businesses in those jurisdictions, or could result in GSI incurring significant costs associated with changing business practices, restructuring businesses, moving all or certain businesses and employees to other locations or complying with applicable capital requirements, including liquidating assets or raising capital in a manner that adversely increases GSI's funding costs or otherwise adversely affects its shareholder and creditors.

U.S. and non-U.S. regulatory developments, in particular the Dodd-Frank Act and Basel III, have significantly altered the regulatory framework within which GS Group operates and have adversely affected and may in the future adversely affect GS Group's profitability. Among the aspects of the Dodd-Frank Act that have affected or may in the future affect GS Group's businesses are: increased capital, liquidity and reporting requirements; limitations on activities in which GS Group may engage; increased regulation of and restrictions on OTC derivatives markets and transactions; limitations on incentive compensation; limitations on affiliate transactions; requirements to reorganize or limit activities in connection with recovery and resolution planning; increased deposit insurance assessments; and increased standards of care for broker-dealers and investment advisers in dealing with clients.

The U.K.'s Prudential Regulation Authority (the "**PRA**") issued near final rules with a proposed effective date of January 1, 2027, implementing the Basel III Committee's finalisation of the Basel III post-crisis regulatory reforms (the "**Basel III Revisions**"), including new rules covering the Fundamental Review of the Trading Books (the "**FRTB**") credit risk, counterparty credit risk, credit valuation adjustment risk and operational risk. The FRTB, among other things, revises the standardised and internal model-based approaches used to calculate market risk requirements and clarifies the scope of positions subject to market risk capital requirements. Among other changes, this rule includes provisions that set a floor on internally modelled capital requirements at a percentage of the capital requirements under the standardised approach (known as the "output floor"). The PRA's near final rules exclude U.K. subsidiaries of overseas banking groups that are subject to the output floor on a global consolidated basis from a standalone output floor requirement. As such, GSI does not expect to be subject to this requirement on a standalone basis in the U.K.

However, the impact of the Basel III Revisions is subject to uncertainty until the corresponding legislation and regulation are finalized and implemented by the PRA, the U.S. federal bank regulatory agencies and the E.U. In 2023, the U.S. federal bank regulatory agencies proposed a rule implementing the Basel III Revisions, including the FRTB, and the U.S. Board of Governors of the Federal Reserve System has indicated that it expects to work the other U.S. federal bank regulatory agencies in 2025 on a revised proposal. Substantial parts of the E.U. rules implementing the Basel III Revisions became effective on January 1, 2025; the E.U. has delayed implementation of the FRTB rules to January 1, 2026.

GSI is also subject to laws and regulations, such as the General Data Protection Regulation ("**GDPR**"), relating to the privacy of the information of clients, employees or others, and any failure to comply with these laws and regulations could expose GSI to liability and/or reputational damage. As new privacy-related laws and regulations are implemented, the time and resources needed for GSI to comply with such laws and regulations, as well as GSI's potential liability for non-compliance and reporting obligations in the case of data breaches, may significantly increase.

In addition, GSI's businesses are increasingly subject to laws and regulations relating to surveillance, encryption and data on-shoring in the jurisdictions in which GSI operates. Compliance with these laws and regulations may require GSI to change its policies, procedures and technology for information security, which could, among other things, make GSI more vulnerable to cyber attacks and misappropriation, corruption or loss of information or technology.

Increasingly, regulators and courts have sought to hold financial institutions liable for the misconduct of their clients where they have determined that the financial institution should have detected that the client was engaged in wrongdoing, even though the financial institution had no direct knowledge of the activities engaged in by its client. Regulators and courts have also increasingly found liability as a "control person" for activities of entities in which financial institutions or funds controlled by financial institutions have an investment, but which they do not actively manage. In addition, regulators and courts continue to seek to establish "fiduciary" obligations to counterparties to which no such duty had been thought to exist. To the extent that such efforts are successful, the cost of, and liabilities associated with, engaging in brokerage, clearing, market-making, prime financing, investing and other similar activities could increase significantly. To the extent that GSI has fiduciary obligations in connection with acting as a financial advisor or investment advisor or in other roles for individual, institutional, sovereign or investment fund clients, any breach, or even an alleged breach, of such obligations could have materially negative legal, regulatory and reputational consequences.

Further, GSI is subject to regulatory settlements, orders and feedback that require significant remediation activities, which require GSI to commit significant resources, including hiring, as well as testing the operation and effectiveness of new controls, policies and procedures.

(b) ***A failure to appropriately identify and address potential conflicts of interest has in the past and may in the future adversely affect GSI's businesses***

Due to the broad scope of GS Group's businesses and client base, GSI regularly addresses potential conflicts of interest, including situations where services to a particular client or GS Group's own investments or other interests conflict, or are perceived to conflict, with the interests of that client or another client, as well as situations where one or more of its businesses have access to material non-public information that may not be shared with other businesses within GS Group and situations where it may be a creditor of an entity with which GS Group also has an advisory or other relationship.

Extensive procedures and controls are in place that are designed to identify and address conflicts of interest, including those designed to prevent the improper sharing of information among businesses. However, appropriately identifying and dealing with conflicts of interest is complex and difficult, and GSI's reputation, which is one of its most important assets, could be damaged and the willingness of clients to enter into transactions with GSI may be adversely affected if it fails, or appears to fail, to identify, disclose and deal appropriately with conflicts of interest. In addition, potential or perceived conflicts could give rise to litigation, government investigations or enforcement actions. Additionally, GS Group's One Goldman Sachs initiative aims to increase collaboration amongst its businesses, which may increase the potential for actual or perceived conflicts of interest and improper information sharing.

(c) ***Substantial civil or criminal liability or significant regulatory action against GSI has in the past had and may in the future have material adverse financial effects and significant reputational consequences, which in turn could seriously harm its business prospects***

GSI faces significant legal risks in its businesses, and the volume of claims and amount of damages and penalties claimed in litigation and regulatory proceedings against financial institutions remain high. GSI is, from time to time, subject to a number of other investigations and reviews by, and in some cases has received requests for documents and information from, various governmental and regulatory bodies and self-regulatory organisations relating to various aspects of GSI's businesses and operations. GSI has seen legal claims by clients increase in a market downturn and employment-related claims increase following periods of headcount reduction. Additionally, governmental entities have been plaintiffs and are parties in certain of GSI's legal proceedings, and it may face future civil or criminal actions or claims by the same or other governmental entities, as well as follow-on civil litigation that is often commenced after regulatory settlements.

Significant settlements by large financial institutions with governmental entities have become common. The trend of large settlements with governmental entities may adversely affect the outcomes for other financial institutions, including, in some cases, GSI, or GS Group, in similar actions, especially where governmental officials have announced that the large settlements will be used as the basis or a template for other settlements. The uncertain regulatory enforcement environment makes it difficult to estimate probable losses, which can lead to substantial disparities between legal reserves and subsequent actual settlements or penalties.

GSI is subject to laws and regulations worldwide, including the U.S. Foreign Corrupt Practices Act and the U.K. Bribery Act, relating to corrupt and illegal payments to, and hiring practices with regard to, government officials and others. Violation of these or similar laws and regulations have in the past resulted in and could in the future result in significant monetary penalties. Such violations could also result in severe restrictions on GSI's activities and damage to its reputation.

Resolution of a criminal matter involving GSI or its employees could lead to increased exposure to civil litigation, could adversely affect GSI's reputation, could result in penalties or limitations on GSI's ability to conduct its activities generally or in certain circumstances and could have other negative effects.

(d) ***In conducting its business around the world, GSI is subject to political, legal, regulatory, tax and other risks that are inherent in operating in many countries***

In conducting GSI's businesses and supporting its global operations, GSI is subject to risks of possible nationalisation, expropriation, price controls, capital controls, exchange controls, communications and other content restrictions and other restrictive governmental actions, as well as the outbreak of hostilities or acts of terrorism. For example, sanctions have been imposed by the U.S. and the E.U. on certain individuals and companies in Russia and Venezuela. In many countries, the laws and regulations applicable to the securities and financial services industries and many of the transactions in which GSI is involved are uncertain and evolving, and it may be difficult to determine the exact requirements of local laws in every market. GSI has been in some cases subject to divergent and conflicting laws and regulations across markets, and is increasingly subject to the risk that the jurisdictions in which it operates have implemented or may implement laws and regulations that directly conflict with those of another jurisdiction. Any determination by local regulators that GSI has not acted in compliance with the application of local laws in a particular market or a failure to develop effective working relationships with local regulators could have a significant and negative effect not only on GSI's businesses in that market, but also on its reputation generally. Further, in some jurisdictions a failure, or alleged failure, to comply with laws and regulations have subjected and may in the future subject GSI and its personnel not only to civil actions but also criminal actions and other sanctions. GSI is also subject to the enhanced risk that transactions it structures might not be legally enforceable in all cases.

While business and other practices throughout the world differ, GSI is subject in its operations worldwide to rules and regulations relating to corrupt and illegal payments, hiring practices and money laundering, as well as laws relating to doing business with certain individuals, groups and countries, such as the U.S. Foreign Corrupt Practices Act, the U.S. Bank Secrecy Act, as amended, and the U.K. Bribery Act. While GSI has invested and continues to invest significant resources in training and in compliance monitoring, the geographical diversity of its operations, employees, and clients, as well as the vendors and other third parties that GSI deals with, greatly increases the risk that GSI may be found in violation of such rules or regulations and such violations could subject it to significant penalties or adversely affect its reputation.

In addition, there have been a number of highly publicised cases around the world, involving actual or alleged fraud or other misconduct by employees in the financial services industry in recent years, and GSI has had, and may in the future have, employee misconduct. This misconduct has included and may also in the future include intentional efforts to ignore or circumvent applicable policies, rules or procedures or misappropriation of funds and the theft of proprietary information, including proprietary software. It is not always possible to deter or prevent employee misconduct and the precautions taken to prevent and detect this activity have not been and may not be effective in all cases, as reflected by the settlements relating to 1Malaysia Development Berhad ("**1MDB**").

(e) ***The application of regulatory strategies and requirements to facilitate the orderly resolution of large financial institutions could create greater risk of loss for GSI's security holders***

The circumstances in which a resolution authority would exercise its "bail-in" powers to recapitalise a failing entity by writing down its unsecured debt or converting it into equity are uncertain. If these powers were to be exercised (or if there was a suggestion that they could be exercised) in respect of GSI, such exercise would likely have a material adverse effect on the value of debt investments in GSI, including a potential loss of some or all of such investments.

The EU Bank Recovery and Resolution Directive ("**BRRD**") entered into force on 2 July 2014. EU member states were required to adopt and publish the laws, regulations and administrative provisions necessary to comply with the BRRD. Its stated aim is to provide national "resolution authorities" with powers and tools to address banking crises pre-emptively in order to safeguard financial stability and minimise taxpayers' exposure to losses.

The majority of the requirements of the BRRD have been implemented in the UK through the UK Banking Act 2009, as amended, and related statutory instruments (together, the "**UK Banking Act**"). The UK Banking Act provides for a "resolution regime" granting substantial powers to the Bank of England (or, in certain circumstances, HM Treasury), to implement resolution measures (in consultation with other UK authorities) with respect to a UK financial institution (such as GSI) where the resolution authority considers that the relevant institution is failing or is likely to fail, there is no reasonable prospect of other measures preventing the failure of the institution and resolution action is necessary in the public interest.

The resolution powers available to the resolution authority include powers to: write down the amount owing, including to zero, or convert the relevant securities into other securities, including ordinary shares of the relevant institution (or a subsidiary) – the so-called "bail-in" tool; transfer all or part of the business of the relevant institution to a "bridge bank"; transfer impaired or problem assets to an asset management vehicle; and sell the relevant institution to a commercial purchaser.

In addition, the resolution authority is empowered to modify contractual arrangements, suspend enforcement or termination rights that might otherwise be triggered and disapply or modify laws in the UK (with possible retrospective effect) to enable the recovery and resolution powers under the UK Banking Act to be used effectively.

You should assume that, in a resolution situation, financial public support will only be available to GSI (or any member of Goldman Sachs) as a last resort after the relevant resolution authorities have assessed and used, to the maximum extent practicable, the resolution tools, including the bail-in tool.

- (f) ***GSI's commodities activities, particularly GSI's physical commodities activities, subject GSI to extensive regulation and involve certain potential risks, including environmental, reputational and other risks that may expose GSI to significant liabilities and costs***

As part of GSI's commodities business, GSI purchases and sells certain physical commodities, arranges for their storage and transport, and engages in market making of commodities. The commodities involved in these activities may include crude oil, refined oil products, natural gas, liquefied natural gas, electric power, agricultural products, base, precious, and other metals, minerals (including unenriched uranium), emission credits, coal, freight and related products and indices.

GSI makes investments in and finances entities that engage in the production, storage and transportation of numerous commodities, including many of the commodities referenced above. These activities subject GSI and/or the entities in which GSI invests to extensive and evolving national, regional and local energy, environmental, antitrust and other governmental laws and regulations worldwide, including environmental laws and regulations relating to, among others, air quality, water quality, waste management, transportation of hazardous substances, natural resources, site remediation and health and safety. Additionally, rising climate change concerns have led to additional laws and regulations, regulatory scrutiny and disclosure obligations that have increased and could further increase the operating costs and could adversely affect the profitability of certain of GSI's investments and activities.

There may be substantial costs in complying with current or future laws and regulations relating to GSI's commodities-related activities and investments. Compliance with these laws and regulations could require significant commitments of capital toward environmental and operational monitoring, development of appropriate operational and supervisory procedures and processes, payment of emission fees and carbon or other taxes, and application for, and holding of, permits and licenses.

Commodities involved in GSI's intermediation activities and investments are also subject to the risk of unforeseen or catastrophic events, which are likely to be outside of GSI's control, including those arising from the breakdown or failure of third-party or service providers' transport vessels, storage facilities or other equipment or processes or other mechanical malfunctions, fires, leaks, spills or

release of hazardous substances, performance below expected levels of output or efficiency, terrorist attacks, extreme weather events or other natural disasters or other hostile or catastrophic events. In addition, GSI relies on third-party suppliers or service providers to perform GSI's contractual obligations and any failure on their part, including the failure to supply or to safely transport or store commodities, could expose GSI to costs or losses. Also, while GSI seeks to insure against potential risks, GSI does not have insurance to cover some of these risks and the insurance that GSI has may be inadequate to cover its losses.

The occurrence of any of such events may prevent GSI from performing under its agreements with clients, may impair GSI's operations or financial results and may result in litigation, regulatory action, negative publicity or other reputational harm.

GSI has made changes to and may also be required to divest or discontinue certain of these activities for regulatory or legal reasons or due to the transition to a less carbon-dependent economy in response to climate change.

1.6 Competition Risks

(a) ***GSI's results have been and may in the future be adversely affected by the composition of its client base***

GSI's client base is not the same as that of its major competitors. GSI's businesses may have a higher or lower percentage of clients in certain industries or markets than some or all of its competitors. Therefore, unfavourable industry developments or market conditions affecting certain industries or markets have resulted in the past and may result in the future in GSI's businesses underperforming relative to similar businesses of a competitor if its businesses have a higher concentration of clients in such industries or markets. For example, GSI's market-making businesses has a higher percentage of clients with actively managed assets than some of its competitors and these clients have in the past been and may in the future be disproportionately affected by low volatility.

Correspondingly, favourable or simply less adverse developments or market conditions involving industries or markets in a business where GSI has a lower concentration of clients in that industry or market have also resulted in the past and may result in the future in GSI underperforming relative to a similar business of a competitor that has a higher concentration of clients in that industry or market. For example, GSI has a smaller corporate client base in its market-making businesses than some of its peers and therefore GSI's competitors may benefit more from increased activity by corporate clients. Similarly, GSI has not historically engaged in retail equities intermediation to the same extent as other financial institutions, which has in the past affected and could in the future adversely affect its market share in equities execution.

(b) ***The financial services industry is highly competitive***

The financial services industry and all of GSI's businesses are intensely competitive, and GSI expects them to remain so. GSI competes on the basis of a number of factors, including transaction execution, its products and services, innovation, reputation, creditworthiness and price. There has been substantial consolidation and convergence among companies in the financial services industry. This has hastened the globalization of the securities and other financial services markets. As a result, GSI has had to commit capital to support its international operations and to execute large global transactions. To the extent GSI expands into new business areas and new geographic regions, it will face competitors with more experience and more established relationships with clients, regulators and industry participants in the relevant market, which could adversely affect its ability to expand.

Governments and regulators have adopted regulations, imposed taxes, adopted compensation restrictions or otherwise put forward various proposals that have impacted or may impact GSI's ability to conduct certain of its businesses in a cost-effective manner or at all in certain or all

jurisdictions, including proposals relating to restrictions on the type of activities in which financial institutions are permitted to engage. These or other similar rules, many of which do not apply to all GSI's competitors, could impact its ability to compete effectively.

Pricing and other competitive pressures in GSI's businesses have continued to increase, particularly in situations where some competitors may seek to increase market share by reducing prices. For example, in connection with investment banking and other engagements, in response to competitive pressure GSI has experienced, GSI has extended and priced credit at levels that, in some cases, have not fully compensated it for the risks it has undertaken.

The financial services industry is highly interrelated in that a significant volume of transactions occur among a limited number of members of that industry. Many transactions are syndicated to other financial institutions and financial institutions are often counterparties in transactions. This has led to claims by other market participants and regulators that such institutions have colluded in order to manipulate markets or market prices, including allegations that antitrust laws have been violated. While GSI has extensive procedures and controls that are designed to identify and prevent such activities, they may not be effective. Allegations of such activities, particularly by regulators, can have a negative reputational impact and can subject GSI to large fines and settlements, and potentially significant penalties, including treble damages.

(c) ***The growth of electronic trading and the introduction of new products and technologies, including trading and distributed ledger technologies, such as cryptocurrencies, and AI technologies, has increased competition***

Technology is fundamental to GSI's business and industry. The growth of electronic trading and the introduction of new technologies is changing GSI's businesses and presenting GSI with new challenges. Securities, futures and options transactions are increasingly occurring electronically, both on GSI's own systems and through other alternative trading systems, and it appears that the trend toward alternative trading systems will continue. Some of these alternative trading systems compete with GSI, particularly GSI's exchange-based market-making activities, and GSI may experience continued competitive pressures in these and other areas. In addition, the increased use by GSI's clients of low-cost electronic trading systems and direct electronic access to trading markets has caused and could continue to cause a reduction in commissions and spreads. As GSI's clients increasingly use GSI's systems to trade directly in the markets, GSI may incur liabilities as a result of their use of GSI's order routing and execution infrastructure.

GSI has invested significant resources into the development of electronic trading systems and expect to continue to do so, but there is no assurance that the revenues generated by these systems will yield an adequate return, particularly given the generally lower commissions arising from electronic trades.

In addition, the emergence, adoption and evolution of new technologies, including distributed ledgers, such as digital assets and blockchain, and AI technologies, have required GSI to invest resources to adapt its existing products and services, and GSI expects to continue to make such investments, which could be material. The adoption and evolution of such new technologies may also increase GSI's compliance and regulatory costs. Further, technologies, such as those based on distributed ledgers, that do not require intermediation could also significantly disrupt payments processing and other financial services. Regulatory limitations on GSI's involvement in products and platforms involving digital assets and distributed ledger technologies may not apply equally or, in some cases, at all to certain of GSI's competitors. GSI may not be as timely or successful in developing or integrating, or even able to develop or integrate, new products and technologies, such as those built on distributed ledgers or AI technologies, into GSI's existing products and services, adapting to changes in client preferences or achieving market acceptance of GSI's products and services. For example, GSI's competitors may be more timely or successful in developing or integrating AI technologies to increase their productivity and reduce their costs or to provide better transaction execution or improved product services to clients. Any of the foregoing

could affect GSI's ability to attract or retain clients, cause GSI to lose market share or result in service disruptions and in turn reduce GSI's revenues or otherwise adversely affect GSI.

(d) ***GSI's businesses would be adversely affected if it is unable to hire and retain qualified employees***

GSI's performance is largely dependent on the talents and efforts of highly skilled people; therefore, GSI's continued ability to compete effectively in its businesses, to manage its businesses effectively and to expand into new businesses and geographic areas depends on its ability to attract and retain a talented workforce. Factors that affect GSI's ability to attract and retain such employees include the level and composition of compensation and benefits, a reputation as a successful business with a culture of fairly hiring, training and promoting qualified employees and government policies, including immigration policy. As a significant portion of the compensation that GSI pays to its employees is paid in the form of year-end discretionary compensation, a significant portion of which is in the form of deferred equity-related awards, declines in the GS Group's profitability, or in the outlook for its future profitability, as well as regulatory limitations on compensation levels and terms, can negatively impact GSI's ability to hire and retain highly qualified employees.

Competition from within the financial services industry and from businesses outside the financial services industry, including the technology industry, for qualified employees has often been intense. GSI has experienced increased competition in hiring and retaining employees to address the demands of new regulatory requirements and GSI's technology initiatives. This is also the case in emerging and growth markets, where GSI is often competing for qualified employees with entities that have a significantly greater presence or more extensive experience in the region.

Laws or regulations in jurisdictions in which GSI's operations are located that affect taxes on GSI's employees' income or the amount or composition of compensation, or that require GSI to disclose its competitors' compensation practices may also adversely affect GSI's ability to hire and retain qualified employees in those jurisdictions.

GSI's compensation practices are subject to review by, and the standards of, the PRA and the Financial Conduct Authority ("FCA"). As a large financial institution, GSI is subject to limitations on compensation practices (which may or may not affect the companies with which GSI competes for talent) by the PRA, the FCA and other regulators worldwide. These limitations have shaped GSI's compensation practices, which has, in some cases, adversely affected GSI's ability to attract and retain talented employees, in particular in relation to companies not subject to these limitations, and future legislation or regulation may have similar adverse effects.

1.7 Market Developments and General Business Environment Risks

(a) ***GSI's businesses, financial condition, liquidity and results of operations have been and may in the future be adversely affected by unforeseen or catastrophic events, including pandemics, terrorist attacks, wars, extreme weather events or other natural disasters***

The occurrence of unforeseen or catastrophic events, including pandemics or other widespread health emergencies (or concerns over the possibility of such an emergency), terrorist attacks, wars, extreme weather events, solar events or other natural disasters, could adversely affect GSI's business, financial condition, liquidity and results of operations. These events could have such effects through economic or financial market disruptions or challenging economic or market conditions more generally, the deterioration of GSI's creditworthiness or that of GSI's counterparties, changes in consumer sentiment and consumer borrowing, spending and savings patterns, liquidity stress, or operational difficulties (such as travel limitations and limitations on occupancy in GSI's offices) that impair GSI's ability to manage GSI's businesses.

(b) ***Climate change could disrupt GS Group's businesses and adversely affect client activity levels and the creditworthiness of GSI's clients and counterparties, and GSI's actual or***

perceived action or inaction relating to climate change could result in damage to GSI's reputation

Climate change may cause, or be a contributing factor to extreme weather events that disrupt operations one or more of GSI's or GS Group's primary locations, which may negatively affect GSI's ability to service and interact with GSI's clients, adversely affect the value of GSI's investments, and reduce the availability or increase the cost of insurance. Climate change and the transition to a less carbon-dependent economy may also have a negative impact on the operations or financial condition of GSI's clients and counterparties, which may decrease revenues from those clients and counterparties and increase the risk and other exposures to those clients and counterparties. In addition, climate change may impact the broader economy.

GSI is also exposed to risks resulting from changes in public policy, laws and regulations, or market and public perceptions and preferences in connection with the transition to a less carbon-dependent economy. These changes could adversely affect GSI's business, results of operations and reputation. If GSI's response to climate change is subject to criticism, its business, reputation and efforts to recruit and retain employees may suffer.

New laws, regulations or guidance relating to climate change, as well as the perspectives of government officials, regulators, employees and other stakeholders regarding climate change, may affect whether and on what terms and conditions GSI engages in certain activities or offer certain products. Banking regulators and supervisory authorities, shareholders and other stakeholders have increasingly viewed financial institutions as playing an important role in helping to address risks related to climate change, both directly and with respect to their clients, which may result in financial institutions coming under increased requirements and expectations regarding the disclosure and management of their climate risks and related lending, investment and advisory activities.

In 2021, the FCA introduced mandatory Taskforce on Climate-related Financial Disclosures-aligned disclosure requirements for GSI. GSI is also subject to climate-related financial disclosures required under the U.K. Companies Act. GSI continues to assess the impact of other ESG-related regulatory frameworks that will, or are proposed to, in the future apply to GSI. GSI is also subject to the PRA's supervisory expectations for the management of climate-related financial risks, including with respect to governance, risk management, scenario analysis and disclosure.

In the E.U., GSI is expected to be subject to sustainability-related laws being implemented, including directives, such as the Corporate Sustainability Reporting Directive ("**CSRD**") and the Corporate Sustainability Due Diligence Directive ("**CSDDD**"), which would significantly expand the scope of ESG disclosure requirements applicable to GSI and impose stringent due diligence requirements with respect to adverse human rights and environmental impacts in GSI's upstream business partners' operations as well as require GSI to put into effect a climate transition plan.

These, as well as any additional or heightened laws, regulations, guidance and expectations have in the past subjected and may in the future subject GSI to different and potentially conflicting requirements and expectations in the various jurisdictions in which GSI operates, and have in the past resulted in and could in the future result in increased regulatory, compliance or other costs or higher capital requirements. The risks associated with, and the perspective of government officials, regulators, employees and other stakeholders regarding, climate change are continuing to evolve rapidly, which can make it difficult to assess the ultimate impact on GSI of climate change-related risks and uncertainties, but GSI expects that climate change-related risks will increase over time.

(c) ***GSI's business, financial condition, liquidity and results of operations have been adversely affected by disruptions in the global economy caused by conflicts, and related sanctions and other developments***

The conflict between Russia and Ukraine has negatively affected the global economy. Governments around the world have responded to Russia's invasion by imposing economic

sanctions and export controls on certain industry sectors, including price caps on Russian oil, and on Russian businesses and persons. Compliance with economic sanctions and restrictions imposed by governments has increased GSI's costs and otherwise adversely affected GSI's business and may continue to do so. Russia has responded with its own restrictions against investors and countries outside Russia and has proposed additional measures aimed at non-Russian owned businesses. Businesses globally have experienced shortages in materials and increased costs for transportation, energy, and raw materials due in part to the negative effects of the conflict on the global economy.

The conflicts in the Middle East could also affect and harm GSI's business and increase market uncertainty. The impact of these conflicts on GSI's business and operations is uncertain and therefore cannot be predicted.

The escalation or continuation of these conflicts or other hostilities could result in, among other things, an increased risk of cyber attacks, an increased frequency and volume of failures to settle securities transactions, supply chain disruptions, higher inflation, lower consumer demand and increased volatility in commodity, currency and other financial markets.

The extent and duration of the conflicts, sanctions and resulting market disruptions are impossible to predict, and the consequences for GSI's business could be significant. If international political instability and geopolitical tensions continue or increase in any region in which GSI does business, GSI's business and results of operations could be harmed.

(d) ***GSI may be adversely affected by negative publicity***

The financial services industry generally and GSI's businesses in particular have been subject to negative publicity. GSI's reputation and businesses may be adversely affected by negative publicity or information regarding its business, personnel, corporate engagement programs and other initiatives, whether or not accurate or true, that may be posted on social media or other internet forums or published by news organisations. Postings on these types of forums may also adversely impact risk positions of GSI's clients and other parties that owe it money, securities or other assets and increase the chance that they will not perform their obligation to the firm or reduce the revenues received from their use of GSI's services. The speed and pervasiveness with which information can be disseminated through these channels, in particular social media, may magnify risks relating to negative publicity.

(e) ***Certain of GSI's businesses and its funding instruments may be adversely affected by changes in reference rates, currencies, indices, baskets or exchange-traded funds ("ETFs") to which products GSI offers or funding that GSI raises are linked***

Many of the products that GSI owns or that it offers, such as structured notes, warrants, swaps or security-based swaps, pay interest or determine the principal amount to be paid at maturity or in the event of default by reference to rates or by reference to an index, currency, basket, ETF or other financial metric (the underlier). In the event that the composition of the underlier is significantly changed, by reference to rules governing such underlier or otherwise, the underlier ceases to exist (for example, in the event that a country withdraws from the Euro or links its currency to or delinks its currency from another currency or benchmark, an index or ETF sponsor materially alters the composition of an index or ETF, or stocks in a basket are delisted or become impermissible to be included in the index or ETF), the underlier ceases to be recognised as an acceptable market benchmark or there are legal or regulatory constraints on linking a financial instrument to the underlier, GSI may experience adverse effects.

(f) ***GSI's business, financial condition, liquidity and results of operations may be adversely affected by disruptions in the global economy caused by escalating tensions between the U.S. and China***

Continued or escalating tensions between the U.S. and China have resulted in and may result in additional changes to U.S. international trade and investment policies, which could disrupt international trade and investment, adversely affect financial markets, including market activity levels, and adversely impact GSI's revenues. Continued or escalating tensions may also lead to the U.S., China or other countries taking other actions, which could include the implementation of sanctions, tariffs or foreign exchange measures, the large-scale sale of U.S. Treasury securities or restrictions on cross-border trade, investment or transfer of information or technology. Any such developments could adversely affect GSI's or GSI's clients' businesses, as well as GSI's financial condition, liquidity and results of operations, possibly materially.

A conflict, or concerns about a potential conflict, involving China and Taiwan, the U.S. or other countries could negatively impact financial markets and GSI's or GSI's clients' businesses. Trade restrictions by the U.S. or other countries in response to a conflict or potential conflict involving China, including financial and economic sanctions and export controls against certain organisations or individuals, or actions taken by China in response to trade restrictions, could negatively impact GSI's or GSI's clients' ability to conduct business in certain countries or with certain counterparties and could negatively impact regional and global financial markets and economic conditions. Any of the foregoing could adversely affect GSI's business, financial condition, liquidity and results of operations, possibly materially.

(g) ***GSI faces enhanced risks as GS Group operates in new locations, and the company transacts with a broader array of clients and counterparties***

GSI's businesses, have in the past, and may in the future, bring GSI into contact, directly or indirectly, with individuals and entities that are not within GSI's traditional client and counterparty base, expose GSI to new asset classes and new markets, and present GSI with integration challenges. For example, GSI continues to transact business and invest in new regions, including a wide range of emerging and growth markets, and GSI expects this trend to continue. Various emerging and growth market countries have experienced severe economic and financial disruptions, including significant devaluations of their currencies, defaults or threatened defaults on sovereign debt, capital and currency exchange controls, and low or negative growth rates in their economies. The possible effects of any of these conditions include an adverse impact on GSI's businesses and increased volatility in financial markets generally.

New business initiatives expose GSI to new and enhanced risks, including risks associated with dealing with governmental entities, reputational concerns arising from dealing with different types of clients, business partners, counterparties and investors, greater regulatory scrutiny of these activities, increased credit-related, market, sovereign and operational risks, risks arising from accidents or acts of terrorism, and reputational concerns with the manner in which certain assets are being operated or held or in which GSI interacts with these clients, business partners, counterparties and investors. Legal, regulatory and reputational risks may also exist in connection with activities and transactions involving new products or markets where there is regulatory uncertainty or where there are different or conflicting regulations depending on the regulator or the jurisdiction involved, particularly where transactions in such products may involve multiple jurisdictions.

2. **RISKS RELATED TO THE GUARANTOR**

For the purpose of this section, all references to "Group, Inc." in the incorporated risk factors below should be read as "GS Group".

2.1 **Market risks**

See the following risk factors as incorporated by reference from the GS Group 2024 Form 10-K (as defined in the "*Documents incorporated by Reference*" section of this Base Prospectus) of the Guarantor, in the following order:

- (i) Our businesses have been and may in the future be adversely affected by conditions in the global financial markets and broader economic conditions. (Pages 33-34 of the GS Group 2024 Form 10-K)
- (ii) Our businesses have been and may in the future be adversely affected by declining asset values, particularly where we have net "long" positions, receive fees based on the value of assets managed, or receive or post collateral. (Pages 34-35 of the GS Group 2024 Form 10-K)
- (iii) Our market-making activities have been and may in the future be affected by changes in the levels of market volatility. (Page 35 of the GS Group 2024 Form 10-K)
- (iv) Our investment banking, client intermediation, asset management and wealth management businesses have been adversely affected and may in the future be adversely affected by market uncertainty or lack of confidence among investors and CEOs due to declines in economic activity and other unfavourable economic, geopolitical or market conditions. (Page 35 of the GS Group 2024 Form 10-K)
- (v) Our asset management and wealth management businesses have been and may in the future be adversely affected by the poor investment performance of our investment products or a client preference for products other than those which we offer or for products that generate lower fees. (Page 36 of the GS Group 2024 Form 10-K)
- (vi) Inflation has had, and could continue to have, a negative effect on our business, results of operations and financial condition. (Page 36 of the GS Group 2024 Form 10-K)

2.2 Liquidity risks

See the following risk factors as incorporated by reference from the GS Group 2024 Form 10-K of the Guarantor, in the following order:

- (i) Our liquidity, profitability and businesses may be adversely affected by an inability to access the debt capital markets or to sell assets. (Page 36 of the GS Group 2024 Form 10-K)
- (ii) Our businesses have been and may in the future be adversely affected by disruptions or lack of liquidity in the credit markets, including reduced access to credit and higher costs of obtaining credit. (Page 37 of the GS Group 2024 Form 10-K)
- (iii) Reductions in our credit ratings or an increase in our credit spreads may adversely affect our liquidity and cost of funding. (Page 37 of the GS Group 2024 Form 10-K)
- (iv) GS Group is a holding company and its liquidity depends on payments and loans from its subsidiaries, many of which are subject to legal, regulatory and other restrictions on providing funds or assets to GS Group (Page 38 of the GS Group 2024 Form 10-K)

2.3 Credit Risks

See the following risk factors as incorporated by reference from the GS Group 2024 Form 10-K of the Guarantor, in the following order:

- (i) Our businesses, profitability and liquidity may be adversely affected by deterioration in the credit quality of or defaults by third parties. (Pages 38-39 of the GS Group 2024 Form 10-K)
- (ii) Concentration of risk increases the potential for significant losses in our market-making, underwriting, investing and financing activities. (Page 39 of the GS Group 2024 Form 10-K)

- (iii) Derivative transactions and delayed documentation or settlements may expose us to credit risk, unexpected risks and potential losses. (Page 40 of the GS Group 2024 Form 10-K)

2.4 Operational Risks

See the following risk factors as incorporated by reference from the GS Group 2024 Form 10-K of the Guarantor, in the following order:

- (i) A failure in our or third-party operational systems or human error, malfeasance or other misconduct, could impair our liquidity, disrupt our businesses, result in the disclosure of confidential information, damage our reputation and cause losses. (Pages 40-41 of the GS Group 2024 Form 10-K)
- (ii) A failure or disruption in our infrastructure, or in the operational systems or infrastructure of third parties, could impair our liquidity, disrupt our businesses, damage our reputation and cause losses. (Page 42 of the GS Group 2024 Form 10-K)
- (iii) The development and use of artificial intelligence ("AI") present risks and challenges that may adversely impact our business. (Page 43 of the GS Group 2024 Form 10-K)
- (iv) A failure to protect our computer systems, networks and information, and our clients' information, against cyber attacks and similar threats could impair our ability to conduct our businesses, result in the disclosure, theft or destruction of confidential information, damage our reputation and cause losses. (Pages 43-44 of the GS Group 2024 Form 10-K)
- (v) We have in the past incurred and may in the future incur losses as a result of ineffective risk management processes and strategies. (Page 45 of the GS Group 2024 Form 10-K)

2.5 Legal and Regulatory Risks

See the following risk factors as incorporated by reference from the GS Group 2024 Form 10-K of the Guarantor, in the following order:

- (i) Our businesses and those of our clients are subject to extensive and pervasive regulation around the world. (Pages 46-48 of the GS Group 2024 Form 10-K)
- (ii) A failure to appropriately identify and address potential conflicts of interest has in the past and may in the future adversely affect our businesses. (Page 48 of the GS Group 2024 Form 10-K)
- (iii) We may be adversely affected by increased governmental and regulatory scrutiny or negative publicity. (Page 49 of the GS Group 2024 Form 10-K)
- (iv) Substantial civil or criminal liability or significant regulatory action against us has in the past had and may in the future have material adverse financial effects and significant reputational consequences, which in turn could seriously harm our business prospects. (Pages 49-50 of the GS Group 2024 Form 10-K)
- (v) In conducting our businesses around the world, we are subject to political, legal, regulatory, tax and other risks that are inherent in operating in many countries. (Pages 50-51 of the GS Group 2024 Form 10-K)
- (vi) The application of regulatory strategies and requirements in the U.S. and in non-U.S. jurisdictions to facilitate the orderly resolution of large financial institutions could create greater risk of loss for GS Group's security holders. (Pages 51-52 of the GS Group 2024 Form 10-K)

- (vii) The application of GS Group's proposed resolution strategy could result in greater losses for GS Group's security holders. (Pages 52-53 of the GS Group 2024 Form 10-K)
- (viii) Our commodities activities, particularly our physical commodities activities, subject us to extensive regulation and involve certain potential risks, including environmental, reputational and other risks that may expose us to significant liabilities and costs. (Page 53 of the GS Group 2024 Form 10-K)

2.6 Competition Risks

See the following risk factors as incorporated by reference from the GS Group 2024 Form 10-K of the Guarantor, in the following order:

- (i) Our results have been and may in the future be adversely affected by the composition of our client base. (Pages 53-54 of the GS Group 2024 Form 10-K)
- (ii) The financial services industry is highly competitive. (Page 54 of the GS Group 2024 Form 10-K)
- (iii) The growth of electronic trading and the introduction of new products and technologies, including trading and distributed ledger technologies, such as cryptocurrencies, and AI technologies, has increased competition. (Pages 54- 55 of the GS Group 2024 Form 10-K)
- (iv) Our businesses would be adversely affected if we are unable to hire and retain qualified employees. (Page 55 of the GS Group 2024 Form 10-K)

2.7 Market Developments and General Business Environment Risks

See the following risk factors as incorporated by reference from the GS Group 2024 Form 10-K of the Guarantor, in the following order:

- (i) Our businesses, financial condition, liquidity and results of operations have been and may in the future be adversely affected by unforeseen or catastrophic events, including pandemics, terrorist attacks, wars, extreme weather events or other natural disasters. (Page 56 of the GS Group 2024 Form 10-K)
- (ii) Climate change could disrupt our businesses and adversely affect client activity levels and the creditworthiness of our clients and counterparties, and our actual or perceived action or inaction relating to climate change could result in damage to our reputation. (Pages 56- 57 of the GS Group 2024 Form 10-K)
- (iii) Our business, financial condition, liquidity and results of operations have been adversely affected by disruptions in the global economy caused by conflicts and related sanctions and other developments. (Page 57 of the GS Group 2024 Form 10-K)
- (iv) Certain of our businesses and our funding instruments may be adversely affected by changes in other reference rates, currencies, indexes, baskets or ETFs to which products we offer or funding that we raise are linked. (Page 57 of the GS Group 2024 Form 10-K)
- (v) Our business, financial condition, liquidity and results of operations may be adversely affected by disruptions in the global economy caused by escalating tensions between the U.S. and China. (Page 58 of the GS Group 2024 Form 10-K)

- (vi) We face enhanced risks as we operate in new locations and transact with a broader array of clients and counterparties. (Pages 58-59 of the GS Group 2024 Form 10-K)
- (vii) We may not be able to fully realize the expected benefits or synergies from acquisitions or other business initiatives in the time frames we expect, or at all. (Page 59 of the GS Group 2024 Form 10-K)

3. RISKS RELATED TO THE NOTES

3.1 Risks related to all Notes issued under the Programme

(a) *Certain considerations relating to an insolvency of the Guarantor*

The Guarantor guarantees the payment obligations of the Issuer under the Notes. The Guarantor could become subject to insolvency proceedings under the U.S. Bankruptcy Code. Although holders of the Notes would continue to have a general unsecured claim against the debtor estate of the Guarantor for amounts owing under the Guaranty upon a default by the Issuer, the legal consequences of these proceedings could adversely affect the Trustee's contractual rights under the Guaranty. As a result, the amount Noteholders receive on the Guaranty may be reduced and the timing of these payments could be adversely affected. Furthermore, Noteholders may be required to direct the Trustee to take action to protect and preserve the value of this claim.

The Guarantor could also become subject to insolvency proceedings under Title II of the Dodd-Frank Wall Street Reform and Consumer Protection Act, entitled Orderly Liquidation Authority, enacted in July 2010, which has created an alternative insolvency regime available to federal regulators in cases where the failure of a financial company would adversely affect the financial stability of the United States. Under this alternate insolvency regime, referred to as "orderly liquidation", the determination of whether a financial company's failure under otherwise applicable insolvency law would adversely affect the financial stability of the United States (thereby making orderly liquidation applicable) would not be made until the time of its failure. At such time, federal regulators may determine that the failure of the Guarantor or one of its affiliates under otherwise applicable insolvency law would adversely affect the financial stability of the United States, in which event orderly liquidation should apply. Unlike proceedings under the Bankruptcy Code, which are conducted in federal courts, orderly liquidation is an administrative insolvency regime under which decisions are made by the Federal Deposit Insurance Corporation acting as receiver for the failed financial company. The Federal Deposit Insurance Corporation is granted significant discretion in exercising the powers granted under orderly liquidation and claimants have only limited judicial review of its actions. Orderly liquidation is a relatively new law and therefore there is a significant uncertainty as to how legal and factual issues under its provisions would be resolved by the Federal Deposit Insurance Corporation or a court.

Furthermore, under orderly liquidation, a receiver for the Guarantor would be permitted to transfer the Guaranty of the Notes issued by the Guarantor to a third-party financial institution or a specially chartered bridge company that would be operated by the receiver, notwithstanding any contractual restrictions against such a transfer. In either case, the transferee would be required to assume all of the Guarantor's rights and obligations under the Guaranty. The transferee's identity and creditworthiness cannot be ascertained in advance. If the Guaranty is not transferred, holders of the Notes would continue to have a general unsecured claim against the debtor estate of the Guarantor for amounts owing under the Guaranty upon a default by the Issuer, although the legal consequences of these proceedings could adversely affect the Trustee's contractual rights under the Guaranty. As a result, the amount Noteholders receive on the Guaranty may be reduced and the timing of these payments could be adversely affected. Furthermore, Noteholders may be required to direct the Trustee to take action to protect and preserve the value of this claim.

In proceedings under the U.S. Bankruptcy Code, or in orderly liquidation in the event that the Guaranty is not transferred, the claim against the Guarantor under the Guaranty would be contingent in nature and of uncertain or no value if there has been no Event of Default with respect to the Issuer.

(b) ***English law – fixed and floating charges***

Pursuant to the terms of the Trust Deed, the Issuer has purported to grant a fixed security interest in the Collateral.

The law in England and Wales relating to the characterisation of a fixed security interest is unsettled. The fixed security interest purported to be granted by the Issuer (other than by way of assignment in security) may take effect under English law instead as a floating charge, if, for example, it is determined that the Trustee does not exert sufficient control over the secured assets. If the security interest takes effect as a floating charge instead of a fixed charge, then, as a matter of law, certain claims would have priority over the claims of the Trustee in respect of the floating charge assets. In particular, the expenses of any winding up or administration, and (unless the security interest constitutes a financial collateral arrangement for the purposes of the FCARs) the claims of any preferential creditors, would rank ahead of the claims of the Trustee in this regard. However, certain employee claims (in respect of contributions to pension schemes and wages) still have preferential status. In addition, the Finance Act 2020, which was enacted on 22 July 2020, includes provisions to grant His Majesty's Revenue & Customs' ("HMRC") secondary preferential creditor status for certain taxes due from an insolvent business. The act may have an impact for shareholders and creditors in corporate insolvencies where HMRC is also a creditor. In such scenario, if any such claims taking priority over the Trustee's claims in respect of the collateral were to be paid out of the collateral assets, there may be insufficient collateral remaining to meet the payment obligations of the Issuer to the Noteholders, and the amount received by Noteholders could be reduced accordingly.

(c) ***Custody of assets and exercise of remedies***

The Issuer will neither take possession of any assets sold to it or subject to a security arrangement in its favour under any Repo, or subject to a security arrangement in its favour under an Eligible Loan, nor deliver, to the extent capable of being delivered, any such asset to the Trustee prior to an Event of Default. Except for certain supplemental assets or interests in a cash account, all such assets will continue to be held by the Repo counterparties, Eligible Loan borrower or a custodian (which, in the case of securities subject to a security arrangement in connection with an Eligible Loan, will be an independent custodian). In the event of a default by a Repo counterparty or Eligible Loan borrower, it is highly unlikely that the Issuer (or the Trustee acting on its own and the Noteholders' behalf after an Event of Default) will be able to obtain possession of such assets for purposes of exercising remedies thereunder or to become the lender of record or mortgagee, as applicable, in respect of assets purchased or subject to a security arrangement thereunder.

With the exception of securities in which a security interest has been granted in connection with an Eligible Loan, the assets securing a Series of Notes and held by a Repo counterparty or an Eligible Loan borrower will, as with assets under "hold in custody" repurchase transactions generally, at times be commingled with other assets of such counterparty or borrower and with those of their counterparties to repurchase and/or other financing transactions. Each Repo counterparty and Eligible Loan borrower has retained the right to grant a security over, use or sell such assets. Following any such grant of security, use or sale, the Issuer's interest will continue in proceeds of such assets, subject to the ability of the Issuer to identify those proceeds.

In the case of collateral consisting of an interest in certain supplemental assets or amounts allocated and charged to a cash account, such cash collateral will be commingled with similar

assets in which other counterparties to repurchase and/or other financing transactions with the Repo counterparties and/or Eligible Loan borrowers, as applicable, have interests. In addition, prior to an Event of Default, the Repo counterparties and Eligible Loan borrowers are permitted to withdraw and use such cash collateral. Furthermore, the Issuer (or, after an Event of Default, the Trustee acting on its own and the Noteholders' behalf) must exercise remedies within the time period prescribed in the relevant account control agreements in order to successfully preserve its rights with respect to such cash collateral and realise the benefit thereof. In the case of supplemental assets, the Issuer is not permitted to exercise remedies against such assets prior to a GS Group bankruptcy event.

Accordingly, if the Issuer was to default in a payment to the Noteholders such that the Notes were accelerated, and payments on such Notes were to be satisfied out of the collateral, if there were to be a shortfall in the assets (cash or otherwise) constituting the collateral, whether as a result of the Issuer's inability to take possession of such assets following a default by a Repo counterparty or Eligible Loan borrower, or because such assets were commingled with assets held by a Repo counterparty or Eligible Loan borrower for the benefit of someone else, the amount received by Noteholders may be less than if such a collateral shortfall had not occurred.

(d) ***Collection risk***

The ability of the Repo counterparty or Eligible Loan borrower and, in turn, the Issuer (or the Trustee acting on its own and the Noteholders' behalf after an Event of Default), to collect amounts due from an obligor (a "**Collateral Obligor**") in respect of assets purchased under a Repo or subject to a security arrangement to secure an Eligible Loan is subject to certain risks. These include, but are not limited to, (i) the default or bankruptcy of a Collateral Obligor, (ii) the assertion by a Collateral Obligor of contractual or legal defences to its payment obligation and (iii) the difficulty of enforcing payment obligations against a Collateral Obligor or its assets in foreign jurisdictions.

If the Issuer was to default in a payment to the Noteholders such that the Notes were accelerated, and payments on such Notes were to be satisfied out of amounts due in respect of the collateral, if there were a problem collecting amounts due from any Collateral Obligors, the amount received by Noteholders may be less than if there were no such problems collecting such amounts.

(e) ***Valuation risk***

The valuation of collateral securing a Series of Notes will be performed by GS Group and its affiliates, except that in the case of Eligible Securities and securities in which a security interest has been granted in connection with an Eligible Loan, the value of the underlying securities will be determined solely by The Bank of New York Mellon, London Branch, in its capacity as custodian of such securities, or any other entity that is the custodian of such securities, in each case, using its standard securities valuation procedures. In determining the value of such underlying securities, The Bank of New York Mellon, London Branch, or such other custodian, as applicable, may rely on valuations provided to it by third parties, including GS Group or its affiliates. It is not the responsibility of the Issuer or any of its affiliates or the Trustee to confirm that these determinations are made correctly by The Bank of New York Mellon, London Branch, or such other custodian or such third-party vendors.

The market value assigned to such assets by the party authorised to make such valuation for purposes of calculating the margin value of collateral securing a Series may be materially different than the value that would be assigned to such assets by others. In the case of a default, the value last assigned to such assets immediately prior to such default may be materially greater than the value realised in liquidation of such asset, including as a result of market movements between the date of the occurrence of the relevant termination event and the date on which such asset is

liquidated. Accordingly, the amount received on liquidation of the assets held as collateral from time to time may be less, or even significantly less, than the notional amount of such assets.

If the Issuer were to default in a payment to the Noteholders such that the Notes were accelerated, and payments on such Notes were to be satisfied from collateral assets, if the amount received on liquidation of the collateral assets was less than the notional amount of those assets, there may be insufficient amounts available to satisfy the payment obligations to the Noteholders.

(f) ***Segregation of collateral***

Certain provisions of the Trust Deed are intended to segregate any collateral which is the subject of a security arrangement in favour of the Trustee as secured party for the Noteholders of the relevant Series. However, such provisions and segregation may not be sufficient to, and none of such Issuer or its affiliates has represented that they will, eliminate the risks that such collateral may become subject to the claims of the Noteholders of other Series or other creditors of the Issuer, and if this occurs, the collateral available to satisfy amounts owed to the Noteholders of the relevant Series may be less than if such segregation had been effective.

(g) ***Processing and Operational Risks***

The allocation of assets that the Issuer receives from a counterparty to a Repo or a borrower under an Eligible Loan and in turn makes the subject of a security arrangement to secure a specified Series may, as a result of processing delays, be based on non-current information. Therefore, as a result of such processing delays, the confirmations and statements that the Trustee receives from the Issuer or a third party describing the related collateral may not always contain the most current information regarding the value of the assets listed on such documents. The Repo counterparty or Eligible Loan borrower may also grant a charge over, sell or charge certain interests in the assets sold under a Repo or made the subject of a security arrangement under an Eligible Loan either (i) to its counterparties under other master repurchase agreements or indebtedness documents (including Repos and Eligible Loans securing another Series) or (ii) to its secured financing creditors. If the assets so charged, made the subject of a security interest or sold by such Repo counterparty or Eligible Loan borrower to any counterparty or creditor described in (i) or (ii) above are insufficient, the Issuer may have to share *pro rata* in any such shortfall. Any such shortfall may result in a *pro rata* reduction in the value of the assets that are collateral securing the relevant Series. Accordingly, since the collateral over which security has been granted to secure each Series consists in part of the assets purchased and/or subject to security arrangements by the Issuer under the Repos and subject to security arrangements under the Eligible Loans in respect of such Series, the quantity of such assets subject to security arrangements by the Issuer to the Trustee in such a case will also be reduced *pro rata* from the amount specified on the face of the relevant collateral schedule.

In addition, it is anticipated that, from time to time, other operational factors may negatively affect the Repo counterparties and Eligible Loan borrowers' allocation of assets to the Issuer and consequently the Issuer's grant of a security interest in such assets to the Trustee in respect of a Series. These operational factors could include computer system failures that result in the failure to allocate the required amount of assets to the Issuer until such failures are cured. Any such failure that results in a shortfall by the Issuer to grant a security interest in sufficient assets to secure the relevant Series will not constitute an Event of Default with respect to such Notes until the Issuer obtains actual knowledge of such shortfall and fails to restore the required margin value within four Collateral Business Days from and including the Collateral Business Day on which notice of such deficiency is provided to the Issuer in accordance with the Agency Agreement.

Certain of the provisions of the Repos and the Eligible Loans, such as those relating to the provision of rights to the Issuer in Supplemental Assets are intended to address processing and operational

risks but may not, and none of the Issuer, the Repo counterparties, the Eligible Loan borrowers or any of their affiliates has represented that they will, eliminate these risks to the Issuer or any holder of the Notes.

"Supplemental Assets" means any funds credited by a Repo counterparty or an Eligible Loan borrower (each, a **"Supplemental Asset Pledgor"**) from time to time to a controlled deposit account (the **"Supplemental Assets Account"**) maintained by the Supplemental Asset Pledgor at a bank, trust company or registered broker dealer, which may be an affiliate of GS Group, on behalf of certain of the Supplemental Asset Pledgor's contractual counterparties or creditors, including the Issuer.

3.2 Risks related to the Market

(a) *Limited liquidity*

Although application may be made to admit the Notes on the Official List of Euronext Dublin and either admit them to trading on the regulated market or admit them to trading on the Global Exchange Market of Euronext Dublin, the Issuer gives no assurance that such application will be accepted, that any particular Notes will be so admitted, or that an active trading market in the Notes will develop. The Issuer may discontinue any such listing at any time. As such, the Notes may have no liquidity. The Issuer and its affiliates do not intend to make a market in the Notes (unless otherwise specified in the Final Terms), and accordingly a secondary market is unlikely to develop. The Issuer is under no legal obligation or commitment to provide liquidity. If the Issuer does make a market for the Notes, it may cease to do so at any time without notice to the Noteholders and the Issuer is not obligated to provide any quotation of bid or offer price(s) of the Notes which is favourable to the Noteholders. In addition, the Notes are subject to certain transfer restrictions and can only be transferred to certain transferees meeting specified criteria. Such restrictions on the transfer of Notes may further limit their liquidity. Consequently, an investor in the Notes must be prepared to hold the Notes for an indefinite period of time or until their scheduled maturity date.

(b) *Price discrepancies in secondary market*

The value of the Notes at any time will reflect many factors and cannot be predicted, and if a purchaser sells his or her Notes prior to maturity, such purchaser may receive less than the issue price. Such factors, most of which are beyond the control of the Issuer, will influence the market price of the Notes, and will include national and international economic, financial, regulatory, political, terrorist, military and other events, including global pandemics, that affect securities generally, interest and yield rates in the market, the time remaining until the Notes mature, the creditworthiness of the Issuer and the Guarantor, whether actual or perceived, and including actual or anticipated upgrades or downgrades in the credit rating of the Issuer or the Guarantor, and, if applicable, the performance of the Collateral. For example, particularly in relation to Notes with a fixed rate, in most cases an increase in interest rates during the term of the Notes will cause their value to decrease and if the Noteholders sell the Notes prior to maturity, they may receive less than the face amount of the Notes.

(c) *Risks associated with benchmark reform*

A number of major interest rates, other rates, indices and other published values or benchmarks, including the Euro Interbank Offered Rate ("**EURIBOR**") are the subject of ongoing national and international monitoring and regulatory reform. This has led to the modification of EURIBOR and may cause other benchmarks to be discontinued, to be modified or to be subject to other changes in the future. Any such consequence could have a material adverse effect on the value of and return on Notes to the payout of which is dependent on the performance of any such benchmark.

The European Union Regulation 2016/1011 on indices used as benchmarks in financial instruments and financial contracts or to measure the performance of investment funds (the "**EU Benchmarks Regulation**") and the EU Benchmarks Regulation as it forms part of United Kingdom domestic law by virtue of the European Union (Withdrawal) Act 2018 (as amended) and regulations made thereunder (the "**UK Benchmarks Regulation**", and together with the EU Benchmarks Regulation, the "**Benchmarks Regulations**") are a key element of the ongoing regulatory reform in, respectively, the European Union and the United Kingdom.

In addition to "critical benchmarks" such as EURIBOR, other interest rates, foreign exchange rates, and indices, including equity, commodity and "proprietary" indices or strategies, will in most cases be within scope of the Benchmarks Regulations as "benchmarks" where they are used to determine the amount payable under, or the value of, certain financial instruments (including (i) in the case of the EU Benchmarks Regulation, Notes listed on a regulated market or MTF in the European Union, and (ii) in the case of the UK Benchmarks Regulation, Notes listed on a recognised investment exchange or an MTF in the United Kingdom), and in a number of other circumstances.

The EU Benchmarks Regulation applies to the contribution of input data to a benchmark, the administration of a benchmark, and the use of a benchmark in the European Union. Amongst other things, the EU Benchmarks Regulation requires European Union benchmark administrators to be authorised or registered as such and to comply with extensive requirements relating to benchmark administration. It also prohibits, subject to transitional provisions, certain uses by European Union supervised entities of (a) benchmarks provided by European Union administrators not authorised or registered in accordance with the EU Benchmarks Regulation and (b) benchmarks provided by non-European Union administrators where (i) the administrator's regulatory regime has not been determined to be "equivalent" to that of the European Union, (ii) the administrator has not been recognised in accordance with the EU Benchmarks Regulation, and (iii) the benchmark has not been endorsed in accordance with the EU Benchmarks Regulation.

The UK Benchmarks Regulation imposes substantially the same obligations and restrictions as the EU Benchmarks Regulation but has a narrower geographical scope. The UK Benchmarks Regulation applies to the contribution of input data to a benchmark, the administration of a benchmark, and the use of a benchmark in the United Kingdom. In-scope entities include UK benchmark administrators and United Kingdom supervised entities.

ESMA maintains a public register of EU-approved benchmark administrators and non-EU country benchmarks pursuant to the EU Benchmarks Regulation (the "**ESMA Register**").

Similarly, the FCA maintains a separate public register of FCA-approved benchmark administrators and non-United Kingdom benchmarks pursuant to the UK Benchmarks Regulation (the "**UK Register**"). Benchmarks and benchmark administrators approved by the FCA prior to 31 December 2020 are included on the UK Register.

The EU Benchmarks Regulation and/or the UK Benchmarks Regulation could have a material adverse impact on the value of and return on Notes linked to a benchmark. Some examples of this are set out below:

- (i) A rate or index which is a "benchmark" within the meaning of the EU Benchmarks Regulation may not be used in certain ways by an EU supervised entity if (subject to applicable transitional provisions) its administrator does not obtain authorisation or registration from its EU competent authority (or, if a non-EU entity, does not satisfy the "equivalence" conditions and is not "recognised" by an EU competent authority, pending an equivalence decision, and does not have the relevant benchmark "endorsed" by an EU supervised entity). If a situation occurs (which is referred to as an "**EU Administrator/Benchmark Event**") where the benchmark administrator does not obtain or maintain (as applicable) such authorisation or

registration (or, if a non-EU entity, "equivalence" is not available and neither recognition nor endorsement is obtained), then the Notes may be redeemed prior to maturity.

- (ii) Similarly, a rate or index which is a "benchmark" within the meaning of the UK Benchmarks Regulation may not be used in certain ways by a UK supervised entity if (subject to applicable transitional provisions) its administrator does not obtain authorisation or registration from the FCA (or, if a non-UK entity, does not satisfy the "equivalence" conditions and is not "recognised" by the FCA, pending an equivalence decision, and does not have the relevant benchmark "endorsed" by a UK supervised entity). If a situation arises (this is referred to as a **"UK Administrator/Benchmark Event"**, together with an EU Administrator/Benchmark Event, an **"Administrator/Benchmark Event"**) where the benchmark administrator does not obtain or maintain (as applicable) such authorisation or registration (or, if a non-UK entity, "equivalence" is not available and neither recognition nor endorsement is obtained), then the Notes may be redeemed prior to maturity.
- (iii) If the reference asset is a benchmark and it would be unlawful or contradictory to any applicable licensing requirements for the Calculation Agent to determine the level or other value of such reference asset or make any other determination in respect of the Notes which it would otherwise be obliged to do so pursuant to the Conditions, then the Notes may be redeemed prior to maturity,
- (iv) The methodology or other terms of the benchmark could be changed in order to comply with the requirements of the applicable Benchmarks Regulation, or mandatory substitution of a benchmark with a replacement benchmark could be imposed by statute, and such changes could reduce or increase the rate or level or affect the volatility of the published rate or level, and (depending on the type of the particular Notes) could lead to adjustments to the terms of the Notes including Calculation Agent determination of the rate or level in its discretion.
- (v) Ongoing national and international regulatory reforms and the increased regulatory scrutiny of benchmarks generally could increase the costs and risks of administering or otherwise participating in the setting of a benchmark and complying with any applicable regulations or requirements. Such factors may discourage market participants from continuing to administer or contribute to benchmarks, trigger changes in the rules or methodologies used in respect of benchmarks, and/or lead to the disappearance of benchmarks. This could result in (i) the substitution of replacement rates for such benchmark(s), (ii) adjustments to the terms of the relevant Notes, (iii) early redemption of the relevant Notes, (iv) discretionary valuation of the rate by the Calculation Agent, (v) delisting of the relevant Notes and/or (vi) other consequences for Notes linked to any such benchmark(s). Any such action following the discontinuance of a reference rate could have a material adverse effect on the value of, and return on, the Notes.

(d) ***Risks relating to the discontinuance and/or loss of representativeness of swap rates and reform of EURIBOR***

(i) ***Swap Rates***

In the event that the Notes reference a rate that is discontinued post-issuance of the Notes, investors should be aware that such rate will be replaced with an alternative rate that may differ significantly from the original rate. Consequently, Notes may perform differently (which may include payment of a lower interest linked amount) from how they would have performed

if the original rate had continued to apply. See also "*Replacement of EURIBOR with risk-free rates*" below.

(ii) *Reform of EURIBOR*

The reform and replacement of EURIBOR with the Euro Short-Term Rate ("€STR"), as the new euro risk-free rate, may cause EURIBOR to perform differently than in the past, to disappear entirely, or have other consequences that cannot be predicted. Any of these developments could have a material adverse effect on the value of and return on Notes linked to any such rates.

In summary, as at the date hereof, EURIBOR has been reformed such that it is based on a hybrid methodology. On 13 September 2018, the Working Group on Euro Risk-Free Rates recommended €STR as the new euro risk-free rate, and the European Central Bank began publishing €STR on 2 October 2019. In addition, in May 2021, the Working Group published a set of guiding principles for fallback provisions in new EURIBOR-referencing contracts and financial instruments (including bonds) to address, among other things, the potential future discontinuation of EURIBOR.

The risk-free rates (such as SONIA, SOFR, €STR and TONA) have limited historical track record and, therefore, it may be difficult to compare to other rates, including the former interbank offered rates, or "**IBORs**", and even harder to understand how they may perform in the future. The level of any such risk-free rate during the term of the Notes may bear little or no relation to the historical actual or historical indicative data. Prior observed patterns, if any, in the behaviour of market variables and their relation to the risk-free rates, such as correlations, may change in the future.

Market terms for securities linked to such risk-free rates (such as SONIA, SOFR, €STR and TONA), such as the spread over the rate reflected in interest rate provisions, may evolve over time, and trading prices of such securities may be lower than those of later-issued securities as a result.

Furthermore, as an overnight rate based on a large volume of interbank transactions or a rate based on transactions secured by central banks' treasury securities, a risk-free rate (such as SONIA, SOFR, €STR or TONA) does not measure bank-specific credit risk and, as a result, is less likely to correlate with the unsecured short-term funding costs of banks. This may mean that market participants would not consider any such risk-free rate a suitable substitute or successor for all of the purposes for which an IBOR has historically been used (including, without limitation, as a representation of the unsecured short-term funding costs of banks), which may, in turn, lessen market acceptance of such risk-free rate. An established trading market for debt securities linked to the relevant risk-free rate may never develop or may not be very liquid. If the relevant risk-free rate does not prove to be widely used in the capital markets, the trading price of securities linked to risk-free rates may be lower than those of securities linked to rates that are more widely used. Noteholders may not be able to sell their Notes at all or may not be able to sell their Notes at prices that will provide Noteholders with a yield comparable to similar investments that have a developed secondary market, and may consequently suffer from increased pricing volatility and market risk.

(e) ***Risks relating to differences in methodologies between IBORs and "risk-free rates"***

"Risk-free rates" may differ from IBORs or other interbank offered rates in a number of material respects, including (without limitation) by being backward-looking in most cases or being calculated on a compounded or weighted average basis, whereas interbank offered rates are generally expressed on the basis of a forward-looking term and include a risk-element based on interbank lending. As such, the Noteholders should be aware that EURIBOR and other interbank offered

rates, by comparison to "risk-free rates", may behave materially differently as interest reference rates for the Notes.

Interest payments on Notes which reference a backward-looking "risk-free rate" are not determined until near the end of the relevant interest calculation period. As a result, holders of such Notes will not know the total amount of interest payable with respect to the related interest calculation period until shortly prior to the related interest payment date and it may be difficult or impossible to reliably estimate the interest amount which will be payable on each such interest payment date in respect of the Notes. Also, some investors may be unable or unwilling to trade such Notes without changes to their information technology or other operational systems to account for such backward-looking calculation, which could adversely impact the liquidity of such Notes. Further, if the Notes become due and payable on a date which is not an interest payment date, the final interest rate payable in respect of such Notes shall be determined by reference to a shortened period ending immediately prior to the date on which the Notes become due and payable or are scheduled for redemption.

(f) ***Risks relating to the developing markets for SONIA, SOFR, €STR, TONA and other risk-free rates***

The market continues to develop in relation to the adoption of risk-free rates, such as SONIA, SOFR, €STR and TONA as reference rates in the capital markets for sterling, U.S. dollar, euro and yen bonds, respectively, and to their adoption as alternatives to the relevant interbank offered rates. In addition, market participants and relevant working groups are exploring alternative reference rates based on "risk-free rates", including term SONIA, SOFR, €STR and TONA reference rates, which seek to measure the market's forward expectation of an average SONIA, SOFR, €STR or TONA rate over a designated term. The market or a significant part thereof may adopt an application of risk-free rates that differs significantly from that set out in the Conditions and used in relation to Notes that reference such risk-free rates issued under this Programme. The Issuer may in the future also issue Notes referencing SONIA, SOFR, €STR, TONA or other "risk-free rates" references Notes issued by it hereunder. The development of new "risk-free rates" could result in reduced liquidity or increased volatility, or could otherwise affect the market price of any Notes that reference a "risk-free rate" issued under this Base Prospectus from time to time.

Notes referencing "risk-free rates" may have no established trading market, when issued and an established trading market may never develop or may not be very liquid. Market terms for Notes referencing such "risk-free rates", such as spread over the index reflected in interest rate provisions, may evolve over time, and trading prices of such Notes may be lower than those of later-issued indexed debt securities as a result. Further, if the relevant risk-free rates do not prove to be widely used in securities like the Notes, the trading price of such Notes linked to such risk-free rates may be lower than those of securities referencing indices that are more widely used. Investors may not be able to sell such Notes at all or may not be able to sell them at prices that will provide a yield comparable to similar investments that have a developed secondary market, and an investment in such Notes may suffer from increased pricing volatility and market risk.

In addition, risk-free rates may differ from IBORs in a number of material respects, including (without limitation) by being backward-looking risk-free overnight rates calculated on a compounded or weighted average basis, whereas IBORs are generally expressed on the basis of a forward-looking term and include a risk-element based on interbank lending. As such, investors should be aware that IBORs and risk-free rates may behave materially differently as interest reference rates for the Notes.

Interest on Notes which reference a backward-looking risk-free rate is not determined until the end of the relevant interest calculation period. Therefore, you may be unable to estimate the amount of interest which will accrue over a specific interest calculation period at the outset. Also, some investors may be unable or unwilling to trade such Notes without changes to their information

technology or other operational systems, which could adversely impact the liquidity of such Notes. Further, if the Notes become due and payable under General Note Condition 16 (Events of Default), or are otherwise redeemed early on a date which is not an Interest Payment Date, the final Rate of Interest payable in respect of such Notes shall be determined by reference to a shortened period ending immediately prior to the date on which the Notes become due and payable or are scheduled for redemption.

In addition, the manner of adoption or application of "risk-free rates" in the Eurobond markets may differ materially compared with the application and adoption of "risk-free rates" in other markets, such as the derivative and loan markets. Investors should carefully consider how any mismatch between the adoption of such reference rates in the bond, loan and derivatives markets may impact any hedging or other financial arrangements which the Noteholders may put in place in connection with any acquisition, holding or disposal of Notes referencing such "risk-free rates".

If Notes reference a compounded daily SONIA, SOFR, €STR or TONA rate (being a rate of return of a daily compound interest investment with the daily SONIA, SOFR, €STR or TONA as reference rate for the calculation of interest), in the event that the SONIA, SOFR, €STR or TONA reference rate is temporarily unavailable or has not otherwise been published, the amount of interest payable on such Notes will be determined by the Calculation Agent in its discretion with reference to a number of different types of methodologies. The substitute reference rate and adjustment spread will be determined by the Calculation Agent, which may or may not take into account prevailing industry standards in any related market (including, without limitation, the derivatives market and any ISDA fallback rate in respect of the discontinued SONIA, SOFR, €STR or TONA reference rate and any corresponding ISDA fallback adjustment applicable to such ISDA fallback rate). If such substitute reference rate and adjustment spread are applied to the Notes, this could result in adverse consequences to the amount of interest payable on such Notes, which could adversely affect the return on, value of and market for such Notes. Further, there is no assurance that the characteristics of any substitute reference rate and adjustment spread will be similar to, or will produce the economic equivalent of, the SONIA, SOFR, €STR or TONA reference rate upon which compounded daily SONIA, SOFR, €STR or TONA is based.

(g) ***Risks associated with SONIA***

SONIA is published by the Bank of England and is intended to reflect the wholesale sterling unsecured overnight borrowing costs of banks located in the British sterling area and to serve as a backstop reference rate for existing benchmark rates produced by the private sector.

Since SONIA is published by the Bank of England based on data received from other sources, the Issuer has no control over its determination, calculation or publication. There can be no guarantee that SONIA will not be discontinued or fundamentally altered in a manner that is materially adverse to the interests of holders of SONIA-linked Notes. If the calculation methodology is changed, that change may result in a reduction of the amount of interest payable on the relevant Notes and the trading price of such Notes. Furthermore, SONIA in respect of any calendar day may be zero or negative.

SONIA has been administered by the Bank of England since April 2016. On 23 April 2018, the methodology used to calculate the benchmark was reformed following several rounds of consultation. On 3 August 2020, the Bank of England began publishing the daily SONIA Compounded Index. In addition, the Bank of England makes also available historical data on SONIA going back to its creation in 1997, as well as the historical SONIA Compounded Index data going back to 23 April 2018.

Investors should not rely on any historical changes or trends in SONIA as an indicator of future changes in SONIA. Also, Notes referencing SONIA may have no established trading market when

issued, and an established trading market may never develop or may not be very liquid. Market terms for debt instruments indexed to SONIA, such as the spread over the index reflected in interest rate provisions, may evolve over time, and trading prices of the relevant Notes may be lower than those of later-issued debt instruments as a result.

The Issuer may in the future also issue other Notes referencing SONIA that differ materially in terms of interest determination when compared with any pre-existing SONIA-linked Notes. The relatively recent development of SONIA as a reference rate for the Eurobond and structured product markets, as well as continued development of rates based on SONIA for such markets and market infrastructure for adopting such rates, could result in reduced liquidity or increased volatility or otherwise affect the market price of the relevant Notes.

Interest on SONIA-linked Notes (where SONIA is part of a Compounded RFR or Compounded Index) is only capable of being determined at the end of the relevant interest calculation period and shortly prior to the relevant interest payment date. It may be difficult for investors in such Notes to reliably estimate the amount of interest that they will receive.

(h) ***Risks associated with TONA***

TONA is published by the Bank of Japan and is intended to reflect the Japanese yen unsecured overnight borrowing costs of banks located in the Japanese yen area and to serve as a backstop reference rate for existing benchmark rates produced by the private sector.

Since TONA is published by the Bank of Japan based on data received from other sources, the Issuer has no control over its determination, calculation or publication. There can be no guarantee that TONA will not be discontinued or fundamentally altered in a manner that is materially adverse to the interests of holders of TONA-linked Notes. If the calculation methodology is changed, that change may result in a reduction of the amount of interest payable on the relevant Notes and the trading price of such Notes. Furthermore, TONA in respect of any calendar day may be zero or negative.

TONA has been administered by the Bank of Japan since April 2016. Investors should not rely on any historical changes or trends in TONA as an indicator of future changes in TONA. Also, Notes referencing to TONA may have no established trading market when issued, and an established trading market may never develop or may not be very liquid. Market terms for debt instruments indexed to TONA, such as the spread over the index reflected in interest rate provisions, may evolve over time, and trading prices of the relevant Notes may be lower than those of later-issued debt instruments as a result.

The Issuer may in the future also issue other Notes referencing TONA that differ materially in terms of interest determination when compared with any pre-existing TONA-linked Notes. The relatively recent development of TONA as a reference rate for the Eurobond and structured product markets, as well as continued development of rates based on TONA for such markets and market infrastructure for adopting such rates, could result in reduced liquidity or increased volatility or otherwise affect the market price of the relevant Notes.

Interest on TONA-linked Notes (where TONA is part of a Compounded RFR or Compounded Index) is only capable of being determined at the end of the relevant interest calculation period and shortly prior to the relevant interest payment date. It may be difficult for investors in such Notes to reliably estimate the amount of interest that they will receive.

(i) ***Risks associated with SOFR***

The Federal Reserve Bank of New York (the "**NY Federal Reserve**") began to publish SOFR in April 2018 and began publishing SOFR averages and index values in March 2020. SOFR is

intended to be a broad measure of the cost of borrowing cash overnight collateralised by U.S. Treasury securities.

Furthermore, the NY Federal Reserve notes on its publication page for SOFR that use of SOFR is subject to important limitations, indemnification obligations and disclaimers, including that the NY Federal Reserve may alter the methods of calculation, publication schedule, rate revision practices or availability of SOFR at any time without notice. There can be no guarantee that SOFR will not be discontinued or fundamentally altered in a manner that is materially adverse to holders of SOFR-linked Notes. If the manner in which SOFR is calculated is changed or if SOFR is discontinued, that change of discontinuance may adversely affect the return on and value of the relevant Notes.

Although the NY Federal Reserve has also begun publishing historical indicative SOFR going back to 2014, such pre-publication historical data inherently involves assumptions, estimates and approximations. Investors should not rely on any historical changes or trends in SOFR as an indicator of the future performance of SOFR. Since the initial publication of SOFR, daily changes in the rate have, on occasion, been more volatile than daily changes in comparable benchmark or market rates. As a result, the return on and value of SOFR-linked Notes may fluctuate more than floating rate securities that are linked to less volatile rates.

(j) ***Risks associated with €STR***

€STR is published by the European Central Bank (the "**ECB**") and is intended to reflect the wholesale euro unsecured overnight borrowing costs of banks located in the Euro area and to serve as a backstop reference rate for existing benchmark rates produced by the private sector. The ECB reports that €STR is calculated based entirely on actual individual transactions in Euro that are reported by banks in accordance with the ECB's money market statistical reporting ("**MMSR**").

The ECB reports that €STR is calculated as a volume-weighted trimmed mean based on borrowing transactions in Euro conducted with financial counterparties that banks report in accordance with Regulation (EU) No 1333/2014 (the "**MMSR Regulation**"), the concepts and definitions of which underlie the €STR conceptual framework. The ECB notes that €STR is based on daily confidential statistical information relating to money market transactions collected in accordance with the MMSR Regulation. The regular data collection started on 1 July 2016. €STR is based exclusively on the eligible data from the unsecured market segment of the MMSR.

The ECB further notes that the use of €STR is subject to limitations and disclaimers, including that the ECB may (i) materially change the €STR methodology or €STR determination process, or (ii) cease the determination and publication of €STR (in each case after consulting with stakeholders to the extent it is possible or practicable and all as described in Guideline (EU) 2019/1265 of the European Central Bank of 10 July 2019 on the Euro short-term rate (€STR) (ECB/2019/19)) (as amended).

Since €STR is published by the ECB based on data received from other sources, the Issuer has no control over its determination, calculation or publication. There can be no guarantee that €STR will not be discontinued or fundamentally altered in a manner that is materially adverse to the interests of holders of €STR-linked Notes. If the manner in which €STR is calculated is changed, that change may result in a reduction of the amount of interest payable on the relevant Notes and the trading price of such Notes. Furthermore, €STR in respect of any calendar day may be zero or negative.

The ECB began to publish €STR as of 2 October 2018. The ECB had also begun publishing historical indicative pre-€STR going back to March 2017. Investors should not rely on any historical changes or trends in €STR as an indicator of future changes in €STR. Also, since €STR is a new market index, any €STR-linked Notes will be likely to have no established trading market when issued, and an established trading market may never develop or may not be very liquid. Market

terms for debt instruments indexed to €STR, such as the spread over the index reflected in interest rate provisions, may evolve over time, and trading prices of the relevant Notes may be lower than those of later-issued debt instruments as a result.

The Issuer may in the future also issue other Notes referencing €STR that differ materially in terms of interest determination when compared with any pre-existing €STR-linked Notes. The nascent development of €STR as a reference rate for the Eurobond and structured product markets, as well as continued development of rates based on €STR for such markets and market infrastructure for adopting such rates, could result in reduced liquidity or increased volatility or otherwise affect the market price of the relevant Notes.

Interest on €STR-linked Notes (where €STR is part of a Compounded RFR or Compounded Index) is only capable of being determined at the end of the relevant interest calculation period and shortly prior to the relevant interest payment date. It may be difficult for investors in such Notes to reliably estimate the amount of interest that they will receive.

In addition, the manner of adoption or application of reference rates based on €STR in the Eurobond and structured product markets may differ materially compared with the application and adoption of €STR in other markets, such as the derivatives and loan markets. Investors should carefully consider how any mismatch between the adoption of reference rates based on €STR across these markets may impact any hedging or other financial arrangements which they may put in place in connection with any acquisition, holding or disposal of Notes.

Furthermore, if €STR does not prove to be widely used in the Eurobond and structured product markets, the trading price of €STR-linked Notes may be lower than notes linked to other benchmarks that are more widely used. Holders of €STR-linked Notes may not be able to sell their Notes at all or may not be able to sell them at prices that will provide the holders with a yield comparable to similar investments that have a developed secondary market, and may consequently suffer from increased pricing volatility and market risk.

(k) ***Additional risks in relation to the Benchmarks Regulation and reform***

For Notes which reference an affected benchmark, uncertainty as to the nature of alternative reference rates and as to potential changes or other reforms to such benchmark may adversely affect such benchmark rates during the term of such Notes and the return on, value of, and trading market for such Notes.

In accordance with the terms and conditions of the Notes, Notes which reference an affected benchmark may be subject to adjustment of the interest or other payment provisions in certain circumstances, such as (i) discontinuation of the relevant benchmark, (ii) inability of the benchmark's administrator to obtain authorisation or registration, (iii) changes in the manner of the benchmark's administration, or (iv) availability of a successor or replacement benchmark. The circumstances which could trigger such adjustments are beyond the Issuer's control and the subsequent use of a replacement benchmark may result in changes to the terms and conditions (which could be extensive) and/or interest or other payments under the Notes that are lower than or that do not otherwise correlate over time with the payments that could have been made on such Notes if the original benchmark had remained available in its unamended form. Although, pursuant to the terms and conditions of the Notes, adjustments may be applied to such replacement benchmark in order to reduce or eliminate, to the extent reasonably practicable in the circumstances, any economic prejudice or benefit (as applicable) to investors arising out of the replacement of the relevant benchmark, the application of such adjustments to the Notes may not achieve this objective. Any such changes may result in the Notes performing differently (which may include payment of a lower interest rate) than if the original benchmark had continued to apply. There is no assurance that the characteristics of any replacement benchmark would be similar to

the affected benchmark, or that any replacement benchmark would produce the economic equivalent of the affected benchmark or would be a suitable replacement for the affected benchmark. The choice of replacement benchmark is uncertain and could result in the replacement benchmark being unavailable or indeterminable.

The terms and conditions of the Notes may require the exercise of discretion by the Issuer or the Calculation Agent, as the case may be, and the making of potentially subjective judgements (including as to the occurrence or otherwise of any event(s) which may trigger amendments to the terms and conditions) and/or the amendment of the terms and conditions without the consent of Noteholders. The interests of the Issuer or the Calculation Agent, as applicable, in making such determinations or amendments may be adverse to the interests of the Noteholders. See Risk Factor 3.8 (*Risks associated with conflicts of interest between GS Group and its consolidated subsidiaries ("Goldman Sachs") and purchasers of the Notes and discretionary powers of the Issuer and the Calculation Agent including in relation to their hedging arrangements*).

Noteholders should consider these matters when making investment decisions with respect to Notes where the return is dependent in whole or in part on the performance of a "benchmark". Noteholders should also consult their own independent advisers and make their own assessment about the potential risks imposed by the Benchmarks Regulations and/or other reforms and/or possible discontinuation or reform of certain reference rates.

(l) *Risks associated with Original Primary Rates by reference to which any interest amount payable under the Notes is determined*

The interest amount(s) payable under the Notes may be determined by reference to one or more Original Primary Rates. An Original Primary Rate: (i) may be materially modified, (ii) may cease to be provided permanently or indefinitely, (iii) may be determined to be unrepresentative of the underlying market and economic reality that it intends to measure, or (iv) may not be used in certain ways by the Issuer or the Agent Bank (or, as applicable, the Calculation Agent) if its administrator or such Original Primary Rate does not obtain authorisation or registration (subject to applicable transitional provisions). If any such event mentioned in (i), (ii), (iii) or (iv) above occurs, GSI (as Agent Bank or Calculation Agent, as applicable) shall (after the application of any Priority Fallback(s) specified in the definition of such Original Primary Rate): (A) attempt to identify a replacement rate, (B) attempt to determine an adjustment spread that we determine is required in order to reduce or eliminate any transfer of economic value from the Issuer to the Holders (or vice versa), and (C) make such adjustments to the terms and conditions as we determine to be necessary or appropriate in order to account for the effect of such replacement.

If: (I) GSI (as Agent Bank or Calculation Agent, as applicable) cannot identify a replacement rate or determine an adjustment spread, or (II) the Agent Bank or Calculation Agent, as applicable, believes that it would be unlawful or would contravene any applicable licensing requirements for it to perform the proposed actions above, or (III) the Agent Bank or Calculation Agent, as applicable, believes that the adjustment spread is or would be a benchmark, index or other price source that would subject GSI to material additional regulatory obligations, or (IV) the adjustments above would not achieve a commercially reasonable result, the Issuer may redeem the Notes early. In such event, the Issuer will pay the applicable early redemption amount to Noteholders. The applicable early redemption amount may be less than the Noteholders' original investment and Noteholders may lose some or all of their money.

(m) *As Agent Bank, GSI will have the authority to make determinations that could affect the value of the Notes and the amount Noteholders may receive on any interest payment date*

As Agent Bank for the Notes, GSI will make various determinations, using its discretion, that affect the Notes. Further, if with respect to any secured note, GSI determines on or prior to the relevant

interest determination date that a Benchmark Transition Event and its related Benchmark Replacement Date have occurred with respect to any reference rate, then the benchmark transition provisions will thereafter apply to all determinations of the interest payable on the secured notes. For details, please see General Condition 13 in this Base Prospectus. If, however, the reference rate is unavailable on an interest determination date and the Agent Bank has not determined that a Benchmark Transition Event and its related Benchmark Replacement Date have occurred, the Agent Bank will have sole discretion to determine reference rate for the relevant interest reset date. The exercise of discretion by the Agent Bank may present GSI with a conflict of interest and this could adversely affect the return on, value of and market for the secured notes.

(n) ***Risks relating to emerging markets***

Where the terms of the Notes are linked to emerging market Collateral or Underlying Asset(s), or provide for payments to be made in the currency of an emerging markets jurisdiction, the Noteholders may be exposed to additional risks from those normally associated with an investment relating to the relevant type of Collateral or Underlying Asset(s). The political and economic situation in countries with emerging economies or stock markets may be undergoing significant evolution and rapid development, and such countries may lack the social, political and economic stability characteristics of more developed countries, which may result in a significant risk of high inflation and currency value fluctuation. Such instability may result from, among other things, authoritarian governments or military involvement in political and economic decision-making, including changes or attempted changes in governments through extra-constitutional means; popular unrest associated with demands for improved political, economic or social conditions; internal insurgencies; hostile relations with neighbouring countries; and ethnic, religious and racial disaffections or conflict. Some of these countries may have in the past failed to recognise private property rights and have at times nationalised or expropriated the assets of private companies. As a result, the risks from investing in those countries, including the risks of nationalisation or restrictions being imposed on foreign purchasers, expropriation of assets, confiscatory taxation, confiscation or nationalisation of foreign bank deposits or other assets, the introduction of currency controls or other detrimental developments, which may financially impair investments in such countries, may be heightened. Such impairments can, under certain circumstances, last for long periods of time, i.e. weeks or years, and may result in the occurrence of market disruption events which means that no prices will be quoted for the Notes or Collateral affected by such market disruption events. In addition, unanticipated political or social developments may affect the values of an asset investment in those countries. The small size and inexperience of the securities markets in certain countries and the limited volume of trading in securities may make the assets illiquid and more volatile than investments in more established markets. There may be little financial or accounting information available with respect to local issuers, and it may be difficult as a result to assess the value or prospects of the Collateral or the Underlying Asset(s), as applicable, and any such difficulties with regard to the Underlying Assets could make it difficult to obtain a value for the Notes.

3.3 **Risks related to Notes linked to one or more Underlying Assets**

(a) ***The value of and return on the Notes depends on the performance of the Underlying Asset(s)***

The return on the Notes may depend on the performance of one or more Underlying Asset(s). In particular, where the terms of the Notes do not provide for scheduled minimum payment of the face value or issue price of the Notes at maturity, whether the Noteholders receive some or all of their money back at maturity (or any positive return) will depend on the performance of the Underlying Asset(s). Noteholders should therefore be aware that they may lose some or all of their investment.

The level, price, rate, net asset value or other applicable value of the Underlying Asset(s) may be subject to unpredictable change over time. This degree of change is known as "volatility". The

volatility of an Underlying Asset may be affected by national and international financial, political, military or economic events, including governmental actions, or by the activities of participants in the relevant markets. Any of these events or activities could adversely affect the value of and return on the Notes. Volatility does not imply direction of the level, price, rate, net asset value or other applicable value, though an Underlying Asset that is more volatile is likely to increase or decrease in value more often and/or to a greater extent than one that is less volatile.

Where the performance of an Underlying Asset in relation to the Notes is calculated on a "European basis" – i.e. a comparison is made between the Underlying Asset's level, price, rate, net asset value or other applicable value on a start date and a future date to determine performance – the Noteholders will not benefit from any increase in the Underlying Asset's level, price, rate, net asset value or other applicable value from the start date up to, but excluding, the specified date on which the Underlying Asset's level, price, rate, net asset value or other applicable value will be determined for the purpose of the Notes.

Where the performance of an Underlying Asset in relation to the Notes is calculated on an "Asian basis" – i.e. the average of the Underlying Asset's level, price, rate, net asset value or other applicable value on a number of reference dates is used to determine the performance – the average level, price, rate, net asset value or other applicable value will be lower than the highest value and therefore the Noteholders will not benefit from the greatest increase in the Underlying Asset's level, price, rate, net asset value or other applicable value from the start date.

- (b) ***The estimated value of the Notes (as determined by reference to pricing models used by the Issuer) at the time the terms and conditions of the Notes are set on the trade date, will be less than the original issue price of the Notes***

The original issue price for the Notes will exceed the estimated value of the Notes as from the trade date, as determined by reference to the Issuer's pricing models and taking into account the Issuer's credit spreads. The difference between the estimated value of the Notes as of the time the terms and conditions of the Notes were set on the trade date and the original issue price is a result of many factors, including among others on issuance (the underwriting discount and commissions where permitted by applicable law), the expenses incurred in creating, documenting and marketing the Notes and the Issuer's own internal funding costs (being an amount based on what the Issuer would pay to holders of a non-structured security with a similar maturity). The difference may be greater when the Notes are initially traded on any secondary markets and may gradually decline in value during the term of the Notes. Information with respect to the amount of these inducements, commissions and fees will be included in the Final Terms and may be obtained from the Issuer upon request.

In estimating the value of the Notes as of the time the terms and conditions of the Notes were set on the trade date, the Issuer's pricing models consider certain variables, including principally the Issuer's credit spreads, interest rates (forecasted, current and historical rates), volatility, price-sensitivity analysis and the time to maturity of the Notes. These pricing models are proprietary and rely in part on certain assumptions about future events, which may prove to be incorrect. As a result, the actual value the Noteholders would receive if they sold their Notes in the secondary market, if any, to others may differ, perhaps materially, from the estimated value of their Notes determined by reference to the Issuer's models, due to, among other things, any differences in pricing models or assumptions used by others. Accordingly, the issue price of the Notes as at the trade date is likely to be more than the initial market value of the Notes, and this could result in a loss if the Noteholders sell the Notes prior to their scheduled redemption.

(c) ***The value and quoted price of the Notes (if any) at any time will reflect many factors and cannot be predicted***

The value and quoted price of the Notes (if any) at any time will reflect many factors and cannot be predicted. The following factors, amongst others, many of which are beyond the Issuer's control, may influence the market value of the Notes:

- (i) whether the Notes are linked to a single Underlying Asset or a basket of Underlying Assets;
- (ii) the volatility – i.e. the frequency and magnitude of changes – of the levels of the Underlying Asset or basket of Underlying Assets;
- (iii) the level, price, value or other measure of the Underlying Asset(s) to which the Notes are linked, the participation rate, the weighting multipliers, the cap level and/or the buffer level and/or other payout term, as applicable;
- (iv) if applicable, the dividend rates of the shares underlying the Underlying Asset(s);
- (v) economic, financial, regulatory, political, military and other events that affect stock markets generally and the shares underlying the Underlying Asset(s) or basket of Underlying Asset(s), and which may affect the closing level of the Underlying Asset(s) or the basket closing level;
- (vi) economic, financial, regulatory, geographic, judicial, political and other developments that affect the level, value or price of the Underlying Asset(s), and real or anticipated changes in those factors;
- (vii) interest rates and yield rates in the market;
- (viii) the time remaining until the Notes mature;
- (ix) the terms of the collateral arrangements for the Notes; and
- (x) the Issuer's creditworthiness, whether actual or perceived, and including actual or anticipated upgrades or downgrades in its credit ratings or changes in other credit measures.

If the Issuer makes a market in the Notes, the price quoted by the Issuer would reflect any changes in market conditions and other relevant factors, including any deterioration in the Issuer's creditworthiness or perceived creditworthiness. These changes may adversely affect the value of the Notes, including the price the Noteholders may receive for their Notes in any market making transaction. To the extent that the Issuer makes a market in the Notes, the quoted price will reflect the estimated value determined by reference to the Issuer's pricing models at that time, plus or minus its customary bid and ask spread for similar sized trades of structured securities and subject to the declining excess amount described in risk factor 3.3(b) (*The estimated value of the Notes (as determined by reference to pricing models used by the Issuer) at the time the terms and conditions of the Notes are set on the trade date, will be less than the original issue price of the Notes*) above.

Further, if the Noteholders sell their Notes, they will likely be charged a commission for secondary market transactions, or the price will likely reflect a dealer discount. This commission or discount will further reduce the proceeds the Noteholders would receive for their Notes in a secondary market sale.

If the Noteholders sell their Notes prior to maturity, they may receive less than the face amount or initial purchase price of their Notes. The Noteholders cannot predict the future performance of the applicable Underlying Asset(s) based on its or their historical performance.

The Noteholders should note that the issue price and/or offer price of the Notes may include subscription fees, placement fees, direction fees, structuring fees and/or other additional costs. Any such fees and costs may not be taken into account for the purposes of determining the price of such Notes on the secondary market and could result in a difference between the original issue price and/or offer price, the theoretical value of the Notes, and/or the actual bid/offer price quoted by any intermediary in the secondary market. Any such difference may have an adverse effect on the value of the Notes, particularly immediately following the offer and the issue date relating to such Notes, where any such fees and/or costs may be deducted from the price at which such Notes can be sold by the initial investor in the secondary market.

There is no assurance that the Issuer or any other party will be willing to purchase the Notes at any price and, in this regard, the Issuer is not obligated to make a market in the Notes. See risk factor 3.3(d) (*The Notes may not have an active trading market; the aggregate nominal amount or number of Notes outstanding at any time may be significantly less than that outstanding on the issue date, and this could have a negative impact on the Noteholders' ability to sell their Notes in the secondary market*) below.

- (d) ***The Notes may not have an active trading market; the aggregate nominal amount or number of Notes outstanding at any time may be significantly less than that outstanding on the issue date, and this could have a negative impact on the Noteholders' ability to sell their Notes in the secondary market***

Unless the Issuer expressly tells the Noteholders otherwise, or to the extent that the rules of any stock exchange on which the Notes are listed and admitted to trading require the Issuer to provide liquidity in respect of the Notes, there may be little or no secondary market for the Notes and the Noteholders may be unable to sell them.

If the Issuer does make a market for the Notes, the Issuer may cease to do so at any time without notice to the Noteholders and the Issuer is not obligated to provide any quotation of bid or offer price(s) of the Notes which is favourable to the Noteholders.

For those Notes for which an application will be or has been made to be listed and admitted to trading on a stock exchange, the Issuer gives no assurance that such application will be accepted, that any particular Notes will be so admitted, or that an active trading market in the Notes will develop. The Issuer may discontinue any such listing at any time. Even if a secondary market for the Notes develops, it may not provide significant liquidity and transaction costs in any secondary market could be high. As a result, the difference between bid and asked prices for the Notes in any secondary market could be substantial. See also risk factor 3.3(c) (*The value and quoted price of the Notes (if any) at any time will reflect many factors and cannot be predicted*) above.

If so indicated in the Final Terms, on the issue date a specified amount of Notes will be issued to and made available for sale by GSI (or any other appropriately licensed affiliate), acting as dealer, and may be listed and admitted to trading on one or more regulated markets of any European Economic Area member state for purchase by investors. However, the Issuer and GSI (or any other appropriately licensed affiliate), acting as dealer, reserve the right to cancel some or all of the Notes held by GSI (or any other appropriately licensed affiliate) at any time prior to the final maturity of the Notes. Accordingly, the aggregate number of Notes outstanding at any time may be significantly less than that outstanding on the issue date, and this could have a negative impact on the Noteholders' ability to sell the Notes in the secondary market. Any such right of cancellation by GSI (or any other appropriately licensed affiliate), acting as dealer, shall be exercised in accordance with applicable laws, the terms and conditions of the Notes and the applicable rules of the relevant stock exchange(s) and markets, including as to notification.

Noteholders should therefore not assume that the Notes can be sold at a specific time or at a specific price during their life, and Noteholders should assume that they may need to hold the Notes until they mature. The availability of any secondary market may be limited or non-existent and, if the Noteholders are able to sell their Notes, they may receive significantly less than they would otherwise receive by holding the Notes to their scheduled maturity.

(e) ***Following a disruption event, the valuation of the Underlying Asset(s) may be postponed and/or valued by the Calculation Agent in its discretion***

If GSI as Calculation Agent, or such other entity appointed as calculation agent for any Series of Notes, determines that a disruption event in relation to the Underlying Asset(s) has occurred that affects the determination of the level, price, rate, net asset value or other applicable value of the Underlying Asset(s) on any relevant day, the calculation agent may postpone the valuation and ultimately determine the level, price, rate, net asset value or other applicable value in its discretion. Any such postponement and/or alternative valuation may have a negative effect on the value of and return on the Notes. In the event that the valuation day of the Underlying Asset(s) is postponed, the date on which final cash settlement is made on the Notes may also be postponed.

(f) ***Following the occurrence of certain extraordinary events in relation to the Underlying Asset(s) or the Original Primary Rate(s), or following the occurrence of an index adjustment event in relation to an Index, the terms and conditions of the Notes may be adjusted or the Notes may be redeemed early at their applicable early redemption amount***

If GSI as Calculation Agent, or such other entity appointed as calculation agent for any Series of Notes, determines that an extraordinary event (as described below in relation to each type of Underlying Asset) has occurred in relation to the Underlying Asset(s), or an Original Primary Rate Event has occurred in relation to the Original Primary Rate(s) or an Index Adjustment Event has occurred in relation to an Index, then the Calculation Agent may adjust the terms and conditions of the Notes (without the Noteholders' consent) to account for such event or direct the Issuer to redeem the Notes early. Any adjustment made to the terms and conditions of the Notes may have a negative effect on the value of and return on the Notes.

In the event of early redemption, the Issuer will pay to the Noteholders the applicable early redemption amount. Unless the terms of the Notes provide that "Par plus accrued" is applicable, the applicable early redemption amount will be an amount determined by the Calculation Agent as the fair market value of such Notes on the second Business Day prior to the date of such early redemption, determined by reference to such factors as the Calculation Agent considers to be appropriate, and (if the relevant Final Terms specify "Adjusted for Issuer Expenses and Costs" as applicable) adjusted to account fully for the Issuer's reasonable expenses and costs including those relating to the unwinding of any Underlying Asset and/or the Issuer's related hedging arrangements (if any). The applicable early redemption amount may be less than the Noteholders' initial investment and they may therefore lose some or all of their investment.

Following any such early redemption of the Notes, the Noteholders may not be able to reinvest the proceeds from an investment at a comparable return and/or with a comparable interest rate for a similar level of risk. The Noteholders should consider such reinvestment risk in light of other available investments when they purchase the Notes.

3.4 Risks associated with particular types of Underlying Assets

The following risks are associated with Notes that reference a particular type of Underlying Asset or particular types of Underlying Assets:

(a) ***Risks associated with Shares as Underlying Assets***

The description of the risk factors in this risk factor 3.4(a) is relevant to the Noteholders if the type of Underlying Asset(s) (or if one of the types of Underlying Assets) to which their Notes are linked is a Share.

(i) *Various unpredictable factors may affect the performance of Shares*

The performance of Shares is dependent upon macroeconomic factors, such as interest and price levels on the capital markets, currency developments, political factors as well as company-specific factors such as earnings position, market position, risk situation, shareholder structure and distribution policy, as well as business risks faced by the issuers thereof. Any one or a combination of such factors could adversely affect the performance of the Underlying Asset(s) which, in turn, would have a negative effect on the value of and return on the Notes.

(ii) *Actions by the issuer of a Share may negatively affect the Notes*

The Issuer gives no assurance that all events occurring prior to the issue date of the Notes that would affect the trading price of the relevant Share will have been publicly disclosed. Subsequent disclosure of any such events or the disclosure of or failure to disclose material future events concerning the share issuer could affect the trading price of the Share and therefore the trading price of the Notes.

Also, Noteholders should be aware that no issuer of a Share will have any involvement in the offer and sale of the Notes and will have no obligation to any Noteholder as a holder of Notes. The issuer of a Share may take any actions in respect of such Share without regard to the interests of any holder of Notes, and any of those actions could have a negative effect on the value of and return on the Notes.

(iii) *Following the occurrence of an extraordinary event in relation to the Share(s), the terms and conditions of the Notes may be adjusted or the Notes may be redeemed early at the applicable early redemption amount*

If any of a delisting, insolvency, merger event, nationalisation or tender offer (all as defined in the terms and conditions of the Notes) occurs in relation to an underlying Share or the issuer of a relevant underlying Share, this will be an "Extraordinary Event", upon the occurrence of which the Calculation Agent may adjust the terms and conditions of the Notes (without the consent of holders) or direct the Issuer to redeem the Notes early. If the Issuer redeems the Notes, the applicable early redemption amount payable to the Noteholders may be less than they paid for the Notes. See risk factor 3.3(f) (*Following the occurrence of certain extraordinary events in relation to the Underlying Asset(s) or the Original Primary Rate(s), or following the occurrence of an index adjustment event in relation to an Index, the terms and conditions of the Notes may be adjusted or the Notes may be redeemed early at the applicable early redemption amount*) above.

(iv) *The occurrence of a potential adjustment event may lead to an adjustment to the terms of the Notes that could have a negative effect on the value of and return on the Notes*

A "potential adjustment event" is an event which has a dilutive or concentrative effect on the theoretical value of the Underlying Asset(s). If a Potential Adjustment Event occurs, the Calculation Agent may elect to amend the terms and conditions of the Notes (such amendment to be determined without any Noteholders' consent) to account for the dilutive or concentrative effect of the event. Any adjustment made to the terms and conditions of the Notes may have a negative effect on the value of and return on the Notes.

- (v) *The Notes may be adjusted or redeemed prior to maturity due to the occurrence of a Change in Law (Increased Cost). Any such adjustment may have an adverse effect on the value of and return on the Notes; and the amount the Noteholders receive following an early redemption may be less than their initial investment.*

Where, due to the occurrence of a Change in Law (Increased Cost), the Calculation Agent determines that the Issuer or any of its affiliates would incur a materially increased cost in performing its obligations under the Notes, if "Change in Law (Increased Cost)" is specified as being applicable in the relevant Final Terms, the Calculation Agent may, in its discretion, either (A) amend the terms and conditions of the Notes to account for such change in law or (B) direct the Issuer to redeem the Notes for the applicable early redemption amount, which may be less than the Noteholders paid for the Notes. See risk factor 3.3(f) (*Following the occurrence of certain extraordinary events in relation to the Underlying Asset(s) or the Original Primary Rate(s) or following the occurrence of an index adjustment event in relation to an Index, the terms and conditions of the Noteholders' Notes may be adjusted or the Notes may be redeemed early at the applicable early redemption amount*) above.

- (vi) *Ordinary Dividend Adjustment*

The terms and conditions of the Notes may provide that the weighting applied to the reference price when determining any amount payable for specified reference dates may be adjusted depending on the difference between the actual amount of such dividends compared with a prescribed schedule of anticipated dividends for such Share(s). If that is the case, then the following risks may be relevant to Noteholders for such Notes:

- (A) The amount the Noteholder is entitled to receive on the stated Maturity Date may be subject to adjustment if the Share Issuer pays ordinary cash dividends that are higher or lower than the anticipated dividends. In general, the Calculation Agent will adjust the weighting applied to the reference price for the Notes upward in the event of an increased ordinary cash dividend and downward in the event of a decreased ordinary cash dividend in respect of any dividend period.
- (B) If the Share Issuer pays an ordinary cash dividend that is less than the anticipated dividends, the Calculation Agent will adjust the weighting applied to the reference price downward. If a decreased dividend occurs and the Calculation Agent adjusts the weighting applied to the reference price downward, the amount that the Noteholder will receive at maturity will be reduced and the market value of the Notes may be negatively affected. Whether the weighting applied to the reference price will be adjusted for any particular ordinary cash dividend and whether the adjustment will be upward or downward will depend on the anticipated dividends for the given dividend period and the actual cash dividend paid for that period. Whether the Share Issuer will pay dividends and, if so, the amounts, are determined in its sole discretion and are beyond the control of the Issuer.
- (C) A dividend payment could result in both a decline in the market value of the Underlying Asset (and, thus, of the Notes) and a downward adjustment of the weighting applied to the reference price if the ordinary dividends paid are less than the anticipated dividends. Any downward adjustment of the weighting applied to the reference price will further reduce the market value of the Notes and thus the amount the Noteholder will receive at maturity. Even if a dividend payment that results in a decline in the market value of the Underlying Asset (and, thus, of the Notes) also results in an upward adjustment of the weighting applied to the reference price, there is no assurance that any adjustment of such weighting that may be made will compensate the Noteholder for any resulting decline in market value. Whether or not the weighting applied to the

reference price for the Notes will be adjusted in respect of an ordinary cash dividend and the timing of such adjustment will be determined by the Calculation Agent in its sole discretion. The Calculation Agent will not adjust the weighting applied to the reference price for any decreased or increased dividends with an ex-dividend date that occurs after the relevant dividend period. Thus, the weighting applied to the reference price for the Notes will not be adjusted, even if the Share Issuer declares an increased ordinary dividend, if the relevant ex-dividend date falls after the dividend period. In addition, adjustment to the reference price weighting described above will not apply to any dividends that are not paid in cash.

(b) ***Risks associated with Depositary Receipts (comprising American Depositary Receipts ("ADRs") and Global Depositary Receipts ("GDRs")) as Underlying Assets***

The description of the risk factors in this risk factor 3.4(b) is relevant to Noteholders if the type of Underlying Asset(s) (or if one of the types of Underlying Assets) to which their Notes are linked is an ADR or a GDR.

- (i) *ADRs and GDRs represent underlying shares, and therefore Noteholders are exposed to the risks of an investment linked to underlying shares*

See risk factor 3.4(a) (*Risks associated with Shares as Underlying Assets*) above.

- (ii) *Exposure to risk of non-recognition of beneficial ownership*

The legal owner of the shares underlying the ADRs or GDRs is the custodian bank which is also the issuing agent of the depositary receipts. Depending on the jurisdiction under which the depositary receipts have been issued, there is a risk that such jurisdiction does not legally recognise the purchasers of the ADR or GDR as the beneficial owner of the underlying shares. In the event the custodian becomes insolvent or that enforcement measures are taken against the custodian it is possible that an order restricting the free disposition of the underlying shares is issued. In this event the purchaser of an ADR or GDR may lose its rights to the underlying shares under the ADR or GDR and the ADR or GDR would become worthless. As a result, the value of and return on Notes linked to the ADRs or GDRs may be negatively affected.

(c) ***Risks associated with Exchange Traded Funds as Underlying Assets***

The description of the risk factors in this risk factor 3.4(c) is relevant to Noteholders if the type of Underlying Asset(s) (or if one of the types of Underlying Assets) to which their Notes are linked is an Exchange Traded Fund.

- (i) *Various unpredictable factors may affect the performance of Exchange Traded Funds*

An Exchange Traded Fund may seek to track the performance of an index (in relation to such Exchange Traded Fund, an "**ETF underlying index**"), or the performance of certain assets, contracts and/or instruments which may be invested in or held by the Exchange Traded Fund. The performance of an Exchange Traded Fund may be dependent upon company-specific factors such as earnings position, market position, risk situation, shareholder structure and distribution policy of the underlying companies that comprise the ETF underlying index of such Exchange Traded Fund, or upon the value of such assets, contracts and/or instruments invested in, held by or tracked by the Exchange Traded Fund as well as macroeconomic factors, such as interest and price levels on the capital markets, currency developments and political factors.

Fees charged by the investment manager of the Exchange Traded Fund may reduce the performance of the fund as compared to the ETF underlying index. In addition, Exchange Traded Funds occasionally experience market volatility and trading disruptions that are inconsistent with the net asset value of the Exchange Traded Fund's assets.

- (ii) *Actions by the management company, trustee or sponsor of an Exchange Traded Fund may negatively affect the Notes*

The Issuer gives no assurance that all events occurring prior to the issue date of the Notes that would affect the trading price of the relevant Exchange Traded Fund will have been publicly disclosed. Subsequent disclosure of any such events or the disclosure of or failure to disclose material future events concerning the Exchange Traded Fund, such as a change in investment objective, could affect the trading price of the Exchange Traded Fund and therefore the trading price of and return on the Notes.

The management company, trustee or sponsor of an Exchange Traded Fund will have no involvement in the offer and sale of the Notes, will have no obligation to any Noteholder as a holder of Notes and may take any actions in respect of such Exchange Traded Fund without regard to the interests of any Noteholder as a holder of Notes. Any of these actions could have a negative effect on the value of and return on the Notes.

- (iii) *Following the occurrence of certain extraordinary events in relation to the Exchange Traded Fund, the terms and conditions of the Notes may be adjusted, the Notes may be redeemed early at the applicable early redemption amount or the Exchange Traded Fund may be substituted for another*

If any of a delisting, insolvency, merger event, nationalisation, tender offer or NAV publication suspension (all as defined in the terms and conditions of the Notes) occurs in relation to the Exchange Traded Fund, this will be an "Extraordinary Event", upon the occurrence of which GSI as Calculation Agent, or by such other entity appointed as calculation agent for any Series of Notes, may adjust the terms and conditions of the Notes (without the consent of holders) or direct the Issuer to redeem the Notes early. If the Issuer redeems the Notes, the applicable early redemption amount payable to Noteholders may be less than they paid for the Notes. See risk factor 3.3(f) (*Following the occurrence of certain extraordinary events in relation to the Underlying Asset(s) or the Original Primary Rate(s), or following the occurrence of an index adjustment event in relation to an Index, the terms and conditions of the Notes may be adjusted or the Notes may be redeemed early at the applicable early redemption amount*) above. Where the Exchange Traded Fund has been discontinued, the Calculation Agent may instead determine to replace the Exchange Traded Fund with a successor Exchange Traded Fund. Any of these determinations could have a negative effect on the value of and return on the Notes.

- (iv) *If the ETF underlying index or the Exchange Traded Fund is materially changed, the terms and conditions of the Notes may be adjusted or the Notes may be redeemed early at the applicable early redemption amount*

If at any time the ETF underlying index is changed in a material respect, or if the Exchange Traded Fund in any other way is modified so that it does not, in the opinion of the Calculation Agent, fairly represent the net asset value of the Exchange Traded Fund had those changes or modifications not been made, then, from and after that time, GSI as Calculation Agent, or such other entity appointed as calculation agent for the applicable Series of Notes, will make those calculations and adjustments as may be necessary in order to arrive at a price of an exchange traded fund comparable to the Exchange Traded Fund, as if those changes or modifications had not been made, and calculate the closing prices with reference to the

Exchange Traded Fund, as adjusted. Accordingly, if the Exchange Traded Fund is modified in a way that the price of its shares is a fraction of what it would have been if it had not been modified (for example, due to a split or a reverse split), then the Calculation Agent will adjust the price in order to arrive at a price of the Exchange Traded Fund as if it had not been modified (for example, as if the split or the reverse split had not occurred). The Calculation Agent may determine that no adjustment is required by the modification of the method of calculation. Any of these determinations could negatively affect the value of and return on the Notes.

- (v) *The occurrence of a potential adjustment event may lead to an adjustment to the terms of the Notes that could have a negative effect on the value of and return on the Notes*

A "potential adjustment event" is an event which has a dilutive or concentrative effect on the theoretical value of the Underlying Asset. If a potential adjustment event occurs, the Calculation Agent may elect to amend the terms and conditions of the Notes (without the Noteholders' consent) to account for the dilutive or concentrative effect of the event. Any adjustment made to the terms and conditions of the Notes may have a negative effect on the value of and return on the Notes.

- (vi) *The Notes may be adjusted or redeemed prior to their maturity due to the occurrence of a Change in Law (Increased Cost). Any such adjustment may have an adverse effect on the value of and return on the Notes; and the amount the Noteholders receive following an early redemption may be less than their initial investment.*

Where, due to the occurrence of a Change in Law (Increased Cost), the Calculation Agent determines that the Issuer or any of its affiliates would incur a materially increased cost in performing its obligations under the Notes, the Calculation Agent may, in its discretion, either (A) amend the terms and conditions of the Notes to account for such change in law or (B) direct the Issuer to redeem the Notes for the applicable early redemption amount, which may be less than the Noteholders paid for the Notes. See risk factor 3.3(f) (*Following the occurrence of certain extraordinary events in relation to the Underlying Asset(s) or the Original Primary Rate(s), or following the occurrence of an index adjustment event in relation to an Index, the terms and conditions of the Notes may be adjusted or the Notes may be redeemed early at the applicable early redemption amount*) above.

(d) **Risks associated with Indices as Underlying Assets**

The description of the risk factors in this risk factor 3.4(d) is relevant to Noteholders if the type of Underlying Asset(s) (or if one of the types of Underlying Assets) to which their Notes are linked is an equity Index.

- (i) *Various unpredictable factors may affect the performance of equity Indices*

Equity indices comprise a synthetic portfolio of shares, and as such, the performance of an Index is dependent upon the macroeconomic factors relating to the shares that underlie such Index, such as interest and price levels on the capital markets, currency developments, political factors as well as company-specific factors such as earnings position, market position, risk situation, shareholder structure and distribution policy, as well as the index composition, which may change over time.

- (ii) *Actions by the index sponsor may negatively affect the Notes*

The sponsor of the Index(s) will have no involvement in the offer and sale of the Notes and will have no obligation to any Noteholder as a holder of Notes. For example, the sponsor can add, delete or substitute the components of an index at its discretion, and may also alter the

methodology used to calculate the level of the Index. The sponsor may also alter, discontinue or suspend calculation or dissemination of the Index. Any of these actions may have a detrimental impact on the level of the Index, which in turn could have a negative impact on the value of and return on the Notes.

- (iii) *Noteholders may receive a lower return on Notes linked to an equity Index (or one or more equity Indices), depending on the type of equity Index (or Indices), than if they held the component shares directly*

The value of and return on Notes that depend on the performance of one or more equity Indices may be less than the value of and return on a direct holding of the shares of the companies comprising the components of the Index. This is because the index level at any specified time and valuation date may reflect the prices of such Index components without taking into account any (or all) dividend payments on those component shares. Accordingly, Noteholders may receive a lower return on Notes linked to one or more equity Indices than they would have received had they invested directly in the component shares.

The rules governing the composition and calculation of the relevant Index may stipulate that dividends distributed on its components are included in the calculation of the index level (a "total return" version of the index) or are not included in the calculation of the index level (a "price return" version of the index). In the case of a "price return" index, holders of the Notes will not participate in dividends or other distributions paid on the components comprising the Index and (assuming the Notes are not "bearish" in nature) the Notes would not perform as well as a position where such holder had invested directly in such components or where they had invested in a "total return" version of the Index. Even if the rules of the relevant Index provide that distributed dividends or other distributions of the components are reinvested in the Index, in some circumstances the dividends or other distributions may not be fully reinvested in such Index. Accordingly, Noteholders may receive a lower return on Notes linked to Indices than they would have received if they had invested in the components of such Indices directly or in another product.

If the relevant Index has a decrement feature, the return on such index will be calculated by reinvesting all gross dividends paid by such index and by subtracting a pre-defined dividend (also known as a synthetic dividend). If the actual ordinary dividends paid by such Index is lower than the pre-defined dividends, the performance of the Index will be less than a traditional "price return" index. As a result, the return on a Noteholder's Notes may be lower than the return of an investment linked to the price of a traditional "price return" index. A decrement feature may also act as a drain on the performance of the Index, and the index level will not reflect the aggregate performance of the underlying total return index but a lesser amount. As a result, the return of a Noteholder's Notes may be lower than the return of an investment linked to the price of a "total return" index.

- (iv) *The occurrence of an index adjustment event or the replacement of the index sponsor by a successor index sponsor may have a negative effect on the Notes*

If the sponsor of an Index makes a material alteration to the Index or cancels the Index and no successor exists, or if the sponsor fails to calculate and announce the Index, or if the Index or its administrator does not obtain authorisation or registration with the effect that the Index may not be used in certain ways by the Issuer or the Calculation Agent, GSI as Calculation Agent, or such other entity appointed as calculation agent for the relevant Series of Notes, may, (A) (if "Calculation Agent Adjustment" is specified as applicable in the relevant Final Terms) if the Calculation Agent determines the event to have a material effect on the Notes, calculate the level of the Index according to the previous formula and method, (B) (if "Index Substitution" is specified as applicable in the relevant Final Terms) replace the Index

with another index (or basket of indices) or (C) (if "Related Exchange Adjustment" is specified as applicable in the relevant Final Terms) adjust the terms and conditions of the Notes (without the Noteholders' consent). Any such action may have a negative effect on the value and return on the Notes.

If the Calculation Agent believes that (I) it would be unlawful or would contravene any applicable licensing requirements for the Calculation Agent to perform the proposed action above or (II) the proposed action above would not achieve a commercially reasonable result, the Issuer may redeem the Notes early. In such event, the Issuer will pay to the Noteholders the applicable early redemption amount. The applicable early redemption amount may be less than a Noteholder's original investment, so Noteholders may lose some or all of their money. See also risk factor 3.3(f) *(Following the occurrence of certain extraordinary events in relation to the Underlying Asset(s) or the Original Primary Rate(s), the occurrence of an index adjustment event in relation to an Index, the terms and conditions of the Noteholders' Notes may be adjusted or the Notes may be redeemed early at the non-scheduled early repayment amount)* above.

If an index is calculated by a successor index sponsor, or, is replaced by a successor index, the successor index or index as calculated by the successor index sponsor, will be deemed to be the index if approved by GSI (as Calculation Agent) or such other entity appointed as calculation agent for the relevant Series of Notes. Any such successor index may perform poorly and may result in holders of Notes receiving less than they otherwise expected.

Any of these events may have a negative effect on the value of and return on the Notes.

- (v) *There are additional risks in relation to Notes linked to exchange traded futures and options contracts on underlying indices*

If the Notes depend on the performance of exchange traded futures and options contracts on one or more underlying Indices (collectively, "**index-linked derivatives contracts**"), then the Noteholders are exposed to the performance of the index-linked derivatives contracts which, in turn, will be driven by the level of the underlying Index.

There will be a correlation between the level of an Index and the price at which an index-linked derivatives contract trades on the relevant futures or options exchange, and Noteholders will therefore be exposed to the performance of the Index. However, the Noteholders should also be aware that the expectations of dealers in index-linked derivatives contracts of the level of the Index on the date(s) on which the settlement amount of an index-linked derivatives contract is determined may also have an impact on the price of an index-linked derivatives contract on the Index. For example, if the expectation of dealers in options contracts is that the level of the Index will be lower on a future date when the settlement amount of the options contract is to be determined than the current level of the Index, this may result in the price of the options contract falling (in the case of a call option) or rising (in the case of a put option) even where the current level of the Index is rising. Moreover, because the settlement amount of many options contracts is a multiple of the difference between the level of the Index on a future date and the strike, a relatively small change in the level of an Index may result in a proportionately much larger change in the price of the options contract.

If the expectation of dealers in futures contracts is that the settlement price of the Index on the date(s) on which the settlement amount of the futures contract is determined will be lower than the forward price of the Index specified in the contract, this may result in the price of the futures contract falling (in the case of buyers of the futures contract) or rising (in the case of sellers of the futures contract) even where the current level of the Index is rising. Moreover,

because the settlement amount of many futures contracts is a multiple of the difference between the settlement price and the forward price, a relatively small change in the level of an Index may result in a proportionately much larger change in the price of the futures contract.

- (vi) *The reference price used to determine any amount payable under the Notes may be adjusted based on a specified decrement factor*

The terms and conditions of the Notes may provide that the reference price used to determine any amount payable for specified relevant dates may be adjusted by reference to a specified factor, prescribed formula and/or specified amount (a "**decrement factor**"). This may be done by calculating the reference price for relevant days using the closing index level or index level of an index for such relevant days, and adjusting it by applying a decrement factor. Such adjustment(s) may result in payments under the Notes being delayed or not occurring, which might not have been the case if such adjustments did not apply. Such adjustment(s) may also result in the amounts otherwise payable being reduced.

3.5 Risks associated with baskets comprised of various constituents as Underlying Assets

The description of the risk factors in this risk factor 3.5 is relevant to Noteholders if their Notes are linked to a basket of Underlying Assets, in addition to the risks in relation to each particular type of Underlying Asset in the basket as described above.

(a) **Various unpredictable factors may affect the performance of a basket of Underlying Assets**

If the Notes are linked to a basket of Underlying Assets, Noteholders are exposed to the performance of such basket and bear the risk that such performance cannot be predicted and is determined by macroeconomic factors relating to the constituents that comprise such basket, all as described above in relation to each particular type of Underlying Asset.

In addition, Noteholders should be aware of the following:

- (i) *Lesser number of basket constituents:* The performance of a basket that includes a fewer number of basket constituents will be more affected by changes in the value of any particular basket constituent than that of a basket that includes a greater number of basket constituents.
- (ii) *Unequal weighting of basket constituents:* The performance of a basket that gives greater weight to some basket constituents will be more affected by changes in the value of any such particular basket constituent than a basket that gives relatively equal weight to each basket constituent.
- (iii) *High correlation of basket constituents could have a significant effect on amounts payable:* Correlation of the basket constituents measures the level of interdependence among the individual basket constituents with respect to their performance. Correlation has a value ranging from "-1" to "+1", whereby a correlation of "+1", i.e. a high positive correlation, means that the performance of the basket constituents always moves in the same direction. A correlation of "-1", i.e. a high negative correlation, means that the performance of the basket constituents is always diametrically opposed. A correlation of "0" indicates that it is not possible to make a statement on the relationship between the basket constituents. If, for example, all of the basket constituents are shares which originate from the same sector and the same country, a high positive correlation may be assumed. Correlation may fall however, for example when the company whose shares are included in the basket are engaged in intense competition for market shares and the same markets. Where the Notes are subject to high correlation, any move in the performance of the basket constituents will exaggerate the performance of the Notes.

- (iv) *Negative performance of a basket constituent may outweigh a positive performance of one or more basket constituents:* Even in the case of a positive performance of one or more basket constituents, the performance of the basket as a whole may be negative if the performance of the other basket constituents is negative to a greater extent.

3.6 Risks associated with certain products or product features

- (a) ***If the Notes include a leverage factor of over 100 per cent. there may be a higher risk of loss***

If the terms and conditions of the Notes provide that the amount payable on the Notes is based upon the performance, price, value or level of the Underlying Asset(s) multiplied by a factor which is over 100 per cent., the Notes may have a disproportionate exposure to any negative performance of the Underlying Asset(s). In such circumstances, the Notes will represent a very speculative and risky form of investment, since any loss in the value of the Underlying Asset(s) carries the risk of a disproportionately higher loss in the value of and return on the Notes.

- (b) ***The return on the Notes may be linked to the level, price, rate or other applicable value of the Underlying Asset(s) on a number of averaging dates***

The terms and conditions of the Notes may provide that the amount payable on the Notes (whether at maturity or otherwise) will be based on the arithmetic average of the applicable levels, prices, rates or other applicable values of the Underlying Asset(s) on each of the specified averaging dates, and not the simple performance of the Underlying Asset(s) over the term of the Notes. An averaging feature could result in a lower value of and return on the Notes than if there was no averaging feature. For example, if the applicable level, price, rate or other applicable value of the particular Underlying Asset(s) dramatically increases on an averaging date (but not the other averaging dates), the return on the Notes may be significantly less than it would have been had it been linked only to the applicable level, price, rate or other value of the Underlying Asset(s) on that single date.

- (c) ***The potential for the value of the Notes to increase may be limited***

If the terms and conditions of the Notes provide that the Notes are subject to a cap, the Noteholders' ability to participate in any change in the value of the Underlying Asset(s) over the term of the Notes will be limited, no matter how much the level, price, rate or other applicable value of the Underlying Asset(s) may rise beyond the cap level over the life of the Notes. Accordingly, the return on the Noteholders' Notes may be significantly less than if they had purchased the Underlying Asset(s) directly.

In addition, if the participation rate on the Notes is less than 100 per cent. and, at maturity, the final level, price, rate or other applicable value of the Underlying Asset(s) exceeds the initial level, price, rate or other applicable value of the Underlying Asset(s), the return on the Notes may be significantly less than had they purchased the Underlying Asset(s) or an investment linked to the Underlying Asset(s) on a leveraged or one to one basis. This is because a participation rate of less than 100 per cent. will have the effect of reducing a Noteholder's exposure to any positive return on the Underlying Asset(s).

- (d) ***The "Worst-of" ("Minimum Performance", "Barrier Worst Closing Price" and "Barrier Worst Asset Performance") feature means that Noteholders will be exposed to the performance of each Underlying Asset and, in particular, to the Underlying Asset which has the worst performance***

If the terms and conditions of the Notes provide that the return on the Notes depends on the "worst-of" performance of the basket of Underlying Assets, Noteholders will be exposed to the performance of each Underlying Asset and, in particular, to the Underlying Asset which has the worst performance. This means that, irrespective of how the other Underlying Assets perform, if

any one or more Underlying Assets fails to meet a relevant threshold or barrier for the calculation of any redemption amount, Noteholders could lose some or all of their initial investment.

- (e) ***The return on the Notes may be linked to the lowest or highest level or price of the Underlying Asset(s) on a number of entry level observation dates***

The terms and conditions of the Notes may provide that the amount payable on the Notes (whether at maturity or otherwise) will be based on the performance of the Underlying Asset(s) compared to the highest or lowest (as specified in the relevant Final Terms) levels or prices of the Underlying Asset(s) observed across each of the specified entry level observation dates, and not just the price or level of the Underlying Asset(s) on a single initial date. Such a feature could result in a lower value of and return on the Notes than if there was no entry level feature. For example, if the applicable level or price of the particular Underlying Asset(s) increased significantly across the entry level observation dates, the value of and return on the Notes may be significantly less than it would have been had the return been determined by reference to only the applicable level or price of the Underlying Asset(s) on a single initial date.

3.7 **Risks associated with certain terms of the Notes, including early redemption and Issuer call option**

- (a) ***The Notes may be redeemed prior to maturity due to the occurrence of a Change in Law (Illegality), and Noteholders may lose some or all of their investment***

Where the Issuer determines in its discretion, acting in good faith and in a commercially reasonable manner, that a Change in Law (Illegality) has occurred, such that, (i) the Issuer's performance under the Notes or the Guarantor's performance under the Guaranty, in whole or in part, or the performance by the Issuer or any of its affiliates under any related hedge positions, or (ii) the performance by any affiliate of the Issuer of (A) its obligations under the Notes had such affiliate been an issuer of the Notes or (B) its obligations under any related hedge positions had such affiliate been a party to any such hedging arrangement, in each of case (i) and (ii), have become (or there is a substantial likelihood in the immediate future that they will become) illegal or impractical in whole or in part, the Issuer may, in its discretion, elect to redeem the Notes.

If the Issuer elects to early redeem the Notes, if permitted by applicable law, the Issuer shall pay to the Noteholders an amount equal to the applicable early redemption amount of such Notes. Unless the terms of the Notes provide that "Par plus accrued" is applicable, the applicable early redemption amount will be an amount determined by the Calculation Agent as the fair market value of such Notes on the second Business Day prior to the date of such early redemption, determined by reference to such factors as the Calculation Agent considers to be appropriate, and (if the relevant Final Terms specify "Adjusted for Issuer Expenses and Costs" as applicable) adjusted to account fully for any of the Issuer's reasonable expenses and costs including, those relating to the unwinding of any underlying and/or the Issuer's related hedging arrangements (if any). The applicable early redemption amount may be less than the Noteholders' initial investment and the Noteholders may therefore lose some or all of their investment.

Following any such early redemption of the Notes, Noteholders may not be able to reinvest the proceeds from such redemption at a comparable return and/or with a comparable interest rate for a similar level of risk. Noteholders should consider such reinvestment risk in light of other available investments when they purchase the Notes.

- (b) ***The Notes may be redeemed early if the Issuer has a call option and exercises it***

Where the terms of the Notes provide that the Issuer has the right to call the Notes, following the exercise by the Issuer of such option, Noteholders will no longer be able to realise their expectations

for a gain in the value of such Notes and, if applicable, will no longer participate in the performance of the Underlying Assets.

Also, an optional redemption feature of Notes is likely to limit the market value of the Notes. During any period when the Issuer may elect to redeem the Notes, the market value of the Notes generally will not rise above the price at which they can be redeemed. This also may be true prior to the beginning of any redemption period.

Further, the Issuer may be expected to redeem Notes when its cost of borrowing is lower than the interest rate on the Notes. At those times, Noteholders generally would not be able to reinvest the redemption proceeds at an effective interest rate as high as the interest rate on the Notes being redeemed and may only be able to do so at a significantly lower rate. The Noteholders should consider such reinvestment risk in light of other available investments.

3.8 **Risks associated with conflicts of interest between GS Group and its consolidated subsidiaries ("Goldman Sachs") and purchasers of the Notes and discretionary powers of the Issuer and the Calculation Agent including in relation to their hedging arrangements**

The various roles and trading activities of Goldman Sachs could create conflicts of interest between the Noteholders and Goldman Sachs. The below risks highlight such risks associated with conflicts of interest between Goldman Sachs and purchasers of Notes:

(a) ***Anticipated hedging activities by Goldman Sachs or its distributors may negatively impact investors in the Notes and cause Goldman Sachs' interests and those of its clients and counterparties to be contrary to those of investors in the Notes***

In anticipation of the sale of the Notes, Goldman Sachs and/or its affiliates expect to hedge their obligations under the Notes by purchasing futures and/or other instruments linked to the Underlying Asset(s) or components thereof, or, if applicable, the foreign currencies in which Underlying Asset(s) are denominated, as applicable. Goldman Sachs also expect to adjust the hedge by, among other things, purchasing or selling any of the foregoing, and perhaps other instruments linked to the Underlying Asset(s) or any components thereof (the "**Underlying Components**"), at any time and from time to time, and to unwind the hedge by selling any of the foregoing on or before the final valuation date for the Notes. Alternatively, Goldman Sachs may hedge all or part of its obligations under the Notes with unaffiliated distributors of the Notes which it expects will undertake similar market activity. Goldman Sachs may also enter into, adjust and unwind hedging transactions relating to other underlier-linked securities whose returns are linked to changes in the level of the Underlying Asset(s) or one or more of the Underlying Components, as applicable.

In addition to entering into such transactions itself, or distributors entering into such transactions, Goldman Sachs may structure such transactions for its clients or counterparties, or otherwise advise or assist clients or counterparties in entering into such transactions. These activities may be undertaken to achieve a variety of objectives, including: permitting other purchasers of the Notes or other securities to hedge their investment in whole or in part; facilitating transactions for other clients or counterparties that may have business objectives or investment strategies that are inconsistent with, or contrary to, those of investors in the Notes; hedging the exposure of Goldman Sachs to the Notes including any interest in the Notes that it reacquires or retains as part of the offering process, through its market-making activities or otherwise; enabling Goldman Sachs to comply with its internal risk limits or otherwise manage firmwide, business unit or product risk; and/or enabling Goldman Sachs to take directional views as to relevant markets on behalf of itself or its clients or counterparties that are inconsistent with or contrary to the views and objectives of the investors in the Notes.

Any of these hedging or other activities may adversely affect the levels of the Underlying Asset(s) – directly or indirectly by affecting the price of the Underlying Components – and therefore the

market value of the Notes and the amount the Issuer will pay on the Notes, if any, at maturity. In addition, Noteholders should expect that these transactions will cause Goldman Sachs or its clients, counterparties or distributors to have economic interests and incentives that do not align with, and that may be directly contrary to, those of an investor in the Notes. Neither Goldman Sachs nor any distributor will have any obligation to take, refrain from taking or cease taking any action with respect to these transactions based on the potential effect on an investor in the Notes, and may receive substantial returns on hedging or other activities while the value of the Notes declines. In addition, if the distributor from which Noteholders purchase Notes is to conduct hedging activities in connection with the Notes, that distributor may otherwise profit in connection with such hedging activities and such profit, if any, will be in addition to the compensation that the distributor receives for the sale of the Notes to them. Noteholders should be aware that the potential to earn fees in connection with hedging activities may create a further incentive for the distributor to sell the Notes to them in addition to the compensation they would receive for the sale of the Notes.

(b) ***Goldman Sachs' trading and investment activities for its own account or for its clients could negatively impact investors in the Notes***

Goldman Sachs is a global investment banking, securities and investment management firm that provides a wide range of financial services to a substantial and diversified client base that includes corporations, financial institutions, governments and high-net-worth individuals. As such, it acts as an investor, investment banker, research provider, investment manager, investment advisor, market maker, trader, prime broker and lender. In those and other capacities, Goldman Sachs purchases, sells or holds a broad array of investments, actively trades securities, derivatives, loans, commodities, currencies, credit default swaps, indices, baskets and other financial instruments and products for its own account or for the accounts of its customers, and will have other direct or indirect interests, in the global fixed income, currency, commodity, equity, bank loan and other markets. Any of Goldman Sachs' financial market activities may, individually or in the aggregate, have an adverse effect on the market for the Notes, and Noteholders should expect that the interests of Goldman Sachs or its clients or counterparties will at times be adverse to those of investors in the Notes.

Goldman Sachs regularly offers a wide array of securities, financial instruments and other products into the marketplace, including existing or new products that are similar to the Notes, or similar or linked to the Underlying Asset(s). Investors in the Notes should expect that Goldman Sachs will offer securities, financial instruments, and other products that will compete with the Notes for liquidity, research coverage or otherwise.

(c) ***Goldman Sachs' market-making activities could negatively impact investors in the Notes***

Goldman Sachs actively makes markets in and trades financial instruments for its own account and for the accounts of customers. These financial instruments include debt and equity securities, currencies, commodities, bank loans, indices, baskets and other products. Goldman Sachs' activities include, among other things, executing large block trades and taking long and short positions directly and indirectly, through derivative instruments or otherwise. The securities and instruments in which Goldman Sachs takes positions, or expects to take positions, include securities and instruments of the Underlying Asset(s) or the Underlying Components thereof, securities and instruments similar to or linked to the foregoing or the currencies in which they are denominated. Market making is an activity where Goldman Sachs buys and sells on behalf of customers, or for its own account, to satisfy the expected demand of customers. By its nature, market making involves facilitating transactions among market participants that have differing views of securities and instruments. As a result, Noteholders should expect that Goldman Sachs will take positions that are inconsistent with, or adverse to, the investment objectives of investors in the Notes.

If Goldman Sachs becomes a holder of any Underlying Asset or Underlying Component thereof, as applicable, in its capacity as a market-maker or otherwise, any actions that it takes in its capacity as securityholder, including voting or provision of consents, will not necessarily be aligned with, and may be inconsistent with, the interests of investors in the Notes.

- (d) ***Noteholders should expect that Goldman Sachs personnel will take research positions, or otherwise make recommendations, provide investment advice or market colour or encourage trading strategies that might negatively impact investors in the Notes***

Goldman Sachs and its personnel, including its sales and trading, investment research and investment management personnel, regularly make investment recommendations, provide market colour or trading ideas, or publish or express independent views in respect of a wide range of markets, issuers, securities and instruments. They regularly implement, or recommend to clients that they implement, various investment strategies relating to these markets, issuers, securities and instruments. These strategies include, for example, buying or selling credit protection against a default or other event involving an issuer or financial instrument. Any of these recommendations and views may be negative with respect to the Underlying Asset(s) or Underlying Components thereof, as applicable, or other securities or instruments similar to or linked to the foregoing or result in trading strategies that have a negative impact on the market for any such securities or instruments, particularly in illiquid markets. In addition, Noteholders should expect that personnel in the trading and investing businesses of Goldman Sachs will have or develop independent views of the Underlying Asset(s) or Underlying Components thereof, as applicable, the relevant industry or other market trends, which may not be aligned with the views and objectives of investors in the Notes.

- (e) ***Goldman Sachs regularly provides services to, or otherwise has business relationships with, a broad client base, which may include the sponsors or issuers of the Underlying Asset(s) or Underlying Components thereof or other entities that are involved in the transaction***

Goldman Sachs regularly provides financial advisory, investment advisory and transactional services to a substantial and diversified client base, and Noteholders should assume that Goldman Sachs will, at present or in the future, provide such services or otherwise engage in transactions with, among others, the sponsors or issuers of the Underlying Asset(s) or Underlying Components thereof, or transact in securities or instruments or with parties that are directly or indirectly related to the foregoing. These services could include making loans to or equity investments in those companies, providing financial advisory or other investment banking services, or issuing research reports. Noteholders should expect that Goldman Sachs, in providing such services, engaging in such transactions, or acting for its own account, may take actions that have direct or indirect effects on the Underlying Asset(s) or Underlying Components thereof, as applicable, and that such actions could be adverse to the interests of investors in the Notes. In addition, in connection with these activities, certain Goldman Sachs personnel may have access to confidential material non-public information about these parties that would not be disclosed to Goldman Sachs employees that were not working on such transactions as Goldman Sachs has established internal information barriers that are designed to preserve the confidentiality of non-public information. Therefore, any such confidential material non-public information would not be shared with Goldman Sachs employees involved in structuring, selling or making markets in the Notes or with investors in the Notes.

In any offering under the Programme, as well as in all other circumstances in which Goldman Sachs receives any fees or other compensation in any form relating to services provided to or transactions with any other party, no accounting, offset or payment in respect of the Notes will be required or made; Goldman Sachs will be entitled to retain all such fees and other amounts, and no fees or

other compensation payable by any party or indirectly by holders of the Notes will be reduced by reason of receipt by Goldman Sachs of any such other fees or other amounts.

(f) ***An offering of the Notes may reduce an existing exposure of Goldman Sachs or facilitate a transaction or position that serves the objectives of Goldman Sachs or other parties***

A completed offering of Notes may reduce Goldman Sachs' existing exposure to the Underlying Asset(s) or Underlying Components thereof, as applicable, securities and instruments similar to or linked to the foregoing or the currencies in which they are denominated, including exposure gained through hedging transactions in anticipation of this offering. An offering of Notes will effectively transfer a portion of Goldman Sachs' exposure (and indirectly transfer the exposure of Goldman Sachs' hedging or other counterparties) to investors in the Notes.

The terms of an offering (including the selection of the Underlying Asset(s) and the establishment of other transaction terms) may have been selected in order to serve the investment or other objectives of Goldman Sachs or another client or counterparty of Goldman Sachs. In such a case, Goldman Sachs would typically receive the input of other parties that are involved in or otherwise have an interest in the offering, transactions hedged by the offering, or related transactions. The incentives of these other parties would normally differ from and in many cases be contrary to those of investors in the Notes.

(g) ***Other investors in the Notes may not have the same interests as the Noteholders***

Other investors in the Notes are not required to take into account the interests of any other investor in exercising remedies or voting or other rights in their capacity as securityholders or in making requests or recommendations to Goldman Sachs as to the establishment of other transaction terms. The interests of other investors may, in some circumstances, be adverse to the Noteholders' interests. For example, certain investors may take short positions (directly or indirectly through derivative transactions) on assets that are the same or similar to the Notes, Underlying Asset(s) or other similar securities, which may adversely impact the market for or value of their Notes.

(h) ***When acting as Calculation Agent, GSI will have the authority to make determinations that could affect the market value and return on the Notes***

Unless otherwise specified in the relevant Final Terms, the Calculation Agent will be GSI. The Calculation Agent has the authority (i) to determine whether certain specified events and/or matters so specified in the conditions relating to the Notes have occurred, and (ii) to determine the consequences of any such event, including potentially, revised calculations, adjustments, postponements or early redemption of the Notes. See risk factor 3.8 (*Risks associated with conflicts of interest between Goldman Sachs and purchasers of Notes and discretionary powers of the Issuer and the Calculation Agent including in relation to their hedging arrangements*) above. Any such determination made by the Calculation Agent (in the absence of manifest or proven error) shall be binding on the Issuer and all purchasers of the Notes. Any such determinations may have an adverse impact on the value of and return on the Notes.

(i) ***As a participant or contributor to certain "benchmarks" the Calculation Agent may have conflicts with Noteholders***

The Calculation Agent may act as a participant or contributor to certain "benchmarks", which could create conflicts of interest between Noteholders and the Calculation Agent. In its capacity as a participant or contributor to a "benchmark", the Calculation Agent will provide input data which will affect the price or level of such "benchmark", and this could affect the value of and return on any Notes linked to a "benchmark".

(j) ***There may be potential conflicts of interest relating to distributors or other entities involved in the offer or listing of the Notes***

Potential conflicts of interest may arise in connection with the Notes, as any distributors or other entities involved in the offer and/or the listing of the Notes as indicated in the relevant Final Terms, will act pursuant to a mandate granted by the Issuer and can receive commissions and/or fees on the basis of the services performed in relation to such offer and/or listing.

(k) ***Discretionary powers of the Issuer and the Calculation Agent including in relation to their hedging arrangements***

As described elsewhere in these risk factors, the occurrence of certain events – relating to the Issuer, its hedging arrangements, the Underlying Asset(s), taxation, the relevant currency or other matters – may give rise to discretionary powers on the part of GSI (as Issuer or as Calculation Agent) under the terms and conditions of the Notes.

In relation to the Underlying Asset(s), a key investment objective of the Notes is to allow holders to gain an economic exposure to the Underlying Asset(s). Therefore, if an Underlying Asset is materially impacted by an unexpected event or the relevant level, price, rate, net asset value or other applicable value can no longer be calculated, then it may not be possible to achieve the investment objective of the Notes based on their original terms. In that case, GSI may have discretionary powers under the terms and conditions of the Notes (as described elsewhere in these risk factors) to (i) adjust the terms and conditions of the Notes to preserve the original economic terms and rationale, (ii) in certain cases, substitute the Underlying Asset(s) for another, (iii) calculate the relevant level, price, rate, net asset value or other applicable value itself, (iv) postpone payment, (v) redeem the Notes early or (vi) apply some combination thereof.

In relation to the Issuer's hedging arrangements, the Issuer (including through one or more affiliates of itself and the Guarantor) may enter into one or more arrangements to cover its exposure to the relevant cash amounts to be paid under the Notes as these fall due. Some of the potential types of arrangements are described in risk factor 3.8(a) (*Anticipated hedging activities by Goldman Sachs or its distributors may negatively impact investors in the Notes and cause Goldman Sachs' interests and those of its clients and counterparties to be contrary to those of investors in the Notes*) above. The particular hedging arrangements (if any) undertaken by the Issuer, and their cost, will likely be a significant determinant of the price and the economic terms and conditions of the Notes. Accordingly, if an event occurs which negatively impacts the Issuer's hedging arrangements, the Issuer or the Calculation Agent may have discretionary powers under the terms and conditions of the Notes as described in the paragraph immediately above to account for such impact on the Issuer's hedging arrangements. The exercise by the Issuer or the Calculation Agent of such discretionary powers may have a negative impact on the value of and return on the Notes.

3.9 Risks related to the Turkish Secured Notes

Due to the lack of recognition of the trust concept in civil law jurisdictions, including Turkey, effect cannot be given to any security interest afforded to the Bondholder Representative on behalf of the Noteholders pursuant to a Turkish Pledge Agreement when the Bondholder Representative is not the creditor of the underlying debt that has been secured.

To approximate the trust concept, as is common practice in Turkey, "parallel debt" wording may be included in the Turkish Agency Agreement. This may provide that, in addition to the payment obligation owed to the Noteholders of a Series of Turkish Secured Notes under the relevant terms and conditions that apply to such Series and the Trust Deed, the Issuer may also be obliged to pay an amount to the Bondholder Representative, acting as an agent for the purposes of the Turkish Collateral, which equals (i.e., is parallel to) (a) if the collateral in respect of such Series of Turkish Secured Notes consists solely of Turkish Collateral, the aggregate amounts which the Issuer owes

at any time to the Noteholders, as and when those amounts are due, or (b) if the collateral in respect of such Series of Turkish Secured Notes consists of Turkish Collateral and collateral held in other Securities Accounts, an amount corresponding to a fraction (calculated as the ratio of the collateral value of the Turkish Collateral to the collateral value of the collateral held in all Securities Accounts) of the aggregate amounts which the Issuer owes at any time to the Noteholders, as and when those amounts are due.

The Turkish Pledge Agreement may be entered into with the Bondholder Representative as security for this parallel debt in order to enable the Bondholder Representative to claim in the civil courts for the debt and subsequently enforce the security under the Turkish Pledge Agreement as if it were the principal creditor. This may avoid civil courts having to concern themselves with analysing a trust structure. However, parallel debt structures have not been tested under Turkish law. Therefore, there is a risk that a competent Turkish court may not recognise the parallel debt structure which may jeopardise any security interests of the Noteholders of the Turkish Secured Notes.

3.10 Risks related to China Connect Secured Notes

Notes for which the Collateral consists in part of China Connect Securities are subject to risks, which could affect the Issuer's ability to make payments under the relevant Notes. Under the Rules of the Stock Exchange of Hong Kong Limited ("**SEHK**") governing the China Connect Service, transfers of China Connect Securities that involve a change in beneficial ownership can only be conducted through the China Connect Service and executed on the relevant China Connect Market. Neither the Issuer nor the Guarantor can give any assurance to Noteholders of China Connect Secured Notes that access to the China Connect Markets will not become restricted or that an active trading market for any relevant China Connect Securities will be maintained.

Off-exchange transfers are prohibited with only limited exceptions, and so any restriction on access to the China Connect Markets, or any absence of an active trading market for relevant China Connect Securities for any other reason, may impact the ability to liquidate Collateral consisting of China Connect Securities or reduce the price at which such China Connect Securities can be liquidated. In particular, enforcement of the security for the Notes is by way of sale of the interests of the Issuer that are the subject of the charge the Issuer has granted to the Trustee. In the case of the sale of the interests of the Issuer in any China Connect Securities, any such sale will be limited by the restrictions affecting China Connect Securities at such time, which currently do not permit the transfer of any such China Connect Securities directly to the Trustee or any Noteholder.

KEY FACTS AND Q&A

The following section (the "Key Facts and Q&A") should be read as an overview to this Base Prospectus and is qualified in its entirety by the more detailed information appearing elsewhere in this Base Prospectus. Any decision to invest in the Notes should be based on consideration by the relevant investor of the Base Prospectus as a whole, including the documents incorporated by reference. All capitalised terms that are not defined in these Key Facts and Q&A have the meanings given to them elsewhere in this Base Prospectus.

KEY FACTS

Notes

The Notes are securities issued by Goldman Sachs International from time to time under the Programme, where such securities constitute senior secured obligations of the Issuer. These securities are, in general terms, financial instruments containing a promise by the issuer to pay the holder of the instrument a defined amount or an amount calculated by reference to an Underlying Asset on or by a specified date, with or without interest.

The Notes are issued in series. Each series will be issued under the Principal Trust Deed and, in respect of each Series, one or more Supplemental Trust Deeds as completed by the relevant Final Terms. Each series of Notes will be classified as being either Structured Notes or Standard Notes.

The Final Terms will set out matters such as the price at which the Notes will be issued, the date on which the Notes will be redeemed, the amount that will be payable on the Notes at redemption, the currency of the Notes, whether or not the Notes will be listed, and whether the Notes will pay interest at a fixed or floating rate.

Unless the Final Terms state otherwise, certain key parties relating to the issuance will be as follows:

Agent Bank: Goldman Sachs International. The Agent Bank is appointed for each series of Standard Notes, and is responsible for, among other things, calculating interest and other amounts in relation to each such series of Notes.

Calculation Agent: Goldman Sachs International. The Calculation Agent is appointed for each series of Structured Notes, and is responsible for, among other things, making determinations and calculating amounts in relation to each such series of Notes.

Trustee: The Bank of New York Mellon, London Branch. The Trustee may, in certain circumstances, enforce the terms of the Trust Deed on behalf of the Noteholders, and will be granted a first priority security interest in the collateral for each series of Notes for the benefit of the Noteholders of the relevant series.

Principal Paying Agent: The Bank of New York Mellon, London Branch. The Principal Paying Agent is responsible for, among other things, accepting payments under the Notes from the Issuer and distributing these payments to the relevant Noteholders.

Registrar: The Bank of New York Mellon SA/NV, Luxembourg Branch. The Registrar is responsible for, among other things, maintaining the register of Noteholders for each series of Notes.

Collateral Administrator: The Bank of New York Mellon, London Branch. The Collateral Administrator is responsible for the administration of Collateral in respect of each Series of Notes.

Guaranty	The Goldman Sachs Group, Inc. has guaranteed Goldman Sachs International's payment obligations under the Notes.
Ranking	The Notes rank <i>pari passu</i> (i.e., on an equal basis) between themselves. The Guaranty ranks <i>pari passu</i> with the unsubordinated (i.e., not junior in claim on assets to other debt) and unsecured (i.e., not backed by a security interest in assets or other collateral) obligations of The Goldman Sachs Group, Inc.
Security	For so long as a series of Notes remains outstanding, the Issuer will grant to the Trustee, for the benefit of the Noteholders of the relevant series, a first priority security interest over its rights in respect of certain assets specified in the relevant Final Terms. This collateral may, for example, consist of eligible securities or investments, which will be held in a segregated account with The Bank of New York Mellon, London Branch in its capacity as custodian.

Q&A

1. What documents do I need to read in respect of an issuance of Notes?

There are several legal documents that an investor must read in respect of any Notes: (a) each applicable section of this Base Prospectus (including the documents incorporated by reference in the Base Prospectus) and (b) the Final Terms in respect of such trade.

2. What information is included in this Base Prospectus?

This Base Prospectus contains the general terms and conditions of all notes in the section called "*General Conditions*". The General Conditions may be completed and/or amended by Payout Conditions and the applicable Underlying Asset Conditions, which relate to the various types of underlying assets, namely the Share Linked Conditions and the Index Linked Conditions, as well as combinations of these, for which the Multi-Asset Basket Linked Conditions will be applicable.

An overview of all of the information in this Base Prospectus is set out at the beginning of this Base Prospectus, but like these commonly asked questions, the overview should only be read as an introduction to the rest of the information in this Base Prospectus.

This Base Prospectus also discloses financial and other information about the Issuer and the Guarantor in respect of the Notes and incorporates by reference further financial information about such entities.

Such documents incorporated by reference into this Base Prospectus are available to investors by request from Investor Relations, 200 West Street, New York, New York 10282, USA, telephone +1 (212) 902-0300 and from the principal office in Dublin, Ireland of the Irish listing agent, Matheson LLP. Such documents will also be available on the website of GS Group at <http://www.goldmansachs.com/investor-relations/financials/index.html>.

This Base Prospectus also discloses restrictions about who can buy such securities and risk factors relating to notes issued under this Programme.

3. What are the Notes?

The Notes are senior secured notes issued by Goldman Sachs International.

The payment obligations of Goldman Sachs International are secured against certain assets of Goldman Sachs International, including, for example, eligible securities and investments. In addition, The Goldman Sachs Group, Inc. has guaranteed Goldman Sachs International's payment obligations under the Notes.

4. How will the Notes be held?

The Notes will be held through Euroclear Bank SA/NV and Clearstream Banking, société anonyme or DTC. In limited circumstances, the Notes may be held in definitive form (*i.e.*, in physical form). See "*Book-Entry Clearing Systems*" on pages 332 to 333 of this Base Prospectus for further information.

The Notes will be issued in registered form (*i.e.*, ownership of the Note transfers by registration on the books of the Registrar). The Notes will be represented by a permanent global note which will be registered in the name of a nominee for a common depositary or common safekeeper of Euroclear Bank SA/NV and Clearstream Banking, société anonyme or, only in the case of Notes issued in reliance on the Private Placement Exemption, a nominee of DTC. Notes issued in registered form may be held under the Classic Safekeeping Structure or the New Safekeeping Structure or through Book-entry systems at DTC. If Notes are held under the New Safekeeping Structure, they may, but will not necessarily, be recognised as eligible collateral for Eurosystem monetary policy and intra-day credit operations by the Eurosystem either upon issue or at any or all times during their life.

5. Will the Notes bear interest?

Yes, unless otherwise stated in the Final Terms. The Final Terms will set out if interest will be paid on a fixed or floating rate on interest-bearing Notes.

6. Will the Notes be collateralised?

Yes. Goldman Sachs International will be required to grant a security interest in and maintain collateral for the Noteholders of each series. This collateral must have a margin value (*i.e.*, the market value of the collateral divided by the collateralisation percentage, if any, specified in the relevant Final Terms) equal to an amount specified in the Final Terms or determined in accordance with the method specified in the Final Terms for the Notes of the relevant series. This collateral backs up the payment obligations of Goldman Sachs International in relation to the relevant series of Notes. If Goldman Sachs International defaults on its payment obligations under a series of Notes, the Trustee may be able to enforce against this collateral to satisfy the payment obligations directly.

The details of the collateral for each series of Notes will be set out in the relevant Final Terms. For example, the Final Terms may set out types of debt or equity securities or other investments which will form the collateral for that series of Notes and the margin to be applied to such collateral.

However, there can be no assurance that the value realised on the sale of the collateral following an Event of Default and an acceleration of the Notes will be equal to or greater than the value last assigned to the collateral or that any sale of the collateral will raise proceeds that are equal to the required collateral amount for the Notes, or sufficient to repay the Notes (if the required collateral amount would be sufficient to cover this).

See "*Overview of the Programme – Collateral*" on pages 16 to 18 of this Base Prospectus for further information.

7. Will the security arrangement over the collateral constitute a financial collateral arrangement?

It is intended that the security arrangement over the collateral in respect of the Notes will constitute a financial collateral arrangement under the FCARs. To fall under the FCARs, the collateral mechanism must meet the definition of a "security financial collateral arrangement". This definition has three substantive parts:

- (a) The collateral provided must be "financial collateral" (which includes cash, shares, bonds and other securities).
- (b) The collateral provider must create a "security interest" (which includes fixed and floating charges) in the financial collateral pursuant to its obligations to the collateral taker.
- (c) The collateral must be delivered so as to be within the "possession and control" of the collateral taker. The FCARs allow specifically for the substitution of financial collateral and withdrawal of excess financial collateral by the collateral provider.

If the security arrangement complies with the criteria stipulated in the FCARs, certain statutory formalities will not apply to the arrangement and the relevant collateral taker will enjoy a number of benefits in an insolvency situation. For example:

- There will be no requirement to register the relevant security interest.
- Neither the consent of an administrator or the permission of the court will be required to enforce the security interest.
- Any preferential creditors of the collateral provider will not be paid in priority to the claims of a floating charge holder, if the relevant floating charge is created or otherwise arises under a financial collateral arrangement.

8. When will the Notes be redeemed?

Unless they are redeemed earlier in accordance with their terms, including upon the occurrence of an extraordinary event in respect of any underlying asset for any Series of Structured Notes, the Notes will be redeemed on the maturity date specified in the relevant Final Terms. The Notes may be issued subject to a right for Goldman Sachs International or the Noteholders to redeem the Notes prior to the redemption date if certain conditions are satisfied.

9. Will the Notes be listed?

The Notes may be listed in Ireland and admitted to trading on the regulated market of Euronext Dublin or the Global Exchange Market of Euronext Dublin.

10. Who can Purchase the Notes?

A potential purchaser must hold an appropriate account enabling its interest in the Notes to be recorded, and can only purchase Notes in compliance with the applicable regulations. The offering, sale, and delivery of the Notes in certain jurisdictions may be restricted by law. Persons into whose possession this Base Prospectus comes are required by Goldman Sachs International and the Guarantor, if applicable, to inform themselves about and to observe any such restrictions. Some, but not all, of the selling restrictions are highlighted below:

- (a) The Notes may not be offered, sold, resold, traded or delivered within the United States or to U.S. persons (as defined in Regulation S under the Securities Act), except pursuant to an

exemption from, or in a transaction not subject to, the registration requirements of the Securities Act and any applicable state securities laws.

- (b) The Notes may be offered and sold within the United States exclusively to qualified institutional buyers (as defined in Rule 144A under the Securities Act) in reliance on the Private Placement Exemption.
- (c) The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the EEA. For these purposes, a retail investor means a person who is one (or more) of: (i) a retail client as defined in point (11) of Article 4(1) of Directive 2014/65/EU ("**MiFID II**"); (ii) a customer within the meaning of Directive (EU) 2016/97 (the "**Insurance Distribution Directive**"), where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II; or (iii) not a qualified investor as defined in the EU Prospectus Regulation. Consequently, no key information document required by Regulation (EU) No 1286/2014 (as amended the "**PRIIPs Regulation**") for offering or selling the Notes or otherwise making them available to retail investors in the EEA has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the EEA may be unlawful under the PRIIPs Regulation.
- (d) The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the United Kingdom. For these purposes, a retail investor means a person who is one (or more) of: (i) a retail client, as defined in point (8) of Article 2 of Regulation (EU) No 2017/565 as it forms part of domestic law by virtue of the European Union (Withdrawal) Act 2018 (the "**EUWA**"); (ii) a customer within the meaning of the provisions of the Financial Services and Markets Act 2000 of the United Kingdom ("**FSMA**") and any rules or regulations made under the FSMA to implement Directive (EU) 2016/97, where that customer would not qualify as a professional client, as defined in point (8) of Article 2(1) of Regulation (EU) No 600/2014 as it forms part of domestic law by virtue of the EUWA; or (iii) not a qualified investor as defined in Article 2 of the EU Prospectus Regulation as it forms part of domestic law by virtue of the EUWA. Consequently no key information document required by the PRIIPs Regulation as it forms part of domestic law by virtue of the EUWA (the "**UK PRIIPs Regulation**") for offering or selling the Notes or otherwise making them available to retail investors in the United Kingdom has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the United Kingdom may be unlawful under the UK PRIIPs Regulation.

11. What are the key risks relating to an investment in the Notes?

An investment in the Notes involves risk. The key risks relating to the Notes are set out in the section of this Base Prospectus headed "**Risk Factors**". Prospective investors should read this section of the Base Prospectus before making a decision to invest in any Notes.

12. What will happen on an Event of Default?

This will depend on the type of Event of Default which has occurred.

- (a) If an Event of Default that is not an event of insolvency or bankruptcy is continuing in relation to a series of Notes, the Trustee may declare the Notes of such series to be due and payable. Holders of more than 50% of the outstanding principal amount of the Notes of that Series may direct the Trustee to declare the Notes to be due and payable. Additionally, where such series includes an extension option and the Event of Default is the failure to pay principal or interest, holders of more than 50% of the outstanding principal amount of the Notes of that

Series which are affected by such Event of Default may also direct the Trustee to declare the Notes to be due and payable.

- (b) Such Events of Default include Goldman Sachs International failing to pay a redemption amount or interest on a series of Notes when due and payable, The Goldman Sachs Group, Inc. failing to make a payment due under the Guaranty, or the aggregate value of the collateral securing a series of Notes falling below the required value, provided that the relevant Event of Default has been continuing for specified periods of time.
- (c) If an Event of Default involving an insolvency or bankruptcy (whether voluntary or not) of Goldman Sachs International occurs, all outstanding Notes of all series shall automatically become due and payable.

The Trustee will then demand that Goldman Sachs International transfers to it any collateral in respect of the relevant series which is not in its possession, and sell or cause the sale of all collateral in its possession. Any collateral held by the custodian in a segregated account for that relevant series will be transferred by the custodian to an account in the name of the Trustee. However, holders of more than 50% of the outstanding principal amount of the relevant Series may waive certain Events of Default.

13. How much of an investment is at risk?

For some Notes, as indicated in the Payout Conditions, purchasers will be entitled to receive 100 per cent. of the face amount of the Notes on the Maturity Date, subject always to the creditworthiness of the Issuer and (if applicable) the Guarantor to make such payment (or deliver the Notes). If such Notes are sold prior to the Maturity Date or in certain circumstances if the Notes are repaid early, such purchaser may not receive the entire face amount of such Notes, and may receive less than the amount they invested.

For other Notes, a purchaser's investment may be at risk as they may receive an amount less than their original investment on the Maturity Date and may even lose their entire investment. In such circumstances, the value of the Notes can fluctuate and there is no guarantee that the value of the Notes will increase or that they will retain their value.

The Payout Conditions will specify whether, and in what circumstances, a purchaser's investment is at risk.

14. Will purchasers be able to sell their Notes?

Goldman Sachs International may make a secondary market in the series of Notes, where an investor can sell their Notes directly or via a selling agent to Goldman Sachs International. However, there is no guarantee that a secondary market will develop and a purchaser should therefore be prepared to hold the Notes until their repayment date. If Goldman Sachs International does make a secondary market, it may cease to do so at any time without notice.

15. What will be the price of the Notes in such circumstances?

If it is possible to sell the Notes, they would be sold for the prevailing bid price in the market except in the case where one or more entities are acting in the secondary market (e.g., specialist, market maker, price maker) pursuant to liquidity enhancement agreement(s) which provide for pre-determined bid prices as described below. The prevailing bid price may be affected by several factors including the performance of the Underlying Asset, prevailing interest rates at the time of sale, the time left before the stated repayment date, transaction costs and the creditworthiness of the Issuer and (if applicable) the Guarantor. It is therefore possible that any purchaser selling Notes in the secondary market may receive a price less than his or her initial investment.

16. Are there any fees, expenses or taxes to pay when purchasing, holding or selling Notes?

Fees and expenses may be incurred by purchasers in relation to the purchase, holding, transfer and sale of Notes. Potential purchasers or sellers of Notes should also be aware that stamp duties or taxes may have to be paid in accordance with the laws and practices of the country where the Notes are transferred. Every potential purchaser of Notes should consult their selling agent for details of fees, expenses, commissions or other costs and their own tax advisers in order to understand fully the tax implications specific to his or her investment in any Notes.

17. Can the Issuer redeem or terminate the Notes before their stated maturity date?

The Issuer does have limited rights to redeem or terminate the Notes earlier than the specified maturity date and repay the purchaser an early redemption or termination amount, for example, following the occurrence of specified events, which are highlighted in more detail in the Share Linked Conditions, the Index Linked Conditions and the Multi-Asset Basket Linked Conditions. The early redemption or termination amount may be less than the invested amount. For some Notes, the Issuer's right to repay the Notes can be exercised at any time or the Issuer may repay the Notes on the occurrence of a specified trigger event.

18. Can the Issuer amend the conditions of the Notes once they have been issued?

The terms and conditions of Notes may be amended by the Issuer with the approval of the Calculation Agent but without the consent of the holders if, the amendment in respect of the Notes: (a) is of a formal, minor or technical nature, (b) is made to correct a manifest or proven error or omission, or (c) will not (in the opinion of the Issuer) materially and adversely affect the interests of the holders.

Following the occurrence of certain events, the Calculation Agent, on behalf of the Issuer, may be entitled to amend the Conditions of Notes without requiring the consent of the holders of such Notes. Typically, such events will have affected the composition, or calculation, of the Underlying Asset(s) to such an extent that the Calculation Agent could not make any adjustment to account for the economic effect on the Notes.

The Issuer may also amend the Conditions of the Notes where it determines that its performance thereunder, in whole or in part, is unlawful or impracticable.

19. Who calculates the amounts payable to purchasers?

Unless otherwise specified in the Final Terms, GSI will act as the Calculation Agent in respect of Notes issued under this Programme, and in such capacity, will determine the performance levels of the Underlying Asset(s) on specified valuation dates and will determine any redemption amounts payable by the Issuer to the holders of such Notes. Such determinations and calculations shall be made by the Calculation Agent acting in good faith and in a commercially reasonable manner. In the event that a disruption event has occurred in respect of an Underlying Asset on a specified valuation date, the valuation may be postponed to an alternative date, or the Calculation Agent may instead, in certain circumstances, estimate the value of such Underlying Asset on such valuation date.

In the event that: (a) the performance by the Issuer or any affiliate of the Issuer's obligations under the Notes or of the Guarantor's obligations under the Guaranty, or (b) the Issuer's or affiliate's obligations under hedging transactions relating to the Notes, shall have become (or there is a substantial likelihood in the immediate future that it will become) unlawful or impractical in whole or in part as a result of a change in applicable law or regulation or a change in the interpretation of applicable law or regulation, which results in the early termination or redemption of the Notes, the Calculation Agent will determine the applicable Early Redemption Amount of such Notes, which

may (if specified in the Final Terms) be an amount determined in good faith and in a commercially reasonable manner by the Calculation Agent as the fair market value of such Notes on the second Business Day prior to the date of such early redemption, determined by reference to such factors as Calculation Agent considers to be appropriate (including future selling commissions payable to the distributor of the Notes, if any).

20. What further determinations may the Calculation Agent have to make?

The terms and conditions of the Notes (comprising (i) the General Note Conditions, (ii) the Definitions Conditions, (iii) the Payout Conditions and (iv) any relevant Underlying Asset Conditions, as completed by (v) the Final Terms) also provide that the Calculation Agent is the entity responsible for determining whether certain events have occurred (some of which are mentioned above), and in circumstances where such events have occurred, whether the terms and conditions of the Notes need to be amended to reflect such events. Such determinations shall be made by the Calculation Agent acting in good faith and in a commercially reasonable manner. A non-exhaustive summary of some events is set out below:

- (a) Market Disruption Event – any event that means the value of the Underlying Asset(s) cannot be determined in the regular manner, for example, the exchange on which the relevant shares trade has closed early or been disrupted, or the index sponsor has failed to publish the reference level.
- (b) Potential Adjustment Event or Extraordinary Event (in respect of the Share Linked Conditions) – any event that results in significant changes to the nature of the shares, including a reclassification, an extraordinary dividend, a delisting of shares, a merger event, a tender offer, an insolvency or a nationalisation.
- (c) Index Adjustment Event (in respect of the Index Linked Conditions) – (i) a material nonprescribed modification of the composition of an index, (ii) the cancellation of an index, which is then not replaced, (iii) the non-publication of an index level (though this may be a Market Disruption Event), or (iv) if an index or its administrator does not obtain authorisation or registration (subject to applicable transitional provisions) with the effect that the index may not be used in certain ways by the Issuer or the Calculation Agent.
- (d) Change in Law (Increased Costs) – a change in law which materially increases the Issuer's costs of performing its obligations under the Notes.
- (e) Original Primary Rate Event - if an Original Primary Rate (a) ceases to be provided permanently or indefinitely, or (b) may not be used in certain ways by the Issuer or the Calculation Agent if its administrator or such reference rate does not obtain authorisation or registration (subject to applicable transitional provisions) or it is materially modified.

If the Calculation Agent determines that a Market Disruption Event, a Potential Adjustment Event, an Extraordinary Event, an Index Adjustment Event, a Change in Law, an Original Primary Rate Event or any other applicable event has occurred, any consequential postponement of, or any alternative provisions for, valuation provided in the terms and conditions of any securities may have an adverse effect on the value of such securities.

21. Are the Calculation Agent's determinations binding on purchasers?

All calculations, determinations or adjustments made by the Calculation Agent shall, in the absence of manifest error, be final, conclusive and binding on the holders of the Notes.

22. What are the Payout Conditions?

The Payout Conditions contain the conditions applicable to the calculation of the return on Notes. The relevant Final Terms will specify which Payout Conditions are applicable to a particular issuance of Notes and complete the Payout Conditions with information which is not known at the date of this Base Prospectus.

23. What type of Underlying Assets may be linked to Notes issued under this Programme?

The repayment terms of the Notes issued under this Programme may be linked to a number of different Underlying Assets, which may include:

a Share (and/or dividends on a Share), including a Depositary Receipt;

an equity Index (and/or dividends on Shares in an Index), futures, options or other derivatives contract on an Index;

an Exchange Traded Fund;

baskets of the above;

any other combination of any of the above.

More information about the types of underlying assets is set out below at questions 24 to 27.

24. What are share linked notes?

The payments of redemption amounts in respect of some Notes, as indicated in the Final Terms, will be calculated by reference to the performance of a share or a basket of shares over a fixed period of time or on fixed dates. The shares of companies that are referenced by such Notes will be traded on a stock exchange and the prices of such shares will be published on recognised information services, for example, Bloomberg or Reuters screens, which means that the investor will be able to monitor the relevant share prices during the life of the Notes.

The payments of redemption amounts in respect of some Notes, as indicated in the Final Terms, will be calculated by reference to the performance of an exchange traded fund. The prices of the shares of such exchange traded funds will be published on recognised information services, for example, Bloomberg or Reuters screens, which means that the investor will be able to monitor the relevant share prices of the exchange traded funds during the life of the Notes.

25. What are index linked notes?

The payments of redemption amounts in respect of some Notes, as indicated in the Final Terms, will be calculated by reference to the performance of an equity index that references a synthetic portfolio of shares representing a particular market or portion of it or a basket of indices over a fixed period of time or on fixed dates. Each index has its own calculation methodology and is usually expressed in terms of a change from a base value.

There are two types of equity indices that are referenced by securities: (i) a unitary index, where the underlying shares are deemed to trade on a single stock exchange and the level of such index is published on a recognised information service; and (ii) a multi-exchange index, where the underlying shares are deemed to trade on more than one stock exchange and the level of such index is published on a recognised information service.

The payments of redemption amounts in respect of some Notes, as indicated in the Final Terms, will be calculated by reference to the performance of futures, options or other derivatives contract relating to an equity index. The prices of the futures, options or other derivatives contracts will be published on a recognised information service.

26. What are multi-asset basket linked notes?

The payments of redemption amounts in respect of some Notes, as indicated in the Final Terms, will be calculated by reference to the performance of a basket of two or more Underlying Assets over a fixed period of time or on fixed dates. Such basket will be composed of shares (see question 24 (What are share linked notes?)) and indices (see question 25 (What are index linked notes?)).

27. What are exchange traded futures and options contracts on underlying indices?

An options contract linked to an Index is one where the buyer of the options contract purchases the right to a potential payment from the seller of the option, depending on the level of the Index. The sum that a buyer of an options contract pays to purchase the options contract is usually known as the premium, and options contracts will usually be call options, where the buyer will receive payment under the options contract if the level of the Index on one or more specified dates is above a specified level (known as the strike), or put options, where the buyer will receive payment under the options contract if the level of the Index on one or more specified dates is below the strike.

A cash settled futures contract linked to an Index is one where, depending on the level of the Index, the buyer of the futures contract either has a right to receive a payment (known as the settlement amount) from the seller of the futures contract or an obligation to make a payment to the seller of the futures contract. If the level of the Index on one or more specified dates (the "**settlement price**") is greater than a specified level in the contract (the "**forward price**"), then the seller shall pay to the buyer the difference between the settlement price and the forward price. If the settlement price is less than the forward price, the buyer of the futures contract will make a payment to the seller of the futures contract equal to such difference.

Index-linked derivatives contracts may be traded on the relevant futures or options exchanges and may be standardised with respect to the number of futures or options covered by one index-linked derivatives contract, the term of each index-linked derivatives contract, the dates on which various index-linked derivatives contracts expire and the manner in which the settlement amount is calculated.

DISCLOSURE FOR POTENTIAL INVESTORS IN STRUCTURED NOTES

In order to help potential investors with understanding the disclosure in this Base Prospectus that is relevant to them, the below cross-reference table identifies those parts of this Base Prospectus that include information applicable solely to Structured Notes, with the information in the remaining parts of this Base Prospectus being applicable to all Notes. Accordingly, the disclosure in the sections listed below is not necessary in order for a potential investor in a Series of Standard Notes to decide whether to invest in the Notes of that Series.

SECTION	PAGES
Risk Factors – Risks related to Notes linked to one or more Underlying Assets	67 to 71
Risk Factors – Risks associated with particular types of Underlying Assets	71 to 79
Risk Factors – Risks associated with baskets comprised of various constituents as Underlying Assets	79 to 80
Risk Factors – Risks associated with certain products or product features	80 to 81
Risk Factors – Risks associated with certain terms of the Notes, including early redemption and Issuer call option	81 to 82

Risk Factors – Risks associated with conflicts of interest between Goldman Sachs and purchasers of the Notes and discretionary powers of the Issuer and the Calculation Agent including in relation to their hedging arrangements	82 to 86
Terms and Conditions of the Notes – Payout Conditions	180 to 198
Terms and Conditions of the Notes – Share Linked Conditions	199 to 229
Terms and Conditions of the Notes – Index Linked Conditions	230 to 264
Terms and Conditions of the Notes – Multi Asset-Basket Linked Conditions	265 to 275
Form of Final Terms / Pricing Supplement – Part A – Items 34 to 47	284 to 296
Form of Final Terms / Pricing Supplement – Part B – Items 24 to 26	303 to 304
Form of Final Terms / Pricing Supplement – Part C	305
Form of Final Terms / Pricing Supplement – Part D	306
Form of Final Terms / Pricing Supplement – Part E	307

USE OF PROCEEDS

The net proceeds from the issue of each Series of the Notes will be used toward the general business of the Issuer. If, in respect of any particular issue, there is a particular identified use of proceeds, this will be stated in the applicable Final Terms.

THE ISSUER

GOLDMAN SACHS INTERNATIONAL

The Issuer delivers a broad range of financial services to clients located worldwide. It also operates a number of branches and representative offices across Europe, the Middle East and Africa (EMEA) to provide financial services to clients in those regions.

The Issuer was formed on 2 June 1988. GSI was re-registered as a private unlimited liability company in England and Wales with the Registrar of Companies on 25 February 1994 (registration number 02263951), having previously been registered as a limited liability company under the name "Goldman Sachs International Limited". GSI is authorised by the Prudential Regulation Authority (the "**PRA**") and regulated by the Financial Conduct Authority (the "**FCA**") and the PRA, and is an authorised person under the Financial Services and Markets Act 2000 of the United Kingdom (the "**FSMA**"), and is subject to their rules. GSI and certain of its affiliates are members of various exchanges and are subject to their rules, including those of London Stock Exchange plc and ICE Futures Europe. Certain affiliates of GSI are also subject to regulation by the FCA and the PRA. The legal entity identifier ("**LEI**") in respect of GSI is W22LROWP2IHZNBB6K528.

There have been no recent events particular to GSI which are to a material extent relevant to the evaluation of GSI's solvency.

GSI generates revenues from the following business activities: Investment Banking; Fixed Income, Currency and Commodities (FICC); Equities; and Investment Management, which primarily consists of wealth management. On 1 April 2023, GSI transferred its U.K. asset management business to Goldman Sachs Asset Management International (GSAMI). As a result, GSI no longer performs any significant asset management activity. Investment Management continues to include GSI's wealth management activity.

Goldman Sachs Group UK Limited, a company incorporated under English law has a 100 per cent. shareholding in the Issuer. Goldman Sachs (UK) L.L.C. is established under the laws of the State of Delaware and holds 100 per cent. of the ordinary shares of Goldman Sachs Group UK Limited. The Goldman Sachs Group, Inc. ("**GSG**") is established in Delaware and has a 100 per cent. shareholding in Goldman Sachs (UK) L.L.C.

A description of the Issuer's principal future investments on which its management body has already made firm commitments may be found in Note 27 of the "Notes to the Financial Statements" at page 74 of GSI's 2022 Annual Report, which has been incorporated by reference into this Base Prospectus as set out above.

During the previous and current fiscal years, the Issuer has been in continuous existence without interruption.

The objects and purposes of the Issuer are provided for in Article 2 (Objects) of the Articles of Association of GSI.

The registered office of the Issuer is Plumtree Court, 25 Shoe Lane, London EC4A 4AU, England, telephone number +44 20 7774 1000. The website of GSI is <https://www.goldmansachs.com/>.

Capitalisation

As of December 2023, the Issuer has issued 598,182,053 ordinary shares of U.S.\$1.00 each (for further information on the share capital please see Note 22 in the GSI Annual Report 2023). All the shares have equal voting rights based on nominal values, the rights for them, including the right to dividends, are governed by the Articles of Association and applicable law and none of them have been vested with any special rights in any respect. The issue of additional shares by the Issuer shall be at the discretion of the Directors of the Issuer in accordance with Article 1.6 of the Articles of Association of the Issuer. All of the issued shares are fully paid and are owned by Goldman Sachs Group UK Limited.

No categories of persons have subscription rights for additional capital and there are no agreements requiring the issue of additional shares. The right of shareholders to receive a proportional part of any new issue of shares has been disapproved by the Issuer.

At the time hereof, there are no convertible bonds or options on the Issuer's ordinary or preference shares outstanding which have been issued by the Issuer or by group companies of the Issuer.

The Issuer is an indirect wholly owned subsidiary of GS Group and does not own any of its issued ordinary shares. Its shares are not listed nor traded.

Corporate Governance

The Issuer complies with the corporate governance regime applicable under the laws of England and Wales.

Management

The directors of the Issuer and their business occupations and business addresses are as follows:

Name	Occupation	Business Address	Significant Outside Activities
Anthony John Charles Gutman	Co-CEO & Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Trustee of the Booker Prize Foundation • Chairman of The Tate Gallery Foundation • Member of The Sutton Trust strategic advisory and development board
Kunal Kishore Shah	Co-CEO & Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Non-executive Director of Auroran Holding
Michele M. Burns	Non-Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Director of The Goldman Sachs Group, Inc. • Director of Anheuser-Busch InBev • Director of Etsy, Inc. • Director of Circle Internet Financial, LLC
Lisa A. Donnelly	Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Executive Director of Goldman Sachs International Bank • Supervisory Board Member of Goldman Sachs Bank Europe SE
Lord Paul Deighton	Non-Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Non-Executive Chair of The Economist Group • Non-Executive Chair of Heathrow Airport Holdings Limited • Non-Executive Chair Hakluyt & Company Limited • Non-Executive Director of Block, Inc. • Director of Tomorrow 32 Limited • Director of 34 Cadogan Square Limited • Chair of Governing Body at King's College School, Wimbledon • Member of the House of Lords

Catherine Cripps	G.	Non-Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Director of Goldman Sachs International Bank • Director of Polar Capital Technology Trust plc • Director of Pool Reinsurance Company Limited • Member of Investment Committee of Marie Curie Charity
Sam P. Gyimah		Non-Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Director of Goldman Sachs International Bank • Director of SG & Capital Partners Limited • Director of Leafcutter Limited • Non-Executive Director of Renaissance Learning • Member of Development Board of The British Academy • Trustee Body Member of Cambridge University Endowment Trustee Body
Nigel Harman		Non-Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Director of Goldman Sachs International Bank • Director of The Wisley Golf Club plc
Therese L. Miller		Non-Executive Director	Plumtree Court 25 Shoe Lane London EC4A 4AU	• Director of Goldman Sachs International Bank • Director of EventingLive Limited • Director of British Equestrian Federation • Director of Rothesay Limited • Director of Rothesay Life PLC • Director of Rothesay Foundation

The Board of Directors has authorised individual Managing Directors of GSI to approve any and all documents on its behalf.

There are no potential conflicts of interest between any duties owed by the Board of Directors to GSI and their private interests and/or other duties.

The Issuer's Board Audit Committee

The following are the members of the Issuer's Board Audit Committee (the "**Audit Committee**"):

Nigel Harman Chairman and Member

Sam P. Gyimah Member

Catherine G. Cripps Member

The following is a summary of the duties and responsibilities of the Audit Committee:

- (a) **Financial control:** monitoring and overseeing the integrity of the Issuer's financial statements and financial reporting processes and controls, and reporting to the Board of Directors of the Issuer in relation to the same;
- (b) **Systems and controls:** Overseeing and assessing the adequacy of management's processes for ensuring the appropriateness and effectiveness of systems and controls;

- (c) **Compliance:** safeguarding the integrity and independence of, and overseeing the performance of, the compliance function;
- (d) **Conduct risk:** overseeing the Goldman Sachs Group's conduct risk framework as it relates to the Issuer and receiving reports from the chairs of the EMEA Conduct Risk Committee;
- (e) **Internal audit:** safeguarding the integrity and independence of, and overseeing the performance of, the internal audit function;
- (f) **External audit:** overseeing the process for appointment, re-appointment or replacement of the Issuer's external auditor, reviewing and monitoring the independence and objectivity of the external auditor, monitoring the statutory audit of the annual financial statements taking into account any findings and conclusions by relevant regulators, and reporting to the Board of Directors of the Issuer on the outcome of the statutory audit including its contribution to the integrity of financial reporting and the role of the audit committee in that process; and
- (g) **Whistleblowing:** overseeing the independence, autonomy and effectiveness of the Issuer's policies and procedures on whistleblowing, including the procedures for protection of staff who raise concerns from detrimental treatment.

Credit Rating

The credit ratings of the Issuer have been issued by Fitch Ratings Inc. ("**Fitch**"), Moody's Ratings ("**Moody's**") and S&P Global Ratings, a division of The McGraw-Hill Companies, Inc. ("**S&P**"), none of which entities is established in the European Union or registered under Regulation (EC) No. 1060/2009 (as amended, the "**CRA Regulation**"). In general, European regulated investors are restricted from using a rating for regulatory purposes if such rating is not either (1) issued or validly endorsed by a credit rating agency established in the European Union and registered with the European Securities and Markets Authority ("**ESMA**") under the CRA Regulation or (2) issued by a credit rating agency established outside the European Union which is certified under the CRA Regulation.

The EU affiliates of Fitch, Moody's and S&P are registered under the CRA Regulation. The ESMA has approved the endorsement by such EU affiliates of credit ratings issued by Fitch, Moody's and S&P. Accordingly, credit ratings issued by Fitch, Moody's and S&P may be used for regulatory purposes in the EU.

Credit ratings may be adjusted over time, and there is no assurance that these credit ratings will be effective after the date of the Base Prospectus. A credit rating is not a recommendation to buy, sell or hold any securities.

As at the date of this Base Prospectus the ratings for the Issuer were:

Short-term debt:

Fitch rating was F1: An 'F1' rating indicates the highest short-term credit quality and the strongest intrinsic capacity for timely payment of financial commitments; may have an added '+' to denote any exceptionally strong credit feature.

Moody's rating was P-1: 'P-1' issuers (or supporting institutions) rated Prime-1 have a superior ability to repay short-term debt obligations.

S&P rating was A-1: A short-term obligation rated 'A-1' is rated in the highest category by Standard & Poor's. The obligor's capacity to meet its financial commitment on the obligation is strong. Within this category, certain obligations are designated with a plus sign (+). This indicates that the obligor's capacity to meet its financial commitment on these obligations is extremely strong.

Long-term debt:

Fitch rating was A+: An 'A+' rating indicates high credit quality and denotes expectations of low default risk. The capacity for payment of financial commitments is considered strong. This capacity may, nevertheless, be more vulnerable to adverse business or economic conditions than is the case for higher ratings.

Moody's rating was A1: Obligations rated 'A' are considered upper-medium grade and are subject to low credit risk. Note: Moody's appends numerical modifiers 1, 2, and 3 to each generic rating classification from 'Aa' through 'Caa'. The modifier 1 indicates that the obligation ranks in the higher end of its generic rating category; the modifier 2 indicates a mid-range ranking; and the modifier 3 indicates a ranking in the lower end of that generic rating category.

S&P rating was A+: An obligation rated 'A' is somewhat more susceptible to the adverse effects of changes in circumstances and economic conditions than obligations in higher-rated categories. However, the obligor's capacity to meet its financial commitment on the obligation is still strong. The ratings from 'AA' to 'CCC' may be modified by the addition of a plus (+) or minus (-) sign to show relative standing within the major rating categories.

Selected Financial Information

The following tables set out in summary form the balance sheet and profit and loss account relating to the Issuer. Such information is derived from: (a) the audited financial statements for the Issuer for the twelve months ended 31 December 2024 and the twelve months ended 31 December 2023 and (b) the unaudited half-yearly financial statements of the Issuer, produced by the Issuer, for the six months ended 30 June 2025 (as restated for comparative purposes under International Financial Reporting Standards (the "IFRS")), in each case which are incorporated by reference into this Base Prospectus (see the "Documents Incorporated by Reference" section on pages 111 to 113). The financial information presented below should be read in conjunction with such financial statements and reports therein.

GSI Profit and Loss Account

	Six months ended 30 June 2025	Twelve months ended 31 December 2024	Twelve months ended 31 December 2023
	US\$ in million		
Gains or losses from financial instruments at fair value through profit or loss	5,571	10,035	10,861
Fees and commissions	1,300	2,148	1,886
Other income	-	-	1,443
Non-interest income	6,871	12,183	14,190
Interest income from financial instruments measured at fair value through profit or loss	3,773	11,118	9,234
Interest income from financial instruments measured at amortised cost	6,548	13,685	12,304
Interest expense from financial instruments measured at fair value through profit or loss	(3,818)	(10,131)	(10,753)
Interest expense from financial instruments measured at amortised cost	(7,112)	(16,629)	(13,773)
Net interest expense	(609)	(1,957)	(2,988)
Net revenues	6,262	10,226	11,202

			The Issuer
Net operating expenses	(3,865)	(6,553)	(6,136)
Profit before taxation	2,397	3,673	5,066
Income tax expense	(644)	(874)	(915)
Profit for the financial period	1,753	2,799	4,151

GSI Balance Sheet

	As at 30 June 2025	As at 31 December 2024	As at 31 December 2023
		US\$ in million	
Assets			
Cash and cash equivalents	11,091	11,601	35,689
Collateralised agreements	248,436	192,546	262,817
Customer and other receivables	86,320	76,886	72,888
Trading assets (includes \$76,289 and \$65,392 pledged as collateral)	871,208	826,082	828,362
Other assets	13,073	3,759	3,799
Total assets	1,230,128	1,110,874	1,203,555
Liabilities			
Collateralised financing	208,252	169,696	215,476
Customer and other payables	109,769	107,164	115,201
Trading liabilities	776,074	711,221	737,610
Unsecured borrowings	87,734	76,811	90,267
Other liabilities	6,340	5,765	4,882
Total liabilities	1,188,169	1,070,657	1,163,436
Shareholder's equity			
Share capital	598	598	598
Share premium account	5,568	5,568	5,568
Other equity instruments	5,500	5,500	5,500
Retained earnings	30,665	28,911	28,800
Accumulated other comprehensive income	(372)	(360)	(347)
Total shareholder's equity	41,959	40,217	40,119
Total liabilities and shareholder's equity	1,230,128	1,110,874	1,203,555

The Issuer's financial statements have been prepared in accordance with international accounting standards in conformity with the requirements of the Companies Act 2006 and IFRS adopted pursuant to Regulation (EC) No 1606/2002 as it applies in the E.U.

Auditors

The financial statements of the Issuer for the twelve months ended 31 December 2024 and the twelve months ended 31 December 2023 have been independently audited by PricewaterhouseCoopers LLP, and on which PricewaterhouseCoopers LLP has issued an unqualified audit report. PricewaterhouseCoopers LLP are chartered accountants, members of the Institute of Chartered Accountants (ICA), and are qualified to practice as auditors in the United Kingdom.

THE GUARANTOR

THE GOLDMAN SACHS GROUP, INC.

The Guarantor is a leading global financial institution that delivers a broad range of financial services to a large and diversified client base that includes corporations, financial institutions, governments and individuals. The Guarantor is a Delaware corporation with registration number 2923466, incorporated on 21 July 1998, under Delaware General Corporation Law, with business address 200 West Street, New York, New York 10282 and telephone number +1 (212) 902 1000. The Guarantor is a bank holding company and a financial holding company regulated by the Board of Governors of the Federal Reserve System (FRB). Pursuant to its Certificate of Incorporation, the purpose of the Guarantor is to engage in any lawful act or activity for which corporations may be organised under the Delaware General Corporation Law. The legal entity identifier (LEI) of the Guarantor is 784F5XWPLTWKTBV3E584.

Business Activities

The business activities of the group comprising the Guarantor and its consolidated subsidiaries are divided into three segments: Global Banking & Markets, Asset & Wealth Management and Platform Solutions.

Global Banking & Markets is comprised of:

- Advisory, which includes strategic advisory assignments with respect to mergers and acquisitions, divestitures, corporate defense activities, restructurings and spin-offs;
- Underwriting, which includes public offerings and private placements, in local and cross-border transactions of a wide range of securities and other financial instruments, including acquisition financing;
- Fixed Income, Currency and Commodities, which includes client execution activities related to making markets in cash and derivative instruments (including interest rate products, credit products, mortgages, currencies and commodities), and providing financing to clients through structured credit, warehouse lending and asset-backed lending as well as securities purchased under agreements to resell and commodity financing through structured transactions;
- Equities, which generates revenues from intermediation and financing activities. Intermediation activities include making markets in equity securities and equity-related products, facilitating client transactions by providing liquidity to clients by transacting in large blocks of stocks or derivatives which requires the commitment of GSG's capital, making markets in derivatives, and generating commissions and fees from executing and clearing institution client transactions on major stock, options and futures exchanges worldwide, as well as over-the-counter transactions; and financing activities include prime brokerage and other equities financing activities including securities lending, margin lending and swaps; and
- Corporate Lending, which includes loans to corporate clients, including through relationship lending and acquisition financing, and equity and debt investing activities related to the Global Banking & Market activities.

Asset & Wealth Management is comprised of:

- Asset Management, which provides services across a broad range of investment strategies and asset classes including equity, fixed income and alternative investments (such as hedge funds, credit funds, private equity, real estate, currencies, commodities and asset allocation strategies) on a fiduciary basis or by third-party managers;

- Investment advisory solutions, which provides portfolio construction, asset allocation, risk management and investment realisation services to clients;
- Wealth advisory services serving individuals, families, family offices, foundations and endowments, financial planning services to individuals and private banking services; and
- Investment and lending activities relating to the Asset Management activities. Investment activities primarily relate to public and private equity investments in corporate, real estate and infrastructure assets. Lending activities include investing in corporate debt, lending to middle-market clients, and providing financing for real estate and other assets.

Platform Solutions is comprised of:

- Consumer Platforms, which issues credit cards and provides point-of-sale financing to consumers to finance the purchases of goods or services; and
- Transaction Banking, which includes providing transaction banking and other services, such as deposit-taking, payment solutions and cash management services for corporate and institutional clients.

Management

The directors of the Guarantor and their business occupations and business addresses are as follows:

Name	Occupation	Business Address	Significant Outside Activities
David Solomon	Chairman & CEO	200 West Street New York, NY 10282 United States	• Chair of the Board of Trustees of Hamilton College • Member of the Board of Directors of the Robin Hood Foundation • Member of the Executive Committee of the Partnership for New York City • Member of the Board of Trustees of the NewYork-Presbyterian Hospital • Member of the Board of Trustees of the Paley Center for Media
John E. Waldron	President and CEO	200 West Street New York, NY 10282 United States	• Member of the Executive Committee of the Institute of International Finance • Member of the Board of Directors of the U.S. China Business Council • Member of the International Advisory Council of the China Securities Regulatory Commission • Member of the International Advisory Panel of the Monetary Authority of Singapore • Member of the Board of Trustees of Middlebury College • Member of the Board of Trustees of Southern Methodist University • Member of the Board of Directors of Cleveland Clinic • Member of the Board of Directors of the Lincoln Center for Performing Arts • Member of the Council on Foreign Relations

David Viniar	Lead Director	200 West Street New York, NY 10282 United States	• Co-Vice Chairman of the Board of Directors of the Garden of Dreams Foundation
Michele M. Burns	Director	200 West Street New York, NY 10282 United States	• Advisory Council Member of the Stanford University Center on Longevity • Director of Anheuser-Busch InBev • Director of Etsy, Inc. • Director of Circle Internet Group, Inc. • Member of the Subsidiary Board of Goldman Sachs International
Mark Flaherty	Director	200 West Street New York, NY 10282 United States	
Kimberley Harris	Director	200 West Street New York, NY 10282 United States	• President of the Board of Directors of the Advocates for Children of New York City • Co-Chair of the Board of Directors of the Brennan Center for Justice at New York University School of Law • Member of the Advisory Board of Yale Law School Center for the Study of Corporate Law • Member of the Board of Trustees of Mount Sinai Health System
John Hess	Director	200 West Street New York, NY 10282 United States	• Director of Chevron Corporation • Member of the Board of Trustees of The Center for Strategic and International Studies • Member of The Council on Foreign Relations • Member of the Board of Directors of the Lincoln Center for Performing Arts • Member of the Board of Dean's Advisors of Harvard Business School • Member of the Board of Trustees of Mount Sinai Hospital • Member of The Business Council • Chairman of the Board of Directors of the American Petroleum Institute
Kevin Johnson	Director	200 West Street New York, NY 10282 United States	• Member of the Subsidiary Board of Goldman Sachs Bank USA • Member of the Board of Directors of Eisenhower Health

Ellen Kullman	Director	200 West Street New York, NY 10282 United States	• Director of Amgen Inc. • Director of Dell Technologies Inc. • Member of the Board of Advisors of the Tufts University School of Engineering • Member of the Board of Trustees of Northwestern University • Member of the National Academy of Engineering • Graduate Member of The Business Council • Co-Chair of Paradigm for Parity
KC McClure	Director	200 West Street New York, NY 10282 United States	• Member of the Board of Visitors of the Penn State Smeal College of Business
Lakshmi Mittal	Director	200 West Street New York, NY 10282 United States	• Directors of ArcelorMittal S.A. • Member of the Board of Trustees of Cleveland Clinic • Member of the Governing Board of the Indian School of Business • Member of the Executive Committee of the World Steel Association • Chairman of the Governing Council of LNM Institute of Information Technology • Member of the Global Advisory Council of Harvard University
Thomas K. Montag	Director	200 West Street New York, NY 10282 United States	• Member of the Board of Trustees of New York University Langone Medical Center • Member of the Board of Trustees of Northwestern University • Member of the Board of Directors of the Hispanic Federation • Member of the Board of Directors of The Japan Society • Member of the Board of Directors of Deschutes Land Trust
Peter Oppenheimer	Director	200 West Street New York, NY 10282 United States	• Director of Constellation Energy Corp. • Chair of the Subsidiary Board of Goldman Sachs Bank USA

Jan Tighe	Director	200 West Street New York, NY 10282 United States	• Director of General Motors Company • Director of Huntsman Corporation • Member of the Subsidiary Board of Goldman Sachs Bank USA • Member of the Board of Trustees of The MITRE Corporation • Member of the Strategic Advisory Committee of the Idaho National Labs – National and Homeland Security Directorate • Board Member of the United States Naval Academy Foundation • Member and Global Security Expert of the Strategic Advisory Group of the Paladin Capital Group • Directorship and Cybersecurity Certified and Governance Fellow of the National Association of Corporate Directors
-----------	----------	---	---

Auditors

The financial statements of the Guarantor have been prepared in accordance with the accounting principles generally accepted in the United States of America. The financial statements of the Guarantor for the fiscal years ended 31 December 2024, 31 December 2023 and 31 December 2022 have been independently audited by PricewaterhouseCoopers LLP, of 300 Madison Avenue, New York, New York 10017, United States of America, an independent registered public accounting firm (a member of the American Institute of Certified Public Accountants and registered with the Public Company Accounting Oversight Board).

The Guaranty

All payment obligations of the Issuer are guaranteed by the Guarantor pursuant to a guaranty substantially in the form set out below.

The Bank of New York Mellon,
acting through its London Branch
160 Queen Victoria Street,
London EC4V 4LA
United Kingdom

For value received, The Goldman Sachs Group, Inc. (the "**Guarantor**"), a corporation duly organized under the laws of the State of Delaware, hereby unconditionally and irrevocably guarantees the prompt and complete payment when and to the extent due, whether by acceleration or otherwise, of all obligations, whether now in existence or hereafter arising, of Goldman Sachs International (the "**Issuer**"), a subsidiary of the Guarantor and a private company incorporated with unlimited liability under the laws of England and Wales, to The Bank of New York Mellon, acting through its London Branch, as trustee (together with any successor trustee, the "**Counterparty**") for the benefit of the holders from time to time of the notes issued after the date hereof by the Issuer under and in respect of the Guaranteed Senior Secured Notes Programme (the "**Notes**"), pursuant to the principal trust deed between the Issuer and the Counterparty dated as of 23 September 2016 as amended and restated from time to time (and any supplemental trust deed relating thereto (together, the "**Trust Deed**"), in each case as amended, restated, supplemented or otherwise modified from time to time), arising out of or under the Notes, subject to the terms and conditions described in the Trust Deed that are applicable to the Notes (the "**Obligations**"). This Guaranty is one of payment and not of collection.

The Guarantor hereby waives notice of acceptance of this Guaranty and notice of the Obligations, and waives presentment, demand for payment, protest, notice of dishonour or non-payment of the Obligations, suit or the taking of other action by Counterparty against, and any other notice to, the Issuer, the Guarantor or others.

The Counterparty may at any time and from time to time without notice to or consent of the Guarantor and without impairing or releasing the obligations of the Guarantor hereunder: (1) agree with the Issuer to make any change in the terms of the Obligations; (2) take or fail to take any action of any kind in respect of any security for the Obligations; (3) exercise or refrain from exercising any rights against the Issuer or others in respect of the Obligations; or (4) compromise or subordinate the Obligations, including any security therefor. The Guarantor hereby waives, to the extent permitted by law, any other suretyship defense and any defenses based on lack of authority or the validity or enforceability of the Obligations or this Guaranty. Any payment by the Guarantor under this Guaranty shall be made without setoff or counterclaim. In addition, with respect to any amount that remains due and owing under the Obligations, the Guarantor hereby waives, to the extent permitted by law, (x) any setoff, counterclaim, recoupment or defense which may be available to the Issuer and (y) its right to exercise any rights of subrogation, reimbursement, contribution or indemnification unless and until all of the Obligations shall have been previously paid in full. Notwithstanding any provision to the contrary herein, nothing in this Guaranty shall be deemed to waive any claim the Guarantor may have with regard to whether and the extent to which an amount was due and owing under the Obligations.

The Guarantor further agrees that this Guaranty shall continue to be effective or be reinstated, as the case may be, if at any time payment, or any part thereof, of any of the Obligations, or interest thereon, is rescinded or must otherwise be restored or returned by the Counterparty as a result of the bankruptcy, insolvency, dissolution or reorganization of the Issuer.

The obligations of the Guarantor hereunder shall rank *pari passu* with the obligations of the Guarantor under its unsubordinated and unsecured obligations.

The Guarantor may not assign its rights nor delegate its obligations under this Guaranty, in whole or in part, without prior written consent of the Counterparty, and any purported assignment or delegation absent such consent is void, except for an assignment and delegation of all of the Guarantor's rights and obligations hereunder in whatever form the Guarantor determines may be appropriate to a partnership, corporation, trust or other organization in whatever form that succeeds to all or substantially all of the Guarantor's assets and business and that assumes such obligations by contract, operation of law or otherwise. Upon any such delegation and assumption of obligations, the Guarantor shall be relieved of and fully discharged from all obligations hereunder, whether such obligations arose before or after such delegation and assumption.

This Guaranty shall continue in full force and effect until all of the Obligations have been paid in full.

THIS GUARANTY SHALL BE GOVERNED BY AND CONSTRUED IN ACCORDANCE WITH THE INTERNAL LAWS OF THE STATE OF NEW YORK WITHOUT GIVING EFFECT TO PRINCIPLES OF CONFLICTS OF LAW. THE GUARANTOR AGREES TO THE EXCLUSIVE JURISDICTION OF COURTS LOCATED IN THE STATE OF NEW YORK, UNITED STATES OF AMERICA, OVER ANY DISPUTES ARISING UNDER OR RELATING TO THIS GUARANTY.

Very truly yours,

THE GOLDMAN SACHS GROUP, INC.

DOCUMENTS INCORPORATED BY REFERENCE

GOLDMAN SACHS INTERNATIONAL THE FOLLOWING DOCUMENTS, WHICH THE ISSUER HAS FILED WITH THE EURONEXT DUBLIN AND THE CENTRAL BANK OF IRELAND, ARE HEREBY INCORPORATED BY REFERENCE INTO THIS BASE PROSPECTUS:

- (a) The 2025 half-yearly financial report of the Issuer dated 6 August 2025 (the "**GSI 2025 Half Yearly Report**"), produced by the Issuer, including the unaudited financial statements for the six months ended 30 June 2025, available at <https://www.goldmansachs.com/investor-relations/financials/subsidiary-financial-info/gsi/2025/06-30-25-financial-statements.pdf>.
- (b) The 2024 annual report of the Issuer dated 21 March 2025 (the "**GSI 2024 Annual Report**"), including the audited financial statements for the twelve months ended 31 December 2024, available at <https://www.goldmansachs.com/investor-relations/financials/subsidiary-financial-info/gsi/2024/12-31-24-financial-statements.pdf>.
- (c) The 2023 annual report of the Issuer dated 22 March 2024 (the "**GSI 2023 Annual Report**"), including the audited financial statements for the twelve months ended 31 December 2023, available at <https://www.goldmansachs.com/investor-relations/financials/subsidiary-financial-info/gsi/2023/12-31-23-financial-statements.pdf>.

The Issuer will provide without charge to each person to whom this Base Prospectus is delivered, upon his or her written or oral request, a copy of any or all documents referred to above which have been incorporated by reference into this Base Prospectus, excluding exhibits to those documents unless they are specifically incorporated by reference into those documents or this Base Prospectus. The documents incorporated by reference into this Base Prospectus are also available to investors by request from Investor Relations, 200 West Street, New York, New York 10282, USA, telephone +1 (212) 902-0300. The documents referred to above are also available on the website of GS Group at <http://www.goldmansachs.com/investor-relations/financials/index.html>. In addition, physical copies of such documents will be available free of charge from the Irish listing agent, Matheson LLP, from its principal office in Dublin, Ireland.

Where only certain parts of documents are incorporated by reference above, the non-incorporated parts of such documents are either not relevant to investors or are covered elsewhere in this Base Prospectus.

Future half-yearly and annual reports of the Issuer, as and when available on the website <http://www.goldmansachs.com/investor-relations/financials/index.html>, shall be deemed to be incorporated by reference in, and form part of, this Base Prospectus.

Cross-Reference List

For the purposes of the EU Prospectus Regulation, the information requested to be disclosed by the Issuer as a result of Annex 7 of Commission Delegated Regulation (EU) 2019/980 supplementing the EU Prospectus Regulation (the "**PR Delegated Regulation**") and not covered elsewhere in this Base Prospectus is set out in the following cross-reference table:

Information in the Financial Statement	GSI 2025 Half Yearly Report	GSI 2024 Annual Report	GSI 2023 Annual Report
Management Report	pages 2-14	pages 2-35	pages 2-35
Report of the Directors	N/A	pages 36-40	pages 36-40
Independent Auditors' Report	N/A	pages 41-48	pages 41-48

Income Statement	page 15	page 49	page 49
Balance Sheet	page 16	page 50	page 50
Statement of Cash Flows	page 18	page 52	page 52
Notes to the Financial Statements	pages 19-32	pages 53-93	pages 53-93

Any information in the documents incorporated by reference that is not included in the cross-reference list above is necessary information to be included in this Base Prospectus pursuant to Article 6(1) of the EU Prospectus Regulation but is not otherwise required to be included under the relevant annexes of the PR Delegated Regulation.

THE GOLDMAN SACHS GROUP, INC.

The Guarantor files documents and information with the SEC, pursuant to Section 13(a), 13(c), 14 and 15(d) of the Exchange Act 1934. The following documents, which the Guarantor has filed with the SEC, Euronext Dublin and the Central Bank of Ireland are hereby incorporated by reference into this Base Prospectus:

- (a) Annual Report on Form 10-K for the fiscal year ended 31 December 2024 (the "**GS Group 2024 Form 10-K**"), containing financial statements relating to the fiscal years ended 31 December 2024 and 31 December 2023 which was filed with the SEC on 26 February 2025, available at goldmansachs.com/investor-relations/financials/10k/2024/2024-10-k.pdf.
- (b) Exhibit 99.1, except for the quotation on page 1 thereof and the information under the caption "Highlights" on page 2 thereof, of the Current Report on Form 8-K of GS Group which was filed with the SEC on 14 April 2025 (the "**GS Group 2025 Q1 Earnings Results Form 8-K**"), available at <https://www.goldmansachs.com/investor-relations/financials/8k/2025/8k-04-14-25.pdf>.
- (c) Quarterly Report on Form 10-Q of the GS Group (except for Exhibit 32.1 of Item 6), which was filed with the SEC on 2 May 2025 (the "**GS Group 2025 Q1 Form 10-Q**"), available at <https://www.goldmansachs.com/investor-relations/financials/10q/2025/first-quarter-2025-10-q.pdf>.
- (d) The Current Report on Form 8-K of GS Group, including Exhibit 99.1, which was filed with the SEC on 16 July 2025 (the "**GS Group 2025 Q2 Earnings Results Form 8-K**"), available at <https://www.goldmansachs.com/investor-relations/financials/8k/2025/8k-07-16-25.pdf>.
- (e) Quarterly Report on Form 10-Q of GS Group for the quarter ended 30 June 2024, which was filed with the SEC on 1 August 2025 (the "**GS Group 2025 Q2 Form 10-Q**") available at <https://www.goldmansachs.com/investor-relations/financials/10q/2025/second-quarter-2025-10-q.pdf>.

Where only certain parts of documents are incorporated by reference above, the non-incorporated parts of such documents are either not relevant to investors or are covered elsewhere in this Base Prospectus.

The Guarantor will provide without charge to each person to whom this Base Prospectus is delivered, upon his or her written or oral request, a copy of any or all documents referred to above which have been incorporated by reference into this Base Prospectus, excluding exhibits to those documents unless they are specifically incorporated by reference into those documents or this Base Prospectus. Investors can request those documents from The Goldman Sachs Group, Inc., Investor Relations, 200 West Street, New York, New York 10282, telephone +1 (212) 902-0300. The Guarantor's filings with the SEC are also available through the SEC's website at <http://www.sec.gov/> or on the website of the Guarantor at <http://www.goldmansachs.com/investor-relations/financials/index.html>. In addition, physical copies of such documents will be available free of charge from the Irish listing agent, Matheson LLP, from its principal office in Dublin, Ireland.

Future Annual Reports on Form 10-K, Quarterly Earnings Results Form 8-K and Quarterly Form 10-Q Reports in accordance with (a) to (e) above, as and when available on the website <http://www.goldmansachs.com/investor-relations/financials/index.html>, shall be deemed to be incorporated by reference in, and form part of, this Base Prospectus.

Cross Reference Table

For the purposes of the EU Prospectus Regulation, the information requested to be disclosed by the Guarantor as a result of Annex 7 of the PR Delegated Regulation and not covered elsewhere in this Base Prospectus is set out in the following cross-reference table.

Information Required by the PR	Information Location
Selected financial information for the fiscal years ended 31 December 2024, 31 December 2023 and 31 December 2022	GS Group 2024 Form 10-K (pages 233-234)
Risk factors relating to GS Group	GS Group 2024 Form 10-K (pages 31-59)
History and development of the company	GS Group 2024 Form 10-K (page 1) GS Group 2025 Q1 Earnings Results Form 8-K (pages 2-5) GS Group 2025 Q1 Form 10-Q (page 5) GS Group 2025 Q2 Earnings Results Form 8-K (pages 2-4) GS Group 2025 Q2 Form 10-Q (page 5)
Business Overview – Principal activities	GS Group 2024 Form 10-K (pages 1-5, 10-28 and 132)
Organisational structure	GS Group 2024 Form 10-K (page 38 and Exhibit 21.1)
Administrative, management and supervisory bodies, including conflicts of interest	GS Group 2024 Form 10-K (pages 27)
Audited historical financial information for the fiscal years ended 31 December 2024, 31 December 2023 and 31 December 2022	GS Group 2024 Form 10-K (pages 131-134)
Unaudited interim historical information and explanatory notes	GS Group 2025 Q1 Earnings Results Form 8-K (pages 7-11) GS Group 2025 Q2 Earnings Results Form 8-K (pages 6-12)
Audit report	GS Group 2024 Form 10-K (pages 127-130)
Balance sheet	GS Group 2024 Form 10-K (page 132) GS Group 2025 Q1 Form 10-Q (page 2) GS Group 2025 Q2 Form 10-Q (page 2)
Income statement	GS Group 2024 Form 10-K (page 128) GS Group 2025 Form Q1 10-Q (page 1) GS Group 2025 Q2 Form 10-Q (page 1)
Cash flow statement	GS Group 2024 Form 10-K (page 134)
Accounting policies and explanatory notes	GS Group 2024 Form 10-K (pages 62-67 and 135-234)
Legal and arbitration proceedings	GS Group 2024 Form 10-K (pages 60 and 218-230) GS Group 2025 Q1 Form 10-Q (pages 86-98 and 170) GS Group 2025 Q2 Form 10-Q (pages 87-99 and 174)

Terms and Conditions of the Notes – General Conditions

Share capital	GS Group 2024 Form 10-K (pages 132-134 and 202-204) GS Group 2025 Q1 Earnings Results Form 8-K (pages 5 and 8) GS Group 2025 Q1 Form 10-Q (pages 2-3 and 72-74) GS Group 2025 Q2 Earnings Results Form 8-K (pages 4, 8 and 9) GS Group 2025 Q2 Form 10-Q (pages 2-3 and 72-75)
Credit ratings	GS Group 2024 Form 10-K (pages 104-105) GS Group 2025 Q1 Form 10-Q (pages 129 and 143-144) GS Group 2025 Q2 Form 10-Q (pages 134 and 148-149)

The credit ratings included or referred to in the documents incorporated by reference have been issued, for the purposes of Regulation (EC) No 1060/2009 (as amended, the "**CRA Regulation**"), by Moody's Investors Service, Inc. ("**Moody's**"), Fitch, Inc. ("**Fitch**") and Standard & Poor's Financial Services LLC ("**S&P**"). None of Moody's, Fitch or S&P is established in the European Union and none of them has applied for registration under the CRA Regulation. The European Securities and Markets Authority ("**ESMA**") is currently assessing the relevant regulatory framework of the third countries from which credit rating agencies have indicated their intention to endorse credit ratings, with a view to verifying compliance with the CRA Regulation.

Subject to the fulfilment of the conditions set out in Article 4(3) of the CRA Regulation, a credit rating agency established in the European Union and registered in accordance with the CRA Regulation (an "**EU CRA**") may endorse (for regulatory purposes in the European Union) credit ratings issued outside the European Union where (i) the credit rating activities resulting in the issuing of the credit rating are undertaken in whole or in part by a credit rating agency or credit rating agencies belonging to the same group (a "**Non-EU CRA**"); and (ii) the EU CRA has verified and is able to demonstrate on an ongoing basis to ESMA that the conduct of the credit rating activities by the Non-EU CRA resulting in the issuing of the credit rating to be endorsed fulfils requirements which are "at least as stringent as" the requirements of the CRA Regulation. On 15 March 2012, ESMA announced that it considers the regulatory framework for credit rating agencies in the United States to be "as stringent as" the requirements of the CRA Regulation.

Subject to the fulfilment of the conditions set out in Article 4(3) of the CRA Regulation, the credit ratings issued by Moody's, S&P and Fitch may be endorsed for regulatory purposes in the European Union by an EU CRA belonging to the same group. There can be no assurance that such endorsements of the credit ratings issued by Moody's, Fitch and S&P will be made. In general, and subject to certain exceptions, European investors are restricted from using a credit rating for regulatory purposes if such a credit rating is not issued by an EU CRA.

TERMS AND CONDITIONS OF THE NOTES – GENERAL CONDITIONS

*The following is the text of the general terms and conditions of the Notes (the "**General Conditions**") which, as set forth in General Condition 1.1(a) below, together with the Payout Conditions, the applicable Underlying Asset Conditions, if any (subject to amendment and as supplemented or varied in accordance with the provisions of the relevant Supplemental Trust Deed (as defined below), including the Final Terms scheduled thereto, and, save for the italicised text (other than sub-headings)) and as completed by the relevant Final Terms for the particular Series of Notes, comprise the Terms and Conditions of such Series of Notes. The Terms and Conditions of each Series of Notes will be incorporated by reference into each Global Registered Note and, if applicable, each Definitive Note. Further information with respect to Notes of each Series will be given in the Supplemental Trust Deed, including the Final Terms scheduled thereto, pursuant to which such Notes are constituted which will provide for those aspects of these terms and conditions which are applicable to those Notes. References in the terms and conditions to "Notes" are to the Notes of one Series only, not to all Notes which may be issued under the Principal Trust Deed (as defined below). Terms used in the Supplemental Trust Deed and not otherwise defined herein shall have the same meanings where used herein. The absence of any such term indicating that such term is not applicable to the Notes and references to a matter being "specified" means as the same may be specified in the relevant Supplemental Trust Deed, including the Final Terms scheduled thereto.*

The Notes (as defined in General Condition 2(a) below) are constituted by a principal trust deed dated 23 September 2016 as amended and restated on or around the date of the Base Prospectus and from time to time (as further amended and restated from time to time, the "**Principal Trust Deed**") to which Goldman Sachs International as the issuer of the Notes (the "**Issuer**") and The Bank of New York Mellon, acting through its London Branch, as the trustee of the Notes (the "**Trustee**", which expression shall include all persons for the time being the trustee or trustees in respect of the Notes under the Principal Trust Deed and shall mean, in relation to any Series of Notes, the persons identified in the relevant Supplemental Trust Deed as the trustee for that Series) are party, as supplemented in relation to each Series of Notes by a separate supplemental trust deed for that Series (as amended or supplemented from time to time, including the relevant Final Terms (as defined below) scheduled thereto, the "**Supplemental Trust Deed**") dated the issue date of the relevant Notes, between the Issuer, the Trustee and the other parties named therein. The Principal Trust Deed and the relevant Supplemental Trust Deed for a Series of Notes being together referred to herein as the "**Trust Deed**" for that Series.

For each Series of Notes, a final terms document setting out the specific terms for those Notes ("**Final Terms**") will be attached as a schedule to the relevant Supplemental Trust Deed for the Notes. The Final Terms for a Series will supplement the Conditions and may specify other terms and conditions for such Series which shall, to the extent so specified or to the extent inconsistent with the Conditions, replace or modify the Conditions for the purpose of the Notes of that Series.

The Notes will have the benefit (to the extent applicable) of an agency agreement (as amended and restated from time to time, the "**Agency Agreement**") dated 23 September 2016, as amended and restated from time to time between the Issuer, Goldman Sachs International in its capacity as the agent bank, Goldman Sachs International in its capacity as the calculation agent, the Trustee, The Bank of New York Mellon acting through its London Branch in its capacity as the principal paying agent and collateral administrator and The Bank of New York Mellon SA/NV, Luxembourg Branch (in the case of Registered Notes) in its capacity as registrar. As used herein, "**Agent Bank**", "**Calculation Agent**", "**Principal Paying Agent**", "**Paying Agents**", "**Collateral Administrator**" and/or "**Registrar**" means, in relation to the Notes of any Series, the persons specified in the relevant Supplemental Trust Deed relating to the Notes of that Series as the "Agent Bank", the "Calculation Agent", the "Principal Paying Agent", a "Paying Agent", the "Collateral Administrator" and the "Registrar", respectively and, in each case, any successor to such person in such capacity.

The payment obligations of the Issuer in respect of Notes are guaranteed by The Goldman Sachs Group, Inc. as guarantor (the "**Guarantor**", which expression includes any successor thereto in the capacity of

guarantor) pursuant to a guaranty governed by laws of the State of New York dated 23 September 2016 (the "**Guaranty**"). The Guaranty will rank *pari passu* with all other unsecured and unsubordinated obligations of the Guarantor.

Certain statements in the Conditions are summaries of the detailed provisions appearing on the face of the Notes (which expression shall include the body thereof), in the Final Terms or the Trust Deed. Copies of the Principal Trust Deed, the Supplemental Trust Deeds and the Agency Agreement are available for inspection at the specified offices of the Principal Paying Agent and the registered office of the Issuer (save that, if the Notes are not admitted to trading on the regulated market of the Stock Exchange and to listing on the Official List of the Stock Exchange, copies shall be available for inspection only by an entity that is a Holder in respect of one or more Notes upon production by such Holder of the Notes of evidence satisfactory to the relevant Paying Agent as to its identity).

Any reference in these conditions to a matter being "specified" means the same as may be specified in the Supplemental Trust Deed.

The Holders of the Notes are entitled to the benefit of, are bound by and are deemed to have notice of, all the provisions of the Trust Deed and to have notice of those provisions of the Agency Agreement and any Transaction Document applicable to them.

1. INTRODUCTION

1.1 Terms and Conditions

- (a) The terms and conditions (the "**Terms and Conditions**" or the "**Conditions**") of a Series of Notes comprise:
 - (i) these General Note Conditions;
 - (ii) the definitions and interpretation provisions set out in the definitions conditions (the "**Definitions Conditions**");
 - (A) the following additional conditions to the extent specified in the relevant Final Terms:
 - (B) where the relevant Final Terms specifies the redemption basis of a Series of Notes is "Underlying Linked", the payout conditions (the "**Payout Conditions**"); and
 - (C) the relevant Underlying Asset conditions (the "**Underlying Asset Conditions**"), being:
 - (I) in relation to Notes for which "Share Linked Notes" is specified to be applicable in the relevant Final Terms, the share linked conditions (the "**Share Linked Conditions**");
 - (II) in relation to Notes for which "Index Linked Notes" is specified to be applicable in the relevant Final Terms, the index linked conditions (the "**Index Linked Conditions**"); and
 - (III) in relation to Notes for which "Multi-Asset Basket Linked Notes" is specified to be applicable in the relevant Final Terms, the multi-asset basket linked conditions (the "**Multi-Asset Basket Linked Conditions**"),

in each case, subject to completion of specific terms by the relevant Final Terms in relation to the Notes.

- (b) In respect of each Series of Notes, the Conditions will, subject to amendment and as supplemented or varied in accordance with the provisions of the relevant Supplemental Trust Deed, be incorporated by reference into the Global Registered Note and, if applicable, any Definitive Notes, for such Series.
- (c) Defined terms used in the Conditions should, unless the context otherwise requires or unless otherwise set out in these General Conditions, have the meanings given to them in the Definitions Conditions, the applicable Payout Conditions, the applicable Underlying Asset Conditions or the relevant Final Terms. In the event of any inconsistency between any of these General Note Conditions, the Definitions Conditions, the applicable Payout Conditions, the applicable Underlying Asset Conditions and the relevant Final Terms, the prevailing term will be determined in accordance with the following order of priority (where (i) has the highest priority):
 - (i) the relevant Final Terms;
 - (ii) the applicable Payout Conditions;
 - (iii) the applicable Underlying Asset Conditions (if any);
 - (iv) the Definitions Conditions; and
 - (v) these General Note Conditions,

provided that any term preceded with the phrase "notwithstanding anything else in these Conditions" (or a phrase of similar import) shall prevail over any inconsistent term in any other part of the Conditions of the Notes.

2. FORM AND DENOMINATION

- (a) The notes (in these Conditions, the "Notes") will be issued in registered form in the Minimum Denomination or an integral multiple thereof. References herein to "Notes" shall include Global Registered Notes and Definitive Notes.
- (b) As used herein, "Tranche" means Notes which are identical in all respects (including as to listing) and "Series" means each original issue of Notes together with any further issues expressed to be consolidated and form a single series with the original issue and which have the same terms and conditions or terms and conditions which are the same in all respects save for the Issue Date, Issue Price, the amount and date of the first payment of interest thereon (if any) and/or the date from which interest (if any) starts to accrue and the expressions "Series of Notes" and "Noteholders" and related expressions shall be construed accordingly.
- (c) A Global Registered Note will be issued substantially in the form of Schedule 10 to the Principal Trust Deed and any Definitive Note will be issued substantially in the form of Schedule 11 to the Principal Trust Deed to each Noteholder in respect of its registered holding.
- (d) The Issuer may, from time to time, issue one or more Series of Turkish Secured Notes. The Holders of Turkish Secured Notes or the Trustee may, in accordance with the Trust Deed, appoint the Turkish Bondholder Representative, to, inter alia, administer the Turkish Collateral pursuant to the terms of the Turkish Agency Agreement. The Turkish Collateral in respect of each Series of Turkish Secured Notes shall be pledged by the Issuer pursuant to a Turkish Pledge Agreement. If there is a default in respect of a Series of Turkish Secured

Notes, the process of enforcement of the security interest in the collateral will vary depending on whether it is Turkish Collateral or collateral held in another Securities Account.

- (e) The Issuer may, from time to time, issue one or more Series of China Connect Secured Notes. In the case of the sale of the interests of the Issuer in any China Connect Securities, any such sale will be limited by the restrictions affecting China Connect Securities at such time, which currently do not permit the transfer of any such China Connect Securities directly to the Trustee or any Noteholder. The Issuer has undertaken to maintain the appointment of a Broker and ensure it has at all times irrevocable instructions to sell the China Connect Securities if the Trustee is enforcing the security created by the Supplemental Trust Deed. Only the proceeds of sale, after deduction of broker's fees and expenses, will be available for distribution to the Trustee on behalf of the Noteholders. If there is a default in respect of a Series of China Connect Secured Notes, the process of enforcement of the security interest in the collateral will be set out in the Supplemental Trust Deed.

(f) **Retained Notes**

- (i) If "GS Retained Notes" is specified as applicable in the Final Terms relating to a Series of Notes (such Series of Notes being a "Retained Series"), to the extent the Issuer is holding Notes of such Retained Series and such Notes have not been pledged or otherwise granted by way of security to a third party, the Issuer waives its right to receive the proceeds of realisation of the Collateral securing such Retained Series following the enforcement of the security pursuant to the Trust Deed for such Retained Series (any such Notes of a Retained Series, for so long as they are held by the Issuer and not pledged or granted by way of security, being "Retained Notes"). The Notes of a Retained Series, for so long as they are not held by the Issuer or been pledged or granted by way of security by the Issuer to a third party, and all Notes of a Series that is not a Retained Series, shall together be "Placed Notes".
- (ii) The Required Collateral Amount of a Retained Series shall be calculated only by reference to the principal amount of the Placed Notes of such Retained Series, and the Calculation Agent shall not take into account the principal amount of any Retained Notes of such Retained Series when determining the Required Collateral Amount for such Retained Series.
- (iii) If "GS Retained Notes" is not specified as applicable in the Final Terms relating to a Series of Notes (such Series of Notes being a "Non-Retained Series"), no Notes of such Non-Retained Series shall be Retained Notes at any time, even if the Issuer is a holder of Notes of such Non-Retained Series from time to time.
- (iv) The Issuer shall be required: (A) on the Issue Date and upon request by the Trustee, to inform the Trustee by written notice and, if requested by the Trustee, provide evidence, of the number of Retained Notes that are held by the Issuer, and (B) to notify the Trustee following any transfer of Retained Notes by the Issuer, transfer of Placed Notes of a Retained Series to the Issuer or any pledge or grant by way of security (or termination or discharge of such pledge or grant of security) of Retained Notes to a third party.
- (v) None of the Issuer, the Guarantor, the Trustee or the Collateral Administrator shall be responsible for any incorrect, inaccurate or incomplete information relating to the number of Retained Notes in respect of any one or more Retained Series that may have been provided to the Trustee by the Issuer and none of the Issuer, the Guarantor, the Trustee or the Collateral Administrator shall be under any duty to verify or otherwise confirm the number of Retained Notes so held.

3. TITLE

- (a) Title to the Notes passes by registration in the register (the "**Register**") which the Issuer shall procure to be kept by the Registrar.
- (b) In these Conditions, subject as provided below, "Noteholder" and (in relation to a Note) "holder" and "Holder" means the person in whose name a Note is registered, as the case may be.
- (c) The Holder of the Notes will (except as otherwise required by law) be treated as its absolute owner for all purposes (whether or not it is overdue and regardless of any notice of ownership, trust or any interest in it, any writing on the relevant Note, or its theft or loss or any express or constructive notice of any claim by any other person of any interest therein other than a duly executed transfer of such Note in the form endorsed on the Registered Note in respect thereof), and no person will be liable for so treating the holder.

4. TRANSFER OF GLOBAL REGISTERED NOTES

Transfers of Global Registered Notes, in whole but not in part, shall only be made in accordance with this General Condition 4.

- (a) Subject to paragraphs (b), (c), (d) and (e) of this General Condition 4, transfers of a Global Registered Note shall be limited to transfers of such Global Registered Note in whole, but not in part, to a nominee of the Common Depositary or the Common Safekeeper (for CSS Notes and NSS Notes, respectively), or to a successor of the Common Depositary or Common Safekeeper, as applicable, or such successor's nominee, or, where applicable and only in the case of Rule 144A Global Notes, a nominee of DTC.
- (b) If the owner of a beneficial interest in a Regulation S Global Note wishes to transfer all or a part of such interest, such owner may, subject to the terms hereof and the rules and procedures of Euroclear or Clearstream, as the case may be, transfer such interest without the provision of a written certification; *provided* that (i) such transfer is not made to a U.S. Person (as defined in Regulation S) or for the account or benefit of a U.S. Person (as defined in Regulation S) and is effected through Euroclear or Clearstream in an offshore transaction as required by Regulation S and (ii) such transferee shall be deemed to have made the certifications applicable to Regulation S Notes set forth in Schedule 8 to the Principal Trust Deed, Part A.
- (c) If the owner of a beneficial interest in a Rule 144A Global Note wishes to transfer all or a part of such interest, such owner may, subject to the terms hereof and the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, transfer such interest without the provision of a written certification, *provided* that (i) such transfer is made to a QIB within the United States in reliance on the Private Placement Exemption and (ii) such transferee shall be deemed to have made the certifications applicable to Rule 144A Global Notes set forth in Schedule 8 to the Principal Trust Deed, Part A.
- (d) Notwithstanding any other provisions hereof to the contrary, if Global Registered Notes of any Series are issued in the form of both a Regulation S Global Note and a Rule 144A Global Note, and if the owner of a beneficial interest in the Rule 144A Global Note wishes at any time to exchange its beneficial interest therein (or any portion thereof) for a beneficial interest in a Regulation S Global Note of the same Series, or to transfer such beneficial interest (or any portion thereof) to a person who wishes to take delivery thereof in the form a beneficial interest in a Regulation S Global Note of the same Series, then such exchange or transfer may be effected, subject to the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, and Minimum Denomination requirements, only in accordance with this

General Condition 4. Upon receipt by the Trustee and the Issuer of (i) written instructions given in accordance with the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, directing the Issuer to arrange to credit or cause to be credited to a specified participant's account a beneficial interest in the relevant Regulation S Global Note in a principal balance equal to that of the beneficial interest in the Rule 144A Global Note of the same Series to be so exchanged or transferred, (ii) a written order given in accordance with the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, (and the relevant account, as the case may be) to be credited with, and the account of the person to be debited for, such beneficial interest and (iii) a certificate in substantially the form of Schedule 8 of the Principal Trust Deed, Part B, given by the owner of such beneficial interest in the Rule 144A Global Note, the Issuer shall (through the Paying Agent) instruct the relevant Clearing System to reduce the principal balance of such Rule 144A Global Note and to increase the principal balance of the Regulation S Global Note of the same Series by the principal amount of the beneficial interest in the Rule 144A Global Note to be so exchanged or transferred, and to credit or cause to be credited to the account of the person specified in such an instruction for the benefit of such person specified in such instruction, a beneficial interest in the Regulation S Global Note having a principal balance equal to the amount by which the balance of the Rule 144A Global Note of the same Series was reduced upon such exchange or transfer.

- (e) Notwithstanding any other provisions hereof to the contrary, if Global Registered Notes of any Series are issued in the form of a Regulation S Global Note and a Rule 144A Global Note, and if the owner of a beneficial interest in a Regulation S Global Note wishes at any time to exchange its beneficial interest therein (or any portion thereof) for a beneficial interest in a Rule 144A Global Note of the same Series, or to transfer such beneficial interest (or any portion thereof) to a person who wishes to take delivery thereof in the form of a beneficial interest in a Rule 144A Global Note of the same Series, then such exchange or transfer may be effected, subject to the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, and Minimum Denomination requirements, only in accordance with this General Condition 4. Upon receipt by the Trustee and the Issuer of: (i) written instructions given in accordance with the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, directing the Issuer to arrange to credit or cause to be credited to a specified participant's account a beneficial interest in the Rule 144A Global Note in a principal balance equal to that of the beneficial interest in the Regulation S Global Note of the same Series to be so exchanged or transferred, (ii) a written order given in accordance with the rules and procedures of Euroclear, Clearstream or DTC, as the case may be, (and the relevant account, as the case may be) to be credited with, and the account of the person to be debited for, such beneficial interest and (iii) solely if the proposed exchange or transfer would occur during the Distribution Compliance Period (as defined in Regulation S), a certificate in substantially the form set forth in Schedule 8 to the Principal Trust Deed, Part B, given by the owner of such beneficial interest in the Regulation S Global Note, the Issuer shall (through the Paying Agent) instruct the relevant Clearing Systems to reduce the balance of such Regulation S Global Note and to increase the balance of the Rule 144A Global Note of the same Series, by the principal amount of the beneficial interest in the Regulation S Global Note to be so exchanged or transferred, and to credit or cause to be credited to the account of the person specified in such instruction for the benefit of the person specified in such instruction a beneficial interest in the Rule 144A Global Note having a principal balance equal to the amount by which the balance of the Regulation S Global Note of the same Series was reduced upon such exchange or transfer.
- (f) Beneficial interests in Global Registered Notes shall be exchangeable for Definitive Notes only under the limited circumstances described in this General Condition 4. Interests in a Global Registered Note deposited with, or registered in the name of a nominee of, the

Common Depositary or the Common Safekeeper (for CSS Notes and NSS Notes, respectively) or, where applicable and only in the case of Rule 144A Global Notes, a nominee of DTC, shall also be transferred to the owners of such interests in the form of Definitive Notes only if such beneficial interest is owned by an Affiliate of the Issuer, as certified to the Trustee by the Issuer where such certificate includes a request for issuance of a Definitive Note in exchange for such beneficial interest.

- (g) If interests in any Global Registered Note are to be transferred to the beneficial owner thereof in the form of Definitive Notes pursuant to this General Condition 4 such Global Registered Note shall be surrendered by Euroclear, Clearstream or DTC, as the case may be, or the Common Depositary, custodian, or in the case of NSS Notes, the Common Safekeeper on such Clearing System's behalf. Upon such Global Registered Note being so surrendered, the Issuer shall execute and the Registrar shall authenticate (and in the case of NSS Notes, the Issuer shall instruct or cause the Registrar through the Common Service Provider to instruct the Common Safekeeper to effectuate) and deliver without charge, Definitive Notes with an aggregate principal amount equal to that of the surrendered Global Registered Note. The Definitive Notes transferred pursuant to this General Condition 4 shall be executed, authenticated and effectuated, as applicable, and delivered only in authorised denominations and registered in such names as Euroclear, Clearstream or DTC shall direct in writing. Such Definitive Notes may only be transferred pursuant to this General Condition 4 and only upon the transferee delivering a certificate to the Trustee and the Issuer making representations in substantially the form of Schedule 8 to the Principal Trust Deed, Part A.
- (h) Regulation S Global Notes and Rule 144A Global Notes shall bear the applicable restrictive legend in substantially the form set forth in Schedule 10 to the Principal Trust Deed. Regulation S Notes and Rule 144A Notes that are Definitive Notes shall bear the applicable restrictive legend in substantially the form set forth in Schedule 11 to the Principal Trust Deed.
- (i) The applicable restrictive legends set forth in Schedule 10 or Schedule 11 to the Principal Trust Deed may be removed from a Regulation S Note or Rule 144A Note, as applicable, if there is delivered to the Issuer and the Trustee an opinion of counsel, as may reasonably be required by the Issuer, that neither such legend nor the restrictions on transfer set forth therein are required to ensure that transfers of such Regulation S Note or Rule 144A Note (or beneficial interests therein), as applicable, will not violate the registration requirements of the Securities Act. Upon provision of such opinion of counsel to the Issuer and the Trustee, the Issuer shall cause the Registrar, upon receipt of an Officer's Certificate, to authenticate and deliver a new Regulation S Note or Rule 144A Note executed by the Issuer that does not bear such legend, in exchange for, and having an equal aggregate principal balance to, the existing Regulation S Note or Rule 144A Note, as applicable.
- (j) If such a restrictive legend required for Regulation S Notes or Rule 144A Notes has been removed as provided in clause (i) of this General Condition 4, then no other Notes issued in exchange for all or any part of such Regulation S Notes or Rule 144A Notes, as applicable, shall bear such legend unless the Issuer has reasonable cause to believe that the Notes issued in exchange for all or part of such Regulation S Notes or Rule 144A Notes, as applicable, are "restricted securities" within the meaning of Rule 144A and instructs the Trustee to cause a restrictive legend to be affixed to such Notes.

5. SECURITY

- (a) The Issuer shall grant to the Trustee, for the benefit of the Trustee itself, the Paying Agents, the Collateral Administrator and the Holders of the Placed Notes of a particular Series (collectively, the "Secured Parties"), a first priority security interest in all of its right, title and

interest in, to and under (in each case, whether now owned or existing, or hereafter acquired or arising) in each case to the extent so specified in the Final Terms relating to such Series:

- (i) all Eligible Repurchase Agreements related to such Series and any Repo Transactions thereunder, together with any Eligible Assets Transferred from time to time to the Issuer from the Repo Counterparty thereunder (subject to the rights of the Repo Counterparty to the return or release of any collateral delivered or made the subject of a security interest pursuant to the terms thereof) and any payments received by the Issuer thereunder;
 - (ii) all Eligible Loan Documents related to such Series and any Eligible Loans thereunder, together with any collateral made the subject of a security interest from time to time to the Issuer to secure such Eligible Loans (subject to the rights of the Borrower to the return or release of such collateral pursuant to the terms thereof) and any payments received by the Issuer thereunder;
 - (iii) (A) any Swap Agreement that has been entered into with respect to the issuance of such Series;
 - (B) any Swap Counterparty Collateral Account established in respect of such Series;
 - (C) any Specified Currency Account in which any funds on deposit will be credited to such Series; and
 - (D) if applicable, corresponding information for any other Collateral for such Series specified in the Final Terms;
 - (iv) any Additional Collateral granted to the Issuer for such Series subject and pursuant to an Additional Security Agreement, in accordance with the terms as prescribed therein;
 - (v) the Brokerage Account related to such Series, if any, as established pursuant to the Brokerage Account Agreement related to such Series, and any property on deposit therein or credited thereto;
 - (vi) the Tripartite Custody Account, if any, related to such Series, as established pursuant to the Tripartite Custody Agreement related to such Series, and any property on deposit therein or credited thereto;
 - (vii) the Securities Account related to such Series, if any, any Eligible Securities on deposit therein or credited thereto, and any payments received by or on behalf of the Issuer thereunder, as governed by the terms of the GSI Securities Agreement;
 - (viii) the funds attributable to such Series on deposit in or credited to the USD Account and the Applicable Foreign Currency Account; and
 - (ix) all other collateral for such Series specified in the Final Terms (all items in clauses (i) through (viii) are the "Collateral" for such Series of Notes).
- (b) Any security interest granted in respect of a particular Series shall be held in trust, to secure the Placed Notes of such Series equally and ratably without prejudice, priority or distinction between any Placed Note and any other Placed Notes of the same Series by reason of difference in time of issuance or otherwise, except as expressly provided in the Conditions, and to secure (i) the payment of all amounts due on the Placed Notes of such Series in accordance with their terms, (ii) the payment of all other sums payable on such Placed Notes under the Trust Deed, and (iii) compliance with the provisions of the Conditions. A security interest granted in respect of a Retained Series will secure only the Placed Notes of such

Retained Series (and payments on such Placed Notes), but will not secure any Retained Notes of such Retained Series (or any payments on such Retained Notes).

6. APPLICATION OF PROCEEDS

- (a) The Issuer shall agree with the Trustee, pursuant to the Trust Deed that, if the Trustee collects any money or property in respect of a Series of Notes, it shall pay out the money or property in the following order:
 - (i) FIRST: (A) to the Trustee for amounts due under Clause 12 (*Remuneration and Indemnification of the Trustee*) of the Principal Trust Deed, and, then, (B) to the Principal Paying Agent and Collateral Administrator, only, for amounts due under Clauses 15.1 (*Fees*) and 16 (*Indemnity*) of the Agency Agreement;
 - (ii) SECOND: if the Holders of the affected Series proceed against the Issuer directly without the Trustee in accordance with General Condition 20 (*Limitation of Proceedings*), to Holders for their collection costs;
 - (iii) THIRD: to Holders of the Placed Notes of the affected Series, Redemption Amounts and interest due and unpaid on such Placed Notes; and
 - (iv) FOURTH: to the Issuer or, to the extent the Trustee collects any amount pursuant to the Guaranty from the Guarantor, to the Guarantor, or to such party as a court of competent jurisdiction shall direct.
- (b) The Trustee may, upon notice to the Issuer, fix a record date in the case of Global Registered Notes and a payment date for any payment to Holders pursuant to this General Condition 6.

7. REDEMPTION

(a) Scheduled redemption

Unless previously redeemed, or purchased and cancelled, the Notes will be redeemed at their Final Redemption Amount on the Maturity Date, subject as provided in General Condition 9 (*Payments*).

(b) Redemption at the option of Noteholders

- (i) Each Holder of any Notes of a Series for which the relevant Final Terms specify "Put Option" to be applicable ("**Puttable Notes**") has the option to direct the Issuer to redeem its Notes prior to their Maturity Date (such option being the "**Optional Redemption (Put)**"), and if such a Holder elects to exercise this option by delivery of an Optional Redemption Notice (Put) in accordance with (ii) or (iii) below, the Issuer shall redeem such Holder's Notes of the relevant Series on the applicable Optional Redemption Date (Put) by payment to that Holder of the Optional Redemption Amount (Put) for each Note so redeemed, plus (where the relevant Final Terms specify "Accrued interest payable") accrued interest (if any) to the applicable Optional Redemption Date (Put), as calculated on behalf of the Issuer.
- (ii) The Holder of any Puttable Notes represented by a Global Registered Note shall exercise the Optional Redemption (Put) by delivering the Optional Redemption Notice (Put) for receipt by the Agent Bank (or Calculation Agent, as applicable), the Trustee, the Principal Paying Agent and the relevant Clearing System no later than 10.00 a.m., Brussels or Luxembourg time, as the case may be, or such other Specified Time specified in the relevant Final Terms for such Series, in each case on any Business Day within the Optional Redemption Notice Period (Put). Any such Optional

Redemption Notice (Put) will be irrevocable and may not be withdrawn, and in the case of Notes held or cleared through Euroclear and/or Clearstream, Luxembourg, such Optional Redemption Notice (Put) shall be delivered to Euroclear or Clearstream, as applicable, no less than fifteen Business Days (or such other minimum period of time as may be provided in any applicable rules of Euroclear and/or Clearstream, Luxembourg) and in the case of Global Registered Notes not held or cleared through Euroclear and/or Clearstream, Luxembourg, such Optional Redemption Notice (Put) shall be given in accordance with any applicable rules of the relevant Clearing System.

- (iii) The Holder of any Puttable Notes represented by Definitive Registered Notes shall exercise the Optional Redemption (Put) by depositing a duly completed Optional Redemption Notice (Put) and the Definitive Registered Notes representing such Notes with any Paying Agent during the Optional Redemption Notice Period (Put). The Paying Agent with which the Definitive Registered Notes are so deposited shall deliver a duly completed Optional Redemption Receipt (Put) to the depositing Noteholder. Any such Optional Redemption Notice (Put) will be irrevocable and may not be withdrawn and no Definitive Registered Note, once deposited with a duly completed Optional Redemption Notice (Put) in accordance with this General Condition 7(b)(iii), may be withdrawn, subject to the following. If, prior to the relevant Optional Redemption Date (Put), the Notes represented by any such deposited Definitive Registered Notes become immediately due and payable, or payment of the Optional Redemption Amount (Put) and any interest (if applicable) is improperly withheld or refused upon due presentation of the relevant Definitive Registered Notes on the relevant Optional Redemption Date (Put), the relevant Paying Agent shall mail notification thereof to the depositing Noteholder at such address as may have been given by such Noteholder in the relevant Optional Redemption Notice (Put) and shall hold such Definitive Registered Notes at its Specified Office for collection by the depositing Noteholder against surrender of the relevant Optional Redemption Receipt (Put). For so long as the relevant Paying Agent holds Definitive Registered Notes representing any Outstanding principal amount of Notes of a Series in accordance with this General Condition 7(b)(iii), the depositor of such Definitive Registered Notes and not such Paying Agent shall be deemed to be the holder of such Notes for all purposes.

(c) **No other redemption**

The Issuer shall not be entitled to redeem the Notes of any Series otherwise than as provided in General Condition 7(a) (*Scheduled redemption*) or 7(b) (*Redemption at the option of Noteholders*) above, in General Condition 10 (*Optional Redemption of Notes*) below, in General Condition 14 (*Change in Law*) below, in any Underlying Asset Conditions applicable to the Notes of such Series and in the applicable Payout Conditions.

(d) **Purchase**

The Issuer, the Guarantor or any of their respective Affiliates may at any time purchase Placed Notes in the open market or otherwise and at any price. Any Placed Notes so purchased may be held, surrendered for cancellation or reissued or resold, and Notes so reissued or resold shall for all purposes be deemed to form part of the original Series of Notes.

(e) **Adjustments**

Any adjustments to the Final Redemption Amount payable upon redemption of Share Linked Notes or Index Linked Notes will be made in accordance with the Share Linked Conditions or the Index Linked Conditions, respectively.

8. INTEREST

8.1 Fixed Rate Notes

- (a) This General Condition 8.1 is applicable to the Notes only if the relevant Final Terms specify that the "Interest Basis" to be fixed rate.
- (b) The Notes bear interest from the Fixed Interest Commencement Date at the Rate of Interest payable in arrears on each Interest Payment Date (provided that each such date is subject to adjustment in accordance with the Business Day Convention, if so specified in the relevant Final Terms), subject as provided in General Condition 9 (Payments). Each Note will cease to bear interest from the due date for final redemption unless, upon due presentation, payment of the Redemption Amount is improperly withheld or refused, in which case such Note will continue to bear interest in accordance with this General Condition 8.1 (as well after as before judgment) until whichever is the earlier of (i) the day on which all sums due in respect of such Note up to that day are received by or on behalf of the relevant Noteholder and (ii) the day which is seven days after the Principal Paying Agent has notified the Noteholders that it has received all sums due in respect of the Notes up to such seventh day (except to the extent that there is any subsequent default in payment).
- (c) The Interest Amount payable on an Interest Payment Date in respect of each principal amount of each Note equal to the Minimum Denomination for any Interest Period ending on (but excluding) such Interest Payment Date or on the date on which such Interest Payment Date is scheduled to fall, as is applicable, or for a period other than an Interest Period shall be calculated as the product of (i) the Rate of Interest, (ii) the Minimum Denomination and (iii) the relevant Day Count Fraction, and rounding the resulting figure in accordance with General Condition 26 (*Rounding*).

8.2 Floating Rate Notes

- (a) This General Condition 8.2 is applicable to the Notes only if the relevant Final Terms specify the "Interest Basis" to be floating rate.
- (b) The Notes bear interest from the Interest Commencement Date at the Rate of Interest payable in arrears on each Interest Payment Date (provided that each such date is subject to adjustment in accordance with the Business Day Convention, if so specified in the relevant Final Terms), subject as provided in General Condition 9 (*Payments*). Each Note will cease to bear interest from the due date for final redemption unless, upon due presentation, payment of the Redemption Amount is improperly withheld or refused, in which case it will continue to bear interest in accordance with this General Condition 8.2 (as well after as before judgment) until whichever is the earlier of (i) the day on which all sums due in respect of such Note up to that day are received by or on behalf of the relevant Noteholder and (ii) the day which is seven days after the Principal Paying Agent has notified the Noteholders that it has received all sums due in respect of the Notes up to such seventh day (except to the extent that there is any subsequent default in payment).
- (c) The Rate of Interest applicable to the Notes for each Interest Period will be determined by the Agent Bank (in the case of Standard Notes) or the Calculation Agent (in the case of Structured Notes), in each case, to be a rate equal to the Reference Rate, and where a "Margin" is specified in the relevant Final Terms, plus or minus the Margin.
- (d) The "Reference Rate" for an Interest Period will be determined on the following basis:

- (i) The Agent Bank or Calculation Agent, as applicable, will determine the Reference Rate to be the rate which appears on the specified Relevant Screen Page(s) as of the Relevant Time on the relevant Interest Determination Date.
- (ii) If such rate does not appear on at least one of the Relevant Screen Pages at or around the Relevant Time on the relevant Interest Determination Date, the Rate of Interest applicable to the Notes during such Interest Period shall be determined by the Agent Bank or the Calculation Agent, as applicable, in good faith and in a commercially reasonable manner having regard to comparable benchmarks then available.
- (e) The Agent Bank or the Calculation Agent, as applicable, will, as soon as practicable after the time at which the Rate of Interest is to be determined in relation to each Interest Period, calculate the Interest Amount payable on an Interest Payment Date for such Interest Period in respect of each principal amount of Notes equal to the Minimum Denomination. The Interest Amount will be calculated as the product of (i) the Rate of Interest for such Interest Period, (ii) the Minimum Denomination and (iii) the relevant Day Count Fraction, and rounding the resulting figure in accordance with General Condition 26 (*Rounding*).

8.3 Defaulted Interest

- (a) In respect of a Series of Notes for which "Defaulted Interest" is "applicable" in the relevant Final Terms, unless otherwise specified, it will apply as follows:

Defaulted Interest:	Applicable
(a) Defaulted Interest Margin:	2.00 per cent. per annum plus the then applicable Interest Rate.
(b) Overdue Interest Grace Period:	2 Payment Business Days
(c) Defaulted Interest Payment Date:	The 30th calendar day following the Overdue Interest Payment Date.

If the Issuer defaults in making payment when due of any interest amount payable on the Notes of such Series and this default has not been remedied by the Overdue Interest Due Date, the Issuer will be required to pay an amount under the Notes of such Series to the relevant Holders to account for default interest that accrues on the unpaid interest amount (the "**Overdue Interest Amount**") during the period of time that it remains unpaid. The Overdue Interest Amount will accrue interest on a daily basis ("**Defaulted Interest**") at the applicable Defaulted Interest Rate during the period commencing on (and including) the date of the payment default, and ending on (but excluding) the date on which the Overdue Interest Amount is paid in full (the "**Overdue Interest Payment Date**"). Payment of the Defaulted Interest Amount will be due on the Defaulted Interest Payment Date, or if any such day is not a Payment Business Day, on the first succeeding day that is a Payment Business Day.

- (b) In the event that the Issuer shall at any time default on the payment of an installment of interest with respect to any Notes, such installment shall, (A) in the case of any Global Registered Note, be payable to the Holders of Notes of such Series in whose names such Notes were registered on the Record Date applicable to such installment of interest, and (B) in the case of any Definitive Note, be payable to the Holders of Notes of such Series in whose names such Notes were registered on the Record Date applicable to such installment of interest. Defaulted Interest (including any interest on such Defaulted Interest) in the case of Global Registered Notes, may be paid by the Issuer or the Guarantor, at its election, as provided in clause (i) or (ii) below.

- (i) In the case of a Global Registered Note, the Issuer or the Guarantor may elect to make payment of any Defaulted Interest (including any interest on such Defaulted Interest) to the Holders in whose names the Notes of such Series are registered at the close of business on a special record date for the payment of such Defaulted Interest (a "**Special Record Date**"), which shall be fixed in the following manner: The Issuer shall notify the Trustee in writing of the amount of Defaulted Interest proposed to be paid with respect to such Series and the date of the proposed payment, and at the same time the Issuer shall deposit with the Trustee an amount of money equal to the aggregate amount proposed to be paid in respect of such Defaulted Interest or shall make arrangements satisfactory to the Trustee for such deposit prior to the date of the proposed payment, such money when deposited to be held in trust for the benefit of the Holders entitled to such Defaulted Interest as provided in this clause (i). Thereupon the Trustee shall fix a Special Record Date for the payment of such Defaulted Interest, which shall be not more than 15 calendar days and not less than 10 calendar days prior to the date of the proposed payment and not less than 10 calendar days after the receipt by the Trustee of the notice of the proposed payment. The Trustee shall promptly notify the Issuer of such Special Record Date and, in the name and at the expense of the Issuer, shall cause notice of the proposed payment of such Defaulted Interest and the Special Record Date therefor to be sent, first-class mail, postage prepaid, to each Holder of such Series of Notes at such Holder's address as it appears in the Note Register, not less than 10 calendar days prior to such Special Record Date. Notice of the proposed payment of such Defaulted Interest and the Special Record Date therefor having been mailed as aforesaid, such Defaulted Interest shall be paid to the Holders in whose names the Notes of such Series are registered at the close of business on such Special Record Date and shall no longer be payable pursuant to the following clause (ii).
- (ii) Alternatively, the Issuer or the Guarantor may make payment of any Defaulted Interest (including any interest on such Defaulted Interest) in any other lawful manner, upon written notice given by the Issuer to the Trustee of the proposed payment pursuant to this clause (ii).

8.4 General

- (a) The Agent Bank or Calculation Agent will, in respect of any other amount referred to in the Conditions which is to be calculated by the Agent Bank or Calculation Agent, respectively, as soon as practicable after the time or times at which any such amount is to be determined, calculate the relevant amount in accordance with the Conditions.
- (b) The Agent Bank or the Calculation Agent, as applicable, will cause each Rate of Interest and Interest Amount determined by it, together with the relevant Interest Payment Date, and any other amount(s) required to be determined by it together with any relevant payment date(s) to be notified to the Paying Agents and, if required by each competent authority, stock exchange and/or quotation system (if any) to which the Notes have then been admitted to listing, trading and/or quotation, to such competent authority, stock exchange and/or quotation system (if any) as soon as practicable after such determination but (in the case of each Rate of Interest, Interest Amount and Interest Payment Date) in any event not later than the first day of the relevant Interest Period. Notice thereof shall also promptly be given to the Noteholders. The Agent Bank or the Calculation Agent, as applicable, will be entitled to recalculate any Interest Amount (on the basis of the foregoing provisions) without notice in the event of an extension or shortening of the relevant Interest Period.
- (c) All notifications, opinions, determinations, certificates, calculations, quotations and decisions given, expressed, made or obtained for the purposes of this General Condition 8 by the Agent

Bank or the Calculation Agent, as applicable, will (in the absence of manifest error) be binding on the Issuer, the Guarantor, the Paying Agents and the Noteholders and (subject as aforesaid) no liability to any such Person will attach to the Agent Bank or Calculation Agent, as applicable, in connection with the exercise or non-exercise by it of its powers, duties and discretions for such purposes.

9. PAYMENTS

- (a) All payments in respect of Notes represented by a Global Registered Note will be made to the person shown on the Note Register and, if no further payment falls to be made in respect of such Notes represented by the Global Registered Note, surrender of that Global Registered Note to or to the order of the Registrar. On each occasion on which a payment of an applicable Redemption Amount or interest is made in respect of the Notes represented by the Global Registered Note, the Issuer shall procure that the payment is noted in a schedule thereto. For Notes represented by Global Registered Notes, the "Record Date" shall be the close of business (for the relevant Clearing System) on the Clearing System Business Day or, if specified in the relevant Final Terms, such other Specified Day(s) before the due date for payment. If any date for payment of any amount in respect of any Note is not a Payment Business Day, then the holder thereof shall not be entitled to payment of the amount due until the next following Payment Business Day and shall not be entitled to any interest or other sum in respect of any such delay.
- (b) Each payment in respect of Notes represented by a Definitive Note will be made to the person shown as the Holder in the Note Register at the opening of business in the place of the Registrar's Specified Office on the fifteenth day or, if specified in the relevant Final Terms, such other Specified Day(s) before the due date for such payment (the "**Record Date**" in respect of Notes represented by Definitive Notes). Where payment in respect of a Note is to be made by cheque, the cheque will be mailed to the address shown as the address of the Holder in the Note Register at the opening of business on the relevant Record Date. For Global Registered Notes, the "Record Date" shall be the close of business (in the relevant Clearing System) on the Clearing System Business Day or, if specified in the relevant Final Terms, such other Specified Day(s) before the due date for payment where "**Clearing System Business Day**" means a day on which the relevant Clearing System is open for business.
- (c) Payments in respect of interest and Redemption Amounts on each Note of a USD Series shall be payable:
 - (i) by wire transfer in immediately available funds to a USD-denominated bank account maintained by the Holder of such Note or its nominee; *provided* that the Holder has provided wiring instructions to the Trustee and the Paying Agent on or before the related Record Date; or
 - (ii) if wire transfer cannot be effected, by a USD cheque drawn on a bank in the United States of America.
- (d) Payments in respect of interest and Redemption Amounts on each Note of a Non-USD Series shall be payable:
 - (i) by wire transfer in immediately available funds to a bank account denominated in the relevant Note Currency for such Series and maintained by the Holder of such Note or its nominee; *provided* that the Holder has provided wiring instructions to the Trustee on or before the related Record Date; or

- (ii) if wire transfer cannot be effected, by a cheque in the relevant Note Currency drawn on a bank in the principal financial centre of the country of the relevant Note Currency.
- (e) Notwithstanding any of the foregoing provisions with respect to payments on the Notes, if the Notes of a Series have become or been declared due and payable following an Event of Default and such acceleration of maturity and its consequences have not been rescinded and annulled, then payments on such Notes shall be made in accordance with General Condition 6 (*Application of Proceeds*).
- (f) Payment of any applicable Redemption Amount or interest in respect of a Note of any Series shall be made in the Note Currency specified in the applicable Final Terms for such Series.
- (g) All reductions in the principal amount of a Note (or one or more predecessor Notes) effected by any payments of applicable Redemption Amounts made in accordance with these Conditions that correspond to partial redemption of that Note shall be binding upon all future Holders of such Note and of any Note issued upon the registration of transfer or transfer thereof or in exchange therefor or in lieu thereof, whether or not such payment is noted on such Note.
- (h) In respect of any Notes represented by Definitive Notes, where payment is to be made by transfer to an account, payment instructions (for value the due date, or, if the due date is not a Payment Business Day, for value the next succeeding Payment Business Day) will be initiated and, where payment is to be made by cheque, the cheque will be mailed (i) (in the case of payments of applicable Redemption Amounts and interest payable on redemption) on the later of the due date for payment and the day on which the relevant Definitive Note is surrendered (or, in the case of part payment only, endorsed) at the Specified Office of a Paying Agent and (ii) (in the case of payments of interest payable other than on redemption) on the due date for payment. If the due date for payment of any amount in respect of any Global Registered Note is not a Payment Business Day, the Holder shall not be entitled to payment in such place of the amount due until the next succeeding Payment Business Day and shall not be entitled to any interest or other payment in respect of any such delay. A Holder of a Note shall not be entitled to any interest or other payment in respect of any delay in payment resulting from (A) the due date for a payment not being a Payment Business Day or (B) a cheque mailed in accordance with this General Condition 9 arriving after the due date for payment or being lost in the mail.
- (i) If a Paying Agent makes a partial payment in respect of any Notes represented by a Definitive Note, the Issuer shall procure that the amount and date of such payment are noted on the Note Register and, in the case of partial payment upon presentation of the relevant Definitive Note, that a statement indicating the amount and the date of such payment is endorsed on such Definitive Note.
- (j) Notwithstanding anything else in the Conditions, in the event that any Redemption Amount, interest amount or any other amount payable under the Conditions by the Issuer in respect of a Note would otherwise be a negative amount, such amount shall instead be zero.
- (k) The holder of a Global Registered Note shall be the only person entitled to receive payments in respect of the Notes represented by such Global Registered Note and the Issuer's payment obligations under such Note will be discharged by payment to, or to the order of, the holder of such Global Registered Note in respect of each amount so paid. Each of the persons shown in the records of the relevant Clearing System as the holder of a particular principal amount of Notes represented by a Global Registered Note must look solely to such Clearing System for its share of each payment made by the Issuer. No person other than the holder of such Global Registered Note shall have any claim against the Issuer in respect of any

payments due on the Notes represented by that Global Registered Note. For the purpose of this clause, the "holder" of a Global Registered Note is, where the relevant Clearing System is Euroclear or Clearstream, the Common Depositary (or its nominee) or the Common Safekeeper (or its nominee), as applicable, and where the relevant Clearing System is DTC, the custodian on behalf of DTC.

- (l) Subject to the foregoing provisions of this General Condition 9 (*Payments*), each Note delivered under the relevant Trust Deed and upon registration of transfer or transfer of or in exchange for or in lieu of any other Note of the same Series shall carry the rights of unpaid interest, Redemption Amounts or other amounts, as applicable, that were carried by such other Note.
- (m) Each of the Issuer, the Trustee and each Paying Agent may request certification, acceptable to it, to enable it to determine its duties and liabilities with respect to any taxes or other charges that it may be required to pay, deduct or withhold from payments in respect of any Note under any present or future law or regulation to which it may be subject or to comply with any reporting or other requirements under any such law or regulation. The foregoing shall not obligate any relevant Paying Agent to determine or request certifications that may be required for compliance with any laws or regulations of the United Kingdom, as applicable, except to the extent it is instructed in writing as to such requirements by the Issuer.
- (n) Notwithstanding anything to the contrary contained in the relevant Trust Deed and the Conditions, the Issuer may, to the extent it is required to do so by law, deduct or withhold income or other similar taxes imposed by the United Kingdom or any political subdivision thereof or taxing authority therein or any other applicable jurisdiction from payment of Redemption Amounts or interest payments in respect of a Note of any Series.

10. OPTIONAL REDEMPTION OF NOTES

- (a) If the relevant Final Terms for a Series of Notes specify that "Call Option (non-GMSLA)" is applicable ("**Callable Notes**") or the relevant Final Terms for a Series of Notes specify that "Call Option (GMSLA)" is applicable ("**GMSLA Callable Notes**"), the Issuer may elect to redeem the Notes of such Series before their stated Maturity Date, in accordance with such Final Terms and in accordance with this General Condition 10. References to the Trustee or Paying Agent in this General Condition 10 shall be deemed to refer also to any agent of the Issuer appointed with respect to any Series of Callable Notes or GMSLA Callable Notes for the purpose of acting as the Issuer's agent with respect to the redemption of Notes of such Series.
- (b) The Issuer may redeem a Series of Callable Notes, as a whole or from time to time in part, subject to the Conditions and at the Optional Redemption Amount(s) (Call) specified in the relevant Final Terms. The Issuer may redeem a Series of GMSLA Callable Notes, as a whole only, subject to the Conditions and at the Optional Redemption Amount.
- (c) The Issuer shall evidence its election to redeem any Callable Notes or GMSLA Callable Notes pursuant to General Condition 10(b) by an Officer's Certificate.
- (d) In the case of Callable Notes or GMSLA Callable Notes in the form of Definitive Notes to be redeemed, the Issuer shall prepare and mail or cause to be mailed a notice of redemption, in the manner provided for in General Condition 30 (*Notices*), at least five Business Days (or, in the case of Affiliate Notes represented by Definitive Registered Notes, such shorter notice as may be acceptable to the Holders and the Trustee) prior to the relevant Optional Redemption Date (Call), to each Holder of Registered Notes to be redeemed.
- (e) All notices of redemption shall state:

- (i) the Series of Callable Notes or GMSLA Callable Notes, as applicable, being redeemed, which may include only Affiliate Notes of that Series;
 - (ii) the Optional Redemption Date(s) (Call);
 - (iii) the applicable Redemption Amount payable as provided in General Condition 10(k);
 - (iv) the aggregate principal amount of the Series of Callable Notes or GMSLA Callable Notes, as applicable, that the Issuer is redeeming;
 - (v) that on the Optional Redemption Date(s) (Call), the applicable Redemption Amount will become due and payable in respect of each Callable Note or GMSLA Callable Note, or in each case, the portion thereof, to be redeemed, and in respect of any Series of Callable Notes or GMSLA Callable Notes that accrues interest, unless the Issuer defaults in making the payment of the applicable Redemption Amount, that interest on each such Callable Note, or the portion thereof, to be redeemed (or, if applicable, each such GMSLA Callable Note), will cease to accrue on and after the Optional Redemption Date(s) (Call);
 - (vi) the place or places where a Holder must surrender the Callable Notes or GMSLA Callable Notes, as applicable, for payment of the applicable Redemption Amount and any accrued interest payable on the Optional Redemption Date(s) (Call); and
 - (vii) the CUSIP or ISIN, if any, listed in the notice or printed on the Callable Notes or GMSLA Callable Notes, as applicable, and that no representation is made as to the accuracy or correctness of such CUSIP or ISIN.
- (f) At any Issuer's request, the Trustee or the relevant Paying Agent (as applicable) shall give the notice of redemption (either by mail or publication, as applicable) in the Issuer's name and at its expense; provided, however, that the Issuer shall, at least 10 Business Days prior to the Optional Redemption Date(s) (Call), have delivered an Officer's Certificate to the Trustee or relevant Paying Agent (as applicable), requesting that the Trustee or relevant Paying Agent give the notice of redemption and setting forth the information to be stated in such notice as provided in clause (e) above.
- (g) If the Issuer is redeeming less than the full Outstanding aggregate principal amount of the Callable Notes of a Series, the Trustee or such other person as applicable, shall select the Notes to be redeemed on a pro rata basis, by lot or in another fair and reasonable manner chosen at the discretion of the Issuer. The Trustee, or such other person as applicable, shall make the selection from the Outstanding aggregate principal amount of the Notes of such Series not previously called for redemption. No Notes having a principal amount equal to or less than the applicable Minimum Denomination shall be redeemed in part. The Trustee may select for redemption portions equal to the applicable Minimum Denomination or any integral multiple thereof for Notes that have denominations larger than the applicable Minimum Denomination. The Trustee shall not be liable for selections made by it in accordance with this General Condition 10(g).
- (h) For all purposes, unless the context otherwise requires, all provisions relating to redemption of Notes of a Series shall relate, in the case of any Note redeemed or to be redeemed only in part, to the portion of the principal amount of that Note which has been or is to be redeemed.
- (i) Notwithstanding any other provision of this General Condition 10, Affiliate Notes may be redeemed, in whole or in part, at any time by the Issuer and at a price specified by the Issuer, and as agreed to with the relevant Holders of such Affiliate Notes.

- (j) On or prior to 10:00 a.m., London, England time, on the relevant Optional Redemption Date(s) (Call), the Issuer shall deposit with the Trustee or with the applicable Paying Agent (or, if the Issuer or an Affiliate is acting as the Paying Agent, segregate and hold in trust) an amount of money, in the applicable Note Currency, in immediately available funds sufficient to pay the applicable Redemption Amount and accrued interest on, all the Callable Notes, or the portions thereof (or, if applicable, each the GMSLA Callable Note), of the Series that the Issuer is redeeming on such Optional Redemption Date(s) (Call).
- (k) If the Issuer, or the Trustee or Paying Agent (as applicable) on behalf of the Issuer, gives notice of redemption in accordance with this General Condition 10, the Callable Notes, or the portions thereof (or, if applicable, each GMSLA Callable Note), of a Series called for redemption, shall, on the Optional Redemption Date(s) (Call), become due and payable at the applicable Redemption Amount specified in the notice (together with accrued interest, if any), and from and after the Optional Redemption Date(s) (Call) (unless the Issuer shall default in the payment of the applicable Redemption Amount and accrued interest) the Callable Notes or GMSLA Callable Notes, or the portions of the Callable Notes of such Series shall cease to bear interest. Upon surrender of any Callable Note or GMSLA Callable Note for redemption in accordance with the notice, the Issuer shall redeem such Notes by payment of the applicable Redemption Amount, together with accrued interest, if any (subject to the rights of Holders of record, on the relevant record date to receive interest due on the relevant Interest Payment Date). If the Issuer shall fail to pay the applicable Redemption Amount for any Callable Note, or the portion of any such Note (or, if applicable, for any GMSLA Callable Note), of a Series called for redemption upon its surrender for redemption, the applicable Redemption Amount shall, until paid, bear interest from the Optional Redemption Date(s) (Call) at the rate borne by the Notes of that Series.
- (l) Upon surrender of Callable Notes that are to be redeemed in part, the Issuer shall execute, and the Registrar shall authenticate (and in the case of NSS Notes, shall instruct or cause the Registrar through the Common Service Provider to instruct the Common Safekeeper to effectuate) and make available for delivery to the Holder of such Notes so redeemed, at the expense of the Issuer, a new Note or Notes of the same Series, of any authorised denomination as requested by the Holder, in an aggregate principal amount equal to, and in exchange for, the unredeemed portion of the principal amount of the Note surrendered, provided that: (i) each new Note will be in a principal amount equal to the applicable Minimum Denomination or an integral multiple thereof; and (ii) with respect to any new Notes issued under the NSS, the Registrar through the Common Service Provider shall instruct the Common Safekeeper to effectuate such Note or Notes and such Note or Notes shall be effectuated by the Common Safekeeper.

11. MODIFICATION

- (a) In respect of any Series of Notes for which the relevant Final Terms specifies that one or more terms of that Series may be modified by agreement between the Issuer and the beneficial owners of interests in such Notes, acting unanimously (the "**Requisite Beneficial Owners**"), an election by the Issuer and the Requisite Beneficial Owners to make such a modification shall be evidenced by delivery of a letter or counterparts thereof (collectively, a "**Modification Notice**") to the Trustee complying with this General Condition 11. Such Modification Notice shall be signed by the Issuer and either (i) the Requisite Beneficial Owners (as specified in the applicable Final Terms) or (ii) Persons acting on behalf of the Requisite Beneficial Owners.
- (b) The Modification Notice shall state:
 - (i) the Series of Notes being modified;

- (ii) the terms of the Notes being so modified;
- (iii) the date from which such modified terms shall be effective, if applicable; and
- (iv) the CUSIP or ISIN, if any, printed on the Notes;

and shall include proof satisfactory to the Trustee as to the aggregate principal amount of the interests in the Notes held by the Requisite Beneficial Owners that have executed such Modification Notice, or on whose behalf such Modification Notice has been executed, based on the Trustee's then-current policies and procedures for establishing proof of ownership.

- (c) Any exercise of an election by the Issuer and the Requisite Beneficial Owners to modify the terms of Notes of a Series for which the relevant Final Terms specify that such a modification is permitted shall not be deemed an amendment to or supplement of the Notes for the purposes of the meetings provisions for the Holders of the Notes in Schedule 13 (*Provisions for Meetings of Holders of the Notes*) of the Principal Trust Deed.

12. EXTENSION OPTION

- (a) In respect of any Series of Extendible Notes, the Issuer may elect to extend the Maturity Date of such Series by delivery of a notice complying with this General Condition 12 (the "**Extension Notice**") to the relevant Clearing System (through the Principal Paying Agent) for communication by the relevant Clearing System (through the Principal Paying Agent) to the relevant beneficial owners of interests in such Notes. In respect of a relevant Extended Maturity Date (as defined below), the Issuer must deliver the Extension Notice to the relevant Clearing System (through the Principal Paying Agent) by no later than 12.00 p.m. (London time) on the cut-off date specified in the relevant Final Terms for that Extended Maturity Date (each, an "**Extension Notice Date**"). Such Extension Notice shall be signed by the Issuer. The Principal Paying Agent shall deliver any Extension Notice received from the Issuer to the relevant Clearing System no later than 5:00 p.m. (London time) on the same Business Day on which that Extension Notice is received by the Paying Agent. The Issuer may not extend the Maturity Date of a Series of Extendible Notes beyond the Final Maturity Date specified in the Final Terms for that Series.
- (b) The Extension Notice shall state:
 - (i) that the Issuer is electing to extend the Maturity Date;
 - (ii) the Series of Extendible Notes being extended;
 - (iii) the date to which the Maturity Date will be extended (the "**Extended Maturity Date**");
 - (iv) the applicable Exercise Deadline (as defined below);
 - (v) the relevant Extension Effective Time (as defined below);
 - (vi) the relevant Extension Implementation Date, which will be five Business Days after the Exercise Deadline or such other date specified in the Final Terms (the "**Extension Implementation Date**");
 - (vii) the applicable interest rate for the period between the then-current Maturity Date and the applicable Extended Maturity Date (the "**Extended Interest Rate**"); and
 - (viii) the form of Non-Extension Notice (as defined below).

- (c) The beneficial owners of interests in the relevant Notes have the option to block the extension of the Maturity Date in respect of all or a portion of the Notes of the relevant Series (the "**Non-Extension Option**"), provided that they deliver a duly completed notice (a "**Non-Extension Notice**"), in the form annexed to the applicable Extension Notice, to the relevant Clearing System for communication by the relevant Clearing System through the Principal Paying Agent to the Issuer, which such Non-Extension Notice must be delivered to the office of the relevant Clearing System during its usual business hours and on or before 5:00 pm London time (or such other time, if any, specified in the Extension Notice) by the cut-off date specified in the Extension Notice (the "**Exercise Deadline**"). There will be a minimum of 10 Business Days between any Extension Notice Date and the date of the applicable Exercise Deadline (the "**Non-Extension Exercise Period**") for the corresponding Non-Extension Notice, unless otherwise permitted by the relevant Clearing System. In respect of any Notes for which no Non-Extension Notice has been served (or for which any such notice has been revoked) within the Non-Extension Exercise Period, the Extended Maturity Date will be effective and apply to the relevant Notes from the closure of the Non-Extension Exercise Period on the Exercise Deadline (or on such date and at such time as otherwise specified in the Final Terms) (the "**Extension Effective Time**"). The beneficial owners of interests in the relevant Notes may exercise their Non-Extension Option in respect of all or any portion of the Notes for which an Extension Notice has been validly delivered provided that any portion of the Notes of such Series in respect of which the Non-Extension Option is not being exercised shall have an aggregate principal amount which is not less than, and is a multiple of, the Minimum Denomination for such Series.
- (d) Upon delivery to the relevant Clearing System, a Non-Extension Notice shall be revocable until the applicable Exercise Deadline, at which time such notice will become irrevocable and binding upon the beneficial owners of interests in the relevant Notes or any transferee of such Notes to which the Non-Extension Notice applies.
- (e) In the event that the beneficial owners of interests in the relevant Notes exercise the Non-Extension Option in respect of all of the Notes of the relevant Series, all such Notes of that Series will be redeemed on the then-current Maturity Date.
- (f) In the event that the beneficial owners of interests in the relevant Notes exercise the Non-Extension Option in respect of a portion of the Notes of the relevant Series, the Notes in respect of which the Non-Extension Option has been exercised will be redeemed on the then-current Maturity Date.
- (g) Upon the exercise of a Non-Extension Option in relation to a portion of the Notes of the relevant Series and at the expense of the Issuer, the Issuer shall execute a new Global Registered Note in exchange for the Notes in respect of which the Non-Extension Option has been exercised, and the Registrar shall authenticate such new Global Registered Note and make it available for delivery to the relevant Clearing Systems on behalf of the relevant beneficial owners of the Notes in respect of which the Non-Extension Option has been exercised, where such new Global Registered Note will be on the same terms, but with an aggregate principal amount (the "**Non-Extended Principal Amount**") equal to the Notes in respect of which the Non-Extension Option has been exercised. Each such new Global Registered Note must have an aggregate principal amount equal to the applicable Minimum Denomination or an integral multiple thereof; and with respect to any new Global Registered Notes issued under the NSS, the Registrar through the Common Service Provider shall instruct the Common Safekeeper to, and the Common Safekeeper shall, effectuate such Global Registered Note. The Notes represented by such new Global Registered Note will specify that "Extension Option" is not applicable, will have a separate ISIN and a separate Common Code from the Notes of the same Series for which the Non-Extension Option was not exercised and their maturity date will be the then-current Maturity Date.

- (h) In respect of the Notes of the relevant Series for which the Non-Extension Option was not exercised, and for which the maturity date was extended to the Extended Maturity Date, the aggregate principal amount of such extended Notes shall be reduced by the Non-Extended Principal Amount with effect from the Extension Effective Time, provided that any such aggregate principal amount of the outstanding extended Notes must be no less than the applicable Minimum Denomination for such Notes or an integral multiple thereof.
- (i) If the Issuer fails to deliver an Extension Notice on an Extension Notice Date to the relevant Clearing System, the then-current Maturity Date shall not be extended for any Notes of the relevant Series and such Notes will be redeemed on the then-current Maturity Date.
- (j) If no beneficial owner of any Notes of the relevant Series delivers or revokes, as applicable, a Non-Extension Notice prior to the applicable Exercise Deadline, the Extension Notice for the relevant Extended Maturity Date will be effective legally from the Exercise Deadline and the Maturity Date for the relevant Notes shall be extended automatically to the relevant Extended Maturity Date. Interest (where applicable) will continue to accrue on the Notes at the Extended Interest Rate and shall be payable on each Interest Payment Date as specified in the Final Terms until the applicable Extended Maturity Date.
- (k) If the Issuer exercises an Extension Option and the beneficial owners of interests in the relevant Notes exercise their Non-Extension Option in respect of any Notes in that Series, such unextended Notes will be non-transferable in the period between the relevant Exercise Deadline and the relevant Extension Implementation Date. This transfer restriction will not apply to Notes of the same Series in respect of which the beneficial owners of interests in such Notes have not exercised their Non-Extension Option.
- (l) In respect of a Series of Extendible Notes, neither an election by the Issuer to extend the maturity of such Notes, nor any election by beneficial owners of interests in such Notes not to exercise their Non-Extension Option, shall be deemed a modification, amendment or supplement of the Notes for the purposes of the Trust Deed.

13. FLOATING RATE BENCHMARK EVENTS

13.1 Benchmark Transition Event

- (a) If the Agent Bank determines that a Benchmark Transition Event and its related Benchmark Replacement Date have occurred prior to the Reference Time in respect of any determination of the Reference Rate on any date, the Benchmark Replacement will replace the then-current Reference Rate for all purposes relating to the Notes in respect of such determination on such date and all determinations on all subsequent dates. In connection with the implementation of a Benchmark Replacement, the Agent Bank will have the right to make Benchmark Replacement Conforming Changes from time to time. For the avoidance of doubt, the provisions of General Condition 13.2 (*Original Primary Rate Event*) shall not apply in respect of such Reference Rate upon the occurrence of a Benchmark Transition Event.
- (b) Any determination, decision or election that may be made by the Agent Bank pursuant to this General Condition 13.1, including any determination with respect to a tenor, rate or adjustment or of the occurrence or non-occurrence of an event, circumstance or date and any decision to take or refrain from taking any action or any selection, will be conclusive and binding absent manifest error, may be made in the Agent Bank's sole discretion, and, notwithstanding anything to the contrary in the Conditions relating to a Series of Notes, shall become effective without consent from the Holders of the relevant Series or any other party.

13.2 Original Primary Rate Event

Save where the Benchmark Transition provisions in General Condition 13.1 (*Benchmark Transition Event*) above apply, if the Agent Bank determines, in its discretion and acting in good faith and in a commercially reasonable manner, that an Original Primary Rate Event has occurred in respect of an Original Primary Rate which may adversely affect the interests of the Holders (including but not limited to the fact that such Original Primary Rate, as the case may be, is no longer relevant to and does not reflect the original economic objective and rationale of the Notes), the Agent Bank shall take the following actions:

- (a) The Agent Bank shall attempt to identify a Replacement Primary Rate, as the case may be.
- (b) The Agent Bank shall attempt to determine the Adjustment Spread.
- (c) If the Agent Bank identifies a Replacement Primary Rate pursuant to paragraph (a) above and determines an Adjustment Spread pursuant to paragraph (b) above, then the following shall occur:
 - (i) The terms of the Notes shall, without the consent of the Holders, be amended so that each reference to "Reference Rate" shall be replaced by a reference to "Replacement Primary Rate plus the Adjustment Spread" with effect from the Adjustment Date. Notwithstanding this change, the result of (A) the Replacement Primary Rate, plus (B) the Adjustment Spread plus or minus (as indicated in the relevant Final Terms) (C) the Margin, is subject to a minimum of zero.
 - (ii) The Agent Bank shall, without the consent of the Holders, make such other adjustments (the "**Replacement Primary Rate Amendments**") to the Conditions (including, but not limited to, any Business Day, Business Day Convention, Day Count Fraction, Interest Determination Date, Interest Amount, Interest Payment Date, Interest Period and Rate of Interest) with effect from the Adjustment Date as it determines necessary or appropriate in order to account for the effect of the replacement of the Original Primary Rate with the Replacement Primary Rate plus the Adjustment Spread and/or to preserve as nearly as practicable the economic equivalence of the Notes before and after the replacement of the Original Primary Rate with the Replacement Primary Rate plus the Adjustment Spread.
 - (iii) The Agent Bank shall deliver a notice to the Holders as soon as practicable in accordance with General Condition 30 which shall specify any Replacement Primary Rate, Adjustment Spread, Adjustment Date and the specific terms of any Replacement Primary Rate Amendments and such notice shall be irrevocable. Any Replacement Primary Rate, Adjustment Spread and Replacement Primary Rate Amendments will be binding on the Issuer, the Agents and the Holders.
- (d) If, for the purposes of calculating any Interest Amount, there is more than one Original Primary Rate specified, then the provisions of this General Condition 13.2 shall apply separately to each such Original Primary Rate. Neither the Agent Bank nor the Issuer shall have any duty to monitor, enquire or satisfy itself as to whether any Original Primary Rate Event has occurred. If the definition, methodology or formula for an Original Primary Rate, or other means of calculating such Original Primary Rate, is changed or modified (irrespective of the materiality of any such change or changes), then references to that Original Primary Rate shall be to the Original Primary Rate as changed and modified.

14. CHANGE IN LAW (ILLEGALITY)

If respect of any Series of Notes for which "Change in Law (Illegality)" is specified as applicable in the relevant Final Terms, upon the occurrence of a Change in Law (Illegality), the Issuer shall have the right to redeem the Notes on such day as shall be notified to the Holders in accordance with General Condition 30 (*Notices*) and will, in respect of each Note, if and to the extent permitted by applicable law, pay to the relevant Holder the applicable Early Redemption Amount on such day.

15. APPOINTMENT OF THE AGENTS

- (a) The Paying Agents, the Collateral Administrator, the Agent Bank, the Calculation Agent and the Registrar (the "**Agents**") appointed by the Issuer and their respective specified offices are listed on the face of the Notes or as otherwise appointed pursuant to the Agency Agreement and with specified offices as set out in the Supplemental Trust Deed.
- (b) Save as set out in the Trust Deed, the Agents act solely as agents of the Issuer and do not assume any obligation or relationship of agency or trust for or with any Holder. The Issuer reserves the right at any time to vary or terminate the appointment of any Agent, and to appoint additional or other Agents, provided that the Issuer will at all times maintain:
 - (i) a Principal Paying Agent;
 - (ii) an Agent Bank (where the Conditions so require one);
 - (iii) a Calculation Agent (where the Conditions so require one);
 - (iv) a Paying Agent and (while any Registered Notes remain outstanding), a Registrar, in Luxembourg;
 - (v) if and for so long as the Notes are admitted to listing on a listing authority, stock exchange and/or quotation system and the rules of such listing authority, stock exchange and/or quotation system require the appointment of a Paying Agent having a Specified Office in a particular place, a Paying Agent having a Specified Office in such place.
- (c) For Global Registered Notes, the Issuer will at all times maintain a Registrar and the Register in Luxembourg (or such other place as the Trustee may approve), for so long as any stamp duty requirements apply.
- (d) Notice of any change in any of the Agents or in their Specified Offices shall promptly be given to the Holders of the Notes.
- (e) The Calculation Agent shall not act as an agent for the Holders but shall be the agent of the Issuer and all its calculations, determinations and adjustments hereunder shall be made in good faith and in a commercially reasonable manner, and (save in the case of manifest or proven error) shall be final and binding on the Issuer and the Holders. All calculation functions required of the Calculation Agent under these General Conditions may be delegated to any such person as the Calculation Agent, in its discretion, acting in good faith and in a commercially reasonable manner, may decide.

16. EVENTS OF DEFAULT

Except where otherwise indicated by the context or where the term is otherwise defined for a specific purpose, the term "Event of Default" as used in the Conditions with respect to Notes of a particular Series shall mean the occurrence of one of the following described events (as modified, where applicable, in the relevant Final Terms for such Series), unless such event is either incapable

of applying to such Series of Notes or is specifically deleted in the applicable Final Terms relating to such Series of Notes:

- (a) A default by the Issuer shall be made in the due and punctual payment of any interest under the Notes of such Series, when and as the same shall become due and payable, and such default shall have continued for 30 days, unless the Guarantor shall have made a payment under the Guaranty in the amount of such defaulted payment on or prior to such 30th day.
- (b) A default by the Issuer shall be made in the due and punctual payment of an applicable Redemption Amount for the Notes of such Series, when and as the same shall become due and payable, whether at the maturity thereof, by acceleration, by notice of prepayment or otherwise, and such default shall have continued for a period of five Business Days, unless the Guarantor shall have made a payment under the Guaranty in the amount of such defaulted payment on or prior to the due date.
- (c) A default shall be made by the Guarantor in making (i) any payment due under the Guaranty in respect of an applicable Redemption Amount for the Notes of such Series when and as the same shall become due and payable, or (ii) any payment due under the Guaranty in respect of interest on the Notes, when and as the same shall become due and payable, and such default shall have continued for 30 days.
- (d) If (i) there is an entry by a court having jurisdiction in the premises of (A) a decree or order for relief in respect of the Issuer in an involuntary case or proceeding under any applicable bankruptcy, insolvency, reorganization or other similar law (each, an "**Applicable Law**") or (B) a decree or order adjudging the Issuer a bankrupt or insolvent, or approving as properly filed a petition seeking reorganization, arrangement, adjustment or composition of or in respect of the Issuer under any Applicable Law, or appointing a custodian, receiver, liquidator, examiner, assignee, trustee, sequestrator or other similar official of the Issuer or of any substantial part of the property of the Issuer, or ordering the winding up or liquidation of the Issuer or its affairs; and (ii) any such decree or order for relief or any such other decree or order shall continue unstayed and in effect for a period of 60 consecutive days.
- (e) The commencement by the Issuer of a voluntary case or proceeding under any Applicable Law or of any other case or proceeding to be adjudicated a bankrupt or insolvent, or the consent by the Issuer to the entry of a decree or order for relief in respect of the Issuer in an involuntary case or proceeding under any Applicable Law or to the commencement of any bankruptcy or insolvency case or proceeding against the Issuer, or the filing by the Issuer of a petition or answer or consent seeking reorganization or relief under any such Applicable Law, or the consent by the Issuer to the filing of such petition or to the appointment of or the taking possession by a custodian, receiver, liquidator, examiner, assignee, trustee, sequestrator or other similar official of the Issuer or of any substantial part of its property, or the making by the Issuer of an assignment for the benefit of creditors, or the taking of action by the Issuer in furtherance of any such action.
- (f) As of any date of determination, the Collateral Value with respect to such Series of Notes is less than the Required Collateral Amount of such Series on such date of determination, which default continues for a period of four consecutive Collateral Business Days from and including the Collateral Business Day on which notice of such Deficiency is provided to the Issuer by the Collateral Administrator in accordance with the Agency Agreement, unless such deficiency has been cured prior to the close of business on such fourth consecutive Collateral Business Day.
- (g) In respect of any Series of Structured Notes for which the Required Collateral Amount of such Series is not specified in the relevant Final Terms as being (i) "par", (ii) a specified

percentage of "par" or (iii) "par plus accrued interest", the failure of the Calculation Agent to deliver a Confirmation Instruction to the Eligible Custodian to the extent required under the GSI Securities Agreement on any Collateral Business Day that Placed Notes of the relevant Series are Outstanding, and such failure is not remedied on or before the fourth Collateral Business Day after notice of such failure has been given by the Trustee to the Calculation Agent.

- (h) Any other event specified as an "Event of Default" in the applicable Final Terms for such Series of Notes.

Each of the foregoing events will constitute an Event of Default whatever the reason for such event occurring and irrespective of whether it is voluntary or involuntary or is affected by operation of law or pursuant to any judgment, decree or order of any court or any order, rule or regulation of any administrative or governmental body.

17. ACCELERATION AND SALE OF COLLATERAL

- (a) If an Event of Default shall occur and be continuing with respect to a Series of Notes (other than the Events of Default specified in Condition 16(d) or 16(e)):
 - (i) the Trustee may, by written notice to the Issuer and the Guarantor, declare all the Notes of such Series to be due and payable;
 - (ii) if the applicable Event of Default is one specified in Condition 16(a) or 16(b) and such Notes are Extendible Notes, upon receipt of written direction by Holders of more than 50% of the aggregate principal amount of the Outstanding Notes of that Series that are affected by the Event of Default, the Trustee will, by written notice to the Issuer and the Guarantor, declare all the Notes of such Series to be due and payable; and
 - (iii) otherwise, upon receipt of written direction by Holders of more than 50% of the aggregate principal amount of all the Outstanding Notes of that Series, the Trustee will, by written notice to the Issuer and the Guarantor, declare all the Notes of such Series to be due and payable,

whereupon, in each case, such Notes shall mature and become due and payable at their applicable Early Redemption Amount, together with interest accrued thereon, without the necessity of any presentment, demand, protest or further notice, all of which are hereby waived by the Issuer.

- (b) If an Event of Default specified in Condition 16(d) or 16(e) occurs, the Outstanding Notes of all Series issued by the Issuer shall automatically become due and payable at their applicable Early Redemption Amount, together with interest accrued thereon without any declaration or other act on the part of the Trustee or any Holder.
- (c) If the Notes of a Series have become due and payable at their applicable Early Redemption Amount pursuant to the preceding General Conditions 17(a) or 17(b) (in either case, an "Acceleration"), the Trustee shall (i) have the right to cause the Issuer to enforce all or any of its rights under the Eligible Repurchase Agreements and Eligible Loan Documents related to the affected Series, (ii) send written notice to the Guarantor demanding that the Guarantor make any payment payable to the Trustee as a result of the Acceleration pursuant to the Guaranty, (iii) have the right to cause the Issuer to terminate any Swap Agreement related to such Series of Notes, (iv) cause the Issuer to deliver to the Trustee any or all Collateral Assets, Eligible Assets and Eligible Investments on deposit in any applicable Eligible Custody Accounts attributable to such Series, (v) demand that the Issuer deliver to it any Eligible Investments in any Specified Currency Account that is attributable to such Series, (vi) sell or

cause the sale of all of the Eligible Investments and Eligible Assets related to the affected Series of Notes at a public or private sale, or in any other manner, at such prices as the Trustee in good faith considers commercially reasonable, and either for cash, on credit or for future delivery and (vii) exercise any such rights as conferred on the Trustee in respect of any Additional Collateral pursuant to any Additional Security Agreement.

18. OTHER REMEDIES

- (a) If an Event of Default occurs and is continuing, the Trustee may pursue any available remedy to collect amounts to be used for the payment of applicable Redemption Amounts for and interest on the affected Notes or to enforce the performance of any provision of the affected Notes, the relevant Trust Deed or the Guaranty.
- (b) In addition to the above clause (a), if an Acceleration has occurred, the Trustee will, subject to General Condition 17, be entitled to collect on any and all Collateral or Additional Collateral related to the affected Series of Notes and apply the collections thereon to satisfy the indebtedness, obligations, liabilities and/or obligations of the Issuer to the respective Secured Parties of the affected Series.
- (c) The Trustee may maintain a proceeding even if it neither possesses any of the affected Notes nor produces any of them in the proceeding. A delay or omission by the Trustee or any Holder in exercising any right or remedy accruing upon an Event of Default shall not impair the right or remedy or constitute a waiver of or acquiescence in the Event of Default. No remedy is exclusive of any other remedy. All available remedies are cumulative to the extent permitted by law.

19. WAIVER OF PAST DEFAULTS

The Holders of more than 50% of the aggregate principal amount of the Outstanding Notes of the relevant Series, by notice to the Trustee, may waive any existing Default or Event of Default with respect to such Series and its consequences, except where the event constituting such Default or Event of Default is (a) a default in the payment of any applicable Redemption Amount for or interest on any Note of such Series as specified in, respectively, General Conditions 16(a) and 16(b) or (b) a breach of any term or provision of the Notes of such Series, the relevant Trust Deed or the Guaranty where such term or provision is one that cannot be modified or amended without the consent of all Holders of such Series of Notes. When a Default or Event of Default with respect to a Series of Notes is waived, it is deemed to have been cured and ceases to be continuing; provided that no such waiver shall extend to any subsequent or other Default or Event of Default in respect of such Series or impair any right consequent thereon.

20. LIMITATION ON PROCEEDINGS

No Holder of any Note of a Series will have any right to institute any proceeding with respect to the relevant Trust Deed for such Series or the Guaranty, nor to institute any proceeding for any remedy thereunder, unless (a) such Holder shall have previously given to the Trustee written notice of a continuing Event of Default with respect to such Series, (b) Holders of at least 25% in aggregate principal amount of the Outstanding Notes of such Series shall have made written request, and offered reasonable indemnity, to the Trustee to institute such proceeding in its trustee capacity, (c) the Trustee shall not have received a direction inconsistent with the request in (b) from Holders of more than 50% of the aggregate principal amount of the Outstanding Notes of the affected Series and (d) the Trustee shall have failed to institute such proceeding within 60 days. A Holder may not use the Conditions to prejudice the rights of another Holder or to obtain a preference or priority over another Holder.

21. RIGHTS OF HOLDERS TO RECEIVE PAYMENT

Notwithstanding any other provision of the Trust Deed (including, without limitation, General Condition 20 (*Limitation on Proceedings*)), the right of any Holder (a) to receive payment in the relevant Note Currency of any applicable Redemption Amounts or interest on any Notes held by such Holder on or after their respective due dates expressed in the relevant Trust Deed or the Notes, or (b) to bring proceedings for the enforcement of any such payment on or after such respective due dates, shall not be impaired or affected without the consent of such Holder.

22. COLLECTION SUIT BY TRUSTEE

If an Event of Default specified in Condition 16(a), 16(b), or 16(c) occurs and is continuing in respect of a Series of Notes, the Trustee may recover judgment in its own name and as trustee of an express trust against the Issuer and the Guarantor for the whole amount then due and owing (together with applicable interest on any overdue Redemption Amounts and, to the extent lawful, interest on overdue interest) on the Notes of such Series and against the Issuer for the amounts provided for in Clause 12 (*Remuneration and Indemnification of the Trustee*) of the Principal Trust Deed.

23. TRUSTEE MAY FILE, ETC.

- (a) The Trustee may (irrespective of whether any applicable Redemption Amounts for the Notes are then due):
 - (i) file such other papers or documents as may be necessary or advisable in order to have the claims of the Trustee and the Holders under the Conditions and the Notes allowed in any bankruptcy, insolvency, liquidation or other judicial proceedings relative to the Issuer or the Guarantor or their respective creditors or properties; and
 - (ii) collect and receive any monies or other property payable or deliverable in respect of any such claims and distribute them in accordance with the Conditions.

Any receiver, trustee, liquidator, sequestrator (or other similar official) in any such proceeding is hereby authorised by each Holder to make such payments to the Trustee and, in the event that the Trustee shall consent to the making of such payments directly to the Holders, to pay to the Trustee any amount due to it for the reasonable compensation, and properly incurred expenses, taxes, disbursements and advances of the Trustee, its agent and counsel, and any other amounts due to the Trustee pursuant to Clause 12 (*Remuneration and Indemnification of the Trustee*) of the Principal Trust Deed.

- (b) Nothing in these Conditions shall be deemed to authorise the Trustee to authorise or consent to or accept or adopt on behalf of any Holder any plan of reorganization, arrangement, adjustment or composition affecting the Notes or the rights of any Holder thereof, or to authorise the Trustee to vote in respect of the claim of any Holder in any such proceeding.

24. UNDERTAKING FOR COSTS

In any proceedings for the enforcement of any right or remedy under these Conditions or in any proceedings against the Trustee for any action taken or omitted by it as Trustee, a court in its discretion may require the filing by any party litigant in the proceedings of an undertaking to pay the costs of the proceedings, and the court in its discretion may assess reasonable costs, including reasonable attorneys' fees, against any party litigant in the proceedings, having due regard to the merits and good faith of the claims or defenses made by the party litigant. This Condition 24 does not apply to proceedings by the Trustee, proceedings by the Issuer, proceedings by a Holder

pursuant to Condition 21 (*Rights of Holders to Receive Payment*) or proceedings by Holders of more than 10% in aggregate principal amount of Outstanding Placed Notes of the affected Series.

25. PRESCRIPTION

Claims against the Issuer for payment in respect of the Notes shall be prescribed and become void unless made within ten years (in the case of Redemption Amounts) or five years (in the case of interest) from the date on which the Notes become due and payable in respect thereof.

26. ROUNDING

(a) For the purposes of any calculations referred to in the Conditions (unless otherwise specified in any applicable Payout Condition or Underlying Asset Condition):

- (i) all values and all percentages used in or resulting from such calculations will be rounded, if necessary, in the case of (A) a value, to the nearest five decimal places (with 0.000005 being rounded up to 0.00001), and (B) a percentage, to the nearest one hundred thousandth of a percentage point (with 0.000005 per cent. being rounded up to 0.00001 per cent.), unless the relevant Final Terms specify "Non-Default Rounding – calculation values and percentages" to be applicable, in which case, all percentages and all values used in or resulting from such calculations shall be rounded, if necessary, to the Specified Decimal Place (with halves being rounded up or down, as is specified in the relevant Final Terms);
- (ii) all amounts due and payable denominated in any currency (including any Interest Amount or Redemption Amount) will be rounded to the nearest five decimal places (with 0.000005 being rounded up to 0.00001), unless the relevant Final Terms specify "Non-Default Rounding – amounts due and payable" to be applicable, in which case, all amounts due and payable (or such amounts as specified in the relevant Final Terms) denominated in any currency will be rounded to the nearest Specified Sub-Unit of such currency (with halves of the Specified Sub-Unit being rounded up or down, as is specified in the relevant Final Terms),

or, in each case, if the relevant Final Terms specify "Other Rounding Convention" is applicable to any relevant percentage, amount or figure as specified in the relevant Final Terms, such percentage, amount or figure shall be rounded to such Specified Sub-Unit of currency or Specified Decimal Place, as the case may be, in each case, with halves being rounded up or down, as is specified in the relevant Final Terms.

(b) Notwithstanding anything to the contrary in the Conditions, the relevant Trust Deed or the Agency Agreement, each calculation of an amount payable in cash in respect of each Note (other than a Note represented by a Definitive Note) shall be based on the Outstanding aggregate principal amount or number of all such Notes on such date (or the relevant affected portion thereof), rounded in accordance with the method provided in General Condition 26(a) (*Rounding*) above and distributed in accordance with the Relevant Rules.

27. REPLACEMENT OF NOTES

If any Definitive Note is lost, stolen, mutilated, defaced or destroyed, it may be replaced, subject to applicable laws and stock exchange requirements, at the specified office of the Principal Paying Agent in London upon payment by the claimant of the expenses incurred in connection with such replacement and on such terms as to evidence, security, indemnity and otherwise as the Issuer may require. Mutilated or defaced Notes must be surrendered before replacements will be issued.

28. MEETINGS OF NOTEHOLDERS, MODIFICATION AND WAIVER

- (a) The relevant Trust Deed contains provisions for convening meetings of Noteholders of a Series to consider matters affecting their interests.
- (b) Where a Basic Terms Modification in respect of a Series of Notes is being authorised by way of a Written Resolution of Holders of such Series, this will only be effective pursuant to the relevant Trust Deed to authorise the Basic Terms Modification if the Written Resolution is signed by each Holder of Placed Notes of the relevant Series, or alternatively, electronically approved using the systems and procedures in place from time to time of a relevant Clearing System by or on behalf of all Holders who for the time being are entitled to receive notice of a meeting of Holders, and such electronic approval will take effect as if it were a resolution passed at a meeting of Holders. Such a Written Resolution may be contained in one document or several documents in the same form, each signed by or on behalf of one or more Holders or may be in the form of SWIFT or other electronic instructions as permitted by the rules and procedures of the relevant Clearing System.
- (c) An Extraordinary Resolution in respect of a Series of Notes may only be passed by votes representing not less than three quarters of the aggregate principal amount of the Outstanding Placed Notes of such Series represented at the meeting. The quorum at a meeting for passing an Extraordinary Resolution in respect of a Series of Notes will be two or more persons present and holding or representing not less than one-half of the aggregate principal amount of the Outstanding Placed Notes of such Series. Each relevant Trust Deed also contains provisions for combined meetings of Holders of more than one Series of Notes.
- (d) For any Series of Notes for which the Placed Notes are held by a single Holder, a single Voter in relation thereto shall be deemed to be two Voters for the purpose of forming a quorum.
- (e) The Trustee in its sole discretion may determine that an event which would otherwise be an Event of Default shall not be so treated and/or may authorise or waive any proposed breach (of covenants or otherwise) but only if and in so far as the interests of the Holders of the Notes shall not, in its opinion, be materially prejudiced thereby.
- (f) Any authorisation, waiver or determination validly passed by resolution at a meeting of the Holders of a Series shall be binding on the Trustee and all Holders of the Notes of such Series. The Issuer shall cause any such authorisation, waiver or determination to be notified to the Holders of the Notes of such Series as soon as practicable.

29. ENTITLEMENT OF THE TRUSTEE

In connection with the exercise of its powers, trusts, authorities or discretions (including but not limited to those in relation to any proposed modification, waiver, authorisation or substitution as aforesaid), the Trustee shall not have regard to the consequences of such exercise for individual holders of any other notes or bonds, resulting from their being for any purpose domiciled or resident in, or otherwise connected with, or subject to the jurisdiction of, any particular territory.

30. NOTICES

- (a) Any notice or communication shall be in writing and delivered in person or mailed by first-class mail, postage prepaid, addressed as follows:
 - (i) if to the Issuer:

Address: Goldman Sachs International

Plumtree Court, 25 Shoe Lane
London EC4A 4AU
United Kingdom

Attention: GS Structured Investments Team

Email: gs-TES-trading-ldn@gs.com

(ii) if to the Agent Bank:

Address: Goldman Sachs International
Plumtree Court, 25 Shoe Lane
London EC4A 4AU
United Kingdom

Attention: CAF Team

Email: gs-TES-trading-ldn@gs.com

(iii) if to the Calculation Agent:

Address: Goldman Sachs International
Plumtree Court, 25 Shoe Lane
London EC4A 4AU
United Kingdom

Attention: GSI Calculation Agent

Email: gsi_calculation_agent@ny.email.gs.com

gs-TES-trading-ldn@gs.com

(iv) if to the Trustee:

Address: The Bank of New York Mellon acting through its London
Branch
160 Queen Victoria Street
London EC4V 4LA
United Kingdom

Attention: Trustee Administration Manager

(v) if to the Principal Paying Agent or the Collateral Administrator:

Address: The Bank of New York Mellon acting through its London
Branch
160 Queen Victoria Street
London EC4V 4LA
United Kingdom

Attention: Corporate Trust Administration – GSI

(vi) if to the Registrar:

Address: The Bank of New York Mellon SA/NV, Luxembourg Branch
Vertigo Building – Polaris, 2-4 rue Eugene Ruppert
L-2453 Luxembourg

Attention: GSI Senior Notes

Any written instruction that is provided to The Bank of New York Mellon will be delivered in either electronic or hard copy form and will be signed manually by, or bear a facsimile of a manual signature of, the Officer or other person authorised to sign such instruction.

- (b) Either of the Issuer or the Trustee may, by notice to the other, designate additional or different addresses for subsequent notices or communications.
- (c) Any notice or communication mailed to a registered Holder shall be mailed to the Holder at the Holder's address as it appears on the Note Register and shall be sufficiently given if so mailed within the time prescribed.
- (d) Neither a failure to mail a notice or communication to a Holder, nor any defect in such a notice or communication as provided to a Holder, shall affect its sufficiency with respect to other Holders. If a notice or communication is mailed in the manner provided above, it is duly given, whether or not the addressee receives it.
- (e) Any notice or communication validly delivered to the Issuer under the provisions of these General Conditions shall also constitute valid notice to the Guarantor.
- (f) Notwithstanding anything else in this General Condition 30, for so long as all the Notes of a Series are represented by one or more Global Registered Notes and the Global Registered Note(s) are (i) held by a Common Safekeeper (in the case of Global Registered Notes issued under the NSS) or a Common Depositary (in the case of Global Registered Notes issued under the CSS), in each case for and on behalf of Euroclear and/or Clearstream, Luxembourg, or (ii) held by a custodian on behalf of DTC, notices to Holders may be given by delivery of the relevant notice to Euroclear and/or Clearstream, Luxembourg and/or any other relevant Clearing System and, in each case, the delivery of any such notice to the relevant Clearing System shall be deemed to have been validly given to the Noteholders in accordance with this General Condition 30 as of the date on which the notice was delivered to the relevant Clearing System.

31. GOVERNING LAW

Each Trust Deed, the Notes of each Series and the Agency Agreement are governed by and shall be construed in accordance with English law.

32. SUBMISSION TO JURISDICTION

- (a) The courts of England have exclusive jurisdiction to settle any dispute arising out of or in connection with the Conditions or the Notes of each Series and all non-contractual obligations arising out of or in connection with them, including any dispute regarding the existence, validity or termination of the Conditions or the Notes of any Series (a "Dispute").
- (b) The parties agree that the courts of England are the most appropriate and convenient courts to settle Disputes between them and accordingly they will not argue to the contrary.

33. THIRD-PARTY RIGHTS

No person shall have any right to enforce any term or condition of the Notes of any Series or any Trust Deed under the Contracts (Rights of Third Parties) Act 1999.

TERMS AND CONDITIONS OF THE NOTES – DEFINITIONS

1. GENERAL DEFINITIONS

The following capitalised terms used in a Transaction Document or in the Conditions in respect of a Series of Notes shall have the meanings set out below, except where the context otherwise requires or as may be modified and/or supplemented by the Final Terms or Supplemental Trust Deed in respect of such Notes:

"Acceleration" has the meaning given to that term in General Condition 17(c).

"Additional Business Centre" means the place(s) specified as such in the relevant Final Terms.

"Additional Collateral" means in respect of any Series of Notes, any collateral granted to the Eligible Pledgee Representative pursuant to an Additional Security Agreement in accordance with the terms prescribed therein, and where such collateral is specified in the relevant Final Terms relating to such Series of Notes.

"Additional Financial Centre" means the place(s) specified as such in the relevant Final Terms.

"Additional Security Agreement" means the GSI Derivatives Security Agreement and any other such security agreement (including for the avoidance of doubt, any Supplemental Trust Deed) between the Issuer and an Eligible Pledgee Representative, as nominated therein, in respect of the grant of security over Eligible Derivatives Agreements or other assets of the Issuer not otherwise specified therein.

"Adjusted Scheduled Maturity Date" means the Scheduled Maturity Date, or if such date is not a Business Day, such date after adjustments, if applicable, in accordance with the Business Day Convention.

"Adjustment Date" means, in respect of an Original Primary Rate Event, the later of:

- (a) the first date on which the Agent Bank had identified a Replacement Primary Rate and determined an Adjustment Spread, as applicable; and
- (b) the first to occur of: (i) the first date on which the Original Primary Rate is no longer available following an Original Primary Rate Cessation, or (ii) the Administrator/Benchmark Event Date, as relevant in relation to such Original Primary Rate Event.

"Adjustment Spread" means, in respect of a Replacement Primary Rate, the adjustment, if any, to such Replacement Primary Rate that the Agent Bank determines, acting in good faith and in a commercially reasonable manner, is required in order to reduce or eliminate, to the extent reasonably practicable, any transfer of economic value from the Issuer to the holders (or vice versa) as a result of the replacement of the Original Primary Rate with such Replacement Primary Rate. Any such adjustment may take account of, without limitation, any transfer of economic value as a result of any difference in the term structure or tenor of the Replacement Primary Rate by comparison to the Original Primary Rate. The Adjustment Spread may be positive, negative or zero, or determined pursuant to a formula or methodology. If a spread or formula or methodology for calculating a spread has been formally designated, nominated or recommended by any relevant nominating body in relation to the replacement of the Original Primary Rate with such Replacement Primary Rate, that spread shall apply as, or as the case may be, that formula or methodology shall be used to determine, the Adjustment Spread, and such spread, formula or methodology shall be adjusted as necessary to reflect the fact that the spread, formula or methodology is used in the context of the Notes. If the Agent Bank is required to determine the Adjustment Spread, it shall consider the spread or formula or methodology for calculating a spread or payment (as applicable),

that is, in the determination of the Agent Bank, recognised or acknowledged as being the industry standard (or otherwise customarily widely adopted) for over-the-counter derivative transactions which reference such Original Primary Rate.

"Administrator/Benchmark Event" means the occurrence of a Non-Approval Event, a Rejection Event or a Suspension/Withdrawal Event, in each case being treated as having occurred on the Administrator/Benchmark Event Date.

"Administrator/Benchmark Event Date" means, in respect of an Original Primary Rate, the date determined by the Agent Bank to be:

- (a) in respect of a Non-Approval Event, the date on which the relevant authorisation, registration, recognition, endorsement, equivalence decision, approval, inclusion in any official register or similar regulatory or legal requirement is required under any applicable law or regulation for the use of such Original Primary Rate in respect of the Notes;
- (b) in respect of a Rejection Event, the date on which following the rejection or refusal of the relevant application for authorisation, registration, recognition, endorsement, an equivalence decision, approval or inclusion in any official register, either the Issuer or the Agent Bank is not, or will not be, permitted under any applicable law or regulation to use such Original Primary Rate or to perform its or their respective obligations under the Notes; and
- (c) in respect of a Suspension/Withdrawal Event, the date on which following (i) the suspension or withdrawal by the relevant competent authority or other relevant official body of the authorisation, registration, recognition, endorsement, equivalence decision or approval, or (ii) the date on which such Original Primary Rate or the administrator or sponsor of such Original Primary Rate is removed from the official register, as applicable, either the Issuer or the Agent Bank is not, or will not be, permitted under any applicable law or regulation to use such Original Primary Rate or to perform its or their respective obligations under the Notes.

"Agency Agreement" means the agency agreement dated 23 September 2016, as amended and restated on or around the date of the Base Prospectus and from time to time, between the Issuer, the Agent Bank, the Calculation Agent, the Principal Paying Agent, the Collateral Administrator, the Trustee and the Registrar.

"Agents" means the Paying Agents, the Agent Bank, the Calculation Agent, the Collateral Administrator and the Registrar and **"Agent"** means any one of them.

"Agent Bank" means Goldman Sachs International in its capacity as agent bank in accordance with the terms of the Agency Agreement, or such other entity as specified in the relevant Final Terms for that Series of Notes, or any successor agent banks thereto appointed from time to time in accordance with Clause 20 (*Changes in Agents*) of the Agency Agreement.

"Affiliate" means, with respect to a Person, (a) any other Person who, directly or indirectly, is in control of, or controlled by, or is under common control with, such Person or (b) any other Person who is a director, Officer or employee of (i) such Person, (ii) any subsidiary or parent company of such Person or (iii) any Person described in clause (a) above, and **"Affiliated"**, in respect of two or more Persons, means each of those Persons is an Affiliate of each of the others. For the purposes of this definition, "control of" a Person shall mean the power, direct or indirect, (A) to vote more than 50% of the securities having ordinary voting power for the election of directors of such Persons, or (B) to direct the management and policies of such Person whether by contract or otherwise.

"Affiliate Note" means a Note of any Series for which the Holder is an Affiliate of the Issuer.

"Alternative Post-Nominated Primary Rate" means, in respect of an Original Primary Rate, any index, benchmark or other price source which is formally designated, nominated or recommended by:

- (a) any relevant nominating body; or
- (b) the administrator or sponsor of the Original Primary Rate, provided that such index, benchmark or other price source is substantially the same as the Original Primary Rate, in each case, to replace such Original Primary Rate.

If a replacement index, benchmark or other price source is designated, nominated or recommended under both paragraphs (a) and (b) above, then the replacement index, benchmark or other price source designated, nominated or recommended under paragraph (a) shall be the "Alternative Post-Nominated Primary Rate".

"Applicable Foreign Currency Account" means, with respect to a Non-USD Series, the Foreign Currency Account denominated in the same currency as such Series.

"Bail-in Legislation" means in relation to a member state of the European Economic Area which has implemented, or which at any time implements, the BRRD, the relevant implementing law, regulation, rule or requirement as described in the EU Bail-in Legislation Schedule from time to time.

"Bail-in Powers" means any Write-down and Conversion Powers as defined in the EU Bail-in Legislation Schedule, in relation to the relevant Bail-in Legislation.

"Bank" means, with respect to any Bank Account, the depository institution maintaining such Bank Account.

"Bank Account" means a deposit account of the Issuer with a Bank which account is denominated in a single currency and governed by a Currency Account Agreement.

"Bank Loan" has the meaning given to it in the relevant Eligible Repurchase Agreement or Eligible Loan Document, as applicable.

"Base Prospectus" means the base prospectus of the Issuer in respect of the Programme dated on or about 29 September 2025, which has been approved by the Central Bank of Ireland as competent authority under the EU Prospectus Regulation in connection with the Programme and its listing on the regulated market of the Irish Stock Exchange, trading as Euronext Dublin.

"Basic Terms Modification" has the meaning given to it in Schedule 13 (*Provisions for Meetings of Holders of the Notes*) to the Principal Trust Deed.

"Benchmark Replacement" means the Interpolated Benchmark; provided that if the Calculation Agent cannot determine the Interpolated Benchmark as of the Benchmark Replacement Date, then "Benchmark Replacement" means the first alternative set forth in the order below that can be determined by the Agent Bank as of the Benchmark Replacement Date:

- (a) the sum of: (i) Term SOFR and (ii) the Benchmark Replacement Adjustment;
- (b) the sum of: (i) Compounded SOFR and (ii) the Benchmark Replacement Adjustment;
- (c) the sum of: (i) the alternate rate of interest that has been selected or recommended by the Relevant Governmental Body as the replacement for the then-current Reference Rate for the applicable Corresponding Tenor and (ii) the Benchmark Replacement Adjustment;

- (d) the sum of: (i) the ISDA Fallback Rate and (ii) the Benchmark Replacement Adjustment; or
- (e) provided that if (i) the Benchmark Replacement cannot be determined in accordance with clause (c) or (d) above as of the Benchmark Replacement Date or (ii) the Calculation Agent shall have determined that the ISDA Fallback Rate determined in accordance with clause (d) above is not an industry-accepted rate of interest as a replacement for the then-current Reference Rate for U.S. dollar denominated floating rate securities at such time, then the Benchmark Replacement shall be the sum of: (A) the alternate rate of interest that has been selected by the Agent Bank as the replacement for the then-current Reference Rate for the applicable Corresponding Tenor giving due consideration to any industry accepted rate of interest as a replacement for the then-current Reference Rate for U.S. dollar denominated floating rate fixed income securities at such time and (B) the Benchmark Replacement Adjustment,

"Benchmark Replacement Adjustment" means the first alternative set forth in the order below that can be determined by the Agent Bank as of the Benchmark Replacement Date:

- (a) the spread adjustment, or method for calculating or determining such spread adjustment, (which may be a positive or negative value or zero) that has been selected or recommended by the Relevant Governmental Body for the applicable Unadjusted Benchmark Replacement;
- (b) if the applicable Unadjusted Benchmark Replacement is equivalent to the ISDA Fallback Rate, then the ISDA Fallback Adjustment; or
- (c) the spread adjustment (which may be a positive or negative value or zero) that has been selected by the Agent Bank giving due consideration to any industry-accepted spread adjustment, or method for calculating or determining such spread adjustment, for the replacement of the then-current Reference Rate with the applicable Unadjusted Benchmark Replacement for U.S. dollar-denominated floating rate fixed income securities at such time.

"Benchmark Replacement Conforming Changes" means, with respect to any Benchmark Replacement, any technical, administrative or operational changes (including changes to the definition of "Interest Period", "Interest Determination Date" or other applicable periods or dates, as the case may be, timing and frequency of determining rates, and making payments of interest, rounding of amounts or tenors and other administrative matters) that the Agent Bank decides may be appropriate to reflect the adoption of such Benchmark Replacement in a manner substantially consistent with market practice (or, if the Agent Bank decides that adoption of any portion of such market practice is not administratively feasible or if the Agent Bank determines that no market practice for use of the Benchmark Replacement exists, in such other manner as the Agent Bank determines is reasonably necessary).

"Benchmark Replacement Date" means the earliest to occur of the following events with respect to the then-current Reference Rate:

- (a) in the case of clause (a) or (b) of the definition of "Benchmark Transition Event", the later of (i) the date of the public statement or publication of information referenced therein and (ii) the date on which the administrator of the Reference Rate permanently or indefinitely ceases to provide the Reference Rate; or
- (b) in the case of clause (c) of the definition of "Benchmark Transition Event", the later of
 - (i) the date of the public statement or publication of information referenced therein and

- (ii) the date on which the Reference Rate ceases to be representative by reference to the most recent public statement or publication of information referenced therein or, if earlier, the date the Reference Rate is no longer provided.

For the avoidance of doubt, if the event giving rise to the Benchmark Replacement Date occurs on the same day as, but earlier than, the Reference Time in respect of any determination, the Benchmark Replacement Date will be deemed to have occurred prior to the Reference Time for such determination.

"Benchmark Transition Event" means the occurrence of one or more of the following events with respect to the then-current Reference Rate:

- (a) a public statement or publication of information by or on behalf of the administrator of the Reference Rate announcing that such administrator has ceased or will cease to provide the Reference Rate, permanently or indefinitely, provided that, at the time of such statement or publication, there is no successor administrator that will continue to provide the Reference Rate;
- (b) a public statement or publication of information by the regulatory supervisor for the administrator of the Reference Rate, the central bank for the currency of the Reference Rate, an insolvency official with jurisdiction over the administrator for the Reference Rate, a resolution authority with jurisdiction over the administrator for the Reference Rate or a court or an entity with similar insolvency or resolution authority over the administrator for the Reference Rate, which states that the administrator of the Reference Rate has ceased or will cease to provide the Reference Rate permanently or indefinitely, provided that, at the time of such statement or publication, there is no successor administrator that will continue to provide the Reference Rate; or
- (c) a public statement or publication of information by the regulatory supervisor for the administrator of the Reference Rate announcing that the Reference Rate is no longer representative, or as of a specified future date will no longer be capable of being representative, of any relevant underlying market(s) or economic reality that such Reference Rate is intended to measure.

"Borrower" means, with respect to any Eligible Loan, the Eligible GS Entity that is the borrower of such Eligible Loan.

"Broker" means in respect of China Connect Securities, Pershing LLC or any other replacement broker acceptable to the Custodian and Issuer and appointed by Issuer on an agency basis.

"Brokerage Account" means, with respect to any Series, the brokerage account established with an Eligible Custodian pursuant to a Brokerage Account Agreement as specified in Clause 20.3 (*Brokerage Account*) of the Principal Trust Deed.

"Brokerage Account Agreement" means, with respect to any Series, the agreement between the Issuer and the relevant Eligible Custodian establishing and governing a Brokerage Account and requiring such Eligible Custodian to identify the unique Series to which any transfer out of the Brokerage Account relates.

"BRRD" means Directive 2014/59/EU establishing a framework for the recovery and resolution of credit institutions and investment firms.

"BRRD Liability" means a liability in respect of which the relevant Write Down and Conversion Powers in the applicable Bail-in Legislation may be exercised.

"Business Day" means (unless otherwise defined in the Payout Conditions):

- (a) in relation to any sum payable in euro, a T2 Settlement Day and a day (other than a Saturday or Sunday) on which commercial banks and foreign exchange markets settle payments generally in each (if any) Additional Business Centre;
- (b) in relation to any sum payable in a currency other than euro, a day (other than a Saturday or Sunday) on which commercial banks and foreign exchange markets settle payments generally in the Principal Financial Centre of the relevant currency and in each (if any) Additional Business Centre, provided that if the Additional Business Centre is specified in the relevant Final Terms to be or to include T2 System, then a Business Day shall also be a T2 Settlement Day;
- (c) in the case of Notes held or to be held in Euroclear and/or Clearstream, Luxembourg, a day on which Euroclear and/or Clearstream, Luxembourg (as the case may be) is open for business.

"Business Day Convention" means, in relation to any relevant date referred to in the Conditions which is specified to be adjusted in accordance with a Business Day Convention, the convention for adjusting such date if it would otherwise fall on a day that is not a Business Day, and if the Business Day Convention specified in the relevant Final Terms is:

- (a) "Following Business Day Convention", the relevant date shall be postponed to the first following day that is a Business Day;
- (b) "Modified Following Business Day Convention", the relevant date shall be postponed to the first following day that is a Business Day unless that day falls in the next calendar month in which case that date will be the first preceding day that is a Business Day;
- (c) "Preceding Business Day Convention", the relevant date will be the first preceding day that is a Business Day; and
- (d) "No Adjustment", the relevant date shall not be adjusted in accordance with any Business Day Convention.

"Cash" means a cash amount denominated in USD or, if different, the relevant Note Currency for a Series of Notes.

"Change in Law (Illegality)" means, in respect of a Series of Notes, an event that shall have occurred upon:

- (a) the Issuer becoming aware of (i) the adoption of, or any change in, any relevant law, rule, regulation, judgment, order, sanction, or directive of any governmental, administrative, legislative or judicial authority or power (including any tax law) ("**applicable law**"), or (ii) the promulgation of, or any change in, the formal or informal interpretation of any applicable law by a court, tribunal, governmental, administrative, legislative, regulatory or judicial authority or power with competent jurisdiction of any applicable law or regulation (including any tax law); and
- (b) the Issuer determining, in its discretion, acting in good faith and in a commercially reasonable manner, that as a result of the event in (a) above:
 - (i) its performance under the Notes or the Guarantor's performance under the Guaranty in whole or in part or its performance or that of any of its affiliates under any related Hedge Positions (whether with respect to the Underlying Asset(s) or any constituent thereof); or

- (ii) the performance of any of its affiliates under the Notes had such affiliate been an issuer of the Notes or under any related Hedge Positions (whether with respect to the Underlying Asset(s) or any constituent thereof) had such affiliate been a party to any such hedging arrangement,

has or will become unlawful or impractical in whole or in part or there is a substantial likelihood of the same in the immediate future.

"Change in Law (Increased Cost)" means, in respect of a Series of Notes, an event that shall occur upon a determination by the Calculation Agent that, due to (a) the adoption of or any change in any applicable law or regulation (including, without limitation, any tax law) or (b) the promulgation of or any change in the interpretation by any court, tribunal or regulatory authority with competent jurisdiction of any applicable law or regulation (including any action taken by a taxing authority), in each case on or after the Issue Date for such Series, the Issuer and/or any of its affiliates will incur a materially increased cost in performing its obligations under the Notes of such Series (including, without limitation, due to any increase in tax liability, decrease in tax benefit, or other adverse effect on its tax position).

"China Connect" means the securities trading and clearing links programme developed by The Stock Exchange of Hong Kong Limited, the Shanghai Stock Exchange, the Hong Kong Securities Clearing Company Limited and China Securities Depository and Clearing Corporation Limited for the establishment of mutual market access between the Stock Exchange of Hong Kong Limited and Shanghai Stock exchange and/or the securities trading and clearing links programme developed by The Stock Exchange of Hong Kong Limited, the Shenzhen Stock Exchange, the Hong Kong Securities Clearing Company Limited and China Securities Depository and Clearing Corporation Limited for the establishment of mutual market access between The Stock Exchange of Hong Kong Limited and Shenzhen Stock Exchange (as the case may be).

"China Connect Market" means the Shanghai Stock Exchange and/or the Shenzhen Stock Exchange (as the case may be).

"China Connect Secured Notes" means the Notes of a Series for which the Collateral may comprise China Connect Securities.

"China Connect Securities" means any securities listed and traded on a China Connect Market which may be traded by Hong Kong and international investors under China Connect.

"Clearing System Business Day" means, in respect of a Clearing System, each day on which the relevant Clearing System is open for business.

"Clearing Systems" means Euroclear, Clearstream and/or DTC.

"Clearstream" means Clearstream Banking, société anonyme, or the successor to its securities clearance and settlement operations.

"Collateral" has the meaning specified in Condition 5(a) (*Security*).

"Collateral Administrator" means The Bank of New York Mellon, acting through its London Branch.

"Collateral Asset" means (a) with respect to any Eligible Repurchase Agreement, any Eligible Asset Transferred by the Repo Counterparty thereunder, (b) with respect to any Eligible Loan, any asset Transferred by the Borrower thereunder, (c) any Eligible Securities, (d) any Eligible Derivatives Agreements, or (e) any other underlying asset constituting Additional Collateral in respect of any Series.

"Collateral Business Day" means, with respect to any Series of Notes for which the Collateral includes Eligible Securities, and unless specified otherwise in the applicable Final Terms, each Business Day on which the Eligible Custodian is open for business in connection with the GSI Securities Agreement.

"Collateral Value" means, with respect to any Series of Notes and as of any time of determination, the sum of (a) the aggregate Margin Value of each Collateral Asset as of such time of determination, as determined by (i) the relevant Repo Counterparty or Borrower pursuant to the Eligible Repurchase Agreement or Eligible Loan Document, under which such Collateral Asset was purchased or pledged, as applicable, and as reported by the Repo Counterparty or the Borrower to the Issuer, (ii) the relevant Eligible Custodian as reported to the Issuer (or as otherwise required) pursuant to the relevant Eligible Custody Agreement, or (iii) the Issuer (or as otherwise required) pursuant to the relevant Additional Security Agreement; and (b) the aggregate market value of each Eligible Investment held as Collateral for such Series as of such time of determination, as determined by (i) the Bank, if such Eligible Investment is deposited in a Specified Currency Account; (ii) the Eligible Custodian if such Eligible Investment is deposited in an Eligible Custody Account; or (iii) the Trustee, if such Eligible Investment is deposited in a Trustee Custody Account.

"Collateralized Swap Agreement" means a Swap Agreement under which the Swap Counterparty is required to deliver collateral to the Issuer to secure the exposure of the Swap Counterparty to the Issuer thereunder. Any Swap Agreement entered into by the Issuer may be a Collateralized Swap Agreement if so determined by the Issuer in its sole discretion.

"Common Depositary" means, with respect to Notes issued under CSS, the entity appointed as common depositary for Euroclear and Clearstream.

"Common Safekeeper" means, with respect to NSS Notes, the entity appointed as common safekeeper by Euroclear and Clearstream.

"Common Service Provider" means the common service provider appointed by the Clearing Systems to service the NSS Notes of the issue outstanding amount on issuance for such Notes on or prior to the applicable closing date.

"Compounded Index" means each of the SOFR Compounded Index, the SONIA Compounded Index, or any other rate which the Calculation Agent determines to be a Compounded Index.

"Compounded RFR" means each of the Compounded Daily SOFR, Compounded Daily SONIA, Compounded Daily TONA, Compounded Daily €STR, or any other rate which the Calculation Agent determines to be a Compounded RFR.

"Compounded SOFR" means the compounded average of SOFRs for the applicable Corresponding Tenor, with the rate, or methodology for this rate, and conventions for this rate (which will be compounded in arrears with an observation, lookback and/or suspension period as a mechanism to determine the interest payable prior to the end of each interest period) being established by the Agent Bank in accordance with:

- (a) the rate, or methodology for this rate, and conventions for this rate selected or recommended by the Relevant Governmental Body for determining Compounded SOFR; provided that:
- (b) if, and to the extent that, the Agent Bank determines that Compounded SOFR cannot be determined in accordance with clause (a) above, then the rate, or methodology for this rate, and conventions for this rate that have been selected by the Agent Bank giving due consideration to any industry-accepted market practice for U.S. dollar denominated floating rate fixed income securities at such time.

For the avoidance of doubt, the calculation of Compounded SOFR shall exclude the Benchmark Replacement Adjustment and the applicable margin of basis points.

"Conditions" has the meaning given to that term in General Condition 1.1(a) (*Terms and Conditions*).

"Corporate Trust Office" means the principal office of the Trustee in London at which at any time its corporate trust business shall be administered, which office at the date hereof is located at 160 Queen Victoria Street, London, EC4V 4LA, Attention: Trustee Administration Manager, or such other address as the Trustee may designate from time to time by notice to the Holders and the Issuer.

"Corresponding Tenor" with respect to a Benchmark Replacement means a tenor (including overnight) having approximately the same length (disregarding business day adjustment) as the applicable tenor for the then-current Reference Rate.

"CSS" means the Classic Safekeeping Structure.

"CSS Notes" means the Global Registered Notes issued under the CSS.

"Currency Account Agreement" means, with respect to any Specified Currency Account, the agreement between the Issuer and the applicable Bank providing for the establishment and maintenance of such account and requiring the Issuer to identify the unique Series to which any transfer out of the Specified Currency Account relates.

"Currency Swap Agreement" means, with respect to any Series of Notes or Additional Notes of a Series not denominated in USD, any Swap Agreement providing for one or more cross-currency swap transactions.

"Custodian" means The Bank of New York Mellon, acting through its London Branch.

"Custodian Business Day" means a day (a) which is a Business Day and (b) on which the Custodian is open for business in connection with the TACA.

"Day Count Fraction" means, in respect of an equation that includes a specified period of time (the **"Calculation Period"**), the fractional value resulting from applying the calculation from the below list that corresponds to the specified Day Count Fraction to such Calculation Period, as follows:

- (a) if "Actual/Actual (ICMA)" is so specified, the result of the following:
 - (i) where the Calculation Period is equal to or shorter than the Regular Period during which it falls, the actual number of days in the Calculation Period divided by the product of (A) the actual number of days in such Regular Period and (B) the number of Regular Periods in any year; or
 - (ii) where the Calculation Period is longer than one Regular Period, the sum of:
 - (A) the actual number of days in such Calculation Period falling in the Regular Period in which it begins divided by the product of (I) the actual number of days in such Regular Period and (II) the number of Regular Periods in any year; and
 - (B) the actual number of days in such Calculation Period falling in the next Regular Period divided by the product of (I) the actual number of days in such Regular Period and (II) the number of Regular Periods in any year;

- (b) if "Actual/365" or "Actual/Actual (ISDA)" is so specified, the result of dividing the actual number of days in the Calculation Period by 365 (or, if any portion of the Calculation Period falls in a leap year, the sum of (i) the actual number of days in that portion of the Calculation Period falling in a leap year divided by 366 and (ii) the actual number of days in that portion of the Calculation Period falling in a non-leap year divided by 365);
- (c) if "Actual/365 (Fixed)" is so specified, the result of dividing the actual number of days in the Calculation Period by 365;
- (d) if "Actual/360" is so specified, the result of dividing the actual number of days in the Calculation Period by 360;
- (e) if "30/360" is so specified, means the result of dividing the number of days in the Calculation Period by 360, calculated on a formula basis as follows:

$$\frac{[360 \times (Y_2 - Y_1) + [30 \times (M_2 - M_1) + (D_2 - D_1)]]}{360}$$

where:

"Y1" is the year, expressed as a number, in which the first day of the Calculation Period falls;

"Y2" is the year, expressed as a number, in which the day immediately following the last day of the Calculation Period falls;

"M1" is the calendar month, expressed as a number, in which the first day of the Calculation Period falls;

"M2" is the calendar month, expressed as a number, in which the day immediately following the last day of the Calculation Period falls;

"D1" is the first calendar day, expressed as a number, of the Calculation Period, unless such number would be 31, in which case D1 will be 30; and

"D2" is the calendar day, expressed as a number, immediately following the last day of the Calculation Period, unless such number would be 31 and D1 is greater than 29, in which case D2 will be 30; and

- (f) if "30E/360" or "Eurobond Basis" is so specified, the result of dividing the number of days in the Calculation Period by 360, calculated on a formula basis as follows:

$$\frac{[360 \times (Y_2 - Y_1) + [30 \times (M_2 - M_1) + (D_2 - D_1)]]}{360}$$

where:

"Y1" is the year, expressed as a number, in which the first day of the Calculation Period falls;

"Y2" is the year, expressed as a number, in which the day immediately following the last day of the Calculation Period falls;

"M1" is the calendar month, expressed as a number, in which the first day of the Calculation Period falls;

"M2" is the calendar month, expressed as a number, in which the day immediately following the last day of the Calculation Period falls;

"D1" is the first calendar day, expressed as a number, of the Calculation Period, unless such number would be 31, in which case D1 will be 30; and

"D2" is the calendar day, expressed as a number, immediately following the last day of the Calculation Period, unless such number would be 31, in which case D2 will be 30.

"Default" means any event that is, or after notice or passage of time, or both, will be, an Event of Default.

"Defaulted Interest" has the meaning given to that term in General Condition 8.3 (*Interest*).

"Defaulted Interest Amount" means, in respect of an Overdue Interest Amount arising from a payment default by the Issuer, the amount (if any) in respect of default interest that accrues on such Overdue Interest Amount on a daily basis at the applicable daily Defaulted Interest Rate during the period from (and including) the default date to (but excluding) the Overdue Interest Payment Date.

"Defaulted Interest Margin" means the per annum rate specified as such in the relevant Final Terms.

"Defaulted Interest Payment Date" means, in respect of a Defaulted Interest Amount, the date on which payment of such amount is due, as specified in the relevant Final Terms.

"Defaulted Interest Rate" means, as of any day on which an Overdue Interest Amount for a Series of Notes remains outstanding, the per annum default rate at which interest will accrue on such Overdue Interest Amount on that day, being equal to the sum of (a) the Interest Rate that applies to such Notes on that day; and (b) the Defaulted Interest Margin.

"Deficiency" means, in respect of a Series of Notes as of any date of determination:

- (a) where such Series is a USD Series, the Collateral Value being less than the Required Collateral Amount for such Series;
- (b) where such Series is a Non-USD Series for which the Hedged Amount, if any, is less than the aggregate principal amount of the Outstanding Notes of such Series, either (i) the Collateral Value for such Series, determined solely with respect to the Eligible Contracts not denominated in the Note Currency, being less than the USD Equivalent of the Required Collateral Amount for such Series multiplied by the Hedged Percentage or (ii) the Note Currency equivalent of the Collateral Value for such Series, determined solely with respect to the Eligible Contracts denominated in the Note Currency (determined by application of the USD-to-Note Currency exchange rate set forth in the most recent confirmation delivered under such Eligible Contract and used to determine the Note Currency equivalent of such Collateral Value except with respect to Eligible Loans secured by Derivative Receivables, or Eligible Derivatives Agreements, where the Eligible Pledgee Representative (as defined in the relevant Eligible Loan Documents or Additional Security Agreement, as applicable) determines the USD-to-Note Currency Exchange Rate) being less than the Required Collateral Amount for such Series multiplied by the Unhedged Percentage, and for the purposes of clauses (i) and (ii) of this paragraph, the Eligible Contracts shall be deemed to be denominated in the currency payable by the obligor thereon to the Issuer, without regard to the currency in which any Collateral Assets are denominated; or

- (c) where such Series is a Non-USD Series for which the Hedged Amount is equal to the aggregate principal amount of the Outstanding Notes of such Series, the Collateral Value being less than the USD Equivalent of the Required Collateral Amount for such Series.

"Definitive Notes" means the Notes (being upon issuance, Affiliate Notes or otherwise) represented by a certificate in definitive registered form, without interest coupons, with applicable legends thereon, substantially in the form set out in Schedule 11 (*Form of Definitive Note*) to the Principal Trust Deed.

"Derivative Receivable" has the meaning given to it in the relevant Eligible Loan Document.

"Derivative Receivable Account" means, with respect to any Series of Notes, a derivatives receivable account opened and maintained with the relevant Eligible Custodian in respect of certain Eligible Derivatives Agreement, pursuant to the GSI Derivatives Security Agreement.

"DTC" means the Depository Trust Company.

"Early Redemption Amount" means, on any day in respect of a Note of any Series, an amount in the Note Currency for such Note, which shall be determined by the Calculation Agent as:

- (a) if "Par plus accrued" is specified in the relevant Final Terms for such Series, an amount equal to the Minimum Denomination of the Note (or, if less, such Note's outstanding principal amount) plus, if applicable, any interest accrued to (but excluding) the date of redemption of such Note; or
- (b) if "Fair Market Value" is specified in the relevant Final Terms for such Series, the amount determined in accordance with the definition of Fair Market Value.

"Electronic Means" shall mean the following communications methods: (a) non-secure methods of transmission or communication such as email and (b) secure electronic transmission containing applicable authorisation codes, passwords and/or authentication keys issued by any of the Agents and/or the Trustee (as applicable) or another method or system specified by the Agents and/or the Trustee (as applicable) as available for use in connection with its services under the Agency Agreement or the relevant Trust Deed, respectively.

"Eligible Asset" means, with respect to a Series of Notes, at any time of determination, unless otherwise specified in the applicable Final Terms, any of the following that, at the time it is Transferred under an Eligible Contract to the Issuer, is (a) with respect to any Eligible Repurchase Agreement securing such Series and any Repo Transactions thereunder, (i) a Mortgage Loan, (ii) a Participation Interest in a Bank Loan, (iii) a Purchased Security, (iv) any Repo Pledged Cash, (v) any Repo Sold Cash, (vi) any Supplemental Assets or (vii) any other asset identified as an "Eligible Asset" for an Eligible Repurchase Agreement in the applicable Final Terms; (b) an Eligible Loan; or (c) any other asset identified as an "Eligible Asset" specified in the applicable Final Terms.

"Eligible Contract" means, with respect to any Series, any Eligible Repurchase Agreements, Eligible Loans, Eligible Securities, Eligible Investments or Eligible Derivatives Agreements entered into with respect to, or specified as relating to such Series.

"Eligible Custodian" means either (a) The Bank of New York Mellon, whether acting through its London Branch or otherwise, or (b) any other bank or trust company, or registered broker dealer, including an Affiliate of GS Group, which in its ordinary course of business maintains accounts for and on behalf of others, and which in respect of any Series is nominated by and acts on behalf of the Issuer, in the capacity of custodian, securities intermediary, or any other similar capacity, pursuant to an Eligible Custody Agreement.

"Eligible Custody Account" means, with respect to any Series, any of a Brokerage Account, a Tripartite Custody Account, a Securities Account, a Derivative Receivable Account, and any such other account as established by an Eligible Custodian pursuant to an Eligible Custody Agreement in respect of any Series as specified in the relevant Final Terms.

"Eligible Custody Agreement" means, with respect to any Series, any of the Brokerage Account Agreement, the Tripartite Custody Agreement, the GSI Securities Agreement, the GSI Derivatives Security Agreement, or any other agreement between the Issuer and (*inter alia* or otherwise) an Eligible Custodian, pursuant to which an Eligible Custody Account is established in respect of Collateral Assets for such Series.

"Eligible Derivatives Agreements" has the meaning given to it in the GSI Derivatives Security Agreement.

"Eligible Financial Institution" means a financial institution organised under the laws of any jurisdiction in the United States of America, the United Kingdom or the European Union;

"Eligible GS Entity" means (a) any Non-U.S. Person (as defined for U.S. federal income tax purposes) that is, directly or indirectly, wholly owned and controlled by GS Group, and any successor in interest to such Non-U.S. Person that is itself a Non-U.S. Person; or (b) any Affiliate of GS Group specified as an "Eligible GS Entity" in the relevant Final Terms.

"Eligible Investment" means, with respect to a Series of Notes, unless otherwise specified in the applicable Final Terms, any asset denominated and payable in USD (or, if different, the Note Currency of such Series) that, at the time it is purchased by the Issuer, satisfies the requirements of one or more of the following categories and, if issued by an Affiliate of the Issuer, represents an obligation of an Eligible GS Entity:

- (a) Cash;
- (b) U.S. Government Obligations and either (i) registered obligations the timely payment of principal of and interest on which is fully and expressly guaranteed by the United States of America or any agency or instrumentality of the United States of America the obligations of which are expressly backed by the full faith and credit of the United States of America or (ii) guaranteed under the Debt Guarantee Program component of the Federal Deposit Insurance Corporation's Temporary Liquidity Guarantee Program (for purposes of this paragraph, the "**Program**"), as such Program may be amended, supplemented or extended from time to time, provided that an obligation described in this clause (b) shall only remain an Eligible Investment during the period when such obligation is guaranteed under the Program;
- (c) Qualified Foreign Government Obligations;
- (d) demand and time deposits in, certificates of deposit of, bankers' acceptances payable within 183 days of issuance issued by, or federal funds sold by, any depository institution or trust company incorporated under the laws of the United States of America or any state thereof or a Qualified Foreign Country and subject to supervision and examination by, in the case of U.S. depository institutions or trust companies incorporated under the laws of the United States of America or any state thereof, federal and/or state banking authorities, and, in the case of depository institutions organized under the laws of a Qualified Foreign Country, the supervision of the central bank or such other regulatory authorities as relevant in the country where organized; provided that such depository institution has its home office in a Qualified Foreign Country, and so long as the commercial paper and/or the debt obligations of such depository institution or trust company (or, in the case of the principal depository institution in a holding company system, the commercial paper or debt obligations of such holding

company) at the time of such investment or contractual commitment providing for such investment have a credit rating of not less than "Aaa" by Moody's and "AAA" by S&P, in the case of long-term debt obligations, or "P-1" by Moody's and "A-1+" by S&P, in the case of commercial paper and short-term debt obligations; provided that in the case of commercial paper and short-term debt obligations with a maturity of longer than 91 days, the issuer thereof must also have at the time of such investment a long-term credit rating of not less than "Aaa" by Moody's and "AAA" by S&P;

- (e) repurchase obligations with respect to (i) any security described in clause (b) or (c) above or (ii) any other registered security issued or guaranteed by an agency or instrumentality of the United States of America or issued by a Qualified Foreign Country (in each case without regard to the stated maturity of such security), in either case entered into with a depository institution or trust company (acting as principal) described in clause (d) above or entered into with a corporation (acting as principal) whose long-term rating is not less than "Aaa" by Moody's and "AAA" by S&P or whose short-term credit rating is "P-1" by Moody's and "A-1+" by S&P at the time of such investment; provided that if such security has a maturity of longer than 91 days, the issuer thereof must also have at the time of such investment a long-term credit rating of not less than "Aaa" by Moody's and "AAA" by S&P;
- (f) commercial paper or other short-term obligations with a maturity of not more than 183 days from the date of issuance and having at the time of such investment a credit rating of "P-1" by Moody's and "A-1+" by S&P; provided that if such security has a maturity of longer than 91 days, the issuer thereof must also have at the time of such investment a long-term credit rating of not less than "Aaa" by Moody's and "AAA" by S&P other than any commercial paper or other obligations described in this clause (f) that is issued by the Note Guarantor; and
- (g) money market mutual funds having a rating in the highest investment category granted by S&P or Moody's, including, without limitation any mutual fund for which the Trustee or an Affiliate of the Trustee serves as investment manager, administrator, shareholder servicing agent, and/or custodian or subcustodian, notwithstanding the fact that (i) the Trustee or an Affiliate of the Trustee receives fees from such funds for services rendered, (ii) the Trustee collects fees for services rendered pursuant to the Trust Deed, which fees are separate from the fees received from such funds and (iii) services performed pursuant to the Trust Deed may at times duplicate those provided to such funds by the Trustee or an Affiliate of the Trustee;

provided that no amount earned by the Issuer with respect to such investment may be subject to withholding tax.

"Eligible Loan" means, with respect to a Series of Notes, any loan extended by the Issuer to an Eligible GS Entity in connection with such Series of Notes that (a) is secured by one of the following (i) Bank Loans, (ii) Derivative Receivables, (iii) Loan Pledged Cash, (iv) Supplemental Assets or (v) any other asset identified as an "Eligible Asset" for an Eligible Loan in the applicable Final Terms, (b) has a term to maturity no greater than the maturity of the Notes secured by such Eligible Loan and (c) does not provide for extension or transfer (except to another Eligible GS Entity) by the Borrower.

"Eligible Loan Document" means, with respect to any Eligible Loan, the documentation establishing the terms of the loan made thereunder to the Borrower.

"Eligible Pledged Cash" means any Repo Pledged Cash or any Loan Pledged Cash.

"Eligible Pledgee Representative" means any of The Bank of New York Mellon, whether acting through its London Branch or otherwise, or any other trust company specified in an Additional

Security Agreement as pledgee representative, secured counterparty or other similar capacity, and as nominated by the Issuer therein.

"Eligible Repurchase Agreement" means, with respect to a Series of Notes, any master repurchase agreement, and any related documents, entered into between the Issuer, as buyer, and an Eligible GS Entity (limited as provided below), as seller, in connection with such Series of Notes, and the related Repo Transactions thereunder providing for the Transfer to the Issuer of Eligible Assets of the type described in clause (i) of the definition of the term Eligible Asset; provided that such Eligible Repurchase Agreement (i) has a term to maturity no greater than the maturity of the Series of Notes secured by such Eligible Repurchase Agreement and (ii) does not provide for extension or transfer (except to any Eligible GS Entity) by the Borrower.

"Eligible Securities" means, in respect of a Series of Notes, all debt and equity securities and other instruments and intangible assets (including instruments representing the right to receive, purchase or subscribe to the foregoing or representing other rights or interests in the foregoing), as specified in the relevant Final Terms, that GSI and the Eligible Custodian have agreed may be delivered to the Eligible Custodian for deposit in the relevant Securities Account pursuant to the GSI Securities Agreement.

"Embedded Exchange Rate" means, with respect to any Non-USD Series for which the Hedged Amount is greater than zero, the USD equivalent of each unit of the Note Currency, as derived from the related Currency Swap Agreement entered into prior to the Issue Date, as specified in the Final Terms for such Series.

"EU Bail-in Legislation Schedule" means the document described as such, then in effect, and published by the Loan Market Association (or any successor person) from time to time at <http://www.lma.eu.com/pages.aspx?p=499>.

"EU Prospectus Regulation" means Regulation (EU) 2017/1129.

"EURIBOR Secured Notes" means any Series of Notes in respect of which the Reference Rate specified in the applicable Final Terms is "EURIBOR".

"Euroclear" means Euroclear Bank S.A./N.V., as operator of the Euroclear system. "Event of Default" has the meaning specified in General Condition 16 (*Events of Default*).

"Exchange Date" means a day specified in the notice requiring exchange falling not less than 30 days after that on which such notice is given, being a day on which banks are open for general business in the place in which the specified office of the Principal Paying Agent is located and, except in the case of exchange pursuant to (b) of the definition of Exchange Event, in the place in which the relevant Clearing System is located.

"Exchange Event" will occur if:

- (a) the Issuer has been notified that both Euroclear Bank S.A./N.V. and Clearstream Banking, société anonyme have been closed for business for a continuous period of 14 days (other than by reason of holiday, statutory or otherwise) or have announced an intention permanently to cease business or have in fact done so and no successor clearing system acceptable to the Trustee is then in existence; or
- (b) the Issuer has or will become subject to adverse tax consequences which would not be suffered were such Notes represented by a Definitive Note.

"Exempt Notes" means the Notes of a Series that will not be admitted to trading on a regulated market situated or operating within the EEA or offered to the public in an EEA state in circumstances that would require the publication of a prospectus under the EU Prospectus Regulation.

"Extendible Notes" means Notes of a Series that are Standard Notes and for which "Extension Option" is specified as applicable in the relevant Final Terms.

"Extension Option" means, in respect of a Series of Standard Notes, the option of the Issuer to elect to extend the Maturity Date of such Series pursuant to General Condition 12 (*Extension Option*).

"Extraordinary Resolution" has the meaning given to it in Schedule 13 (*Provisions for Meetings of Holders of the Notes*) to the Principal Trust Deed.

"Fair Market Value" means:

- (a) in the case of an Early Redemption Amount being payable due to the occurrence of an Event of Default or in the case of calculating the Required Collateral Amount with respect to the relevant Series in respect of any day, the amount determined by the Calculation Agent as the fair market value of a Note of such Series as of that day, by reference to such factors as the Calculation Agent considers to be appropriate including, without limitation (A) market prices or values for any Underlying Asset(s) and other relevant economic variables (such as interest rates and, if applicable, exchange rates) at the relevant time taking into account the bid or offer prices of any Underlying Asset(s) and such other relevant economic variables; (B) the remaining term of the Notes had they remained outstanding to their applicable Scheduled Maturity Date; (C) if applicable, accrued interest; and (D) internal pricing models of the Issuer and its Affiliates, and provided that, for such purpose:
 - (i) the Calculation Agent shall assume that the Issuer is a Qualified Financial Institution or, if the Calculation Agent determines that no Qualified Financial Institution exists, the Calculation Agent shall assume the Issuer is an Eligible Financial Institution which has, at that time, (I) outstanding debt obligations with a stated maturity of one year or less from the date of issue and (II) the highest rating assigned to such outstanding debt obligations by Standard & Poor's Ratings Group or Moody's Investor Service, Inc. or any successor to either entity, or if both entities no longer exist and neither has a successor, the highest rating assigned to such outstanding debt obligations by an entity selected by the Calculation Agent in its reasonable discretion; and
 - (ii) if the relevant Final Terms specify that "Adjusted for Issuer Expenses and Costs" is applicable, the Calculation Agent shall adjust such amount fully for any reasonable expenses and costs of the Issuer and/or its Affiliates, including those relating to the unwinding of any underlying and/or related hedging arrangement, as determined by the Calculation Agent; or
- (b) otherwise, on any day, an amount in the Note Currency, which shall be determined by the Calculation Agent as the fair market value of the Note on the second Business Day prior to the date of redemption, determined by reference to such factors as the Calculation Agent considers to be appropriate including, without limitation (a) market prices or values for any Underlying Asset(s) and other relevant economic variables (such as interest rates and, if applicable, exchange rates) at the relevant time, taking into account the bid or offer prices of any Underlying Asset(s) and such other relevant economic variables; (b) the remaining term of the Notes had they remained outstanding to the Scheduled Maturity Date; (c) if applicable, accrued interest; (d) internal pricing models of the Issuer and its affiliates; and (e) the hypothetical cost to the Issuer of re-establishing the funding provided by the Notes, and provided that, for such purpose, if the relevant Final Terms specifies "Adjusted for Issuer

Expenses and Costs" as applicable, the Calculation Agent shall adjust such amount fully for any reasonable expenses and costs of the Issuer and/or its affiliates, including, those relating to the unwinding of any underlying and/or related hedging arrangements, as determined by the Calculation Agent.

"Final Redemption Amount" means, in respect of each Note of a Series, the amount specified as such in the relevant Final Terms or determined in accordance with the Payout Conditions which are specified to be applicable in the relevant Final Terms.

"Fitch" means Fitch, Inc. and its successors-in-interest.

"Federal Reserve Bank of New York's Website" means the website of the Federal Reserve Bank of New York at <http://www.newyorkfed.org>, or any successor source. Information contained in the Federal Reserve Bank of New York's website is not incorporated by reference in, and should not be considered part of this Base Prospectus.

"Foreign Currency Account" means a Bank Account denominated in a Note Currency other than USD and established by the Issuer for use in relation to any Series of Notes or other debt obligation of the Issuer.

"FSMA" means the Financial Services and Markets Act 2000.

"Further Global Registered Note" means the Global Registered Note representing the aggregate principal amount of the issue of Further Notes.

"Further Notes" means any Notes of a Series originally issued after the Issue Date for such Series pursuant to Clause 3.3 (*Issue of Further Notes*) of the Principal Trust Deed.

"Global Note" means a Global Registered Note.

"Global Registered Note" means, with respect to (a) Regulation S Global Notes sold in offshore transactions in reliance on Regulation S to Non-U.S. Persons (for purposes of Regulation S) or (b) Rule 144A Global Notes sold within the U.S. to QIBs in reliance on the Private Placement Exemption, those issued initially in the form of one or more permanent global notes in definitive, fully registered form without interest coupons substantially in the form set out in Schedule 10 (*Form of Original/Further Global Registered Note*) to the Principal Trust Deed.

"GS Group" means The Goldman Sachs Group, Inc., a Delaware corporation, including any successor in interest thereto.

"GSI Derivatives Security Agreement" means the master security agreement entered into between GSI as pledgor, the Eligible Custodian nominated as securities intermediary therein, and the Eligible Pledgee Representative nominated as pledgee representative therein, in respect of the grant of security over GSI's interests in certain Eligible Derivatives Agreements, and any payments related thereto.

"GSI Securities Agreement" means (a) the global custody agreement dated 17 November 2008, and as amended from time to time, between GSI and The Bank of New York Mellon, acting through its London Branch (the **"Eligible Securities Custodian"**), together with the master triparty account control agreement entered into on or about 23 September 2016 between GSI, the Trustee and the Eligible Securities Custodian, as amended and restated from time to time (**"TACA"**), or (b) such other custody arrangements between GSI and an Eligible Custodian as specified in the relevant Final Terms for a given Series, in each case pursuant to which, with respect to any Series, the Eligible Securities subject to the Trust Deed for that Series and any payments related thereto will

be maintained in a segregated account for that Series by such Eligible Securities Custodian or Eligible Custodian, as applicable.

"Guarantor" means, with respect to the Guarantee, GS Group and any successor of GS Group that succeeds to its rights and obligations pursuant to the Guaranty.

"Guaranty" means the guaranty of the Issuer's obligations by the Guarantor dated 23 September 2016, issued in favour of the Trustee for the benefit of the Holders of all Notes and any Further Notes, to pay any and all interest, Redemption Amounts and other amounts payable on the Notes of each Series under their respective Trust Deeds, such guaranty being governed by the laws of the state of New York.

"Hedged Amount" means, with respect to any Non-USD Series and at any time of determination, the notional amount (expressed in the Note Currency) of any Currency Swap Agreement then in effect with respect to such Non-USD Series.

"Hedged Percentage" means, with respect to any Non-USD Series and at any time of determination, the Hedged Amount expressed as a percentage of the aggregate principal amount of the Outstanding Notes of such Series.

"Hedge Positions" means, in respect of a Series of Notes, any one or more securities positions, derivatives positions or other instruments or arrangements (howsoever described) purchased, sold, entered into or maintained by the Issuer, the Guarantor or any affiliate thereof, in order to hedge, or otherwise in connection with, such Notes.

"Holder" means, in the case of a Registered Note, the Person in whose name a Note is registered in the Note Register.

"Interest Amounts" means the aggregate amount of interest payable in respect of a Series.

"Interest Amount Day Count Fraction" means the Day Count Fraction specified as such in the relevant Final Terms.

"Interest Determination Date" means, with respect to an Interest Payment Date for a Series of Notes, the date as of which the Agent Bank or Calculation Agent, as applicable, will determine the Interest Amount payable on each Note to the Holder of such Note on such Interest Payment Date, as specified in the relevant Final Terms.

"Interest Payment Dates" means the dates specified in the applicable Final Terms for a Series of Notes.

"Interest Period" means each period from (and including) an Interest Period End Date (or the Interest Commencement Date) to (but excluding) the next following (or first) Interest Period End Date.

"Interest Period End Date" means the dates specified in the applicable Final Terms for a Series of Notes or, if no such dates are specified, the dates specified as Interest Payment Dates in the applicable Final Terms for a Series of Notes.

"Interest Rate" means the rate specified in the applicable Final Terms.

"Interpolated Benchmark" with respect to the Reference Rate, means the rate determined for the Corresponding Tenor by interpolating on a linear basis between: (a) the Reference Rate for the longest period (for which the Reference Rate is available) that is shorter than the Corresponding Tenor and (b) the Reference Rate for the shortest period (for which the Reference Rate is available) that is longer than the Corresponding Tenor.

"ISDA Fallback Adjustment" means the spread adjustment (which may be a positive or negative value or zero) that would apply for derivatives transactions referencing the 2006 ISDA Definitions, as determined upon the occurrence of an Index Cessation Event (as defined in the 2006 ISDA Definitions) with respect to the Reference Rate for the applicable tenor.

"ISDA Fallback Rate" means the rate that would apply for derivatives transactions referencing the 2006 ISDA Definitions, on or after the occurrence of an Index Cessation Effective Date (as defined in the 2006 ISDA Definitions) with respect to the Reference Rate for the applicable tenor, excluding the applicable ISDA Fallback Adjustment.

"Issue Date" means the date specified in the Final Terms.

"Issuer" means GSI, until a successor Person shall have become the Issuer pursuant to the applicable provisions of the Trust Deed, and thereafter such "Issuer" shall mean such successor Person.

"Issuer Covenants" means the covenants in Schedule 1 (*Issuer Covenants*) to the Principal Trust Deed.

"Issuer Order" means a written order of the Issuer signed manually by, or with a facsimile of a manual signature of, an Officer or by any of its officers designated by the Issuer to execute and deliver such order to the relevant party.

"Liability" means, in respect of any person, any loss, damage, cost, charge, award, claim, demand, expense, judgment, action, proceeding or other liability whatsoever including legal fees and any taxes and penalties incurred by that person, together with any VAT charged or chargeable in respect of any of the sums referred to in this definition.

"Loan Pledged Cash" means, with respect to any Eligible Loan, an interest in funds credited to the Pledged Cash Account and pledged by an Eligible GS Entity for the benefit of the Issuer as lender under such Eligible Loan.

"London Banking Day" means any day on which commercial banks are open for general business (including dealings in foreign exchange and foreign currency deposits) in London, England.

"Losses" means any reasonable costs, expenses, damages, liabilities, or claims including legal fees incurred.

"Margin Percentage" means, with respect to any Series of Notes and any Collateral Asset included in the Collateral or Additional Collateral for such Series, (a) if such Collateral Asset is not Eligible Pledged Cash or Repo Sold Cash, the percentage specified as such for such Collateral Asset in the Final Terms for such Series; and (b) if such Collateral Asset is Eligible Pledged Cash or Repo Sold Cash, 100%, unless otherwise specified in the relevant Final Terms.

"Margin Value" means, with respect to any Collateral Asset, (a) its market value (as determined under the applicable Eligible Repurchase Agreement, Eligible Loan Document, by the Issuer, or under the relevant Eligible Custody Agreement by the relevant Eligible Custodian, and/or pursuant to the Additional Security Agreement as applicable) as of the most recent date of determination thereof, divided by (b) the Margin Percentage for such Collateral Asset. Any Collateral Asset purchased by the Issuer with Swap Counterparty Cash Collateral or consisting of Supplemental Assets shall have a Margin Value of zero. Notwithstanding the foregoing, if the Final Terms for the relevant Series specifies a different method of determining Margin Value for any Collateral Asset or group thereof, such method shall prevail.

"Maturity Date" means, in respect of a Series of Notes, the date determined in accordance with the following (unless otherwise defined in the Payout Conditions):

- (a) If the relevant Final Terms specify:
 - (i) "Business Day Adjustment" to be applicable, the Maturity Date shall be the Adjusted Scheduled Maturity Date;
 - (ii) "Maturity Date Settlement Adjustment" to be applicable, the Maturity Date shall be the Scheduled Maturity Date or, if later, the later to occur of (i) the relevant Specified Day(s) (as specified in the relevant Final Terms) after the Scheduled Redemption Determination Date or the Redemption Determination Date (as specified in the relevant Final Terms), and (ii) the number of Business Days equal to the relevant Settlement Period after the Redemption Determination Date;
 - (iii) "Maturity Date Specified Adjustment" to be applicable, the Maturity Date shall be the later to occur of (i) the Adjusted Scheduled Maturity Date, and (ii) the relevant Specified Day(s) (as specified in the relevant Final Terms) following the Redemption Determination Date; and
 - (iv) "Maturity Date Determination Adjustment" to be applicable, the Maturity Date shall be the later of (i) the Adjusted Scheduled Maturity Date, and (ii) the second Business Day following the Redemption Determination Date,

in each case, as determined by the Calculation Agent.

- (b) If the relevant Final Terms specify "No Adjustment" to be applicable, the Maturity Date shall be the Scheduled Maturity Date.
- (c) Otherwise:
 - (i) in respect of Share Linked Notes where the relevant Final Terms specify "Maturity Date – Share Linked Condition 7 (Definitions)" to be applicable, the Maturity Date shall be determined in accordance with its definition in Share Linked Condition 7 (Definitions);
 - (ii) in respect of Index Linked Notes where the relevant Final Terms specify "Maturity Date – Index Linked Condition 7 (Definitions)" to be applicable, Maturity Date shall be determined in accordance with its definition in Index Linked Condition 7 (Definitions); or
 - (iii) otherwise, the Maturity Date shall be the Scheduled Maturity Date, unless the Redemption Determination Date is adjusted in accordance with the Conditions, in which case the Maturity Date shall instead be the day falling the number of Business Days equal to the relevant Settlement Period after the Redemption Determination Date.

"Meeting" has the meaning given to it in Schedule 13 (*Provisions for Meetings of Holders of the Notes*) to the Principal Trust Deed.

"Minimum Denomination" means unless otherwise provided in the Final Terms related to such Notes, the Notes of any Series will be issued and transferable in minimum denominations of USD 500,000 and integral multiples of USD 500,000 in excess thereof or otherwise in the approximate applicable Note Currency equivalent thereof (as determined by the Issuer) as set forth in the Final Terms.

"Moody's" means Moody's Investors Service, Inc. and its successors-in-interest.

"Mortgage Loan" has the meaning given to it in the relevant Eligible Repurchase Agreement.

"Non-Approval Event" means, in respect of an Original Primary Rate, the determination by the Agent Bank that one or more of the following events has occurred:

- (a) any authorisation, registration, recognition, endorsement, equivalence decision or approval in respect of such Original Primary Rate or the administrator or sponsor of such Original Primary Rate is not obtained;
- (b) such Original Primary Rate or the administrator or sponsor of such Original Primary Rate is not included in an official register; or
- (c) such Original Primary Rate or the administrator or sponsor of such Original Primary Rate does not fulfil any legal or regulatory requirement applicable to the Issuer or the Agent Bank or such Original Primary Rate, in each case, with the effect that either the Issuer or the Agent Bank is not, or will not be, permitted under any applicable law or regulation to use such Original Primary Rate to perform its or their respective obligations under the Notes, provided that a Non-Approval Event shall not occur if such Original Primary Rate or the administrator or sponsor of such Original Primary Rate is not included in an official register because its authorisation, registration, recognition, endorsement, equivalence decision or approval is suspended if, at the time of such suspension, the continued provision and use of such Original Primary Rate is permitted in respect of the Notes under the applicable law or regulation.

"Non-GS Agent" means each of the Agents other than the Agent Bank and the Calculation Agent.

"Non-Retained Series" has the meaning given to that term in General Condition 2(f) (*Retained Notes*).

"Non-USD Series" means a Series of Notes for which the "Note Currency" specified in the relevant Final Terms is a currency other than USD.

"Non-U.S. Person" means (a) a person who is not a United States Person as defined in Regulation S or (b) a person who is not a United States Person as defined for U.S. federal income tax purposes.

"Note Currency" means, with respect to any Series of Notes, the currency in which such Notes are denominated and payable as specified in the Final Terms for such Series.

"Note Currency Assets" means, with respect to any Non-USD Series, Eligible Assets or Eligible Investments denominated and payable in the applicable Note Currency, and determined, in the case of Eligible Assets, without regard to the currency in which the Collateral Assets are denominated and payable.

"Note Register" means the office maintained or caused to be maintained by the Issuer outside of the United Kingdom where any registered Notes may be presented for registration of transfer or for exchange, and for the service of notices and demands to or upon the Issuer in respect of the Notes and the Trust Deed.

"Notes" means any of the Issuer's notes issued, authenticated (and in the case of NSS Notes, effectuated by the Common Safekeeper) and delivered pursuant to the Trust Deed. For purposes of the Trust Deed, (i) all references to Notes shall be deemed to refer to Notes of a single Series, except as the context requires, (ii) all references to Notes of a Series shall be deemed to include any Further Notes of such Series, unless the context requires otherwise, and (iii) all references to

Notes to be issued or authenticated upon transfer, replacement or exchange shall be deemed to refer to Notes of the applicable Series.

"NSS" means the New Safekeeping Structure.

"NSS Notes" means Global Registered Notes issued under the NSS.

"Officer's Certificate" means, when used in connection with any action to be taken by the Issuer, a certificate signed by an Officer or another authorized signatory of the Issuer and delivered to the Trustee or other entity as might be required pursuant to the terms of the Conditions or the Transaction Documents.

"Opinion of Counsel" means a written opinion of counsel, who, unless otherwise indicated in the Trust Deed, may be an employee of or counsel for the Issuer or the Guarantor or any of their Affiliates, and who shall be reasonably acceptable to the Trustee.

"Optional Redemption (Put)" has the meaning given in General Condition 7(b) (*Redemption at the option of Noteholders*).

"Optional Redemption Amount" means, in respect of a Series of GMSLA Callable Notes, the amount or amounts payable for a Note of such Series upon their redemption pursuant to the exercise of the Issuer's call option in General Condition 10 (*Optional Redemption of Notes*), as specified in or calculated in accordance with the method specified in, the relevant Final Terms for such Series.

"Optional Redemption Amount (Call)" means, in respect of a Series of Callable Notes, the amount or amounts payable for a Note of such Series upon their redemption pursuant to the exercise of the Issuer's call option in General Condition 10 (*Optional Redemption of Notes*), as specified in or calculated in accordance with the method specified in, the relevant Final Terms for such Series.

"Optional Redemption Amount (Put)" means, in respect of a Series of Puttable Notes, the amount or amounts payable for a Note of such Series upon their redemption pursuant to the exercise of the Holders' put option in General Condition 7(b) (*Redemption at the option of Noteholders*), as specified in or calculated in accordance with the method specified in, the relevant Final Terms for such Series.

"Optional Redemption Notice (Put)" means, in respect of one or more Notes of a Series, a notice to be delivered by a Holder in relation to the exercise of the Optional Redemption (Put) in respect of such Notes, provided that in the case of any notice given to any relevant Clearing System, such notice may be delivered through such electronic instructions as permitted by the rules and procedures of the relevant Clearing System.

"Optional Redemption Date (Put)" means, in respect of a Series of Notes, the date or dates specified as such in the relevant Final Terms for such Notes.

"Optional Redemption Notice Period (Put)" means such number of Business Days before each Optional Redemption Date (Put) or such other period of time as is specified in the relevant Final Terms.

"Optional Redemption Receipt (Put)" means a receipt issued by a Paying Agent to a depositing Noteholder upon deposit of Definitive Registered Notes with such Paying Agent by any Noteholder wanting to exercise the Optional Redemption (Put) in respect of the Notes represented by such Definitive Registered Notes.

"Original Global Registered Note" means the Global Registered Note issued prior to the issuance of Further Notes pursuant to Clause 3.3 (*Issue of Further Notes*) of the Principal Trust Deed.

"Original Primary Rate" means, initially EURIBOR with respect to EURIBOR Secured Notes; provided, that if an Original Primary Rate Event and its related Adjustment Date have occurred with respect to EURIBOR, as the case may be, the "Original Primary Rate" means the applicable Replacement Primary Rate plus Adjustment Spread.

"Original Primary Rate Cessation" means, in respect of an Original Primary Rate, the determination by the Agent Bank that one or more of the following events has occurred:

- (a) a public statement or publication of information by or on behalf of the administrator of such Original Primary Rate announcing that it has ceased or will cease to provide such Original Primary Rate permanently or indefinitely, provided that, at the time of such public statement or publication, there is no successor administrator that will continue to provide such Original Primary Rate;
- (b) a public statement or publication of information by the supervisory authority of the administrator of such Original Primary Rate, the central bank for the currency of such Original Primary Rate, an insolvency official with jurisdiction over the administrator of such original primary rate, a resolution authority with jurisdiction over the administrator of such Original Primary Rate or a court or an entity with similar insolvency or resolution authority over the administrator of such Original Primary Rate announcing that the administrator has ceased or will cease to provide such Original Primary Rate permanently or indefinitely, provided that, at the time of such public statement or publication, there is no successor administrator that will continue to provide such Original Primary Rate; or
- (c) any event which otherwise constitutes an "index cessation event" in relation to which the priority fallback(s) specified (if any) fail to provide appropriate means of determining the rate of interest,

provided that, in each case, an original primary rate cessation shall only occur if the first day on which such Original Primary Rate is no longer available falls on or before the relevant Maturity Date.

"Original Primary Rate Event" means, in respect of EURIBOR Secured Notes, the determination by the Agent Bank that one or more of the following events has occurred:

- (a) an Original Primary Rate Cessation; or
- (b) an Administrator/Benchmark Event.

"Outstanding" means, in respect of a Series of Notes, all the Notes of such Series theretofore authenticated and delivered under the relevant Trust Deed (and in the case of NSS Notes, effectuated by the Common Safekeeper) as of the date of determination, except for:

- (a) the Notes of such Series that have been cancelled by the Trustee or delivered to the Trustee for cancellation;
- (b) the Notes of such Series, or any portion thereof, which are to be redeemed or purchased, and both of the following conditions are satisfied: (i) notice of such redemption or purchase has been duly given pursuant to the relevant Trust Deed or provision therefor has been made that is satisfactory to the Trustee, and (ii) money in the necessary amount for the redemption or purchase has been set aside or deposited, as applicable, for the Holders of such Notes as follows: (A) if the Issuer, the Note Guarantor or such Affiliate is acting as the Paying Agent

for such Notes, the money has been set aside and segregated in trust by the Issuer, Note Guarantor or Affiliate of the Issuer, as applicable, or (B) if none of the Issuer, Guarantor or Affiliate of the Issuer is a relevant Paying Agent, the money has been deposited in trust with the Trustee or a Paying Agent; and

- (c) the Notes of such Series in exchange for which or in lieu of which other Notes have been authenticated (and in the case of NSS Notes, effectuated by the Common Safekeeper) and delivered pursuant to the Trust Deed, other than any such Notes in respect of which there shall have been presented to the Trustee proof satisfactory to it that such Notes are held by a protected purchaser in whose hands such Notes are valid obligations of the Issuer.

Notwithstanding the above, solely for the purpose of in determining whether the Holders of Notes who have given a request, demand, authorization, direction, notice, consent or waiver under the relevant Trust Deed or the Conditions hold the requisite aggregate principal amount of the Outstanding Notes of that Series, any Notes of that Series owned by the Issuer, the Guarantor, any other obligor under the Notes or any Affiliate of the Issuer, the Guarantor or such other obligor ("**GS Holding Notes**"), in each case, shall be disregarded and deemed not to be Outstanding for this purpose, except that, in determining whether the Trustee shall be entitled to rely upon any such request, demand, authorization, direction, notice, consent or waiver, only Notes which a Trust Officer of the Trustee actually knows to be GS Holding Notes shall be so disregarded. Additionally, in respect of any GS Holding Notes which have been pledged or otherwise granted by way of security in good faith to a third party, the Trustee will regard such GS Holding Notes as Outstanding if the pledgee or beneficiary of the security establishes to the satisfaction of the Trustee that it has the right with respect to such GS Holding Notes to elect whether to give such a request, demand, authorization, direction, notice, consent or waiver and that it is not the Issuer, nor is it any other obligor under the Notes or any Affiliate of the Issuer or such other obligor.

"**Overdue Interest Amount**" has the meaning given to that term in General Condition 8.3(a) (*Defaulted Interest*).

"**Overdue Interest Due Date**" means, in respect of an Overdue Interest Amount arising from a payment default by the Issuer, the day that falls such number of Payment Business Days after the default date as is equal to the Overdue Interest Grace Period.

"**Overdue Interest Grace Period**" means the number of Payment Business Days specified as such in the relevant Final Terms.

"**Overdue Interest Payment Date**" has the meaning given to that term in General Condition 8.3(a) (*Defaulted Interest*).

"**Participation Interest**" has the meaning given to it in the relevant Eligible Repurchase Agreement relating to Bank Loans.

"**Paying Agent**" means the Principal Paying Agent or any additional paying agent as specified in the applicable Final Terms or successor paying agents thereto appointed from time to time in accordance with Clause 20 (*Changes in Agents*) of the Agency Agreement.

"**Payment Business Day**" means:

- (a) if the currency of payment is euro, any day which is:
 - (i) a day on which banks in the relevant place of presentation or surrender are open for presentation and payment of debt securities and for dealings in foreign currencies; and

- (ii) in the case of payment by transfer to an account, a T2 Settlement Day and a day on which dealings in foreign currencies may be carried on in each (if any) Additional Financial Centre; and
- (b) if the currency of payment is not euro, any day which is:
 - (i) a day on which banks in the relevant place of presentation or surrender are open for presentation and payment of debt securities and for dealings in foreign currencies; and
 - (ii) in the case of payment by transfer to an account, a day on which dealings in foreign currencies may be carried on in the Principal Financial Centre of the currency of payment and in each (if any) Additional Financial Centre.

"Person" means any individual, corporation, partnership, joint venture, association, joint stock company, trust, unincorporated organization, limited liability company or government or other entity.

"Placed Notes" has the meaning given to that term in General Condition 2(f) (*Retained Notes*).

"Pledged Cash Account" means, with respect to any Eligible Repurchase Agreement (other than in respect of Purchase Securities) or Eligible Loan Document (other than in respect of Derivative Receivables), (i) the controlled deposit account maintained by an Eligible GS Entity (A) at a depository institution or (B) with any other Eligible GS Entity that is a bank, trust company or broker-dealer, interests in which account are pledged for the pro rata benefit of counterparties or lenders (including the Issuer) of the Eligible GS Entity maintaining such account under master repurchase agreements, master notes, loans or other agreements or (ii) the Brokerage Account relating to the applicable Series, interests in which are pledged for the exclusive benefit of the Issuer with respect to such Series.

"Pledgor Counterparty" means the Swap Counterparty under any Collateralized Swap Agreement.

"Principal Financial Centre" means, in relation to any currency, the principal financial centre for that currency provided, however, that:

- (a) in relation to euro, it means the principal financial centre of such member state of the European Communities as is selected (in the case of a payment) by the payee or (in the case of a calculation) by the Agent Bank or Calculation Agent, as applicable;
- (b) in relation to Australian dollars, it means either Sydney or Melbourne and, in relation to New Zealand dollars, it means either Wellington or Auckland; in each case as is selected (in the case of a payment) by the payee or (in the case of a calculation) by the Agent Bank or Calculation Agent, as applicable; and
- (c) in relation to USD, it means New York City.

"Principal Paying Agent" means The Bank of New York Mellon, London Branch or any of its successors thereto appointed from time to time in accordance with Clause 19 (Changes in Agents) of the Agency Agreement.

"Principal Trust Deed" means the trust deed between the Issuer and the Trustee dated 23 September 2016, as amended and restated on or around the date of the Base Prospectus and from time to time, which constitutes the Notes.

"Private Placement Exemption" means the offer or sale of Notes exclusively to QIBs within the United States in reliance on an exemption from the registration requirements of the Securities Act for transactions not involving any public offering.

"Purchased Security" means any securities Transferred pursuant to a relevant Eligible Repurchase Agreement and whether subject of a Tripartite Custody Agreement or otherwise.

"Puttable Notes" has the meaning given to that term in Condition 7(b).

"QIBs" means qualified institutional buyers as defined in Rule 144A under the Securities Act.

"Qualified Financial Institution" means, for the purpose of determining the Early Redemption Amount at any time where "Fair Market Value" is specified as applicable in the relevant Final Terms, an Eligible Financial Institution, which at that time has outstanding debt obligations with a stated maturity of one year or less from the date of issue which are rated either:

- (a) A-1 or higher by Standard & Poor's Ratings Group or any successor, or any other comparable rating then used by that rating agency, or
- (b) P-1 or higher by Moody's Investors Service, Inc. or any successor, or any other comparable rating then used by that rating agency.

"Qualified Foreign Country" means Canada, France, Germany, Italy, Japan, the United Kingdom and, with respect to any Series of Notes, any other country specified in the applicable Final Terms.

"Qualified Foreign Government Obligations" means direct obligations of a Qualified Foreign Country (including any agency or instrumentality thereof) for the payment of which the full faith and credit of the Qualified Foreign Country is pledged and which are not callable or redeemable at the option of the issuer thereof.

"Rating" means the rating of each Series of Notes given by each of the Rating Agencies and **"Ratings"** means all of such Ratings.

"Rating Agencies" means Fitch, Moody's and S&P and **"Rating Agency"** means any of them.

"Record Date" means, in respect of a payment in respect of a Redemption Amount or interest for the Notes of a Series, the specified date, which occurs in advance of the relevant payment date, as of which the Issuer determines who is the Holder of each Note for the purpose of such payment, and who will therefore be entitled to receive payment on the relevant payment date. These dates will be (a) in the case of payments of interest, at the close of the Clearing System Business Day immediately prior to the applicable Interest Payment Date, and (b) in the case of payments of applicable Redemption Amounts, at the close of the Clearing System Business Day immediately prior to the Maturity Date or other payment date on which such Redemption Amount is to be paid.

"Redemption Amount" means a Final Redemption Amount, an Early Redemption Amount, an Optional Redemption Amount (Put), an Optional Redemption Amount (Call) or an Optional Redemption Amount, as applicable.

"Redemption Determination Date" means, in respect of a Series of Redemption Linked Notes, the date as of which the Calculation Agent determines the Final Redemption Amount for such Redemption Linked Notes, being specified in the relevant Final Terms as one of (a) the Latest Reference Date in respect of the Last Averaging Date, (b) the Last Averaging Date, (c) the Latest Reference Date in respect of the Final Pricing Date, (d) the Final Pricing Date, (e) the Latest Reference Date in respect of the Final Reference Date, (f) the Final Reference Date, (g) the Final Reference Date to fall latest in time or (h) such other date specified as such in the relevant Final Terms.

"Redemption Linked Notes" means a Series of Notes for which the redemption basis in the relevant Final Terms is specified as being "Underlying Linked".

"Reference Time" with respect to any determination of the Reference Rate means the time determined by the Agent Bank in accordance with the Benchmark Replacement Conforming Changes.

"Registered Note" means any Note that is in registered form.

"Regulation S" means Regulation S under the Securities Act (or any successor regulation).

"Regulation S Global Notes" shall have the meaning set forth in Clause 4.1(c) (Issue and exchange of Global Registered Notes) of the Principal Trust Deed.

"Regulation S Notes" means any Global Registered Note or Definitive Note offered outside the United States in reliance upon Regulation S and issued and delivered pursuant to Regulation S.

"Rejection Event" means, in respect of an Original Primary Rate, the determination by the Agent Bank that the relevant competent authority or other relevant official body has rejected or refused any application for authorisation, registration, recognition, endorsement, an equivalence decision, approval or inclusion in any official register in relation to such Original Primary Rate or the administrator or sponsor of such Original Primary Rate, with the effect that either the Issuer or the Agent Bank is not, or will not be, permitted under any applicable law or regulation to use such Original Primary Rate to perform its or their respective obligations under the Notes.

"Relevant Governmental Body" means the Federal Reserve Board and/or the Federal Reserve Bank of New York, or a committee officially endorsed or convened by the Federal Reserve Board and/or the Federal Reserve Bank of New York or any successor thereto.

"Relevant Resolution Authority" means the resolution authority with the ability to exercise any Bail-in Powers in relation to the Registrar.

"Relevant Rules" means the terms and conditions, the rules, regulations or other procedures governing the use of Clearstream, Luxembourg, Euroclear, DTC and/or such other relevant Clearing System, as may be amended, updated or replaced from time to time.

"Replacement Primary Rate" means, in respect of an Original Primary Rate, the Alternative Post-Nominated Primary Rate, provided that if more than one relevant nominating body formally designates, nominates or recommends an Alternative Postnominated Primary Rate, and those designations, nominations or recommendations are not the same, then the Agent Bank shall select the Alternative Post-Nominated Primary Rate in its discretion, acting in good faith and in a commercially reasonable manner. If the Agent Bank determines that (a) there is no Alternative Postnominated Primary Rate, or (b) the Alternative Post-Nominated Primary Rate is not a suitable replacement for the Original Primary Rate and/or the replacement of the Original Primary Rate with the Alternative Post-Nominated Primary Rate will not achieve a commercially reasonable result, the Replacement Primary Rate shall be such other rate, index, benchmark or other price source selected by the Agent Bank, in its discretion, acting in good faith and in a commercially reasonable manner. If the Agent Bank is required to select the Replacement Primary Rate as a result of there being no Alternative Post-Nominated Primary Rate, it may take into account the rate that is, in the determination of the Agent Bank, recognised or acknowledged as being the industry standard (or otherwise customarily widely adopted) replacement rate for over-the-counter derivative transactions which reference such Original Primary Rate.

"Repo Counterparty" means, with respect to any Eligible Repurchase Agreement, the Eligible GS Entity as seller thereunder.

"Repo Pledged Cash" means, with respect to any Eligible Repurchase Agreement, an interest in funds credited to the Pledged Cash Account and pledged by the applicable Eligible GS Entity for the benefit of the Issuer as buyer under such Repo Transaction.

"Repo Sold Cash" means, with respect to an Eligible Repurchase Agreement, cash that is allocated on the applicable confirmation and sold to the Issuer under such Eligible Repurchase Agreement related to the applicable Series.

"Repo Transaction" means any "Transaction" (as defined in the applicable Eligible Repurchase Agreement) between the Issuer and the applicable Repo Counterparty.

"Required Collateral Amount" means, in respect of a Series of Notes, the amount denominated in the Notes Currency that specifies the required aggregate market value of the Collateral for such Series on each Collateral Business Day, which could be specified as being (a) par, (b) par plus accrued interest, if any, (c) a specified percentage of par, (e) Fair Market Value, (d) the applicable Final Redemption Amount, or (e) any such other amount specified in, or determined in accordance with the method specified in, the relevant Final Terms.

"Requirement of Law" in respect of any person shall mean:

- (a) any law, treaty, rule, requirement or regulation;
- (b) a notice by or an order of any court having jurisdiction;
- (c) a mandatory requirement of any regulatory authority having jurisdiction; or
- (d) a determination of an arbitrator or Governmental Authority,

in each case applicable to or binding upon that person or to which that person is subject or with which it is customary for it to comply.

"Retained Notes" has the meaning given to that term in General Condition 2(f) (*Retained Notes*).

"Retained Series" has the meaning given to that term in General Condition 2(f) (*Retained Notes*).

"Rule 144A" means Rule 144A under the Securities Act.

"Rule 144A Global Notes" shall have the meaning set forth in Clause 4.1(c) (Issue and exchange of Global Registered Notes) of the Principal Trust Deed.

"Rule 144A Notes" means any Global Registered Note or Definitive Note offered in reliance upon the Private Placement Exemption and issued and delivered in accordance therewith.

"S&P" means Standard & Poor's Ratings Services, a division of The McGraw-Hill Companies, Inc., and its successors in interest.

"Sanctions" means sanctions enforced by the US Government (including the Office of Foreign Assets Control of the U.S. Department of the Treasury (OFAC)), the United Nations Security Council, the European Union or HM Treasury, and such sanctions will be "comprehensive" in relation to a target if that target is (or is domiciled in) a country or jurisdiction that is subject to broad sanctions that prohibit all commercial activity with that country or jurisdiction.

"Scheduled Maturity Date" means the date specified as such in the relevant Final Terms;

"Scheduled Redemption Determination Date", if applicable, means the date specified as such in the relevant Final Terms.

"Securities Account" means, with respect to any Series of Notes, a securities account opened and maintained with the relevant Eligible Custodian in respect of certain Eligible Securities, pursuant to the GSI Securities Agreement.

"Securities Act" means the Securities Act of 1933, as amended.

"Security Documents", in respect of a Series of Notes, has the meaning given to that term in the Supplemental Trust Deed for such Series.

"Series" has the meaning specified in Clause 3.2 (Issue of Notes) of the Principal Trust Deed.

"Settlement Period" means, in respect of a Series of Notes for which "Underlying Linked" is applicable, the number of Business Days specified in the relevant Final Terms, being the period that the Calculation Agent estimates, as at the Trade Date, shall fall in the period commencing on, but excluding, the Scheduled Redemption Determination Date, and ending on, and including, the Scheduled Maturity Date.

"SOFR" with respect to any day means the secured overnight financing rate published for such day by the Federal Reserve Bank of New York, as the administrator of the benchmark, (or a successor administrator) on the Federal Reserve Bank of New York's website.

"Specified Currency Account" means a USD Account or a Foreign Currency Account, as applicable.

"Specified Days" means, in respect of a Series of Notes, such number of Business Days, Clearing System Business Days or calendar days, as applicable, as specified in the relevant Final Terms.

"Specified Decimal Place" means, in relation to the rounding of any relevant amount pursuant to General Condition 26 (*Rounding*), such number of decimal place(s) as specified in the relevant Final Terms;

"Specified Office" means in relation to any Agent:

- (a) the office specified against its name; or
- (b) such other office as such Agent may specify in accordance with Clause 20.9 (*Changes in Specified Offices*) of the Agency Agreement.

"Specified Sub-Unit" means, in relation to the rounding of any relevant currency amount pursuant to General Condition 26 (*Rounding*), an amount of such currency that is available as legal tender in the country of such currency as specified in the relevant Final Terms.

"Specified Time" means, for a given Series of Notes, the time specified as such in the relevant place, as provided in the relevant Final Terms for such Series.

"Standard Notes" means any Series of Notes that are not Structured Notes.

"Stock Exchange" means the regulated market of the Irish Stock Exchange, trading as Euronext Dublin.

"Strike Date", if applicable, means the date specified as such in the relevant Final Terms.

"Structured Notes" means any Series of Notes that are Redemption Linked Notes.

"Substituted Issuer" means an issuer appointed in accordance with Clause 15 (Substitution) of the Principal Trust Deed.

"Supplemental Assets" means, with respect to an Eligible Repurchase Agreement (other than in respect of Purchased Securities) or Eligible Loan (other than in respect of Derivative Receivables), any funds credited by the Eligible GS Entity as a Repo Counterparty or Borrower under such Eligible Repurchase Agreement or Eligible Loan, as applicable, from time to time to a controlled deposit account maintained by such Eligible GS Entity at a bank, trust company or registered broker dealer, including an Affiliate of GS Group, on behalf of such Eligible GS Entity's counterparties or lenders (including the Issuer) under master repurchase agreements, master notes, loans or other agreements.

"Supplemental Trust Deed" means a deed supplemental to the Principal Trust Deed.

"Suspension/Withdrawal Event" means, in respect of an Original Primary Rate, the determination by the Agent Bank that one or more of the following events has occurred:

- (a) the relevant competent authority or other relevant official body suspends or withdraws any authorisation, registration, recognition, endorsement, equivalence decision or approval in relation to such Original Primary Rate or the administrator or sponsor of such Original Primary Rate; or
- (b) such Original Primary Rate or the administrator or sponsor of such Original Primary Rate is removed from any official register,

in each case, with the effect that either the Issuer or the Agent Bank is not, or will not be, permitted under any applicable law or regulation to use such Original Primary Rate to perform its or their respective obligations under the Notes, provided that a Suspension/Withdrawal Event shall not occur if such authorisation, registration, recognition, endorsement, equivalence decision or approval is suspended or where inclusion in any official register is withdrawn if, at the time of such suspension or withdrawal, the continued provision and use of such Original Primary Rate is permitted in respect of the Notes under the applicable law or regulation.

"Swap Agreement" means, with respect to any Series of Notes, any swap transaction entered into between the Issuer and the Swap Counterparty pursuant to an ISDA Master Agreement, a schedule thereto, credit support annex, if any, a confirmation thereunder and any other agreement evidencing or securing the obligations of the Swap Counterparty with respect thereto. For the avoidance of doubt, a Currency Swap Agreement is a type of Swap Agreement.

"Swap Calculation Agent" means, with respect to Collateralized Swap Agreement, the swap calculation agent specified in the relevant Swap Agreement.

"Swap Counterparty" means any Eligible GS Entity that is a counterparty for a swap transaction.

"Swap Counterparty Cash Collateral" means, with respect to any Collateralized Swap Agreement, the cash collateral, if any, posted and delivered thereunder by the Pledgor Counterparty to the Issuer.

"Swap Counterparty Collateral Account" means a segregated securities account established with respect to any Collateralized Swap Agreement, as specified in Clause 20.4 (Swap Counterparty Collateral Account) of the Principal Trust Deed.

"T2 Settlement Day" means any day on which the T2 System is open.

"T2 System" means the real-time gross settlement system owned and operated by the Eurosystem, or any successor thereto.

"Term SOFR" means the forward-looking term rate for the applicable Corresponding Tenor based on SOFR that has been selected or recommended by the Relevant Governmental Body.

"Trade Date", if applicable, means the Strike Date, unless otherwise specified in the relevant Final Terms.

"Transaction Documents" means, with respect to any Series, the relevant transaction documents for such Series, which shall include the Security Documents for such Series and the Agency Agreement, together with the Additional Transaction Documents (if any) specified for such Series in the relevant Supplemental Trust Deed.

"Transfer" means the sale or pledge of a Collateral Asset under a Repo Transaction, whether the subject of a Tripartite Custody Agreement or otherwise, or the pledge of a Collateral Asset under an Eligible Loan, and **"Transferred"** has a correlative meaning.

"Tripartite Custody Account" means, with respect to any Series, the tripartite custody account established with the relevant Eligible Custodian pursuant to a Tripartite Custody Agreement, and as specified in Clause 20.5 (Tripartite Custody Account) of the Principal Trust Deed.

"Tripartite Custody Agreement" means, with respect to any Series, an agreement between the Issuer, the relevant Repo Counterparty, and such Eligible Custodian as nominated therein, in respect of the custody of Purchased Securities Transferred under an Eligible Repurchase Agreement, and establishing and governing a Tripartite Custody Account in connection solely with such Series of Notes.

"Trustee Acts" means the Trustee Act 1925 and the Trustee Act 2000.

"Trust Corporation" means a trust corporation (as defined in the Law of Property Act 1925) or a body corporate entitled to act as trustee and carry on trust business pursuant to any other legislation applicable to a trustee in any state of the United States of America or any Western European jurisdiction other than England and Wales.

"Trust Deed" means, in respect of a Series of Notes, the Principal Trust Deed and the relevant Supplemental Trust Deed (or Supplement Trust Deeds) for such Series.

"Trust Officer" means, when used with respect to the Trustee, any officer within the corporate trust department of the Trustee, including any vice president, assistant vice president, assistant secretary, assistant treasurer, trust officer or any other officer of the Trustee who customarily performs functions similar to those performed by the Persons who at the time shall be such officers, respectively, or to whom any corporate trust matter is referred because of such person's knowledge of and familiarity with the particular subject and who shall have direct responsibility for the administration of the Trust Deed.

"Trustee Custody Account" means, with respect to any Series, the securities account established pursuant to Clause 20.2 (Trustee Custody Account) of the Principal Trust Deed.

"Trustee Custody Account Agreement" means, with respect to any Series, the custody agreement relating to the Trustee Custody Account for such Series, substantially in the form of the custody agreement attached as Schedule 14 (Trustee Custody Account Agreement) to the Principal Trust Deed.

"Trustee Custody Account Bank" has the meaning specified in Clause 20.2(a) (Trustee Custody Account) of the Principal Trust Deed.

"Trustee" means the party named as trustee in the Principal Trust Deed, until a successor replaces it in accordance with the terms of the Principal Trust Deed, and thereafter, the successor.

"Turkish Agency Agreement" means, in respect of a Series of Turkish Secured Notes, an agency agreement between, *inter alios*, the Issuer and the Trustee, appointing an agent or other

representative on behalf of the Noteholders of such Series in respect of the Turkish Collateral for such Series.

"Turkish Bondholder Representative" means, in respect of a Series of Turkish Secured Notes, an agent or other representative appointed on behalf of the Noteholders of such Series to, *inter alia*, administer the Turkish Collateral for such Series pursuant to the terms of a Turkish Agency Agreement.

"Turkish Collateral" means Collateral comprising Eligible Securities that are held in securities accounts opened and maintained in Turkey.

"Turkish Pledge Agreement" means, in respect of a Series of Turkish Secured Notes, a Turkish law governed pledge agreement between the Issuer and the Turkish Bondholder Representative pursuant to which Turkish Collateral is pledged by the Issuer as security for the Notes of such Series.

"Turkish Secured Notes" means Notes of a Series for which the Collateral wholly or partially comprises Turkish Collateral.

"Unadjusted Benchmark Replacement" means the Benchmark Replacement excluding the Benchmark Replacement Adjustment.

"Undisclosed Deficiency" means a Deficiency not disclosed by the confirmations furnished to the Trustee pursuant to Clause 11.3 (Duties of the Collateral Administrator) of the Agency Agreement.

"Unhedged Amount" means, with respect to any Non-USD Series at any time of determination, the excess, if any, of the Outstanding aggregate principal amount of the Notes of such Series over the Hedged Amount as of such time.

"Unhedged Percentage" means, with respect to any Non-USD Series at any time of determination, the Unhedged Amount expressed as a percentage of the Outstanding aggregate principal amount of the Notes of such Series.

"USD", "U.S. Dollar", "U.S.\$" or "\$" means the lawful currency of the United States of America.

"USD Account" means a Bank Account denominated in USD and established by the Issuer for use in relation to any Series of Notes or other debt obligation of the Issuer.

"USD Equivalent" means as of any date of determination, (a) in respect of any amount denominated in USD, such amount and (b) in respect of the principal amount of any Non-USD Series in respect of which the Hedged Amount is greater than zero, the USD equivalent of such amount determined by application of the Embedded Exchange Rate as set forth in the Final Terms for such Series.

"USD Series" means a Series of Notes for which the "Note Currency" specified in the relevant Final Terms is USD.

"U.S. Government Obligations" means direct obligations (or certificates representing an ownership interest in such obligations) of the United States of America (including any agency or instrumentality thereof) for the payment of which the full faith and credit of the United States of America is pledged and which are not callable or redeemable at the option of the issuer thereof.

"Written Resolution" has the meaning given to it in Schedule 13 (Provisions for Meetings of Holders of the Notes) to the Principal Trust Deed.

"Yen" means the lawful currency of Japan.

TERMS AND CONDITIONS OF THE NOTES – PAYOUT CONDITIONS

The following conditions (the "**Payout Conditions**") shall apply to each Series of Notes for which the relevant Final Terms specify the redemption basis to be "Underlying Linked".

1. PAYOUTS

1.1 Single Limb Payout

- (a) This Payout Condition 1.1 applies where "Single Limb Payout" is specified to apply in the relevant Final Terms.
- (b) Unless the Notes are redeemed early, or are purchased and cancelled, in each case, in accordance with the Conditions, the Final Redemption Amount payable in respect of each Note shall be an amount in the Note Currency calculated by the Calculation Agent in accordance with the relevant formula from Payout Condition 1.1(c).
- (c) The relevant formula for the Notes will be:
 - (i) if the relevant Final Terms specifies "Delta-One Security" to be applicable, the following formula:

$$D \times \frac{\text{Reference Price (Final)}}{\text{Reference Price (Initial)}}; \text{ Or}$$

- (ii) if the relevant Final Terms specifies "Delta-One Security (Performance)" to be applicable, the following formula:

$$D \times \text{Perf},$$

provided that if the relevant Final Terms specify (A) a Cap, the amount calculated in accordance with the applicable formula specified in this Payout Condition 1.1(c) shall not exceed the Cap, and/or (B) a Floor, the amount calculated in accordance with the applicable formula specified in this Payout Condition 1.1(c) shall not be less than the Floor.

1.2 Multiple Limb Payout

- (a) This Payout Condition 1.2 applies where "Multiple Limb Payout" is specified to apply in the relevant Final Terms. If "Trigger Event" is specified to be not applicable in the relevant Final Terms, Payout Condition 1.2(b) and each reference to "Trigger Event" in Payout Condition 1.2(c) shall be deemed to be deleted and shall not apply in respect of the relevant Notes.
- (b) Unless the Notes are redeemed early, or are purchased and cancelled, in each case, in accordance with the Conditions, if the relevant Final Terms specify "Trigger Event" to be applicable and a Trigger Event has not occurred (and regardless of whether a Barrier Event has occurred or not), the Final Redemption Amount payable in respect of each Note shall be, an amount in the Note Currency calculated by the Calculation Agent in accordance with the relevant formula from Payout Condition 1.2(b)(i) below.
 - (i) The relevant formula that applies to the Notes for the purpose of this Payout Condition 1.2(b) will be as follows:

None

provided that if the relevant Final Terms specify (I) a Trigger Cap, the amount calculated in accordance with the applicable formula specified in this Payout Condition 1.2(b) (if applicable) shall not exceed the Trigger Cap, and/or (II) a Trigger Floor, the

amount calculated in accordance with the applicable formula specified in this Payout Condition 1.2(b) (if applicable) shall not be less than the Trigger Floor.

- (c) Unless the Notes are redeemed early, or are purchased and cancelled, in each case, in accordance with the Conditions, if a Barrier Event has not occurred (and, where the relevant Final Terms specify "Trigger Event" to be applicable, a Trigger Event has occurred), the Final Redemption Amount payable in respect of each Note shall be an amount in the Note Currency calculated by the Calculation Agent in accordance with the relevant formula from Payout Condition 1.2(c)(i) below.
 - (i) The relevant formula that applies to the Notes for the purpose of this Payout Condition 1.2(c) will be as follows:

None

provided that if the relevant Final Terms specify (I) a Cap, the amount calculated in accordance with the applicable formula specified in this Payout Condition 1.2(c) shall not exceed the Cap, and/or (II) a Floor, the amount calculated in accordance with the applicable formula specified in this Payout Condition 1.2(c) shall not be less than the Floor.

2. BARRIER EVENT CONDITIONS

If the relevant Final Terms specify "Multiple Limb Payout" to be applicable, this Payout Condition 2 shall apply for the purposes of determining a "Barrier Event".

"**Asset Basket**" has the meaning given in Payout Condition 5.

"**Asset Intraday Price**" has the meaning given in Payout Condition 5.

"**Averaging Date**" has the meaning given in Payout Condition 5.

"**Barrier Asset Performance**" means, in respect of an Underlying Asset, an amount calculated in accordance with the following formula:

$$\frac{\text{Barrier Asset Price}}{\text{Asset Initial Price}}$$

"**Barrier Asset Price**" means, in respect of an Underlying Asset: (a) if the relevant Final Terms specify "Barrier Closing Price", the Final Closing Price of the Underlying Asset, or (b) if the relevant Final Terms specify "Barrier Average Price", the Final Average Price of the Underlying Asset.

"**Barrier Best Performing Asset**" means the Underlying Asset with the highest Barrier Asset Performance, as determined by the Calculation Agent. In the event that two or more Underlying Assets have the same highest Barrier Asset Performance, then the Calculation Agent shall determine in its sole and absolute discretion which of such Underlying Assets shall be the Barrier Best Performing Asset, and such Underlying Asset as so selected shall be deemed the Barrier Best Performing Asset.

"**Barrier Event**" means (and a Barrier Event shall be deemed to occur if) the relevant condition below is satisfied:

- (a) where the relevant Final Terms specify "Barrier Reference Value less than or equal to the Barrier Level" as applicable, the Barrier Reference Value is less than or equal to the Barrier Level;

- (b) where the relevant Final Terms specify "Barrier Reference Value greater than or equal to the Barrier Level" as applicable, the Barrier Reference Value is greater than or equal to the Barrier Level;
- (c) where the relevant Final Terms specify "Barrier Reference Value less than the Barrier Level" as applicable, the Barrier Reference Value is less than the Barrier Level; or
- (d) where the relevant Final Terms specify "Barrier Reference Value greater than the Barrier Level" as applicable, the Barrier Reference Value is greater than the Barrier Level.

"Barrier Level" means:

- (a) if the relevant Final Terms specify the Barrier Reference Value to be "Barrier Closing Price", "Barrier Average Price" or "Barrier Intraday Price", in respect of an Underlying Asset, the amount specified in the relevant Final Terms as the "Barrier Level" corresponding to the Underlying Asset, or a percentage value of the Asset Initial Price of the Underlying Asset specified in the relevant Final Terms as the "Barrier Level" corresponding to the Underlying Asset (or both);
- (b) if the relevant Final Terms specify the Barrier Reference Value to be "Barrier Worst Closing Price", in respect of the Underlying Asset that is the Barrier Worst Performing Asset on any relevant date, the amount specified in the relevant Final Terms as the "Barrier Level" corresponding to such Underlying Asset, or a percentage value of the Asset Initial Price of such Underlying Asset specified in the relevant Final Terms as the "Barrier Level" corresponding to such Underlying Asset (or both);
- (c) if the relevant Final Terms specify the Barrier Reference Value to be "Barrier Best Closing Price", in respect of the Underlying Asset that is the Barrier Best Performing Asset on any relevant date, the amount specified in the relevant Final Terms as the "Barrier Level" corresponding to such Underlying Asset, or a percentage value of the Asset Initial Price of the Underlying Asset specified in the relevant Final Terms as the "Barrier Level" corresponding to such Underlying Asset (or both);
- (d) if the relevant Final Terms specify the Barrier Reference Value to be "Barrier Basket Value", in respect of an Asset Basket, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Barrier Level";
- (e) if the relevant Final Terms specify the Barrier Reference Value to be "Barrier Asset Performance", in respect of an Underlying Asset, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Barrier Level";
- (f) if the relevant Final Terms specify the Barrier Reference Value to be "Barrier Worst Asset Performance", in respect of the Underlying Asset that is the Barrier Worst Performing Asset on any relevant date, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Barrier Level" corresponding to such Underlying Asset; or
- (g) if the relevant Final Terms specify the Barrier Reference Value to be "Barrier Best Asset Performance", in respect of the Underlying Asset that is the Barrier Best Performing Asset on any relevant date, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Barrier Level" corresponding to such Underlying Asset.

"Barrier Observation Period" if specified to be applicable, means, in respect of an Underlying Asset:

- (a) if the relevant Final Terms specify the consequence of "Extension", the period commencing on the Barrier Observation Period Start Date in respect of such Underlying Asset, following adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Barrier Observation Period Start Date, as specified in the relevant Final Terms) and ending on the immediately following Barrier Observation Period End Date for such Underlying Asset, following adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Barrier Observation Period End Date, as specified in the relevant Final Terms); or
- (b) if the relevant Final Terms specify the consequence of "No Extension", the period commencing on the Barrier Observation Period Start Date, prior to any adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Barrier Observation Period Start Date for such Underlying Asset, as specified in the relevant Final Terms) and ending on the immediately following Barrier Observation Period End Date for such Underlying Asset, prior to any adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Barrier Observation Period End Date, as specified in the relevant Final Terms),

and in each case, where the Notes relate to an Asset Basket, there shall be a separate Barrier Observation Period in respect of each Underlying Asset in the Asset Basket.

"Barrier Observation Period End Date" means, in respect of an Underlying Asset, the date specified as such in the relevant Final Terms, which shall be the last day of the Barrier Observation Period in respect of such Underlying Asset, and shall be included or excluded from the Barrier Observation Period, as specified in the relevant Final Terms.

"Barrier Observation Period Start Date" means, in respect of an Underlying Asset, the date specified as such in the relevant Final Terms, which shall be the first day of the Barrier Observation Period in respect of such Underlying Asset, and shall be included or excluded from the Barrier Observation Period, as specified in the relevant Final Terms.

"Barrier Reference Value" has the meaning determined in accordance with the following paragraphs:

- (a) if the relevant Final Terms specify "Barrier Observation Period" to be applicable, and:
 - (i) if "Barrier Closing Price" is specified to be applicable in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Barrier Reference Value" means the Reference Price of the Underlying Asset on any Observation Date (closing valuation) during the relevant Barrier Observation Period; or
 - (B) where the Notes relate to an Asset Basket, "Barrier Reference Value" means the Reference Price of any Underlying Asset in the Asset Basket on any Observation Date (closing valuation) during the Barrier Observation Period for such Underlying Asset; or
 - (ii) if "Barrier Intraday Price" is specified to be applicable in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Barrier Reference Value" means the Asset Intraday Price of the Underlying Asset at any time on any Observation Date (intra-day valuation) during the Barrier Observation Period; or

- (B) where the Notes relate to an Asset Basket, "Barrier Reference Value" means the Asset Intraday Price of any Underlying Asset in the Asset Basket at any time on any Observation Date (intra-day valuation) during the Barrier Observation Period for such Underlying Asset; or
- (b) if the relevant Final Terms do not specify "Barrier Observation Period" to be applicable, and:
 - (i) if "Barrier Closing Price" is specified in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Barrier Reference Value" means the Final Closing Price of the Underlying Asset; or
 - (B) where the Notes relate to an Asset Basket, "Barrier Reference Value" means the Final Closing Price of any Underlying Asset in the Asset Basket; or
 - (ii) if "Barrier Worst Closing Price" is specified in the relevant Final Terms, "Barrier Reference Value" means the Final Closing Price of the Barrier Worst Performing Asset; or
 - (iii) if "Barrier Best Closing Price" is specified in the relevant Final Terms, "Barrier Reference Value" means the Final Closing Price of the Barrier Best Performing Asset; or
 - (iv) if "Barrier Average Value" is specified in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Barrier Reference Value" means the Final Average Price of the Underlying Asset; or
 - (B) where the Notes relate to an Asset Basket, "Barrier Reference Value" means the Final Average Price of any Underlying Asset in the Asset Basket; or
 - (v) if "Barrier Basket Value" is specified in the relevant Final Terms, "Barrier Reference Value" means the sum of the weighted performance of each Underlying Asset in the Asset Basket, which is calculated in accordance with the following formula:

$$\sum_{i=1}^n \text{Weight}(i) \times \frac{\text{Barrier Asset Price}(i)}{\text{Asset Initial Price}(i)}$$

where:

"Asset Initial Price (i)" means the Asset Initial Price of each Underlying Asset (i);

"Barrier Asset Price (i)" means the Barrier Asset Price of each Underlying Asset (i);

"n" means the number of Underlying Assets in the Asset Basket;

"Underlying Asset (i)" means each Underlying Asset in the Asset Basket; and

"Weight (i)" means the amount specified as such in respect of an Underlying Asset (i) in the relevant Final Terms; or

- (vi) if "Barrier Asset Performance" is specified in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Barrier Reference Value" means the Barrier Asset Performance of the Underlying Asset; or

- (B) where the Notes relate to an Asset Basket, "Barrier Reference Value" means the Barrier Asset Performance of any Underlying Asset in the Asset Basket; or
- (vii) if "Barrier Worst Asset Performance" is specified in the relevant Final Terms, "Barrier Reference Value" means the Barrier Asset Performance of the Barrier Worst Performing Asset; or
- (viii) if "Barrier Best Asset Performance" is specified in the relevant Final Terms, "Barrier Reference Value" means the Barrier Asset Performance of the Barrier Best Performing Asset.

"Barrier Worst Performing Asset" means the Underlying Asset with the lowest Barrier Asset Performance, as determined by the Calculation Agent. In the event that two or more Underlying Assets have the same lowest Barrier Asset Performance, then the Calculation Agent shall determine in its sole and absolute discretion which of such Underlying Assets shall be the Barrier Worst Performing Asset, and such Underlying Asset as so selected shall be deemed the Barrier Worst Performing Asset.

"Final Average Price" has the meaning given in Payout Condition 5.

"Final Closing Price" has the meaning given in Payout Condition 5.

"Final Reference Date" has the meaning given in Payout Condition 5.

"Observation Date (closing valuation)" has the meaning given in Payout Condition 5.

"Observation Date (intra-day valuation)" has the meaning given in Payout Condition 5.

3. TRIGGER EVENT CONDITIONS

If the relevant Final Terms specify "Trigger Event" to be applicable, this Payout Condition 3 shall apply for the purposes of determining a "Trigger Event":

"Asset Basket" has the meaning given in Payout Condition 5.

"Asset Intraday Price" has the meaning given in Payout Condition 5.

"Averaging Date" has the meaning given in Payout Condition 5.

"Final Average Price" has the meaning given in Payout Condition 5.

"Final Closing Price" has the meaning given in Payout Condition 5.

"Final Reference Date" has the meaning given in Payout Condition 5.

"Observation Date (closing valuation)" has the meaning given in Payout Condition 5.

"Observation Date (intra-day valuation)" has the meaning given in Payout Condition 5.

"Trigger Asset Performance" means, in respect of an Underlying Asset, an amount calculated in accordance with the following formula:

$$\frac{\text{Trigger Asset Price}}{\text{Asset Initial Price}}$$

"Trigger Asset Price" means, in respect of an Underlying Asset: (a) if the relevant Final Terms specify "Trigger Closing Price", the Final Closing Price of the Underlying Asset, or (b) if the relevant Final Terms specify "Trigger Average Price", the Final Average Price of the Underlying Asset.

"Trigger Best Performing Asset" means the Underlying Asset with the highest Trigger Asset Performance, as determined by the Calculation Agent. In the event that two or more Underlying Assets have the same highest Trigger Asset Performance, then the Calculation Agent shall determine in its sole and absolute discretion which of such Underlying Assets shall be the Trigger Best Performing Asset, and such Underlying Asset as so selected shall be deemed the Trigger Best Performing Asset.

"Trigger Event" means (and a Trigger Event shall be deemed to occur if) the relevant condition below is satisfied:

- (a) where the relevant Final Terms specify "Trigger Reference Value less than or equal to the Trigger Level" as applicable, the Trigger Reference Value is less than or equal to the Trigger Level;
- (b) where the relevant Final Terms specify "Trigger Reference Value greater than or equal to the Trigger Level", the Trigger Reference Value is greater than or equal to the Trigger Level;
- (c) where the relevant Final Terms specify "Trigger Reference Value less than the Trigger Level", the Trigger Reference Value is less than the Trigger Level; or
- (d) where the relevant Final Terms specify "Trigger Reference Value greater than the Trigger Level", the Trigger Reference Value is greater than the Trigger Level.

"Trigger Level" means:

- (a) if the relevant Final Terms specify the Trigger Reference Value to be "Trigger Closing Price", "Trigger Average Price" or "Trigger Intraday Price", in respect of an Underlying Asset, the amount specified in the relevant Final Terms as the "Trigger Level" corresponding to the Underlying Asset, or a percentage value of the Asset Initial Price of the Underlying Asset specified in the relevant Final Terms as the "Trigger Level" corresponding to the Underlying Asset (or both);
- (b) if the relevant Final Terms specify the Trigger Reference Value to be "Trigger Worst Closing Price", in respect of the Underlying Asset that is the Trigger Worst Performing Asset on any relevant date, the amount specified in the relevant Final Terms as the "Trigger Level" corresponding to such Underlying Asset, or a percentage value of the Asset Initial Price of such Underlying Asset specified in the relevant Final Terms as the "Trigger Level" corresponding to such Underlying Asset (or both);
- (c) if the relevant Final Terms specify the Trigger Reference Value to be "Trigger Best Closing Price", in respect of the Underlying Asset that is the Trigger Best Performing Asset on any relevant date, the amount specified in the relevant Final Terms as the "Trigger Level" corresponding to such Underlying Asset, or a percentage value of the Asset Initial Price of such Underlying Asset specified in the relevant Final Terms as the "Trigger Level" corresponding to such Underlying Asset (or both);
- (d) if the relevant Final Terms specify the Trigger Reference Value to be "Trigger Basket Value", in respect of an Asset Basket, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Trigger Level";
- (e) if the relevant Final Terms specify the Trigger Reference Value to be "Trigger Asset Performance", in respect of an Underlying Asset, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Trigger Level";

- (f) if the relevant Final Terms specify the Trigger Reference Value to be "Trigger Worst Asset Performance", in respect of the Underlying Asset that is the Trigger Worst Performing Asset on any relevant date, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Trigger Level" corresponding to such Underlying Asset; or
- (g) if the relevant Final Terms specify the Trigger Reference Value to be "Trigger Best Asset Performance", in respect of the Underlying Asset that is the Trigger Best Performing Asset on any relevant date, the value (which may be expressed as a percentage or decimal) specified in the relevant Final Terms as the "Trigger Level" corresponding to such Underlying Asset.

"Trigger Observation Period" if specified to be applicable, means, in respect of an Underlying Asset:

- (a) if the relevant Final Terms specify the consequence of "Extension", the period commencing on the Trigger Observation Period Start Date in respect of such Underlying Asset, following adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Trigger Observation Period Start Date, as specified in the relevant Final Terms) and ending on the immediately following Trigger Observation Period End Date for such Underlying Asset, following adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Trigger Observation Period End Date, as specified in the relevant Final Terms); or
- (b) if the relevant Final Terms specify the consequence of "No Extension", the period commencing on the Trigger Observation Period Start Date, prior to any adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Trigger Observation Period Start Date for such Underlying Asset, as specified in the relevant Final Terms) and ending on the immediately following Trigger Observation Period End Date for such Underlying Asset, prior to any adjustment of such date pursuant to the relevant Underlying Asset Conditions applicable to the Underlying Asset (and including or excluding such Trigger Observation Period End Date, as specified in the relevant Final Terms),

and in each case, where the Notes relate to an Asset Basket, there shall be a separate Trigger Observation Period in respect of each Underlying Asset in the Asset Basket.

"Trigger Observation Period End Date" means, in respect of an Underlying Asset, the date specified as such in the relevant Final Terms, which shall be the last day of the Trigger Observation Period in respect of such Underlying Asset, and shall be included or excluded from the Trigger Observation Period, as specified in the relevant Final Terms.

"Trigger Observation Period Start Date" means, in respect of an Underlying Asset, the date specified as such in the relevant Final Terms, which shall be the first day of the Trigger Observation Period in respect of such Underlying Asset, and shall be included or excluded from the Trigger Observation Period, as specified in the relevant Final Terms.

"Trigger Reference Value" has the meaning determined in accordance with the following paragraphs:

- (a) if the relevant Final Terms specify "Trigger Observation Period" to be applicable, and:
 - (i) if "Trigger Closing Price" is specified to be applicable in the relevant Final Terms and:

- (A) where the Notes relate to a single Underlying Asset, "Trigger Reference Value" means the Reference Price of the Underlying Asset on any Observation Date (closing valuation) during the relevant Trigger Observation Period; or
- (B) where the Notes relate to an Asset Basket, "Trigger Reference Value" means the Reference Price of any Underlying Asset in the Asset Basket on any Observation Date (closing valuation) during the Trigger Observation Period for such Underlying Asset; or
- (ii) if "Trigger Intraday Price" is specified to be applicable in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Trigger Reference Value" means the Asset Intraday Price of the Underlying Asset at any time on any Observation Date (intra-day valuation) during the Trigger Observation Period; or
 - (B) where the Notes relate to an Asset Basket, "Trigger Reference Value" means the Asset Intraday Price of any Underlying Asset in the Asset Basket at any time on any Observation Date (intra-day valuation) during the Trigger Observation Period for such Underlying Asset; or
- (b) if the relevant Final Terms do not specify "Trigger Observation Period" to be applicable, and:
 - (i) if "Trigger Closing Price" is specified in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Trigger Reference Value" means the Final Closing Price of the Underlying Asset; or
 - (B) where the Notes relate to an Asset Basket, "Trigger Reference Value" means the Final Closing Price of any Underlying Asset in the Asset Basket; or
 - (ii) if "Trigger Worst Closing Price" is specified in the relevant Final Terms, "Trigger Reference Value" means the Final Closing Price of the Trigger Worst Performing Asset; or
 - (iii) if "Trigger Best Closing Price" is specified in the relevant Final Terms, "Trigger Reference Value" means the Final Closing Price of the Trigger Best Performing Asset; or
 - (iv) if "Trigger Average Price" is specified in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Trigger Reference Value" means the Final Average Price of the Underlying Asset; or
 - (B) where the Notes relate to an Asset Basket, "Trigger Reference Value" means the Final Average Price of any Underlying Asset in the Asset Basket; or
 - (v) if "Trigger Basket Value" is specified in the relevant Final Terms, "Trigger Reference Value" means the sum of the weighted performance of each Underlying Asset in the Asset Basket, which is calculated in accordance with the following formula:

$$\sum_{i=1}^n \text{Weight}(i) \times \frac{\text{Trigger Asset Price}(i)}{\text{Asset Initial Price}(i)}$$

where:

"Asset Initial Price (i)" means the Asset Initial Price of each Underlying Asset (i);

"n" means the number of Underlying Assets in the Asset Basket;

"Trigger Asset Price (i)" means the Trigger Asset Price of each Underlying Asset (i);

"Underlying Asset (i)" means each Underlying Asset in the Asset Basket; and

"Weight (i)" means the amount specified as such in respect of an Underlying Asset (i) in the relevant Final Terms; or

- (vi) if "Trigger Asset Performance" is specified in the relevant Final Terms and:
 - (A) where the Notes relate to a single Underlying Asset, "Trigger Reference Value" means the Trigger Asset Performance of the Underlying Asset; or
 - (B) where the Notes relate to an Asset Basket, "Trigger Reference Value" means the Trigger Asset Performance of any Underlying Asset in the Asset Basket; or
- (vii) if "Trigger Worst Asset Performance" is specified in the relevant Final Terms, "Trigger Reference Value" means the Trigger Asset Performance of the Trigger Worst Performing Asset; or
- (viii) if "Trigger Best Asset Performance" is specified in the relevant Final Terms, "Trigger Reference Value" means the Trigger Asset Performance of the Trigger Best Performing Asset.

"Trigger Worst Performing Asset" means the Underlying Asset with the lowest Trigger Asset Performance, as determined by the Calculation Agent. In the event that two or more Underlying Assets have the same lowest Trigger Asset Performance, then the Calculation Agent shall determine in its sole and absolute discretion which of such Underlying Assets shall be the Trigger Worst Performing Asset, and such Underlying Asset as so selected shall be deemed the Trigger Worst Performing Asset.

4. INDICATIVE AMOUNTS

If the relevant Final Terms provide that the Notes are being offered to the public in circumstances requiring the prior publication of a prospectus under Regulation (EU) 2017/1129 (as amended), the relevant Final Terms may specify an indicative amount, an indicative minimum amount, or an indicative maximum amount, or any combination of the foregoing, as applicable, in relation to any Specified Product Value which is not fixed or determined at the commencement of the Offer Period. If so specified in the relevant Final Terms, references in the Conditions to such Specified Product Value shall be construed as the amount, level, percentage, price, rate or value (as applicable) determined based on market conditions by the Calculation Agent on or after the relevant date specified in the relevant Final Terms, and is expected to be the indicative amount specified in the relevant Final Terms (if so specified) but may be different from such indicative amount, and:

- (a) if an indicative minimum amount is provided in the relevant Final Terms, the Specified Product Value will not be less than (or equal to) such indicative minimum amount; or
- (b) if an indicative maximum amount is provided in the relevant Final Terms, the Specified Product Value will not be more than (or equal to) such indicative maximum amount; or
- (c) if both an indicative minimum amount and indicative maximum amount is provided in the relevant Final Terms, the Specified Product Value will not be less than (or equal to) such indicative minimum amount and will not be more than (or equal to) such indicative maximum amount.

Notice of the relevant Specified Product Value will be published prior to, or on or around, the Issue Date and the relevant amount, level, percentage, price, rate or value specified in such notice will be deemed to be the Specified Product Value.

For these purposes, "**Specified Product Value**" means any amount, level, percentage, price, rate or value which is specified in the Conditions as the amount, level, percentage, price, rate or value (as applicable) to be provided in the relevant Final Terms (or phrases of similar import).

5. DEFINITIONS AND INTERPRETATION

5.1 Definitions

In these Payout Conditions, unless the context otherwise requires, the following terms shall have the respective meanings set out below:

"Adjusted Asset Final Reference Date" means, in respect of an Underlying Asset, any of the following as specified in the relevant Final Terms: (i) the Final Reference Date for such Underlying Asset, (ii) the Latest Reference Date in respect of the Final Reference Date for such Underlying Asset, (iii) the Latest Determination Date in respect of the Final Reference Date for such Underlying Asset (iv), the Last Averaging Date for such Underlying Asset, (v) the Latest Reference Date in respect of the Last Averaging Date for such Underlying Asset, (vi) the Latest Determination Date in respect of the Last Averaging Date for the Underlying Asset, in each case, after all adjustments, if any, pursuant to the applicable Underlying Asset Conditions applicable to such Underlying Asset and these Payout Conditions, as applicable.

"Adjusted Asset Initial Reference Date" means, in respect of an Underlying Asset, any of the following as specified in the relevant Final Terms: (i) the Initial Reference Date for such Underlying Asset, (ii) the Latest Reference Date in respect of the Initial Reference Date for such Underlying Asset, (iii) the Latest Determination Date in respect of the Initial Reference Date for such Underlying Asset, (iv) the Last Initial Averaging Date for such Underlying Asset, (v) the Latest Reference Date in respect of the Last Initial Averaging Date for such Underlying Asset, (vi) the Latest Determination Date in respect of the Last Initial Averaging Date for the Underlying Asset, in each case, after all adjustments, if any, pursuant to the applicable Underlying Asset Conditions applicable to such Underlying Asset and these Payout Conditions, as applicable.

"Asset Basket" or **"Basket"** means:

- (a) a Share Basket;
- (b) an Index Basket; or
- (c) a Multi-Asset Basket,

each, as specified in the relevant Final Terms.

"Asset Initial Price" means in respect of an Underlying Asset, any of the following (a), (b), (c), (d) or (e) as specified in the relevant Final Terms:

- (a) Initial Closing Price of the Underlying Asset;
- (b) Initial Average Price of the Underlying Asset;
- (c) Initial Price of the Underlying Asset;
- (d) the Entry Level of the Underlying Asset; or

(e) the amount set forth in the Underlying Asset Table in the relevant Final Terms.

"Asset Intraday Price" means:

- (a) in respect of a time on any day, and an Index, the Index Level of the Index at such time on such day; or
- (b) in respect of a time on any day, and a Share, the Share Price of the Share at such time on such day.

"Averaging Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions,

"Averaging Reference Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Basket Performance" means the aggregate of the Weighted Performance of each Underlying Asset in the Asset Basket.

"Best Performing Underlying" means the Underlying Asset with the highest Underlying Performance, as determined by the Calculation Agent. In the event that two or more Underlying Assets have the same highest Underlying Performance, then the Calculation Agent shall determine in its sole and absolute discretion which of such Underlying Assets shall be the Best Performing Underlying, and such Underlying Asset as so selected shall be deemed the Best Performing Underlying.

"Bonus" means an amount specified as such in the relevant Final Terms.

"Cap" means an amount specified as such in the relevant Final Terms.

"Closing Index Level" has the meaning given in the Index Linked Conditions.

"Closing Share Price" has the meaning given in the Share Linked Conditions.

"D" means the "Minimum Denomination" as defined in the General Conditions.

"Entry Level" means, in respect of an Underlying Asset that is a Share or an Index, either the "lowest Reference Price" or the "highest Reference Price", in each case observed across all Entry Level Observation Dates for such Underlying Asset, as specified to be applicable in the relevant Final Terms.

"Entry Level Observation Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; or
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Final Asset Performance" means, in respect of an Underlying Asset, an amount determined by the Calculation Agent in accordance with the following formula:

$$\frac{\text{Final Value}}{\text{Initial Value}}$$

"Final Average Price" means, the arithmetic mean of the Reference Price of such Underlying Asset on each of the Averaging Dates.

"Final Best Performing Asset" means the Underlying Asset in the Asset Basket with the highest Final Asset Performance, provided that if two or more Underlying Assets have the same highest Final Asset Performance, then the Calculation Agent shall determine which of such Underlying Assets shall be the Final Best Performing Asset in its sole and absolute discretion, and such Underlying Asset shall be the Final Best Performing Asset.

"Final Closing Price" means, in respect of an Underlying Asset that is a Share, an Index or an Index-Linked Derivatives Contract, the Reference Price of such Underlying Asset on the Final Reference Date.

"Final Reference Date" means:

- (a) in respect of a Share, the Valuation Date specified to be the "Final Reference Date" in the relevant Final Terms; or
- (b) in respect of an Index or an Index-Linked Derivatives Contract, the Valuation Date specified to be the "Final Reference Date" in the relevant Final Terms.

"Final Set of Averaging Dates" means:

- (a) in respect of a Share, the date specified in the relevant Final Terms as the "Final Set First Averaging Date" for such Share (or, if such date is not a Scheduled Trading Day, the next following Scheduled Trading Day), and each of the Specified Number of Scheduled Trading Days immediately following such date; or
- (b) an Index, the date specified in the relevant Final Terms as the "Final Set First Averaging Date" for such Index (or, if such date is not a Scheduled Trading Day, the next following Scheduled Trading Day), and each of the Specified Number of Scheduled Trading Days immediately following such date.

Each date comprised in the Final Set of Averaging Dates shall be an Averaging Date. In respect of the Final Set of Averaging Dates, the Averaging Date (after any adjustments pursuant to the applicable Underlying Asset Conditions) falling latest in time shall be the **"Last Averaging Date"** in respect of the Final Set of Averaging Dates.

"Final Worst Performing Asset" means the Underlying Asset in the Asset Basket with the lowest Final Asset Performance, provided that if two or more Underlying Assets have the same lowest Final Asset Performance, then the Calculation Agent shall determine which of such Underlying Assets shall be the Final Worst Performing Asset in its sole and absolute discretion, and such Underlying Asset shall be the Final Worst Performing Asset.

"Final Value" means, in respect of an Underlying Asset, either of the following (a) or (b), as specified in the relevant Final Terms:

- (a) the Final Closing Price of the Underlying Asset; or
- (b) the Final Average Price of the Underlying Asset.

"Floor" means an amount specified as such in the relevant Final Terms.

"Index Level" has the meaning given in the Index Linked Conditions.

"Initial Average Price" means:

- (a) in respect of an Underlying Asset that is a Share:
 - (i) if the relevant Final Terms specify "Initial Average Share Price" to be applicable, the product of (A) the arithmetic mean of the Share Price of such Share on each of the Initial Averaging Dates, as determined by the Calculation Agent and (B) the Share Weighting of such Share; or
 - (ii) if the relevant Final Terms specify "Initial Average Closing Share Price" to be applicable, the product of (A) the arithmetic mean of the Closing Share Price of such Share on each of the Initial Averaging Dates, as determined by the Calculation Agent and (B) the Share Weighting of such Share;
- (b) in respect of an Underlying Asset that is an Index:
 - (i) if the relevant Final Terms specify "Initial Average Index Level" to be applicable, the arithmetic mean of the Index Level of such Index on each of the Initial Averaging Dates, as determined by the Calculation Agent; or
 - (ii) if the relevant Final Terms specify "Initial Average Closing Index Level" to be applicable, the arithmetic mean of the Closing Index Level of such Index Level on each of the Initial Averaging Dates, as determined by the Calculation Agent.

"Initial Averaging Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Initial Closing Price" means, in respect of a Share or an Index, the Reference Price of such Underlying Asset on the Initial Reference Date for such Underlying Asset as determined by the Calculation Agent.

"Initial Price" means:

- (a) in respect of a Share, the product of (i) the Share Price of such Share on the Initial Reference Date for such Share as determined by the Calculation Agent and (ii) the Share Weighting of such Share; and
- (b) in respect of an Index, the Index Level of such Index on the Initial Reference Date for such Index as determined by the Calculation Agent.

"Initial Reference Date" means:

- (a) in respect of a Share, the Initial Valuation Date; and
- (b) in respect of an Index, the Initial Valuation Date.

"Initial Valuation Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Initial Value" means, in respect of an Underlying Asset, any of the following (i), (ii), (iii), (iv) or (v) as specified in the relevant Final Terms: (i) the percentage value of the Initial Closing Price of the Underlying Asset specified in the relevant Final Terms, (ii) the percentage value of the Initial Average Price of the Underlying Asset specified in the relevant Final Terms, (iii) the percentage

value of the Initial Price of the Underlying Asset specified in the relevant Final Terms, (iv) the percentage value of the Entry Level of the Underlying Asset specified in the relevant Final Terms, or (v) the amount set forth in the Underlying Asset Table in the relevant Final Terms in the column entitled "Initial Value" in the row corresponding to such Underlying Asset.

"j" means an integer specified in the relevant Final Terms.

"Last Averaging Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Last Initial Averaging Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Last Initial Pricing Date" means the Initial Pricing Date specified as such in the relevant Final Terms.

"Latest Reference Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions,

provided that if the relevant Final Terms specify "Multi-Asset Basket Linked Securities" to be applicable, "Latest Reference Date" means, in respect of an Underlying Asset and an Averaging Reference Date or a Reference Date, such Averaging Reference Date or Reference Date, and in respect of a Multi-Asset Basket and an Averaging Reference Date or a Reference Date (being, for the purposes of this definition, the **"Relevant Reference Date"**):

- (A) if, as a result of the Relevant Reference Date not being a Common Trading Day for one or more Underlying Assets or as a result of the occurrence of a Disrupted Day for one or more Underlying Assets, the Relevant Reference Dates for two or more Underlying Assets fall on different dates, the date corresponding to the Relevant Reference Date which is the latest to occur, as determined by the Calculation Agent; or
- (B) if the Relevant Reference Dates for all of the Underlying Assets fall on the same date (after adjustment, if any, for non-Scheduled Trading Days or Disrupted Days for such Underlying Assets), such same date corresponding to the Relevant Reference Date.

"Local Cap" means an amount specified as such in the relevant Final Terms.

"Local Floor" means an amount specified as such in the relevant Final Terms.

"Maximum Performance" means the Underlying Performance of the Best Performing Underlying.

"Minimum Performance" means the Underlying Performance of the Worst Performing Underlying.

"Multi-Asset Basket" has the meaning given in the Multi-Asset Basket Linked Conditions.

"Max" followed by a series of amounts inside brackets, means whichever is the greater of the amounts separated by a semi-colon inside those brackets.

"Min" followed by a series of amounts inside brackets, means whichever is the lesser of the amounts separated by a semi-colon inside those brackets.

"n" means the number of Underlying Assets in the Asset Basket.

"Number of Relevant Days" means such number of Business Day(s), Clearing System Business Day(s), Scheduled Trading Day(s), or calendar days as specified in the relevant Final Terms.

"Observation Date (closing valuation)" (a) in respect of an Observation Period and a Share, has the meaning given to such term when applied to that Observation Period in the Share Linked Conditions; and (b) in respect of an Observation Period and an Index, has the meaning given to such term when applied to that Observation Period in the Index Linked Conditions, provided that if "Reference Date deemed to be Observation Date (closing valuation)" is specified to apply to such Observation Period in the relevant Final Terms, then each Reference Date or Averaging Reference Date (as applicable) falling in such Observation Period shall be deemed to be an Observation Date (closing valuation).

"Observation Date (intra-day valuation)" (a) in respect of an Observation Period and a Share, has the meaning given to such term when applied to that Observation Period in the Share Linked Conditions; and (b) in respect of an Observation Period and an Index, has the meaning given to such term when applied to that Observation Period in the Index Linked Conditions; provided that if "Reference Price deemed to be Asset Intraday Price" is specified to apply to such Observation Period in the relevant Final Terms, then each Reference Date or Averaging Reference Date (as applicable) falling in such Observation Period shall be deemed to be an Observation Date (intra-day valuation) and the Reference Price of the Underlying Asset on such Reference Date or Averaging Reference Date (as applicable) shall be deemed to be an Asset Intraday Price of the Underlying Asset for such Observation Date (intra-day valuation).

"Observation Period" has the meaning given in the applicable Underlying Asset Conditions.

"P" or **"Participation"** means an amount specified as such in the relevant Final Terms.

"Perf" means, any of the following (a), (b), (c) or (d), as specified in the relevant Final Terms:

- (a) the Underlying Performance;
- (b) the Basket Performance;
- (c) the Maximum Performance; or
- (d) the Minimum Performance.

"Reference Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Replacement Performance" means a percentage value specified as such in the relevant Final Terms.

"Reference Price" means, in respect of any relevant day or date:

- (a) if the Underlying Asset specified in the relevant Final Terms is a Share, the product of (i) the Closing Share Price of the Share for such day and (ii) the Share Weighting for such Share;

- (b) if the Underlying Asset specified in the relevant Final Terms is an Index, the Closing Index Level of the Index for such day; or
- (c) if the Underlying Asset specified in the relevant Final Terms is an Index-Linked Derivatives Contract, the Final Reference Price of the Index-Linked Derivatives Contract on such day.

"Reference Price (Final)" means, in respect of an Underlying Asset, any of the following (a) or (b), if specified in the relevant Final Terms:

- (a) the Final Closing Price of the Underlying Asset;
- (b) the Final Average Price of the Underlying Asset.

"Reference Price (Initial)" means, in respect of an Underlying Asset, any of the following (a), (b), (c), (d), (e) or (f) if specified in the relevant Final Terms:

- (a) the percentage value of the Initial Closing Price of the Underlying Asset specified in the relevant Final Terms;
- (b) the percentage value of the Initial Price of the Underlying Asset specified in the relevant Final Terms;
- (c) the percentage value of the Initial Average Price of the Underlying Asset specified in the relevant Final Terms;
- (d) the percentage value of the Entry Level of the Underlying Asset specified in the relevant Final Terms;
- (e) the amount set forth in the Underlying Asset Table in the relevant Final Terms in the column entitled "Reference Price (Initial)" in the row corresponding to such Underlying Asset; or
- (f) the amount specified to be the Reference Price (Initial) for such Underlying Asset in the relevant Final Terms.

"Reference Value (Final Value)" means, in respect of an Underlying Asset, any of the following if specified in the relevant Final Terms:

- (a) the Final Closing Price of the Underlying Asset; or
- (b) the Final Average Price of the Underlying Asset.

"Reference Value (Initial Value)" means, in respect of an Underlying Asset, any of the following if specified in the relevant Final Terms:

- (a) the percentage value of the Initial Closing Price of such Underlying Asset specified in the relevant Final Terms;
- (b) the percentage value of the Initial Price of such Underlying Asset specified in the relevant Final Terms;
- (c) the percentage value of the Initial Average Price of such Underlying Asset specified in the relevant Final Terms;
- (d) the percentage value of the Entry Level of such Underlying Asset specified in the relevant Final Terms;

- (e) the amount set forth in the Underlying Asset Table in the relevant Final Terms in the column entitled "Reference Value (Initial Value)" in the row corresponding to such Underlying Asset; or
- (f) the amount specified to be the Reference Value (Initial Value) for such Underlying Asset in the relevant Final Terms.

"Scheduled Trading Day":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Share Basket" has the meaning given in the Share Linked Conditions.

"Share Price" has the meaning given in the Share Linked Conditions.

"Strike" means an amount specified as such in the relevant Final Terms.

"Trade Date" means the Strike Date, unless otherwise specified in the relevant Final Terms.

"Trigger Cap" means an amount specified as such in the relevant Final Terms.

"Trigger Floor" means an amount specified as such in the relevant Final Terms.

"Underlying Asset Table" means the table specified as such in the relevant Final Terms.

"Underlying Performance" means, in respect of an Underlying Asset, an amount calculated by the Calculation Agent in accordance with the following formula:

$$\frac{\text{Reference Price (Final)}}{\text{Reference Price (Initial)}}$$

"Valuation Date":

- (a) in respect of a Share, has the meaning given in the Share Linked Conditions; and
- (b) in respect of an Index, has the meaning given in the Index Linked Conditions.

"Weighted Performance" means, in respect of each Underlying Asset in the Asset Basket, an amount calculated by the Calculation Agent in accordance with the following formula:

$$\text{Weighting} \times \frac{\text{Reference Price (Final)}}{\text{Reference Price (Initial)}}$$

"Weighting" means an amount specified as such in the relevant Final Terms, or if an Underlying Asset Table is set out in the relevant Final Terms, in respect of each Underlying Asset set forth in the Underlying Asset Table in the column entitled "Underlying Asset", the amount set forth in the column entitled "Weighting" in the row corresponding to such Underlying Asset, provided that, if no weighting is specified in the relevant Final Terms, then the Weighting in respect of each Underlying Asset shall be deemed to be the quotient of (i) one divided by (ii) the number of Underlying Assets in the Asset Basket.

"Weighted Performance (Basket Value)" means, in respect of each Underlying Asset in the Asset Basket, an amount calculated by the Calculation Agent in accordance with the following formula:

$$\text{Weighting} \times \frac{\text{Reference Value (Final Value)}}{\text{Reference Value (Initial Value)}}$$

"Worst Performing Underlying" means the Underlying Asset with the lowest Underlying Performance, as determined by the Calculation Agent. In the event that two or more Underlying Assets have the same lowest Underlying Performance, then the Calculation Agent shall determine in its sole and absolute discretion which of such Underlying Assets shall be the Worst Performing Underlying, and such Underlying Asset as so selected shall be deemed the Worst Performing Underlying.

5.2 Interpretation

- (a) Each reference in these Payout Conditions to "each Note" shall be deemed to be a reference to "each principal amount of each Note equal to the Minimum Denomination".
- (b) Capitalised terms used but not defined in these Payout Conditions will have the meanings given to them in the General Conditions.
- (c) Any reference to a "date" in the Conditions shall be construed as a reference to a particular Valuation Date, Initial Valuation Date, Averaging Date, Initial Averaging Date or any other type of date that is defined in the Conditions (as the context may require), if so specified in the relevant Final Terms.

TERMS AND CONDITIONS OF THE NOTES – SHARE LINKED CONDITIONS

Prospective purchasers of, and investors in, Notes that are Share Linked Notes should refer to the section entitled "*Risk Factors – Risks Related to the Notes*" in the Base Prospectus for risk factors in relation to Notes, and in particular, to the section entitled "*Risk Factors – Risks associated with particular types of Underlying Assets – Risks associated with Shares as Underlying Assets*" in the Base Prospectus for specific risk factors relating to Share Linked Notes.

These Share Linked Conditions shall apply to Notes for which the relevant Final Terms specify that the Share Linked Notes are applicable.

1. CONSEQUENCES OF NON-SCHEDULED TRADING DAYS, NON-COMMON SCHEDULED TRADING DAYS OR DISRUPTED DAYS

1.1 Single Share and Reference Dates

- (a) This provision shall apply where the Share Linked Notes are specified in the relevant Final Terms to relate to a single Share and such Final Terms specify "Single Share and Reference Dates" to be applicable to the Share (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only).
- (b) Except where the relevant Final Terms specifies "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Reference Date in respect of such Share is not a Scheduled Trading Day or is a Disrupted Day, then the Reference Date for such Share shall be the first succeeding Scheduled Trading Day that the Calculation Agent determines is not a Disrupted Day in respect of such Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Share immediately following such Scheduled Reference Date is a Disrupted Day for such Share. In that case:
 - (i) that last consecutive Scheduled Trading Day shall be deemed to be the Reference Date for such Share, notwithstanding the fact that such day is a Disrupted Day for such Share; and
 - (ii) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Reference Date).
- (c) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for such Share shall be the Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Scheduled Trading Day or is a Disrupted Day for such Share, and the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on such Reference Date (and such determination by the Calculation Agent shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Reference Date).

1.2 Single Share and Averaging Reference Dates

- (a) This provision shall apply where the Share Linked Notes are specified in the relevant Final Terms to relate to a single Share and such Final Terms specify "Single Share and Averaging Reference Dates" to be applicable to the Share (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply

to such Averaging Reference Dates only), and, the Calculation Agent determines that any Scheduled Averaging Reference Date in respect of such Share is not a Scheduled Trading Day or is a Disrupted Day.

- (b) If the relevant Final Terms specify "Omission" to be applicable, then such Scheduled Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the Averaging Reference Date for such Share shall be the first succeeding Scheduled Trading Day following the final Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day in respect of such Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Share immediately following such final Scheduled Averaging Reference Date is a Disrupted Day for such Share. In that case:
 - (i) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Share, notwithstanding the fact that such day is a Disrupted Day for such Share; and
 - (ii) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (c) If the relevant Final Terms specify "Postponement" to be applicable, then the relevant Averaging Reference Date for such Share shall be the first succeeding Scheduled Trading Day following such Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day for such Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Share immediately following such Scheduled Averaging Reference Date is a Disrupted Day for such Share. In that case:
 - (i) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Share, notwithstanding the fact that such day is a Disrupted Day for such Share; and
 - (ii) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Share Linked Condition 1.2 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Share Linked Condition 1.2.

- (d) If the relevant Final Terms specify "Modified Postponement" to be applicable, then the relevant Averaging Reference Date shall be the first succeeding Valid Date. If the first succeeding Valid Date has not occurred as of the relevant Valuation Time on the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date that, but for the occurrence of another

Averaging Reference Date or a Disrupted Day for such Share, would have been the relevant Averaging Reference Date, then:

- (i) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Share, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for such Share; and
 - (ii) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (e) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for such Share shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day for such Share, and the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on such Averaging Reference Date (and such determination by the Calculation Agent shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (f) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day in respect of such Share and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

1.3 Share Basket and Reference Dates – Individual Scheduled Trading Day and Individual Disrupted Day

- (a) This provision shall apply where the Share Linked Notes are specified in the relevant Final Terms to relate to a Share Basket and such Final Terms specify "Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day)" to be applicable to the Shares (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only).
- (b) Except where the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Reference Date in respect of any Share in the Share Basket is not a Scheduled Trading Day or is a Disrupted Day for such Share, then:
 - (i) if the Calculation Agent determines that such Scheduled Reference Date for a Share is a Scheduled Trading Day that is not a Disrupted Day, then the Reference Date for such Share shall be such Scheduled Reference Date; and
 - (ii) if the Calculation Agent determines that such Scheduled Reference Date for a Share is not a Scheduled Trading Day or is a Disrupted Day, then the Reference Date for such Share shall be the first succeeding Scheduled Trading Day which the Calculation Agent determines is not a Disrupted Day for such Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Reference Date is a Disrupted Day for such Share. In that case:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Reference Date for such Share, notwithstanding the fact that such day is a Disrupted Day for such Share; and

- (B) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Share Price at the relevant Valuation Time in respect of such Reference Date).
- (c) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for each Share in the Share Basket shall be such Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Scheduled Trading Day or is a Disrupted Day for any Share, and the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on such Reference Date (and such determination by the Calculation Agent shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Reference Date).

1.4 Share Basket and Averaging Reference Dates – Individual Scheduled Trading Day and Individual Disrupted Day

- (a) This provision shall apply where the Share Linked Notes are specified in the relevant Final Terms to relate to a Share Basket and such Final Terms specify "Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day)" to be applicable to the Shares (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply to such Averaging Reference Dates only), and, if the Calculation Agent determines that any Scheduled Averaging Reference Date in respect of any Share in the Share Basket is not a Scheduled Trading Day or is a Disrupted Day for such Share.
- (b) If the relevant Final Terms specify "Omission" to be applicable, such Scheduled Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date for each Share in the Share Basket, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the sole Averaging Reference Date for such Shares shall be determined by reference to the final Scheduled Averaging Reference Date as follows:
 - (i) for each Share in the Share Basket for which the Calculation Agent determines that such final Scheduled Averaging Reference Date is a Scheduled Trading Day that is not a Disrupted Day, the Averaging Reference Date for such Share shall be such final Scheduled Averaging Reference Date; and
 - (ii) for each Share in the Share Basket for which the Calculation Agent determines that such final Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day, then the Averaging Reference Date for such Share shall be the first succeeding Scheduled Trading Day following such final Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day in respect of such Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Share immediately following such final Scheduled Averaging Reference Date is a Disrupted Day for such Share. In that case:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Share, notwithstanding the fact that such day is a Disrupted Day for such Share; and
 - (B) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this

paragraph (B) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date);

- (c) If the relevant Final Terms specify "Postponement" to be applicable, then:
- (i) for each Share in the Share Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is a Scheduled Trading Day that is not a Disrupted Day, the Averaging Reference Date for such Share shall be such Scheduled Averaging Reference Date; and
 - (ii) for each Share in the Share Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day, then the Averaging Reference Date for such Share shall be the first succeeding Scheduled Trading Day following such Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day in respect of such Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Share immediately following such Scheduled Averaging Reference Date is a Disrupted Day for such Share. In that case:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Share, notwithstanding the fact that such day is a Disrupted Day for such Share; and
 - (B) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Share Linked Condition 1.4 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Share Linked Condition 1.4.

- (d) If the relevant Final Terms specify "Modified Postponement" to be applicable, then:
- (i) for each Share in the Share Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is a Scheduled Trading Day that is not a Disrupted Day, the Averaging Reference Date for such Share shall be such Scheduled Averaging Reference Date; and
 - (ii) for each Share in the Share Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day, the relevant Averaging Reference Date shall be the first succeeding Valid Date. If the first succeeding Valid Date has not occurred as of the relevant Valuation Time on the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date that, but for the occurrence of another Averaging Reference Date or a Disrupted Day for such Share, would have been the relevant Averaging Reference Date, then:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Share, notwithstanding the fact that such

day is already an Averaging Reference Date or is a Disrupted Day for such Share; and

- (B) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (e) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Share in the Share Basket shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day for any Share, and the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on such Averaging Reference Date (and such determination by the Calculation Agent pursuant to this paragraph (e) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (f) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day in respect of any Share in the Share Basket and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

1.5 Share Basket and Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day

- (a) Where the Share Linked Notes are specified in the relevant Final Terms to relate to a Share Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day)" to be applicable to the Shares of such Share Basket (each such Share a "**Common Basket Share**" for the purposes of this Share Linked Condition 1.5) (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only), the following provisions shall apply.
- (b) If the Calculation Agent determines that any Scheduled Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Share, then the Reference Date for each Common Basket Share shall be such Scheduled Reference Date;
- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable, if (I) the Calculation Agent determines that any Scheduled Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Shares, or (II) the Calculation Agent determines that any Scheduled Reference Date is not a Scheduled Trading Day for any Common Basket Share, the Reference Date for each Common Basket Share shall be the first succeeding Common Scheduled Trading Day following such Scheduled Reference Date, provided that if such Common Scheduled Trading Day is a Disrupted Day for one or more Common Basket Shares, then, in respect of (I) and (II), then the following provisions shall apply:
 - (i) if the Calculation Agent determines that such Common Scheduled Trading Day is not a Disrupted Day for a Common Basket Share, then the Reference Date for such Common Basket Share shall be such Common Scheduled Trading Day;
 - (ii) if the Calculation Agent determines that such Common Scheduled Trading Day is a Disrupted Day for a Common Basket Share, then the Reference Date for such Common Basket Share shall be the first succeeding Scheduled Trading Day which the

Calculation Agent determines is not a Disrupted Day for such Common Basket Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Common Scheduled Trading Day is a Disrupted Day for such Common Basket Share. In that case:

- (A) that last consecutive Scheduled Trading Day shall be deemed to be the Reference Date for such Common Basket Share, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Share; and
 - (B) the Calculation Agent shall determine its good faith estimate of the value for such Common Basket Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Share Price for such Common Basket Share at the relevant Valuation Time in respect of the relevant Reference Date).
- (d) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for each Common Basket Share shall be the Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for any Common Basket Share, and the Calculation Agent shall determine its good faith estimate of the value for such Common Basket Share as of the relevant Valuation Time on such Reference Date (and such determination by the Calculation Agent shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Reference Date).

1.6 Share Basket and Averaging Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day

- (a) Where the Share Linked Notes are specified in the relevant Final Terms to relate to a Share Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day)" to be applicable to the Shares of such Share Basket (each such Share being a "Common Basket Share" for the purposes of this Share Linked Condition 1.6) (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply to such Averaging Reference Dates only), the following provisions shall apply.
- (b) If the Calculation Agent determines that any Scheduled Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Share, then the Averaging Reference Date for each Common Basket Share shall be such Scheduled Averaging Reference Date;
- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for one or more Common Basket Shares, the following shall apply.
 - (i) If the relevant Final Terms specify "Omission" to be applicable, such Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date for each Common Basket Share, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the sole Averaging Reference Date for such Common Basket Shares shall be determined by reference to the final Scheduled Averaging Reference Date as follows:

- (A) if the Calculation Agent determines that the final Scheduled Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Share, then the Averaging Reference Date for each Common Basket Share shall be the final Scheduled Averaging Reference Date; and
- (B) if (1) the Calculation Agent determines that such final Scheduled Averaging Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Shares, or (2) the Calculation Agent determines that such final Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket Share, in which case the sole Averaging Reference Date for each Common Basket Share shall be the first succeeding Common Scheduled Trading Day following such final Scheduled Averaging Reference Date (the final Scheduled Averaging Reference Date, following adjustment of such date owing to such final Scheduled Averaging Reference Date not being a Common Scheduled Trading Day, if applicable, the **"Final Averaging Reference Date"**), provided that if such Final Averaging Reference Date is a Disrupted Day for one or more Common Basket Shares, then, in respect of (1) and (2), the following provisions shall apply:
 - (I) If the Calculation Agent determines that the Final Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for a Common Basket Share, then the sole Averaging Reference Date for such Common Basket Share shall be the Final Averaging Reference Date;
 - (II) If the Calculation Agent determines that the Final Averaging Reference Date is a Common Scheduled Trading Day that is a Disrupted Day for a Common Basket Share, then the sole Averaging Reference Date for such Common Basket Share shall be the first succeeding Scheduled Trading Day following the Final Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day for such Common Basket Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following the Final Averaging Reference Date is a Disrupted Day for such Common Basket Share. In that case:
 - (1) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Share, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Share; and
 - (2) the Calculation Agent shall determine its good faith estimate of the value for such Common Basket Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (2) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (ii) If the relevant Final Terms specify "Postponement" to be applicable, then if (1) the Calculation Agent determines that such Scheduled Averaging Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Shares, or (2) the Calculation Agent determines that such Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket

Share, in which case the Averaging Reference Date for each Common Basket Share shall be the first succeeding Common Scheduled Trading Day following such Scheduled Averaging Reference Date (such Scheduled Averaging Reference Date, following adjustment of such date owing to such Scheduled Averaging Reference Date not being a Common Scheduled Trading Day, if applicable, the "**Adjusted Averaging Reference Date**"), provided that if such Adjusted Averaging Reference Date is a Disrupted Day for one or more Common Basket Shares, then, in respect of (1) and (2), the following provisions shall apply:

- (A) if the Calculation Agent determines that the Adjusted Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for a Common Basket Share, then the Averaging Reference Date for such Common Basket Share shall be the Adjusted Averaging Reference Date; and
- (B) if the Calculation Agent determines that the Adjusted Averaging Reference Date is a Common Scheduled Trading Day that is a Disrupted Day for a Common Basket Share, then the Averaging Reference Date for such Common Basket Share shall be the first succeeding Scheduled Trading Day following the Adjusted Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day for such Common Basket Share, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following the Adjusted Averaging Reference Date is a Disrupted Day for such Common Basket Share. In that case:
 - (I) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Share, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Share; and
 - (II) the Calculation Agent shall determine its good faith estimate of the value for such Common Basket Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (II) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Share Linked Condition 1.6 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Share Linked Condition 1.6.

- (iii) If the relevant Final Terms specify "Modified Postponement" to be applicable, then if (1) the Calculation Agent determines that such Scheduled Averaging Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Shares, or (2) such Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket Share, in which case the Averaging Reference Date for each Common Basket Share shall be the first succeeding Common Scheduled Trading Day on which another Averaging Reference Date does not or is not deemed to occur immediately following such Scheduled Averaging Reference Date (such Scheduled Averaging Reference Date, following adjustment of such date owing to such Scheduled Averaging Reference Date not being a Common Scheduled Trading Day,

if applicable, the "**Adjusted Averaging Reference Date**"), provided that if such Adjusted Averaging Reference Date is a Disrupted Day for one or more Common Basket Shares, then, in respect of (1) and (2), the following provisions shall apply:

- (A) if the Calculation Agent determines that such Adjusted Averaging Reference Date is not a Disrupted Day for a Common Basket Share, then the Averaging Reference Date for such Common Basket Share shall be such Adjusted Averaging Reference Date; and
- (B) if the Calculation Agent determines that such Adjusted Averaging Reference Date is a Disrupted Day for a Common Basket Share, then the relevant Averaging Reference Date for such Common Basket Share shall be the first succeeding Valid Date for such Common Basket Share. If the first succeeding Valid Date for such Common Basket Share has not occurred as of the relevant Valuation Time on the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Adjusted Averaging Reference Date, then:
 - (I) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Share, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for such Common Basket Share; and
 - (II) the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (II) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (iv) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Common Basket Share shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for any Common Basket Share, and the Calculation Agent shall determine its good faith estimate of the value for such Common Basket Share as of the relevant Valuation Time on such Averaging Reference Date (and such determination by the Calculation Agent pursuant to this paragraph (iv) shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).
- (d) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day in respect of any Common Basket Share and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

1.7 **Share Basket and Reference Dates – Common Scheduled Trading Day and Common Disrupted Day**

- (a) Where the Share Linked Notes are specified in the relevant Final Terms to relate to a Share Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable to the Shares of such Share Basket (each such Share being a "**Common Basket Share**" for the purposes of this Share Linked Condition 1.7) (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only), the following provisions shall apply.

- (b) If the Calculation Agent determines that any Scheduled Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Share, then the Reference Date for each Common Basket Share shall be such Scheduled Reference Date;
- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for any Common Basket Share, then the Reference Date for each Common Basket Share shall be the first succeeding Common Scheduled Trading Day following such Scheduled Reference Date which the Calculation Agent determines is not a Disrupted Day for any Common Basket Share, unless the Calculation Agent determines that each of the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Reference Date is a Disrupted Day for one or more Common Basket Shares. In that case:
 - (i) that last consecutive Common Scheduled Trading Day shall be deemed to be such Reference Date for each Common Basket Share, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Shares (each such Common Basket Share being an "**Affected Common Basket Share**" for such Reference Date);
 - (ii) for each Common Basket Share other than an Affected Common Basket Share, the relevant Share Price shall be determined by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and
 - (iii) for each Affected Common Basket Share, the Calculation Agent shall determine its good faith estimate of the value for such Affected Common Basket Share as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (iii) shall be deemed to be the Share Price at the relevant Valuation Time of such Affected Common Basket Share in respect of such Reference Date).
- (d) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for each Common Basket Share shall be the Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Scheduled Trading Day or is a Disrupted Day for any Common Basket Share, and the Calculation Agent shall determine its good faith estimate of the value for such Common Basket Share as of the relevant Valuation Time on such Reference Date (and such determination by the Calculation Agent shall be deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Reference Date).

1.8 Share Basket and Averaging Reference Dates – Common Scheduled Trading Day and Common Disrupted Day

- (a) Where the Share Linked Notes are specified in the relevant Final Terms to relate to an Share Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable to the Shares in such Share Basket (each such Share being a "**Common Basket Share**" for the purposes of this Share Linked Condition 1.8) (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply to such Averaging Reference Dates only), the following provisions shall apply.
- (b) If the Calculation Agent determines that any Scheduled Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Share, then the Averaging Reference Date for each Common Basket Share shall be such Scheduled Averaging Reference Date.

- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket Share or is a Common Scheduled Trading Day and a Disrupted Day for any Common Basket Share, the following provisions shall apply.
- (i) If the relevant Final Terms specify "Omission" to be applicable, such Scheduled Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date for each Common Basket Share, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the sole Averaging Reference Date for each Common Basket Share shall be the first succeeding Common Scheduled Trading Day following such final Scheduled Averaging Reference Date which the Calculation Agent determines is not a Disrupted Day for any Common Basket Share, unless the Calculation Agent determines that each of the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such final Scheduled Averaging Reference Date is a Disrupted Day for one or more Common Basket Shares. In that case:
- (A) that last consecutive Common Scheduled Trading Day shall be deemed to be the sole Averaging Reference Date for each Common Basket Share, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Shares (each such Common Basket Share being an "**Affected Common Basket Share**" for such Averaging Reference Date);
- (B) for each Common Basket Share other than an Affected Common Basket Share, the relevant Share Price shall be determined by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and
- (C) for each Affected Common Basket Share, the Calculation Agent shall determine its good faith estimate of the value for such Affected Common Basket Share as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (C) shall be deemed to be the Share Price at the relevant Valuation Time of such Affected Common Basket Share in respect of the relevant Averaging Reference Date).
- (ii) If the relevant Final Terms specify "Postponement" to be applicable, then the Averaging Reference Date for each Common Basket Share shall be the first succeeding Common Scheduled Trading Day following such Scheduled Averaging Reference Date which the Calculation Agent determines is not a Disrupted Day for any Common Basket Share, unless the Calculation Agent determines that each of the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date is a Disrupted Day for one or more Common Basket Shares. In that case:
- (A) that last consecutive Common Scheduled Trading Day shall be deemed to be the Averaging Reference Date for each Common Basket Share, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Shares (each such Common Basket Share being an "**Affected Common Basket Share**" for such Averaging Reference Date);
- (B) for each Common Basket Share other than an Affected Common Basket Share, the relevant Share Price shall be determined by reference to the relevant screen

pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and

- (C) for each Affected Common Basket Share, the Calculation Agent shall determine its good faith estimate of the value for such Affected Common Basket Share as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (C) shall be deemed to be the Share Price at the relevant Valuation Time of such Affected Common Basket Share in respect of the relevant Averaging Reference Date).

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Share Linked Condition 1.8 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Share Linked Condition 1.8.

- (iii) If the relevant Final Terms specify "Modified Postponement" to be applicable, then the Averaging Reference Date for each Common Basket Share shall be the first Common Valid Date immediately following such Scheduled Averaging Reference Date. If the first succeeding Common Valid Date has not occurred as of the relevant Valuation Time on the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date, then:
 - (A) that last consecutive Common Scheduled Trading Day shall be deemed to be the Averaging Reference Date for each Common Basket Share, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for one or more Common Basket Shares (each such Common Basket Share being an "**Affected Common Basket Share**" for such Averaging Reference Date);
 - (B) for each Common Basket Share other than an Affected Common Basket Share, the relevant Share Price shall be determined by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and
 - (C) for each Affected Common Basket Share, the Calculation Agent shall determine its good faith estimate of the value for such Affected Common Basket Share as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (C) shall be deemed to be the Share Price at the relevant Valuation Time of such Affected Common Basket Share in respect of the relevant Averaging Reference Date).
- (d) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Common Basket Share shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for any Common Basket Share, and the Calculation Agent shall determine its good faith estimate of the value for such Common Basket Share as of the relevant Valuation Time on such Averaging Reference Date (and such determination by the Calculation Agent pursuant to this paragraph (d) shall be

deemed to be the Share Price at the relevant Valuation Time in respect of the relevant Averaging Reference Date).

- (e) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day in respect of any Common Basket Share and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

2. FALLBACK VALUATION DATE

- (a) Notwithstanding any other terms of these Share Linked Conditions, if a Fallback Valuation Date is specified in the relevant Final Terms to be applicable to any Reference Date or Averaging Reference Date (any such date being, for the purposes of this Share Linked Condition 2, a "**Relevant Date**") for a Share, and if, following adjustment of such Relevant Date pursuant to Share Linked Condition 1 (*Consequences of Non-Scheduled Trading Days, Non-Common Scheduled Trading Days or Disrupted Days*) above (for the purposes of this Share Linked Condition 2, an "**Affected Share**") the Relevant Date would otherwise fall after the specified Fallback Valuation Date in respect of such Affected Share, then such Fallback Valuation Date shall be deemed to be such Relevant Date for such Affected Share.
- (b) If such Fallback Valuation Date is not a Scheduled Trading Day or a Common Scheduled Trading Day or is a Disrupted Day in respect of such Affected Share, as the case may be, then the Calculation Agent shall determine its good faith estimate of the value for such Share as of the relevant Valuation Time on such Fallback Valuation Date (and such determination by the Calculation Agent pursuant to this Share Linked Condition 2 shall be deemed to be the Share Price at the Valuation Time in respect of the relevant Reference Date or Averaging Reference Date).

3. ADJUSTMENTS

3.1 Occurrence of a Potential Adjustment Event or adjustment to options on a Related Exchange

Following the determination by the Calculation Agent that a Potential Adjustment Event has occurred or following any adjustment to the settlement terms of listed options or futures contracts on the relevant Shares traded on a Related Exchange, the Calculation Agent will determine whether such Potential Adjustment Event or adjustment to the settlement terms of listed options or futures contracts on the relevant Shares traded on a Related Exchange has a diluting or concentrative effect on the theoretical value of the Shares and, if so, will (a) make the corresponding adjustment, if any, to any one or more of the terms of the Share Linked Notes, including without limitation, any variable or term relevant to the settlement or payment under such Share Linked Notes, as the Calculation Agent determines appropriate to account for that diluting or concentrative effect (provided that no adjustments will be made to account solely for changes in volatility, expected dividends, stock loan rate, or liquidity relative to such Shares), and (b) determine the effective date of that adjustment. The Calculation Agent may, but need not, determine the appropriate adjustment by reference to the adjustment in respect of such Potential Adjustment Event made by an options exchange to options on the Shares traded on that options exchange.

3.2 Occurrence of an Extraordinary Event

If an Extraordinary Event occurs in relation to any Share, the consequences shall be as set out in paragraphs (a) to (d) below (provided that, if a Share is a share of an Exchange Traded Fund, Share Linked Condition 6 (*Delisting, Discontinuance or Modification of a Share that is a share of an Exchange Traded Fund*) shall apply in addition to the paragraphs (a) to (d) below):

- (a) The Calculation Agent may determine the appropriate adjustment, if any, to be made to any one or more of the terms of the Share Linked Notes, including without limitation, any variable or term relevant to the payment under the Share Linked Notes, as the Calculation Agent determines appropriate to account for the Extraordinary Event and determine the effective date of that adjustment. The relevant adjustments may include, without limitation, adjustments to account for changes in volatility, expected dividends, stock loan rate or liquidity relevant to the Shares or to the Share Linked Notes. The Calculation Agent may (but need not) determine the appropriate adjustment by reference to the adjustment in respect of such Extraordinary Event made by any Options Exchange to options on the Shares traded on that Options Exchange.
- (b) Following each adjustment to the settlement terms of options on the Shares traded on any Options Exchange, the Calculation Agent will make the appropriate adjustment, if any, to any one or more of the terms of the Share Linked Notes, including without limitation, any variable or term relevant to the payment under the Share Linked Notes, as the Calculation Agent determines appropriate, which adjustment will be effective as of the date determined by the Calculation Agent to be the effective date of the corresponding adjustment made by the Options Exchange. If options on the Shares are not traded on the Options Exchange, the Calculation Agent will make such adjustment, if any, to any one or more of the terms of the Share Linked Notes, including without limitation, any variable or term relevant to the payment under the Share Linked Notes, as the Calculation Agent determines appropriate, with reference to the rules of and precedents (if any) set by the Options Exchange to account for the Extraordinary Event that in the determination of the Calculation Agent would have given rise to an adjustment by the Options Exchange if such options were so traded.
- (c) The Issuer shall redeem all, but not some only, of the Share Linked Notes by giving notice to Holders in accordance with General Condition 30 (*Notices*). If the Share Linked Notes are so redeemed in whole, the Issuer will pay to each Holder in respect of each Share Linked Note held by such Holder an amount equal to the applicable Early Redemption Amount of such Share Linked Note, as determined by the Calculation Agent. Payments will be made in such manner as shall be notified to the Holders in accordance with General Condition 30 (*Notices*).
- (d) If the relevant Final Terms specify "Extraordinary Event – Share Substitution" to be applicable upon the occurrence of an Extraordinary Event, then on or after the relevant Merger Date or Tender Offer Date or the date of the Delisting, Insolvency, Nationalisation, or where the Share is a share of an Exchange Traded Fund, NAV Publication Suspension, as the case may be, the Issuer shall require the Calculation Agent to adjust the Shares or Share Basket, as the case may be, to include shares selected by it (the "**Substitute Shares**") in place of the Shares (the "**Affected Share(s)**") which are affected by such Extraordinary Event, and such Substitute Shares and their issuer will be deemed to be "**Shares**" and a "**Share Issuer**" for the purposes of these Share Linked Conditions, respectively, and the Calculation Agent may make such adjustment, if any, to any one or more of the terms of the Share Linked Notes, including without limitation, any variable or term relevant to the payment under the Share Linked Notes, as the Calculation Agent determines appropriate.
- (e) For the avoidance of doubt, such Substitute Shares may include Depositary Receipts and/or shares of Exchange Traded Funds. In this regard:
 - (i) such substitution and the relevant adjustment to the terms of the Share Linked Notes will be deemed to be effective as of the date determined by the Calculation Agent (the "**Substitution Date**") which may, but need not, be the Merger Date or Tender Offer Date or the date of the Delisting, Insolvency or Nationalisation or, where the Share is a share of an Exchange Traded Fund, as specified in the relevant Final Terms, NAV Publication Suspension (as the case may be);

- (ii) the weighting of each Substitute Share in the relevant Share Basket, if applicable, will be equal to the weighting of the relevant Affected Share, unless otherwise determined by the Calculation Agent;
- (iii) if a Merger Event or a Tender Offer occurs between two or more Shares of the relevant Share Basket, if applicable, Share Substitution will apply; and
- (iv) in order to be selected as a Substitute Share, each relevant share must be a share which:
 - (A) is not already included in the Share Basket;
 - (B) belongs to a similar economic sector as the Affected Share; and
 - (C) is of comparable market capitalisation, international standing, and exposure as the Affected Share,

in each case, as determined by the Calculation Agent, provided that if a Merger Event or Tender Offer has occurred in respect of the Affected Share, the Calculation Agent may determine the Substitute Share to be the shares of the relevant successor to the issuer of such Affected Shares following such Merger Event or Tender Offer as determined by the Calculation Agent acting in good faith and in a commercially reasonable manner.

3.3 Occurrence of a Change in Law (Increased Cost)

If "Change in Law (Increased Cost)" is specified as being applicable in the relevant Final Terms, following the determination by the Calculation Agent that a Change in Law (Increased Cost) has occurred, the Calculation Agent may take one of the following actions:

- (a) Determine the appropriate adjustment, if any, to be made to any one or more of the terms of the Share Linked Notes, including without limitation, any variable or term relevant to the payment under such Share Linked Notes, as the Calculation Agent determines appropriate to account for the Change in Law (Increased Cost), and determine the effective date of that adjustment.
- (b) Direct the Issuer to redeem all, but not some only, of the Share Linked Notes by giving notice to Holders in accordance with General Condition 30 (*Notices*). If the Share Linked Notes are so redeemed in whole, the Issuer will pay to each Holder in respect of each Share Linked Note held by such Holder an amount equal to the applicable Early Redemption Amount of such Share Linked Note, as determined by the Calculation Agent. Payments will be made in such manner as shall be notified to the Holders in accordance with General Condition 30 (*Notices*).

3.4 Ordinary Dividend Adjustment

For any Series of Share Linked Notes for which "Ordinary Dividend Adjustment" is specified as applicable in the relevant Final Terms, following the determination by the Calculation Agent that the Ordinary Dividend Variation for a Dividend Period in respect of a Share is not zero, the Calculation Agent will adjust the Share Weighting of that Share in accordance with the following:

$$\text{Share Weighting (Adjusted)} = \text{Share Weighting (Current)} \times \frac{\text{CSP}}{\text{CSP} - \text{Ordinary Dividend Variation}}$$

where:

"**CSP**" means the Closing Share Price for the relevant Share on the Scheduled Trading Day immediately prior to the relevant Ex Dividend Date for the Gross Cash Dividend that is the subject of the Ordinary Dividend Variation;

"**Ordinary Dividend Variation**" means, in respect of a Dividend Period and a Share, the amount (which may be negative) equal to the difference between (a) the aggregate of the Actual Dividends for such Dividend Period and (b) the aggregate of the Contractual Dividends for such Dividend Period;

"**Share Weighting (Adjusted)**" means the Share Weighting for the relevant Share immediately following adjustment by the Calculation Agent in accordance with this Share Linked Condition 3.4; and

"**Share Weighting (Current)**" means the Share Weighting for the relevant Share prior to adjustment by the Calculation Agent in accordance with this Share Linked Condition 3.4.

4. CORRECTION OF SHARE PRICE

If the relevant Final Terms specify that "Correction of Share Price" to be applicable for a relevant Share, then, in the event that any Share Price published on the Exchange on any date which is utilised for any calculation or determination is subsequently corrected and the correction is published by the Exchange within one Settlement Cycle after the original publication, the Calculation Agent will make any determination or determine the amount that is payable or deliverable as a result of that correction, and, to the extent necessary, will adjust any relevant terms of the Share Linked Notes to account for such correction, provided that, if a Correction Cut-off Date is applicable for a relevant Share for any relevant date, corrections published after such Correction Cut-off Date will be disregarded by the Calculation Agent for the purposes of determining or calculating any relevant amount, and/or whether any event specified in the Conditions has occurred.

5. DEPOSITARY RECEIPTS PROVISIONS

5.1 Application of Depositary Receipts Provisions

- (a) In relation to any Share Linked Notes to which these Share Linked Conditions apply and for which the relevant Final Terms specify that "Depositary Receipts Provisions" to be applicable, each reference in these Share Linked Conditions to "**Share**" and "**Shares**" shall be construed as a reference to "**Depositary Receipt**" and "Depositary Receipts", except as modified by the provisions of, and the terms and expressions defined in, this Share Linked Condition 5.
- (b) The following terms shall have the following meanings in relation to Depositary Receipts:
 - (i) "**Deposit Agreement**" means the agreement or other instrument constituting the Depositary Receipts, as from time to time amended or supplemented in accordance with its terms;
 - (ii) "**Depositary**" means the depositary of the Depositary Receipts appointed as such in under the terms of the Deposit Agreement or any successor depositary thereunder;
 - (iii) "**Depositary Receipts**" means the depositary receipts as specified in the relevant Final Terms;
 - (iv) "**Share Company**" means (A) both the Depositary and the Underlying Share Issuer in respect of the Depositary Receipts, and (B) for all other purposes in relation to the Share Linked Notes, the Depositary;

- (v) **"Underlying Shares"** means such shares of the Underlying Share Issuer as specified in the relevant Final Terms, unless "As specified in Share Linked Condition 5.1(b)" is specified in the relevant Final Terms, in which case **"Underlying Shares"** means, in respect of a Depositary Receipt, the shares or securities which such Depositary Receipt represents; and
- (vi) **"Underlying Share Issuer"** shall be as specified in the relevant Final Terms, unless "As specified in Share Linked Condition 5.1(b)" is specified in the relevant Final Terms, in which case **"Underlying Share Issuer"** means, in respect of a Depositary Receipt, the issuer or issuers of the Underlying Shares of such Depositary Receipt.
- (c) The definition of **"Insolvency"** shall be construed in relation to the Depositary Receipts as if references herein to the Depositary Receipts of the Share Company were references to the Underlying Share.
- (d) The definition of **"Market Disruption Event"** shall include, in relation to the Depositary Receipts, the occurrence of a Market Disruption Event in relation to the Underlying Share, and, only for the purpose of determining whether a Market Disruption Event has occurred in relation to an Underlying Share, each reference in these Share Linked Conditions to **"Share"** or **"Shares"** shall be construed as a reference to **"Underlying Share"** or **"Underlying Shares"**, respectively. In addition:
 - (i) **"Exchange"** means, in respect of each Underlying Share, each exchange or quotation system in respect of the Underlying Shares specified as such in the relevant Final Terms for such Underlying Shares, unless "As specified in Share Linked Condition 5.1(d)" is specified in the relevant Final Terms, in which case **"Exchange"** means, in respect of each Depositary Receipt, the primary exchange or quotation system on which such Underlying Share is traded, as determined by the Calculation Agent, and in each case, any successor to such exchange or quotation system or any substitute exchange or quotation system to which trading in such Underlying Shares has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to such Underlying Shares on such temporary substitute exchange or quotation system as on the original Exchange).
 - (ii) **"Related Exchange"** means, in respect of each Underlying Share, each exchange or quotation system in respect of the Underlying Shares, if any, specified as such in the relevant Final Terms, unless "As specified in Share Linked Condition 5.1(d)" is specified in the relevant Final Terms, in which case **"Related Exchange"** means, in respect of each Depositary Receipt, All Exchanges, as if the Underlying Share corresponding to such Depositary Receipt were a Share, and in each case, any successor to such exchange or quotation system or any substitute exchange or quotation system to which trading in futures or options contracts relating to such Underlying Shares has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to the futures or options contracts relating to such Underlying Shares on such temporary substitute exchange or quotation system as on the original Related Exchange).
 - (iii) **"Valuation Time"** means, in respect of each Underlying Share, the time specified in respect of the Underlying Shares in the relevant Final Terms unless "As specified in Share Linked Condition 5.1(d)" is specified in the relevant Final Terms, in which case **"Valuation Time"** means, in respect of each Depositary Receipt and the corresponding Underlying Share, the Scheduled Closing Time on the relevant Exchange on the relevant day in relation to each Underlying Share to be valued. If the relevant Exchange closes prior to its Scheduled Closing Time and the specified Valuation Time is after the

actual closing time for its regular trading session, then the Valuation Time shall be such actual closing time.

- (e) The definition of "**Merger Event**" shall include, in relation to Depositary Receipts, the occurrence of any Merger Event in relation to the Underlying Share.
- (f) The definition of "**Nationalisation**" shall be construed in relation to the Depositary Receipts as if references herein to the Depositary Receipts of the Share Company were references to the Underlying Share.
- (g) The definition of "**Potential Adjustment Event**" shall include, in relation to the Depositary Receipts:
 - (i) the occurrence of any Potential Adjustment Event in relation to the Underlying Share or any other shares or securities represented by the Depositary Receipts; and
 - (ii) the making of any amendment or supplement to the terms of the Deposit Agreement.

5.2 Termination of Deposit Agreement

If the Deposit Agreement is terminated, then on or after the date of such termination, references to Depositary Receipts shall be replaced by references to the Underlying Share and the Calculation Agent will adjust any relevant terms and will determine the effective date of such replacement and adjustments.

6. DELISTING, DISCONTINUANCE OR MODIFICATION OF A SHARE THAT IS A SHARE OF AN EXCHANGE TRADED FUND

- 6.1 Where the Share is a share of an Exchange Traded Fund, upon the occurrence of a Delisting in relation to such Share, the Calculation Agent may, in its sole discretion, either (i) make the determinations and take the actions specified in Share Linked Condition 3.2, or (ii) substitute an exchange traded fund that the Calculation Agent determines, in its sole discretion, to be comparable to the discontinued Shares (such exchange traded fund, a "**Successor Fund**"). If the Calculation Agent determines that no such Successor Fund is available, then the Calculation Agent will, in its sole discretion, determine the appropriate closing price of the Shares by a computation methodology that the Calculation Agent determines will, as closely as reasonably possible, replicate the Shares. If a Successor Fund is selected, that Successor Fund will be substituted for the Shares for all purposes of the Share Linked Notes and the Calculation Agent may determine in its sole discretion the appropriate date for the substitution of the Shares.
- 6.2 If at any time the index underlying the Exchange Traded Fund and/or the terms and conditions governing the assets, contracts and instruments invested in or held by the Exchange Traded Fund are changed in a material respect (as determined by the Calculation Agent), or if the Exchange Traded Fund in any other way is modified so that it does not, in the opinion of the Calculation Agent, fairly represent the net asset value of the Shares had those changes or modifications not been made, then, from and after that time, the Calculation Agent will make those calculations and adjustments as, in the good faith judgment of the Calculation Agent, may be necessary in order to arrive at a price of an exchange traded fund comparable to the Exchange Traded Fund or the Successor Fund, as the case may be, as if those changes or modifications had not been made, and calculate the closing prices with reference to the Exchange Traded Fund or the Successor Fund, as adjusted. Accordingly, if the Exchange Traded Fund or a Successor Fund is modified in a way that the price of its shares is a fraction of what it would have been if it had not been modified (for example, due to a split or a reverse split), then the Calculation Agent will adjust the price in order to arrive at a price of the Shares or shares of the Successor Fund as if it had not been

modified (for example, as if the split or the reverse split had not occurred). The Calculation Agent also may determine that no adjustment is required by the modification of the method of calculation.

7. DEFINITIONS

The following terms and expressions shall have the following meanings in relation to Share Linked Notes to which these Share Linked Conditions apply:

"Acceptable Exchange" means, in respect of any relevant Shares:

- (a) where the Exchange is located in the European Union and the United Kingdom, each principal exchange, quotation system or execution facility on which Shares are traded in each jurisdiction within European Union, Switzerland and Norway, provided that the Calculation Agent has determined that there is reasonably comparable liquidity on that exchange, quotation system or execution facility relative to the liquidity that existed on the Exchange;
- (b) where the Exchange is located in the United States, any of the New York Stock Exchange, NYSE Arca, NYSE Amex, NASDAQ Global Market or NASDAQ Global Select Market (or their respective successors); or
- (c) where the Exchange is located outside of the European Union or the United States, each principal exchange, quotation system or execution facility on which Shares are traded in the same jurisdiction as the Exchange, provided that the Calculation Agent has determined that there is reasonably comparable liquidity on that exchange, quotation system or execution facility relative to the liquidity that existed on the Exchange.

For the avoidance of doubt, an Acceptable Exchange shall exclude any listing service for shares traded over the counter.

"Actual Dividend" means, in respect of a Share, a Gross Cash Dividend (excluding any Extraordinary Dividends) for such Share declared (being the **"Declared Dividend"** corresponding to such Actual Dividend) by the Share Issuer of the Share to any holder of record of a single Share on the relevant record date in respect of such Gross Cash Dividend, where the Ex-Dividend Date for such Gross Cash Dividend falls in the Dividend Period for such Share, except:

- (a) if the amount actually paid or delivered by the Share Issuer of a Share to holders of record of the Share in respect of such Gross Cash Dividend is not equal to the corresponding Declared Dividend; and/or
- (b) the Share Issuer of the Share declares an intention to adjust any Gross Cash Dividend to one or more holders of record of the Share,

(and, in the case of (a) and (b), the amount of such difference being the **"Dividend Difference Amount"** and the date of such declaration being the **"Dividend Difference Declaration Date"** for such Gross Cash Dividend), then the Actual Dividend may be adjusted by an amount equal to the Dividend Difference Amount, as determined by the Calculation Agent acting in good faith and in a commercially reasonable manner.

"Affected Common Basket Share" has the meaning given thereto in Share Linked Condition 1.7 (*Share Basket and Reference Dates – Common Scheduled Trading Day and Common Disrupted Day*) or Share Linked Condition 1.8 (*Share Basket and Averaging Reference Dates – Common Scheduled Trading Day and Common Disrupted Day*), as applicable, and **"Affected Common Basket Shares"** shall be construed accordingly.

"Affected Share" has the meaning given thereto in Share Linked Condition 2 (*Fallback Valuation Date*).

"Averaging Date" means, in respect of a Share, each date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, subject to adjustment (as an Averaging Reference Date) in accordance with these Share Linked Conditions.

"Averaging Reference Date" means, in respect of a Share, each Initial Averaging Date or Averaging Date, in each case, subject to adjustment in accordance with these Share Linked Conditions.

"Closing Share Price" means, in respect of a Share and any relevant day, the official closing price of the Share (expressed in relevant Share Currency (if specified in the relevant Final Terms) applicable to the Share) as of the Valuation Time on the Exchange on such day, as determined by the Calculation Agent.

"Common Basket Share" has the meaning given thereto in Share Linked Condition 1.5 (*Share Basket and Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day*), Share Linked Condition 1.6 (*Share Basket and Averaging Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day*), Share Linked Condition 1.7 (*Share Basket and Reference Dates – Common Scheduled Trading Day and Common Disrupted Day*), or Share Linked Condition 1.8 (*Share Basket and Averaging Reference Dates – Common Scheduled Trading Day and Common Disrupted Day*), as the case may be, and **"Common Basket Shares"** shall be construed accordingly.

"Common Scheduled Trading Day" means, in respect of a Share Basket comprising Common Basket Shares, each day which is a Scheduled Trading Day for all Common Basket Shares in such Share Basket.

"Common Valid Date" means, in respect of a Share Basket comprising Common Basket Shares, a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Share and on which another Averaging Reference Date does not or is not deemed to occur.

"Contractual Dividend" means, in respect of a Share and a Contractual Ex-Dividend Date, the amount or amounts specified as such for such Share in the relevant Final Terms, or, if no such amount is specified for such Share, zero.

"Contractual Ex-Dividend Date" means, in respect of a Share, each date specified as such in the relevant Final Terms.

"Correction Cut-off Date" means, if specified in the relevant Final Terms to be applicable to any date on which the price of a Share is required to be determined, the date(s) specified as such in the relevant Final Terms, or such number of Business Days as specified in the relevant Final Terms prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the price of such Share on such day, unless "Default Correction Cut-off Date" is specified in the relevant Final Terms to be applicable in respect of any date on which the price of such Share is required to be determined, then the "Correction Cut-off Date" for such Share and such date shall be the second Business Day prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the price of such Share on such day.

"Delisting" means, in respect of any relevant Shares, that for any reason (other than a Merger Event or Tender Offer):

- (a) the Calculation Agent determines that:
 - (i) such Shares have ceased to be listed, traded or publicly quoted on the Exchange;

- (ii) it is not reasonably certain that the cessation is, or will be, temporary; and
 - (iii) such Shares are not immediately re-listed, re-traded, or re-quoted on an Acceptable Exchange; or
- (b) the Exchange announces that pursuant to the rules of such Exchange (or the Calculation Agent otherwise determines based on publicly available information that), such Shares will cease to be listed, traded, or publicly quoted on such Exchange and the Calculation Agent determines that there is reasonable certainty that such Shares will not be immediately re-listed, re-traded, or re-quoted on an Acceptable Exchange.

"Disrupted Day" means any Scheduled Trading Day on which a relevant Exchange or any Related Exchange fails to open for trading during its regular trading session or on which a Market Disruption Event has occurred.

"Dividend FX Rate" means, in respect of a Share and the Share Currency for such Share and any relevant date, the amount of the currency per one unit of such Share Currency, determined by the Calculation Agent by reference to the official mid exchange rate of the relevant currency pair(s) as determined by the Calculation Agent at or around 4.00 p.m., London time, on the relevant date and published by Refinitiv Benchmark Services Limited (or any successor thereto or any alternative fixing price sponsor as selected by the Calculation Agent) on the relevant Reuters pages as determined by the Calculation Agent, provided that if such exchange rate(s) cannot be obtained from such Reuters pages or are otherwise not published on such date, as determined by the Calculation Agent, then the Calculation Agent shall determine the Dividend FX Rate for such date based on the Calculation Agent's internal mid marks for such exchange rate(s) on such date.

"Dividend Period" means, in respect of a Share, the period commencing on (and excluding) the Dividend Period Start Date in respect of such Share and ending on (and including) the Dividend Period End Date in respect of such Share.

"Dividend Period End Date" means, in respect of a Share, the date specified as such in the relevant Final Terms.

"Dividend Period Start Date" means, in respect of a Share, the date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, subject to adjustment (as a Reference Date) in accordance with these Share Linked Conditions.

"Early Closure" means, in respect of a Share, the closure on any Exchange Business Day of the relevant Exchange relating to such Share or any Related Exchange prior to its Scheduled Closing Time unless such earlier closing time is announced by such Exchange or Related Exchange, as the case may be, at least one-hour prior to the earlier of (a) the actual closing time for the regular trading session on such Exchange or Related Exchange (as the case may be) on such Exchange Business Day and (b) the submission deadline for orders to be entered into such Exchange or Related Exchange system for execution as at the relevant Valuation Time on such Exchange Business Day.

"Entry Level Observation Date" means:

- (a) in respect of a Share or a Share Basket, each date specified as such in the relevant Final Terms;
- (b) in respect of a Share or a Share Basket, each Entry Level Observation Specified Date falling in the Entry Level Observation Period;

- (c) in respect of a Share, the First Entry Level Observation Date and each of the number of Scheduled Trading Days specified in the relevant Final Terms for such Share following the First Entry Level Observation Date; or
- (d) in respect of a Share Basket, the First Entry Level Observation Date and each of the number of Common Scheduled Trading Days specified in the relevant Final Terms for all Shares in the Share Basket following the First Entry Level Observation Date, each as specified in the relevant Final Terms and, in each case, subject to adjustment (as if each Entry Level Observation Date was an Averaging Reference Date) in accordance with the Share Linked Conditions as specified to be applicable in the relevant Final Terms.

"Entry Level Observation Period" if specified to be applicable, means, in respect of a Share:

- (a) if the relevant Final Terms specify the consequence of "Extension", the period commencing on the Entry Level Observation Period Start Date in respect of such Share, following adjustment of such date pursuant to the Share Linked Conditions (and including or excluding such Entry Level Observation Period Start Date, as specified in the relevant Final Terms) and ending on the Entry Level Observation Period End Date for such Share, following adjustment of such date pursuant to the Share Linked Conditions (and including or excluding such Entry Level Observation Period End Date, as specified in the relevant Final Terms); or
- (b) if the relevant Final Terms specify the consequence of "No Extension", the period commencing on the Entry Level Observation Period Start Date, prior to any adjustment of such date pursuant to the Share Linked Conditions (and including or excluding such Entry Level Observation Period Start Date for such Share, as specified in the relevant Final Terms) and ending on the Entry Level Observation Period End Date for such Share, prior to any adjustment of such date pursuant to the Share Linked Conditions (and including or excluding such Barrier Observation Period End Date, as specified in the relevant Final Terms),

and in each case, where the Notes relate to a Share Basket, there shall be a separate Entry Level Observation Period in respect of each Share in the Share Basket.

"Entry Level Observation Period End Date" means, in respect of a Share, the date specified as such in the relevant Final Terms (which, for the avoidance of doubt, may be an Initial Valuation Date), which shall be the last day of the Entry Level Observation Period in respect of such Share, and shall be included or excluded from the Entry Level Observation Period, as specified in the relevant Final Terms.

"Entry Level Observation Period Start Date" means, in respect of a Share, the date specified as such in the relevant Final Terms (which, for the avoidance of doubt, may be an Initial Valuation Date), which shall be the first day of the Entry Level Observation Period in respect of such Share, and shall be included or excluded from the Entry Level Observation Period, as specified in the relevant Final Terms.

"Entry Level Observation Specified Date" means, if Entry Level Observation Period is specified to be applicable in the relevant Final Terms, either (a) or (b) below as specified in the relevant Final Terms:

- (a) if "Scheduled Trading Day" is specified in the relevant Final Terms, in respect of each Share, each Scheduled Trading Day for such Share falling in the Entry Level Observation Period; or
- (b) if "Common Scheduled Trading Day" is specified in the relevant Final Terms, in respect of each Common Basket Share, each Common Scheduled Trading Day falling in the Entry Level Observation Period.

"Exchange" means, in respect of a Share, each exchange or quotation system specified as such in the relevant Final Terms for such Share, any successor to such exchange or quotation system or any substitute exchange or quotation system to which trading in such Share has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to such Share on such temporary substitute exchange or quotation system as on the original Exchange).

"Exchange Business Day" means, in respect of a Share, any Scheduled Trading Day for such Share on which each Exchange and each Related Exchange for such Share are open for trading during their respective regular trading sessions, notwithstanding any such Exchange or Related Exchange closing prior to its Scheduled Closing Time.

"Exchange Disruption" means, in respect of a Share, any event (other than an Early Closure) that disrupts or impairs (as determined by the Calculation Agent) the ability of market participants in general:

- (a) to effect transactions in, or obtain market values for, the Shares on the Exchange; or
- (b) to effect transactions in, or obtain market values for, futures or options contracts relating to such Share on any relevant Related Exchange.

"Exchange Traded Fund" means an exchange traded fund specified as such in the relevant Final Terms, and related expressions shall be construed accordingly.

"Expected Common Scheduled Trading Day" means, in respect of a Share Basket comprising Common Basket Shares, each day which is an Expected Scheduled Trading Day for all Common Basket Shares in such Share Basket.

"Expected Scheduled Trading Day" means, in respect of a Share, for the purposes of the Calculation Agent's determination of the day on which a Valuation Date is scheduled to fall in order to calculate the amount (if any) payable or deliverable on the Maturity Date, any day which the Calculation Agent anticipates, as of the date that it has determined that such Valuation Date should be scheduled to fall, that each Exchange and each Related Exchange for such Share specified in the relevant Final Terms are scheduled to be open for trading for their respective regular trading sessions, falling in the period commencing on, and including, such date and ending on, but excluding, the Maturity Date.

"Extraordinary Dividend" means, in respect of any Share, an amount per such Share which the Calculation Agent determines and characterises to be an extraordinary dividend.

"Extraordinary Event" means, in respect of a Share, a Delisting, an Insolvency, a Merger Event, a Nationalisation, a Tender Offer, and where the Share is a share of an Exchange Traded Fund, a NAV Publication Suspension.

"Fallback Valuation Date" means, in respect of any Share and if Fallback Valuation Date is specified in the relevant Final Terms to be applicable to any date on which the price of such Share is required to be determined, the date(s) specified as such in the relevant Final Terms or such number of Business Days as specified in the relevant Final Terms prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the price of such Share on such day, unless "Default Fallback Valuation Date" is specified in the Final Terms to be applicable to any date on which the price of such Share is required to be determined, then the Fallback Valuation Date for such Share and such date shall be the second Business Day prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the price of such Share on such day.

"First Entry Level Observation Date" means such date as is specified in the relevant Final Terms, or if such day is not a Scheduled Trading Day for a Share or a Common Scheduled Trading Day for all Shares, as specified in the relevant Final Terms, the first following Scheduled Trading Day for such Share or Common Scheduled Trading Day for all Shares, as specified in the relevant Final Terms.

"Gross Cash Dividend" means, in respect of a Share, any gross dividend amount in cash for one such Share that would be received by a holder of record before the withholding or deduction of taxes at the source by or on behalf of any relevant authority having power to tax in respect of such a dividend or distribution, and excludes any imputation or other credits, refunds or deductions granted by any applicable authority having power to tax in respect of such a dividend or distribution and any taxes, credits, refunds or benefits imposed, withheld, assessed or levied thereon, provided that, if such Gross Cash Dividend is denominated in a currency other than the Share Currency for such Share, then the Calculation Agent shall convert the amount of such Gross Cash Dividend into the Reference Currency using the Dividend FX Rate on the Contractual Ex-Dividend Date for such Gross Cash Dividend.

"Hedge Positions" means any arrangements entered into by the Hedging Entity at any time in order to hedge the payment obligations of the Issuer under the Share Linked Notes including, without limitation, the entry into or maintenance of one or more securities, currency or derivatives positions, stock loan transactions or any other instruments or arrangements (howsoever described).

"Hedging Entity" means the Issuer and/or any of its affiliates or any other agents thereof, as shall be determined by the Issuer in its sole and absolute discretion.

"Initial Averaging Date" means, in respect of a Share, each date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, subject to adjustment (as an Averaging Reference Date) in accordance with these Share Linked Conditions.

"Initial Valuation Date" means, in respect of a Share, each date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, subject to adjustment (as a Reference Date) in accordance with these Share Linked Conditions.

"Insolvency" means, in respect of a Share and the Share Issuer, that either:

- (a) by reason of the voluntary or involuntary liquidation, bankruptcy, insolvency, dissolution, or winding-up of or any analogous proceeding affecting the Share Issuer;
 - (i) all the Shares of such Share Issuer are required to be transferred to a trustee, liquidator, or other similar official, or
 - (ii) holders of the Shares of such Share Issuer become legally prohibited from transferring them; or
- (b) an Insolvency Event occurs in respect of such Share Issuer.

"Insolvency Event" means, in respect of a Share and the Share Issuer, that the Share Issuer:

- (a) institutes, or has instituted against it by a regulator, supervisor or any similar official with primary insolvency, rehabilitative or regulatory jurisdiction over it in the jurisdiction of its incorporation or organisation or the jurisdiction of its head office or home office, or consents to a proceeding seeking a judgment of insolvency or bankruptcy law or similar law affecting creditors' rights, or a petition is presented for its winding-up or liquidation by it or such regulator, supervisor or similar official or it consents to such petition; and/or

- (b) either has instituted against it a proceeding seeking a judgment of insolvency or bankruptcy or any other relief under any bankruptcy or insolvency law or other similar law affecting creditors' rights, or a petition is presented for its winding-up or liquidation, and such proceeding or petition is instituted or presented by a person not described in (a) above and either:
 - (i) results in a judgment of insolvency or bankruptcy or the entry of an order for relief or the making of an order for its winding-up or liquidation; or
 - (ii) is not dismissed, discharged, stayed or restrained, in each case within 15 days of such institution or presentation.

"Last Averaging Date" means, in respect of a Share, the Averaging Date for the Share scheduled to fall on the date specified as the "Last Averaging Date" in the relevant Final Terms or, if "Modified Postponement" is specified to be applicable in the relevant Final Terms, the Averaging Date for the Share (after any adjustments) falling latest in time shall be the Last Averaging Date.

"Last Initial Averaging Date" means, in respect of a Share, the Initial Averaging Date for the Share scheduled to fall on the date specified as the "Last Initial Averaging Date" in the relevant Final Terms or, if "Modified Postponement" is specified to be applicable in the relevant Final Terms, the Initial Averaging Date for the Share (after any adjustments) falling latest in time.

"Latest Reference Date" means, in respect of a single Share and an Averaging Reference Date or a Reference Date, such Averaging Reference Date or Reference Date, and in respect of a Share Basket and an Averaging Reference Date or a Reference Date (being, for the purposes of this definition, the **"Relevant Reference Date"**):

- (a) if, as a result of the Relevant Reference Date not being a Scheduled Trading Day for one or more Shares or as a result of the occurrence of a Disrupted Day for one or more Shares, the Relevant Reference Date for two or more Shares falls on different dates, the date corresponding to the Relevant Reference Date which is the latest to occur, as determined by the Calculation Agent; or
- (b) if the Relevant Reference Date for all of the Shares falls on the same date (after adjustment, if any, for non-Scheduled Trading Days or Disrupted Days for such Shares), such same date corresponding to the Relevant Reference Date.

"Market Disruption Event" means, in respect of a Share, the occurrence or existence of:

- (a) a Trading Disruption;
- (b) an Exchange Disruption, which in either case the Calculation Agent determines is material, at any time during the one-hour period that ends at the relevant Valuation Time;
- (c) an Early Closure;
- (d) any change in national or international financial, political or economic conditions or currency exchange rates or exchange controls, the effect of which is, in the determination of the Calculation Agent, so material and adverse as to make it impracticable or inadvisable to proceed with the calculation or determination of any amount payable or deliverable under the terms and conditions of the Share Linked Notes; or
- (e) where the Share is a share of an Exchange Traded Fund, a NAV Temporary Publication Suspension.

"Maturity Date" means, in respect of Share Linked Notes, the Scheduled Maturity Date specified in the relevant Final Terms, and if the Relevant Determination Date is adjusted in accordance with the Conditions, the Maturity Date shall instead be the day falling the number of Business Days equal to the Settlement Period after the Latest Reference Date in respect of the Relevant Determination Date.

"Maximum Days of Disruption" means the following number of Scheduled Trading Days, Common Scheduled Trading Days or other type of days, as applicable, in respect of Share Linked Notes:

- (a) where the Share Linked Notes relate to a single Share, eight Scheduled Trading Days; or
- (b) where the Share Linked Notes relate to a Share Basket and the relevant Final Terms do not specify that "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable, eight Scheduled Trading Days; or
- (c) where the Share Linked Notes relate to a Share Basket and the relevant Final Terms specify that "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable, eight Common Scheduled Trading Days,

or, in each case, such other number of Scheduled Trading Days or Common Scheduled Trading Days, as applicable (or other type of days) specified in the relevant Final Terms.

"Merger Date" means the closing date of a Merger Event or, where a closing date cannot be determined under the local law applicable to such Merger Event, such other date as determined by the Calculation Agent.

"Merger Event" means, in respect of any relevant Shares, any:

- (a) reclassification or change of such Shares that results in a transfer of, or an irrevocable commitment to transfer all such Shares outstanding to another entity or person,
- (b) consolidation, amalgamation, merger, or binding share exchange of a Share Issuer with or into another entity or person (other than a consolidation, amalgamation, merger, or binding share exchange in which such Share Issuer is the continuing entity and which does not result in a reclassification or change of all of such Shares outstanding),
- (c) takeover offer, tender offer, exchange offer, solicitation, proposal, or other event by any entity or person to purchase or otherwise obtain 100 per cent. of the outstanding Shares of the Share Issuer that results in a transfer of, or an irrevocable commitment to transfer, all such Shares (other than such Shares owned or controlled by such other entity or person); or
- (d) consolidation, amalgamation, merger, or binding share exchange of the Share Issuer or its subsidiaries with or into another entity in which the Share Issuer is the continuing entity and which does not result in a reclassification or change of all such Shares outstanding but results in the outstanding Shares (other than Shares owned or controlled by such other entity) immediately prior to such event collectively representing less than 50 per cent. of the outstanding Shares immediately following such event, in each case if the Merger Date is on or before the Final Reference Date or Last Averaging Date (as applicable):

"Nationalisation" means that all the Shares or all or substantially all the assets of the Share Issuer are nationalised, expropriated, or are otherwise required to be transferred to any governmental agency, authority, entity, or instrumentality thereof.

"NAV Publication Suspension" means that, in the determination of the Calculation Agent, the management company of the Exchange Traded Fund, or any other entity who has been delegated

the responsibility to publish the net asset value of the Share, has failed to or will fail to, or has not published or will not publish, the net asset value of the Share, and such failure to publish or non-publication will, in the determination of the Calculation Agent, in its sole and absolute discretion, have a material effect on the Notes and will be for more than a short period and/or will not be of a temporary nature.

"NAV Temporary Publication Suspension" means that, in the determination of the Calculation Agent, the management company of the Exchange Traded Fund, or any other entity who has been delegated the responsibility to publish the net asset value of each Share, fails to or does not publish, the net asset value of each Share, and such failure to publish or non-publication will, in the determination of the Calculation Agent, in its sole and absolute discretion, have a material effect on the Notes.

"Observation Date (closing valuation)" means, unless otherwise provided in the relevant Final Terms:

- (a) in respect of an Observation Period for a Share Linked Note referencing a single Share, each Scheduled Trading Day falling in the Observation Period which is not a Disrupted Day for such Share; or
- (b) in respect of an Observation Period for a Share Linked Note referencing a Share Basket, each Common Scheduled Trading Day falling in the Observation Period which is not a Disrupted Day for any Share in the Share Basket.

"Observation Date (intra-day valuation)" means:

- (a) in respect of an Observation Period for a Share Linked Note referencing a single Share, each Scheduled Trading Day falling in the Observation Period regardless of whether such day is a Disrupted Day for such Share; or
- (b) in respect of an Observation Period and a Share Linked Note referencing a Share Basket, each Common Scheduled Trading Day falling in the Observation Period regardless of whether such day is a Disrupted Day for any Share in the Share Basket.

"Observation Period" means, in respect of a Share, a Barrier Observation Period or a Trigger Observation Period.

"Options Exchange" means the exchange or quotation system specified as such in the relevant Final Terms, any successor to such exchange or quotation system or any substitute exchange or quotation system, to which trading in options contracts relating to the relevant Share has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to such options contracts on such temporary substitute exchange or quotation system as on the original Options Exchange) or, if no such exchange or quotation system is specified in the relevant Final Terms, the Related Exchange (if such Related Exchange trades options contracts relating to the relevant Share) or, if more than one such Related Exchange is specified in the relevant Final Terms, the Related Exchange selected by the Calculation Agent as the primary market for listed options contracts relating to the relevant Share.

"Potential Adjustment Event" means

- (a) a subdivision, consolidation or reclassification of relevant Shares (unless resulting in a Merger Event) or a free distribution or dividend of any such Shares to existing holders of the Shares by way of bonus, capitalisation, or similar issue;

- (b) a distribution, issue, or dividend to existing holders of the relevant Shares of (i) such Shares, or (ii) other share capital or securities granting the right to payment of dividends and/or the proceeds of liquidation of the Share Issuer equally or proportionately with such payments to holders of such Shares, or (iii) share capital or other securities of another issuer acquired or owned (directly or indirectly) by the Share Issuer as a result of a spin-off or other similar transaction, or (iv) any other type of securities, rights, or warrants, or other assets, in any case for payment (in cash or in other consideration) at less than the prevailing market price, all as determined by the Calculation Agent;
- (c) an Extraordinary Dividend;
- (d) a call by a Share Issuer in respect of relevant Shares that are not fully paid;
- (e) a repurchase by a Share Issuer or any of its subsidiaries of relevant Shares whether out of profits or capital and whether the consideration for such repurchase is cash, securities, or otherwise;
- (f) in respect of a Share Issuer, an event that results in any shareholder rights being distributed or becoming separated from shares of common stock or other shares of the capital stock of such Share Issuer pursuant to a shareholder rights plan or arrangement directed against hostile takeovers that provides upon the occurrence of certain events for a distribution of preferred stock, warrants, debt instruments, or stock rights at a price below their market value, as determined by the Calculation Agent, provided that any adjustment effected as a result of such an event shall be readjusted upon any redemption of such rights; or
- (g) any other event having a diluting or concentrative effect on the theoretical value of the relevant Shares, as determined by the Calculation Agent.

"Reference Date" means, in respect of a Share, each Initial Valuation Date or Valuation Date, in each case, subject to adjustment in accordance with these Share Linked Conditions.

"Related Exchange" means, in respect of a Share, each exchange or quotation system, if any, specified in the relevant Final Terms, any successor to such exchange or quotation system or any substitute exchange or quotation system to which trading in futures or options contracts relating to such Share has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to the futures or options contracts relating to such Share on such temporary substitute exchange or quotation system as on the original Related Exchange), provided, however, that where "All Exchanges" is specified as the Related Exchange, "Related Exchange" shall mean each exchange or quotation system (as determined by the Calculation Agent) where trading has a material effect (as determined by the Calculation Agent) on the overall market for futures or options contracts relating to such Share or, in any such case, any transferee or successor exchange of such exchange or quotation system (provided that the Calculation Agent has determined that there is comparable liquidity relative to the futures or options contracts relating to such Share on such temporary substitute exchange or quotation system as on the original Related Exchange).

"Relevant Date" has the meaning given thereto in Share Linked Condition 2 (*Fallback Valuation Date*).

"Scheduled Averaging Date" means, in respect of a Share, any original date that, but for such day not being a Scheduled Trading Day for such Share or for such day being a Disrupted Day for such Share, would have been an Averaging Date.

"Scheduled Averaging Reference Date" means, in respect of a Share, each Scheduled Averaging Date or Scheduled Initial Averaging Date.

"Scheduled Closing Time" means, in respect of a Share and in respect of an Exchange or Related Exchange and a Scheduled Trading Day, the scheduled weekday closing time of such Exchange or Related Exchange on such Scheduled Trading Day, without regard to after hours or any other trading outside of the regular trading session hours.

"Scheduled Initial Averaging Date" means, in respect of a Share, any original date that, but for such day not being a Scheduled Trading Day for such Share or for such day being a Disrupted Day for such Share, would have been an Initial Averaging Date.

"Scheduled Initial Valuation Date" means, in respect of a Share, any original date that, but for such day not being a Scheduled Trading Day for such Share or for such day being a Disrupted Day for such Share, would have been an Initial Valuation Date.

"Scheduled Reference Date" means, in respect of a Share, each Scheduled Initial Valuation Date or Scheduled Valuation Date.

"Scheduled Trading Day" means, in respect of a Share, any day on which each Exchange and each Related Exchange for such Share specified in the relevant Final Terms are scheduled to be open for trading for their respective regular trading sessions.

"Scheduled Valuation Date" means, in respect of a Share, any original date that, but for such day not being a Scheduled Trading Day for such Share or for such day being a Disrupted Day for such Share, would have been a Valuation Date.

"Settlement Cycle" means, in respect of a Share, the period of Share Clearance System Business Days following a trade in the Share on the Exchange in which settlement will customarily occur according to the rules of such Exchange.

"Settlement Disruption Event" means, in respect of a Share, an event that the Calculation Agent determines is beyond the control of the Issuer and/or its affiliates as a result of which the relevant Share Clearance System cannot clear the transfer of such Share.

"Share" means, in respect of an issue of Share Linked Notes relating to a single Share, the share (including the share of an Exchange Traded Fund), and in respect of an issue of Share Linked Notes relating to a Share Basket, each share (including the share of each Exchange Traded Fund), in each case, as specified in the relevant Final Terms, and related expressions shall be construed accordingly.

"Share Basket" means a basket composed of Shares, as specified in the relevant Final Terms.

"Share Clearance System" means, in respect of a Share, the principal domestic clearance system customarily used for settling trades in the relevant Shares on any relevant date.

"Share Clearance System Business Day" means, in respect of a Share Clearance System, any day on which such Share Clearance System is (or, but for the occurrence of a Settlement Disruption Event, would have been) open for the acceptance and execution of settlement instructions, as determined by the Calculation Agent.

"Share Currency" means, in respect of a Share, the currency specified as such in the relevant Final Terms, or if not specified, the currency in which the relevant price of the Share is denominated.

"Share Issuer" means, in respect of a Share, the issuer of such Share, as specified in the relevant Final Terms (or as may otherwise be determined by the Calculation Agent).

"Share Linked Notes" means any Notes that are specified as being "Share Linked Notes" in the relevant Final Terms and to which these Share Linked Conditions therefore apply.

"Share Price" means, in respect of a Share, the price of the Share as of the relevant time on the relevant date, as determined by the Calculation Agent.

"Share Weighting" means, in respect of a Share, the value specified as such in the relevant Final Terms, as such value may be adjusted by the Calculation Agent pursuant to Share Linked Condition 3.4 (*Ordinary Dividend Adjustment*).

"Substitute Shares" has the meaning given thereto in Share Linked Condition 3.2(d) (*Occurrence of an Extraordinary Event*).

"Substitution Date" has the meaning given thereto in Share Linked Condition 3.2(e)(i) (*Occurrence of an Extraordinary Event*).

"Successor Fund" has the meaning given thereto in Share Linked Condition 6 (*Delisting, Discontinuance or Modification of a Share that is a share of an Exchange Traded Fund*).

"Tender Offer" means a takeover offer, tender offer, exchange offer, solicitation, proposal, or other event by any entity or person that results in such entity or person purchasing, or otherwise obtaining, or having the right to obtain, by conversion or other means, greater than 10 per cent. and less than 100 per cent. of the outstanding voting shares of a Share Issuer, as determined by the Calculation Agent, based upon the making of filings with governmental or self-regulatory agencies or such other information as the Calculation Agent determines to be relevant.

"Tender Offer Date" means, in respect of a Tender Offer, or, the date on which voting Shares in the amount of the applicable percentage threshold are actually purchased or otherwise obtained, as determined by the Calculation Agent.

"Trading Disruption" means, in respect of a Share, any suspension of, or limitation imposed on, trading by the relevant Exchange or Related Exchange or otherwise, and whether by reason of movements in price exceeding limits permitted by the relevant Exchange or Related Exchange or otherwise, (a) relating to the Share on the relevant Exchange or (b) in futures or options contracts relating to the Share on any relevant Related Exchange.

"Valid Date" means a Scheduled Trading Day that is not a Disrupted Day and on no other Averaging Reference Date occurs or is deemed to occur.

"Valuation Date" means, in respect of a Share, each date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, and/or in the relevant Final Terms subject to adjustment (as a Reference Date) in accordance with these Share Linked Conditions.

"Valuation Time" means the time in the place as specified in the relevant Final Terms, unless "Default Valuation Time" is specified in the relevant Final Terms, in which case the "Valuation Time" means the Scheduled Closing Time on the relevant Exchange on the relevant day in relation to each Share to be valued. If the relevant Exchange closes prior to its Scheduled Closing Time and the specified Valuation Time is after the actual closing time for its regular trading session, then the Valuation Time shall be such actual closing time.

TERMS AND CONDITIONS OF THE NOTES – INDEX LINKED CONDITIONS

Prospective purchasers of, and investors in, Notes that are Index Linked Notes should refer to the section entitled "*Risk Factors – Risks Related to the Notes*" in the Base Prospectus for risk factors in relation to Notes, and in particular, to the section entitled "*Risk Factors – Risks associated with particular types of Underlying Assets – Risks associated with Indices as Underlying Assets*" in the Base Prospectus for specific risk factors relating to Index Linked Notes.

These Index Linked Provisions shall apply to Notes for which the relevant Final Terms specifies that the Index Linked Notes are applicable.

1. CONSEQUENCES OF NON-SCHEDULED TRADING DAYS, NON-COMMON SCHEDULED TRADING DAYS OR DISRUPTED DAYS

1.1 Single Index and Reference Dates

- (a) This provision shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to a single Index and such Final Terms specify "Single Index and Reference Dates" to be applicable to the Index (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only).
- (b) Except where the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Reference Date in respect of such Index is not a Scheduled Trading Day or is a Disrupted Day, then the Reference Date for such Index shall be the first succeeding Scheduled Trading Day that the Calculation Agent determines is not a Disrupted Day in respect of such Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Index immediately following such Scheduled Reference Date is a Disrupted Day for such Index. In that case:
 - (i) that last consecutive Scheduled Trading Day shall be deemed to be the Reference Date for such Index, notwithstanding the fact that such day is a Disrupted Day for such Index; and
 - (ii) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Reference Date.
- (c) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for such Index shall be the Scheduled Reference Date, notwithstanding the fact that the Scheduled Reference Date is not a Scheduled Trading Day or is a Disrupted Day for such Index, and the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on such Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Reference

Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on such Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (c) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Reference Date.

1.2 Single Index and Averaging Reference Dates

- (a) This provision shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to a single Index, such Final Terms specifies "Single Index and Averaging Reference Dates" to be applicable to the Index (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply to such Averaging Reference Dates only), and the Calculation Agent determines that any Scheduled Averaging Reference Date in respect of the relevant Index is not a Scheduled Trading Day or is a Disrupted Day.
- (b) If the relevant Final Terms specify "Omission" to be applicable, then such Scheduled Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the Averaging Reference Date for such Index shall be the first succeeding Scheduled Trading Day following the final Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day in respect of such Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Index immediately following such final Scheduled Averaging Reference Date is a Disrupted Day for such Index. In that case:
 - (i) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Index, notwithstanding the fact that such day is a Disrupted Day for such Index; and
 - (ii) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.
- (c) If the relevant Final Terms specify "Postponement" to be applicable, then the relevant Averaging Reference Date for such Index shall be the first succeeding Scheduled Trading Day following such Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day for such Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days

of Disruption in respect of such Index immediately following such Scheduled Averaging Reference Date is a Disrupted Day for such Index. In that case:

- (i) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Index, notwithstanding the fact that such day is a Disrupted Day for such Index; and
- (ii) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Index Linked Condition 1.2 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Index Linked Condition 1.2.

- (d) If the relevant Final Terms specify "Modified Postponement" to be applicable, then the relevant Averaging Reference Date shall be the first succeeding Scheduled Trading Day following such Scheduled Averaging Reference Date that the Calculation Agent determines is a Valid Date. If the first succeeding Valid Date has not occurred as of the relevant Valuation Time on the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date that, but for the occurrence of another Averaging Reference Date or a Disrupted Day for such Index, would have been the relevant Averaging Reference Date, then:
 - (i) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Index, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for such Index; and
 - (ii) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (ii) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

- (e) If the relevant Final Terms specify "No Adjustment" to be applicable, then the relevant Averaging Reference Date for such Index shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day for such Index, and the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on such Averaging Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Averaging Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Averaging Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on such Averaging Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Averaging Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (e) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.
- (f) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day in respect of such Index and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

1.3 Index Basket and Reference Dates – Individual Scheduled Trading Day and Individual Disrupted Day

- (a) This provision shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to an Index Basket, such Final Terms specify "Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day)" to be applicable to the Indices (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only).
- (b) Except where the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Reference Date in respect of any Index in the Index Basket is not a Scheduled Trading Day or is a Disrupted Day for such Index, then:
 - (i) if the Calculation Agent determines that such Scheduled Reference Date for an Index is a Scheduled Trading Day that is not a Disrupted Day, then the Reference Date for such Index shall be such Scheduled Reference Date; and
 - (ii) if the Calculation Agent determines that such Scheduled Reference Date for an Index is not a Scheduled Trading Day or is a Disrupted Day, then the Reference Date for such Index shall be the first succeeding Scheduled Trading Day which the Calculation Agent determines is not a Disrupted Day for such Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Reference Date is a Disrupted Day for such Index. In that case:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Reference Date for such Index, notwithstanding the fact that such day is a Disrupted Day for such Index; and
 - (B) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an

event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Index Level at the relevant Valuation Time in respect of such Reference Date.

- (c) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for such Index shall be the Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Scheduled Trading Day or is a Disrupted Day for such Index, and the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on such Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on such Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (c) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Reference Date.

1.4 Index Basket and Averaging Reference Dates – Individual Scheduled Trading Day and Individual Disrupted Day

- (a) This provision shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to an Index Basket, such Final Terms specify "Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day)" to be applicable to the Indices (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply to such Averaging Reference Dates only), and the Calculation Agent determines that any Scheduled Averaging Reference Date in respect of any Index in the Index Basket is not a Scheduled Trading Day or is a Disrupted Day for such Index.
- (b) If the relevant Final Terms specify "Omission" to be applicable, such Scheduled Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date for each Index in the Index Basket, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the sole Averaging Reference Date for such Indices shall be determined by reference to the final Scheduled Averaging Reference Date as follows:
 - (i) for each Index in the Index Basket for which the Calculation Agent determines that such final Scheduled Averaging Reference Date is a Scheduled Trading Day that is not a Disrupted Day, the Averaging Reference Date for such Index shall be such final Scheduled Averaging Reference Date; and
 - (ii) for each Index in the Index Basket for which the Calculation Agent determines that such final Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day, then the Averaging Reference Date for such Index shall be the first succeeding Scheduled Trading Day following the final Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day in respect of such Index, unless the Calculation Agent determines that each of the consecutive

Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Index immediately following such final Scheduled Averaging Reference Date is a Disrupted Day for such Index. In that case:

- (A) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Index, notwithstanding the fact that such day is a Disrupted Day for such Index; and
 - (B) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of each Index, such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.
- (c) If the relevant Final Terms specify "Postponement" to be applicable, then:
- (i) for each Index in the Index Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is a Scheduled Trading Day that is not a Disrupted Day, the Averaging Reference Date for such Index shall be such Scheduled Averaging Reference Date; and
 - (ii) for each Index in the Index Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day, then the Averaging Reference Date for such Index shall be the first succeeding Scheduled Trading Day following such Scheduled Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day in respect of such Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption in respect of such Index immediately following such final Scheduled Averaging Reference Date is a Disrupted Day for such Index. In that case:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Index, notwithstanding the fact that such day is a Disrupted Day for such Index; and
 - (B) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last

consecutive Scheduled Trading Day) and, in respect of each Index, such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Index Linked Condition 1.4 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Index Linked Condition 1.4.

- (d) If the relevant Final Terms specify "Modified Postponement" to be applicable, then:
 - (i) for each Index in the Index Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is a Scheduled Trading Day that is not a Disrupted Day, the Averaging Reference Date for such Index shall be such Scheduled Averaging Reference Date; and
 - (ii) for each Index in the Index Basket for which the Calculation Agent determines that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day, the relevant Averaging Reference Date shall be the first succeeding Valid Date for such Index. If the first succeeding Valid Date for such Index has not occurred as of the relevant Valuation Time on the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date that, but for the occurrence of another Averaging Reference Date or a Disrupted Day for such Index, would have been the relevant Averaging Reference Date, then:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Index, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for such Index; and
 - (B) the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using, the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.
- (e) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Index in the Index Basket shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day for such Index, and the Calculation Agent shall determine the Index Level of such Index as of the relevant Valuation Time on such Averaging Reference Date in accordance with the formula for and method of, calculating

such Index last in effect prior to the occurrence of such Averaging Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Averaging Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on such Averaging Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Averaging Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (e) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

- (f) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Scheduled Trading Day or is a Disrupted Day in respect of any Index in the Index Basket and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

1.5 Index Basket and Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day

- (a) This Index Linked Condition 1.5 shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to an Index Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day)" to be applicable to each Index in such Index Basket (each such Index in such Index Basket being a "**Common Basket Index**" for the purposes of this Index Linked Condition 1.5) (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only).
- (b) If the Calculation Agent determines that any Scheduled Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Index, then the Reference Date for each Common Basket Index shall be such Scheduled Reference Date.
- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable, if (I) the Calculation Agent determines that any Scheduled Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Indices, or (II) the Calculation Agent determines that any Scheduled Reference Date is not a Scheduled Trading Day for any Common Basket Index, the Reference Date for each Common Basket Index shall be the first succeeding Common Scheduled Trading Day following such Scheduled Reference Date, provided that if such Common Scheduled Trading Day is a Disrupted Day for one or more Common Basket Indices, then, in respect of (I) and (II), the following provisions shall apply:
 - (i) if the Calculation Agent determines that such Common Scheduled Trading Day is not a Disrupted Day for a Common Basket Index, then the Reference Date for such Common Basket Index shall be such Common Scheduled Trading Day; and
 - (ii) if the Calculation Agent determines that such Common Scheduled Trading Day is a Disrupted Day for a Common Basket Index, then the Reference Date for such Common Basket Index shall be the first succeeding Scheduled Trading Day which the Calculation Agent determines is not a Disrupted Day for such Common Basket Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Common Scheduled Trading Day is a Disrupted Day for such Common Basket Index. In that case:

- (A) that last consecutive Scheduled Trading Day shall be deemed to be the Reference Date for such Common Basket Index, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Index; and
 - (B) the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (B) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Reference Date.
- (d) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for each Common Basket Index shall be such Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for any Common Basket Index, and the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on such Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on such Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (d) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Reference Date.

1.6 Index Basket and Averaging Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day

- (a) This Index Linked Condition 1.6 shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to an Index Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day)" to be applicable to each Index in such Index Basket (each such Index in such Index Basket being a "**Common Basket Index**" for the purposes of this Index Linked Condition 1.6) (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply to such Averaging Reference Dates only).
- (b) If the Calculation Agent determines that any Scheduled Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Index, then the Averaging Reference Date for each Common Basket Index shall be such Scheduled Averaging Reference Date.
- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common

Scheduled Trading Day or is a Disrupted Day for one or more Common Basket Indices, the following provisions shall apply.

- (i) If the relevant Final Terms specify "Omission" to be applicable, such Scheduled Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date for each Common Basket Index, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the sole Averaging Reference Date for each Common Basket Index shall be determined by reference to the final Scheduled Averaging Reference Date as follows:
 - (A) if the Calculation Agent determines that such final Scheduled Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Index, then the sole Averaging Reference Date for each Common Basket Index shall be such final Scheduled Averaging Reference Date;
 - (B) if (a) the Calculation Agent determines that such final Scheduled Averaging Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Indices, or (b) the Calculation Agent determines that such final Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket Index, in which case the sole Averaging Reference Date for each Common Basket Index shall be the first succeeding Common Scheduled Trading Day following such final Scheduled Averaging Reference Date (the final Scheduled Averaging Reference Date, following adjustment of such date owing to such final Scheduled Averaging Reference Date not being a Common Scheduled Trading Day, if applicable, the "**Final Averaging Reference Date**"), provided that if such Common Scheduled Trading Day is a Disrupted Day for one or more Common Basket Indices, then, in respect of (a) and (b), the following provisions shall apply:
 - (I) if the Calculation Agent determines that the Final Averaging Reference Date is not a Disrupted Day for a Common Basket Index, then the sole Averaging Reference Date for such Common Basket Index shall be the Final Averaging Reference Date; and
 - (II) if the Calculation Agent determines that the Final Averaging Reference Date is a Disrupted Day for a Common Basket Index, then the sole Averaging Reference Date for such Common Basket Index shall be the first succeeding Scheduled Trading Day following the Final Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day for such Common Basket Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following the Final Averaging Reference Date is a Disrupted Day for such Common Basket Index. In that case:
 - (1) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Index, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Index; and
 - (2) the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula

for and method of, calculating such Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (2) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

- (ii) If the relevant Final Terms specify "Postponement" to be applicable, then if (a) the Calculation Agent determines that such Scheduled Averaging Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Indices, or (b) the Calculation Agent determines that such Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket Index, in which case the Averaging Reference Date for each Common Basket Index shall be the first succeeding Common Scheduled Trading Day following such Scheduled Averaging Reference Date (such Scheduled Averaging Reference Date, following adjustment of such date owing to such Scheduled Averaging Reference Date not being a Common Scheduled Trading Day, if applicable, the "**Adjusted Averaging Reference Date**"), provided that if such Adjusted Averaging Reference Date is a Disrupted Day for one or more Common Basket Indices, then, in respect of (a) and (b), the following provisions shall apply:
 - (A) if the Calculation Agent determines that such Adjusted Averaging Reference Date is not a Disrupted Day for a Common Basket Index, then the Averaging Reference Date for such Common Basket Index shall be such Adjusted Averaging Reference Date; and
 - (B) if the Calculation Agent determines that such Adjusted Averaging Reference Date is a Disrupted Day for a Common Basket Index, then the Averaging Reference Date for such Common Basket Index shall be the first succeeding Scheduled Trading Day following such Adjusted Averaging Reference Date that the Calculation Agent determines is not a Disrupted Day for such Common Basket Index, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Adjusted Averaging Reference Date is a Disrupted Day for such Common Basket Index. In that case:
 - (I) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Index, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Index; and
 - (II) the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or

quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of each Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (II) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Index Linked Condition 1.6 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Index Linked Condition 1.6.

- (iii) If the relevant Final Terms specify "Modified Postponement" to be applicable, then if
 - (a) the Calculation Agent determines that such Scheduled Averaging Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Indices, or (b) such Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket Index, in which case the Averaging Reference Date for each Common Basket Index shall be the first succeeding Common Scheduled Trading Day on which another Averaging Reference Date does not or is not deemed to occur immediately following such Scheduled Reference Date (such Scheduled Averaging Reference Date, following adjustment of such date owing to such Scheduled Averaging Reference Date not being a Common Scheduled Trading Day, if applicable, the "**Adjusted Averaging Reference Date**"), provided that if such Adjusted Averaging Reference Date is a Disrupted Day for one or more Common Basket Indices, then, in respect of (a) and (b), the following provisions shall apply:
 - (A) if the Calculation Agent determines that such Adjusted Averaging Reference Date is not a Disrupted Day for a Common Basket Index, then the Averaging Reference Date for such Common Basket Index shall be such Adjusted Averaging Reference Date; and
 - (B) if the Calculation Agent determines that such Adjusted Averaging Reference Date is a Disrupted Day for a Common Basket Index, then the relevant Averaging Reference Date for such Common Basket Index shall be the first succeeding Valid Date for such Common Basket Index. If the first succeeding Valid Date for such Common Basket Index has not occurred as of the relevant Valuation Time on the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Adjusted Averaging Reference Date, then:
 - (I) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Index, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for such Common Basket Index; and
 - (II) the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on that last consecutive

Scheduled Trading Day in accordance with the formula for and method of, calculating such Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using, the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (II) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

- (d) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Common Basket Index shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for any Common Basket Index, and the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on such Averaging Reference Date in accordance with the formula for and method of, calculating such Common Basket Index last in effect prior to the occurrence of such Averaging Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Averaging Reference Date of each Component comprised in such Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on such Averaging Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Averaging Reference Date) and, in respect of such Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (d) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.
- (e) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day in respect of any Common Basket Index and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

1.7 Index Basket and Reference Dates – Common Scheduled Trading Day and Common Disrupted Day

- (a) This Index Linked Condition 1.7 shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to an Index Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable to the Indices in such Index Basket (each such Index in such Index Basket being a "**Common Basket Index**" for the purposes of this Index Linked Condition 1.7) (and, if the Final Terms specify that this provision shall apply to particular Reference Dates, then this provision shall apply to such Reference Dates only).
- (b) If the Calculation Agent determines that any Scheduled Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Index, then the Reference Date for each Common Basket Index shall be such Scheduled Reference Date.
- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable, if the Calculation Agent determines that (1) a Scheduled Reference Date is not a Common Scheduled Trading

Day, or (2) that a Scheduled Reference Date is a Common Scheduled Trading Day but is a Disrupted Day for one or more Common Basket Indices, then the Reference Date corresponding to such Scheduled Reference Date for each Common Basket Index shall be the first succeeding Common Scheduled Trading Day following such Scheduled Reference Date that the Calculation Agent determines is not a Disrupted Day for any Common Basket Index, unless the Calculation Agent determines that each of the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Reference Date is a Disrupted Day for one or more Common Basket Indices. In that case:

- (i) that last consecutive Common Scheduled Trading Day shall be deemed to be such Reference Date for each Common Basket Index, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Indices (each such Common Basket Index being an "**Affected Common Basket Index**" for such Reference Date);
 - (ii) for each Common Basket Index other than an Affected Common Basket Index, the relevant Index Level shall be determined by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and
 - (iii) for each Affected Common Basket Index, the Calculation Agent shall determine the Index Level of such Affected Common Basket Index as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day in accordance with the formula for and method of, calculating such Affected Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day) and, in respect of such Affected Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (iii) shall be deemed to be the Index Level at the relevant Valuation Time in respect of such Reference Date.
- (d) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Reference Date for each Common Basket Index shall be such Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Scheduled Trading Day or is a Disrupted Day for such Index, and the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on such Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on such Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (d) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Reference Date.

1.8 Index Basket and Averaging Reference Dates – Common Scheduled Trading Day and Common Disrupted Day

- (a) This Index Linked Condition 1.8 shall apply where the Index Linked Notes are specified in the relevant Final Terms to relate to an Index Basket and such Final Terms specify "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable to the Indices in such Index Basket (each such Index in such Index Basket being a "**Common Basket Index**" for the purposes of this Index Linked Condition 1.8) (and, if the Final Terms specify that this provision shall apply to particular Averaging Reference Dates, then this provision shall apply to such Averaging Reference Dates only).
- (b) If the Calculation Agent determines that any Scheduled Averaging Reference Date is a Common Scheduled Trading Day that is not a Disrupted Day for any Common Basket Index, then the Averaging Reference Date for each Common Basket Index shall be such Scheduled Averaging Reference Date.
- (c) Unless the relevant Final Terms specify "No Adjustment" to be applicable if the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Scheduled Trading Day for any Common Basket Index or is a Common Scheduled Trading Day that is a Disrupted Day for any Common Basket Index, the following provisions shall apply.
 - (i) If the relevant Final Terms specify "Omission" to be applicable, such Scheduled Averaging Reference Date will be deemed not to be a relevant Averaging Reference Date for each Common Basket Index, provided that, if through the operation of this provision there would not be any Averaging Reference Dates, then the sole Averaging Reference Date for each Common Basket Index shall be the first succeeding Common Scheduled Trading Day following such final Scheduled Averaging Reference Date which the Calculation Agent determines is not a Disrupted Day for any Common Basket Index, unless the Calculation Agent determines that each of the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such final Scheduled Averaging Reference Date is a Disrupted Day for one or more Common Basket Indices. In that case:
 - (A) that last consecutive Common Scheduled Trading Day shall be deemed to be the sole Averaging Reference Date for each Common Basket Index, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Indices (each such Common Basket Index being an "**Affected Common Basket Index**" for such Averaging Reference Date);
 - (B) for each Common Basket Index other than an Affected Common Basket Index, the relevant Index Level shall be determined by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and
 - (C) for each Affected Common Basket Index, the Calculation Agent shall determine the Index Level of such Affected Common Basket Index as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day in accordance with the formula for and method of, calculating such Affected Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day of each Component comprised in such Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last

consecutive Common Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day) and, in respect of such Affected Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (C) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

- (ii) If the relevant Final Terms specify "Postponement" to be applicable, then the Averaging Reference Date for each Common Basket Index shall be the first succeeding Common Scheduled Trading Day following such Scheduled Averaging Reference Date which the Calculation Agent determines is not a Disrupted Day for any Common Basket Index, unless the Calculation Agent determines that each of the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date is a Disrupted Day for one or more Common Basket Indices. In that case:
 - (A) that last consecutive Common Scheduled Trading Day shall be deemed to be the Averaging Reference Date for each Common Basket Index, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Indices (each such Common Basket Index being an "**Affected Common Basket Index**" for such Averaging Reference Date);
 - (B) for each Common Basket Index other than an Affected Common Basket Index, the relevant Index Level shall be determined by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and
 - (C) for each Affected Common Basket Index, the Calculation Agent shall determine the Index Level of such Affected Common Basket Index as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day in accordance with the formula for and method of, calculating such Affected Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day of each Component comprised in such Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day) and, in respect of such Affected Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (C) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Index Linked Condition 1.8 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Index Linked Condition 1.8.

- (iii) If the relevant Final Terms specify "Modified Postponement" to be applicable, then the relevant Averaging Reference Date for each Common Basket Index shall be the first succeeding Common Valid Date immediately following such Scheduled Averaging

Reference Date. If the first succeeding Common Valid Date has not occurred as of the relevant Valuation Time on the consecutive Common Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date, then:

- (A) that last consecutive Common Scheduled Trading Day shall be deemed to be the Averaging Reference Date for each Common Basket Index, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for one or more Common Basket Indices (each such Common Basket Index being an "**Affected Common Basket Index**" for such Averaging Reference Date);
 - (B) for each Common Basket Index other than an Affected Common Basket Index, the relevant Index Level shall be determined by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Scheduled Trading Day; and
 - (C) for each Affected Common Basket Index, the Calculation Agent shall determine the Index Level of such Affected Common Basket Index as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day in accordance with the formula for and method of, calculating such Affected Common Basket Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day of each Component comprised in such Affected Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Common Scheduled Trading Day) and, in respect of each Affected Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (C) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.
- (d) If the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Common Basket Index shall be such Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day for one or more Common Basket Indices, and the Calculation Agent shall determine the Index Level of such Common Basket Index as of the relevant Valuation Time on such Averaging Reference Date in accordance with the formula for and method of, calculating such Common Basket Index last in effect prior to the occurrence of such Averaging Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Averaging Reference Date of each Component comprised in such Common Basket Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on such Averaging Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Averaging Reference Date) and, in respect of such Common Basket Index, such determination by the Calculation Agent pursuant to this paragraph (d) shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Averaging Reference Date.
- (e) If the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Scheduled Trading Day or is a Disrupted Day in respect of any Common Basket

Index and, the relevant Final Terms do not specify the consequence, then "Postponement" will apply.

2. FALLBACK VALUATION DATE

- (a) Notwithstanding any other terms of these Index Linked Conditions (subject as provided in Index Linked Condition 6 if the relevant Final Terms specify that the "Index-Linked Derivatives Contract Provisions" shall be applicable), if a Fallback Valuation Date is specified in the relevant Final Terms to be applicable to any Reference Date or Averaging Reference Date (any such date being, for the purposes of this Index Linked Condition 2, a "**Relevant Date**") for an Index, and if, following adjustment of such Relevant Date pursuant to Index Linked Condition 1 (*Consequences of Non-Scheduled Trading Days, Non-Common Scheduled Trading Days or Disrupted Days*) above (for the purposes of this Index Linked Condition 2, an "**Affected Index**") the Relevant Date would otherwise fall after the specified Fallback Valuation Date in respect of such Affected Index, then such Fallback Valuation Date shall be deemed to be such Relevant Date for such Affected Index.
- (b) If such Fallback Valuation Date is not a Scheduled Trading Day or a Common Scheduled Trading Day or is a Disrupted Day in respect of such Affected Index, as the case may be, then the Calculation Agent shall determine the Index Level of such Affected Index as of the relevant Valuation Time on such Fallback Valuation Date in accordance with the formula for and method of, calculating such Affected Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on such Fallback Valuation Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (*Definitions*)) has occurred in respect of any relevant Component that is a share on such Fallback Valuation Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Fallback Valuation Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this Index Linked Condition 2 shall be deemed to be the Index Level at the relevant Valuation Time in respect of the relevant Reference Date or Averaging Reference Date.

3. ADJUSTMENTS

3.1 Successor Index Sponsor or Successor Index

If an Index is (a) not calculated and announced by the Index Sponsor but is calculated and announced by a successor index sponsor acceptable to the Calculation Agent (a "**Successor Index Sponsor**") or (b) replaced by a successor index using, in the determination of the Calculation Agent, the same or a substantially similar formula for, and method of, calculation as used in the calculation of such Index, then in each case such index (the "**Successor Index**") will be deemed to be the Index.

3.2 Occurrence of an Index Adjustment Event

- (a) This provision shall apply if the Calculation Agent determines in respect of an Index that, (i) on or prior to any Reference Date, Averaging Reference Date, Observation Date or other relevant date, the relevant Index Sponsor or Successor Index Sponsor, if applicable, makes or announces that it will make a material change in the formula for, or the method of, calculating a relevant Index, or in any other way materially modifies such Index (other than a modification prescribed in that formula or method to maintain such Index in the event of changes in the Components, capitalisation and/or other routine events) (an "**Index Modification**"), or permanently cancels a relevant Index and no Successor Index exists as at the date of such cancellation (an "**Index Cancellation**"), (ii) on any Reference Date, Averaging Reference Date, Observation Date or other relevant date, the Index Sponsor or

Successor Index Sponsor, if applicable, fails to calculate and announce a relevant Index (an "**Index Disruption**"), provided that, in respect of a Multi-Exchange Index, the Calculation Agent may, in its discretion, determine that such event instead results in the occurrence of a Disrupted Day, or (iii) on or prior to any Reference Date, Averaging Reference Date, Observation Date or other relevant date, an Administrator/Benchmark Event Date has occurred in respect of a relevant Index.

- (b) Subject to paragraph (e) below, if the relevant Final Terms specify the consequence of any such Index Adjustment Event is "Calculation Agent Adjustment", then the Calculation Agent shall determine if such Index Adjustment Event has a material effect on the Index Linked Notes and, if so, shall calculate the relevant Index Level using, in lieu of a published level for that Index, the level for such Index as at the Valuation Time on that Reference Date, Averaging Reference Date, Observation Date or other relevant date, as the case may be, as determined by the Calculation Agent in accordance with the formula for, and method of, calculating such Index last in effect prior to the relevant Index Adjustment Event, but using only those Components that comprised such Index immediately prior to such Index Adjustment Event (other than those Components that have since ceased to be listed on the relevant Exchange).
- (c) Subject to paragraph (e) below, if the relevant Final Terms specify the consequence of any such Index Adjustment Event is "Index Substitution", then the Calculation Agent shall determine if such Index Adjustment Event has a material effect on the Index Linked Notes, and, if so, the Calculation Agent may rebase the Index Linked Notes against another index or basket of indices, as applicable, selected by the Calculation Agent to be reasonably comparable to the relevant Index, and, following such rebasing, the Calculation Agent will make such adjustment(s) that it determines to be appropriate, if any, to any variable, calculation methodology, valuation, settlement, payment terms or any other terms of the Index Linked Notes to account for such rebasing.
- (d) Subject to paragraph (e) below, if the relevant Final Terms specify the consequence of any such Index Adjustment Event is "Related Exchange Adjustment", then following each adjustment to the exercise, settlement, payment, or other terms of options or futures contracts on the Index traded on any Options Exchange, the Calculation Agent will make the appropriate adjustments, if any, to any one or more of the terms of the Index Linked Notes, including without limitation, any variable or term relevant to the settlement or payment under the Index Linked Notes, as the Calculation Agent determines appropriate, which adjustment will be effective as of the date determined by the Calculation Agent to be the effective date of the corresponding adjustment made by the Options Exchange. If options or futures contracts on the Index are not traded on the Options Exchange, the Calculation Agent will make such adjustment, if any, to any one or more of the terms of such Index Linked Notes, including without limitation, any variable or term relevant to the settlement or payment under such Index Linked Notes, as the Calculation Agent determines appropriate, with reference to the rules of and precedents (if any) set by the Options Exchange, to account for any event that, in the determination of the Calculation Agent, would have given rise to an adjustment by the Options Exchange if such options or futures contracts were so traded.
- (e) If:
 - (i) it (A) is or would be unlawful at any time under any applicable law or regulation; or (B) would contravene any applicable licensing requirements for the Calculation Agent, to perform the actions prescribed in paragraphs (b), (c) or (d) above (or it would be unlawful or would contravene those licensing requirements were a determination to be made at such time); or

- (ii) the Calculation Agent determines that none of paragraphs (b), (c) or (d) above, as is applicable, would achieve a commercially reasonable result for any of the Issuer, the Calculation Agent or the Holders,

on giving notice to Holders in accordance with General Condition 30 (*Notices*), the Issuer shall redeem the Index Linked Notes in whole but not in part, each Index Linked Note being redeemed by payment of an amount equal to the applicable Early Redemption Amount of such Index Linked Note, as determined by the Calculation Agent. Payments will be made in such manner as shall be notified to the Holders in accordance with General Condition 30 (*Notices*).

3.3 Occurrence of a Change in Law (Increased Cost)

If "Change in Law (Increased Cost)" is specified as being applicable in the relevant Final Terms, following the determination by the Calculation Agent that a Change in Law (Increased Cost) has occurred, the Calculation Agent may take one of the following actions:

- (a) Determine the appropriate adjustment, if any, to be made to any one or more of the terms of the Index Linked Notes, including without limitation, any variable or term relevant to payment under such Index Linked Notes, as the Calculation Agent determines appropriate to account for the Change in Law (Increased Cost), and determine the effective date of that adjustment.
- (b) Direct the Issuer to redeem all, but not some only, of the Index Linked Notes by giving notice to Holders in accordance with General Condition 30 (*Notices*). If the Index Linked Notes are so redeemed in whole, the Issuer will pay to each Holder in respect of each Index Linked Note held by such Holder an amount equal to the applicable Early Redemption Amount of such Index Linked Note, as determined by the Calculation Agent. Payments will be made in such manner as shall be notified to the Holders in accordance with General Condition 30 (*Notices*).

4. CORRECTION OF INDEX LEVEL

If the relevant Final Terms specify that "Correction of Index Level" to be applicable for an Index, then, in the event that any Index Level published by the Index Sponsor on any date which is utilised for any calculation or determination is subsequently corrected, and the correction is published by the Index Sponsor within one Settlement Cycle after the original publication, the Calculation Agent will make any determination or determine the amount that is payable or deliverable as a result of that correction, and, to the extent necessary, will adjust any relevant terms of the Index Linked Notes to account for such correction, provided that, if a Correction Cut-off Date is applicable for a relevant Index for any relevant date, corrections published after such Correction Cut-off Date will be disregarded by the Calculation Agent for the purposes of determining or calculating any relevant amount, and/or whether any event specified in the Conditions has occurred.

5. INDEX DISCLAIMER

If "Index Disclaimer" is specified in the relevant Final Terms to be applicable to an Index, then each of the Issuer, the Guarantor and the Holders agrees and acknowledges, in respect of such Index, that the Index Linked Notes are not sponsored, endorsed, sold or promoted by the Index or the Index Sponsor and the Index Sponsor makes no representation whatsoever, whether express or implied, either as to the results to be obtained from the use of the Index and/or the levels at which the Index stands at any particular time on any particular date or otherwise. Neither the Index nor the Index Sponsor shall be liable (whether in negligence or otherwise) to any person for any error in the Index, and the Index Sponsor is under no obligation to advise any person of any error therein. The Index Sponsor is not making any representation whatsoever, whether express or implied, as to the advisability of purchasing or assuming any risk in connection with the Index Linked Notes.

The Issuer and the Guarantor shall have no liability to the Holders for any act or failure to act by the Index Sponsor in connection with the calculation, adjustment or maintenance of the Index. None of the Issuer, the Guarantor, the Calculation Agent or any of their respective affiliates has any affiliation with or control over the Index or the Index Sponsor, or any control over the computation, composition or dissemination of the Index. Although the Calculation Agent will obtain information concerning the Index from publicly available sources it believes reliable, it will not independently verify this information. Accordingly, no representation, warranty or undertaking (express or implied) is made and no responsibility is accepted by the Issuer, the Guarantor, their affiliates or the Calculation Agent as to the accuracy, completeness or timeliness of information concerning the Index.

6. INDEX-LINKED DERIVATIVES CONTRACT PROVISIONS

If the relevant Final Terms specify that the "Index-Linked Derivatives Contract Provisions" shall be applicable, the following terms shall apply, and Index Linked Condition 1 (*Consequences of Non-Scheduled Trading Days, Non-Common Scheduled Trading Days or Disrupted Days*) shall not apply, save in relation to determining the Final Index Level, if applicable.

6.1 Early Redemption pursuant to the occurrence of an Index-Linked Derivatives Contract Adjustment Event

If the relevant Final Terms specify that the "Index-Linked Derivatives Contract Provisions" shall be applicable, then following the determination by the Calculation Agent that an Index-Linked Derivatives Contract Adjustment Event has occurred, the Calculation Agent will:

- (a) determine the appropriate adjustment, if any, to be made to any one or more of the terms of the Index Linked Notes, including without limitation, any variable or term relevant to the settlement or payment under the Index Linked Notes, as the Calculation Agent determines appropriate to account for such Index-Linked Derivatives Contract Adjustment Event, and determine the effective date of that adjustment; or
- (b) redeem all, but not some only, of the Index Linked Notes by giving notice to Holders in accordance with General Condition 30 (*Notices*). If the Index Linked Notes are so redeemed in whole, the Issuer will pay to each Holder in respect of each Index Linked Note held by such Holder an amount equal to the applicable Early Redemption Amount of such Index Linked Note, as determined by the Calculation Agent. Payments will be made in such manner as shall be notified to the Holders in accordance with General Condition 30 (*Notices*).

6.2 Corrections to price of Index-Linked Derivatives Contract

If the relevant Final Terms specify that the "Index-Linked Derivatives Contract Provisions" shall be applicable, then in the event that the relevant price of an Index-Linked Derivatives Contract which is utilised for any calculation or determination in relation to such Index-Linked Derivatives Contract is subsequently corrected and the correction is published by the Derivatives Exchange no later than the second Business Day prior to the Maturity Date, the Calculation Agent will make any determination or determine the amount that is payable or deliverable as a result of that correction, and, to the extent necessary, will adjust any relevant terms of the Index Linked Notes to account for such correction.

7. DEFINITIONS

The following terms and expressions shall have the following meanings in relation to Index Linked Notes to which these Index Linked Conditions apply.

"Administrator/Benchmark Event" means, in respect of an Index, the occurrence of a Non-Approval Event, a Rejection Event or a Suspension/Withdrawal Event, in each case being treated as having occurred on the Administrator/Benchmark Event Date.

"Administrator/Benchmark Event Date" means, in respect of an Index, the date determined by the Calculation Agent to be:

- (a) in respect of a Non-Approval Event, the date on which the relevant authorisation, registration, recognition, endorsement, equivalence decision, approval, inclusion in any official register or similar regulatory or legal requirement is required under any applicable law or regulation for the use of such Index in respect of the Index Linked Notes;
- (b) in respect of a Rejection Event, the date on which following the rejection or refusal of the relevant application for authorisation, registration, recognition, endorsement, an equivalence decision, approval or inclusion in any official register, either the Issuer or the Calculation Agent is not, or will not be, permitted under any applicable law or regulation to use such Index or to perform its or their respective obligations under the Index Linked Notes; and
- (c) in respect of a Suspension/Withdrawal Event, the date on which following (i) the suspension or withdrawal by the relevant competent authority or other relevant official body of the authorisation, registration, recognition, endorsement, equivalence decision or approval, or (ii) the date on which such Index or the administrator or sponsor of such Index is removed from the official register, as applicable, either the Issuer or the Calculation Agent is not, or will not be, permitted under any applicable law or regulation to use such Index or to perform its or their respective obligations under the Index Linked Notes,

or, in each case, if such date occurs before the Strike Date, the Strike Date.

"Affected Common Basket Index" and **"Affected Common Basket Indices"** have the meaning given thereto in Index Linked Condition 1.7 (*Index Basket and Reference Dates – Common Scheduled Trading Day and Common Disrupted Day*) or Index Linked Condition 1.8 (*Index Basket and Averaging Reference Dates – Common Scheduled Trading Day and Common Disrupted Day*), as applicable.

"Affected Index" has the meaning given thereto in Index Linked Condition 2 (*Fallback Valuation Date*).

"Averaging Date" means, in respect of a Unitary Index or a Multi-Exchange Index, each date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, subject to adjustment (as an Averaging Reference Date) in accordance with these Index Linked Conditions.

"Averaging Reference Date" means, in respect of an Index, each Initial Averaging Date or Averaging Date, in each case, subject to adjustment in accordance with these Index Linked Conditions.

"Closing Index Level" means, in respect of an Index and any relevant day, the official closing level of the Index (expressed in relevant Index Currency (if specified in the relevant Final Terms) applicable to the Index) as at the Valuation Time on such relevant day as calculated and published by the Index Sponsor, as determined by the Calculation Agent.

"Common Basket Index" has the meaning given thereto in Index Linked Condition 1.5 (*Index Basket and Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day*), Index Linked Condition 1.6 (*Index Basket and Averaging Reference Dates – Common Scheduled Trading Day but Individual Disrupted Day*), Index Linked Condition 1.7 (*Index Basket and*

Reference Dates – Common Scheduled Trading Day and Common Disrupted Day), or Index Linked Condition 1.8 (*Index Basket and Averaging Reference Dates – Common Scheduled Trading Day and Common Disrupted Day*), as the case may be, and "**Common Basket Indices**" should be construed accordingly.

"Common Scheduled Trading Day" means, in respect of an Index Basket comprising Common Basket Indices, any day that is a Scheduled Trading Day for each Common Basket Index in such Index Basket.

"Common Valid Date" means, for the purpose of determining the Averaging Reference Date that corresponds to a Scheduled Averaging Reference Date in respect of an Index Basket comprising Common Basket Indices, a Common Scheduled Trading Day following such Scheduled Averaging Reference Date that is neither a Disrupted Day for any such Common Basket Index nor the Averaging Reference Date corresponding to another Scheduled Averaging Reference Date.

"Component" means, in respect of a Unitary Index or a Multi-Exchange Index, any share, security, commodity, rate, index or other component included in such Index, as determined by the Calculation Agent.

"Component Clearance System" means, in respect of a Component of an Index, the principal domestic clearance system customarily used for settling trades in the relevant Component on any relevant date, as determined by the Calculation Agent.

"Component Clearance System Business Day" means, in respect of a Component Clearance System, any day on which such Component Clearance System is (or, but for the occurrence of a Settlement Disruption Event, would have been) open for the acceptance and execution of settlement instructions.

"Correction Cut-off Date" means, if specified in the relevant Final Terms to be applicable to any date on which the price of an Index is required to be determined, the date(s) specified as such in the relevant Final Terms, or such number of Business Days as specified in the relevant Final Terms prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the price of such Index on such day, unless "Default Correction Cut-off Date" is specified in the Final Terms to be applicable in respect of any date on which the price of such Index is required to be determined, then the Correction Cut-off Date for such Index and such date shall be the second Business Day prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the Index Level of such Index on such day.

"Daily Settlement Price" means, in respect of an Index-Linked Derivatives Contract and any day, the official settlement price of the relevant Index-Linked Derivatives Contract (howsoever described under the rules of the relevant Derivatives Exchange or its clearing house) for such day published by the Derivatives Exchange or its clearing house, as determined by the Calculation Agent.

"Derivatives Exchange" means each exchange or quotation system specified as such in the relevant Final Terms in respect of the Index-Linked Derivatives Contract, any successor to such exchange or quotation system or any substitute exchange or quotation system to which trading in the Index-Linked Derivatives Contract has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to the Index-Linked Derivatives Contract on such temporary substitute exchange or quotation system as on the original Derivatives Exchange).

"Disrupted Day" means:

- (a) for any Unitary Index, any Scheduled Trading Day on which (i) a relevant Exchange or any Related Exchange fails to open for trading during its regular trading session or (ii) a Market Disruption Event has occurred; or
- (b) for any Multi-Exchange Index, any Scheduled Trading Day on which (i) the Index Sponsor fails to publish the level of the Index (provided that the Calculation Agent may, in its discretion, determine that such event instead results in the occurrence of an Index Disruption), (ii) the Related Exchange fails to open for trading during its regular trading session or (iii) a Market Disruption Event has occurred.

"Early Closure" means:

- (a) for any Unitary Index, the closure on any Exchange Business Day of any relevant Exchange relating to Components that comprise 20 per cent. or more of the level of the relevant Index or any Related Exchange prior to its Scheduled Closing Time, unless such earlier closing time is announced by such Exchange or Related Exchange at least one-hour prior to the earlier of (i) the actual closing time for the regular trading session on such Exchange or Related Exchange on such Exchange Business Day and (ii) the submission deadline for orders to be entered into the Exchange or Related Exchange system for execution at the Valuation Time on such Exchange Business Day; or
- (b) for any Multi-Exchange Index, the closure on any Exchange Business Day with respect to such Multi-Exchange Index of the Exchange in respect of any Component, or the Related Exchange, prior to its Scheduled Closing Time unless such earlier closing time is announced by such Exchange or Related Exchange, as the case may be, at least one-hour prior to the earlier of (i) the actual closing time for the regular trading session on such Exchange or Related Exchange (as the case may be) on such Exchange Business Day and (ii) the submission deadline for orders to be entered into such Exchange or Related Exchange system for execution as at the relevant Valuation Time on such Exchange Business Day.

"Entry Level Observation Date" means, in respect of (a) an Index or an Index Basket, each date specified as such in the relevant Final Terms, (b) an Index or an Index Basket, each Entry Level Observation Specified Date falling in the Entry Level Observation Period, (c) in respect of an Index or an Index Basket, the First Entry Level Observation Date and each of the number of Scheduled Trading Days specified in the relevant Final Terms for such Index following the First Entry Level Observation Date, or (d) in respect of an Index Basket, the First Entry Level Observation Date and each of the number of Common Scheduled Trading Days specified in the relevant Final Terms for all Indices in the Index Basket following the First Entry Level Observation Date, each as specified in the relevant Final Terms and, in each case, subject to adjustment (as if each Entry Level Observation Date were an Averaging Reference Date) in accordance with the Index Linked Conditions as specified to be applicable in the relevant Final Terms.

"Entry Level Observation Period" if specified to be applicable, means, in respect of an Index:

- (a) if the relevant Final Terms specify the consequence of "Extension", the period commencing on the Entry Level Observation Period Start Date in respect of such Index, following adjustment of such date pursuant to the Index Linked Conditions (and including or excluding such Entry Level Observation Period Start Date, as specified in the relevant Final Terms) and ending on the Entry Level Observation Period End Date for such Index, following adjustment of such date pursuant to the Index Linked Conditions (and including or excluding such Entry Level Observation Period End Date, as specified in the relevant Final Terms); or
- (b) if the relevant Final Terms specify the consequence of "No Extension", the period commencing on the Entry Level Observation Period Start Date, prior to any adjustment of such date pursuant to the Index Linked Conditions (and including or excluding such Entry

Level Observation Period Start Date for such Index, as specified in the relevant Final Terms) and ending on the Entry Level Observation Period End Date for such Index, prior to any adjustment of such date pursuant to the Index Linked Conditions (and including or excluding such Barrier Observation Period End Date, as specified in the relevant Final Terms),

and in each case, where the Notes relate to an Index Basket, there shall be a separate Entry Level Observation Period in respect of each Index in the Index Basket.

"Entry Level Observation Period End Date" means, in respect of an Index, the date specified as such in the relevant Final Terms (which date may, for the avoidance of doubt, be an Initial Valuation Date), which shall be the last day of the Entry Level Observation Period in respect of such Index, and shall be included or excluded from the Entry Level Observation Period, as specified in the relevant Final Terms.

"Entry Level Observation Period Start Date" means, in respect of an Index, the date specified as such in the relevant Final Terms (which date may, for the avoidance of doubt, be an Initial Valuation Date), which shall be the first day of the Entry Level Observation Period in respect of such Index, and shall be included or excluded from the Entry Level Observation Period, as specified in the relevant Final Terms.

"Entry Level Observation Specified Date" means, if Entry Level Observation Period is specified to be applicable in the relevant Final Terms, either (a) or (b) below as specified in the relevant Final Terms:

- (a) "Scheduled Trading Day", in respect of each Index, each Scheduled Trading Day for such Index falling in the Entry Level Observation Period; or
- (b) "Common Scheduled Trading Day", in respect of each Common Basket Index, each Common Scheduled Trading Day falling in the Entry Level Observation Period.

"Exchange" means:

- (a) for any Unitary Index, each exchange or quotation system specified as such in the relevant Final Terms for such Unitary Index, any successor to such exchange or quotation system or any substitute exchange or quotation system to which trading in the Components underlying such Unitary Index has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to the Components underlying such Unitary Index on such temporary substitute exchange or quotation system as on the original Exchange); or
- (b) for any Multi-Exchange Index, each exchange on which any Component of such Multi-Exchange Index is, in the determination of the Calculation Agent, principally traded, or as otherwise determined by the Calculation Agent, any successor to such Exchange or quotation system or any substitute exchange or quotation system to which trading in the Components underlying such Multi-Exchange Index has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity to the Components underlying such Multi-Exchange Index on such temporary substitute exchange or quotation system as on the original Exchange).

"Exchange Business Day" means:

- (a) for any Unitary Index, any Scheduled Trading Day on which each Exchange and each Related Exchange for such Unitary Index are open for trading during their respective regular trading sessions, notwithstanding any such Exchange or Related Exchange for such Unitary Index closing prior to its Scheduled Closing Time; or

- (b) for any Multi-Exchange Index, any Scheduled Trading Day on which (i) the Index Sponsor calculates and publishes the level of such Multi-Exchange Index and (ii) the Related Exchange for such Multi-Exchange Index is open for trading during its regular trading session, notwithstanding the Related Exchange for such Multi-Exchange Index closing prior to its Scheduled Closing Time.

"Exchange Disruption" means:

- (a) for any Unitary Index, any event (other than an Early Closure) that disrupts or impairs, as determined by the Calculation Agent, the ability of market participants in general to effect transactions in, or obtain market values for, (i) any Component(s) on any relevant Exchange that comprise 20 per cent. or more of the level of such Unitary Index or (ii) futures or options contracts relating to such Unitary Index on any relevant Related Exchange; or
- (b) for any Multi-Exchange Index, any event (other than an Early Closure) that disrupts or impairs, as determined by the Calculation Agent, the ability of market participants in general to effect transactions in, or obtain market values for (i) any Component on the relevant Exchange in respect of such Component or (ii) futures or options contracts relating to such Multi-Exchange Index on the relevant Related Exchange.

"Expected Common Scheduled Trading Day" means, in respect of an Index Basket comprising Common Basket Indices, each day which is an Expected Scheduled Trading Day for all Common Basket Indices in such Index Basket.

"Expected Scheduled Trading Day" means, for the purposes of the Calculation Agent's determination of the day on which a Valuation Date is scheduled to fall in order to calculate the amount (if any) payable on the Maturity Date:

- (a) in respect of any Unitary Index, any day on which the Calculation Agent anticipates, as of the date that it has determined that such Valuation Date should be scheduled to fall, that each Exchange and each Related Exchange for such Unitary Index specified in the relevant Final Terms are scheduled to be open for trading for their respective regular trading sessions, falling in the period commencing on, and including, such date and ending on, but excluding, the Maturity Date; or
- (b) in respect of any Multi-Exchange Index, any day on which the Calculation Agent anticipates, as of the date that it has determined that such Valuation Date should be scheduled to fall, that (i) the Index Sponsor is scheduled to publish the level of such Multi-Exchange Index and (ii) the Related Exchange for such Multi-Exchange Index is scheduled to be open for trading for its regular trading session falling in the period commencing on, and including, such date and ending on, but excluding, the Maturity Date.

"Fallback Valuation Date" means, in respect of any Index and if Fallback Valuation Date is specified in the relevant Final Terms to be applicable to any date on which the level of such Index is required to be determined, the date(s) specified as such in the relevant Final Terms or such number of Business Days as specified in the relevant Final Terms prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the level of such Index on such day, unless "Default Fallback Valuation Date" is specified in the Final Terms to be applicable to any date on which the level of such Index is required to be determined, then the Fallback Valuation Date for such Index and such date shall be the second Business Day prior to the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the level of such Index on such day.

"Final Index Level" means an amount equal to the official closing level of the Index as at the Valuation Time on the relevant Valuation Date, as determined by the Calculation Agent and where

the "Index Multiplier" is specified in the Final Terms to be applicable, multiplied by the Index Multiplier.

"Final Reference Price" means, in respect of the relevant Index-Linked Derivatives Contract:

- (a) if the Final Settlement Price in respect of such Index-Linked Derivatives Contract is published by the Derivatives Exchange on the Scheduled Valuation Date corresponding to the relevant Valuation Date, such Final Settlement Price; or
- (b) if the Final Settlement Price is not published by the Derivatives Exchange in respect of the Index-Linked Derivatives Contract on the Scheduled Valuation Date corresponding to the relevant Valuation Date, but the Daily Settlement Price in respect of the Scheduled Valuation Date corresponding to the relevant Valuation Date is published by the Derivatives Exchange on such Scheduled Valuation Date, such Daily Settlement Price, provided that if neither the Final Settlement Price nor the Daily Settlement Price in respect of the Scheduled Valuation Date corresponding to the relevant Valuation Date is published (whether or not this results from trading in the Index-Linked Derivatives Contract not commencing or being permanently discontinued at any time on or prior to the Scheduled Valuation Date), the Final Index Level shall be deemed to be the Final Reference Price for such Valuation Date, as determined by the Calculation Agent.

"Final Settlement Price" means, in respect of an Index-Linked Derivatives Contract and any day, the final official settlement price of such Index-Linked Derivatives Contract (howsoever described under the rules of the relevant Derivatives Exchange or its clearing house) for such day published by the Derivatives Exchange or its clearing house.

"First Entry Level Observation Date" means such date as is specified in the relevant Final Terms, or if such day is not a Scheduled Trading Day for an Index or a Common Scheduled Trading Day for all Indices, as specified in the relevant Final Terms, the first following Scheduled Trading Day for such Index or Common Scheduled Trading Day for all Indices, as specified in the relevant Final Terms.

"Index" means, subject to adjustment in accordance with these Index Linked Conditions, an index specified as such in the relevant Final Terms, and **"Indices"** and other related expressions shall be construed accordingly.

"Index Adjustment Event" means any of the following events: an Index Cancellation, an Index Disruption, an Index Modification or an Administrator/Benchmark Event.

"Index Basket" means, subject to adjustment in accordance with these Index Linked Conditions, a basket composed of Indices, as specified in the relevant Final Terms.

"Index Cancellation" has the meaning given thereto in Index Linked Condition 3.2 (*Occurrence of an Index Adjustment Event*).

"Index Currency" means, in respect of an Index, the currency specified as such in the relevant Final Terms, or if not specified, the currency which the relevant level of the Index is reported or published, if applicable.

"Index Disruption" has the meaning given thereto in Index Linked Condition 3.2 (*Occurrence of an Index Adjustment Event*).

"Index Level" means in respect of an Index, the level of the Index as determined by the Calculation Agent as of the relevant time on the relevant date, as calculated and published by the relevant Index Sponsor provided that, where the Underlying is an Index-Linked Derivatives Contract, the

official closing level of the Index as at the Valuation Time on the relevant date as calculated and published by the Index Sponsor.

"Index-Linked Derivatives Contract" means any futures, options or other derivatives contract relating to one or more Indices as specified in the relevant Final Terms, and related expressions shall be construed accordingly.

"Index-Linked Derivatives Contract Adjustment Event" means, and shall have occurred if, the Calculation Agent determines that, any term of the relevant Index-Linked Derivatives Contract is changed or modified by the Derivatives Exchange (including if it is permanently discontinued), and the Calculation Agent determines that such change or modification could have a material effect on the Index Linked Notes.

"Index-Linked Derivatives Contract Price" means in respect of an Index-Linked Derivatives Contract and any day:

- (a) the last traded price of such Index-Linked Derivatives Contract on the Derivatives Exchange in respect of such Index-Linked Derivatives Contract on such day;
- (b) if the price referred to in (a) above is not available on such day, then the Index-Linked Derivatives Contract Price shall be the arithmetic mean of the last bid price and the last offer price of such Index-Linked Derivatives Contract on the Derivatives Exchange on such day;
- (c) if (i) the price referred to in (a) above is not available on such day and (ii) one or both of the last bid price and/or the last offer price of such Index-Linked Derivatives Contract on the Derivatives Exchange are also not available on such day, then the Index-Linked Derivatives Contract Price shall be the Daily Settlement Price of such Index-Linked Derivatives Contract for such day; and
- (d) if none of the prices referred to in (a), (b) or (c) is available on such day, then the Index-Linked Derivatives Contract Price shall be an amount determined by the Calculation Agent acting in good faith and in a commercially reasonable manner,

all as determined by the Calculation Agent.

"Index Linked Notes" means any Notes that are specified as being "Index Linked Notes" in the relevant Final Terms and to which these Index Linked Conditions therefore apply.

"Index Modification" has the meaning given thereto in Index Linked Condition 3.2 (*Occurrence of an Index Adjustment Event*).

"Index Multiplier" means, in respect of the relevant Valuation Date and an Index, an amount determined by the Calculation Agent in its discretion by reference to the realised dividend yield of the relevant Index.

"Index Sponsor" means the entity specified in the relevant Final Terms, and, if not specified, the corporation or other entity that, as determined by the Calculation Agent, (a) is responsible for setting and reviewing the rules and procedures and the methods of calculation and adjustments, if any, related to such Index, and (b) announces (directly or through an agent) the level of such Index on a regular basis during each Scheduled Trading Day.

"Index Sponsor Exit Event" has the meaning given thereto in Index Linked Condition 3.2 (*Occurrence of an Index Adjustment Event*).

"Initial Averaging Date" means, in respect of a Unitary Index or a Multi-Exchange Index, each date specified as such in the relevant Final Terms or otherwise determined as provided in the

Conditions, subject to adjustment (as an Averaging Reference Date) in accordance with these Index Linked Conditions.

"Initial Valuation Date" means, in respect of a Unitary Index or a Multi-Exchange Index, each date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, subject to adjustment (as a Reference Date) in accordance with these Index Linked Conditions;

"Last Averaging Date" means, in respect of a Unitary Index or a Multi-Exchange Index, the Averaging Date for the Index specified as the "Last Averaging Date" in the relevant Final Terms or, if "Modified Postponement" is specified to be applicable in respect of the Averaging Dates in the relevant Final Terms, the Averaging Date for the Index (after any adjustments) falling latest in time.

"Last Initial Averaging Date" means, in respect of a Unitary Index or a Multi-Exchange Index, the Initial Averaging Date for the Index specified as the "Last Initial Averaging Date" in the relevant Final Terms or, if "Modified Postponement" is specified to be applicable in respect of the Initial Averaging Dates in the relevant Final Terms, the Initial Averaging Date for the Index (after any adjustments) falling latest in time.

"Latest Reference Date" means:

- (a) in respect of a single Index and an Averaging Reference Date or a Reference Date, such Averaging Reference Date or Reference Date, and in respect of an Index Basket and an Averaging Reference Date or a Reference Date (being, for the purposes of this definition, the **"Relevant Reference Date"**):
 - (i) if, as a result of the Relevant Reference Date not being a Scheduled Trading Day for one or more Indices or as a result of the occurrence of a Disrupted Day for one or more Indices, the Relevant Reference Dates for two or more Indices fall on different dates, the date corresponding to the Relevant Reference Date which is the latest to occur, as determined by the Calculation Agent; or
 - (ii) if the Relevant Reference Date for all of the Indices falls on the same date (after adjustment, if any, for non-Scheduled Trading Days or Disrupted Days for such Indices), such same date corresponding to the Relevant Reference Date; and
- (b) in respect of a single Index-Linked Derivatives Contract and a Reference Date, such Reference Date, and in respect of an Index Basket comprising Index-Linked Derivatives Contracts and a Reference Date, the date corresponding to the Reference Date which is the latest to occur, as determined by the Calculation Agent.

"Market Disruption Event" means an event defined in accordance with the following paragraphs.

- (a) For any Unitary Index, a Market Disruption Event is the occurrence or existence of (i) a Trading Disruption, (ii) an Exchange Disruption, which in either case the Calculation Agent determines is material, at any time during the one-hour period that ends at the relevant Valuation Time, or (iii) an Early Closure.
- (b) For any Multi-Exchange Index, a Market Disruption Event is either:
 - (i) (A) the occurrence or existence, in respect of any Component, of:
 - (I) a Trading Disruption in respect of such Component, which the Calculation Agent determines is material, at any time during the one-hour period that ends at the relevant Valuation Time in respect of the Exchange on which such Component is principally traded;

- (II) an Exchange Disruption in respect of such Component, which the Calculation Agent determines is material at any time during the one-hour period that ends at the relevant Valuation Time in respect of the Exchange on which such Component is principally traded; or
 - (III) an Early Closure in respect of such Component; and
 - (B) where the aggregate of all Components in respect of which a Trading Disruption, an Exchange Disruption or an Early Closure occurs or exists comprises 20 per cent. or more of the level of such Multi-Exchange Index;
 - (ii) the occurrence or existence, in each case in respect of futures or options contracts relating to such Multi-Exchange Index, of (A) a Trading Disruption, or (B) an Exchange Disruption, which in either case the Calculation Agent determines is material, at any time during the one-hour period that ends at the Valuation Time in respect of the Related Exchange, or (C) an Early Closure; or
 - (iii) any change in national or international financial, political or economic conditions or currency exchange rates or exchange controls, the effect of which is, in the determination of the Calculation Agent, so material and adverse as to make it impracticable or inadvisable to proceed with the calculation or determination of any amount payable or deliverable under the terms and conditions of the Index Linked Notes.
- (c) For the purposes of determining whether a Market Disruption Event in respect of any Unitary Index exists at any time, if a Market Disruption Event occurs in respect of a Component included in such Unitary Index at any time, then the relevant percentage contribution of such Component to the level of such Unitary Index shall be based on a comparison of (i) the portion of the level of such Unitary Index attributable to such Component and (ii) the overall level of such Unitary Index, in each case immediately before the occurrence of such Market Disruption Event.
- (d) For the purposes of determining whether a Market Disruption Event exists in respect of a Multi-Exchange Index at any time, if an Early Closure, an Exchange Disruption, or a Trading Disruption occurs in respect of a Component at that time, then the relevant percentage contribution of such Component to the level of such Multi-Exchange Index shall be based on a comparison of (i) the portion of the level of such Multi-Exchange Index attributable to that Component and (ii) the overall level of such Multi-Exchange Index, in each case immediately before the occurrence of such Market Disruption Event.

"Maturity Date" means, in respect of Index Linked Notes, the Scheduled Maturity Date specified in the relevant Final Terms, or where the Redemption Determination Date is adjusted in accordance with the Conditions, the day falling the number of Business Days equal to the relevant Settlement Period after the Latest Reference Date in respect of the Redemption Determination Date.

"Maximum Days of Disruption" means the following number of Scheduled Trading Days, Common Scheduled Trading Days or other type of days, as applicable, in respect of Index Linked Notes:

- (a) where the Index Linked Notes relate to a single Index, eight Scheduled Trading Days; or
- (b) where the Index Linked Notes relate to an Index Basket and the relevant Final Terms do not specify "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable to such Index Basket, eight Scheduled Trading Days; or

- (c) where the Index Linked Notes relate to an Index Basket and the relevant Final Terms specify "Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day)" to be applicable to such Index Basket, eight Common Scheduled Trading Days,

or, in each case, such other number of Scheduled Trading Days or Common Scheduled Trading Days, as applicable (or other type of days) specified in the relevant Final Terms.

"Multi-Exchange Index" means any Index to which (a) or (b) below applies, being in either case, an Index for which its underlying Components are not all traded on the same Exchange as each other:

- (a) an Index for which the "Type of Index" is specified in the relevant Final Terms as being "Multi-Exchange Index"; or
- (b) where the "Type of Index" is not specified in the relevant Final Terms, any Index that the Calculation Agent determines to be a multi-exchange Index.

"Non-Approval Event" means, in respect of an Index, the determination by the Calculation Agent that one or more of the following events has occurred:

- (a) any authorisation, registration, recognition, endorsement, equivalence decision or approval in respect of such Index or the administrator or sponsor of such Index is not obtained;
- (b) such Index or the administrator or sponsor of such Index is not included in an official register; or
- (c) such Index or the administrator or sponsor of such Index does not fulfil any legal or regulatory requirement applicable to the Issuer or the Calculation Agent or such Index,

in each case, with the effect that either the Issuer or the Calculation Agent is not, or will not be, permitted under any applicable law or regulation to use such Index to perform its or their respective obligations under the Index Linked Notes, provided that a Non-Approval Event shall not occur if such Index or the administrator or sponsor of such Index is not included in an official register because its authorisation, registration, recognition, endorsement, equivalence decision or approval is suspended if, at the time of such suspension, the continued provision and use of such Index is permitted in respect of the Index Linked Notes under the applicable law or regulation.

"Observation Date (closing valuation)" means, unless otherwise provided in the relevant Final Terms, (a) in respect of an Index Linked Note referencing a single Index during an Observation Period, each Scheduled Trading Day falling in the Observation Period which is not a Disrupted Day for such Index, and (b) in respect of an Index Linked Note referencing an Index Basket during an Observation Period, each Common Scheduled Trading Day falling in the Observation Period which is not a Disrupted Day for any Index in the Index Basket.

"Observation Date (intra-day valuation)" means, (a) in respect of an Index Linked Note referencing a single Index during an Observation Period, each Scheduled Trading Day falling in the Observation Period regardless of whether such day is a Disrupted Day for such Index, and (b) in respect of an Index Linked Note referencing an Index Basket during an Observation Period, each Common Scheduled Trading Day falling in the Observation Period regardless of whether such day is a Disrupted Day for any Index in the Index Basket.

"Observation Period" means, in respect of an Index, a Barrier Observation Period, a Trigger Observation Period, an Autocall Observation Period or a Coupon Barrier Observation Period.

"Options Exchange" means the exchange or quotation system specified as such in the relevant Final Terms, any successor to such exchange or quotation system or any substitute exchange or

quotation system, to which trading in options contracts relating to the relevant Index has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to such options contracts on such temporary substitute exchange or quotation system as on the original Options Exchange) or, if no such exchange or quotation system is specified in the relevant Final Terms, the Related Exchange (if such Related Exchange trades options contracts relating to the relevant Index) or, if more than one such Related Exchange is specified in the relevant Final Terms, the Related Exchange selected by the Calculation Agent as the primary market for listed options contracts relating to the relevant Index.

"Reference Date" means, in respect of an Index, each Initial Valuation Date or Valuation Date, in each case, subject to adjustment in accordance with these Index Linked Conditions.

"Rejection Event" means, in respect of an Index, the determination by the Calculation Agent that the relevant competent authority or other relevant official body has rejected or refused any application for authorisation, registration, recognition, endorsement, an equivalence decision, approval or inclusion in any official register in relation to such Index or the administrator or sponsor of such Index, with the effect that either the Issuer or the Calculation Agent is not, or will not be, permitted under any applicable law or regulation to use such Index to perform its or their respective obligations under the Index Linked Conditions.

"Related Exchange" means for any Unitary Index or Multi-Exchange Index, each exchange or quotation system, if any, specified in the relevant Final Terms, any successor to such exchange or quotation system or any substitute exchange or quotation system to which trading in futures or options contracts relating to such Unitary Index or Multi-Exchange Index has temporarily relocated (provided that the Calculation Agent has determined that there is comparable liquidity relative to the futures or options contracts relating to such Unitary Index or Multi-Exchange Index on such temporary substitute exchange or quotation system as on the original Related Exchange), provided, however, that where "All Exchanges" is specified as the Related Exchange, "Related Exchange" shall mean each exchange or quotation system where trading has a material effect on the overall market for futures or options contracts relating to such Unitary Index or Multi-Exchange Index, as determined by the Calculation Agent, or, in any such case, any transferee or successor exchange of such exchange or quotation system (provided that the Calculation Agent has determined that there is comparable liquidity relative to the futures or options contracts relating to such Index on such temporary substitute exchange or quotation system as on the original Related Exchange).

"Relevant Date" has the meaning given thereto in Index Linked Condition 2 (*Fallback Valuation Date*).

"Relevant Screen Page" means the Bloomberg Page or the Reuters Screen (or both) specified as the "Relevant Screen Page" in the relevant Final Terms, and **"Relevant Screen Pages"** shall be construed accordingly.

"Scheduled Averaging Date" means, in respect of a Unitary Index or a Multi-Exchange Index, any original date that, but for such day not being a Scheduled Trading Day for such Index or for such day being a Disrupted Day for such Index, would have been an Averaging Date.

"Scheduled Averaging Reference Date" means, in respect of an Index, each Scheduled Averaging Date or Scheduled Initial Averaging Date.

"Scheduled Closing Time" means, in respect of an Index and in respect of an Exchange or Related Exchange and a Scheduled Trading Day, the scheduled weekday closing time of such Exchange or Related Exchange on such Scheduled Trading Day, without regard to after hours or any other trading outside of the regular trading session hours.

"Scheduled Initial Averaging Date" means, in respect of a Unitary Index or a Multi-Exchange Index, any original date that, but for such day not being a Scheduled Trading Day for such Index or for such day being a Disrupted Day for such Index, would have been an Initial Averaging Date.

"Scheduled Initial Valuation Date" means, in respect of a Unitary Index or a Multi-Exchange Index, any original date that, but for such day not being a Scheduled Trading Day for such Index or for such day being a Disrupted Day for such Index, would have been an Initial Valuation Date.

"Scheduled Reference Date" means, in respect of an Index, each Scheduled Initial Valuation Date or Scheduled Valuation Date.

"Scheduled Trading Day" means:

- (a) in respect of any Unitary Index, any day on which each Exchange and each Related Exchange for such Unitary Index specified in the relevant Final Terms are scheduled to be open for trading for their respective regular trading sessions; or
- (b) in respect of any Multi-Exchange Index, any day on which (i) the Index Sponsor is scheduled to publish the level of such Multi-Exchange Index and (ii) the Related Exchange for such Multi-Exchange Index is scheduled to be open for trading for its regular trading session.

"Scheduled Valuation Date" means, in respect of a Unitary Index or a Multi-Exchange Index, any original date that, but for such day not being a Scheduled Trading Day for such Index or for such day being a Disrupted Day for such Index, would have been a Valuation Date (and subject as provided in Index Linked Condition 6 if the relevant Final Terms specify "Index-Linked Derivatives Contract Provisions" to be applicable).

"Settlement Cycle" means for any Unitary Index or Multi-Exchange Index, the period of Component Clearance System Business Days following a trade in the Components underlying such Unitary Index or Multi-Exchange Index on the Exchange in which settlement will customarily occur according to the rules of such Exchange (or, if there are multiple Exchanges in respect of an Index, the longest such period).

"Settlement Disruption Event" means, in respect of a Component of an Index, an event that the Calculation Agent determines is beyond the control of the Issuer and/or its affiliates as a result of which the relevant Component Clearance System cannot clear the transfer of such Component.

"Special Quotation Price" means, in respect of an Index-Linked Derivatives Contract and any day, the special quotation price of such Index-Linked Derivatives Contract (howsoever described under the rules of the relevant Derivatives Exchange or its clearing house) for such day published by the Derivatives Exchange or its clearing house.

"Successor Index" has the meaning given thereto in Index Linked Condition 3.1 (*Successor Index Sponsor or Successor Index*).

"Successor Index Sponsor" has the meaning given thereto in Index Linked Condition 3.1 (*Successor Index Sponsor or Successor Index*).

"Suspension/Withdrawal Event" means, in respect of an Index, the determination by the Calculation Agent that one or more of the following events has occurred:

- (a) the relevant competent authority or other relevant official body suspends or withdraws any authorisation, registration, recognition, endorsement, equivalence decision or approval in relation to such Index or the administrator or sponsor of such Index; or
- (b) such Index or the administrator or sponsor of such Index is removed from any official register,

in each case, with the effect that either the Issuer or the Calculation Agent is not, or will not be, permitted under any applicable law or regulation to use such Index to perform its or their respective obligations under the Index Linked Notes, provided that a Suspension/Withdrawal Event shall not occur if such authorisation, registration, recognition, endorsement, equivalence decision or approval is suspended or where inclusion in any official register is withdrawn if, at the time of such suspension or withdrawal, the continued provision and use of such Index is permitted in respect of the Index Linked Notes under the applicable law or regulation.

"Trading Disruption" means:

- (a) in respect of any Unitary Index, any suspension of, or limitation imposed on, trading by the relevant Exchange or Related Exchange or otherwise, and whether by reason of movements in price exceeding limits permitted by the relevant Exchange or Related Exchange or otherwise, (i) relating to Components that comprise 20 per cent. or more of the level of such Unitary Index on any relevant Exchange or (ii) in futures or options contracts relating to such Unitary Index on any relevant Related Exchange; or
- (b) in respect of any Multi-Exchange Index, any suspension or limitation imposed on trading by the relevant Exchange or Related Exchange or otherwise and whether by reason of movements in price exceeding limits permitted by the relevant Exchange or Related Exchange or otherwise (i) relating to any Component on the Exchange in respect of such Multi-Exchange Index or (ii) in futures or options contracts relating to Multi-Exchange Index on the Related Exchange.

"Unitary Index" means an Index to which (a) or (b) below applies, being, in either case, an Index for which the underlying Components are traded on a single Exchange:

- (a) an Index for which the "Type of Index" is specified in the relevant Final Terms as being "Unitary Index"; or
- (b) where the "Type of Index" is not specified in the relevant Final Terms, an Index that the Calculation Agent determines to be a unitary Index.

"Valid Date" means, for the purpose of determining the Averaging Reference Date that corresponds to a Scheduled Averaging Reference Date, any Scheduled Trading Day that is neither a Disrupted Day nor the Averaging Reference Date corresponding to another Scheduled Averaging Reference.

"Valuation Date" means:

- (a) in respect of a Unitary Index or a Multi-Exchange Index, each date specified as such in the relevant Final Terms or otherwise determined as provided in the Conditions, subject to adjustment (as a Reference Date) in accordance with these Index Linked Conditions (and subject as provided in Index Linked Condition 6 if the relevant Final Terms specify "Index-Linked Derivatives Contract Provisions" to be applicable); or
- (b) in respect of an Index-Linked Derivatives Contract, the final settlement day of such Index-Linked Derivatives Contract (as determined by the Derivatives Exchange according to the rules of the Derivatives Exchange) (the **"Scheduled Valuation Date"**), provided that, only for the purposes of determining the Final Index Level (if applicable), the Scheduled Valuation Date may be subject to adjustment (as a Reference Date) in accordance with Index Linked Condition 1.

"Valuation Time" means the time in the place as specified in the relevant Final Terms, unless "Default Valuation Time" is specified in the relevant Final Terms, in which case the "Valuation Time" means:

- (a) in respect of any Unitary Index, (i) for the purposes of determining whether a Market Disruption Event has occurred in respect of (A) any Component, the Scheduled Closing Time on the Exchange in respect of such Component (provided that, if the relevant Exchange closes prior to its Scheduled Closing Time, then the Valuation Time shall be such actual closing time), and (B) any options contracts or futures contracts on such Unitary Index, the close of trading on the Related Exchange, and (ii) in all other circumstances, the time at which the official closing level of such Unitary Index is calculated and published by the Index Sponsor; and
- (b) in respect of any Multi-Exchange Index, (i) for the purposes of determining whether a Market Disruption Event has occurred in respect of (A) any Component, the Scheduled Closing Time on the Exchange in respect of such Component (provided that, if the relevant Exchange closes prior to its Scheduled Closing Time, then the Valuation Time shall be such actual closing time), and (B) any options contracts or futures contracts on such Multi-Exchange Index, the close of trading on the Related Exchange, and (ii) in all other circumstances, the time at which the official closing level of such Multi-Exchange Index is calculated and published by the Index Sponsor.

TERMS AND CONDITIONS OF THE NOTES – MULTI-ASSET BASKET LINKED CONDITIONS

Prospective purchasers of, and investors in, Notes that are Multi-Asset Basket Linked Notes should refer to the section entitled "*Risk Factors – Risks Related to the Notes*" in the Base Prospectus for risk factors in relation to Notes, and in particular, to the sections entitled "*Risk Factors – Risks associated with particular types of Underlying Assets – Risks associated with Shares as Underlying Assets*" and "*Risk Factors – Risks associated with particular types of Underlying Assets – Risks associated with Indices as Underlying Assets*" in the Base Prospectus for specific risk factors relating to Share Linked Notes and Index Linked Notes, respectively.

These Multi-Asset Basket Linked Conditions shall apply to Notes for which the relevant Final Terms specify that the Multi-Asset Basket Linked Notes are applicable.

1. CONSEQUENCES OF NON-COMMON TRADING DAYS AND/OR COMMON DISRUPTED DAYS

1.1 Multi-Asset Basket and Averaging Reference Dates – Common Trading Day but Individual Disrupted Day

If the relevant Final Terms specify "Multi-Asset Basket and Averaging Reference Dates –Basket Valuation (Common Trading Day but Individual Disrupted Day)" to be applicable to the Common Basket Assets, the following provisions shall apply:

- (a) if the Calculation Agent determines that any Scheduled Averaging Reference Date is a Common Trading Day that is not a Disrupted Day for any Common Basket Asset, then the Averaging Reference Date for each Common Basket Asset shall be such Scheduled Averaging Reference Date; and
- (b) if the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Trading Day or is a Disrupted Day for one or more Common Basket Assets, the following provisions shall apply:
 - (i) if the relevant Final Terms specify "Postponement" to be applicable, then if (A) the Calculation Agent determines that any Scheduled Averaging Reference Date is a Common Trading Day but is a Disrupted Day for one or more Common Basket Assets, or (B) the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Trading Day, in which case the Averaging Reference Date for each Common Basket Asset shall be the first succeeding Common Trading Day following such Scheduled Averaging Reference Date (such Scheduled Averaging Reference Date, following adjustment of such date owing to such Scheduled Averaging Reference Date not being a Common Trading Day, if applicable, the "**Adjusted Averaging Reference Date**"), provided that if such Adjusted Averaging Reference Date is a Disrupted Day for one or more Common Basket Assets, then, in respect of (A) and (B), the following provisions shall apply:
 - (A) if the Calculation Agent determines that such Adjusted Averaging Reference Date is not a Disrupted Day for a Common Basket Asset, then the Averaging Reference Date for such Common Basket Asset shall be such Adjusted Averaging Reference Date; and
 - (B) if the Calculation Agent determines that such Adjusted Averaging Reference Date is a Disrupted Day for a Common Basket Asset, then the Averaging Reference Date for such Common Basket Asset shall be the first succeeding Scheduled Trading Day following such Adjusted Averaging Reference Date which the Calculation Agent determines is not a Disrupted Day for such Common Basket Asset, unless the Calculation Agent determines that each of the

consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Adjusted Averaging Reference Date is a Disrupted Day for such Common Basket Asset. In that case:

- (I) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Asset, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Asset;
- (II) where such Common Basket Asset is:
 - (1) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (x) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time of such Share in respect of such Averaging Reference Date);
 - (2) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day), and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (y) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of such Averaging Reference Date.

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Multi-Asset Basket Linked Condition 1.1 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Multi-Asset Basket Linked Condition 1.1.

- (ii) if the relevant Final Terms specify that "Modified Postponement" to be applicable, then if (A) the Calculation Agent determines that any Scheduled Averaging Reference Date is a Common Trading Day but is a Disrupted Day for one or more Common Basket Assets, or (B) the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Trading Day, in which case the Averaging Reference Date for each Common Basket Asset shall be the first succeeding Common Trading Day on which another Averaging Reference Date does not or is not deemed to occur following such Scheduled Averaging Reference Date (such Scheduled Averaging Reference Date, following adjustment of such date owing to such Scheduled Averaging Reference Date, following adjustment of such date owing to such Scheduled Averaging Reference Date not being a Common Trading Day, if applicable, the "Adjusted

Averaging Reference Date"), provided that if such Adjusted Averaging Reference Date is a Disrupted Day for one or more Common Basket Assets, then, in respect of (A) and (B), the following provisions shall apply:

- (A) if the Calculation Agent determines that such Adjusted Averaging Reference Date is not a Disrupted Day for a Common Basket Asset, then the Averaging Reference Date for such Common Basket Asset shall be such Adjusted Averaging Reference Date; and
- (B) if the Calculation Agent determines that such Adjusted Averaging Reference Date is a Disrupted Day for a Common Basket Asset, then the Averaging Reference Date for such Common Basket Asset shall be the first succeeding Valid Date for such Common Basket Asset following such Adjusted Averaging Reference Date. If the first succeeding Valid Date for such Common Basket Asset has not occurred as of the relevant Valuation Time on the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Adjusted Averaging Reference Date, then:
 - (I) that last consecutive Scheduled Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Asset, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for such Common Basket Asset;
 - (II) where such Common Basket Asset is:
 - (1) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (x) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time of such Share in respect of such Averaging Reference Date);
 - (2) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day), and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (y) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of such Averaging Reference Date.

provided that,

- (iii) if the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Common Basket Asset shall be the Scheduled

Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Common Trading Day or is a Disrupted Day for one or more Common Basket Assets, and where such Common Basket Asset is:

- (A) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on such Averaging Reference Date (and such determination by the Calculation Agent pursuant to this paragraph (c)(i) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time in respect of the relevant Averaging Reference Date); or
- (B) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on such Averaging Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Averaging Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Averaging Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on such Averaging Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Averaging Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (c)(ii) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

1.2 Multi-Asset Basket and Averaging Reference Dates – Common Trading Day and Common Disrupted Day

If the relevant Final Terms specify "Multi-Asset Basket and Averaging Reference Dates – Basket Valuation (Common Trading Day and Common Disrupted Day)" to be applicable to the Common Basket Assets, if the Calculation Agent determines that any Scheduled Averaging Reference Date is not a Common Trading Day for any Common Basket Asset or is a Common Trading Day that is a Common Disrupted Day and:

- (a) if the relevant Final Terms specify "Postponement" to be applicable, then the Averaging Reference Date for each Common Basket Asset shall be the first succeeding Common Trading Day following such Scheduled Averaging Reference Date which the Calculation Agent determines is not a Common Disrupted Day, unless the Calculation Agent determines that each of the consecutive Common Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date is a Common Disrupted Day. In that case:
 - (i) that last consecutive Common Trading Day shall be deemed to be the Averaging Reference Date for such Common Basket Asset, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Assets (such Common Basket Assets being "Affected Common Basket Assets" for such Averaging Reference Date, and each such Common Basket Asset being an "Affected Common Basket Asset" for such Averaging Reference Date);
 - (ii) for each Common Basket Asset other than an Affected Common Basket Asset, where such Common Basket Asset is:

- (A) a Share, the Calculation Agent shall determine the relevant price of such Share by reference to the relevant screen pages at the applicable Valuation Time on such last consecutive Common Trading Day; or
 - (B) an Index, the Calculation Agent shall determine the relevant level of such Index by reference to the relevant screen pages at the applicable Valuation Time on such last consecutive Common Trading Day; or
- (iii) for each Affected Common Basket Asset which is:
- (A) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on that last consecutive Common Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (iii)(A) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time of such Share in respect of such Averaging Reference Date);
 - (B) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on that last consecutive Common Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Common Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Common Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Common Trading Day), and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (iii)(B) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of such Averaging Reference Date.

For the avoidance of doubt, an Averaging Reference Date determined in accordance with this Multi-Asset Basket Linked Condition 1.2 in respect of a Scheduled Averaging Reference Date may fall on the same day that another Averaging Reference Date in respect of another Scheduled Averaging Reference Date falls, whether or not such latter Averaging Reference Date was also determined in accordance with this Multi-Asset Basket Linked Condition 1.2.

- (b) if the relevant Final Terms specify that "Modified Postponement" to be applicable, then the relevant Averaging Reference Date for each Common Basket Asset shall be the first succeeding Common Valid Date. If the first succeeding Common Valid Date has not occurred as of the relevant Valuation Time on the consecutive Common Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Averaging Reference Date that, but for the occurrence of another Averaging Reference Date or a Common Disrupted Day, would have been the relevant Averaging Reference Date, then:
 - (i) that last consecutive Common Trading Day shall be deemed to be the Averaging Reference Date for each Common Basket Asset, notwithstanding the fact that such day is already an Averaging Reference Date or is a Disrupted Day for one or more Common Basket Assets (such Common Basket Assets being "Affected Common Basket Assets" for such Averaging Reference Date, and each such Common Basket Asset being an "Affected Common Basket Asset" for such Averaging Reference Date); and

- (ii) for each Common Basket Asset other than an Affected Common Basket Asset, where such Common Basket Asset is:
 - (A) a Share, the Calculation Agent shall determine the relevant price of such Share by reference to the relevant screen pages at the applicable Valuation Time on such last consecutive Common Trading Day; or
 - (B) an Index, the Calculation Agent shall determine the relevant level of such Index by reference to the relevant screen pages at the applicable Valuation Time on such last consecutive Common Trading Day; or
- (iii) for each Affected Common Basket Asset which is:
 - (A) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on that last consecutive Common Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (iii)(A) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time of such Share in respect of such Averaging Reference Date);
 - (B) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on that last consecutive Common Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Common Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Common Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Common Trading Day), and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (iii)(B) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of such Averaging Reference Date,

provided that,

- (c) if the relevant Final Terms specify "No Adjustment" to be applicable, then the Averaging Reference Date for each Common Basket Asset shall be the Scheduled Averaging Reference Date, notwithstanding the fact that such Scheduled Averaging Reference Date is not a Common Trading Day or is a Disrupted Day for one or more Common Basket Assets, and where such Common Basket Asset is:
 - (i) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on such Averaging Reference Date (and such determination by the Calculation Agent pursuant to this paragraph (c)(i) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time in respect of the relevant Averaging Reference Date); or
 - (ii) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on such Averaging Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Averaging Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Averaging Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in

Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on such Averaging Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Averaging Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (c)(ii) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of the relevant Averaging Reference Date.

1.3 Multi-Asset Basket and Reference Dates – Common Trading Day but Individual Disrupted Day

If the relevant Final Terms specify "Multi-Asset Basket and Reference Dates – Basket Valuation (Common Trading Day but Individual Disrupted Day)" to be applicable to the Common Basket Assets, the following provisions shall apply:

- (a) if the Calculation Agent determines that any Scheduled Reference Date is a Common Trading Day that is not a Disrupted Day for each Common Basket Asset, then the Reference Date for each Common Basket Asset shall be such Scheduled Reference Date;
- (b) if (i) the Calculation Agent determines that any Scheduled Reference Date is a Common Trading Day but is a Common Disrupted Day, or (ii) the Calculation Agent determines that any Scheduled Reference Date is not a Common Trading Day, in which case the Reference Date for each Common Basket Asset shall be the first succeeding Common Trading Day following such Scheduled Reference Date, provided that if such Common Trading Day is a Disrupted Day for one or more Common Basket Assets, then, in respect of (i) and (ii), the following provisions shall apply:
 - (i) if the Calculation Agent determines that such Common Trading Day is not a Disrupted Day for a Common Basket Asset, then the Reference Date for such Common Basket Asset shall be such Common Trading Day;
 - (ii) if the Calculation Agent determines that such Common Trading Day is a Disrupted Day for a Common Basket Asset, then the Reference Date for such Common Basket Asset shall be the first succeeding Scheduled Trading Day which the Calculation Agent determines is not a Disrupted Day for such Common Basket Asset, unless the Calculation Agent determines that each of the consecutive Scheduled Trading Days equal in number to the Maximum Days of Disruption immediately following such Common Trading Day is a Disrupted Day for such Common Basket Asset. In that case:
 - (A) that last consecutive Scheduled Trading Day shall be deemed to be the Reference Date for such Common Basket Asset, notwithstanding the fact that such day is a Disrupted Day for such Common Basket Asset; and
 - (B) where such Common Basket Asset is:
 - (I) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on that last consecutive Scheduled Trading Day (and such determination by the Calculation Agent pursuant to this paragraph 1.3(b)(ii)(B)(I) shall be deemed to be the relevant Closing Share Price for such Share at the relevant Valuation Time in respect of the relevant Reference Date); or
 - (II) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on that last consecutive Scheduled Trading Day in accordance with the formula for and method of, calculating

such Index last in effect prior to the occurrence of the first Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Scheduled Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Scheduled Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Scheduled Trading Day) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph 1.3(b)(ii)(B)(II) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of the relevant Reference Date,

provided that,

- (c) if the relevant Final Terms specify "No Adjustment" to be applicable, then in respect of a Reference Date and a Common Basket Asset, the Reference Date for such Common Basket Asset shall be the Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Common Trading Day or is a Disrupted Day for any Common Basket Asset, and where such Common Basket Asset is:
 - (i) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on such Reference Date (and such determination by the Calculation Agent pursuant to this paragraph (c)(i) shall be deemed to be the Closing Share Price of such Share at the relevant Valuation Time in respect of the relevant Reference Date); or
 - (ii) an Index, and the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on such Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on such Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (c)(ii) shall be deemed to be the Closing Index Level of such Index at the relevant Valuation Time in respect of the relevant Reference Date.

1.4 Multi-Asset Basket and Reference Dates – Common Trading Day and Common Disrupted Day

If the relevant Final Terms specify "Multi-Asset Basket and Reference Dates – Basket Valuation (Common Trading Day and Common Disrupted Day)" to be applicable to the Common Basket Assets, the following provisions shall apply:

- (a) if the Calculation Agent determines that any Scheduled Reference Date is a Common Trading Day that is not a Common Disrupted Day, then the Reference Date for each Common Basket Asset shall be such Scheduled Reference Date;
- (b) if the Calculation Agent determines that any Scheduled Reference Date is not a Common Trading Day or is a Common Trading Day that is a Common Disrupted Day, then the Reference Date for each Common Basket Asset shall be the first succeeding Common Trading Day following such Scheduled Reference Date which the Calculation Agent

determines is not a Common Disrupted Day, unless the Calculation Agent determines that each of the consecutive Common Trading Days equal in number to the Maximum Days of Disruption immediately following such Scheduled Reference Date is a Common Disrupted Day. In that case:

- (i) that last consecutive Common Trading Day shall be deemed to be such Reference Date for each Common Basket Asset, notwithstanding the fact that such day is a Disrupted Day for one or more Common Basket Assets (such Common Basket Assets being "Affected Common Basket Assets" for such Reference Date, and each such Common Basket Asset being an "Affected Common Basket Asset" for such Reference Date);
- (ii) for each Common Basket Asset other than an Affected Common Basket Asset, where such Common Basket Asset is:
 - (A) a Share, the Calculation Agent shall determine the relevant price of such Share by reference to the relevant screen pages at the applicable Valuation Time on such last consecutive Common Trading Day; or
 - (B) an Index, the relevant level of such Index by reference to the relevant screen pages by the Calculation Agent at the applicable Valuation Time on such last consecutive Common Trading Day; and
- (iii) for each Affected Common Basket Asset which is:
 - (A) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on that last consecutive Common Trading Day (and such determination by the Calculation Agent pursuant to this paragraph (iii)(A) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time of such Share in respect of such Reference Date);
 - (B) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on that last consecutive Common Trading Day in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of the first Common Disrupted Day, using the Exchange traded or quoted price as of the relevant Valuation Time on that last consecutive Common Trading Day of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on that last consecutive Common Trading Day, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on that last consecutive Common Trading Day), and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (iii)(B) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of such Reference Date,

provided that,

- (c) if the relevant Final Terms specify "No Adjustment" to be applicable, then in respect of a Reference Date and a Common Basket Asset, the Reference Date for such Common Basket Asset shall be the Scheduled Reference Date, notwithstanding the fact that such Scheduled Reference Date is not a Common Trading Day or is a Common Disrupted Day, and where such Common Basket Asset is:

- (i) a Share, the Calculation Agent shall determine its good faith estimate of the relevant price for such Share as of the relevant Valuation Time on such Reference Date (and such determination by the Calculation Agent pursuant to this paragraph (c)(i) shall be deemed to be the relevant Closing Share Price of such Share at the relevant Valuation Time in respect of the relevant Reference Date); or
- (ii) an Index, the Calculation Agent shall determine the relevant level of such Index as of the relevant Valuation Time on such Reference Date in accordance with the formula for and method of, calculating such Index last in effect prior to the occurrence of such Reference Date, using the Exchange traded or quoted price as of the relevant Valuation Time on such Reference Date of each Component comprised in such Index (or, if an event giving rise to a Disrupted Day (as defined in Share Linked Condition 7 (Definitions)) has occurred in respect of any relevant Component that is a share on such Reference Date, its good faith estimate of the value for the relevant Component as of the relevant Valuation Time on such Reference Date) and, in respect of such Index, such determination by the Calculation Agent pursuant to this paragraph (c)(ii) shall be deemed to be the relevant Closing Index Level of such Index at the relevant Valuation Time in respect of the relevant Reference Date.

2. DEFINITIONS

In these Multi-Asset Basket Linked Conditions, unless the context otherwise requires, the following terms shall have the respective meanings set out below:

"Averaging Reference Date" in respect of an Underlying Asset which is:

- (a) a Share, has the meaning given to it in the Share Linked Conditions; or
- (b) an Index, has the meaning given to it in the Index Linked Conditions.

"Common Basket Assets" means the Underlying Assets in a Multi-Asset Basket (each, a **"Common Basket Asset"**).

"Common Disrupted Day" means a day which is a Disrupted Day for one or more Underlying Assets in a Multi-Asset Basket.

"Common Trading Day" means, in respect of a Multi-Asset Basket, a day which is Scheduled Trading Day for all the Underlying Assets in such Multi-Asset Basket.

"Common Valid Date" means a Common Trading Day that is not a Common Disrupted Day and on which another Averaging Reference Date does not or is not deemed to occur.

"Disrupted Day" in respect of an Underlying Asset which is:

- (a) a Share, has the meaning given to it in the Share Linked Conditions; or
- (b) an Index, has the meaning given to it in the Index Linked Conditions.

"Maximum Days of Disruption" means, in respect of Multi-Asset Basket Linked Instruments:

- (a) where the relevant Final Terms specify "Multi-Asset Basket and Reference Dates – Basket Valuation (Common Trading Day but Individual Disrupted Day)" to be applicable, eight Scheduled Trading Days; or
- (b) where the relevant Final Terms specify "Multi-Asset Basket and Averaging Reference Dates –Basket Valuation (Common Trading Day and Common Disrupted Day)" or "Multi-Asset

Basket and Reference Dates – Basket Valuation (Common Trading Day and Common Disrupted Day)" to be applicable, eight Common Trading Days,

or, in each case, such other number of Scheduled Trading Days or Common Trading Days, as applicable, as specified in the relevant Final Terms.

"Multi-Asset Basket" means, subject to adjustment in accordance with the Share Linked Conditions or Index Linked Conditions (as applicable), a basket composed of Underlying Assets in the relative proportions or numbers of Underlying Assets, as specified in the relevant Final Terms, other than a Share Basket or an Index Basket.

"Reference Date" in respect of an Underlying Asset which is:

- (a) a Share, has the meaning given to it in the Share Linked Conditions; or
- (b) an Index, has the meaning given to it in the Index Linked Conditions.

"Scheduled Averaging Reference Date" in respect of an Underlying Asset which is:

- (a) a Share, has the meaning given to it in the Share Linked Conditions; or
- (b) an Index, has the meaning given to it in the Index Linked Conditions.

"Scheduled Reference Date" in respect of an Underlying Asset which is:

- (a) a Share, has the meaning given to it in the Share Linked Conditions; or
- (b) an Index, has the meaning given to it in the Index Linked Conditions.

"Scheduled Trading Day" in respect of an Underlying Asset which is:

- (a) a Share, has the meaning given to it in the Share Linked Conditions; or
- (b) an Index, has the meaning given to it in the Index Linked Conditions.

"Underlying Asset" means an Index or a Share (and collectively the **"Underlying Assets"**).

"Valid Date" means a Scheduled Trading Day that is not a Disrupted Day and on which another Averaging Reference Date does not or is not deemed to occur.

"Valuation Time" in respect of an Underlying Asset which is:

- (a) a Share, has the meaning given to it in the Share Linked Conditions; or
- (b) an Index, has the meaning given to it in the Index Linked Conditions.

FORM OF FINAL TERMS / PRICING SUPPLEMENT

*Where Notes are to be listed or admitted to trading on the Global Exchange Market of Euronext Dublin (the "**GEM**"), references in this form of Final Terms to "Base Prospectus" shall be replaced with references to "Base Listing Particulars" and references to "Final Terms" shall be replaced with "Pricing Supplement", which should be read in conjunction with the Base Listing Particulars.*

GUARANTEED SENIOR SECURED NOTES PROGRAMME

issued by

GOLDMAN SACHS INTERNATIONAL

in respect of which the payment and delivery obligations are guaranteed by

THE GOLDMAN SACHS GROUP, INC.

(THE "PROGRAMME")

FINAL TERMS

DATED [●]

**SERIES 20[●]-[●] SENIOR SECURED [[SHARE][INDEX] LINKED][EXTENDIBLE] [[FIXED][FLOATING] RATE]
NOTES[RELATING TO [UNDERLYING ASSET[S]]]**

(THE "SERIES")

ISIN: [●]

Common Code: [●]

PART A – CONTRACTUAL TERMS

This document constitutes the Final Terms of the above Series of Notes (the "**Notes**") [for the purposes of Regulation (EU) 2017/1129 (the "**EU Prospectus Regulation**") *[Delete if not applicable]*¹ and must be read in conjunction with the Base Prospectus dated on or about 29 September 2025, as supplemented from time to time (the "**Base Prospectus**"), and in particular, the Base Terms and Conditions of the Notes, as set out therein. Full information on the Issuer, The Goldman Sachs Group. Inc. (the "**Guarantor**"), and the terms and conditions of the Notes, is only available on the basis of the combination of these Final Terms and the Base Prospectus [as so supplemented]. The Base Prospectus has been published at www.euronext.com/en/markets/dublin and is available for viewing during normal business hours at the registered office of the Issuer, and copies may be obtained from the specified office of the listing agent in Ireland.

The Issuer accepts responsibility for the information contained in these Final Terms. To the best of the knowledge of the Issuer and the Guarantor the information contained in the Base Prospectus, as completed by these Final Terms in relation to the Series of Notes referred to above, is true and accurate in all material respects and, in the context of the issue of this Series, there are no other material facts the omission of which would make any statement in such information misleading.

[Solely for the purposes of the manufacturer's product approval process, the target market assessment in respect of the Notes has led to the conclusion that: (i) the target market for the Notes is eligible counterparties and professional clients only, each as defined in Directive 2014/65/EU (as amended, "**MiFID II**"); and (ii) all channels for distribution of the Notes to eligible counterparties and professional

¹ Drafting Note: Delete all references to the prospectus regulation for exempt issuances.

clients are appropriate. Any person subsequently offering, selling or recommending the Notes (a "**distributor**") should take into consideration the manufacturer's target market assessment; however, a distributor subject to MiFID II is responsible for undertaking its own target market assessment in respect of the Notes (by either adopting or refining the manufacturer's target market assessment) and determining appropriate distribution channels.]²

[PROHIBITION OF SALES TO EEA RETAIL INVESTORS: The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the European Economic Area ("**EEA**"). For these purposes, a retail investor means a person who is one (or more) of: (i) a retail client as defined in point (11) of Article 4(1) of [MiFID II][Directive 2014/65/EU (as amended, "**MiFID II**")]; (ii) a customer within the meaning of Directive (EU) 2016/97, as amended where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II; or (iii) not a qualified investor as defined in [the Prospectus Regulation] Regulation (EU) 2017/1129 (the "**EU Prospectus Regulation**"). Consequently no key information document required by Regulation (EU) No 1286/2014 (as amended the "**EU PRIIPs Regulation**") for offering or selling the Notes or otherwise making them available to retail investors in the EEA has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the EEA may be unlawful under the PRIIPs Regulation.]³

[PROHIBITION OF SALES TO UK RETAIL INVESTORS: The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the United Kingdom. For these purposes, a retail investor means a person who is one (or more) of: (i) a retail client, as defined in point (8) of Article 2 of Regulation (EU) No 2017/565 as it forms part of domestic law by virtue of the European Union (Withdrawal) Act 2018 (as amended, the "**EUWA**") or (ii) a customer within the meaning of the provisions of the Financial Services and Markets Act 2000 (as amended, the "**FSMA**") and any rules or regulations made under the FSMA to implement Directive (EU) 2016/97, where that customer would not qualify as a professional client, as defined in point (8) of Article 2(1) of Regulation (EU) No 600/2014 as it forms part of domestic law by virtue of the EUWA; or (iii) not a qualified investor as defined in Article 2 of Regulation (EU) 2017/1129 as it forms part of domestic law by virtue of the EUWA and regulations made thereunder (the "**UK Prospectus Regulation**"). Consequently no key information document required by Regulation (EU) No 1286/2014 as it forms part of domestic law by virtue of the EUWA (as amended, the "**UK PRIIPs Regulation**") for offering or selling the Notes or otherwise making them available to retail investors in the United Kingdom has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the United Kingdom may be unlawful under the UK PRIIPs Regulation.

Notwithstanding the above paragraph, in the case where the Final Terms in respect of any Notes include a legend entitled "Prohibition of Sales to UK Retail Investors" but where the Issuer subsequently prepares and publishes a key information document under the UK PRIIPs Regulation in respect of the such Notes, then following such publication, the prohibition on the offering, sale or otherwise making available the Notes to a retail investor in the United Kingdom as described in the above paragraph and in such legend shall no longer apply.][⁴]⁵

THIS NOTE HAS NOT BEEN REGISTERED UNDER THE U.S. SECURITIES ACT OF 1933, AS AMENDED (THE "**SECURITIES ACT**"), AND MAY NOT BE SOLD OR OTHERWISE TRANSFERRED IN THE ABSENCE OF SUCH REGISTRATION OR AN APPLICABLE EXEMPTION THEREFROM.

² Drafting Note: Delete for 144A issuances.

³ Drafting Note: To be applied where there is an applicable EU nexus.

⁴ Drafting Note: To be applied where there is an applicable UK nexus.

⁵ Drafting Note: Either or both, as applicable, of the above legends are only to be included where the relevant series has underlying linked redemption, or redemption, call option or extension feature.

[EACH PURCHASER OF THIS NOTE IS HEREBY NOTIFIED THAT THE SELLER OF THIS NOTE MAY BE RELYING ON THE EXEMPTION FROM THE PROVISIONS OF SECTION 5 OF THE SECURITIES ACT PROVIDED BY RULE 144A THEREUNDER.

THIS NOTE MAY NOT BE OFFERED, SOLD, PLEDGED OR OTHERWISE TRANSFERRED EXCEPT (A)(1) TO A PERSON WHO THE TRANSFEROR REASONABLY BELIEVES IS A QUALIFIED INSTITUTIONAL BUYER WITHIN THE MEANING OF RULE 144A UNDER THE SECURITIES ACT ACQUIRING FOR ITS OWN ACCOUNT OR FOR THE ACCOUNT OF ONE OR MORE QUALIFIED INSTITUTIONAL BUYERS IN A TRANSACTION MEETING THE REQUIREMENTS OF RULE 144A, (2) PURSUANT TO AN EXEMPTION FROM REGISTRATION UNDER THE SECURITIES ACT, (3) OUTSIDE THE UNITED STATES PURSUANT TO THE TERMS AND CONDITIONS OF REGULATION S UNDER THE SECURITIES ACT OR (4) PURSUANT TO A REGISTRATION STATEMENT THAT HAS BEEN DECLARED EFFECTIVE UNDER THE SECURITIES ACT AND (B) IN ACCORDANCE WITH ALL APPLICABLE SECURITIES LAWS OF THE STATES OF THE UNITED STATES AND OTHER JURISDICTIONS.]⁶

[NEITHER THIS NOTE NOR ANY INTEREST OR PARTICIPATION HEREIN MAY BE OFFERED, SOLD, ASSIGNED, TRANSFERRED, PLEDGED, ENCUMBERED OR OTHERWISE DISPOSED OF IN THE ABSENCE OF SUCH REGISTRATION UNLESS THE TRANSACTION IS EXEMPT FROM, OR NOT SUBJECT TO, THE REGISTRATION REQUIREMENTS OF THE U.S. SECURITIES ACT.]⁷

THIS NOTE AND ANY RELATED DOCUMENTATION MAY BE AMENDED OR SUPPLEMENTED FROM TIME TO TIME TO MODIFY THE RESTRICTIONS ON REALES AND OTHER TRANSFERS OF THIS NOTE TO REFLECT ANY CHANGE IN APPLICABLE LAW OR REGULATION (OR THE INTERPRETATION THEREOF) OR IN PRACTICES RELATING TO THE RESALE OR TRANSFER OF RESTRICTED SECURITIES GENERALLY. THE HOLDER OF THIS NOTE SHALL BE DEEMED BY THE ACCEPTANCE OF THIS NOTE TO HAVE AGREED TO ANY SUCH AMENDMENT OR SUPPLEMENT.

THIS LEGEND CAN ONLY BE REMOVED AT THE OPTION OF THE ISSUER.

Unless terms are defined herein, capitalised terms shall have the meanings given to them in the Base Prospectus.

The Final Terms of the Notes comprise the following:

1. **Issuer:** Goldman Sachs International.
2. **Guarantor:** The Goldman Sachs Group, Inc.
3. (a) **Series Number:** [•]
(b) **Tranche Number:** [•]
(If fungible with an existing Series, details of that Series, including the date on which the Notes become fungible)
4. **Note Currency:** [•]
5. **Aggregate Note Principal Amount:** [•]
(This field does not need to be completed where the sub-paragraphs are used. Sub-paragraphs can be deleted if there are no separate tranches as a result of a tap issuance.)

⁶ Drafting Note: Include for 144A issuances.

⁷ Drafting Note: Include for Reg S issuances.

- (a) [Series:] [●]
- (b) [Tranche:] [●]
6. **Issue Price:** [[100% of the Aggregate Note Principal Amount.]/[●]]
- (In the case of fungible issues, if applicable, include any accrued interest in the issue price)*
- (Potential investors should note that, for any Series of Structured Notes, the Final Redemption Amount for each Note will be calculated in accordance with item 35 below, based on the performance of the Underlying Asset(s) and will not be determined by reference to the principal amount or face amount of the Note. If this applies, Noteholders could receive less or more than the principal amount of their Notes, and depending on the performance of the Underlying Asset(s) and the applicable payout, their entire investment could be at risk.)*
7. **Minimum Denomination:** The Notes shall be issuable in minimum denominations of [●] and integral multiples of [●] in excess thereof.
8. **Issue Date:** The Notes shall be issued on [●].
9. **Scheduled Maturity Date** [●]
- [For Extendible Notes: The Maturity Date may be deferred to a later date by an Extension Notice (see item 33 below).]*
10. **Maturity Date:** The Maturity Date is the Scheduled Maturity Date. [[Maturity Date – Share Linked Condition [●] (*Definitions*) / Maturity Date – Index Linked Condition [●] (*Definitions*) is applicable].
- (a) Strike Date: [[●] / [Not Applicable]]
- (b) Relevant Determination Date: [[Latest Reference Date in respect of the] / [Last Averaging Date/Valuation Date/Final Pricing Date/Final Reference Date] / [The Final Reference Date to fall latest in time] / [●]] [*(specify other date)*].
- (c) Scheduled Determination Date: [●] [Not Applicable]
- (d) Settlement Period: [●] Business Days
11. **Redemption Basis:** [[Redemption at par] / [Underlying Linked]]
- (If Underlying Linked, then all items [●] to [●] should be "Not Applicable")*

12. **Collateral** "Other Information—Details of Collateral" below identifies the [Eligible Repurchase Agreements] / [Eligible Loan Documents] / [Eligible Custody Agreement] / [Securities Account] / [Brokerage Account Agreement] / [Brokerage Account] / [Eligible Derivatives Agreement] / [Trustee Custody Account Agreement] / [Eligible Repurchase Agreements] and details of the [Eligible Repo Securities], to be entered into with respect to the Notes, [the Brokerage Account], [the Trustee Custody Account], the Tripartite Custody Accounts, and [the USD Account] established on or prior to the Issue Date in which funds and/or property allocable to the collateral may be credited.
13. **[Date [Board] approval for issuance of Notes obtained]:** *[Only relevant where Board (or similar) authorisation is required for a particular tranche of Notes]*
- INTEREST PROVISIONS**
14. **Interest Basis:** [[Fixed Rate] / [Floating Rate] / [Not Applicable]]
15. **Interest Rate:** [For fixed rate notes: [●] per cent. per annum]
- [For floating rate notes: [Reference Rate] [plus Margin] [Margin: [●] per cent.]]
- [For notes that do not bear interest: Not applicable]
- [The Issuer and the Beneficial Owners (acting unanimously) may agree to modify this Interest Rate provision by service of a Modification Notice to the Trustee and Principal Paying Agent.]
16. **Defaulted Interest:** [[Applicable, as set out in General Condition 8.3.] / [Applicable] / [Not Applicable]] *(If Applicable but not subject to General Condition 8.3, complete the sub-paragraphs in accordance with the term sheet. If Not Applicable, delete the remaining sub-paragraphs of this paragraph)*
- (a) **Defaulted Interest Margin:** [[2.00 per cent. per annum plus the then applicable Interest Rate.] / [●]] *(If Applicable, as set out in General Condition 8.3, remove the square brackets)*
- (b) **Overdue Interest Grace Period:** [[2 Payment Business Days.] / [●]] *(If Applicable as set out in General Condition 8.3 remove the square brackets and blob)*
- (c) **Defaulted Interest Payment Date:** [[The 30th calendar day following the Overdue Interest Payment Date.] / [●]] *[(specify relative to applicable Overdue Interest Payment Date)] (If Applicable as set out in General Condition 8.3, remove the square brackets)*
17. **Interest Amount payable (rounding):** Interest due will be rounded [up][down] to the nearest whole [●]
18. **Interest Commencement Date:** [●]
19. **Interest Payment Dates:** [●]

[The Issuer and the Beneficial Owners (acting unanimously) may agree to modify this Interest Payment Date provision by service of a Modification Notice to the Trustee and Principal Paying Agent.]

20. **Interest Period End Dates:** [•]
21. **Interest Determination Dates:** [[With respect to an Interest Period, the first day of that Interest Period.] / [•]]
22. **[Interest Reset Dates]:** [•]
23. **Agent Bank:** [[Goldman Sachs International] / [•] / [Not Applicable]].
24. **Interest Amount Day Count Fraction:** [[Actual/360] / [Actual/365] / [30/360]]
25. **[Reference Rate]:** [[EURIBOR] / [AUD-BBR-BBSW] / [CAD-BA-CDOR] / [CHF-SARON-OIS-COMPOUND] / [CZK-PRIBOR-PRBO] / [DKK-CIBOR-DKNA13] / [EUR-EuroSTR-COMPOUND] / [GBP-SONIA-COMPOUND] / [GBP-WMBA-SONIA-COMPOUND] / [HKD-HIBOR-HIBOR] / [HKD-HONIX-OIS-COMPOUND] / [HUF-BUBOR-Reuters] / [ILS-TELBOR01-Reuters] / [JPY-TIBOR-TIBM (10 Banks)] / [JPY-TIBOR-TIBM (5 Banks)] / [JPY-TIBOR-TIBM (All Banks)] / [JPY-TONA-OIS-COMPOUND] / [MYR-KLIBOR-BNM] / [NOK-NIBOR-NIBR] / [NZD-BBR-BID] / [PLN-WIBOR-WIBO] / [SEK-STIBOR-SIDE] / [SGD-SIBOR-Reuters] / [SGD-SONAR-OIS-COMPOUND] / [THB-SOR-Reuters] / [USD-Federal Funds-H.15] / [USD-SOFR] / [USD-SOFR-COMPOUND] / [USD-Federal Funds-H.15-OIS-COMPOUND] / [ZAR-JIBAR-SAFEX] / [•]]
26. **[Administrator]:** [As at the date of these Final Terms, [ICE Benchmark Administration Limited] / [European Money Markets Institute] / *[insert name[s] of the administrator[s]]* [is / are] [not] included in the register of administrators and benchmarks established and maintained by ESMA pursuant to article 36 of the Benchmark Regulation.]
27. **[Relevant Screen Page]:** [•]

REDEMPTION PROVISIONS

28. **Early Redemption Amount:**
- (a) **Event of Default:** [[Par plus accrued] / [Fair Market Value] / [•]]
- Adjusted for Issuer Expenses and Costs: [[Applicable] / [Not Applicable]]
- (b) **Change in Law (Illegality):** [[Par plus accrued] / [Fair Market Value] / [•]]
- Adjusted for Issuer Expenses and Costs: [[Applicable] / [Not Applicable]]
- (c) **Extraordinary Event:** [[Par plus accrued] / [Fair Market Value] / [•] / [Not Applicable]]

(Not Applicable should be specified unless the Notes are Share Linked Notes)

Adjusted for Issuer Expenses and Costs: [[Applicable] / [Not Applicable]]

- (d) Change in Law (Increased Cost): [[Par plus accrued] / [Fair Market Value] / [●] / [Not Applicable]]

(Not Applicable should be specified unless the Notes are Share Linked Notes or Index Linked Notes)

Adjusted for Issuer Expenses and Costs: [[Applicable] / [Not Applicable]]

- (e) Index Adjustment Event: [[Par plus accrued] / [Fair Market Value] / [●] / [Not Applicable]]

(Not Applicable should be specified unless the Notes are Index Linked Notes)

Adjusted for Issuer Expenses and Costs: [[Applicable] / [Not Applicable]]

- (f) Index-Linked Derivatives Contract Adjustment Event: [[Par plus accrued] / [Fair Market Value] / [●] / [Not Applicable]]

(Not Applicable should be specified unless the Notes are Index Linked Notes for which "Index-Linked Derivatives Contract Provisions" are applicable)

Adjusted for Issuer Expenses and Costs: [Applicable / Not Applicable]

29. **Final Redemption Amount of each Note:** [[●] per Minimum Denomination]

(If Final Redemption Amount is not linked to any Underlying Asset(s), delete the remaining sub-paragraphs of this paragraph)

[In cases where the Final Redemption Amount is Share Linked and/or Index Linked:] [[Payout Conditions apply (see further particulars specified at item [●] below).] / [Not Applicable]].

[Provisions for determining Final Redemption Amount where calculated by reference to Share and/or Index:] [[Payout Conditions apply (see further particulars specified at item [●] below).] / [Not Applicable]].

30. **Call Option (non-GMSLA):** [[Applicable] / [Not Applicable]]

(If Not Applicable, delete the remaining sub-paragraph of this paragraph)

[Optional Redemption Date(s) (Call):] [●].

[Optional Redemption Amount(s) (Call) of each Note and method, if any, of calculation of such amount(s):] [●].

[Notice period:] [●].

31. **Call Option (GMSLA):** [[Applicable] / [Not Applicable]]

(If Not Applicable, delete the remaining sub-paragraph of this paragraph)

(a) [Optional Redemption Date(s) (Call):] [Any date following the Default Valuation Time in respect of a Termination Date under the GMSLA (as defined below).]

(b) [Optional Redemption Amount:] [The Issuer may, at its option, redeem all outstanding Notes in full, but not in part, at a redemption price equal to the sum of (a) 100 per cent. of the Principal Amount so redeemed and any accrued and unpaid interest on the Principal Amount so redeemed to but excluding the Optional Redemption Date and (b) either the amount (expressed as a negative number) payable to the Issuer under Clause 11 of the GMSLA or the amount (expressed as a positive number) payable by the Issuer under Clause 11 of the GMSLA, in each case as determined by the Issuer in accordance with the terms of the GMSLA with respect only to the Loan or Loans (each as defined in the GMSLA) which reference the Notes as Collateral (as defined in the GMSLA). The Optional Redemption Amount shall be paid by the Issuer by the delivery of Equivalent Securities (as defined in the GMSLA) which would otherwise have been delivered by the Issuer under the GMSLA having a value (as determined by the Issuer in its sole discretion) at least equal to the Optional Redemption Amount to the Trustee Custody Account.

GMSLA means, the Global Master Securities Lending Agreement between the Issuer and [name of Counterparty] dated [●] which references the Notes as Collateral (as defined in the GMSLA).

The initial purchaser of the Notes has signed a letter agreeing to bring to the attention of any transferee of the Notes the terms of the Call Option contained in the terms of the Notes and set out above.]

32. **Put Option:** [[Applicable] / [Not Applicable]]

(If Not Applicable, delete the remaining sub-paragraph of this paragraph)

(a) [Optional Redemption Date(s) (Put):] [●]

[Specified Time:] [[●] / [Not Applicable]]

(b) [Optional Redemption Amount(s) (Put) of each Note and method, if any, of calculation of such amount(s):] [●]

[Accrued interest payable:] [[Applicable] / [Not Applicable]]

(c) [Optional Redemption Notice Period (Put):] [[●] Business Days]

33. **Extension Option:** ☐ [Applicable] / ☐ [Not Applicable]
- (If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (If the Extension Option applies more than once, each relevant date should be listed for the paragraphs below)*
- (a) ☐ [First] Extension Notice Date:] ☐ [•]
- (b) ☐ [First] Exercise Deadline:] ☐ [•]
- (c) ☐ [First] Extension Effective Time:] ☐ [5pm in London on the Exercise Deadline[in respect of all Extension Dates]]/☐ [•]]
- (Include date and time if not at the closure of the Exercise Period, ie 5pm on the Exercise Deadline, in accordance with Condition 12)*
- (d) ☐ [First] Extension Implementation Date:] ☐ [5 (five) Business Days after the Exercise Deadline]/☐ [•]]
- (Include date if not five Business Days after the Exercise Deadline in accordance with Condition 12)*
- (e) ☐ [First] Extended Maturity Date:] ☐ [•]
- (f) ☐ [Final Maturity Date:] ☐ [•]

STRUCTURED NOTE PROVISIONS

34. **Underlying Asset(s):** ☐ [The] Share[s] (as defined below) ☐ [Exchange Traded Fund[s] (as defined below)] ☐ [Ind[ex/ices] (as defined below)] ☐ [•] (Specify relevant futures contract), being the ☐ [futures/options] contract relating to the Index, with the expiration month of ☐ [•] (Specify) (the "Index-Linked Derivatives Contract") (further particulars specified below) / ☐ [Not Applicable].

PAYOUT PROVISIONS

35. **Single Limb Payout:** ☐ [Applicable] / ☐ [Not Applicable] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (a) ☐ [Delta-One Security:] ☐ [Applicable] / ☐ [Not Applicable]
- (If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) ☐ [Reference Price (Initial):] ☐ [•] per cent. of the ☐ [Initial Closing Price] ☐ [Initial Price] ☐ [Initial Average Price] ☐ [Entry Level] ☐ [(specify amount)] ☐ [In respect of each Underlying Asset, the amount specified in the Underlying Asset Table as set out in Part C in the column entitled "Reference Price (Initial)" in the row corresponding to such Underlying] ☐ [Not Applicable].
- (ii) ☐ [Reference Price (Final):] ☐ [Final Closing Price] / ☐ [Final Average Price]
- (iii) ☐ [Cap:] ☐ [•] / ☐ [Not Applicable]
- (iv) ☐ [Floor:] ☐ [•] / ☐ [Not Applicable]

- (b) [Delta-One (Performance):] Security [[Applicable] / [Not Applicable]]
(Only applicable for Notes with a basket of Underlying Assets)
(If Not Applicable, delete the remaining sub-paragraph of this paragraph)
- (i) [Perf:] [[Underlying Asset Performance] / [Basket Performance] [Maximum Performance] / [Minimum Performance] / [Temple Basket Performance]]
- (A) [Final/Initial (FX):] [[Applicable] / [Not Applicable]] *(If not applicable, delete the following sub-paragraph)*
- (B) [Asset FX:] [[Non-Inverse Return] / [Inverse Return]]
- (C) [Reference (Final):] Price [[Final Closing Price] / [Final Average Price] / [Lookback Price]]. [For the purposes of the definition of Lookback Price, [highest] / [lowest] is applicable.]
- (D) [Reference (Initial):] Price [[●] per cent. of the] / [Initial Closing Price] / [Initial Price] [Initial Average Price] / [Entry Level] [(specify amount)] / [In respect of each Underlying Asset, the amount specified in the Underlying Asset Table as set out in Part C in the column entitled "Reference Price (Initial)" in the row corresponding to such Underlying Asset] / [Not Applicable]]
- (E) [i:] [[●] / [Not Applicable]]
- (F) [Replacement Performance:] [[●] [per cent.] / [Not Applicable]]
- (G) [Local Cap:] [[●] / [Not Applicable]]
- (H) [Local Floor:] [[●] / [Not Applicable]]
- (ii) [Cap:] [[●] / [Not Applicable]]
- (iii) [Floor:] [[●] / [Not Applicable]]

36. **Multiple Limb Payout:** Not Applicable

(a) Barrier Event Conditions: Not Applicable

(b) Trigger Event Conditions: Not Applicable

VALUATION PROVISION

37. **Valuation Date(s):** [[●] / [Adjusted Valuation Date] / [Not Applicable]].

(If Not Applicable, delete the remaining sub-paragraph of this paragraph)

[If Maturity Date Roll on Payment Date Adjustment is specified to be applicable, insert:

[The [●] [Expected Scheduled Trading Day / Expected Common Scheduled Trading Day] preceding the Adjusted Scheduled Maturity Date.]]

- [The Valuation Date is expected to be [●] as of the date of these Final Terms.]
- [- Final Reference Date:** The [Valuation Date] scheduled to fall on [●] [immediately preceding the Maturity Date].]
- [- Number of Relevant Days for the purposes of "Final Reference Date":]** [[●] [Business Days/Scheduled Trading Days/Fund Calculation Days/days] / [Not Applicable]].
- [- Lookback Observation Date:** [[Each Valuation Date] / [The Valuation Dates scheduled to fall on [●]] / [Not Applicable]]
- 38. Entry Level Observation Dates:** [Applicable] [Not Applicable]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- [[●] [The First Entry Level Observation Date, and each of the [●] / [Scheduled Trading Days for such Underlying Asset] [Common Scheduled Trading Days for all Underlying Assets] following the First Entry Level Observation Date].]
- [- First Entry Level Observation Date:]** [●], or if such day is not a [Scheduled Trading Day for such Underlying Asset] / [Common Scheduled Trading Day for all Underlying Assets], the first following [Scheduled Trading Day for such Underlying Asset] / [Common Scheduled Trading Day for all Underlying Assets].
- (a) [Entry Level:] [[Lowest / Highest] is Applicable.]
- (b) [Entry Level Observation Period:] [[Applicable] / [Not Applicable].] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- [[No] Extension is Applicable].
- (i) [Entry Level Observation Period Start Date:] [In respect of each Underlying, [●]] / [The Initial Valuation Date scheduled to fall on] [●] [(and such date shall be [included in] [excluded from] the Entry Level Observation Period)] [Not Applicable].
- (ii) [Entry Level Observation Period End Date:] [In respect of each Underlying, [●]] / [The Initial Valuation Date scheduled to fall on] [●] [(and such date shall be [included in] [excluded from] the Entry Level Observation Period)] / [Not Applicable].
- (iii) [Entry Level Observation Specified Date:] [[Scheduled Trading Day] / [Common Scheduled Trading Day] / [Not Applicable].]
- (c) Consequences of Non-Scheduled Trading Days, Non-Common Disrupted Days or Disrupted Days in respect of an Entry Level Observation Date:
- (i) [Share / Index] Linked Condition 1.2: [[Applicable] / [Not Applicable]] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (A) [Omission:] [[Applicable] / [Not Applicable]]
- (B) [Postponement:] [[Applicable] / [Not Applicable]]

- (C) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (D) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [As specified in Index Linked Condition 7] / [[●] (specify number of days)] / [Not Applicable].]
- (E) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (ii) [Share / Index] Linked Condition 1.4: [[Applicable] / [Not Applicable]] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (A) [Omission:] [[Applicable] / [Not Applicable]]
- (B) [Postponement:] [[Applicable] / [Not Applicable]]
- (C) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (D) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [As specified in Index Linked Condition 7] / [[●] (specify number of days)] / [Not Applicable].]
- (E) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (iii) [Share / Index] Linked Condition 1.6: [[Applicable] / [Not Applicable]] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (A) [Omission:] [[Applicable] / [Not Applicable]]
- (B) [Postponement:] [[Applicable] / [Not Applicable]]
- (C) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (D) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [As specified in Index Linked Condition 7] / [[●] (specify number of days)] / [Not Applicable].]
- (E) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (iv) [Share / Index] Linked Condition 1.8: [[Applicable] / [Not Applicable]] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (A) [Omission:] [[Applicable] / [Not Applicable]]
- (B) [Postponement:] [[Applicable] / [Not Applicable]]
- (C) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (D) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [As specified in Index Linked Condition 7] / [[●] (specify number of days)] / [Not Applicable].]
- (E) [No Adjustment:] [[Applicable] / [Not Applicable]]
39. [Initial Valuation Date(s)]: [[●] / [Adjusted Valuation Date] / [Not Applicable].]

40. **Averaging:** [[Applicable] / [Not Applicable]] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (a) [Averaging Dates]: [[●] / [Not Applicable]]
- (b) [Initial Averaging Date(s)]: [[●] / [Not Applicable]]
- (c) [Last Averaging Date]: [[●] / [Not Applicable]]
- (d) [Last Initial Averaging Date]: [[●] / [Not Applicable]]
- (e) Last Initial Averaging Dates: [[●] / [Not Applicable]]
- (f) [Final Set First Averaging Date]: [[●] / [Not Applicable]]*(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- [– Specified Number of Scheduled Trading Days for the purposes of Final Set of Averaging Dates:] [[●] / [Scheduled Trading Days]]
- (g) [Initial Average Price:] [[Initial Average Share Price] / [Initial Average Closing Share Price] / [Initial Average Index Level] / [Initial Average Closing Index Level] / [Not Applicable]].
41. **Asset Initial Price:** [[In respect of [each/the] Underlying Asset,] [●] [being] [the] [Initial Closing Price] [Initial Average Price] [Initial Price] [Entry Level] [of such Underlying Asset] [In respect of each Underlying Asset, as set forth in the Underlying Asset Table in the column entitled "Asset Initial Price" in the row corresponding to such Underlying Asset] / [Not Applicable]].
42. **Adjusted Asset Final Reference Date:** [[Latest Reference Date / Latest Determination Date] in respect of the] [Final Reference Date / Last Averaging Date / Final Pricing Date] / [Not Applicable].
43. **Adjusted Asset Initial Reference Date:** [[Latest Reference Date / Latest Determination Date] in respect of the] [Initial Reference Date / Last Initial Averaging Date / Last Initial Pricing Date] / [Not Applicable].]

SHARE LINKED NOTE / INDEX LINKED NOTE

44. **Types of Notes** The Notes are [Share Linked Notes – the Share Linked Conditions are applicable / Index Linked Notes – the Index Linked Conditions are applicable / linked to the Index-Linked Derivatives Contract (as defined in paragraph [●] above). The Notes are also Index Linked Notes – the Index Linked Conditions are applicable].
45. **Share Linked Notes:** [[Applicable] / [Not Applicable]]
- (If not applicable, delete the remaining sub-paragraphs of this paragraph)*
- (a) [Single Share or Share Basket or Multi-Asset Basket:] [Single Share[, being a Share of an Exchange Traded Fund] / Share Basket] / [The/Each Share comprising the Multi-Asset Basket].

- (b) [Name of Share(s):] [As specified in the column entitled "Underlying Asset" in the Underlying Asset Table / [The [ordinary shares] [preference shares] [●] of] [*Name of Share(s) or Share Issuer*] / The shares of the [Exchange Traded Fund / (*Bloomberg: [●]; ISIN: [●]*)].
- (If the Share is the shares of an Exchange Traded Fund, insert the following sub-paragraph of this paragraph)*
- [– Exchange Traded Fund[s]:] [*Name of Share(s)/Exchange Traded Fund(s)*] (*Bloomberg: [●]; ISIN: [●]*)
- (c) [Share Weighting] [[As specified in the column entitled "Share Weighting" in the Underlying Asset Table] / [One] / [●]]
- (d) [Share Issuer is a US incorporated entity.] [Yes] / [No]
- (e) [Exchange(s):] [[●] / [As specified in the column entitled "Exchange" in the Underlying Table]].
- (f) [Related Exchange(s):] [[●] / [All Exchanges]].
- (g) [Options Exchange:] [[●] / [Related Exchange]].
- (h) [Latest Reference Date:] [[Applicable] / [Not Applicable]]
- (i) [Valuation Time:] [[Default Valuation Time] / [Other (*specify time*)]].
- (j) Single Share and Reference Dates – Consequences of Disrupted Days: [[Applicable [in respect of each Reference Date] / [in respect of [*insert relevant Reference Dates*]] as specified in Share Linked Condition 1.1] / [Not Applicable]]. (*If Not Applicable, delete the remaining sub-paragraphs of this paragraph*)
- (i) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [Other (*specify*)] / [Not Applicable]].
- (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (k) Single Share and Averaging Reference Dates – Consequences of Disrupted Days: [Applicable [in respect of each Averaging Reference Date] / [in respect of [*insert relevant Averaging Reference Dates*]] – as specified in Share Linked Condition 1.2 / Not Applicable]. (*If Not Applicable, delete the remaining sub-paragraphs of this paragraph*)
- (i) [Omission:] [[Applicable] / [Not Applicable]]
- (ii) [Postponement:] [[Applicable] / [Not Applicable]]
- (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (iv) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [Other (*specify*)] / [Not Applicable]].
- (l) Share Basket and Reference Dates – Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day): [[Applicable [in respect of each Reference Date] / [in respect of [*insert relevant Reference Dates*]] – as specified in Share Linked Condition 1.3] / [Not Applicable]]. (*If Not Applicable, delete the remaining sub-paragraphs of this paragraph*)

- (i) [Maximum Days of Disruption:] [[As defined in Share Linked Condition 7] / [Other (*specify*) / [Not Applicable]].
 - (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (m) Share Basket and Averaging Reference Dates – Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day):
 - [[Applicable [in respect of each Averaging Reference Date] / [in respect of [*insert relevant Averaging Reference Dates*]] – as specified in Share Linked Condition 1.4 / [Not Applicable]]. (*If Not Applicable, delete the remaining sub-paragraph of this paragraph*)
 - (i) [Omission:] [[Applicable] / [Not Applicable]]
 - (ii) [Postponement:] [[Applicable] / [Not Applicable]]
 - (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
 - (iv) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [Other (*specify*) / [Not Applicable]].
 - (v) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (n) Share Basket and Reference Dates – Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day):
 - [[Applicable [in respect of each Reference Date] / [in respect of [*insert relevant Reference Dates*]] – as specified in Share Linked Condition 1.5 / Not Applicable]. (*If Not Applicable, delete the remaining sub-paragraphs of this paragraph*)
 - (i) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [Other (*specify*) / [Not Applicable]].
 - (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (o) Share Basket and Averaging Reference Dates – Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day):
 - [[Applicable [in respect of each Averaging Reference Date] / [in respect of [*insert relevant Averaging Reference Dates*]] – as specified in Share Linked Condition 1.6] / [Not Applicable]. (*If Not Applicable, delete the remaining sub-paragraphs of this paragraph*)
 - (i) [Omission:] [[Applicable] / [Not Applicable]]
 - (ii) [Postponement:] [[Applicable] / [Not Applicable]]
 - (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
 - (iv) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [Other (*specify*) / [Not Applicable]].
 - (v) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (p) Share Basket and Reference Dates – Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day):
 - [[Applicable [in respect of each Reference Date] / [in respect of [*insert relevant Reference Dates*]] – as specified in Share Linked Condition 1.7] / [Not Applicable]]. (*If Not Applicable, delete the remaining sub-paragraphs of this paragraph*)
 - (i) [Maximum Days of Disruption:] [[As specified in Share Linked Condition 7] / [Other (*specify*) / [Not Applicable]].
 - (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]

- (q) Share Basket and Averaging Reference Dates – Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day): [[Applicable [in respect of each Averaging Reference Date] / [in respect of *[insert relevant Averaging Reference Dates]*] – as specified in Share Linked Condition 1.8] / [Not Applicable]]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Omission:] [[Applicable] / [Not Applicable]]
- (ii) [Postponement:] [[Applicable] / [Not Applicable]]
- (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (iv) [Maximum Days of Disruption:] [As specified in Share Linked Condition 7 / Other (*specify*) / Not Applicable].
- (v) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (r) Fallback Valuation Date: [Applicable / Not Applicable, in respect of [Final Reference Date/Initial Reference Date/Final Pricing Date/*specify date(s)*], the Fallback Valuation Date is *[specify date(s)]* / Default Fallback Valuation Date is applicable in respect of [Final Reference Date/Initial Reference Date/Final Pricing Date/*specify date(s)*]].
- (s) Change in Law (Increased Cost): [[Applicable] / [Not Applicable]]
- (t) Extraordinary Event – Share Substitution: [[Applicable] / [Not Applicable]]
- (u) Correction of Share Price: [[Applicable] / [Not Applicable]]
- (v) Correction Cut-off Date: [Not Applicable].
- [Default Correction Cut-off Date is applicable in respect of: [[the/each] Valuation Date/ Initial Valuation Date/ each Reference Date/ each Initial Reference Date/ each Averaging Reference Date /*specify date(s)*].]
- [In respect of [[the/each] Valuation Date/ Initial Valuation Date/each Reference Date [(other than the Final Reference Date)] / [the/each] Initial Reference Date/ [the/each] Averaging Reference Date /*specify date(s)*], *[[insert number]* Business Days prior to [the Maturity Date / the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the price of [the/such] Underlying] / [●] (*specify date(s)*)].] *(repeat as necessary)*
- (w) Depositary Receipts Provisions: [Applicable / Not Applicable]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Depositary Receipts:] [●]
- (ii) [Underlying Shares:] [[●] / [As specified in Share Linked Condition 5.1(b)]].
- (iii) [Underlying Share Issuer:] [[●] / [As specified in Share Linked Condition 5.1(b)]].

- (iv) [Exchange(s) in respect of ☐ / [As specified in Share Linked Condition 5.1(b)].
Underlying Shares:]
- (v) [Related Exchange(s) in ☐ / [As specified in Share Linked Condition 5.1(b)].
respect of Underlying
Shares:]
- (vi) [Valuation Time in respect ☐ [As specified in Share Linked Condition 5.1(d)] / [Other
of Underlying Shares:] *(specify time and place)*]].
- (x) Ordinary Dividend Adjustment: [Applicable / Not Applicable]. *(If Not Applicable, delete the
remaining sub-paragraph of this paragraph)*
 - (i) [Dividend Period Start In respect of [the/each] Share, ☐ / [the date specified in the
Date:] Dividend Table in the column entitled "Dividend Period Start
Date" in the row corresponding to such Share].
 - (ii) [Dividend Period End In respect of [the/each] Share, ☐ (specify date) / [the date
Date:] specified in the Dividend Table in the column entitled
"Dividend Period End Date" in the row corresponding to
such Share].]
 - (iii) [Contractual Dividend:] In respect of [the/each] Share, ☐ / [the/each] amount
specified in the Dividend Table in the column entitled
"Contractual Dividend" in the row corresponding to such
Share].]
 - (iv) [Contractual Ex-Dividend In respect of [the/each] Share, ☐ / [the/each] date specified
Date:] in the Dividend Table in the column entitled "Contractual Ex-
Dividend Date" in the row corresponding to such Share].

46. Index Linked Notes:

☐ [Applicable] / ☐ [Not Applicable]]

*(If Not Applicable, delete the remaining sub-paragraph of
this paragraph)*

- (a) [Single Index or Index Basket:] ☐ [Single Index] / ☐ [Index Basket] / ☐ [The] / ☐ [Each] Index
comprising the Multi-Asset Basket]].]
- (b) [Name of Index(ices):] [As specified in the column entitled "Underlying" in the
Underlying Table/The *[Name of Index(ices) (Bloomberg
Code: ☐, ISIN: ☐)*] [(the "Index")]].
- (c) [Type of Index:] [Unitary Index / Multi-Exchange Index].
- (d) [Exchange(s):] ☐ / [As specified in Index Linked Condition 7 / Not
Applicable].
- (e) [Related Exchange(s):] ☐ / All Exchanges / Not Applicable].
- (f) [Options Exchange:] ☐ / Related Exchange / Not Applicable].
- (g) [Index Sponsor:] ☐
- (h) [Relevant Screen Page:] ☐ / Not Applicable].
- (i) [Valuation Time:] [Default Valuation Time / Other *(specify time)*]].
- (j) [Latest Reference Date:] ☐ [Applicable] / ☐ [Not Applicable]]

- (k) [Index-Linked Derivatives [[Applicable] / [Not Applicable]]
Contract Provisions:]
- (i) [Index-Linked Derivatives [Specify]
Contract:]
 - (ii) [Derivatives Exchange:] [Specify]
 - (iii) [Daily Settlement Price:] [[Not Applicable] / [As specified in Index Linked Condition 7 / Other (Specify)].]
 - (iv) [Final Settlement Price:] [[Not Applicable] / [As specified in Index Linked Condition 7 / Other (Specify)].]
 - (v) [Index Multiplier:] [[Not Applicable] / [(Specify)]]
 - (vi) [Index-Linked Derivatives [[Not Applicable] / [As specified in Index Linked Condition 7
Contract Price:] / Other (Specify)].]
 - (vii) [Special Quotation Price:] [[Not Applicable] / [As specified in Index Linked Condition 7 / Other (Specify)].]
- (l) Single Index and Reference Dates – Consequences of Disrupted Days: [Applicable [in respect of each Reference Date] / [in respect of [insert relevant Reference Dates]] – as specified in Index Linked Condition 1.1 / [where the Underlying is an Index-Linked Derivatives Contract] Applicable only if the Final Reference Price is the Final Index Level, pursuant to, in which case, as specified in Index Linked Condition 1.1 / Not Applicable]. (If Not Applicable, delete the remaining sub-paragraph of this paragraph)
- (i) [Maximum Days of Disruption:] [As specified in Index Linked Condition 7 / [where the Underlying is an Index-Linked Derivatives Contract] In respect of the Valuation Date, [eight] Scheduled Trading Days / Other (specify) / Not Applicable].
 - (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (m) Single Index and Averaging Reference Dates – Consequences of Disrupted Days: [Applicable [in respect of each Averaging Reference Date] / [in respect of [insert relevant Averaging Reference Dates]] – as specified in Index Linked Condition 1.2 / Not Applicable]. (If Not Applicable, delete the remaining sub-paragraph of this paragraph)
- (i) [Omission:] [[Applicable] / [Not Applicable]]
 - (ii) [Postponement:] [[Applicable] / [Not Applicable]]
 - (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
 - (iv) [Maximum Days of Disruption:] [[As specified in Index Linked Condition 7] / [Other (specify)] / [Not Applicable].]
 - (v) [No Adjustment:] [[Applicable] / [Not Applicable]]

- (n) Index Basket and Reference Dates – Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day): [Applicable [in respect of each Reference Date] / [in respect of *[insert relevant Reference Dates]*] – as specified in Index Linked Condition 1.3 / Not Applicable]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Maximum Days of Disruption:] [[As defined in Index Linked Condition 7] / [Other (*specify*)] / [Not Applicable].]
- (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (o) Index Basket and Averaging Reference Dates – Basket Valuation (Individual Scheduled Trading Day and Individual Disrupted Day): [Applicable [in respect of each Averaging Reference Date] / [in respect of *[insert relevant Averaging Reference Dates]*] – as specified in Index Linked Condition 1.4/ Not Applicable]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Omission:] [[Applicable] / [Not Applicable]]
- (ii) [Postponement:] [[Applicable] / [Not Applicable]]
- (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (iv) [Maximum Days of Disruption:] [As defined in Index Linked Condition 7 / Other (*specify*) / Not Applicable].
- (v) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (p) Index Basket and Reference Dates – Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day): [Applicable [in respect of each Reference Date] / [in respect of *[insert relevant Reference Dates]*] – as specified in Index Linked Condition 1.5 / Not Applicable]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Maximum Days of Disruption:] [As defined in Index Linked Condition 7 / Other (*specify*) / Not Applicable].
- (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (q) Index Basket and Averaging Reference Dates – Basket Valuation (Common Scheduled Trading Day but Individual Disrupted Day): [Applicable [in respect of each Averaging Reference Date] / [in respect of *[insert relevant Averaging Reference Dates]*] – as specified in Index Linked Condition 1.6 / Not Applicable]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Omission:] [[Applicable] / [Not Applicable]]
- (ii) [Postponement:] [[Applicable] / [Not Applicable]]
- (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (iv) Maximum Days of [Disruption:] [As defined in Index Linked Condition 7 / Other (*specify*) / Not Applicable].
- (v) [No Adjustment:] [[Applicable] / [Not Applicable]]

- (r) Index Basket and Reference Dates – Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day): [Applicable [in respect of each Reference Date] / [in respect of [insert relevant Reference Dates]] – as specified in Index Linked Condition 1.7 / Not Applicable]. *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Maximum Days of Disruption:] [As defined in Index Linked Condition 7 / Other (specify) / Not Applicable].
- (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (s) Index Basket and Averaging Reference Dates – Basket Valuation (Common Scheduled Trading Day and Common Disrupted Day): [Applicable [in respect of each Averaging Reference Date] / [in respect of [insert relevant Averaging Reference Dates]] – as specified in Index Linked Condition 1.8 / Not Applicable] *(If Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Omission:] [[Applicable] / [Not Applicable]]
- (ii) [Postponement:] [[Applicable] / [Not Applicable]]
- (iii) [Modified Postponement:] [[Applicable] / [Not Applicable]]
- (iv) [Maximum Days of Disruption:] [As defined in Index Linked Condition 7 / Other (specify) / Not Applicable].
- (v) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (t) Fallback Valuation Date: [Not Applicable / Applicable, in respect of [Valuation Date/Initial Valuation Date/Final Reference Date/specify date(s)], the Fallback Valuation Date is [specify date(s)] / Default Fallback Valuation Date is applicable in respect of [Valuation Date/Initial Valuation Date/Final Reference Date/specify date(s)]]
- (u) Index Modification: [Calculation Agent Adjustment / Index Substitution / Related Exchange Adjustment] / [Not Applicable]. [- see Index Linked Condition 3.2]
- (v) Index Cancellation: [Calculation Agent Adjustment / Index Substitution / Related Exchange Adjustment] / [Not Applicable] [- see Index Linked Condition 3.2].
- (w) Index Disruption: [Calculation Agent Adjustment / Index Substitution / Related Exchange Adjustment] / [Not Applicable] [- see Index Linked Condition 3.2].
- (x) Administrator/Benchmark Event: [Calculation Agent Adjustment / Index Substitution / Related Exchange Adjustment] / [Not Applicable] [- see Index Linked Condition 7].
- (y) Change in Law (Increased Cost): [[Applicable] / [Not Applicable]]
- (z) Correction of Index Level: [[Applicable] / [Not Applicable]]
- (aa) Correction Cut-off Date: [Not Applicable].

[Default Correction Cut-off Date is applicable in respect of: [[the/each] Valuation Date / Initial Valuation Date / each Reference Date/each Initial Reference Date/each Averaging Reference Date /specify date(s)].]

[In respect of [[the/each] Valuation Date/ Initial Valuation Date / each Reference Date [(other than the Final Reference Date)] / [the/each] Initial Reference Date/ [the/each] Averaging Reference Date / specify date(s)], [[insert number] Business Days prior to [the Maturity Date / the next following date upon which any payment or delivery of assets may have to be made by the Issuer by reference to the price of [the/such] Underlying] / [●] (specify date(s))].] (repeat as necessary)

(where the Underlying is an Index-Linked Derivatives Contract) [In respect of the Valuation Date, the second Business Day prior to the Maturity Date / specify date(s)].

(bb) Index Disclaimer: [[Applicable to an Index] / [Not Applicable]]

47. **Multi-Asset Basket Linked Notes:** [[Applicable] / [Not Applicable]] (If Not Applicable, delete the remaining sub-paragraph of this paragraph)

(a) [Multi-Asset Basket:] A basket composed of the Share(s) and the Ind[ex/ices] each as specified in the column entitled "Underlying Asset" in the Underlying Asset Table as set out in Part C below.

(b) Multi-Asset Basket and Averaging Reference Dates – Multi-Asset Basket Linked Condition 1.1 / Not Applicable]. (If Basket Valuation (Common Trading Day but Individual Disrupted Day): *Not Applicable, delete the remaining sub-paragraph of this paragraph*)

(i) [Postponement:] [[Applicable] / [Not Applicable]]

(ii) [Modified Postponement:] [[Applicable] / [Not Applicable]]

(iii) [Maximum Days of Disruption:] [As defined in Multi-Asset Basket Linked Condition 2 / Other (specify number of Common Trading Days) / Not Applicable.]

(iv) [No Adjustment:] [[Applicable] / [Not Applicable]]

(c) Multi-Asset Basket and Averaging Reference Dates – Multi-Asset Basket Linked Condition 1.2 / Not Applicable]. (If Basket Valuation (Common Trading Day and Common Disrupted Day): *Not Applicable, delete the remaining sub-paragraph of this paragraph*)

(i) [Postponement:] [[Applicable] / [Not Applicable]]

(ii) [Modified Postponement:] [[Applicable] / [Not Applicable]]

(iii) [Maximum Days of Disruption:] [As defined in Multi-Asset Basket Linked Condition 2 / Other (specify number of days of Common Trading Days) / Not Applicable].

(iv) No Adjustment: [[Applicable] / [Not Applicable]]

- (d) Multi-Asset Basket and [Applicable to the Common Basket Assets – as specified in Reference Dates – Basket Multi-Asset Basket Linked Condition 1.3 / Not Applicable]. *(If Valuation (Common Trading Day but Individual Disrupted Day): Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Maximum Days of [As defined in Multi-Asset Basket Linked Condition 2 / Other Disruption:]] *(specify number of days of Common Trading Days)* / Not Applicable]
- (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]
- (e) Multi-Asset Basket and [Applicable to the Common Basket Assets – as specified in Reference Dates – Basket Multi-Asset Basket Linked Condition 1.4 / Not Applicable]. *(If Valuation (Common Trading Day and Common Disrupted Day): Not Applicable, delete the remaining sub-paragraph of this paragraph)*
- (i) [Maximum Days of [As defined in Multi-Asset Basket Linked Condition 2 / Other Disruption:]] *(specify number of days of Common Trading Days)* / Not Applicable].
- (ii) [No Adjustment:] [[Applicable] / [Not Applicable]]

GENERAL PROVISIONS APPLICABLE TO THE NOTES

48. Rounding:

- (a) Non-Default Rounding – [[Applicable] / [Not Applicable]]
calculation values and
percentages: *(If Not Applicable, delete the remaining subparagraph of this paragraph)*
- [Specified Decimal Place:] [Fractional Entitlement / Bonus / Perf / Underlying Performance / Participation / Reference Price (Final) / Reference Price (Initial) / Floor / Cap / Strike / *specify other calculation value or percentage*]: rounded to [insert number] decimal place[s].
- (b) Non-Default Rounding – [[Applicable] / [Not Applicable]]
amounts due and payable: *(If Not Applicable, delete the remaining subparagraph of this paragraph)*
- [Specified Sub-Unit:] [All amounts due and payable / Final Redemption Amount / Interest Amount / Fixed Coupon Amount / Optional Redemption Amount (Call) / Optional Redemption Amount (Put): rounded [downwards/upwards] to next [higher/lower] [•] (*Specified Sub-Unit of relevant currency*)].
- (c) Other Rounding Convention: [[Applicable] / [Not Applicable]]
- (If Not Applicable, delete the remaining subparagraph of this paragraph)*
- (i) [Specified Decimal Place:] [Not Applicable] / [Rate of Interest / Margin / Participation Rate / *specify other amount*]: rounded to [insert number] decimal place[s].

- (ii) [Specified Sub-Unit:] [[Not Applicable] / [specify amount]]: [rounded [downwards/upwards] to next [higher/lower] [insert number] (Specified Sub-Unit of relevant currency)].
49. **Additional Business Centre(s):** [●] (Specify such place(s) as may be relevant) [Not Applicable]
50. **Form of Notes:** Registered Notes.

[Global Registered Note registered in the name of a nominee for [a common depositary for Euroclear and Clearstream, Luxembourg/a common safekeeper for Euroclear and Clearstream, Luxembourg/DTC] exchangeable for Definitive Notes in the limited circumstances described in the Global Registered Note].

[Regulation S Global Note[and Rule 144A Global Note, each] registered in the name of a nominee for a common depositary for Euroclear and Clearstream, Luxembourg and in the name of a nominee for DTC exchangeable for Definitive Notes in the limited circumstances described in the Global Registered Note]
51. **Additional Financial Centre(s) relating to Payment Business Days:** [[Not Applicable] / [●]] (Specify any Additional Financial Centre for the purposes of the definition of "Payment Business Day").
52. **Business Day Convention:** [Following Business Day Convention][Modified Following Business Day Convention][Preceding Business Day Convention][No Adjustment].
53. **Record Date:** Specified Day(s) for the purposes of General Condition [9]([(b)/(c)/(f)/(g))] is: [●] [business day[s]/ Business Day[s]/ day[s]/ Clearing System Business Day[s].][Not Applicable]
54. **Trade Date** [[●] / [As defined in the Definitions Conditions]]
55. **Calculation Agent:** [[Goldman Sachs International / [●]] [(specify other)].
56. **GS Retained Notes:** [[Applicable] / [Not Applicable]]
- DISTRIBUTION**
57. **[Prohibition of Sales to EEA Retail Investors:** [[Applicable] / [Not Applicable]]
58. **[Prohibition of Sales to UK Retail Investors:** [[Applicable] / [Not Applicable]]

PART B – OTHER INFORMATION

1. **Listing and Admission to Trading:** [Application [has been] / [will be] made to Euronext Dublin for the Notes to be admitted to the Official List and trading on its regulated market.]

[Application [has been] / [will be] made to Euronext Dublin for the Notes to be admitted to the Official List and trading on the GEM [on or about [●]]. The GEM is not a regulated market for the purposes of Directive 2014/65/EU.]

[Not Applicable]

(Where documenting a fungible issue need to indicate that original Notes are already admitted to trading.)
2. **[Estimated total expenses relating [●] to the admission to trading:]**
3. **CFI:** [[●]/[Not Applicable]]
4. **FISN:** [[●]/[Not Applicable]]
5. **[Liquidity]** [The Issuer intends to, under normal market conditions, provide a buyback price for the Notes upon request. However, the Issuer makes no firm commitment to provide liquidity for the Notes and assumes no legal obligation to quote any such price or with respect to the level or determination of such price. Potential Investors therefore should not rely on the ability to sell the Notes at a specific time or at a specific price.]
6. **Credit Ratings:** [[Applicable] / [Not Applicable]] *(If not applicable, delete the remaining sub-paragraphs)*

[The Notes to be issued [have been]/[are expected to be] rated:

[S & P: [●]]

[Moody's: [●]]

[Fitch: [●]]]

(Need to include a brief explanation of the meaning of the ratings if this has previously been published by the rating provider.)

(The above disclosure should reflect the rating allocated to Notes of the type being issued under the Programme generally or, where the issue has been specifically rated, that rating)
7. **Use and Estimated Net Amount of Proceeds:** [The net proceeds will be used toward the general business of the Issuer / [●].]

[If there is a particular identified use of proceeds please specify above.]

8. Eurosystem Eligibility

Notes are issued under the NSS and are intended to be held in a manner that would allow eligibility as collateral for Eurosystem intra-day credit and monetary policy operations

[Yes. (Note that the designation "yes" simply means that the Notes are intended upon issue to be deposited with one of the ICSDs as common safekeeper [(and registered in the name of a nominee of one of the ICSDs acting as common safekeeper)]*[include this text for registered notes]* and does not necessarily mean that the Notes will be recognized as eligible collateral for Eurosystem monetary policy and intra-day credit operations by the Eurosystem either upon issue or at any or all times during their life. Such recognition will depend upon the ECB being satisfied that Eurosystem eligibility criteria have been met.))

[No. (Whilst the designation is specified as "no" at the date of these Final Terms, should the Eurosystem eligibility criteria be amended in the future such that the Notes are capable of meeting them, the Notes may then be deposited with one of the ICSDs as common safekeeper [(and registered in the name of a nominee of one of the ICSDs acting as common safekeeper)]*[include this text for registered notes]*. Note that this does not necessarily mean that the Notes will then be recognised as eligible collateral for Eurosystem monetary policy and intra-day credit operations by the Eurosystem at any time during their life. Such recognition will depend upon the ECB being satisfied that Eurosystem eligibility criteria have been met.))

9. DTC Eligibility

Notes are intended to be held in a manner that would allow them to be cleared through DTC. [[Yes] / [No]]

DETAILS OF COLLATERAL

10. Eligible Repurchase Agreements

[The master repurchase agreement, dated as of [●], entered into by [●] and the Issuer for the Notes of Series [●], relating to [Participation Interests in Bank Loans/Mortgage Loans/Purchased Securities], (the "[Enter reference to Eligible GS Entity counterparty] **Repo Agreement**"), and the related Repo Transactions thereunder. The Issuer shall provide a copy of the [●] Repo Agreement [and any relevant Eligible Custody Agreement in connection with such [●] Repo Agreement] to the Holders of the Notes of such Series, upon their written or oral request.] *[Delete if not applicable.]*

11. Eligible Loan Documents

[The master loan and security agreement, dated as of [●], entered into by [●] and the Issuer acting with respect to the Notes of Series [●], relating to [Bank Loans/Purchased Securities], (the "[Enter reference to Eligible GS Entity counterparty] **Loan Agreement**"), and the related advances thereunder. The Issuer shall provide a copy of the [●] Loan Agreement [and any relevant Eligible Custody Agreement in connection with such [●] Repo Agreement] to the Holders of the Notes of such Series, upon their written or oral request.] *[Delete if not applicable.]*

12. **[Eligible Securities]** [●] *[Delete if not applicable.]*
13. **Required Collateral Amount** [Par] [Par plus accrued interest, if any] [The applicable Final Redemption Amount] [[●]% of par] [Fair Market Value] [●] *[Delete if not applicable.]*
14. **Eligible Derivatives Agreements** [The master agreements effecting derivatives transactions, entered into by the Issuer and the applicable derivatives agreements counterparties secured in respect of the Notes of Series [●]. The Issuer shall provide details of the Eligible Derivatives Agreement to the Holders of the Notes of such Series, upon their written or oral request.] *[Delete if not applicable.]*
15. **Eligible Custody Account** [The Eligible Custody Account opened for the account of the Issuer with [●] as Eligible Custodian with the respect to the Notes of Series [●], pursuant to an Eligible Custody Agreement, dated as of [●] between [●] and the Issuer. The Issuer shall provide a copy of the Eligible Custody Agreement to the Holders of the Notes of such Series, upon their written or oral request.] *[Delete if not applicable.]*
16. **Brokerage Account** [The Brokerage Account opened for the account of the Issuer pursuant to a Brokerage Account Agreement, dated as of 17 July 2009, entered into between Goldman Sachs International and the Issuer. The Issuer shall provide a copy of the Brokerage Account Agreement to the Holders of the Notes of such Series, upon their written or oral request.] *[Delete if not applicable.]*
17. **Trustee Custody Account** The Trustee Custody Account opened for the account of the Trustee pursuant to a Trustee Custody Account Agreement entered into between The Bank of New York Mellon, London Branch as Custodian and The Bank of New York Mellon, acting through its London Branch, as Trustee for the Holders of the Notes of Series [●]. The Issuer shall provide a copy of the Trustee Custody Account Agreement to the Holders of the Notes of such Series, upon their written or oral request. *[Delete if not applicable.]*
18. **Account Details** The following accounts will be established with respect to the Notes:
 - (a) The [Brokerage Account] maintained at Goldman Sachs International with account no. [●].
 - (b) The [Eligible Custody Account] maintained at [●] with account no. [●].
 - (c) The [Securities Account] maintained at [●] with account no. [●].
 - (d) The Trustee Custody Account maintained with The Bank of New York, London Branch, as custodian with account no. [●].
 - (e) The [USD Account] maintained at [●] (the "**USD Account**") with account no. [●].

[Delete if not applicable.]

19. **Margin Percentage:** The Margin Percentage for each type of Collateral Asset [(other than cash)] with respect to the Notes is [●]. [Delete if not applicable.]
20. **Margin Value:** [As specified in the Definitions Conditions.][The method of determining Margin Value for any Collateral Asset, or group of Collateral Assets with respect to the Notes is [●].]
21. **[Liquidation Agent]:** [●] [Delete if not applicable.]

TAX CONSIDERATIONS

22. **Classification for U.S. Tax Purposes** (Insert either of the following paragraphs, depending on whether the Notes will be treated as debt for U.S. tax purposes.)

[If the Notes are identified as not being debt instruments for U.S. tax purposes: We have determined that there is a material risk that the Notes will not be treated as debt instruments, but will rather be treated as a forward of derivative contract, for United States federal income tax purposes. In light of this possibility, we intend to treat the Notes in the manner described under "United States Taxation – United States Holders – Notes that are not Classified as Debt for United States Tax Purposes" and "United States Taxation – Non-United States Holders – Notes that are not Classified as Debt for United States Tax Purposes" in the Base Prospectus. However, this determination is not binding on the United States Internal Revenue Service ("IRS") and the IRS may disagree with the treatment. You should consult your own tax advisor regarding the U.S. tax consequences of purchasing, holding and disposing of the Notes.]

[If the Notes are identified as being debt instruments for U.S. tax purposes: We intend to treat the Notes, for United States federal income tax purposes, in the manner described under "United States Taxation – United States Holders – Notes that are Classified as Debt for United States Tax Purposes" and "United States Taxation – Non-United States Holders – Notes that are Classified as Debt for United States Tax Purposes" in the Base Prospectus. However, this determination is not binding on the United States Internal Revenue Service ("IRS") and the IRS may disagree with the treatment. You should consult your own tax advisor regarding the U.S. tax consequences of purchasing, holding and disposing of the Notes.]

23. **Section 871(m) Withholding Tax:** *(If the Notes are Share Linked Notes or Index Linked Notes, insert either of the following paragraphs, depending on whether the Notes are subject to Section 871(m) of the U.S. Internal Revenue Code of 1986, as amended. If the Notes are not Share Linked Notes or Index Linked Notes, insert "Not Applicable".)*

[If the Notes are subject to Section 871(m): The U.S. Treasury Department has issued regulations under which amounts paid or deemed paid on certain financial instruments that are

treated as attributable to U.S.-source dividends could be treated, in whole or in part depending on the circumstances, as a "dividend equivalent" payment that is subject to tax at a rate of 30 per cent. (or a lower rate under an applicable treaty). We have determined that, as of the issue date of the Notes, the Notes will be subject to withholding under these rules. The tax will be imposed at the full withholding tax rate even if you are otherwise eligible for a reduction in the rate under an applicable treaty. See "*United States Tax Considerations – Dividend Equivalent Payments*" in the Base Prospectus for a more comprehensive discussion of the application of Section 871(m) to the Notes.]

[If the Notes are not subject to Section 871(m): The U.S. Treasury Department has issued regulations under which amounts paid or deemed paid on certain financial instruments that are treated as attributable to U.S.-source dividends could be treated, in whole or in part depending on the circumstances, as a "dividend equivalent" payment that is subject to tax at a rate of 30 per cent. (or a lower rate under an applicable treaty). We have determined that, as of the issue date of the Notes, the Notes will not be subject to withholding under these rules. In certain limited circumstances, however, it is possible for United States alien holders to be liable for tax under these rules with respect to a combination of transactions treated as having been entered into in connection with each other even when no withholding is required. United States alien holders should consult their tax advisor concerning these regulations, subsequent official guidance and regarding any other possible alternative characterisations of their Notes for United States federal income tax purposes. See "*United States Tax Considerations – Dividend Equivalent Payments*" in the Base Prospectus for a more comprehensive discussion of the application of Section 871(m) to the Notes.]

[Not Applicable]

UNDERLYING ASSET INFORMATION

24. **Performance and volatility of the Underlying Asset:** [[Not Applicable] / [●]]

*(If the Notes are linked to one or more Underlying Assets and in respect of which Annex 17 of Commission Delegated Regulation (EU) 2019/980 supplementing the EU Prospectus Regulation (the "**PR Delegated Regulation**") applies, then must include details of where information on each Underlying Asset can be obtained including an indication of where information about the past and future performance and volatility of such Underlying Asset can be obtained by electronic means and whether or not it can be obtained free of charge. Otherwise specify "Not Applicable")*

[For each Underlying Asset that is an Index]:

[The Component Stocks included in the *[insert name of index]* and their respective weights and transaction cost rates are as specified in the table below:

<u>Component Stock</u>	<u>Weight</u>	<u>Transaction Cost Rate</u>
[•]	[•]	[•]
[•]	[•]	[•]

(Repeat for each Underlying Asset)

[[•]/[Not Applicable]]

(If Ordinary Dividend Adjustment is specified as applicable in Part A of the Final Terms, then information may be included here about historical dividends paid in respect of each Underlying Asset that is a Share.)

[The information provided above has been obtained from the Share Issuer's website at [•] without independent verification. Neither such material nor such website is incorporated by reference in this Base Prospectus.]

25. Index Disclaimer:

[[Not Applicable] / [Applicable – see disclaimer[s] in Part [D] to these Final Terms. *(Include Index Disclaimer(s) if applicable as part of Annex 28 additional information)*]]

26. Additional provisions relating to the Underlying Asset:

(The Issuer may, but is not obliged to, include additional information here as to additional provisions not required by the relevant securities note, relating to the Underlying Asset(s).)

[PART C – UNDERLYING ASSET TABLE]

[Delete table or columns if not required]

[Underlying Asset]	[Currency]	[Bloomberg / Reuters]	[ISIN] (specify if Underlying Asset is a Share)	[Exchange / Trading Facility]	[Index Sponsor]	[Reference Price (Initial)] (specify if applicable)	[Asset Initial Price] (specify if applicable)	[Initial Value]	[Weighting]
[The [ordinary shares] [•] of] [Name of Share(s) or Share Issuer] [The shares of the] [Name of Exchange Traded Fund(s)] / [The shares or units of] [Name/ Class of Fund] Index(ices) [[the /each an] "[•] Exchange Traded Fund "] Share/ Index/ Fund]	[•]	[•]	[•]	[•]	[•]	[•]	[•]	[•]	[•]
(repeat as required)	(repeat as required)	(repeat as required)	(repeat as required)	(repeat as required)	(repeat as required)	(repeat as required)	(repeat as required)	(repeat as required)	(repeat as required)

[PART [D] – DIVIDEND TABLE]

[Delete table or columns if not required]

[Underlying Asset]	[Dividend Period Start Date]	[Dividend Period End Date]	[Contractual Dividend]	[Contractual Ex- Dividend Date]
[The [ordinary shares] [●] of] [Name of Share(s) or Share Issuer]	[●]	[●]	[●]	[●]
<i>(repeat as required)</i>	<i>(repeat as required)</i>	<i>(repeat as required)</i> as	<i>(repeat as required)</i>	<i>(repeat as required)</i>

[PART [E] – INDEX DISCLAIMER]

[Insert index disclaimer(s), if applicable, where one or more Underlying Assets is an Index]

TAXATION

*The following is a general description of certain United Kingdom and United States tax considerations relating to the Notes. It does not constitute legal or tax advice. It does not purport to be a complete analysis of all tax considerations relating to the Notes, whether in the United Kingdom, United States or elsewhere. Prospective purchasers of Notes should be aware that ownership of the Notes, and any transactions involving the Notes, including the issue of any Notes, any purchase, disposal, lapse or redemption of, or other dealings in, the Notes and any transaction involved in the exercise and settlement of the Notes, may have tax consequences (including but not limited to withholding taxes and possible liabilities to stamp duties, transfer and registration taxes). The tax consequences may depend, amongst other things, upon the status and circumstances of the prospective purchaser, the terms and conditions of the particular Notes specified by the relevant Final Terms, and the applicable law and practice of taxation authorities in relevant jurisdictions. **The following is a general guide and should be treated with appropriate caution. Prospective purchasers of any Notes should consult their own tax advisers in relevant jurisdictions about the tax implications of holding any Notes and of any transaction involving any Notes.***

UNITED KINGDOM TAX CONSIDERATIONS

The following comments are of a general nature, based on current United Kingdom tax law as applied by the English Courts and our understanding of the generally published practice of His Majesty's Revenue & Customs ("HMRC") as at the date of this Base Prospectus, all of which may change at any time, possibly with retrospective effect. HMRC's published practice may not be binding on HMRC and there can be no guarantee that HMRC will not depart from it, either because of the presence of particular factual circumstances or generally. The following is a general summary only of the United Kingdom withholding taxation treatment of payments of and in respect of interest on the Notes together with some very general statements about stamp duty and stamp duty reserve tax. The comments below only apply to persons who are beneficial owners of the Notes and do not necessarily apply where any payment on the Notes is deemed for tax purposes to be the income of any other person. The comments are not exhaustive, and do not deal with other United Kingdom tax aspects of acquiring, holding, disposing of, exercising or dealing in the Notes. **Any prospective purchasers of any Notes who are in doubt as to their own tax position, or who may be subject to tax in a jurisdiction other than the United Kingdom, should consult their professional advisers.**

United Kingdom Withholding Tax

Interest payments

References to "interest" in this section mean interest as understood under United Kingdom tax law. For example, any redemption premium may be "interest" for United Kingdom withholding tax purposes, depending upon the particular terms and conditions of the relevant Notes.

Where a payment under the Notes constitutes (or, in certain circumstances, is treated as if it were) interest for United Kingdom tax purposes, the payment may be made without withholding or deduction for or on account of United Kingdom income tax in the following circumstances:

- (a) so long as the Issuer is authorised for the purposes of the Financial Services and Markets Act 2000 and its business consists wholly or mainly of dealing in financial instruments (as defined by section 984 of the Income Tax Act 2007, as amended) as principal, provided the payment is made in the ordinary course of that business; or
- (b) if the Notes are and continue to be "quoted Eurobonds" as defined in section 987 of the Income Tax Act 2007, as amended. The Notes will constitute "quoted Eurobonds" if they carry a right to interest and are and continue to be listed on a "recognised stock exchange" within the meaning of section 1005 of the Income Tax Act 2007, as amended. The Irish Stock Exchange trading as

Euronext Dublin is a recognised stock exchange for these purposes. The Notes will be treated as listed on Euronext Dublin if they are both admitted to trading on Euronext Dublin (including the Global Exchange Market) and are officially listed in Ireland in accordance with provisions corresponding to those generally applicable in EEA states.

In cases falling outside the exemptions described above, interest on the Notes may fall to be paid under deduction of United Kingdom income tax at the basic rate (currently 20 per cent.) subject to such relief as may be available following a direction from HMRC under the provisions of any applicable double taxation treaty or to any other exemption which may apply. However, this withholding will not apply if the relevant interest is paid on Notes with a maturity date of less than one year from the date of issue and which are not issued under arrangements the intention or effect of which is or would be to render such Notes part of a borrowing with a total term of a year or more.

Payments Made under the Guaranty

Depending on the correct legal analysis of payments made by the Guarantor as a matter of United Kingdom tax law, it is possible that payments attributable to interest made by the Guarantor would be subject to withholding on account of United Kingdom tax, subject to any claim which could be made under any applicable double taxation treaty.

United Kingdom Stamp Duty and Stamp Duty Reserve Tax

Depending on the terms and conditions specified by the Final Terms of any Note, there may be a charge to stamp duty and/or stamp duty reserve tax on the issue, transfer and/or exercise, of a Note, and in respect of transactions involving Notes.

THE PROPOSED FINANCIAL TRANSACTION TAX

The European Commission has published a proposal (the "**Commission's Proposal**") for a Directive for a common financial transaction tax ("**FTT**") in Belgium, Germany, Estonia, Greece, Spain, France, Italy, Austria, Portugal, Slovenia and Slovakia (the "**participating Member States**"). However, Estonia has since stated that it will not participate.

The Commission's Proposal has very broad scope and could, if introduced in its current form, apply to certain dealings in the Notes (including secondary market transactions) in certain circumstances.

Under the Commission's Proposal, the FTT could apply in certain circumstances to persons both within and outside of the participating Member States. Generally, it would apply to certain dealings in the Notes where at least one party is a financial institution, and at least one party is established in a participating Member State. A financial institution may be, or be deemed to be, "established" in a participating Member State in a broad range of circumstances, including (a) by transacting with a person established in a participating Member State or (b) where the financial instrument which is subject to the dealings is issued in a participating Member State.

The FTT remains subject to negotiation between the participating Member States and the legality of the proposal is uncertain. It may therefore be altered prior to any implementation, the timing of which remains unclear. Additional European Union Member States may decide to participate and/or certain of the participating Member States may decide to withdraw.

Prospective holders of the Notes are advised to seek their own professional advice in relation to the FTT.

UNITED STATES TAX CONSIDERATIONS

The following is a discussion of certain material U.S. federal income tax consequences of ownership and disposition of the Notes. It applies to you only if you purchase a Note for cash and hold it as a capital asset within the meaning of Section 1221 of the Internal Revenue Code.

This section does not apply to you if you are a member of a class of holders subject to special rules, such as:

- a dealer in securities or currencies;
- a trader in securities that elects to use a mark-to-market method of accounting for your securities holdings;
- a bank;
- a life insurance company;
- a tax exempt organization;
- a partnership;
- a regulated investment company;
- an accrual method taxpayer subject to special tax accounting rules as a result of its use of financial statements;
- a person that owns a Note as a hedge or that is hedged against interest rate or currency risks;
- a person that owns a Note as part of a straddle or conversion transaction for tax purposes; or
- a United States holder (as defined below) whose functional currency for tax purposes is not the U.S. dollar.

This section is based on the Internal Revenue Code, its legislative history, existing and proposed regulations under the Internal Revenue Code, published rulings and court decisions, all as currently in effect, which are subject to change, possibly on a retroactive basis.

You should consult your tax advisor concerning the U.S. federal income tax and any other applicable tax consequences of your investments in the Notes, including the application of state, local or other tax laws and the possible effects of changes in federal or other tax laws.

United States Holders

This section applies to you only if you are a United States holder. You are a "**United States holder**" if you are a beneficial owner of each of your Notes and you are:

- a citizen or resident of the United States;
- a domestic corporation;
- an estate whose income is subject to U.S. federal income tax regardless of its source; or
- a trust if a United States court can exercise primary supervision over the trust's administration and one or more United States persons are authorized to control all substantial decisions of the trust.

Notes that are Classified as Debt for United States Tax Purposes

The discussion in this subsection addresses the tax treatment of Notes that are treated as debt for United States federal income tax purposes. The applicable Final Terms will identify any Notes that we intend to treat as debt for United States federal income tax purposes.

*Payments of Interest*General

Except as described below in the case of interest on an original issue discount Note that is not qualified stated interest, each as defined below under "— United States Holders — Original Issue Discount — General", you will be taxed on any interest on your Note, whether payable in U.S. dollars or a non-U.S. dollar currency, including a composite currency or basket of currencies other than U.S. dollars, as ordinary income at the time you receive the interest or when it accrues, depending on your method of accounting for tax purposes.

Interest on the Notes will be treated as "passive category" foreign source income for United States federal income tax purposes for most U.S. Holders. Subject to generally applicable restrictions and conditions, if any foreign income taxes are withheld on interest payments on the Notes, a U.S. Holder will be entitled to a foreign tax credit in respect of any such foreign income taxes. Alternatively, the U.S. Holder may elect instead to deduct such taxes in computing taxable income for U.S. federal income tax purposes provided that the U.S. Holder does not elect to claim a foreign tax credit for any foreign income taxes paid or accrued for the relevant taxable year. Additionally, a foreign tax credit for foreign income taxes imposed with respect to the Notes may be denied where a U.S. Holder does not meet a minimum holding period requirement during which such U.S. Holder is not protected from risk of loss. The rules governing the foreign tax credit are complex. U.S. Holders are urged to consult their tax advisors regarding the availability of the foreign tax credit under their particular circumstances.

Non-U.S. Dollar Currency Notes — Cash Basis Taxpayers

If you are a taxpayer that uses the cash receipts and disbursements method of accounting for tax purposes and you receive an interest payment that is denominated in, or determined by reference to, a non-U.S. dollar currency, you must recognize income equal to the U.S. dollar value of the interest payment, based on the exchange rate in effect on the date of receipt, regardless of whether you actually convert the payment into U.S. dollars.

Non-U.S. Dollar Currency Notes — Accrual Basis Taxpayers

If you are a taxpayer that uses an accrual method of accounting for tax purposes, you may determine the amount of income that you recognize with respect to an interest payment denominated in, or determined by reference to, a non-U.S. dollar currency by using one of two methods. Under the first method, you will determine the amount of income accrued based on the average exchange rate in effect during the interest accrual period or, with respect to an accrual period that spans two taxable years, that part of the period within the taxable year.

If you elect the second method, you would determine the amount of income accrued on the basis of the exchange rate in effect on the last day of the accrual period, or, in the case of an accrual period that spans two taxable years, the exchange rate in effect on the last day of the part of the period within the taxable year. Additionally, under this second method, if you receive a payment of interest within five business days of the last day of your accrual period or taxable year, you may instead translate the interest accrued into U.S. dollars at the exchange rate in effect on the day that you actually receive the interest payment. If you elect the second method, it will apply to all debt instruments that you hold at the beginning of the first taxable year to which the election applies and to all debt instruments that you subsequently acquire. You may not revoke this election without the consent of the United States Internal Revenue Service.

When you actually receive an interest payment, including a payment attributable to accrued but unpaid interest upon the sale or retirement of your Note, denominated in, or determined by reference to, a non-U.S. dollar currency for which you accrued an amount of income, you will recognize ordinary income or loss measured by the difference, if any, between the exchange rate that you used to accrue interest

income and the exchange rate in effect on the date of receipt, regardless of whether you actually convert the payment into U.S. dollars.

Original Issue Discount

General

If you own a Note, other than a short-term Note with a term of one year or less, it will be treated as an original issue discount Note if the amount by which the Note's stated redemption price at maturity exceeds its issue price is more than a de minimis amount. Generally, a Note's issue price will be the first price at which a substantial amount of Notes included in the issue of which the Note is a part is sold to persons other than bond houses, brokers, or similar persons or organizations acting in the capacity of initial purchasers, placement agents, or wholesalers. A Note's stated redemption price at maturity is the total of all payments provided by the Note that are not payments of qualified stated interest. Generally, an interest payment on a Note is qualified stated interest if it is one of a series of stated interest payments on a Note that are unconditionally payable at least annually at a single fixed rate, with certain exceptions for lower rates paid during some periods, applied to the outstanding principal amount of the Note. There are special rules for variable rate Notes that are discussed below under "— Variable Rate Notes".

In general, your Note is not an original issue discount Note if the amount by which its stated redemption price at maturity exceeds its issue price is less than the de minimis amount of 0.25 percent of its stated redemption price at maturity multiplied by the number of complete years to its maturity. Your Note will have de minimis original issue discount if the amount of the excess is less than the de minimis amount. If your Note has de minimis original issue discount, you must include the de minimis amount in income as stated principal payments are made on the Note, unless you make the election described below under "— Election to Treat All Interest as Original Issue Discount". You can determine the includible amount with respect to each such payment by multiplying the total amount of your Note's de minimis original issue discount by a fraction equal to:

- the amount of the principal payment made
- divided by:*
- the stated principal amount of the Note.

Generally, if your original issue discount Note matures more than one year from its date of issue, you must include original issue discount in income before you receive cash attributable to that income. The amount of original issue discount that you must include in income is calculated using a constant-yield method, and generally you will include increasingly greater amounts of original issue discount in income over the life of your Note. More specifically, you can calculate the amount of original issue discount that you must include in income by adding the daily portions of original issue discount with respect to your original issue discount Note for each day during the taxable year or portion of the taxable year that you hold your original issue discount Note. You can determine the daily portion by allocating to each day in any accrual period a pro rata portion of the original issue discount allocable to that accrual period. You may select an accrual period of any length with respect to your original issue discount Note and you may vary the length of each accrual period over the term of your original issue discount Note. However, no accrual period may be longer than one year and each scheduled payment of interest or principal on the original issue discount Note must occur on either the first or final day of an accrual period.

You can determine the amount of original issue discount allocable to an accrual period by:

- multiplying your original issue discount Note's adjusted issue price at the beginning of the accrual period by your Note's yield to maturity; and then

- subtracting from this figure the sum of the payments of qualified stated interest on your Note allocable to the accrual period.

You must determine the original issue discount Note's yield to maturity on the basis of compounding at the close of each accrual period and adjusting for the length of each accrual period. Further, you determine your original issue discount Note's adjusted issue price at the beginning of any accrual period by:

- adding your original issue discount Note's issue price and any accrued original issue discount for each prior accrual period; and then
- subtracting any payments previously made on your original issue discount Note that were not qualified stated interest payments.

If an interval between payments of qualified stated interest on your original issue discount Note contains more than one accrual period, then, when you determine the amount of original issue discount allocable to an accrual period, you must allocate the amount of qualified stated interest payable at the end of the interval, including any qualified stated interest that is payable on the first day of the accrual period immediately following the interval, pro rata to each accrual period in the interval based on their relative lengths. In addition, you must increase the adjusted issue price at the beginning of each accrual period in the interval by the amount of any qualified stated interest that has accrued prior to the first day of the accrual period but that is not payable until the end of the interval. You may compute the amount of original issue discount allocable to an initial short accrual period by using any reasonable method if all other accrual periods, other than a final short accrual period, are of equal length.

The amount of original issue discount allocable to the final accrual period is equal to the difference between:

- the amount payable at the maturity of your Note, other than any payment of qualified stated interest; and
- your Note's adjusted issue price as of the beginning of the final accrual period.

Acquisition Premium

If you purchase your Note for an amount that is less than or equal to the sum of all amounts, other than qualified stated interest, payable on your Note after the purchase date but is greater than the amount of your Note's adjusted issue price, as determined above under "— General", the excess is acquisition premium. If you do not make the election described below under "— Election to Treat All Interest as Original Issue Discount", then you must reduce the daily portions of original issue discount by a fraction equal to:

- the excess of your adjusted basis in the Note immediately after purchase over the adjusted issue price of the Note
- divided by:*
- the excess of the sum of all amounts payable, other than qualified stated interest, on the Note after the purchase date over the Note's adjusted issue price.

Pre-Issuance Accrued Interest

An election may be made to decrease the issue price of your Note by the amount of pre-issuance accrued interest if:

- a portion of the initial purchase price of your Note is attributable to pre-issuance accrued interest;

- the first stated interest payment on your Note is to be made within one year of your Note's issue date; and
- the payment will equal or exceed the amount of pre-issuance accrued interest.

If this election is made, a portion of the first stated interest payment will be treated as a return of the excluded pre-issuance accrued interest and not as an amount payable on your Note.

Notes Subject to Contingencies Including Optional Redemption

Your Note is subject to a contingency if it provides for an alternative payment schedule or schedules applicable upon the occurrence of a contingency or contingencies, other than a remote or incidental contingency, whether such contingency relates to payments of interest or of principal. In such a case, you must determine the yield and maturity of your Note by assuming that the payments will be made according to the payment schedule most likely to occur if:

- the timing and amounts of the payments that comprise each payment schedule are known as of the issue date; and
- one of such schedules is significantly more likely than not to occur.

If there is no single payment schedule that is significantly more likely than not to occur, other than because of a mandatory sinking fund, you must include income on your Note in accordance with the general rules that govern contingent payment debt instruments. These rules will be discussed in the Final Terms.

Notwithstanding the general rules for determining yield and maturity, if your Note is subject to contingencies, and either you or we have an unconditional option or options that, if exercised, would require payments to be made on the Note under an alternative payment schedule or schedules, then:

- in the case of an option or options that we may exercise, we will be deemed to exercise or not exercise an option or combination of options in the manner that minimizes the yield on your Note; and
- in the case of an option or options that you may exercise, you will be deemed to exercise or not exercise an option or combination of options in the manner that maximizes the yield on your Note.

If both you and we hold options described in the preceding sentence, those rules will apply to each option in the order in which they may be exercised. You may determine the yield on your Note for the purposes of those calculations by using any date on which your Note may be redeemed or repurchased as the maturity date and the amount payable on the date that you chose in accordance with the terms of your Note as the principal amount payable at maturity.

If a contingency, including the exercise of an option, actually occurs or does not occur contrary to an assumption made according to the above rules then, except to the extent that a portion of your Note is repaid as a result of this change in circumstances and solely to determine the amount and accrual of original issue discount, you must redetermine the yield and maturity of your Note by treating your Note as having been retired and reissued on the date of the change in circumstances for an amount equal to your Note's adjusted issue price on that date.

Election to Treat All Interest as Original Issue Discount

You may elect to include in gross income all interest that accrues on your Note using the constant-yield method described above under "— General", with the modifications described below. For purposes of this election, interest will include stated interest, original issue discount, de minimis original issue discount, market discount, de minimis market discount and unstated interest, as adjusted by any

amortizable bond premium, described below under "— Notes Purchased at a Premium", or acquisition premium.

If you make this election for your Note, then, when you apply the constant-yield method:

- the issue price of your Note will equal your cost;
- the issue date of your Note will be the date you acquired it; and
- no payments on your Note will be treated as payments of qualified stated interest.

Generally, this election will apply only to the Note for which you make it; however, if the Note has amortizable bond premium, you will be deemed to have made an election to apply amortizable bond premium against interest for all debt instruments with amortizable bond premium, other than debt instruments the interest on which is excludible from gross income, that you hold as of the beginning of the taxable year to which the election applies or any taxable year thereafter. Additionally, if you make this election for a market discount Note, as defined below under "— Market Discount", you will be treated as having made the election discussed below under "— Market Discount" to include market discount in income currently over the life of all debt instruments having market discount that you acquire on or after the first day of the first taxable year to which the election applies. You may not revoke any election to apply the constant-yield method to all interest on a Note or the deemed elections with respect to amortizable bond premium or market discount Notes without the consent of the United States Internal Revenue Service.

Variable Rate Notes

Your Note will be a variable rate Note if:

- your Note's issue price does not exceed the total non-contingent principal payments by more than the lesser of:
 1. 0.015 multiplied by the product of the total non-contingent principal payments and the number of complete years to maturity from the issue date; or
 2. 15 percent of the total non-contingent principal payments; and
- your Note provides for stated interest, compounded or paid at least annually, only at:
 1. one or more qualified floating rates;
 2. a single fixed rate and one or more qualified floating rates;
 3. a single objective rate; or
 4. a single fixed rate and a single objective rate that is a qualified inverse floating rate; and
- the value of any floating rate on any date during the term of your Note is set no earlier than three months prior to the first day on which that value is in effect and no later than one year following that first day.

Your Note will have a variable rate that is a qualified floating rate if:

- variations in the value of the rate can reasonably be expected to measure contemporaneous variations in the cost of newly borrowed funds in the currency in which your Note is denominated; or

- the rate is equal to such a rate either:
 1. multiplied by a fixed multiple that is greater than 0.65 but not more than 1.35; or
 2. multiplied by a fixed multiple greater than 0.65 but not more than 1.35, and then increased or decreased by a fixed rate.

If your Note provides for two or more qualified floating rates that are within 0.25 percentage points of each other on the issue date or can reasonably be expected to have approximately the same values throughout the term of the Note, the qualified floating rates together constitute a single qualified floating rate.

Your Note will not have a qualified floating rate, however, if the rate is subject to certain restrictions (including caps, floors, governors, or other similar restrictions) unless such restrictions are fixed throughout the term of the Note or are not reasonably expected to significantly affect the yield on the Note.

Your Note will have a variable rate that is a single objective rate if:

- the rate is not a qualified floating rate; and
- the rate is determined using a single, fixed formula that is based on objective financial or economic information that is not within the control of or unique to the circumstances of the issuer or a related party.

Your Note will not have a variable rate that is an objective rate, however, if it is reasonably expected that the average value of the rate during the first half of your Note's term will be either significantly less than or significantly greater than the average value of the rate during the final half of your Note's term.

An objective rate as described above is a qualified inverse floating rate if:

- the rate is equal to a fixed rate minus a qualified floating rate and
- the variations in the rate can reasonably be expected to inversely reflect contemporaneous variations in the cost of newly borrowed funds.

Your Note will also have a single qualified floating rate or an objective rate if interest on your Note is stated at a fixed rate for an initial period of one year or less followed by either a qualified floating rate or an objective rate for a subsequent period, and either:

- the fixed rate and the qualified floating rate or objective rate have values on the issue date of the Note that do not differ by more than 0.25 percentage points; or
- the value of the qualified floating rate or objective rate is intended to approximate the fixed rate.

In general, if your variable rate Note provides for stated interest at a single qualified floating rate or objective rate, or one of those rates after a single fixed rate for an initial period of one year or less meeting one of the two requirements described above, all stated interest on your Note is qualified stated interest. In this case, the amount of original issue discount, if any, is determined by using, in the case of a qualified floating rate or qualified inverse floating rate, the value as of the issue date of the qualified floating rate or qualified inverse floating rate, or, for any other objective rate, a fixed rate that reflects the yield reasonably expected for your Note.

If your variable rate Note does not provide for stated interest at a single qualified floating rate or a single objective rate, and also does not provide for interest payable at a fixed rate other than a single fixed rate

for an initial period of one year or less meeting one of the two requirements described above, you generally must determine the interest and original issue discount accruals on your Note by:

- determining a fixed rate substitute for each variable rate provided under your variable rate Note;
- constructing the equivalent fixed rate debt instrument, using the fixed rate substitute described above;
- determining the amount of qualified stated interest and original issue discount with respect to the equivalent fixed rate debt instrument; and
- adjusting for actual variable rates during the applicable accrual period.

When you determine the fixed rate substitute for each variable rate provided under the variable rate Note, you generally will use the value of each variable rate as of the issue date or, for an objective rate that is not a qualified inverse floating rate, a rate that reflects the reasonably expected yield on your Note.

If your variable rate Note provides for stated interest either at one or more qualified floating rates or at a qualified inverse floating rate, and also provides for stated interest at a single fixed rate other than at a single fixed rate for an initial period of one year or less meeting one of the two requirements described above, you generally must determine interest and original issue discount accruals by using the method described in the previous paragraph. However, your variable rate Note will be treated, for purposes of the first three steps of the determination, as if your Note had provided for a qualified floating rate, or a qualified inverse floating rate, rather than the fixed rate. The qualified floating rate, or qualified inverse floating rate, that replaces the fixed rate must be such that the fair market value of your variable rate Note as of the issue date approximates the fair market value of an otherwise identical debt instrument that provides for the qualified floating rate, or qualified inverse floating rate, rather than the fixed rate.

Short-Term Notes

In general, if you are an individual or other cash basis United States holder of a Note with a fixed maturity of one year or less, a short-term Note, you are not required to accrue original issue discount, as specially defined below for the purposes of this paragraph, for United States federal income tax purposes unless you elect to do so (although it is possible that you may be required to include any stated interest in income as you receive it). If you are an accrual basis taxpayer, a taxpayer in a special class, including, but not limited to, a regulated investment company, common trust fund, or a certain type of pass-through entity, or a cash basis taxpayer who so elects, you will be required to accrue original issue discount on short-term Notes on either a straight-line basis or under the constant-yield method, based on daily compounding. If you are not required and do not elect to include original issue discount in income currently, any gain you realize on the sale or retirement of your short-term Note will be ordinary income to the extent of the accrued original issue discount, which will be determined on a straight-line basis unless you make an election to accrue the original issue discount under the constant-yield method, through the date of sale or retirement. However, if you are not required and do not elect to accrue original issue discount on your short-term Notes, you will be required to defer deductions for interest on borrowings allocable to your short-term Notes in an amount not exceeding the deferred income until the deferred income is realized.

When you determine the amount of original issue discount subject to these rules, you must include all interest payments on your short-term Note, including stated interest, in your short-term Note's stated redemption price at maturity.

Non-U.S. Dollar Currency Original Issue Discount Notes

If your original issue discount Note is denominated in, or determined by reference to, a non-U.S. dollar currency, you must determine original issue discount for any accrual period on your original issue discount

Note in the non-U.S. dollar currency and then translate the amount of original issue discount into U.S. dollars in the same manner as stated interest accrued by an accrual basis United States holder, as described above under "— United States Holders — Payments of Interest". You may recognize ordinary income or loss when you receive an amount attributable to original issue discount in connection with a payment of interest or the sale or retirement of your Note.

Market Discount

You will be treated as if you purchased your Note, other than a short-term Note, at a market discount, and your Note will be a market discount Note if the difference between the Note's stated redemption price at maturity or, in the case of an original issue discount Note, the Note's revised issue price, and the price you paid for your Note is equal to or greater than 0.25 percent of your Note's stated redemption price at maturity or revised issue price, respectively, multiplied by the number of complete years to the Note's maturity. To determine the revised issue price of your Note for these purposes, you generally add any original issue discount that has accrued on your Note to its issue price.

If your Note's stated redemption price at maturity or, in the case of an original issue discount Note, its revised issue price, exceeds the price you paid for the Note by less than 0.25 percent multiplied by the number of complete years to the Note's maturity, the excess constitutes de minimis market discount, and the rules discussed below are not applicable to you.

You must treat any gain you recognize on the maturity or disposition of your market discount Note as ordinary income to the extent of the accrued market discount on your Note. Alternatively, you may elect to include market discount in income currently over the life of your Note. If you make this election, it will apply to all debt instruments with market discount that you acquire on or after the first day of the first taxable year to which the election applies. You may not revoke this election without the consent of the United States Internal Revenue Service. If you own a market discount Note and do not make this election, you will generally be required to defer deductions for interest on borrowings allocable to your Note in an amount not exceeding the accrued market discount on your Note until the maturity or disposition of your Note.

If you own a market discount Note, the market discount would accrue on a straight-line basis unless an election is made to accrue market discount using a constant-yield method. If you make this election, it will apply only to the Note with respect to which it is made and you may not revoke it. You will, however, not include accrued market discount in income unless you elect to do so as described above.

Notes Purchased at a Premium

If you purchase your Note for an amount in excess of its principal amount (or, in the case of an original issue discount Note, in excess of its stated redemption price at maturity), you may elect to treat the excess as amortizable bond premium. If you make this election, you will reduce the amount required to be included in your income each accrual period with respect to interest on your Note by the amount of amortizable bond premium allocable to that accrual period, based on your Note's yield to maturity. If the amortizable bond premium allocable to an accrual period exceeds your interest income from the Notes for such accrual period, such excess is first allowed as a deduction to the extent of interest included in your income in respect of the debt securities in previous accrual periods and is then carried forward to your next accrual period. If the amortizable bond premium allocable and carried forward to the accrual period in which the Notes are sold, retired or otherwise disposed of exceeds your interest income for such accrual period, you would be allowed an ordinary deduction equal to such excess. If your Note is denominated in, or determined by reference to, a non-U.S. dollar currency, you will compute your amortizable bond premium in units of the non-U.S. dollar currency and your amortizable bond premium will reduce your interest income in units of the non-U.S. dollar currency. Gain or loss recognized that is attributable to changes in foreign currency exchange rates between the time your amortized bond premium offsets interest income and the time of the acquisition of your Note is generally taxable as

ordinary income or loss. If you make an election to amortize bond premium, it will apply to all debt instruments, other than debt instruments the interest on which is excludible from gross income, that you hold at the beginning of the first taxable year to which the election applies or that you thereafter acquire, and you may not revoke it without the consent of the United States Internal Revenue Service. See also "— United States Holders — Original Issue Discount — Election to Treat All Interest as Original Issue Discount".

Purchase, Sale and Retirement of the Notes

Your tax basis in your Note will generally be the U.S. dollar cost, as defined below, of your Note, adjusted by:

- adding any original issue discount, market discount, de minimis original issue discount and de minimis market discount previously included in income with respect to your Note; and then
- subtracting any payments on your Note that are not qualified stated interest payments and any amortizable bond premium applied to reduce interest on your Note.

If you purchase your Note with non-U.S. dollar currency, the U.S. dollar cost of your Note will generally be the U.S. dollar value of the purchase price on the date of purchase. However, if you are a cash basis taxpayer, or an accrual basis taxpayer if you so elect, and your Note is traded on an established securities market, as defined in the applicable U.S. Treasury regulations, the U.S. dollar cost of your Note will be the U.S. dollar value of the purchase price on the settlement date of your purchase.

You will generally recognize gain or loss on the sale or retirement of your Note equal to the difference between the amount you realize on the sale or retirement, excluding any amounts attributable to accrued but unpaid interest (which will be treated as interest payments), and your tax basis in your Note. If your Note is sold or retired for an amount in non-U.S. dollar currency, the amount you realize will be the U.S. dollar value of such amount on the date the Note is disposed of or retired, except that in the case of a Note that is traded on an established securities market, as defined in the applicable U.S. Treasury regulations, a cash basis taxpayer, or an accrual basis taxpayer that so elects, will determine the amount realized based on the U.S. dollar value of the specified currency on the settlement date of the sale.

You will recognize capital gain or loss when you sell or retire your Note, except to the extent:

- described above under "— United States Holders — Short-Term Notes" or "— Market Discount"; or
- attributable to changes in exchange rates as described below.

Capital gain of a non-corporate United States holder is generally taxed at preferential rates where the property is held for more than one year.

You must treat any portion of the gain or loss that you recognize on the sale or retirement of a Note as ordinary income or loss to the extent attributable to changes in exchange rates. However, you take exchange gain or loss into account only to the extent of the total gain or loss you realize on the transaction.

Any gain or loss realized on the sale, exchange or other taxable disposition of a Note generally will be treated as U.S. source gain or loss, as the case may be. As a result, if any such gain is subject to foreign income tax, U.S. Holders may not be able to credit such tax against their U.S. federal income tax liability under the U.S. foreign tax credit limitations of the Code, unless such income tax can be credited (subject to applicable limitations) against U.S. federal income tax due on other income treated as derived from foreign sources.

Exchange of Amounts in Other Than U.S. Dollars

If you receive non-U.S. dollar currency as interest on your Note or on the sale or retirement of your Note, your tax basis in the non-U.S. dollar currency will equal its U.S. dollar value when the interest is received or at the time of the sale or retirement. If you purchase non-U.S. dollar currency, you generally will have a tax basis equal to the U.S. dollar value of the non-U.S. dollar currency on the date of your purchase. If you sell or dispose of a non-U.S. dollar currency, including if you use it to purchase Notes or exchange it for U.S. dollars, any gain or loss recognized generally will be ordinary income or loss.

Indexed and Other Notes

The Final Terms will discuss the material United States federal income tax rules with respect to contingent non-U.S. dollar currency Notes, Notes the payments on which are determined by reference to any index and Notes that are subject to the rules governing contingent payment debt instruments, any renewable and extendible Notes and any Notes providing for the periodic payment of principal over the life of the Note.

Medicare Tax

A United States holder that is an individual or estate, or a trust that does not fall into a special class of trusts that is exempt from such tax, is subject to a 3.8% tax on the lesser of (a) the United States holder's "net investment income" (or "undistributed net investment income" in the case of an estate or trust) for the relevant taxable year and (b) the excess of the United States holder's modified gross income for the taxable year over a certain threshold (which in the case of individuals is between \$125,000 and \$250,000, depending on the individual's circumstances). A United States holder's net investment income generally includes its interest income and its net gains from the disposition of Notes, unless such interest payments or net gains are derived in the ordinary course of the conduct of a trade or business (other than a trade or business that consists of certain passive or trading activities). If you are a United States holder that is an individual, estate or trust, you are urged to consult your tax advisors regarding the applicability of the Medicare tax to your income and gains in respect of your investment in the Notes.

Notes that are not Classified as Debt for United States Tax Purposes

The discussion in this subsection addresses the tax treatment of Notes that are not treated as debt, but rather are treated as forward or derivative contracts, for United States federal income tax purposes. The Final Terms will identify any Notes that we believe may not be treated as debt for United States federal income tax purposes.

Tax Treatment

Any interest payments that you receive should be included in ordinary income at the time you receive the payment or when the payment accrues, in accordance with your regular method of accounting for United States federal income tax purposes.

Upon the sale, exchange, redemption or maturity of your Notes, you should recognize capital gain or loss equal to the difference between the amount realized on the sale, exchange, redemption or maturity (excluding any amounts attributable to accrued and unpaid interest payments, which will be taxable as described above) and your tax basis in your Notes. Your tax basis in your Notes will generally be equal to the amount that you paid for the Notes. Such capital gain or loss should generally be short-term capital gain or loss if you hold the Notes for one year or less, and should be long-term capital gain or loss if you hold the Notes for more than one year. Short-term capital gains are generally subject to tax at the marginal tax rates applicable to ordinary income.

No statutory, judicial or administrative authority directly discusses how your Notes should be treated for U.S. federal income tax purposes. As a result, the U.S. federal income tax consequences of your

investment in the Notes are uncertain and alternative characterizations are possible. Accordingly, we urge you to consult your tax advisor in determining the tax consequences of an investment in your Notes in your particular circumstances, including the application of state, local or other tax laws and the possible effects of changes in federal or other tax laws.

Alternative Treatments

There is no judicial or administrative authority discussing how your Notes should be treated for U.S. federal income tax purposes. Therefore, the Internal Revenue Service might assert that a treatment other than that described above is more appropriate. For example, the Internal Revenue Service could treat your Notes as a single debt instrument subject to special rules governing contingent payment debt instruments.

Under those rules, the amount of interest you are required to take into account for each accrual period would be determined by constructing a projected payment schedule for the Notes and applying rules similar to those for accruing original issue discount on a hypothetical noncontingent debt instrument with that projected payment schedule. This method is applied by first determining the comparable yield – i.e., the yield at which we would issue a noncontingent fixed rate debt instrument with terms and conditions similar to your Notes – and then determining a payment schedule as of the applicable original issue date that would produce the comparable yield. These rules may have the effect of requiring you to include interest in income in respect of your Notes prior to your receipt of cash attributable to that income.

If the rules governing contingent payment debt instruments apply, any gain you recognize upon the sale, exchange, redemption or maturity of your Notes would be treated as ordinary interest income. Any loss you recognize at that time would be treated as ordinary loss to the extent of interest you included as income in the current or previous taxable years in respect of your Notes, and, thereafter, as capital loss.

If the rules governing contingent payment debt instruments apply, special rules would apply to persons who purchase a Note at other than the adjusted issue price as determined for tax purposes.

It is possible that the Internal Revenue Service could assert that your Notes should generally be characterized as described above, except that (1) the gain you recognize upon the sale, exchange, redemption or maturity of your Notes should be treated as ordinary income or (2) you should not include the interest payments in income as you receive them but instead you should reduce your basis in your Notes by the amount of interest payments that you receive. It is also possible that the Internal Revenue Service could seek to characterize your Notes in a manner that results in tax consequences to you different from those described above.

It is also possible that the Internal Revenue Service could seek to characterize your Notes as notional principal contracts. It is also possible that the interest payments would not be treated as either ordinary income or interest for United States federal income tax purposes, but instead would be treated in some other manner.

You should consult your tax advisor as to possible alternative characterizations of your Notes for United States federal income tax purposes.

Possible Change in Law

In 2007, legislation was introduced in Congress that, if enacted, would have required holders that acquired instruments such as your Notes after the bill was enacted to accrue interest income over the term of such instruments. Further, future legislation, including legislation based on bills previously introduced in the United States Congress, may tax all derivative instruments on a mark-to-market basis, requiring holders of such derivative instruments to take into account annually gains and losses on such instruments as ordinary income. It is not possible to predict whether a similar or identical bill will be enacted in the future, or whether any such bill would affect the tax treatment of your Notes.

In addition, on 7 December 2007, the Internal Revenue Service released a notice stating that the Internal Revenue Service and the Treasury Department are actively considering issuing guidance regarding the proper U.S. federal income tax treatment of an instrument such as the Notes including whether the holders should be required to accrue ordinary income on a current basis and whether gain or loss should be ordinary or capital. It is not possible to determine what guidance they will ultimately issue, if any. It is possible, however, that under such guidance, holders of the Notes will ultimately be required to accrue income currently and this could be applied on a retroactive basis. The Internal Revenue Service and the Treasury Department are also considering other relevant issues, including whether foreign holders of such instruments should be subject to withholding tax on any deemed income accruals, and whether the special "constructive ownership rules" of Section 1260 of the Internal Revenue Code might be applied to such instruments. Except to the extent otherwise provided by law, we intend to continue treating the Notes for U.S. federal income tax purposes in accordance with the treatment described above unless and until such time as Congress, the Treasury Department or the Internal Revenue Service determine that some other treatment is more appropriate.

It is impossible to predict what any such legislation or administrative or regulatory guidance might provide, and whether the effective date of any legislation or guidance will affect Notes that were issued before the date that such legislation or guidance is issued. You are urged to consult your tax advisor as to the possibility that any legislative or administrative action may adversely affect the tax treatment of your Notes.

Non-United States Holders

This section applies to you only if you are a Non-United States holder. You are a "**Non-United States holder**" if you are a beneficial owner of each of your Notes and you are neither a United States holder nor a partnership.

Notes that are Classified as Debt for United States Tax Purposes

The discussion in this subsection addresses the tax treatment of Notes that are treated as debt for United States federal income tax purposes. The applicable Final Terms will identify any Notes that we intend to treat as debt for United States federal income tax purposes.

A non-U.S. Holder generally will not be subject to U.S. federal income tax with respect to the receipt of interest on the notes, or gain realized on the sale or other disposition of notes, unless (i) the interest or gain is treated as effectively connected with the conduct by such holder of a trade or business in the United States (and, if an income tax treaty applies, the interest or gain is attributable to a permanent establishment maintained by the non-U.S. Holder in the United States), or (ii) in the case of gain derived by an individual, such individual is present in the United States for 183 days or more in the taxable year and certain other conditions are met. If a non-U.S. Holder is described in (i) above, it will be subject to tax on the interest or gain in the same general manner as if the non-U.S. Holder were a U.S. Holder, unless an applicable income tax treaty provides otherwise, and if a non-U.S. Holder is a foreign corporation it may be subject to an additional branch profits tax equal to 30% (or lesser rate as may be specified under an applicable income tax treaty) on its effectively connected earnings and profits (subject to certain adjustments). If a non-U.S. Holder is an individual described in (ii) above, such holder will be subject to a flat 30% tax (subject to reductions under an applicable income tax treaty) on the gain, which may be offset by U.S. source capital losses, even though such holder is not considered a resident of the United States.

Notes that are not Classified as Debt for United States Tax Purposes

The discussion in this subsection addresses the tax treatment of Notes that are not treated as debt, but rather are treated as forward or derivative contracts, for United States federal income tax purposes. The applicable Final Terms will identify any Notes that we believe may not be treated as debt for United States federal income tax purposes.

If you are a Non-United States holder, subject to Section 871(m) of the Internal Revenue Code, discussed below, gain realized from the taxable disposition of a Note generally will not be subject to U.S. tax unless (i) such gain is effectively connected with a trade or business conducted by you in the U.S., (ii) you are a non-resident alien individual and are present in the U.S. for 183 days or more during the taxable year of such taxable disposition and certain other conditions are satisfied or (iii) you have certain other present or former connections with the U.S.

United States Tax Compliance Act

The following overview of FATCA (as defined below) is for general information purposes only.

United States tax rules known as the Foreign Account Tax Compliance Act ("**FATCA**") could impose a withholding tax of 30 per cent on payments on the Notes paid to a Noteholder or any non-United States person or entity that receives such income (a "**non-U.S. payee**") on a Noteholder's behalf, unless the Noteholder and each non-United States payee in the payment chain comply with the applicable information reporting, account identification, withholding, certification and other FATCA-related requirements. This withholding tax will not apply to the Notes unless the Notes are treated as giving rise to "foreign passthru payments" and are issued (or materially modified in a way that would cause the Notes to be treated as reissued for United States tax purposes) after the date that is six months after the United States Treasury Department issues final regulations defining what constitutes "foreign passthru payments". Additionally, proposed United States Treasury Regulations on which taxpayers may rely would delay withholding pursuant to FATCA until two years after the date on which such final regulations are filed with the United States Federal Register. There are currently no rules regarding what constitutes a "foreign passthru payment" or when the defining regulations would be issued.

Even if this withholding tax were to apply to payments on the Notes, in the case of a payee that is a non-United States financial institution (for example, a clearing system, custodian, nominee or broker), withholding generally will not be imposed if the financial institution complies with the requirements imposed by FATCA to collect and report (to the United States or another relevant taxing authority) substantial information regarding such institution's United States account holders (which would include some account holders that are non-United States entities but have United States owners). Other payees, including individuals, may be required to provide proof of tax residence or waivers of confidentiality laws and/or, in the case of non-United States entities, certification or information relating to their United States ownership. Under this withholding regime, withholding may be imposed at any point in a chain of payments if the payee is not compliant. A chain may work as follows, for example: The payment is transferred through a Principal Paying Agent to a clearing system, the clearing system makes a payment to each of the clearing system's participants, and finally the clearing system participant makes a payment to a non-United States bank or broker through which a Noteholder holds the Notes, who credits the payment to the Noteholder's account. Accordingly, if a Noteholder receives payments through a chain that includes one or more non-United States payees, such as a non-United States bank or broker, the payment could be subject to withholding if, for example, the Noteholder's non-U.S. bank or broker through which the Noteholder holds the Notes fails to comply with the FATCA requirements and is subject to withholding. This would be the case even if a Noteholder would not otherwise have been directly subject to withholding.

A number of countries have entered into, and other countries are expected to enter into, agreements with the United States to facilitate the type of information reporting required under FATCA. While the existence of such agreements will not eliminate the risk that the Notes will be subject to the withholding described above, these agreements are expected to reduce the risk of the withholding for investors in (or investors that indirectly hold Notes through financial institutions in) those countries. The United States has entered into such agreements with the United Kingdom. Under these agreements, a financial institution that is resident in the United Kingdom and meets the requirements of the agreement will not be subject to the withholding described above on payments it receives and generally will not be required to withhold from non-United States source income payments that it makes, including payments on the Notes.

The Issuer will not pay any additional amounts in respect of this withholding tax, so if this withholding applies, a Noteholder will receive less than the amount that it would have otherwise received.

Depending on a Noteholder's circumstances, in the event the Issuer is required to withhold any amounts in respect of this withholding tax, the Noteholder may be entitled to a refund or credit in respect of some or all of this withholding. However, even if the Noteholder is entitled to have any such withholding refunded, the required procedures could be cumbersome and significantly delay the Noteholder's receipt of any withheld amounts. A Noteholder should consult its tax advisors regarding FATCA. A Noteholder should also consult its bank or broker through which it would hold the Notes about the likelihood that payments to it (for credit to the Noteholder) may become subject to withholding in the payment chain.

Dividend Equivalent Payments

Section 871(m) of the Internal Revenue Code provides for a 30 per cent. withholding tax (subject to reduction under an applicable treaty) on "dividend equivalents" that are paid to foreign investors with respect to certain financial instruments that reference the performance of a United States equity. Under these rules, if Notes that are issued after 1 January 2017 provide for "delta-one" exposure to the performance of shares of a United States corporation, the Issuer will be obligated to impose United States withholding tax in respect of the actual dividends that are paid on the shares of the corporation (or corporations) that are referenced by the Notes even if we do not actually transmit such amounts to the Noteholder. This tax will also apply if Notes provide for delta-one exposure to an index or basket that includes shares of a United States corporation, unless as discussed below, the index or basket constitutes a "qualified index". If the basket or index is not a "qualified index", the tax will only apply to the dividends on shares of the United States corporations that are included in the index. Notes will generally be treated as providing for a "delta-one" position if it provides for 100 per cent. participation in all of the appreciation and depreciation in the performance of the shares that are referenced by the Notes during the term of the Notes. The Issuer will state in the Final Terms for Notes that reference the performance of an equity, an index or a basket that includes an equity or an index if the Issuer has determined that the Notes are subject to Section 871(m) withholding tax as of the issue date of the Notes.

If Notes are subject to the Section 871(m) withholding tax described above, each dividend that is paid on a U.S. equity that is referenced by the Notes will be subject to a withholding tax at the time that the dividend is paid (or, in certain cases, at the close of the quarter upon which the dividend is paid) even though the Issuer may not make any distributions on the Notes until the redemption or maturity of the Notes. The Issuer will remit the withholding tax to the IRS. The Issuer will not reduce the amount that is due under the Notes by the amount of the Section 871(m) withholding tax. Rather, the Issuer will be deemed to have paid the amount of the Section 871(m) tax to the Noteholder and then paid such amount on the Noteholder's behalf to the IRS. The Issuer expects, however, that as a general matter, any Notes that are subject to the Section 871(m) tax will reference a net dividend index or basket in which the dividend amount that is included in the index or basket will be reduced by the amount of withholding tax that would be imposed on a direct foreign holder of the United States stocks that are referenced by the Notes (which is the same rate as the Section 871(m) tax). In addition, the withholding tax rate that will be used to determine the Section 871(m) withholding tax as well as the net dividend that is included in the index or basket that is referenced by the Notes will not take into account any reduced rate to which the Noteholder may be entitled under an applicable tax treaty. Furthermore, the Noteholder may not receive the necessary information reporting to enable it to claim a refund for the excess of the withholding tax over the tax that would be imposed under an applicable treaty. In addition, the Noteholder may not be able to claim a credit for the payment of the Section 871(m) withholding tax in your resident tax jurisdiction, and the Noteholder therefore should consult a tax advisor in such jurisdiction as to whether you will be able to claim such a credit. The withholding tax that we collect will completely satisfy the Section 871(m) tax liability of a holder of Notes and therefore no other withholding agent (including any financial intermediaries in the chain of ownership for the Notes) will be obligated to impose any additional Section 871(m) tax with respect to the Notes.

Section 871(m) withholding tax will generally not apply to Notes that reference a qualified index even if it is otherwise "delta-one" Notes. A "qualified index" is an index that is passive, diverse, widely used by numerous market participants, and that satisfies a number of technical requirements that are set forth in United States Treasury regulations. Even if an index otherwise constitutes a "qualified index", Notes may not be treated as referencing a "qualified index" with respect to a particular holder if the holder holds a related short position in one or more of the component securities in the index (other than a short position in the entire index, or a "de minimis" short position with a value of less than 5 per cent. of the value of the long positions in the index). Because of this possibility, custodians and other withholding agents may require a holder of Notes that reference a "qualified index" to make representations or certifications regarding the nature of any short positions that it holds with respect to the components of the index, and it is possible that a custodian or other withholding agent will impose the Section 871(m) withholding tax if it does not receive a satisfactory representation or certification or if it otherwise concludes that you may hold a related short position described above.

In addition, a Noteholder may be subject to Section 871(m) even if it holds Notes that are not "delta-one" Notes under the rules described above if (a) the Noteholder's position under the Notes would be "delta-one" when combined with other related positions that are held by the Noteholder or (b) a principal purpose for the holder's investment in the Notes is to avoid the application of Section 871(m), in which case a special Section 871(m) anti-abuse rule could apply to the holder's investment in the Notes. In such a case, a United States alien Noteholder may be liable for Section 871(m) tax in respect of its Notes even when no withholding is required in respect of the Notes.

Furthermore, Notes that are issued on or after 1 January 2027 may be subject to Section 871(m) even if they are not "delta-one" Notes under the rules described above. It is possible that the IRS could assert that Notes that are issued before such date could be deemed to be reissued for tax purposes after 1 January 2027 upon (a) a rebalancing or adjustment of the asset, position, index or basket that is referenced by the Notes or (b) a substitution of the issuer of Notes. In such a case, Notes that are originally issued before 1 January 2027 and are not "delta-one" (and are thus originally not subject to Section 871(m)) could be subject to Section 871(m) after the deemed reissuance.

The application of Section 871(m) to the Notes is complex, and there may be uncertainties regarding the application of Section 871(m) to the Notes. If the Noteholder is not a United States holder, it should consult its tax advisor about the application of Section 871(m) to its Notes.

THIS DESCRIPTION IS LIMITED TO THE U.S. FEDERAL TAX ISSUES DESCRIBED HEREIN OR IN ANY SUPPLEMENT TO THIS BASE PROSPECTUS. IT IS POSSIBLE THAT ADDITIONAL ISSUES MAY EXIST THAT COULD AFFECT THE U.S. FEDERAL TAX TREATMENT OF AN INVESTMENT IN THE NOTES, OR THE MATTER THAT IS THE SUBJECT OF THE DESCRIPTION NOTED HEREIN OR IN ANY SUPPLEMENT TO THIS BASE PROSPECTUS, AND THIS DESCRIPTION DOES NOT CONSIDER OR PROVIDE ANY CONCLUSIONS WITH RESPECT TO ANY SUCH ADDITIONAL ISSUES. TAXPAYERS SHOULD SEEK ADVICE BASED ON THE TAXPAYER'S PARTICULAR CIRCUMSTANCES FROM AN INDEPENDENT TAX ADVISOR.

SELLING RESTRICTIONS

Save for the approval of this Base Prospectus as a Base Prospectus for the purpose of Article 8.1 of the EU Prospectus Regulation by the Central Bank, no action has been or will be taken by the Issuer or the Guarantor that would permit a public offering of the Notes or possession or distribution of any offering material in relation to the Notes in any jurisdiction where action for that purpose is required. No offers or sales of any Notes, or distribution of any offering material relating to the Notes, may be made in or from any jurisdiction except in circumstances, which will result in compliance with any applicable laws and regulations and will not impose any obligation on the Issuer or the Guarantor.

THE UNITED STATES

The Notes have not been and will not be registered under the Securities Act or the securities laws of any U.S. State, and the Notes may not be offered or sold within the United States or to, or for the account or benefit of, U.S. persons as defined in Regulation S, *unless offered or sold within the United States to QIBs in reliance on the Private Placement Exemption*. Trading in the Notes has not been and will not be approved by an exchange or board of trade.

In connection with the offer and sale of the Notes pursuant to an exemption from registration provided by Regulation S, each dealer is required to agree that it will not offer or sell the Notes, as part of its distribution at any time or otherwise until 40 days after the completion of the distribution of the Series of which such Notes are a part, as determined and certified to Goldman Sachs International by the dealer (or, in the case of a Series of Notes sold to or through more than one dealer, by each of such dealers as to Notes of such Series purchased by or through it, in which case Goldman Sachs International shall notify each such dealer when all such dealers have so certified), within the United States or to, or for the account or benefit of, U.S. persons. Accordingly, each dealer is required to represent and agree that it, its affiliates and any person acting on its or their behalf have not engaged, and will not engage, in any directed selling efforts with respect to the Note and it and they have complied, and will comply, with the "offering restrictions" requirements under Regulation S and it will have sent to each dealer to which it sells Notes during the distribution compliance period a confirmation or other notice setting forth the restrictions on offers and sales of the Notes in the United States or to, or for the account or benefit of, U.S. persons.

In addition, an offer or sale of Notes within the United States by a distributor or dealer (whether or not participating in the offering) may violate the registration requirements of the Securities Act if such offer or sale is otherwise than in accordance with Rule 144A.

The purchaser further represents and agrees that offers and sales of the Notes have been and will be made by it in accordance with the transfer restrictions in the Trust Deed, as applicable.

Terms used in the preceding paragraphs have the meanings given to them in Regulation S under the Securities Act.

In addition, unless otherwise specified in the Final Terms relating to a Note, by its purchase of the Notes, the purchaser (or transferee) and each person directing such purchase (or transfer) on behalf of such holder will represent, or will be deemed to have represented and warranted, on each day from the date on which the purchaser (or transferee) acquires the Notes through and including the date on which the purchaser (or transferee) disposes of its interest in the Notes, that the purchaser (or transferee) is not (and for so long as it holds any Note or any interest therein will not be), and is not acting on behalf of (and for so long as it holds any Note or any interest therein will not be acting on behalf of) (1) an "employee benefit plan" (as defined in Section 3(3) of ERISA) that is subject to Title I of ERISA, (2) a "plan" (as defined in Section 4975(e)(1) of the Code) to which Section 4975 of the Code applies, (3) an entity whose underlying assets include the assets of such an "employee benefit plan" or "plan", or (4) a foreign, governmental or church plan that is subject to any non-U.S., federal, state or local law that is similar to the applicable provisions of ERISA or the Code with respect to the treatment of plan assets or prohibited transactions.

If the Final Terms for any Series of Notes of which GSI is the Issuer permit the Collateral to include Eligible Securities that are "margin stock", as defined in Regulation U promulgated by the Board of Governors of the United States Federal Reserve System ("Regulation U"), then GSI hereby notifies each Holder of Notes of such Series that any margin stock included among the Collateral for such Notes will be eligible for the "hypothecation loan" exception of Section 221.5(c)(1) of Regulation U. Any Holder or prospective Holder of such Notes with a principal office in the United States should consult its legal adviser regarding the applicability of Regulation U to its investment in such Notes (including the applicability of the registration requirements of Section 221.3(b) of Regulation U).

TRANSFER RESTRICTIONS

Each purchaser of a beneficial interest in any Note will be deemed to have represented and agreed, *inter alia*, as follows (terms used in this paragraph that are defined in Regulation S or Rule 144A are used herein as defined therein):

- (a) the purchaser of a beneficial interest in any Note offered and sold in reliance on the exemption from registration provided by Regulation S (i) is, and the person, if any, for whose account it is acquiring a beneficial interest in such Note is, outside the United States and is not a U.S. person, (ii) is not an affiliate of the Issuer or a person acting on behalf of such affiliate and (iii) is not a securities dealer or, if it is a securities dealer, it did not acquire the Notes from the Issuer or an affiliate thereof in the initial distribution and (iv) is acquiring the offered Notes in an offshore transaction meeting the requirements of Regulation S;
- (b) the purchaser is aware that the Notes have not been and will not be registered under the Securities Act or any state securities law, and that the Notes are being distributed and offered outside the United States to non-U.S. persons in reliance on Regulation S and within the United States exclusively to QIBs in reliance on the Private Placement Exemption;
- (c) the purchaser acknowledges that beneficial interests in the Notes may be offered, sold or otherwise transferred in reliance on Regulation S only if such transfer is not made to a U.S. person or for the account or benefit of a U.S. person in an offshore transaction;
- (d) the purchaser of a beneficial interest in any Note offered and sold in reliance on the Private Placement Exemption (i) is a QIB, (ii) is aware that the sale is being made in reliance on the Private Placement Exemption (iii) is acquiring Notes for its own account or the account of a QIB and (iv) acknowledges that beneficial interests in the Notes may be offered, sold or otherwise transferred to QIBs in reliance on the Private Placement Exemption;
- (e) the purchaser acknowledges that beneficial interests in the Global Registered Notes may be held only through Euroclear, Clearstream or DTC and that any transfer of such beneficial interests must be effected through Euroclear, Clearstream or DTC;
- (f) the purchaser agrees that it will give to each person to whom it transfers Notes notice of any restrictions on transfer of such Notes;
- (g) it is not (and for so long as it holds any Note or any interest therein will not be), and is not acting on behalf of (and for so long as it holds any Note or any interest therein will not be acting on behalf of) (1) an "employee benefit plan" (as defined in Section 3(3) of ERISA) that is subject to Title I of ERISA, (2) a "plan" (as defined in Section 4975(e)(1) of the Code) to which Section 4975 of the Code applies, (3) an entity whose underlying assets include the assets of such an "employee benefit plan" or "plan", or (4) a foreign, governmental or church plan that is subject to any non-U.S. federal, state or local law that is similar to the applicable provisions of ERISA or the Code with respect to the treatment of plan assets or prohibited transactions; and

- (h) the purchaser acknowledges that the Issuer, the dealer(s), their affiliates and others will rely upon the truth and accuracy of the foregoing representations and agreements.

EUROPEAN ECONOMIC AREA

MiFID II product governance/target market

The Final Terms in respect of any Notes will include a legend entitled "**MiFID II product governance**" which will outline the target market assessment in respect of the Notes and which channels for distribution of the Notes are appropriate. Any person subsequently offering, selling or recommending the Notes (a "**distributor**") should take into consideration the target market assessment; however, a distributor subject to Directive 2014/65/EU (as amended, "**MiFID II**") is responsible for undertaking its own target market assessment in respect of the Notes (by either adopting or refining the target market assessment) and determining appropriate distribution channels.

PRIPs Regulation and EU Prospectus Regulation

The Notes are not intended to be offered, sold or otherwise made available to and should not be offered, sold or otherwise made available to any retail investor in the EEA. For these purposes, a retail investor means a person who is one (or more) of: (i) a retail client as defined in point (11) of Article 4(1) of MiFID II; (ii) a customer within the meaning of the Directive (EU) 2016/97 (the "**Insurance Distribution Directive**"), where that customer would not qualify as a professional client as defined in point (10) of Article 4(1) of MiFID II; or (iii) not a qualified investor as defined in the EU Prospectus Regulation. Consequently no key information document required by Regulation (EU) No. 1286/2014 (as amended, the "**PRIPs Regulation**") for offering or selling the Notes or otherwise making them available to retail investors in the EEA has been prepared and therefore offering or selling the Notes or otherwise making them available to any retail investor in the EEA may be unlawful under the PRIPs Regulation.

This Base Prospectus has been prepared on the basis that, except to the extent (ii) below may apply, any offer of Notes in a relevant member state of the EEA (a "**Relevant Member State**") will be made pursuant to an exemption under the EU Prospectus Regulation from the requirement to publish a prospectus for offers of Notes. Accordingly, any person making or intending to make an offer in that Relevant Member State of Notes which are the subject of a placement contemplated in this Base Prospectus as completed by Final Terms in relation to the offer of those Notes may only do so (i) in circumstances in which no obligation arises for the Issuer to publish a prospectus pursuant to Article 3 of the EU Prospectus Regulation or supplement a prospectus pursuant to Article 23 of the EU Prospectus Regulation, in each case, in relation to such offer, or (ii) if a prospectus for such offer has been approved by the competent authority in that Relevant Member State or, where appropriate, approved in another Relevant Member State and notified to the competent authority in that Relevant Member State and (in either case) published, all in accordance with the EU Prospectus Regulation, provided that any such prospectus has subsequently been completed by Final Terms which specify that offers may be made other than pursuant to Article 1(4) of the EU Prospectus Regulation in that Relevant Member State and such offer is made on or prior to the date specified for such purpose in such prospectus or Final Terms, as applicable, and the Issuer has consented in writing to its use for the purpose of such offer. Except to the extent (ii) above may apply, neither the Issuer nor the Guarantor has authorised, nor do they authorise, the making of any offer of Notes in circumstances in which an obligation arises for the Issuer to publish or supplement a prospectus for such offer. For the purposes of this provision, the expression "**EU Prospectus Regulation**" means Regulation (EU) 2017/1129 (and amendments thereto).

UNITED KINGDOM**Prohibition of Sales to UK Retail Investors**

Unless the Final Terms in respect of any Notes specifies the "Prohibition of Sales to UK Retail Investors" as "Not Applicable", the relevant Notes may not be offered, sold or otherwise made available to any retail investor in the United Kingdom. For the purposes of this provision:

- (a) the expression "retail investor" means a person who is one (or more) of the following:
 - (i) a retail client, as defined in point (8) of Article 2 of Regulation (EU) No 2017/565 as it forms part of UK domestic law by virtue of the European Union (Withdrawal) Act 2018 of the United Kingdom (as amended, the "**EUWA**"); or
 - (ii) a customer within the meaning of the provisions of the Financial Services and Markets Act 2000 of the United Kingdom (as amended, the "**FSMA**") and any rules or regulations made under the FSMA to implement Directive (EU) 2016/97, where that customer would not qualify as a professional client, as defined in point (8) of Article 2(1) of Regulation (EU) No 600/2014 as it forms part of UK domestic law by virtue of the EUWA; or
 - (iii) not a qualified investor as defined in Article 2 of the UK Prospectus Regulation; and
- (b) the expression an "offer" includes the communication in any form and by any means of sufficient information on the terms of the offer and the Notes to be offered so as to enable an investor to decide to purchase or subscribe for the Notes.

Public Offer Selling Restrictions under the UK Prospectus Regulation

If the Final Terms in respect of any Notes specifies "Prohibition of Sales to UK Retail Investors" as "Not Applicable", an offer of those Notes may not be made to the public in the United Kingdom except that it may make an offer of such Notes to the public in the United Kingdom:

- (a) if the final terms or drawdown prospectus in relation to the Notes specify that an offer of those Notes may be made other than pursuant to section 86 of the FSMA (a "Non-exempt Offer"), following the date of publication of a prospectus in relation to such Notes which either (i) has been approved by the Financial Conduct Authority, or (ii) is to be treated as if it had been approved by the Financial Conduct Authority in accordance with the transitional provision in Regulation 74 of the Prospectus (Amendment etc.) (EU Exit) Regulations 2019, provided that any such prospectus has subsequently been completed by the final terms contemplating such Non-exempt Offer in the period beginning and ending on the dates specified in such prospectus or final terms, as applicable and the Issuer has consented in writing to its use for the purpose of that Non-exempt Offer;
- (b) at any time to any legal entity which is a qualified investor as defined in Article 2 of the UK Prospectus Regulation;
- (c) at any time to fewer than 150 natural or legal persons (other than qualified investors as defined in Article 2 of the UK Prospectus Regulation) in the United Kingdom subject to obtaining the prior consent of the relevant Dealer or Dealers nominated by the Issuer for any such offer; or
- (d) at any time in any other circumstances falling within section 86 of the FSMA, provided that no such offer of Notes referred to in (a) to (c) above shall require the Issuer or any Dealer to publish a prospectus pursuant to section 85 of the FSMA or supplement a prospectus pursuant to Article 23 of the UK Prospectus Regulation.

For the purposes of this provision, the expression an "offer of Notes to the public" in relation to any Notes means the communication in any form and by any means of sufficient information on the terms of the

offer and the Notes to be offered so as to enable an investor to decide to purchase or subscribe for the Notes and the expression "UK Prospectus Regulation" means Regulation (EU) 2017/1129 as it forms part of domestic law by virtue of the EUWA and regulations made thereunder.

Selling Restrictions Addressing Additional United Kingdom Securities Laws

Any offeror of Notes will be required to represent and agree that:

- (a) in relation to any Notes which have a maturity of less than one year, (i) it is a person whose ordinary activities involve it in acquiring, holding, managing or disposing of investments (as principal or agent) for the purposes of its business and (ii) it has not offered or sold and will not offer or sell any Notes other than to persons whose ordinary activities involve them in acquiring, holding, managing or disposing of investments (as principal or as agent) for the purposes of their businesses or who it is reasonable to expect will acquire, hold, manage or dispose of investments (as principal or agent) for the purposes of their businesses where the issue of the Notes would otherwise constitute a contravention of section 19 of FSMA by the Issuer;
- (b) it has only communicated or caused to be communicated and will only communicate or cause to be communicated an invitation or inducement to engage in investment activity (within the meaning of section 21 of FSMA) received by it in connection with the issue or sale of any Notes in circumstances in which section 21(1) of FSMA does not apply to the Issuer or the Guarantor or, in the case of GSI, would not if it was not an authorised person, apply to GSI; and
- (c) it has complied and will comply with all applicable provisions of FSMA with respect to anything done by it in relation to any Notes in, from or otherwise involving the United Kingdom.

SELLING RESTRICTIONS ADDRESSING ADDITIONAL IRISH SECURITIES LAWS

Any offeror of the Notes will be required to represent, warrant and agree that it has not offered, sold, placed or underwritten and will not offer, sell, place or underwrite the Notes, or do anything in Ireland in respect of the Notes, otherwise than in conformity with the provisions of:

- (a) the European Union (Prospectus) Regulations 2019 of Ireland, Regulation (EU) 2017/1129 of the European Parliament and of the Council of 14 June 2017 on the prospectus to be published when securities are offered to the public or admitted to trading on a regulated market and any applicable supporting law, rule or regulation and any Central Bank rules issued and / or in force pursuant to Section 1363 of the Companies Act 2014 of Ireland (as amended) (the "Companies Act");
- (b) the Companies Act;
- (c) the European Union (Markets in Financial Instruments) Regulations 2017 (as amended) of Ireland and it will conduct itself in accordance with any rules or codes of conduct and any conditions or requirements, or any other enactment, imposed or approved by the Central Bank;
- (d) Regulation (EU) No 596/2014 of the European Parliament and of the Council of 16 April 2014 on market abuse (as amended), the European Union (Market Abuse) Regulations 2016 of Ireland (as amended) and any rules issued by the Central Bank pursuant to section 1370 of the Companies Act;
- (e) Regulation (EU) No 1286/2014 of the European Parliament and of the Council of 26 November 2014 on key information documents for packaged retail and insurance-based investment products (PRIIPs); and
- (f) the Central Bank Acts 1942 to 2018 (as amended) and any codes of conduct rules made under Section 117(1) of the Central Bank Act 1989.

SELLING RESTRICTIONS ADDRESSING ADDITIONAL SWISS SECURITIES LAWS

Each offeror of Notes represents and agrees that it has not made and will not make a public offer of Notes to private clients in Switzerland. Neither the Issuer nor the Guarantor has authorised, nor does any of them authorise any offer of Notes which would require the Issuer or any offeror to publish a prospectus pursuant to article 35 of the Swiss Federal Financial Services Act ("**FinSA**") in respect of such offer. For the purposes of this provision, the expression "public offer" refers to the respective definitions in article 3 lit. g and h FinSA and as further detailed in the Financial Services Ordinance.

BOOK-ENTRY CLEARING SYSTEMS

The information appearing below is based on the Issuer's understanding of the rules and procedures of the relevant Clearing System as derived from public sources. These rules and procedures are subject to change.

SECURITIES HELD THROUGH A RELEVANT CLEARING SYSTEM

See "Book-entry systems" below. Transfers of Notes which are held in a relevant Clearing System may be effected only through the relevant Clearing System(s) in which the Notes to be transferred are held. Title will pass upon registration of the transfer in the books of the relevant Clearing System(s) and in accordance with the local laws, regulations and/or rules governing such relevant Clearing Systems.

Beneficial interests in the Notes will be shown on, and transfers thereof will be effected through, records maintained by the relevant Clearing System(s) and its respective participants.

BOOK-ENTRY SYSTEMS

DTC, Euroclear and Clearstream, Luxembourg have each published rules and operating procedures designed to facilitate transfers of beneficial interests in Notes among participants and accountholders of DTC and Euroclear and Clearstream, Luxembourg. However, they are under no obligation to perform or continue to perform such procedures, and such procedures may be discontinued or changed at any time. None of the Issuer, the Guarantor (if applicable), the relevant Paying Agents or any dealer will be responsible for any performance by DTC or Euroclear and Clearstream, Luxembourg or their respective direct or indirect participants or accountholders of their respective obligations under the rules and procedures governing their operations and none of them will have any liability for any aspect of the records relating to or payments made on account of beneficial interests in the Notes or for maintaining, supervising or reviewing any records relating to such beneficial interests.

Euroclear and Clearstream, Luxembourg

Euroclear and Clearstream, Luxembourg each holds securities for its customers and facilitates the clearance and settlement of securities transactions by electronic book-entry transfer between their respective account holders. Euroclear and Clearstream, Luxembourg provide various services including safekeeping, administration, clearance and settlement of internationally traded securities and securities lending and borrowing. Euroclear and Clearstream, Luxembourg also deal with domestic securities markets in several countries through established depository and custodial relationships. Euroclear and Clearstream, Luxembourg have established an electronic bridge between their two systems across which their respective participants may settle trades with each other. Euroclear and Clearstream, Luxembourg customers are world-wide financial institutions, including underwriters, securities brokers and dealers, banks, trust companies and clearing corporations. Indirect access to Euroclear and Clearstream, Luxembourg is available to other institutions that clear through or maintain a custodial relationship with an account holder of either system.

DTC

DTC is a limited-purpose trust company organised under the New York Banking Law, a "banking organisation" within the meaning of the New York Banking Law, a member of the Federal Reserve System, a "clearing corporation" within the meaning of the New York Uniform Commercial Code and a "clearing agency" registered pursuant to the provisions of Section 17A of the Exchange Act. DTC holds and provides asset servicing for over 3.5 million issues of U.S. and non-U.S. equity issues, corporate and municipal debt issues, and money market instruments (from over 100 countries) that DTC's participants ("**Direct Participants**") deposit with DTC. DTC also facilitates the post-trade settlement among Direct Participants of sales and other securities transactions in deposited securities through electronic computerised book-entry transfers and pledges between Direct Participants' accounts. This eliminates

the need for physical movement of securities certificates. Direct Participants include both U.S. and non-U.S. securities brokers and dealers, banks, trust companies, clearing corporations, and certain other organisations. DTC is a wholly-owned subsidiary of The Depository Trust & Clearing Corporation ("**DTCC**"). DTCC is the holding company for DTC, National Securities Clearing Corporation and Fixed Income Clearing Corporation, all of which are registered clearing agencies. DTCC is owned by the users of its regulated subsidiaries. Access to the depository system is also available to others such as both U.S. and non-U.S. securities brokers and dealers, banks, trust companies and clearing corporations that clear through or maintain a custodial relationship with a Direct Participant, either directly or indirectly ("**Indirect Participants**"). The rules applicable to Direct Participants are on file with the SEC. More information about DTC can be found at its internet web site at <http://www.dtcc.com/>.

GENERAL INFORMATION

1. The establishment and annual update of the Programme has been authorised pursuant to a written resolution of the Executive Committee of the Board of Directors of GSI passed on 28 September 1998. The entering into and performance of the Guaranty by the Guarantor has been authorised pursuant to a resolution of the Board of Directors of GS Group dated 16 September 2005.
2. None of the Issuer, the Guarantor or any of the Guarantor's subsidiaries, save as disclosed in "Legal Proceedings" on pages 24-26 of the GSI 2025 Q2 Financial Report, pages 87-99 and 174 of the GS Group 2025 Q2 Form 10-Q, pages 9 to 10 of the GSI 2025 Q1 Financial Report, pages 86-98 and 170 of the GS Group 2025 Q1 Form 10-Q, pages 74 to 75 of the GSI 2024 Annual Report and pages 60 and 218-230 of the GS Group 2024 Form 10-K and in this Base Prospectus, are or have been involved in any governmental, legal or arbitration proceedings (including any such proceedings which are pending or threatened of which the Issuer or the Guarantor is aware) during the 12 months before the date of this Base Prospectus which may have, or have had in the recent past, significant effects on the financial position or profitability of the Issuer or of the Guarantor and its consolidated subsidiaries. The Guarantor believes, based on currently available information, that the results of such proceedings, in the aggregate, will not have a material adverse effect on the consolidated financial position of the group, but might be material to its operating results for any particular period, depending, in part, upon the operating results for such period.
3. There has been no material adverse change in the prospects of the Issuer since 31 December 2024, except as it may otherwise be indicated in the Base Prospectus, in particular in the section entitled "*The Issuer*" on pages 101 to 106 of the Base Prospectus including any information incorporated by reference in the section entitled "*Documents Incorporated by Reference – Goldman Sachs International*" on page 111 of the Base Prospectus. There has been no material adverse change in the prospects of the Guarantor and its consolidated subsidiaries since 31 December 2024, except as it may otherwise be indicated in the Base Prospectus, in particular in the section entitled "*The Guarantor*" on pages 107 to 110 of the Base Prospectus including any information incorporated by reference in the section entitled "*Documents Incorporated by Reference – The Goldman Sachs Group, Inc.*" on pages 111 to 113 of the Base Prospectus.
4. There has been no significant change in the financial position or financial performance of the Issuer since 30 June 2025, except as it may otherwise be indicated in this Base Prospectus, in particular the section entitled "*The Issuer*" on pages 101 to 106 of this Base Prospectus including any information incorporated by reference in the "Documents Incorporated by Reference" section on page 111 of this Base Prospectus. There has been no significant change in the financial position or financial performance of the Guarantor and its consolidated subsidiaries, since 30 June 2025, except as it may otherwise be indicated in this Base Prospectus, in particular the section entitled "*The Guarantor*" on pages 107 to 110 of this Base Prospectus including any information incorporated by reference in the "*Documents Incorporated by Reference*" section on pages 111 to 114 of this Base Prospectus.
5. Neither the Issuer nor the Guarantor have entered into any material contracts, other than those entered into during the normal course of business, that create an obligation or commitment for GSI or any GS Group member.
6. For so long as any Notes shall be outstanding or may be issued under the Programme:
 - (a) copies of the following documents will, when published, be available on the website of the GS Group at <https://www.goldmansachs.com/investor-relations/index.html> or on the websites specified below:

- (i) the Memorandum and Articles of Association of the Issuer, available at <https://www.goldmansachs.com/investor-relations/financials/subsidiary-financial-info/gsi/GSI-AoA-2019.pdf>
 - (ii) the restated Certificate of Incorporation of the Guarantor, available at <https://www.goldmansachs.com/investor-relations/corporate-governance/corporate-governance-documents/re-stated-certificate.pdf>;
 - (iii) the Trust Deed, available at [https://ise-prodnr-eu-west-1-data-integration.s3-eu-west-1.amazonaws.com/legacy/1.+Trust+Deed+-+Amended+and+Restated+\(dd+23+Sept+2020\)_be1cea34-ce50-4311-bb85-63a7cc5e7bff.PDF](https://ise-prodnr-eu-west-1-data-integration.s3-eu-west-1.amazonaws.com/legacy/1.+Trust+Deed+-+Amended+and+Restated+(dd+23+Sept+2020)_be1cea34-ce50-4311-bb85-63a7cc5e7bff.PDF);
 - (iv) the Guaranty dated 23 September 2016, available at https://ise-prodnr-eu-west-1-data-integration.s3-eu-west-1.amazonaws.com/legacy/Guaranty+-+dated+23+Sept+2016_f6d22867-ab81-4303-b6db-9ef95fa3de40.PDF;
 - (v) the GS Group 2024 Form 10-K;
 - (vi) the GSI 2024 Annual Report;
 - (vii) the GS Group 2025 Q1 Earnings Results Form 8-K;
 - (viii) the GSI 2025 Q1 Financial Report;
 - (ix) GS Group 2025 Q1 Form 10-Q;
 - (x) the GS Group 2025 Q2 Earnings Results Form 8-K;
 - (xi) GS Group 2025 Q2 Form 10-Q;
 - (xii) the GSI 2025 Q2 Financial Report;
 - (xiii) all reports, letters and other documents, balance sheets, valuations and statements by any expert any part of which is extracted or referred to in this Base Prospectus; and
 - (b) physical copies of the following documents may be obtained free of charge upon request during normal business hours from the specified office of the Issuer, available at: <https://live.euronext.com/en/product/bonds-detail/25306/documents>;
 - (i) the Final Terms for each Series of Notes that are listed and admitted to trading on the regulated market or the GEM of Euronext Dublin;
 - (ii) a copy of this Base Prospectus; and
 - (iii) a copy of any supplement to this Base Prospectus and Final Terms.
7. GSI's legal entity identifier (LEI) is W22LROWP2IHZNB6K528.
8. This Base Prospectus will also be made available to the public by publication in electronic form on the website of Euronext Dublin, <https://www.euronext.com/en/markets/dublin>, or by request from The Goldman Sachs Group, Inc., Investor Relations, 200 West Street, New York, New York 10282, telephone +1 (212) 902 0300.
9. Any information on the website addresses contained in this Base Prospectus do not form part of this Base Prospectus unless that information is specifically incorporated by reference into this Base Prospectus.

10. The estimated total expenses related to the admission to trading on Euronext Dublin will be approximately Euro 5,000.
11. The Final Terms in relation to each Series of Notes will specify whether the Notes have been accepted for clearance through Euroclear, Clearstream or DTC. The appropriate common code and International Securities Identification Number in relation to the Notes of each such Series and any other clearing system as shall have accepted the relevant Securities for clearance will be specified in the Final Terms relating thereto.
12. Records of Notes in certificated or book-entry form will be maintained by Euroclear Bank SA/NV of 1 Boulevard du Roi Albert II, B- 1210 Brussels, Belgium, Clearstream Banking SA of 42 Avenue J.F. Kennedy, L-1855 Luxembourg or DTC. The address of DTC is 55 Water Street, New York NY 10041-0099, USA.
13. Pursuant to the Trust Deed, a first priority security interest in all of the Issuer's right, title and interest in collateral securing the Issuer's obligations under the Notes will be granted to The Bank of New York Mellon, acting through its London Branch, as Trustee (or its duly appointed agent), on behalf of the Noteholders. The Bank of New York Mellon is a New York banking corporation and its corporate trust office in London, England is located at 160 Queen Victoria Street, London EC4V 4LA.
14. In the foregoing paragraphs 3 and 4 required by the Prospectus Regulation, references to the "prospects", "financial performance" and "financial position" of the Issuer, are specifically to the ability of the Issuer to meet its full payment obligations under the Notes in a timely manner. Material information about the Issuer or the Guarantor's financial condition and prospects is included in the periodic report on Form 10-K, 10-Q and 8-K which are incorporated by reference into this Base Prospectus.

REGISTERED OFFICE OF THE ISSUER

Goldman Sachs International

Plumtree Court
25 Shoe Lane
London EC4A 4AU
United Kingdom

PRINCIPAL OFFICE OF THE GUARANTOR

The Goldman Sachs Group, Inc.

200 West Street
New York, NY 10282
USA

TRUSTEE, PRINCIPAL PAYING AGENT AND COLLATERAL ADMINISTRATOR

The Bank of New York Mellon (acting through its London Branch)

160 Queen Victoria Street
London EC4V 4LA
United Kingdom

REGISTRAR

The Bank of New York Mellon SA/NV Luxembourg Branch

2-4 rue Eugene Ruppert
Vertigo Building – Polaris
L-2453 Luxembourg
Luxembourg

LEGAL ADVISER TO THE ISSUER

as to English and U.S. law

Hogan Lovells International LLP

Atlantic House
Holborn Viaduct
London EC1A 2FG
United Kingdom

as to Irish Law

Matheson LLP

70 Sir John Rogerson's Quay
Dublin 2
Ireland

AUDITORS

INDEPENDENT AUDITORS OF THE ISSUER

PricewaterhouseCoopers LLP

1 Embankment Place
London WC2N 6RH
United Kingdom

INDEPENDENT ACCOUNTANTS OF THE GUARANTOR

PricewaterhouseCoopers LLP

300 Madison Avenue
New York, NY 10017